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MAXWELL
ON
THE INTERPRETATION
OF
STATUTES

ELEVENTH EDITION

BY

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AND

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WITH A FOREWORD

BY

THE RIGHT HONOURABLE LORD EVERSHEI

The Master of the Rolls

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Making innumerable Statutes men
 Merely confuse what God achieved in ten
—Humbert Wolfe

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FOREWORD

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I AM indeed proud to have been asked to write the Foreword to the new edition of this important book. Sir Henry Wynn Parry, in his Foreword to the last edition, drew forthright attention to the growing importance of the statute law as part of the *corpus juris Angliae*, and there can be no doubt that since 1953, the pace has by no means slackened. It is indeed, as I believe, difficult to exaggerate the extent of the change upon our ancient legal system and its administration which the increasing impact of the enacted law has brought about. During the period from Magna Carta until the end of the eighteenth century—the period which saw the growth of those principles of the common law and equity which have been regarded as peculiarly characteristic of our system—the number of statutes including Turnpike Acts and those enactments now known as “Private Acts,” did not upon average, exceed seventeen a year or half a page in length. In the year 1960 66 public Acts of Parliament were passed and recorded in a volume of 1 157 printed pages. Moreover, modern legislation affects intimately almost all aspects of the life and work of every citizen. To an increasing extent the work of the Courts, more especially the work of the Court of Appeal and of the House of Lords, consists of cases involving the interpretation of Acts of Parliament, and in very many of those cases the process, if it calls for arduous and sometimes unrewarding mental agility, may be thought to be far removed from the process employed in the development of legal principles.

There has come down among the papers of my predecessor Sir Thomas Egerton (afterwards Lord Chancellor Ellesmere) a

Discourse upon the Exposition and Understanding of Statutes. Those chapters concerned with the art of the interpretation of statutes occupy some thirty pages only. The number today of the Courts’ decisions upon this subject matter has swollen inevitably the needs of any text book which can serve as a guide not only to the Courts but to the whole legal profession whose essential duty and responsibility it is to expound (and indeed, to justify) the law to the rest of the community. It follows that if any text book upon the subject is to answer these needs it must take account of recent decisions of the Courts, particularly of the House of Lords, to two

important examples of which reference is made in the Preface to this Edition

If the law of England is to continue to deserve its claim to be a living thing capable of adapting itself to the requirements of succeeding ages it is essential that the principles to be applied in the construction of modern complex legislation should as they are worked out in the laboratories of the Courts, be so far as possible coherent as well as understood

The length and detail of modern legislation has undoubtedly reinforced the claim of literal construction as the only safe rule and the statement in the previous edition of this work that the difficulty lies in deciding between words that are plain but absurd and words that are so absurd as not to be deemed plain is supported in the present edition (pp 6 and 7) by a reference to the case of *Re Lockwood* decided in 1958. It is my hope that out of the vast body of judicial decisions on the interpretation of statutes there will in the end emerge rules few in number but well understood generally applicable or applicable to particular and defined classes of legislation which may supersede and render obsolete other dicta derived from a different age and a different philosophy. If such a result were to be achieved the process would be wholly in accord with the experience of other branches of our law and for the words used by Lord Dunedin in 1926 provide the first essential guide

A statute is designed to be workable and the interpretation thereof by a court should be to secure that object unless crucial omission or clear direction makes that end unattainable.¹

The language of the Preface lends encouragement to my hope and on that ground as well as on many others the labours of the editors deserve the grateful support of the legal profession and of the community as a whole

EVERSHED

¹ *Wiltney v Inland Revenue Commissioners* [1926] A.C. 37 at p. 52

PREFACE

THE eleventh edition of *Maxwell* displays no startling changes from its predecessors. More of the older cases and examples have been deleted (a process begun in the tenth edition) especially where the statutes concerned have been repealed, so that the decision no longer bears any direct relation to the present law. Since the last edition, there have been a number of important new decisions which have found a place in the present work. For instance *Prince Ernest Augustus of Hanover v The Attorney General* [1957] A C 436, H L and *Smith v East Elloe R D C* [1956] A C 736 H L.

The law stated in this edition is, in the main, that subsisting in July 1960. In the preparation of this volume we have been greatly helped by practitioners from both sides of the legal profession who have drawn our attention to cases which they have uncovered in the course of their practices. To them and others we wish to express our thanks. And we are very grateful to the Master of the Rolls for kindly consenting to write the Foreword.

ROY WILSON
BRIAN GALPIN

3, Pump Court
Temple, E C 4

August, 1961

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उप निग एवं वाचनालय

स्टेशन रोड, बी. . .

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CHAPTER I

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SECTION I —INTRODUCTORY

A STATUTE is the will of the legislature,¹ and the fundamental rule of interpretation to which all others are subordinate, is that

¹ As soon as an Act has received the Royal Assent a print of it in the form in which it was finally agreed to is prepared in the Public Bill Office of the House of Lords and carefully examined to ensure that the amendments have been correctly inserted. The date on which the Royal Assent was signified is inserted after the title and the Act is given a chapter number. Acts are numbered serially throughout each session in the order in which they receive the Royal Assent. Public General Acts form one series and are numbered in large Arabic characters. Provisional Order Confirmation Acts and Local Acts form a second series and are numbered in small Roman characters and Personal Acts if printed, form a third series and are numbered in small italicised Arabic figures.

After examination a proof copy of every public Act is certified by the Clerk of Public Bills and sent to the Queen's Printer and a request is sent to the Controller of the Stationery Office to issue instructions for its immediate publication.

Two prints are prepared on a durable vellum which after a further examination in the Public Bill Office are endorsed with the words by which the Royal Assent was signified are signed by the Clerk of the Parliaments and become the official copies of the Act. One of these is sent for custody to the Public Record Office and the other is preserved in the House of Lords. In the case of Church Assembly Measures a third vellum copy is printed and sent to the Church Assembly.

Paper prints of the Act are placed on sale to the public, and such printed copies are accepted as evidence in courts of law. The original prints may be seen when necessary and copies taken on the payment of certain fees. (*May Parliamentary Practice* 16th ed. pp. 598-599)

a statute is to be expounded according to the intent of them that made it. If the words of the statute are in themselves precise and unambiguous no more is necessary than to expound those words in their natural and ordinary sense, the words themselves in such case best declaring the intention of the legislature.³ The object of all interpretation of a statute is to determine what intention is conveyed, either expressly or impliedly, by the language used, so far as is necessary for determining whether the particular case or state of facts presented to the interpreter falls within it.

If there is one rule of construction for statutes and other documents it is that you must not imply anything in them which is inconsistent with the words expressly used.⁴ When the intention is expressed, the task is one of verbal construction only but when the statute expresses no intention on a question to which it gives rise and yet some intention must necessarily be imputed to the legislature regarding it, the interpreter has to determine it by inference grounded on certain legal principles. The Sunday Observance Act 1677 (c 7) for instance which imposes a penalty, recoverable summarily on every tradesman, artificer, workman, labourer or other person whatsoever who carries on his worldly labour on a Sunday easily lends itself to verbal construction, once it has been decided on the principle of *ejusdem generis*⁵ what persons are comprised in the category.⁶ But two other questions arise. Is the offender indictable as well as punishable summarily? Is the validity of a contract entered into in contravention of the Act affected by it? On these corollaries or necessary inferences from its enactment the legislature though silent must nevertheless be held to have entertained some intention and the interpreter is bound to determine what it was.

In such case the interpretation must be that which best accords with the public benefit. Thus where a statute imposes a penalty without expressly stating to whom it is to be paid such penalty by implication goes to the Crown.⁷

³ 4 Inst 330 *Sussex Peerage* (1844) 11 Cl & F 143 *Fordyce v Bridges* (1847) 1 H L C 14

⁴ *Income Tax Commissioners v Pemsel* [1891] A C 514 543 *River Wear Commissioners v Adamson* (1877) 2 App Cas 743 778

⁵ *Re a Debtor* (No 335 of 1947) [1948] 2 All E.R. 533 per Lord Greene M R at p 536

⁶ See Chap 11 Sec. 5 p 326 *post*

⁷ *Sandiman v Breach* (1847) 7 B & C 96 100

⁸ *Bradlaugh v Clarke* (1883) 8 App Cas 354

The subject of the interpretation of a will may be said to fall under two general heads. What are the principles which govern the construction of the language of a will? What are those which guide the interpreter in ascertaining the intention on those incidental points on which the testator has not expressly presumed to have entertained an opinion, or on which he has not expressed any?

SECTION 2—LITERATURE

The first and most elementary rule of construction is that it is to be assumed that the words and phrases in a legislative enactment are used in their technical meaning, if they have acquired one, and otherwise in their ordinary meaning, and that accordingly that the phrases and sentences are to be construed according to the rules of grammar. "It is very much to be desired to adhere to the words of an Act of Parliament, for it is from that source which is their natural import." *Attorney-General v. Lord*

From these presumptions, it is not to be supposed that the language admits of no other construction, or that there is no departure from them. The language of a statute is not to be construed as susceptible of another meaning, unless it is shown to be so found, either in the language of the statute itself, or in the context or in the construction of the statute, or in the interpretation, for construing the statute in accordance with its true meaning, for the real intention of the Legislature, does not modify, nothing to the construction of the words. If the statute contains it, it is to be construed in accordance with the meaning of the words.

correct course of dealing with a question of construction is to take the words themselves and arrive if possible, at their meaning without, in the first place, reference to cases"¹² A word may be construed in its popular meaning in one Act, and in its technical meaning in another Act¹³

When the language is not only plain but admits of but one meaning the task of interpretation can hardly be said to arise. It is not allowable, says Vattel, to interpret what has no need of interpretation¹⁴ *Absoluta sententia expositore non indiget*¹⁵ Such language best declares, without more, the intention of the lawgiver, and is decisive of it¹⁶ The rule of construction is 'to intend the legislature to have meant what they have actually expressed'¹⁷ It matters not, in such a case, what the consequences may be. Where, by the use of clear and unequivocal language capable of only one meaning, anything is enacted by the legislature, it must be enforced, even though it be absurd or mischievous¹⁸ The underlying principle is that the meaning and intention of a statute must be collected from the plain and unambiguous expression used therein rather than from any notions which may be entertained by the court as to what is just or expedient¹⁹ The words cannot be construed, contrary to their meaning, as embracing or excluding cases merely

¹² *Barrell v Fordree* [1932] A.C. 676 682 per Warrington L.J. See also *Hack v London Bldg Socy* (1883) 23 Ch.D. 103 108

¹³ See e.g. *Mackworth v Hellard* [1921] 2 K.B. 755 C.A. and *Associated London Properties Ltd v Williams* [1948] 1 All E.R. 442 C.A. two constructions of the word rent

¹⁴ *Law of Nations* Bk. 2 s. 263

¹⁵ 2 Inst. 533

¹⁶ *Buller J. R v Hodnett* (1786) 1 T.R. 96 *Sutsex Peerage* (1844) 11 Cl. & F. 143 *U.S. v Hartwell* (1867) 6 Wallace 395 *U.S. v Wilberger* (1820) 5 Wheat. 95 *Re vexatious Actions Act 1896 ex p. Boaler* [1915] 1 K.B. 21

¹⁷ *Parke J. R v Banbury* (1834) 1 A. & E. 136 142 *Magor and St Mellons R.D.C. v Newport Corporation* [1952] A.C. 189 H.L. The beliefs or assumptions of those who frame Acts of Parliament cannot make the law. *I.R.C. v Dowdall O'Mahoney & Co* [1952] A.C. 401 at p. 476 per Lord Radcliffe

¹⁸ Lord Esher M.R. *R v City of London Court* [1892] 1 Q.B. 273 290 approved by Lord Herschell *Mersey Docks and Harbour Board v Turner* [1893] A.C. 468 477 dissenting from Jessel M.R. in *The Alina* (1880) 5 Ex.D. 227 233 Lord Campbell R. v. *Skeen* (1859) 28 L.J.M.C. 94 Pollock C.B. *Miller v Salomons* (1853) 7 Ex. 475 Lord Brougham *Re British Farmers etc. Co* (1878) 48 L.J.Ch. 56 affirmed *sub nom. Burkinshaw v Nicholls* (1878) 3 App.Cas. 1004 *Crawford v Spooner* (1846) 6 Moo.P.C. 19 *Magor and St Mellons R.D.C. v Newport Corporation* [1952] A.C. 189 H.L. *Smith v East Elloe R.D.C.* [1956] A.C. 736

¹⁹ *Gwynne v Burnell* (1840) 7 Cl. & F. 572 606 per Coleridge J. 6 Bing.N.C. 453 *Spillers Ltd v Cardiff Borough Assessment Committee* [1931] 2 K.B. 21 43 *New Plymouth Borough Council v Taranaki Electric Power Board* [1933] A.C. 680 But see the observations of Denning L.J. in *Francis Jackson Developments v Hall* [1951] 2 K.B. 488

because no good reason appears why they should be excluded or embraced.²⁰ However unjust, arbitrary or inconvenient the meaning conveyed may be, it must receive its full effect.²¹ When once the meaning is plain it is not the province of a court to scan its wisdom or its policy.²² Its duty is not to make the law reasonable, but to expound it as it stands according to the real sense of the words.²³

Where, as here the legal issues are not open to serious doubt our duty is to express a decision, and leave the remedy (if one be resolved upon) to others.²⁴ Moreover, the mere fact that different judges place a different meaning upon words or phrases in a statute does not mean that the words or phrases are necessarily ambiguous: each member of an appellate tribunal must first ask himself whether the words are clear or not.²⁵

So, when it was argued with special reference to *Maxwell*²⁶ that with regard to the general intention of the Act the court should add to the words 'if the workman leaves a widow the gloss who is claiming compensation under the Act, 'in spite of strange consequences and results which seem surprising' the House of Lords declined to vary words not in themselves obscure or ambiguous.²⁷

²⁰ *Pike v Hoare* (1763) 2 Eden 184 per Lord Northington. *Whitehead v James Stott* [1949] 1 KB 358. *Galashells Gas Co v O'Donnell* [1949] AC 275 but see *Companhia de Moçambique v British South Africa Co* [1892] 2 QB 358 CA and *Denn v Reid* (1836) 10 Peters 524—an American case.

²¹ *Ornamental Woodwork Co v Brown* (1863) 2 H & C 63 per Martin B and Bramwell B. *R v Poor Law Commissioners* (1837) 6 A & E 7. *Biffin v Yorke* (1843) 5 M & Gr 428 per Erskine J. *Hoani Te Heu Heu Tukino v Aotea District Maori Land Board* [1941] AC 308 319.

²² *May v G & Ry* (1873) 41 LJQB 104. *R v Watson* (1806) 7 East 214 and *R v Staffordshire* (1810) 12 East 572 per Lord Ellenborough. *R v Hodnett* (1786) 1 TR 96 100 per Lord Mansfield. *R v Worcestershire* (1839) 3 P & D 465 per Lord Denman. *Archer v James* (1862) 2 B & S 61 per Bramwell B. *Müller v Salomons* (1853) 7 Ex 475 per Pollock CB. *Ex p Attwater* (1877) 5 Ch D 30 per James LJ. Followed in *Re Cross ex p Payne* (1879) 11 Ch D 539 note p 552.

²³ *Biffin v Yorke* (1843) 5 M & Gr 428 per Cresswell J. See e.g. *Plasterers Co v Parish Clerks Co* (1851) 6 Ex 630. *Dennis v Tovell* (1872) 42 LJMC 33. *The Merle* (1874) 31 LT 447.

²⁴ *Sutlers v Briggs* [1922] 1 AC 18 per Lord Birkenhead. Cf *R v Barham* (1828) 8 B & C 99. *R v Stoke Damerel* (1836) 7 B & C 569. *Coe v Lawrence* (1853) 22 LJQB 140. *Att Gen v Lockwood* (1842) 9 M & W 395. *Magor and St Mellons RDC v Newport Corporation* [1952] AC 189 HL.

²⁵ *Kirkness v John Hudson & Co Ltd* [1955] AC 696 at p 712 per Viscount Simonds citing *Ormond Investment Co Ltd v Betts* [1928] AC 143.

²⁶ 8th ed pp 3 17. See pp 3-4 16-19 of present edition.

²⁷ *London Brick Co v Robinson (An infant)* [1943] AC 341 343 348. Workmen's Compensation Act 1925 (c 84) s 8. See now National Insurance (Industrial Injuries) Act 1946 (c 62).

Absurdity

But judges are not always prepared to concede as plain language that which involves absurdity and inconsistency

In construing wills and, indeed statutes and all written instruments, the grammatical and ordinary sense of the words is to be adhered to, unless that would lead to some absurdity, or some repugnancy or inconsistency with the rest of the instrument in which case the grammatical and ordinary sense of the words may be modified so as to avoid that absurdity and inconsistency but no further ²⁸

In repeating this canon in *Abbott v Middleton* ²⁹ Lord Wensleydale said 'This rule in substance is laid down by Mr Justice Burton in *Warburton v Loveland* ³⁰ It had previously been described as 'a rule of common sense as strong as can be,' by Lord Ellenborough in *Doe v Jessop* ³¹ It is stated (by Lord Cranworth, when Chancellor) as 'a cardinal rule, from which if we depart we launch into a sea of difficulties not easy to fathom,' and as the 'golden rule' when applied to Acts of Parliament by *Jervis CJ*, in *Mattison v Hart* ³² We ought to give to an Act of Parliament the plain fair, literal meaning of its words, where we do not see from its scope that such meaning would be inconsistent or would lead to manifest injustice ³³

The golden rule is that the words of a statute must *prima facie* be given their ordinary meaning We must not shrink from an interpretation which will reverse the previous law, for the purpose of a large part of our statute law is to make lawful that which would not be lawful without the statute or conversely to prohibit results which would otherwise follow Judges are not called upon to apply their opinions of sound policy so as to modify the plain meaning of statutory words but where in construing general words the meaning of which is not entirely plain there are adequate reasons for doubting whether the legislature could have been

²⁸ *Grey v Pearson* (1857) 6 H.L.C. 61 at p. 106 per Lord Wensleydale see *Rhodes v Rhodes* (1882) 7 App.Cas. (P.C.) 192 205 *Re Lockwood decd* [1958] Ch. 231 This is presumably the basis of the decision in *Adams and Watts v Southall Rating Authority* [1943] 1 K.B. 360 C.A.

²⁹ (1858) 7 H.L.C. 114 115

³⁰ 1 Huds. & Bro. 648 H.L.

³¹ 12 East 292

³² *Gundry v Pinniger* (1852) 1 De G.M. & G. 502 21 L.J. Ch. 405

³³ (1854) 23 L.J.C.P. 108 114 14 C.B. 385

intending so wide an interpretation as would disregard fundamental principles then we may be justified in adopting a narrower construction. At the same time if the choice is between two interpretations, the narrower of which would fail to achieve the manifest purpose of the legislation we should avoid a construction which would reduce the legislation to futility and should rather accept the bolder construction based on the view that Parliament would legislate only for the purpose of bringing about an effective result.³⁴

The difficulty lies in deciding between words that are plain but absurd and words that are so absurd as not to be deemed plain.³⁵ That this difficulty is real is well illustrated by the fact that in the case from which the last quotation is taken (involving the question whether under section 154 of the Companies Act 1929, a contract of service between an individual and the transferor company automatically became a contract between the individual and the transferee company) the judges in the courts below, including the Lord Chief Justice and the Master of the Rolls unanimously read the section in its literal sense,³⁶ while four to one of the judges in the House of Lords including the Lord Chancellor held that it required interpretation.³⁷

Reversal by Statute of Previous Law

Judges have sometimes found it to be a hard saying that a statute may reverse the previous law.³⁸ Lord Cairns could not bring himself to suppose that the statute (section 74 of the Harbours, Docks and Piers Clauses Act 1847 (c 27)) intended to create a new right and a new liability unknown to common law, and found its provisions to be merely matters of procedure.³⁹ But Lord Gordon⁴⁰ found that a new right was created by language that

³⁴ *Nokes v Doncaster Amalgamated Collieries* [1940] A C 1014 1022. And see *Holmes v Bradfield R D C* [1949] 2 K B 1 per Finlmore J. *R B Policies at Lloyd's v Butler* [1950] K B 76 per Streetfield J. *Re Gilligan* [1950] P 32 per Pilcher J. *Pye v Minister of Lands for New South Wales* [1954] 3 All E R 514. See also *Whitney v I R C* [1926] A C 37 at p 52 per Lord Dunedin and the Foreword to this work.

³⁵ *Re Lockwood decd* [1958] Ch 231.

³⁶ *Donoghue v Doncaster Amalgamated Collieries* *Nokes v Same* [1939] 2 K B 578.

³⁷ Another divergence is pointed out by Lord Davey in *Powell v Kempton Park Racecourse Co* [1899] A C 143 at p 183.

³⁸ e.g. Maule J in *Rawlins v West Derby Overseers* (1846) 2 C B 72.

³⁹ *River Wear Commissioners v Adamson* (1877) 2 App Cas 743 751. Queried by Lord Phillimore in *G W Ry v Owners S S Mostyn* [1928] A C 57 95. See also post pp 76-82.

⁴⁰ *River Wear Commissioners v Adamson* *supra* 775.

was express intelligible, grammatical and unambiguous His judgment contains a useful collection of rulings upon this point, including a citation from Blackstone⁴¹ where the Common Law and a statute differ the Common Law gives place to the statute But a statutory right may be conferred in addition to, and not in derogation of, a common law right⁴²

Where there are general words in a later Act capable of reasonable and sensible application without extending them to subjects specially dealt with by earlier legislation it is not to be held that such earlier and special legislation is either indirectly repealed altered or derogated from merely by force of such general words, without any indication of a particular intention to do so⁴³ More over although the effect of repealing a statute is to obliterate it as completely as if it had never been passed this rule must be taken with the qualification that it does not deprive persons of vested rights acquired by them in actions duly determined under the repealed law⁴⁴

Examples of Literal Construction its Scope and Limits

The general scope of the rule of literal construction, and the limits of its application, may be illustrated by some examples

It was repeatedly decided at law (before the Judicature Act, 1873 (c 66), s 24) that the statutes of limitation which enacted that actions should not be brought after the lapse of certain periods from the time when the cause of action accrued barred actions brought after the time so limited, though the cause of action was not discovered, nor was, practicably discoverable by the injured party at the date of accrual or though discoverable, was fraudulently concealed by the wrongdoer until the time limited by the Act had expired⁴⁵ The hardship of such decisions was obvious but the language admitted of no other construction

⁴¹ Vol 1 p 89

⁴² *Franklin v Gramophone Co* [1948] 1 KB 542 CA And see *National Assistance Board v Wilkinson* [1952] 2 QB 648

⁴³ *Seward v Vera Cruz* (1884) 10 App Cas 59 68 *Aberdeen Suburban Tramways Co v Aberdeen Magistrates* 1927 SC 683

⁴⁴ *Lemm v Mitchell* [1912] AC 400 PC cf *R v Southampton Income Tax Commissioners ex p Singer* [1917] 1 KB 259 CA

⁴⁵ *Short v McCarthy* (1820) 3 B & Ald 66 *Brown v Howard* (1820) 2 Brod & B 73 *Col in v Buckle* (1841) 8 M & W 680 *Imperial Gas Co v London Gas Co* (1854) 10 Ex 39 *Bonomi v Backhouse* (1856) 9 11 LC 503 *Smith v Fox* (1848) 6 Hare 386 *Ivoret v Symson* (1857) 27 LJ QD 138 *Hunter v Gibbons* (1856) 26 LJ Ex 1 *Darley Main Colliery Co v Mitchell* (1885 1886) 11 App Cas. 127 *Oelkers v Ellis* [1914] 2 KB 139 *Willis v Earl Howe* [1893] 2 Ch 545 and

If an Act provides that convictions shall be made within a certain period after the commission of the offence, a conviction made after the lapse of that period would be bad, although the prosecution had been begun within the time limited, and the case had been adjourned to a day beyond it, with the consent or even at the instance, of the defendant⁴⁴

The Sunday Closing (Wales) Act, 1881 (c 61), being fixed to come into operation on the day next appointed for the annual licensing meeting was by a literal construction postponed for a year later than was, in all probability intended, but the court refused to avert this result by any departure from the primary meaning of the words. The court could not assume a mistake in an Act of Parliament⁴⁵. On the same principle the Court could not assume that there has been a dereliction of duty on the part of an official of Parliament⁴⁶.

The Wills Act 1837 (c 26) s 9 which requires a testator to sign his will in the presence of two witnesses, has been construed as meaning the actual visual presence⁴⁷

If an Act provides that orders for committal must be made "in open Court, an order made, not in the court, but in another part of the building which is also open to the public will be invalid."⁴⁸

The Bills of Sale Act, 1878 (c 31), requiring an affidavit of the due attestation as well as of the execution of the deed, the omission in the affidavit to mention the attestation was held fatal, although the affidavit verified the signature to the attestation clause⁴⁹. It would not be open to the interpreter, in such cases, to

Thorne v Heard [1893] A C 495 See also *Airk v Todd* (1882) 21 Ch D 484 Cf Chap 9 Sec 2

⁴⁴ *R v Bellamy* (1823) 1 B & C 500 *R v Tolley* (1803) 3 East 467 *R v Mainwaring* (1858) 27 L J M C 278 See also *R v Derbyshire* (1845) 7 Q B 193 *R v Huntingdonshire* (1850) 19 L J M C 127 *Ex p Johnson* (1863) 32 L J M C 193 *R v Barnet Sanitary Authority* (1876) 1 Q B D 558 *Nutter v Moorhouse* (1904) 68 J P 134 Cf *R v Shrewsbury* (1853) 22 L J M C 98 *R v Staffordshire* (1802) 3 East 151

⁴⁷ *Richards v McBride* (1881) 8 Q B D 119

⁴⁸ *Halpin v At Gen* (1935) 691 LT 259 262 cf *R v Irwin* (1926) Exch R, Canada 126

⁴⁹ *Brown v Skirrow* [1902] P 3 See also *R v Stoke Damerel* (1836) 7 B & C 563 *R v Mellingham* (1732) 2 Bott 363 *R v Margram* (1793) 5 T R 153 *R v St Peter's* (1829) 1 B & Ad 916 *R v St Paul's* (1831) 10 B & C 12 *R v Staffordshire* (1854) 23 L J M C 17

⁵⁰ *Debtors Act* 1869 (c 62) s 5 *Aenyon v Eastwood* (1888) 57 L J Q B 455

⁵¹ *Ford v Kettle* (1882) 9 Q B D 139 As to the Bills of Sale Act 1878 Amendment Act 1882 (c 43) s 9 *Thomas v Kelly* (1888) 13 App Cas 506 511 per Lord Halsbury See also *Parsons v Brand* (1890) 25 Q B D 110 *Sims v Trollope* [1897] 1 Q B 24

shut his eyes to the formalities required, because he deemed them unimportant, or because a hardship or failure of justice might result in the particular case before him from a neglect of any of them

An enactment that a magistrate might on the application of the mother of a bastard, summon its putative father for its maintenance within twelve months from its birth would not authorise a second magistrate to issue a second summons after the expiration of the twelve months merely because the first summons could not be served by reason of the defendant having absented himself and could not be renewed or continued, because the justice who had issued it had died⁵² And as the same enactment required the justices to hear the evidence of the mother at the hearing and such other evidence as she might produce, and, if her evidence were corroborated, to adjudge the man to be the putative father, it was held that no order could be made against the putative father when the mother could not be examined, having died after the summons and before the hearing⁵³

Where the Cruelty to Animals Act 1849 (c 92) s 26 prohibited the removal of a conviction by certiorari to the Supreme Court that writ could not be issued (the justices having jurisdiction) even for the purpose of bringing up a case stated by justices for the opinion of the court although the object of such a prohibition was to prevent convictions being quashed for technical defects and not to exclude the jurisdiction of the Supreme Court when consulted on a substantial question which the justices themselves had raised⁵⁴

An Act which imposed a penalty on any person who piloted a ship in the Thames before he was examined and admitted a Trinity House pilot was held not to reach one who had been expelled from the Society after examination and admission⁵⁵

Where an Act gave an appeal to the next Quarter Sessions and directed that no appeal should be proceeded upon if it was found that no reasonable notice had been given but should be adjourned to the next sessions the appellant was enabled to secure delay by omitting to give any notice so that the sessions

⁵² Poor Law Amendment Act 1844 (c 101) *R v Pelford* (1861) 30 L.J.M.C. 133

⁵³ *R v Armitage* (1872) L.R. 7 Q.B. 773

⁵⁴ *R v Chantrell* (1875) 44 L.J.M.C. 94

⁵⁵ *Pierce v Hopper* (1720) 1 Stra. 249

could not find that 'reasonable notice had been given'⁵⁶ In this case the construction worked an injustice and enabled a person to take advantage of his own wrong or neglect⁵⁷, but the language of the legislature admitted of no other construction

The Act which required Members of Parliament, before voting in the House, to take the abjuration oath in a form which concluded with the declaration that it was taken 'on the true faith of a Christian,' received a literal construction, which had the effect of excluding Jews from Parliament, although the history of the enactment showed that it was intended to test the loyalty, not the religious creed, of the member, and was directed solely to the exclusion of Roman Catholics, and although those who refused to take the oath would have been deemed Popish recusants, and liable to banishment as such⁵⁸

The rule in the Ballot Act 1872 (c 33) which provided that a candidate may undertake any duties which any agent of his, if appointed might have performed, and may assist his agent in the performance of such duties, and 'may be present at any place at which his agent may in pursuance of the Act, attend,' was construed literally as authorising the presence of the candidate absolutely and not only in the event of his undertaking the duties of his agent or assisting him though it was conceded that this construction gave a barren and useless, or even mischievous, right against which the other provisions of the Act seemed to militate⁵⁹

The Solicitors Act, 1860 (c 127) s 28 which authorised the imposition of a charge for costs on property 'recovered or preserved' through the instrumentality of a solicitor, was held not to authorise such a charge where the suit was to prevent or stop an invasion of the right to light for this was a suit not respecting property, but respecting an easement merely, or the mode in which it was enjoyed⁶⁰, nor did it apply to a case where the proceedings had not gone beyond a decree for an account, and the

⁵⁶ Poor Relief Act 1722 (c. 7) *R v Bucks* (1803) 3 East 342 *R v Staffordshire* (1806) 7 East 549

⁵⁷ See Chap 8 Sec. 3 p 200 *pass*

⁵⁸ Security of the Sovereign Act 1714 (st. 2, c 13) *Miller v Salomons* (1853) 7 Ex. 475 *Salomons v Miller* (1853) 8 Ex 778 See also *Jones v Smart* (1785) 1 T.R. 44

⁵⁹ *Clementson v Mason* (1875) L.R. 10 C.P. 217

⁶⁰ *Foxon v Gascoigne* (1874) L.R. 9 Ch 654

parties had then compromised without the knowledge of the solicitor⁶¹

A direction on his deathbed by the holder of a promissory note that it should be destroyed as soon as found was held not an absolute and unconditional renunciation of his rights 'on the note within section 62, Bills of Exchange Act, 1882 (c 61)⁶² And a like rule applies where without renunciation in writing the bill is given up to a third party⁶³

Omissions not to be Lightly Inferred

It is but a corollary to the general rule of literal construction that nothing is to be added to or to be taken from a statute unless there are similar adequate grounds to justify the inference that the legislature intended something which it omitted to express⁶⁴

It is a strong thing to read into an Act of Parliament words which are not there, and in the absence of clear necessity, it is a wrong thing to do⁶⁵ 'We are not entitled to read words into an Act of Parliament unless clear reason for it is to be found within the four corners of the Act itself⁶⁶ Words plainly should not be added by implication into a statute unless it is necessary to do so to give the language sense and meaning in its context⁶⁷

A case not provided for in a statute is not to be dealt with merely because there seems no good reason why it should have been omitted and the omission appears consequently to have been unintentional⁶⁸ Thus the Matrimonial Causes Act, 1857 (c 85) s 21 which provided that any order made for the protection

⁶¹ *Pinkerton v Easton* (1873) L.R. 16 Eq. 490. Cf *Moxon v Sheppard* (1890) 24 Q.B.D. 627 where money had been paid into court. See also *Re Wadsworth* (1885) 29 Ch.D. 517. *Wimbourne v Fine* [1952] Ch. 869. See now Solicitors Act 1957 (c 27) s 72.

⁶² *Re George* (1890) 44 Ch.D. 627.

⁶³ *Edwards v Walters* [1896] 2 Ch. 157 C.A.

⁶⁴ See *Everett v Wells* (1841) 2 M. & Gr. 269 277 per Tindal C.J. *Davies v Marlborough* (1819) 1 Swan 74 per Lord Eldon. *Ex p Sepulchre* (1863) 33 L.J. Ch. 375 per Lord Westbury. *Re Cherry's Estate* (1862) 31 L.J. Ch. 351. Cf *Re Waine* (1843) 1 Phil. 258. See also *post* pp 221 *et seq*.

⁶⁵ *Thompson v Gould* [1910] A.C. 409 420 per Lord Mersey.

⁶⁶ *Vickers v Evans* [1910] A.C. 444 per Lord Loreburn L.C. *Hudd v Matthews* [1930] 2 K.B. 197 C.A. See *Salisbury v Gilmore* [1941] 2 All E.R. 817 reversed on another point [1942] 2 K.B. 38.

⁶⁷ *Tinkham v Perry* [1951] 1 K.B. 547 per Evershed M.R. at p 549. See also *Re Meux* [1958] Ch. 154.

⁶⁸ See e.g. *Lloyds Bank v Elliot* [1947] 1 All E.R. 79. *Donovan v Cammell Laird* [1949] 2 All E.R. 82 per Devlin J.

of the earnings of a deserted married woman might be discharged by the magistrate who made it, was held not to empower his successor to discharge it though the magistrate who had made it was dead⁶⁹, and this rule is of general application⁷⁰

An Act which authorised the removal of lunatics to a hospital when there was no lunatic asylum established in the county did not authorise such a removal when a county asylum existed but was so full as to be unable to receive another lunatic⁷¹

When the Common Law Procedure Act, 1852 (c 76) abolished the writ of distringas without providing for the service of a writ on lunatics in confinement and inaccessible it was found that no actions could be prosecuted against them⁷²

When extra parochial places were made rateable without either repealing the enactments which required that a copy of the rate should be affixed on or near the doors of all the churches in the parish or making any other provision for publication it was held, where there was no church in the extra parochial place, that a rate affixed on a church door fifty yards from the boundary was invalid for want of publication⁷³

The Judgment Act, 1692 (c 20), which required that judgments should be docketed enacted that undocketed judgments should not affect lands as regards purchasers or mortgagees, or have preference against heirs or executors, the Judgments Act 1839 (c 11), abolished docketing, and enacted that no judgment should have effect unless registered, but it made no provision for the protection of heirs and executors. Though this was perhaps an oversight, resulting in hardship on an executor who had paid simple contract debts without keeping sufficient assets to meet an unregistered judgment of which he had no notice, the court refused to supply the omission⁷⁴

⁶⁹ *Exp Sharpe* (1864) 5 B & S 322. See also *Hettleton v Burrell* (1844) 8 Scott N R 738. *Wanklyn v Woollett* (1847) 16 L.J.C.P. 144. *R v Ashburton* (1846) 8 Q.B. 871.

⁷⁰ *Higgs v Schraeder* (1878) 3 C.P.D. 252. *Newton v Boodle* (1847) 16 L.J.C.P. 135. *Nind v Arihur* (1849) 7 D. & L. 252. *Owen v Henshaw* (1877) 47 L.J.Ch. 267.

⁷¹ *R v Ellis* (1844) 6 Q.B. 501.

⁷² *Holmes v Service* (1854) 24 L.J.C.P. 24. *Williamson v Maggs* (1859) 28 L.J.Ex. 5. See the Common Law Procedure Act 1852 (c 76) s. 17. See now R.S.C. Ord. 9 r. 5.

⁷³ Poor Rate Act 1743 (c 3) and Parish Notices Act 1837 (c 45). *R v Dyott* (1882) 9 Q.B.D. 47. See now Rating and Valuation Act, 1925 (c. 90) s. 6.

⁷⁴ *Fuller v Redman* (1859) 29 L.J.Ch. 324.

These were all *casus omisi* which the court could not reach by any recognised canons of interpretation

Where an Act authorised the apportionment of the cost of making a sewer without limiting any time for the purpose, the court refused to read the Act as limiting the exercise of the power to a reasonable time ⁷⁵

The Limitation Act 1623 (c 16) having provided that the period of limitation should not run while the plaintiff was beyond the seas and 4 & 5 Anne c 3 having made a similar provision where the defendant was abroad, section 7 of the Civil Procedure Act, 1833 (c 42), enacted that no part of the United Kingdom should be deemed 'beyond the seas' within the meaning of the former Act, but made no mention of the latter Act and it was held that the Civil Procedure Act 1833 (c 42), could not be stretched to include the latter Act ⁷⁶ There may have been no good reason for thus limiting the new enactment to the Act of 1623, but there was no sufficient ground either in the context or in the nature of the consequences resulting from the omission for concluding that the Act of Anne was intended to be included

When the Married Women's Property Act, 1870 (c 93), s 11 (repealed with certain savings by the Married Women's Property Act 1882 (c 75) s 2) empowered a married woman to sue, without making her liable to be sued it was held that no action lay against her ⁷⁷

Section 11 of the Habitual Criminals Act 1869 (c 93) (repealed by the Prevention of Crimes Act, 1871 (c 112)), in enacting that upon a trial for receiving stolen goods a previous conviction for any offence involving dishonesty should be admissible against the prisoner as evidence of his having received with guilty knowledge provided that notice were given to him that the conviction would be put in evidence 'and that he would be deemed to have known that the goods were stolen until he proved the contrary,' omitted however, to enact substantively that this effect should be given to the conviction and it was held that the omission could not be supplied ⁷⁸ Without such an emendation the notice was incorrect

⁷⁵ *Badley v Greenwich Board of Works* (1878) 3 Q B D 384

⁷⁶ *Lane v Bennett* (1836) 1 M & W 70 *Battersby v Alrk* (1835) 2 Bing N C 584
Mather v Brown (1836) 1 C P D 596 Absence beyond the seas ceased to be a disability after the Real Property Limitation Act 1874 (c 57) came into operation

⁷⁷ *Hancocks v Lauche* (1878) 3 C P D 197

⁷⁸ *R v Da li* (1870) L R 1 C C R 27.

and misleading, but it did not lead to any injustice or inconvenience or other mischievous consequence

Although the Bills of Sale Act, 1878 (c 31), required that the execution of every bill of sale should be attested by a solicitor, and that 'the attestation should state that the instrument was explained by the solicitor to the grantor before execution, it was held that no explanation was required for the Act did not expressly enact that an explanation should be given but required only that the attestation should assert that it had been given ⁷⁹

Although the Bankruptcy Act 1869 (c 71) s 87, provided for securing for the general body of creditors the proceeds of goods of a debtor sold in execution the Act made no express provision for dealing with his goods when seized under an *elegit*, and it was held that the omission, however fatal to the whole policy of the Act could not be supplied by any stretch of judicial interpretation ⁸⁰

Reasonable Corrections not to Override Plain Terms

A construction which will leave without effect any part of the language of a statute will normally be rejected ⁸¹ Thus, where an Act plainly gave an appeal from one quarter sessions to another it was observed that such a provision, though extraordinary and perhaps an oversight could not be eliminated ⁸²

The County Courts Admiralty Jurisdiction Amendment Act 1869 (c 51), which gave to certain county courts power to try claims under £300 arising out of 'any agreement in relation to the use or hire of a ship' or in relation to the carriage of goods with an appeal to the Court of Admiralty and power to the latter court to transfer any such causes to itself was at first held not to give the county court jurisdiction over suits for the breach of a charterparty notwithstanding the comprehensive nature of the language used on the ground that the literal construction would involve the presumably unintended anomalies of giving by mere implication a large novel and inconvenient jurisdiction to the

⁷⁹ Repealed as regards attestation by solicitor by Bills of Sale Act 1878 Amendment Act 1882 (c 43) s 10 *Exp National Merc Bank* (1880) 15 Ch D 42

⁸⁰ *Exp Abbott* (1880) 15 Ch D 447 Cured by Bankruptcy Act 1883 (c 52) s 146 See also *Re Hutchinson* (1885) 16 Q B D 521

⁸¹ But see pp 221 *et seq*

⁸² *R v West Riding JJ* (1841) 1 Q B 329 and Poor Law Amendment Act 1834 (c 76) s 103

Court of Admiralty, and to the sutor the remedy of proceeding *in rem* when his claim was under £300 which he did not possess when it exceeded it⁸³ But this construction did not prevail, because it left without effect the words which gave jurisdiction over any agreement in relation to the use or hire of a ship⁸⁴ Yet it is difficult to believe that the resulting consequences were within the contemplation of the legislature or the scope of the enactment

In a case where the technical language used was precise and unambiguous, but incapable of reasonable meaning the court held that it was not at liberty on merely conjectural grounds,⁸⁵ to give the words a meaning which did not belong to them The Warrants of Attorney Act 1822 (c 39) had made warrants of attorney to confess judgment void as against the assignees of a bankrupt if not filed within twenty one days from execution or unless judgment was signed or execution was issued "within the same period and the Court of Queen's Bench refused to alter or into and and issued into levied though the passage was unmeaning as it stood and the proposed alterations would have given it an effect which, because rational, was probably but only conjecturally, the effect intended by the legislature⁸⁶ This subject however will be further considered in a subsequent chapter⁸⁷

SECTION 3—THE CONTEXT—EXTERNAL CIRCUMSTANCES

Ambiguity Interpreted to Harmonise with Intention

It is an elementary rule that a thing which is within the letter of a statute will generally, be construed as not within the statute unless it be also within the real intention of the legislature⁸⁸ and the words if sufficiently flexible must be construed in the sense which if less correct grammatically is more in harmony with

⁸³ *Simpson v Blues* (1872) L.R. 7 CP 290 *Gunnestad v Price* (1875) L.R. 10 Ex 65 See now Administration of Justice Act 1956 (c 45) s 1

⁸⁴ *Gaudet v Brown* (1872) L.R. 5 PC 134 *The Alina* (1880) 5 Ex D 247 See also cases on p 129 note 37

⁸⁵ See however Chap 9 Sec 1 p 221 *post*

⁸⁶ *Green v Hood* (1845) 7 QB 178

⁸⁷ Chap 9

⁸⁸ Bac. Ab. tit "Statute" (1) 5 *Stradling v Morgan* (1560) 1 Plowden 201

that intention⁸⁹ Where alternative constructions are equally open, that alternative is to be chosen which will be consistent with the smooth working of the system which the statute purports to be regulating, and that alternative is to be rejected which will introduce uncertainty, friction or confusion into the working of the system'⁹⁰ Language is rarely so free from ambiguity as to be incapable of being used in more than one sense, and to adhere rigidly to its literal and primary meaning in all cases would be to miss its real meaning in many If a literal meaning had been given to the laws which forbade a layman to lay hands on a priest, and punished all who drew blood in the street, the layman who wounded a priest with a weapon would not have fallen within the prohibition and the surgeon who bled a person in the street to save his life would have been liable to punishment⁹¹ On a literal construction of his promise Mahomed II's sawing the Venetian governor's body in two was no breach of his engagement to spare his head nor Tamerlane's hurrying alive a garrison a violation of his pledge to shed no blood⁹² On a literal construction, Paches after inducing the defender of Notium to a parley under a promise to replace him safely in the citadel, claimed to be within his engagement when he detained his foe until the place was captured, and put him to death after having conducted him back to it⁹³, and the Earl of Argyll fulfilled in the same spirit his promise to the laird of Glenstane, that if he would surrender he would see him safe to England for he did not hang him until after he had taken him safely across the Tweed to the English bank⁹⁴

The equivocation or ambiguity of words and phrases, and especially such as are general, is said by Lord Bacon to be the great sophism of sophisms⁹⁵ They have frequently more than

⁸⁹ See *per cur* *Hollingsworth v Palmer* (1849) 4 Ex 281 *Caledonian Ry v N Brit Ry* (1881) 6 App Cas 114 122 *per* Lord Selborne *Edinburgh Tramways Co v Torbain* (1878) 3 App Cas 68 *per* Lord Blackburn *Eastman Photographic Co v Comptroller General of Patents* [1898] A C 571 *per* Lord Halsbury 575 576 *Direct U S Cable Co v Anglo American Telegraph Co* (1877) 2 App Cas 394 412 *Ex p Walton* (1881) 17 Ch D 746 750 *et seq* *per* Jessel M R

⁹⁰ *Shannon Realities v (Ville de) St Michel* [1924] A C 185 192 *per* Lord Shaw
⁹¹ 1 Bl Comm 61 Puff L. 5 c 12 s 8

⁹² Vattel *Law of Nations* b 2 s 273

⁹³ Thucyd 3 34 Grote's *Greece* Vol 6 Chap 50

⁹⁴ Burton's *Sc Crim Tr* 17 *Immaturae puellae quia more tradito nefas esset virgines strangulari vitatae prius a carnifice deum strangulatae* Suet Tiberius s 61 and see Tacitus Hist Lib V c 9 See other instances of such frauds collected in Grot de jure b 2 c 16 s 5 See also Herodotus iv 154

⁹⁵ Lord Bacon *Advancement of Learning* b 2

one equally obvious and popular meaning. Words used with reference to one subject matter or set of circumstances may convey a meaning quite different from that which the same words used with reference to another set of circumstances and another subject matter would convey. General words admit of indefinite extension or restriction according to the subject to which they relate, and the scope and object in contemplation. They may convey faithfully enough all that was intended and yet comprise also much that was not or be so restricted in meaning as not to reach all the cases which fall within the real intention. Even therefore, where there is no indistinctness or conflict of thought, or carelessness of expression in a statute there is enough in the vagueness and elasticity inherent in language to account for the difficulty so frequently found in ascertaining the meaning of an enactment with the degree of accuracy necessary for determining whether a particular case falls within it. But statutes are not always drawn by skilled hands and they are always exposed to the risks of alterations by many hands which introduce different styles and consequent difficulties of interpretation. Nothing it has been said by a great authority is so difficult as to construct properly an Act of Parliament and nothing so easy as to pull it to pieces⁹⁶. It is not enough to attain to a degree of precision which a person reading in good faith can understand it is necessary to obtain a degree of precision which a person reading in bad faith cannot misunderstand⁹⁷.

Aim Scope and Object of Act—Heydon's Case

The literal construction then has in general but *prima facie* preference. To arrive at the real meaning it is always necessary to get an exact conception of the aim, scope and object of the whole Act to consider, according to Lord Coke⁹⁸ 1. What was the law before the Act was passed. 2. What was the mischief or defect for which the law had not provided. 3. What remedy Parliament

⁹⁶ *O'Flaherty v McDowell* (1857) 6 H.L.C. 142 179 *per* Lord St. Leonards *R v Monck* (1877) 2 Q.B.D. 544 552 *Twycross v Grant* (1877) 4 Q.B.D. 104 115

⁹⁷ *Re Castioni* [1891] 1 Q.B. 149 *per* Stephens J

⁹⁸ *Heydon's Case* (1564) 3 Rep. 7b *Marshalsea Case* (1613) 10 Rep. 73a *Reigate R D C v Sutton Water Co* (1908) 99 L.T. 168 170 *per* Channell J. *Cf Bradlaugh v Clarke* (1883) 8 App.Cas. 354 366 *et seq* *Salkeld v Johnson* (1849) 2 Ex. 256 *Hawkins v Gathercole* (1854) 6 D.M. & G. 1 21 citing *Stradling v Morgan* (1560) 1 Plow. 201 *ref in* *Viscountess Rhonda's Claim* [1922] 2 A.C. 339 369 *per* Lord Birkenhead

has appointed, and 4 The reason of the remedy According to another authority 'In order properly to interpret any statute it is as necessary now as it was when Lord Coke reported *Heydon's Case* to consider how the law stood when the statute to be construed was passed, what the mischief was for which the old law did not provide and the remedy provided by the statute to cure that mischief"⁹⁹ At the same time the language of the statute must not be strained to make it apply to a case which does not legitimately, on its terms, apply by invoking consideration of the supposed intention of the legislature¹

The true meaning of any passage, it is said, is to be found not merely in the words of that passage but in comparing it with other parts of the law ascertaining also what were the circumstances with reference to which the words were used, and what was the object appearing from those circumstances which the legislature had in view² The same, it would seem applies to a by law³ Every clause of a statute should be construed with reference to the context and the other clauses of the Act, so as so far as possible to make a consistent enactment of the whole statute or series of statutes relating to the subject matter⁴

Historical Setting

As regards the history or external circumstances which led to the enactment, the general rule which is applicable to the construction of all other documents is equally applicable to statutes⁵ viz that the interpreter should so far put himself in the position

⁹⁹ *Re Mavfair Property Co* [1898] 2 Ch 28 35 per Lindley M R See also *Gorham v Exeter (Bp)* (1850) 14 Jur p 449 *Att Gen v Sillem* (1863) 2 H & C 431 531 per Bramwell J *Yewens v Noakes* (1881) 6 Q B D 530 535 per Thesiger LJ *Philippis v Rees* (1889) 24 Q B D 17 and cf *R v Blane* (1849) 13 QB 773 per Coleridge J *Eastman Photographic Co v Comptroller General of Patents* [1898] A C 571 576 per Lord Halsbury

¹ *Kent CC v Gerard* [1897] A C 639 per Lord Herschell

² *River Wear Commissioners v Adamson* (1877) 2 App Cas 743 per Lord Blackburn *Eastman Co v Comptroller of Patents* [1898] A C 576 per Lord Halsbury L C *Abrahams v Mac Fisheries Ltd* [1925] 2 KB 18 *General Medical Council v UK Dental Board* [1936] 1 Ch 41 48 *Re Orbit Trust Ltd's Lease* [1943] Ch 144 per Luxmoore J *Seaford Court Estates v Asher* [1949] 2 KB 481 per Denning LJ

³ *McQuade v Barnes* [1949] 1 All ER 154

⁴ *Canada Sugar Refining Co v R* [1898] A C 741 per Lord Davey *Att Gen v Brown* [1920] 1 KB 773 791 per Sankey J

⁵ It has indeed been said that it is safer to abstain from imposing with regard to Acts of Parliament any further canons of construction than those applicable to all documents *Lamplough v Norton* (1889) 22 Q B D 452 per Bowen LJ

of the nineteenth century were intended, not to prevent the sale of armed ships to belligerents but to prevent American and English citizens from manning privateers against belligerents¹⁰

The Slave Trade Act, 1824 (c 113), for the abolition of the slave trade was construed to extend to offences committed by British subjects out of the British dominions, that is on the West Coast of Africa by the light of the notorious fact that the crime against which the Act was directed was mainly if not exclusively, committed there¹¹, though it may perhaps, not have extended to our subjects in other parts of the world beyond our territories¹²

An ordinance of the colony of Hong Kong which authorised the extradition of Chinese subjects to the government of China when charged with any crime or offence against the law of China¹³ was construed either by reference to the circumstances in which the treaty (which the ordinance enforced) had been made or to the geographical relation of Hong Kong to China, as limited to those crimes which all nations concur in proscribing¹⁴

An Act which authorised the court before which a road indictment was preferred to give costs was construed as authorising the judge at Nisi Prius to do so, partly on the ground of the well known fact that such indictments were rarely tried by the court in which they were, in the strict sense of the word 'preferred.'¹⁵

In construing the Extradition Act, 1870 (c 52) the terms of the treaty which it was intended to carry into effect should be considered as the two documents ought not to conflict. Accordingly where the treaty provided that no extradition should be made for offences committed before it came into operation the Act though silent on the point, should be limited in the same way¹⁶

"The intention of the [Workers Compensation] Act¹⁷ is to provide for compensation in every case of injury (including disease) arising out of and in the course of a workman's employment and to give effect to [the Act] the words other than a disease caused by silica dust must be read as inserted, not to

¹⁰ Supplement to the *London Gazette* September 20 1872 p 4135

¹¹ *R v Zulueta* (1843) 1 Car & K 215 *Société des Hôtels Réunis v Hawker* (1913) 29 T.L.R. 578

¹² *Santos v Illidge* (1859-60) 8 C.B. (N.S.) 861 per Bramwell B. and see the judgment of Wright J in *Kaufman v Gerson* [1903] 2 K.B. 114

¹³ *Att Gen of Hong Kong v Kwok o Sing* (1873) L.R. 5 P.C. 179 197

¹⁴ *R v Pembridge* (1842) 12 L.J.Q.B. 47 259

¹⁵ *R v Wilson* (1877) 3 Q.B.D. 42 but see *I.R.C. v Collico Dealings Ltd* [1960] 2 All E.R. 44

limit it but to prevent it being appealed to in particular circumstances where the relief would overlap that provided by a special and narrower scheme ¹⁶

I now approach the construction of the [Truck] Act, bearing in mind that in the words of Lord Lindley ¹⁷ regard must be had not only to the words used, but to the history of the Act and the reasons which led to its being passed ¹⁸

There is some presumption that statutes passed to amend the law are directed against defects which have come into notice about the time when those statutes passed, and on the ground that section 7 Railway and Canal Traffic Act, 1854 (c 31) was passed to correct a state of the law brought into notice by a legal warfare which had been waged about negligence only, the reference in that section to losses of goods occasioned by the neglect or default of a company or its servants, has been held not to extend to a loss by the theft of a servant of the company without negligence on their part, that not being a loss by neglect or default on their part ¹⁹

Again, on the ground that it was to prevent delay and costs that the legislature enacted in section 4 of the Arbitration Act 1889 (c 49), that before delivery of any pleadings or taking any other steps in the proceedings 'any party may apply to the court to stay the proceedings' it was held by the House of Lords that a defendant who had taken out a summons and obtained an order for further time for delivering his defence had taken a "step" within the section ²⁰

The court is not to be oblivious of the history of law and legislation Although the court is not at liberty to construe an Act of Parliament by the motives which influenced the legislature yet when the history of law and legislation tells the court and prior judgments tell this present court what the object of the legislature was the court is to see whether the terms of the section are such as fairly to carry out that object and no other and to

¹⁶ *Metropolitan Coal Co v Pye* [1936] A.C. 343 351

¹⁷ *Thomson v Clanmorris* [1900] 1 Ch. 718 725

¹⁸ *Pratt v Cook* [1939] 1 K.B. 364 392 C.A. per Goddard L.J.

¹⁹ *Shaw v G. N. Ry* [1874] 1 Q.B. 373

²⁰ *Ford's Hotel Co v Bartlett* [1896] A.C. 1 But see *Chappell v North* [1891] 2 Q.B. 25 & *J. Brighton Marine Co v Woodhouse* [1893] 2 Ch. 456 *County Theatres Ltd v Knowles* [1901] 1 K.B. 450

read the section with a view to finding out what it means and not with a view to extending it to something that was not intended ²¹

Consolidating Statutes and Previous Law

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If an Act is intitled an Act to consolidate previous statutes, the courts may lean to a presumption that it is not intended to alter the law ²² and may solve doubtful points by aid of such presumption of intention rejecting the literal construction ²³. And, even where the Act is 'to amend and consolidate the Law of Bankruptcy,' Chitty J holds it reasonable to infer that the legislature intended the law to stand ²⁴. He here distinguishes a consolidation Act from a codifying Act, in regard to which Lord Herschell has laid down, 'the proper way to deal with such a statute as the Bills of Exchange Act which was intended to be a code of the law relating to negotiable instruments is in the first instance to examine the language of the statute, and to ask what is its natural meaning, uninfluenced by any considerations derived from the previous state of the law, and not to start with inquiring how the law previously stood and then assuming that it was probably intended to leave it unaltered' ²⁵.

As regards the Sale of Goods Act, 1893 (c 71) Cozens Hardy M R has said 'I rather deprecate the citation of earlier decisions

The object and intent of the statute of 1893 was, no doubt, simply to codify the unwritten law applicable to the sale of goods but in so far as there is an express statutory enactment that alone must be looked at and must govern the rights of the parties, even though the section may to some extent have altered the prior common law' ²⁶.

²¹ Jessel M R *Holme v Guy* (1877) 5 Ch D 901 905 *cf* *Hall v C in Att Gen v Manchester* (1881) 18 Ch D 596 609

²² *Gilbert v Gilbert & Boucher* [1928] P 1 8 *citing* *Mitchell v Simpson* (1890) 25 Q B D 183 *Notts C C v Middlesex C C* [1936] 1 K B 141 145 *Re Turner s Will Trusts* [1937] 1 Ch 15 24

²³ *Romer L J Swan v Pure Ice Co* [1935] 2 K B 265 274-276

²⁴ *Re Budgett Cooper v Adams* [1894] 2 Ch 557 *And see* *Aristoc Ltd v Rysta Ltd* [1945] A C 68 at pp 92-93

²⁵ *Bank of England v Vagliano* [1891] A C 107 at p 145 For an example of a Colonial ordinance being a complete code in itself see *Wallace Johnson v R* [1941] A C 231 P C

²⁶ *Bristol Tramways Co v Fiat Motors* [1910] 2 K B 831 at p 836 The statute was passed to declare the law 'We are bound by it and can look to nothing else' *Abbott v Wolsey* [1895] 2 Q B 97

Yet counsel and even eminent judges will refer to the earlier decisions if only for elucidating an argument.²⁷ The distinction drawn by Chitty J. between consolidating and codifying Acts is obscure and is not rendered less so by the fact that the Bankruptcy Act, 1883 is in terms an Act to amend. On the other hand, the House of Lords has not hesitated to spell out a change in the law from the Companies Consolidation Act, 1908,²⁸ and Lord Wrenbury in his judgment refused to look into the history of the clauses of that Act.²⁹ In a plain consolidation Act such as the Income Tax Act 1952 (c 10) it if re enacts with a like context a word or phrase in one of the Acts consolidated which has received judicial interpretation that interpretation will, generally, be applicable to the same word or phrase in the Consolidation Act.³⁰ By the Consolidation of Enactments (Procedure) Act 1949 (c 33) a simplified procedure is laid down for enacting consolidating statutes under which the opportunity for debate on the enactment is considerably curtailed. It remains to be seen whether, if a case arises in which substantial changes are apparently made in the law by such an enactment the courts will be inclined where possible to consider the previous state of the law and interpret the consolidating statute accordingly. It would appear that in such cases, the history of the previous Acts may be looked at to determine whether different constructions should be put on the same word in different sections.³¹

Parliamentary History

Reference has been occasionally made to what the framers of the Act, or individual members of the legislature intended to do by the enactment or understood it to have done. Chief Justice Hengham said that he knew better than counsel the meaning of the Westminster II as he had drawn up that statute.³²

²⁷ See judgment of Farwell L.J., *Halls v Pratt* [1910] 2 K B 1003.

²⁸ *Food Controller v Cork* [1953] A.C. 647 11 L.

²⁹ *Ibid.*, at p. 668. "I derive little if any assistance from the knowledge that for instance a particular section is in terms identical with a section which as the law previously stood was found in a framework different from that in which it is now found. In other words I have to consider the statute law as it is." But see *R v Barr ex p Presburg* [1960] 1 QB 625.

³⁰ See cases cited p. 38 note 46 *post*.

³¹ *R v Barr ex p Presburg* [1960] 1 QB 625. In which *Food Controller v Cork* [1953] A.C. 647 11 L., was not cited.

³² Year Book of 33 Edw. 1 M Term (Rolls Ed.) 8.

Lord Nottingham claimed that he had some reason to know the meaning of the Statute of Frauds, because, he said, it had had its first rise from him he having brought it into the House of Lords ³³

Lord Kenyon supported his construction of the Municipal Offices Act, 1710 (c 25) by the argument that so accurate a lawyer as Mr Justice Powell, who had drawn it, never would have used several words where one sufficed.³⁴

Lord Field refers to the improbability that the eminent lawyers who framed the Judicature Act 1875 (c 77), would not have made a certain exception if they had intended it ³⁵

Lord Halsbury states, however that he has on more than one occasion said that the worst person to construe a statute is the person who is responsible for its drafting, for he is much disposed to confuse what he intended to do with the effect of the language which in fact he has employed ³⁶ Yet, in determining the meaning of the rubric on vestments in the Prayer book (enacted by the Uniformity Act, 14 Car 2 c 4), the Privy Council in one ecclesiastical case, referred to the introduction of a proviso by the Lords in that Act, and its rejection by the Commons and to the reasons assigned by the latter, in the conference which ensued for the rejection as an indication of the intention of the legislature ³⁷, and in another, to a discussion between the bishops who framed or revised the rubric and the Presbyterian divines at the Savoy Conference in 1662 as showing the meaning attached to it by the former ³⁸

It has been stated as a general proposition in ecclesiastical matters that if the law excludes all historical investigation and discussion on antecedent usage in matters of ritual and practice it excludes one source of light upon doubtful questions ³⁹

Lord Westbury, when Chancellor, referred to a speech made by himself as Attorney General in the House of Commons in

³³ See *Ash v Abdy* (1678) 3 Swanst 664

³⁴ *R v Wallis* (1793) 5 TR 379

³⁵ *Bell Cox v Hakes* (1890) 15 App Cas 506 544

³⁶ *Hilder v Dexter* [1902] AC 474 *Herron v Rathmines etc* [1892] AC 498 501

³⁷ *Hebbert v Purchas* (1871) LR 3 PC 605 *Viscountess Rhondda's Claim* [1922] 2 AC 339 350 per Lord Birkenhead and see *Mackonochie v Martin* (1881) 6 App Cas 424

³⁸ *Ridsdale v Clifton* (1877) 2 PD 276

³⁹ *Read v Bishop of Lincoln* [1892] AC 644 652 per Lord Halsbury LC

that it was their intention that it should not extend to lands of that tenure⁴⁵

So, what took place before a parliamentary committee cannot be invoked for putting such a construction on a private Act⁴⁶ as will limit its application to one party to the detriment of the general public although for the purpose of construing it the court would be at liberty to consider the position of the parties concerned, and might come to the conclusion that a particular clause had been inserted at the instance of the party who was present for his protection, and that it conferred upon him such an interest as entitled him to a mandamus to compel compliance therewith⁴⁷

The report of a Royal Commission cannot be admitted to show the intention of an Act⁴⁸

Usage

Another class of external circumstances which has in peculiar circumstances, been sometimes taken into consideration in construing a statute consists of acts done under it for usage may determine the meaning of the language at all events when the meaning is not free from ambiguity⁴⁹

SECTION 4 —THE CONTEXT—EARLIER AND LATER ACTS— ANALOGOUS ACTS

Act to be Regarded as a Whole

Passing from the external history of the statute to its contents it is an elementary rule that construction is to be made of all the parts together, and not of one part only by itself⁵⁰ *Incivile est nisi tota lege perspecta una aliqua particula ejus proposita judicare vel respondere*⁵¹ Such a survey is often indispensable even when the

⁴⁵ *Farley v. Bonham* (1861) 30 L J Ch 239

⁴⁶ *Davis & Sons v Taff Vale Ry* [1895] A C 542 *Steele v Midland Ry* (1866) L.R. 1 Ch 282 *R v Manchester Corp* [1911] 1 K B 560 *per* Lord Alverstone C J

⁴⁷ *R v Manchester Corp* [1911] 1 K B 560 As to the principles for construing such clauses see *post* pp 349–355

⁴⁸ *Assam Ry & Trading Co v C I Ry* [1935] A C 445 458

⁴⁹ See *e.g.* *Leveson v R* (1869) L.R. 4 Q B 394 at p 404 and other cases referred to *post* Chap 11 Sec 1

⁵⁰ Co Litt 381a *Lincoln College Case* (1595) 3 Rep 59b *Horn v Horn* (1806) 7 East 529 *per* Lord Ellenborough *Turquand v Board of Trade* (1886) 11 App Cas 286 *per* Lord Blackburn *Att Gen v Brown* [1920] 1 K B 773 791 *per* Sankey J See p 19

⁵¹ Dig I 3 24 See *Minister of Health v Stafford* [1952] Ch 730 C A

words are the plainest⁵², for the true meaning of any passage is that which (being permissible) best harmonises with the subject and with every other passage of the statute. I conceive it to be my right and duty to examine every word of a statute in its context and I use the word context in its widest sense as including not only the enacting provisions of the same statute, but its preamble the existing state of the law other statutes *in pari materia*, and the mischief which I can, by those and other legitimate means discern the statute was intended to remedy'⁵³

Perhaps as a general proposition the words of a statute should be construed in accordance with the dictum of Lord Watson who says with regard to deeds in an unrecorded case, the deed must be read as a whole in order to ascertain the true meaning of its several clauses and the words of each clause should be so interpreted as to bring them into harmony with the other provisions if that interpretation does no violence to the meaning of which they are naturally susceptible⁵⁴

One of the safest guides it has been said to the construction of sweeping general words which are difficult to apply in their full literal sense is to examine other words of like import in the same instrument and to see what limitations must be imposed on them and if it is found that a number of such expressions have to be subjected to limitations and qualifications and that such limitations and qualifications are of the same nature that circumstance forms a strong argument for subjecting the expression in dispute to a like limitation and qualification⁵⁵

If one section of an Act for instance required that notice should be given a verbal notice would generally, be sufficient but if another section provided that it should be served on a person or left with him or in a particular manner or place it would obviously show that a written notice was

⁵² Lord Esher M R and Fry L J *Lancashire and Yorks Ry v Knowles* (1888) 20 Q B D 391 *Chamber Collie y Co v Rochdale Canal Co* [1895] A C 564 571 *et seq*

⁵³ *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436 at p 461 *per* Viscount Simonds See also *Butcher v Poole Corporation* [1942] 2 All E.R. 57 *per* du Parcq L J

⁵⁴ Quoted in *North Eastern Ry v Hastings (Lord)* [1900] A C 260 267

⁵⁵ *Blackwood v R* (1882) 8 App Cas 82 94 *Jennings v Kelly* [1940] A C 706 218 (Maxwell cited)

intended ⁵⁶ Section 2 of the Prescription Act, 1832 (c 71) in protecting certain stated easements from disturbance after specified periods of enjoyment uses an expression which unambiguously includes all such easements, that is those in gross as well as those appurtenant. But section 5, which in providing a form of pleading to be applicable to all rights within the Act, gives a form which could from its nature, be applicable only to rights appurtenant, shows that the wide expression in the earlier section was used in the restricted sense of a right appurtenant ⁵⁷

So, in the Dower Act, 1833 (c 105) the word "land," which is defined as including manors, messuages and all other hereditaments both corporeal and incorporeal, except such as were not liable to dower, was held not to include copyhold lands because section 6, which provided that a widow should not be entitled to dower when the deed "by which the land was conveyed to her husband contained a declaration to that effect, showed that only lands which were transferable by deed were within the contemplation of the legislature ⁵⁸

Where one section of an Act empowered the Board of Trade when it had "reason to believe that a ship could not go to sea without serious danger to human life, to detain it for survey and another section gave the shipowner a right to compensation if it appeared that there was not reasonable cause for its detention by reason of the condition of the ship or the neglect or default of the owner it was held that the latter section so modified the earlier one that the Board of Trade would be liable to compensate an owner whose ship had been detained on erroneous information which, if correct, would have afforded reasonable ground for detention if it appeared from the evidence at the trial that a person of ordinary skill who had examined the ship would have thought that there was no reasonable ground for detention ⁵⁹

⁵⁶ Employers Liability Act 1880 (c 42) 2 W & M c 5 *Moyle v Jenkins* (1881) 8 Q B D 116 *Wilson v Nightingale* (1846) 8 Q B 1034 *R v Shurmer* (1886) 17 Q B D 323. See *Ex p Portingell* [1892] 1 Q B 15. See also Workmen's Compensation Act 1906 (c 58) s 2 providing that notice of accident is to be given which on the context imported that the notice was to be in writing (*Hughes v Coed Talon Colliery Co* [1909] 1 K B 957).

⁵⁷ *Mercer v Denne* [1904] 2 Ch 534 [1905] 2 Ch 538.

⁵⁸ *Smith v Adams* (1855) 24 L J Ch 258 *Powdrell v Jones* (1855) 24 L J Ch 123. Cf *Doe v Waterton* (1819) 3 B & Ald 149.

⁵⁹ Merchant Shipping Act 1876 (c 80) ss 6 and 10 repealed by Merchant Shipping Act 1894 (c 60) see s 459 and *Thompson v Farrer* (1882) 9 Q B D 372—a case under the repealed Act.

So where section 74 of the Metropolis Management Amendment Act, 1862 (c 102) enacted that if "any building" projecting beyond the general line of the street was pulled down the Board of Works might order it to be set back, giving compensation and the next section section 75, enacted that in certain circumstances no building should be erected in any street without the consent of the Board, beyond the general line, the latter section which *per se*, would have included alterations, whether on new sites or old was confined by the former to buildings erected on land which had been hitherto vacant ⁶⁰

Where one section of a repealed Act imposed a penalty for selling as unadulterated articles of food which were in fact adulterated and another declared that a person who sold an article of food knowing it to have been mixed with another substance to increase its bulk or weight, and did not, in selling it declare the admixture to the purchaser, should be deemed to have sold an adulterated article the different wording of the two sections showed that under the former the seller would be liable though he was ignorant of the adulteration ⁶¹

It has been contended before us that this word 'protection' means—not only in the abstract which is one thing but in this context in this statute which is another thing—exemption from rating ⁶²

The word 'shop' has to be interpreted in the setting and context in which it is to be found in the Pharmacy and Medicines Act 1941 ⁶³

In all these instances the legislature supplied in the context the key to the meaning in which it used expressions which seemed free from doubt and that meaning it is obvious was not that which literally or primarily belonged to them

Even where an Act contains a definition section it does not necessarily apply in all the contexts in which a defined word may

⁶⁰ *Auckland (Lord) v Westminster Board of Works* (1872) L.R. 7 Ch. 597 *Wendon v L.C.C.* [1894] 1 Q.B. 812 See now London Building Act 1930 (c. clvii) Part III

⁶¹ 35 & 36 Vict. c. 74 repealed by Sale of Food and Drugs Act 1875 (c. 63) s. 1 *Fitpatrick v Kelly* (1873) L.R. 8 Q.B. 337 *Dyke v Gower* [1892] 1 Q.B. 220

⁶² *Belton v Crowle District Drainage Board* [1935] 2 K.B. 221 234 *per Lord Hewart*

⁶³ *Summers v Roberts* [1944] 1 K.B. 106 109 See also *Re Carlton* [1945] Ch. 37 ("child" in Naturalisation Act 1870 (c. 14) means infant child) A bicycle is a "carriage" within the Licensing Act 1872 though not necessarily any other statute *Corkery v Carpenter* [1951] 1 K.B. 102

be found. If a defined expression is used in a context which the definition will not fit, the context must be allowed to prevail over the 'artificial conceptions' of the definition clause, and the word must be given its ordinary meaning.⁶⁴ And a proviso in a definition section will not affect the terms of a substantive section unless its words are so plain as to be incapable of any other meaning.⁶⁵

Dictionary Definitions

Reliance on dictionaries has been deprecated but in more modern times, they have increasingly been taken into account.

I continue to think,' said Lord Macnaghten that the word [mine,' defined by Dr Johnson as to include a quarry] was used in the sense which, if I am not mistaken every English judge who had occasion to consider the meaning of the word before *Farie's Case* was decided took to be its ordinary signification. It seems to me that on such a point the opinions of such judges as *Kindersley v C Turner* L J and Sir George Jessel are probably a safer guide than any definitions or illustrations to be found in dictionaries.⁶⁶

I am quite aware said Lord Coleridge⁶⁷ that dictionaries are not to be taken as authoritative exponents of the meanings of words used in Acts of Parliament but it is a well known rule of courts of law that words should be taken to be used in their ordinary sense and we are therefore sent for instruction to these books. He then cited Johnson's and Webster's definitions of 'credit'.

In the absence of any judicial guidance or authority dictionaries can be consulted.⁶⁸ But it is often fallacious in considering the meaning of a phrase consisting of two words to find a meaning which each had separately and then infer that the two together cover the combination so arrived at. The two together may, as here have acquired a special meaning of their

⁶⁴ *Strathern v Padden* 1926 S C (J) 9

⁶⁵ *Jobbins v Middlesex County Council* [1949] 1 K B 142 C A per Scott and Wrottesley L JJ

⁶⁶ *Midland Ry v Robinson* (1890) 15 App Cas 19 34 Lord Provost of Glasgow v *Farie* (1888) 13 App Cas 657

⁶⁷ *R v Peters* (1886) 16 Q B D 636 641 cf *Spillers Ltd v Cardiff Borough Assessment Committee* [1931] 2 K B 21 42

⁶⁸ *Kerr v Kennedy* [1942] 1 K B 409 413 per Asquith J And see *Camden (Marquis) v I R C* [1914] 1 K B 641

own.⁶⁹ In *Re Ripon Housing Order*⁷⁰ the court determined the meaning of 'park' by reference to the *Oxford English Dictionary*.⁷¹

In construing a modern statute, not dealing with the particular customs of a particular locality, or the practice of a particular trade, but of a general application, evidence [to inform the court as to the existence of a technical meaning of ordinary words] is inadmissible.⁷²

For technical terms reference may be made to technical works.⁷³

Exposition of One Act by Language of Another

Probably the rule as to the exposition of one Act by the language of another is satisfactorily and most comprehensively laid down in the broad statement of Lord Mansfield that 'Where there are different statutes *in pari materia* though made at different times or even expired and not referring to each other they shall be taken and construed together, as one system and as explanatory of each other'.⁷⁴ I see no reason for thinking that there is not implicit in the legislation of 1939 the principle which Parliament proclaimed as just in 1666.⁷⁵

Where a colonial legislature has passed an Act in the same terms as an Imperial statute and the latter has been authoritatively construed by a Court of Appeal in England, such construction should be adopted by the court of the colony.⁷⁶

⁶⁹ *Lee v. Showmen's Guild of Great Britain* [1952] 2 Q.B. 329, 338 per Somervell L.J. (unfair competition).

⁷⁰ [1939] 2 K.B. 835 C.A. See also *Nairne v. Stephen Smith* [1943] 1 K.B. 17 in which judge and counsel cited different dictionaries.

⁷¹ See also *McVittie v. Bolton Corporation* [1945] 1 K.B. 281 per Morton L.J. ('rubbish'). *Hill v. Regem* [1945] 1 K.B. 329 (document as defined in Stroud's *Judicial Dictionary*) and *Lee v. Nursery Furnishings* [1945] 1 All E.R. 387 (practicable).

⁷² *Camden (Marquis) v. I.R.C.* [1914] 1 K.B. 641, 650 per Phillimore L.J.

⁷³ *Re Castioni* [1891] 1 Q.B. 149, 165. The Bench of which Stephen J. was a member consulted his *History of Criminal Law* to define political crime.

⁷⁴ *R. v. Loxdale* (1758) 1 Burr. 447 adopted in the C.A. *Goldsmiths Co. v. Wyatt* [1907] 1 K.B. 95 but in *R. v. Titterton* [1895] 2 Q.B. 67 Lord Russell of Killowen C.J. observes that it is proper to refer to earlier Acts *in pari materia* only where there is an ambiguity. See also *Sutton v. Sutton* (1883) 22 Ch.D. 515 per Cotton L.J. cited by Bray J. in *Shaw v. Crompton* [1910] 2 K.B. 370. *McWilliam v. Adams* (1852) 1 Macq. H.L. 136 per Lord Truro.

⁷⁵ *Re Orbit Trust Ltd's Lease* [1943] Ch. 144 per Uthwatt J. a reference to Fire of London Disputes Act 1666 (c. 7) (which dealt with the Fire of London) and the Landlord and Tenant (War Damage) Act 1939.

⁷⁶ *Trimble v. Hill* (1879) 5 App. Cas. 34.

In construing a statute which applies to England and Scotland alike, it is desirable to adopt a construction of statutory words which avoids differences of interpretation of a technical character such as are calculated to produce inequalities as between the citizens of the two countries ⁷⁷

Where two Acts are to be read together every part of each must be construed as if contained in one Act unless there is some manifest discrepancy which makes it necessary to hold that the later Act had modified the earlier ⁷⁸ This does not mean however that every word in the later Act must be interpreted in the same way as in the earlier Act ⁷⁹

Where the later of two Acts provided that the earlier Act should, so far as was consistent be construed as one with it, an enactment in the later statute that nothing therein should include debentures was held to exclude debentures from the earlier one also ⁸⁰

It has been observed, however that when an Act embodies several distinct Acts, one part throws no further light on the other parts than would be cast upon them by separate and distinct enactments to the same effect ⁸¹

Where a single section of an Act is introduced into another statute, it must be read in the sense which it bore in the original Act from which it is taken and consequently it is legitimate to refer to all the rest of that Act to ascertain what the section means although one section only is incorporated in the new Act ⁸²

A by law which authorised the election of any person to be Chamberlain of the City of London would be construed so as

⁷⁷ *Income Tax Commissioners for City of London v Gibbs* [1942] A.C. 402 414 per Viscount Simon L.C. *R v Belfast JJ* [1947] N.I.C. 191 per Andrews L.C.J. *Newman v Lipman* [1951] 1 K.B. 333 *Regional Properties Ltd v Frankenschwerth* [1951] 1 K.B. 631

⁷⁸ *International Bridge Co v Canada Southern Railway Co* (1883) 8 App.Cas. 723 at p. 727 per Lord Selborne *Hart v Hudson Bros* [1928] 2 K.B. 629 *Phillips v Parnaby* [1934] 2 K.B. 299 *R v Folkestone Rent Tribunal* [1952] 1 K.B. 54 *Crowe v Lloyds British Testing Co* [1960] 1 All E.R. 411

⁷⁹ See e.g. *Preston and Area Rent Tribunal v Pickavance* [1953] A.C. 562 H.L.

⁸⁰ *Read v Joannon* (1890) 25 Q.B.D. 300 *Re Standard Mfg Co* [1891] Ch. 627 C.A. *Ex p Lowe* [1891] 1 Ch. 627

⁸¹ *Cope v Doherty* (1858) 4 K. & J. 367 27 L.J. Ch. 600 per Turner L.J. As to incorporation of earlier Acts in a subsequent statute see *Knill v Towse* (1890) 24 Q.B.D. 186 697 *R v Pharmaceutical Society* [1899] 2 Ir.R. 132 And see post pp. 302 et seq.

⁸² *Mayor of Portsmouth v Smith* (1885) 10 App.Cas. 371 per Lord Blackburn

to harmonise and not to conflict, with an earlier one which limited the appointment to persons possessed of a certain qualification, and 'any person' would be understood to mean only any eligible person⁸³

Where a question arose whether section 7 of the Admiralty Court Act, 1861 (c 10) which gave that court jurisdiction over any claim for damage done by any ship, included injuries done to persons by collision one reason for deciding in the negative was that in other Acts *in pari materia* loss of life and personal injury on the one hand and loss and damage to ships and other property on the other, were invariably treated distinctly and the word damage was nowhere in them applied to injuries to the person⁸⁴

Earlier Act explained by Later

Not only may the later Act be construed by the light of the earlier but it sometimes furnishes a legislative interpretation of the earlier⁸⁵ if it is *in pari materia* and if (but only if⁸⁶) the provisions of the earlier Act are ambiguous⁸⁷ Thus chapter 23 of Magna Carta (9 Hen 3), which provides that all weirs shall be put down through Thames and Medway and through all England, except the sea coast, was held to apply only to navigable rivers because 25 Ed 3 st 3, c 4 and other subsequent statutes spoke of it as having been passed to prevent obstruction to navigation⁸⁸

To determine the meaning of the word 'broker' in 6 Anne c 68 the Bubble Act 1719 (6 Geo 1, c 18) passed twelve years later, was referred to where the same term was used⁸⁹

⁸³ *Tobacco Pipe Makers v Woodroffe* (1826) 7 B & C 838 (overruling *Oxford v Hildgoose* (1690) 3 Lev 293) See also *Poulterers Co v Phillips* (1840) 6 Bng NC 314 9 LJCP 190

⁸⁴ *Smith v Brown* (1871) LR 6 QB 729 *Seward v The Vera Cru* (1884) 10 App Cas 59 see pp 169 170 *post* See now Administration of Justice Act 1956 (c 46) s 1

⁸⁵ But see A. L. Smith J in *Hard v Folkestone Waterworks Co* (1890) 62 LT 325 I must protest against an attempt to construe a statute by the light of an Act passed 30 years after its date And see also *Bottomley v W Derby Assessment Committee* [1932] 1 KB 40 *per Greer LJ* *Ormond Investment Co v Betts* [1928] AC 143 *per Lord Buckmaster* *Chondrus v Isbrandtsen Moller Co* [1950] 2 All ER 618 *per Tucker LJ*

⁸⁶ *Kirkness v John Hudson & Co Ltd* [1955] AC 696

⁸⁷ See e.g. *Re Macmanaway* [1951] AC 161 PC where the considerations to be applied are discussed

⁸⁸ *Rolle v Whyte* (1868) LR 3 QB 286 and see *Leconfield (Lord) v Lonsdale (Lord)* (1870) 39 LJ CP 305 *Callis on Sewers* 4th ed at p 305

⁸⁹ *Clarke v Powell* (1833) 4 B & Ad 846 *Smith v Lindo* (1858) 27 LJCP 196 198

In section 299 of the repealed Merchant Shipping Act, 1854 (c 104), which enacted that damage arising from non observance of the sailing rules should *prima facie* be deemed to have been occasioned by the 'wilful default' of the person in charge of the deck, the expression "wilful default" was construed by the light of the later Act,⁹⁰ the Merchant Shipping Act Amendment Act, 1862 (c 63), section 29 of which declared that the ship which occasioned the collision should be deemed to be 'in fault, as including a negligent as well as a criminal fault'⁹¹

But where the Judgments Act 1838 (c 110), s 18, gave the effect of judgments to rules of court for the payment of money, and a later one (Common Law Procedure Act 1854 (c 125) s 60) authorised creditors who obtained judgment to recover the amount by the new process which it introduced, of foreign attachment, it was held that the latter remedy did not apply to rules of court the object of the former Act appearing to be merely to give to rules the then existing remedies of judgments and the object of the latter Act to confine the new remedy to judgments in the strict acceptation of the term⁹²

The mere omission in a later statute of a negative provision contained in an earlier one cannot by itself have the result of a substantive affirmation. It is necessary to see how the law would have stood without the original proviso and the terms in which the repealed sections are re enacted⁹³

General rules and forms made under the authority of an Act which enacted that they should have the same force as if they had been included in it have also been referred to for the purpose of assisting in the interpretation of the Act⁹⁴. In a modern case practice notes issued by the Central Land Board were prayed in

⁹⁰ Repealed Merchant Shipping Act 1894 (c 60) s 745 and Sched 22

⁹¹ *Grill v General Screw Collier Co* (1866) L R 1 C P 611 *per* Willes J and see *Price v Union Lighterage Co* [1903] 1 K.B 750 affirmed [1904] 1 K B 412 C A

⁹² *Re Frankland* (1873) L R 8 Q B 18 *Best v Pembroke* (1873) L R 8 Q B 363 see also *Port of London Authority v Canvey Island Commissioners* [1932] 1 Ch 446 474 C A

⁹³ *Union S S Co of New Zealand v Robin* [1920] A C 654 and cases there cited on this point.

⁹⁴ *Re Andrew* (1876) 1 Ch D 358 *Re Wier ex p Wier* (1871) L R 6 Ch 875 *per* Mellish L.J

aid against the Board to interpret the Town and Country Planning Act 1947 (c 51) ⁹⁵

The language and provisions of expired and repealed Acts on the same subject and the construction which they have authoritatively received are also to be taken into consideration, for it is presumed that the legislature uses the same language in the same sense when dealing at different times with the same subject, and also that any change of language is some indication of a change of intention ⁹⁶ Thus section 202 of the repealed Bankruptcy Act 1849 (c 106), which made void all securities given by a bankrupt to a creditor to induce the latter to forbear opposition to the bankrupt's certificate was construed in the same sense as that which had been given to the same provision in the earlier and repealed Bankruptcy Act of 6 Geo 4 (c 16) ⁹⁷

What was meant in section 4 of the Vagrancy Act 1824 (c 83) by running away leaving his or her child chargeable to the parish was determined by referring to the earlier Poor Relief (Deserted Wives and Children) Act 1718 (c 8), which spoke of persons who 'run or go away from their abodes into other counties or places and sometimes out of the kingdom and was therefore held not to apply to a woman who left her children at the door of the workhouse and returned to her usual abode in the town where the workhouse was situated ⁹⁸

Where the Highway Act 1864 (c 101) s 25 imposed a penalty on the owner of cattle found lying on a highway without a keeper, and the same provision was re enacted without the last words the omission was construed as obviously showing the intention that the presence of a keeper should no longer absolve the owner from liability ⁹⁹

⁹⁵ *L C C v Central Land Board* [1959] Ch 386

⁹⁶ See Chap 11 Sec 3 *R v Loxdale* (1758) 1 Burr 447 and see *Devonport Corp'n v Toer* [1902] 2 Ch 182 Principle approved in *Stoomvaart Maatschappij Nederland v P & O Steamship Co* (1882) 7 App Cas 795 816 Cf *Union S S Co of New Zealand v Robin* [1920] A C 654 *Lancashire and Yorkshire Ry v Bury Corporation* (1889) 14 App Cas 417 per Lord Herschell *Barras v Aberdeen Steam Trawling & Fishery Co* [1933] A C 402 411 *Grey v I R C* [1958] Ch 690 affirmed [1960] A C 1 H L

⁹⁷ *Goldsmid v Hampton* (1858) 27 L J C P 286 *Ex p Copeland* (1853) 22 L J Bk 17 post p 271

⁹⁸ *Cambridge Union v Parr* (1861) 30 L J M C 242 *Byles J Peters v Cowie* (1877) 2 Q B D 131

⁹⁹ *Lawrence v King* (1868) L R 3 Q B 345 *Golding v Stocking* (1869) L R 4 Q B 516 See now Highways Act 1959 (c 25) s 135

References to Repealed Acts

Where a part of an Act has been repealed, it may, although not of operative force, still be taken into consideration in construing the rest for it is part of the history of the new Act.¹ Thus, where an Act which imposed a duty on racehorses cabborses and all other horses was specifically repealed as regards racehorses racehorses were thereafter regarded as being outside the Act although the remaining words would obviously have included them.²

Where a statute imposed a duty on artificial mineral waters and on all other water to be used as medicines and the duty on artificial mineral waters was afterwards repealed the repealed words were held essential for determining whether what still subsisted of the Act though wide enough to include artificial waters was intended to include them. It has been said however to be an extremely hazardous proceeding to refer to provisions which have been absolutely repealed in order to ascertain what the legislature meant to enact in their stead though there may be occasions on which such a reference would be legitimate.³

Interpretation of Acts of Similar Scope

The construction which has been put upon Acts of similar scope on similar subjects, even though the language should be different may for a similar reason be referred to. Thus, the provision of the Statute of Frauds Amendment Act 1828 (c. 14) requiring that an acknowledgment to take a debt out of the Limitation Act 1623 should be signed by the party chargeable thereby was held not to include an acknowledgment by his agent on the ground that when the legislature intended to include the signature of agents, not only in other Statutes of Limitation but also in several sections of the Statute of Frauds one of which was recited in the Act, express words had been used for the purpose.⁴

¹ See ante pp. 22-23.

² *Att. Gen. v. Lamelough* (1878) 3 Ex. D. 214.

³ *Bradlaugh v. Clarke* (1883) 8 App. Cas. 354-380 per Lord Watson.

⁴ *Hyde v. Johnson* (1836) 5 L.J. C.P. 291. For limitations on the principle underlying this decision see *Re Whitley Partners ex p. Callan* (1886) 32 Ch. D. 337 C.A. per Cotton L.J. See now Limitation Act 1939 (c. 21) s. 24.

That which was held a sufficient signature to a will or contract under the Statute of Frauds⁶ was held for that reason sufficient under the repealed Bankruptcy Act, 6 Geo 4, c 16 s 131,⁷ under the Statute of Limitation⁸ and under the repealed Parliamentary Voters Registration Act 1843 (c 18), s 17⁹

But where the Acts are not *in pari materia*, it is fallacious to take the construction which has been put upon one as controlling the construction of another¹⁰ For instance the meaning put on the words 'goods' in the reputed ownership clause of the Bankruptcy Acts was no guide to its meaning in section 17 Statute of Frauds 1677 not only because the words associated with it were different but because the objects of the Act were wholly different¹¹

For the same reason the Parochial Assessments Act, 1836 (c 96) was held to throw but little (if any) light on the meaning of the clear yearly value of a tenement which qualified a voter under section 27 of the Representation of the People Act 1832 (c 45)¹²

Because chambers were a house for the purposes of assessment to a poor rate under the Poor Relief Act, 1601 (43 Eliz 1 c 2)¹³ of gaining a settlement under 6 Geo 4 c 57¹⁴ of qualifying for a vote under the Representation of the People Act, 1832 (c 45)¹⁵, and also as a place in which a burglary might be committed,¹⁶ it did not follow that the same meaning was to be given to the

⁶ *Lemayne v Stanley* (1681) 3 Lev 1 *In the Goods of Streatley* [1891] P 172 *Knight v Crockford* (1794) 1 Esp 190 *Hubert v Treherne* (1842) 11 LJCP 78 *Ogilvie v Foljambe* (1817) 17 RR. 13

⁷ *Kirkpatrick v Tattersall* (1845) 14 LJEx 209

⁸ *Lobb v Stanley* (1844) 5 QB 574 *per Patterson J*

⁹ Repealed Representation of the People Act 1918 (c 64) s 47 and Sched VIII *Bennett v Brumfit* (1868) LR 3 CP 28 *Goodman v J Eban Ltd* [1954] 1 QB 550

¹⁰ *Dewhurst v Feilden* (1845) 7 M & Gr 187 *Maule J Eyre v Waller* (1860) 29 LJEx 247 *Wilde B Knowle & Sons Ltd v Lancashire and Yorkshire Ry* (1889) 14 App Cas 248 *Re Gerard's Estate* [1893] 3 Ch 251 *Smith v Bailey* [1891] 2 QB 403 *Stanford v Roberts* [1901] 1 Ch 440 *Somersfield v Robin* [1946] KB 244

¹¹ *Humble v Mitchell* (1839) 9 LJQB 29 *Colonial Bank v Whinney* (1886) 11 App Cas 426

¹² *Colvill v Wood* (1846) 15 LJCP 160 *Dobbs v Grand Junc W W* (1883) 9 App Cas 49

¹³ *R v St George's Union* (1871) LR 7 QB 90 *Cf Re Hecquard* (1890) 24 QB 0 71 *Re Nordenfelt* [1895] 1 QB 151

¹⁴ *R v Urworth* (1836) 5 A & E 261

¹⁵ *Henrette v Booth* (1863) 33 LJCP 61

¹⁶ *Evans and Fynch's Case* (1638) Cro Car 473

expression in the House Tax Act, 1808 (c 55) which imposed a duty on 'inhabited houses' ¹⁶

A bicycle although a "carriage" within an enactment against furious driving, would not necessarily be also a carriage under a Turnpike Act which imposed a toll on carriages propelled by steam or other agency ¹⁷

The definition of "seaman" in the Merchant Shipping Acts 1854 and 1894, must not be imported into the Employers Liability Act 1880 (c 42) ¹⁸

Special Clauses in Private or Local Acts

It may be added that in construing Acts of a private or local character, such as Railway Acts the courts do not shut their eyes to the fact that special clauses frequently found embodied in them, are in effect private arrangements between the promoters and particular persons and not inserted by the legislature as part of the general scheme of legislation but are simply introduced at the request of the parties concerned ¹⁹ If the general provisions of such Acts were to override such special clauses those in whose favour the latter were inserted would have a just claim to be heard in Committee on every clause of the Act which would make it impossible to conduct any private legislation ²⁰ Such special clauses are therefore treated as isolated and foreign to the rest of the Act so that their wording contrary to the general rule, is not to be regarded as throwing any light on the construction of it ²¹

SECTION 5—THE TITLE—MARGINAL NOTES—THE PREAMBLE— STATUTORY INSTRUMENTS

Title

Originally Bills in Parliament were mere petitions to the King They were entered on the rolls of Parliament, with the King's

¹⁶ *Att Gen v Westminster Chambers Assoc* (1876) 1 Ex D 469 *Grant v Langston* [1900] A.C. 383 *R v Oxford (V C)* (1872) L.R. 7 Q.B. 471

¹⁷ *Williams v Ellis* (1880) 5 Q.B.D. 175 *Simpson v Teignmouth Co* [1903] 1 Y.B. 405 C.A. *Smith v Kynnersley* [1903] 1 K.B. 783 And see *Corkery v Carpenter* [1951] 1 K.B. 102

¹⁸ *Macbeth & Co v Chislett* [1910] A.C. 220

¹⁹ But see ante p. 27

²⁰ *Taylor v Oldham* (1877) 4 Ch.D. 395 per Jessel M.R.

²¹ *East London Ry v Whitechurch* (1874) L.R. 7 H.L. 89 per Lord Cairn.

The rule was not, indeed invariably observed³², for the mind, when labouring to discover the design of the legislature naturally seized on everything from which aid could be derived³³, and it is now settled law that the title of a statute is an important part of the Act³⁴ and may be referred to for the purpose of ascertaining its general scope,³⁵ and of throwing light on its construction³⁶ This rule applies to the ' long ' title but it does not apply to the ' short ' title³⁷

But the title cannot override the clear meaning of the enactment There is no doubt as to the construction to be put upon the words of the section, though it clearly exceeds both the title and the preamble We are bound to give to the section its full construction³⁸

The construction of a statute is not limited by its title³⁹

Marginal Notes etc

Formerly the Bill was at one of its stages, engrossed without punctuation on parchment⁴⁰ and as neither the marginal notes nor the punctuation appeared on the roll they formed no parts of the Act⁴¹ This practice was discontinued in 1849 since which

³² See e.g. *R v Wright* (1834) 1 A & E. 446 *Alexander v Newman* (1846) 2 C B 141 *Taylor v Newman* (1863) 32 L.J.M.C. 189 *Ranley v Ranley* (1876) 1 Q.B.D. 466 *Bentley v Rotherham* (1876) 4 Ch.D. 583 *East and West India Dock v Shaw* (1888) 39 Ch.D. 531 *Middlesex Justices v R* (1884) 9 App.Cas. 772 per Lord Selborne L.C. *Bryan v Child* (1850) 5 Ex. 368

³³ Per cur. *US v Fisher* (1805) 2 Cranch. 386 *US v Palmer* (1818) 3 Wheat. 631

³⁴ *Fielden v Morley Corporation* [1899] 1 Ch. 3 per Lindley M.R. *Jones v Shervington* [1908] 2 K.B. 539 per Sutton J. *Ambler v Bradford Corporation* [1902] 2 Ch. 585 594 per Romer L.J.

³⁵ *Fenton v Thorley* [1903] A.C. 447 per Lord Macnaghten *All Gen v Margate Pier Co* [1900] 1 Ch. 749 *London County Council v Bermondsey Bioscope Co* [1911] 1 K.B. 445 per Lord Alverstone C.J. *Conselt Iron Co v Clavering Trustees* [1935] 2 K.B. 42 77 per Roche L.J. *Watkinson v Hollington* [1944] 1 K.B. 16 20 per Scott L.J. *Re Scarisbrick Settled Estates* [1944] Ch. 229

³⁶ *Ibort on Legislative Methods and Forms* p. 269 *Galloway v Irish Soldiers and Sailors Lond Trust* [1950] N.I. 32 *R v Bates and Russell* [1952] 2 All.E.R. 842

³⁷ *Vacher v London Society of Compositors* [1913] A.C. 107 per Lord Moulton at p. 128 *Re Boaler* [1915] 1 K.B. 21 C.A. But the short title was prayed in aid by Kekewich J in *Att Gen v Margate Pier and Harbour Co* [1900] 1 Ch. 749 See also *National Telephone Co Ltd v Postmaster General* [1913] A.C. 546 H.L. per Lord Moulton

³⁸ *Willmot v Rose* (1854) 23 L.J.Q.B. 281 See *Re Griffith* (1879) 12 Ch.D. 655

³⁹ *In the Goods of Groos* [1904] P. 269

⁴⁰ 1 Bl.Comm. (ed. 1844) 183

⁴¹ *Barrington Obs on Stat* 394 see *Barrow v Wadkin* (1858) 24 Beav. 327 *R v Oldham* (1852) 21 L.J.M.C. 134 per Maule J

time a copy of each Act, printed on vellum by the Queen's printer, is preserved in the House of Lords and constitutes the official record of statutes.⁴² Both marginal notes and punctuation now appear on the rolls of Parliament. Nevertheless it has been said they are not to be taken as parts of the statute.⁴³ "I do not think I am entitled to have regard to the (marginal note) in interpreting a statute, and I disregard it on that ground."⁴⁴

But, as regards marginal notes this rule has not always been observed. For the purpose of interpretation a marginal note was used by Martin B.⁴⁵ by Cleasby B.,⁴⁶ and by Collins M.R. the last named judge saying: "Some help will be derived from the side note (though of course it is not part of the statute), which shows that the section is dealing with [certain matters]."⁴⁷

The general rule of law as to marginal notes at any rate in public general Acts of Parliament is founded upon the principle that those notes are inserted not by Parliament nor under the authority of Parliament but by irresponsible persons. Where however as in section 10 of this [the Basingstoke Canal] Act the marginal notes are mentioned as already existing and established it may well be that they do form a part of the Act of Parliament.⁴⁸

An authentic marginal note may relegate a proviso to a particular portion of the statute.⁴⁹

Headings are not mere marginal notes.⁵⁰

The indorsement by the Clerk of Parliaments of the date of the passing of the Act has been part of it since 1793.⁵¹

⁴² *May Parliamentary Practice* 16th ed. Chap. 21 p. 599. Another vellum copy is deposited in the Public Record Office.

⁴³ *Claydon v Green* (1868) L.R. 3 C.P. 521 per Willes J. and Bovill C.J. *Att Gen v G E Ry* (1879) 11 Ch.D. 465 per James L.J. *Sutton v Sutton* (1883) 22 Ch.D. 513 per Jessel M.R. retracting his opinion in *Re Venour* (1876) 2 Ch.D. 525. *Wilkes v Goodwin* [1923] 2 K.B. 86 per Scrutton L.J. *Nixon v Att Gen* [1930] 1 Ch. 566 per Lord Hanworth M.R.

⁴⁴ *Longdon Griffiths v Smith* [1950] 2 All.E.R. 662 per Slade J. at p. 672. And see *R v Bates and Russell* [1952] 2 All.E.R. 842.

⁴⁵ *Nicholson v Fields* (1862) 31 L.J. Ex. 233.

⁴⁶ *Sheffield Waterworks Co v Bennett* (1872) L.R. 7 Ex. 409.

⁴⁷ *Bushell v Hammond* [1904] 2 K.B. 563, 567. *Smith v Portsmouth JJ* [1906] 2 K.B. 229. In ss. 12 and 24 London Building Act 1905 (c. ccix) marginal notes in that Act were used as references.

⁴⁸ Phillimore L.J. *Re Woking Urban Council (Basingstoke Canal) Act 1911* [1914] 1 Ch. 300, 322 C.A. This, however, is a case of a private Act.

⁴⁹ *Dormer v Newcastle-on Tyne Corp* [1940] 2 K.B. 204 C.A.

⁵⁰ See post pp. 48-9.

⁵¹ Acts of Parliament (Commencement) Act 1793 (c. 13).

No introductory words are necessary to each section.⁵²

As to headings prefixed to sections, see *infra*, p 48

Illustrations, appended to sections of a statute to show how the sections may operate, should be accepted, if that can be done as being of relevance and value in construing the text, they should only be rejected as repugnant to the section as the last resort of construction.⁵³

In an Act of Parliament there are no such things as brackets any more than there are such things as stops.⁵⁴

Clear provisions in the Schedule to an Act cannot be limited either by the title to that Schedule, or by a section in the Act itself reciting the purposes for which the Schedule is enacted.⁵⁵

Preamble a Guide to Intention

The preamble of a statute, even after repeal,⁵⁶ has been said to be a good means of finding out its meaning and, as it were, a key to the understanding of it⁵⁷, and as it usually states, or professes to state, the general object and intention of the legislature in passing the enactment, it may legitimately be consulted to solve any ambiguity, or to fix the meaning of words which may have more than one or to keep the effect of the Act within its real scope whenever the enacting part is in any of these respects open to doubt.⁵⁸

Therefore since an Act which authorised aliens who shall have been resident in the country for two years to hold land might either be limited to persons who had so resided before the

⁵² Interpretation Act 1889 (c 63) s 8 (see Appendix)

⁵³ *Mahomed Syedol Ariffin v Yeoh Ooi Gark* [1916] 2 A C 575 P C

⁵⁴ *Duke of Devonshire v O Connor* (1890) 24 Q B D 468 per Lord Esher M R. See also *R v Casement* [1917] 1 K B 98 per Lord Reading C J

⁵⁵ *I R C v Gittus* [1920] 1 K B 563 on appeal sub nom *Gittus v I R C* [1921] 2 A C 81 H L.

⁵⁶ *Hawke v Dunn* [1897] 1 Q B 579 583

⁵⁷ I regret that the practice of inserting preambles in Acts of Parliament has been discontinued as they were often of great assistance to the courts in construing the Acts. *London County Council v Bermondsey Bioscope Co* [1911] 1 K B 445 451 per Lord Alverstone C J

⁵⁸ Bac. Ab Stat. (1) 2 Co Litt 79a, 4 Inst 330 Plowd 369 *Halton v Cove* (1830) 9 L J K B 74 *Turquand v Board of Trade* (1886) 11 App Cas 286 per Lord Selborne *Sussex Peerage* (1844) 11 Cl & F 143 144 *Chilton v Progress Printing and Publishing Co* [1895] 2 Ch 29 *Powell v Kempton Park Racecourse Co* [1899] A C 143 185 *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436 where the status of the preamble is fully discussed. For an article on 'The Office of a Preamble' see 55 Sol J 340

passing of the Act, or extend to those who should at any time reside for the required time, the preamble was resorted to in order to determine which of the two meanings was the more agreeable to the policy and object of the Act, and as it recited that aliens were prevented by law from holding lands in the state and it was the interest of the state that such prohibitions should be done away with, it showed that the former construction was less adapted to give effect to the intention of the legislature than the latter ⁵⁹

Section 18 of the Quarter Sessions Act 1849 (c 45), which enacted that 'any order' of quarter sessions might be removed to the Queen's Bench for enforcement, was confined to orders in appeal cases by the preamble, which in reciting that it was expedient that the law should be made uniform in cases of appeal, showed the limited scope of the Act ⁶⁰

The Refreshment Houses Act 1860 (c 27) s 32, which made it penal for a publican to allow bad characters to assemble and meet together' in his house would not be broken by his permitting such persons to enter for taking refreshment and to remain there as long as was reasonably necessary for that purpose if the preamble showed that the object of the statute was the repression of disorderly conduct, not the absolute denial of all hospitality to persons of bad character ⁶¹

Under the repealed Wills Act 1751 (c 6) which recited in the preamble a doubt regarding who were legal witnesses to a will of land, and enacted that legatees and devisees who attested any will should be good witnesses but that the bequests and devises to them should be void the enacting part was limited by the preamble to wills of land. Wills of personalty at that time needed no attestation and the principle of *cessante ratione cessat lex* as well as the injustice of depriving persons of property, making it reasonably doubtful whether the legislature had used the expression any will in its full and unrestricted meaning the

⁵⁹ *Beard v Rowan* (1835) 9 Peters 301—an American case on an American statute. See also *R v Guenop* (1789) 3 TR 133 *Edwards v Rusholme* (1869) LR 4 QB 554

⁶⁰ *R v Bateman* (1858) 27 LJMC 95

⁶¹ *Belasco v Hannant* (1862) 31 LJMC 225. The position is now regulated expressly by the Licensing Act 1953 (c 46) s 139

preamble was legitimately invoked to determine the scope of the enactment ⁶²

I feel at the outset pressed by the fact that the Act [Truck Act 1831 (c 37)] by its title and preamble declares that its object is to prohibit the payment in certain trades of wages in goods ⁶³

Facts recited in the preamble to a statute are admissible in evidence as *prima facie* proof of their truth ⁶⁴

Preamble does not affect Plain Terms of Act

But the preamble cannot either restrict or extend the enacting part, when the language and the object and scope of the Act are not open to doubt ⁶⁵ It is not unusual to find that the enacting part is not exactly co extensive with the preamble In many Acts of Parliament, although a particular mischief is recited the legislative provisions extend beyond it The preamble is often no more than a recital of some of the inconveniences and does not exclude any others for which a remedy is given by the statute ⁶⁶ The evil recited is but the motive for legislation the remedy may both consistently and wisely be extended beyond the cure of that evil ⁶⁷ and if on a review of the whole Act a wider intention than that expressed in the preamble appears to be the real one, effect is to be given to it notwithstanding the less extensive import of the preamble ⁶⁸

The context of the preamble is not to influence the meaning

⁶² *Emanuel v Constable* (1827) 3 Russ 436 overruling *Lees v Summersgill* (1811) 17 Ves 508 *Brett v Brett* (1826) 3 Addams 219 See also *Wethered v Calcult* (1842) 5 Scott N R 409 *Carr v Royal Exchange Ass Co* (1864) 33 L J Q B 63 *Re Masters* (1869) 33 L J Q B 146

⁶³ *Pratt v Cook* [1940] A C 437 448 per Lord Russell of Killowen

⁶⁴ *R v Sutton* (1816) 4 M & S 532 *Att Gen v Foundling Hospital* [1914] 2 Ch 154

⁶⁵ 4 Inst 330 *Pattison v Bankes* (1777) Cowp 543 per Lord Mansfield *Perkins v Sewell* (1766) 1 W Bl 659 *Capland v Davies* (1872) L R 5 H L 358 389 *Bentley v Roitherham* (1876) 4 Ch D 585 *Fawell v Kempton Park Racecourse Co* [1899] A C 143 185 It is however permissible to look at the preamble (as at any other part of a statute) to see whether the enacting words are open to doubt or not *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436

⁶⁶ Fortescue J *R v Athos* (1723) 8 Mod 144

⁶⁷ *Fellowes v Clay* (1843) 4 Q B 349 per Lord Denman *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436

⁶⁸ *Doe v Brandling* (1828) 7 B & C 643 660 per Lord Tenterden

otherwise ascribable to the enacting parts unless there is a compelling reason for it ' 69

Generally (although in cases where the meaning of words used in a statute is absolutely clear the court has no right to go beyond them) when the words are capable of one meaning and at the same time of a more extended meaning the court will look to the object and policy of the Act to see what meaning they ought to have 70 Thus the Abduction Act 1557 (c 8) made the abduction of all girls under sixteen penal though the preamble referred only to heiresses and other girls with fortunes 71

It has been more than once decided that the preamble of the still unrepealed Unlawful Oaths Act 1797 (c 123), which refers only to the mischiefs consequent on inciting men to sedition and mutiny, and on administering to them oaths with this object did not restrict the enacting part of the statute, which made it felony to administer oaths with a view not only to mutinous or seditious purposes but also to disturbing the peace or to be a member of any association for any such purpose, or not to reveal any unlawful combination or illegal act it being held that the latter words included offences foreign to politics and military discipline such as the administration of oaths to poachers not to betray their companions and to workmen similarly binding them to secrecy as members of an association for raising wages by a strike, or for not working under certain prices 72

The preamble of the Fires Prevention (Metropolis) Act, 1774 (c 78) which declared that an earlier Act for the regulation of buildings and the prevention of fire in the cities of London and Westminster had been found inefficacious and that it would tend to the safety of the inhabitants of those cities if other regulations were established was not suffered to restrict to the metropolis s 83 of the later Act which enacted in general terms that to deter persons from wilfully setting fire to their house with a view to obtaining the insurance money the directors of insurance offices should in suspicious cases lay out the insurance money in reinstating

⁶⁹ *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436 at p 463 per Viscount Simonds For earlier conflicting views see *Ryall v Rolle* (1749) 1 Atk 164 at p 174 per Parker C B and *Copeman v Gallant* (1716) 1 P Wms 314 at p 320 per Lord Cowper

⁷⁰ *Reigate Rural Council v Sutton District Water Co* (1908) 99 L T 168 170

⁷¹ Co Litt 88b n 14

⁷² *R v Brodrick* (1816) 6 C & P 571 *R v Marks* (1802) 3 East 157 *R v Loveless* (1834) 1 M & Rob 349 *R v Ball* (1834) 6 C & P 563

the damaged buildings⁷³ This construction, however, was further justified by the circumstances that the section in question was a re-enactment of a similar provision in the earlier and repealed Act, with the significant omission of the words ' within the limits aforesaid ' which words remained in most of the other sections of the later Act⁷⁴

Section 11 21 Jac 1, c 19,⁷⁵ which empowered bankruptcy commissioners to dispose of goods which were in the possession of the bankrupt as reputed owner, with the real owner's consent, was prefaced by a preamble which recited the mischiefs of bankrupts ' secretly conveying their goods to other persons and yet remaining in the reputed ownership of them, hut the enactment was not confined to this particular form of mischief⁷⁶

Where the preamble is found more extensive than the enacting part it is equally inefficacious to control the effect of the latter when it is otherwise free from doubt For instance 3 W & M c 14 s 3,⁷⁷ which gave creditors an action of ' debt against the devisees of their debtor was held not to authorise an action for a breach of covenant, or for the recovery of money not strictly a debt,'⁷⁸ although the preamble recited that it was not just that by the contrivance of debtors their creditors should be defrauded of their debts but that it had often happened that after binding themselves by bonds " or other specialties " they devised away their property The mention, it was observed, of the action of debt in the enacting part was almost an express exclusion of every other⁷⁹

An Act which made it penal to dye seeds so as to give them the appearance of seeds of ' another kind " could not be extended to similar manipulations of old or inferior seeds to make them appear to be new of the same species by a recital that the practice of adulterating seeds in fraud of Queen s subjects and the detriment of agriculture required repression⁸⁰

⁷³ *Ex p Gorely* (1865) 34 L J Bk 1 per Lord Westbury See also *Owen v Burnett* (1834) 2 Cr & M 353

⁷⁴ As to the construction of s 86 see *Musgrove v Pandelis* [1919] 2 K B 43 C A

⁷⁵ Repealed by 6 Geo 4 c 16 s 1

⁷⁶ *Mace v Cadell* (1774) Cowp 232 See also *Willis v Gipps* (1846) 5 Moo P C 379 *Cloete v R* (1854) 8 Moo P C 484

⁷⁷ Repealed by the Debts Recovery Act 1830 (c 47) s 3

⁷⁸ *Wilson v Knubley* (1806) 7 East 128

⁷⁹ *Wilson v Knubley* (1806) 7 East 128 at p 135 per Lord Ellenborough

⁸⁰ *Francis v Maas* (1878) 3 Q B D 341

An Act which required the trustees of a turnpike trust to apply the moneys which they received, first in paying 'any interest which might from time to time be owing', next, in keeping the road in repair and, finally in paying off the principal sums due by the trust was held not to authorise the payments of arrears of interest although this enactment was prefaced by a preamble which recited that arrears of interest as well as principal sums were due by the trust and could not be paid off unless further powers were granted⁸¹ Such an extension of the Act would have required very clear words since it would have had the effect of throwing on the ratepayers of one year a burden properly belonging to those of another⁸²

It has been sometimes said that the preamble may extend but cannot restrain the enacting part of a statute⁸³ But it would seem difficult to support this proposition⁸⁴ Several of the cases above cited might be referred to as instances of a restricted meaning having been judicially given to an enactment by its preamble⁸⁵ It could hardly be doubted that a statute which in general terms made it felony to alter a bill of exchange would be restricted to fraudulent alterations by a preamble which recited that it was desirable to suppress cheats and frauds effected by altering bills⁸⁶ The function of the preamble is to explain what is ambiguous in the enactment and it may either restrain or extend it as best suits the intention

Headings

The headings prefixed to sections or sets of sections in some modern statutes are regarded as preambles to those sections

⁸¹ *Market Harborough v Kettering* (1873) L.R. 8 Q.B. 308 but see *Burton Turnpike Trustees v Wincanton Highway Board* (1870) 39 L.J.M.C. 155

⁸² See Chap. 10 Sec. 2 p. 275 post

⁸³ *R v Athos* (1723) 8 Mod. 144 *Copeman v Gallant* (1716) 1 P.Wms. 320 *Walker v Richardson* (1837) 2 M. & W. 889 6 L.J. Ex. 229 per Lord Abinger *Hayman v Flewker* (1863) 32 L.J.C.P. 132 per Willes J. *Drummond v Drummond* (1866) L.R. 2 Ch. 44 per Turner L.J. *Kearns v Cordwalners Co* (1859) 6 C.B. (N.S.) 388 per Crowder J.

⁸⁴ See e.g. *Ryall v Rolle* (1749) 1 Atk. 174 182 per Parker C.B. and Lord Hardwicke *West Ham Overseers v Iles* (1883) 8 App. Cas. 386 388 per Lord Blackburn

⁸⁵ *R v Gwenop* (1789) 3 T.R. 133 *Salkeld v Johnson* (1849) 18 L.J. Ch. 493 See also per cur. *R v Manchester* (1857) 26 L.J.M.C. 65 *Hughes v Chester Ry* (1862) 31 L.J. Ch. 97 *Lancashire Brick etc. Co v Lancashire & Yorkshire Ry* [1902] 1 K.B. 651 C.A.

⁸⁶ *R v Bigg* (1717) 3 P.Wms. 434 in argument

They cannot control the plain words of the statute⁸⁷ but they may explain ambiguous words⁸⁸

A cross heading in an Act can probably be used as giving the key to the interpretation of the section unless the wording of the section is inconsistent with such interpretation⁸⁹

"While the court is entitled to look at the headings in an Act of Parliament to resolve any doubt they may have as to ambiguous words the law is quite clear that you cannot use such headings to give a different effect to clear words in the section, where there cannot be any doubt as to their ordinary meaning"⁹⁰

A heading to one group of sections cannot be used to interpret another group of sections⁹¹

*Statutory Instruments*⁹²

Instruments made under an Act which prescribes that they shall be laid before Parliament⁹³ for a prescribed number of days, during which period they may be annulled by a resolution of either House but that if not so annulled they are to be of the same effect as if contained in the Act and are to be judicially noticed must be treated for all purposes of construction or obligation or otherwise exactly as if they were in the Act⁹⁴ If there is a conflict between one

⁸⁷ *Re Penrhyn (Lord) Settlement Trust* [1923] 1 Ch 143 *per* Lawtence J *R v Hare* [1934] 1 K B 354 *per* Avory J

⁸⁸ See e.g. *Bryan v Chud* (1850) 5 Ex 368 *Eastern Counties Ry v Marriage* (1862) 9 H L C 41 *Latham v Lafone* (1867) L R 2 Ex 115 *Hommersmith Ry v Brand* (1868) L R 4 H L 171 *Lang v Kerr* (1878) 3 App Cas 536 *Rayson v South London Tramways Co* [1893] 2 Q B 304 *R v Local Govt Bd* (1883) 10 Q B D 321 *per* Brett L J *Fletcher v Burkenhead Corporation* [1907] 1 K B 205 at p 218 *per* Farwell L J *Union S S Co of New Zealand v Melbourne Commissioners* (1884) 9 App Cas 365 *Inglis v Robinson* [1898] A C 616 *Martins v Fowler* [1926] A C 746 As to Marginal Notes see *ante* pp 41-3

⁸⁹ *Re Corlton* [1945] Ch 280 citing *Toronto Corp v Toronto Ry* [1907] A C 315 324 But on appeal [1945] Ch 372 C A this point was expressly left open *R v Bates and Russell* [1952] 2 All E R 842

⁹⁰ *R v Surrey Assessment Committee* [1948] 1 K B 29 at p 32 *per* Lord Goddard C J

⁹¹ *Shelley v L C C* [1949] A C 56 at p 69

⁹² So called by the Statutory Instruments Act 1946 (c 36) formerly Statutory Rules and Orders For provisions as to publication see Rules Publication Act 1893 (c 66) Statutory Orders (Special Procedure) Act 1945 (c 18) and Statutory Instruments Act 1946 (c 36) and the instruments made thereunder

⁹³ As to what constitutes laying before Parliament see Statutory Instruments Act 1946 (c 36) and Laying of Documents before Parliament (Interpretation) Act 1948 (c 59)

⁹⁴ *Wicks v D P P* [1947] A C 362 H L. approving *Willingdale v Norris* [1909] 1 K B 57 But see *Hales v Bolton Leathers Ltd* [1951] A C 531 at pp 539 544

of these instruments and a section of the Act, it must be dealt with in the same spirit as a conflict between two sections of the Act would be dealt with. If reconciliation is impossible, the subordinate provision must give way, and probably the instrument would be treated as subordinate to the section.⁹⁵ If a statutory instrument contains words identical to those used in the Act under which it is made, those words must be construed in the same way as they are construed in the Act.⁹⁶

Schemes under Acts

'I cannot of course, have recourse to these schemes as a guide to the correct interpretation of the Act under which they were made but I am I think entitled to consider them for certain limited purposes.'⁹⁷

The fact that the object of this Act was in substance what I have suggested can be seen from a consideration of the way in which the scheme has been framed pursuant to the Act itself and with the tacit approval of Parliament as provided in the Act. At any rate, we are entitled to look at the scheme for the purpose of seeing the kind of practical treatment of these questions which Parliament has authorised."⁹⁸

⁹⁵ Interpretation Act 1889 (c. 63) s. 31 *Institute of Patent Agents v Lockwood* [1894] A.C. 347-360 per Lord Herschell L.C. Cf. *Minister of Health v R ex p. Yaffe* [1931] A.C. 494-503.

⁹⁶ *Potts v Reid* [1943] A.C. 1 H.L. (Sc.) and see *Blashill v Chambers* (1884) 14 Q.B.D. 479 at p. 485.

⁹⁷ *Howgate v Bognail* [1951] 1 K.B. 265 at p. 274 per Barry J.

⁹⁸ *Billings v Reid* [1945] K.B. 11 at p. 17 per Lord Greene M.R. See also *Re Norman* [1893] 2 Q.B. 369.

CHAPTER 2

TREATMENT OF GENERAL WORDS

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SECTION 1 — WORDS UNDERSTOOD ACCORDING TO THEIR SUBJECT MATTER

THE words of a statute, when there is doubt about their meaning, are to be understood in the sense in which they best harmonise with the subject of the enactment and the object which the legislature has in view¹. Their meaning is found not so much in a *strictly* grammatical or etymological propriety of language, nor even in its popular use, as in the subject or in the occasion on which they are used and the object to be attained. It is not because the words of a statute or the words of any document read in one sense will cover the case that that is the right sense. Grammatically, they may cover it but whenever a statute or document is to be construed it must be construed not according to the *mere* ordinary general meaning of the words but according to the *ordinary* meaning of the words as applied to the subject matter with *regard* to which they are used unless there is something which renders it necessary to read them in a sense which is not their ordinary *sense* in the English language as so applied². This is evident enough in a simple case of a word which has two totally different meanings. The Statute of Provisors (25 Ed 3 st 5, c 22), for instance which forbade ecclesiastics to purchase provisions at *foreign* would be construed as referring to those papal grants of *provisions* in England.

which were called by that name and not to food when it was seen that the object of the Act was not to prevent ecclesiastics from living in Rome but to repress papal usurpations *

The 'vagabond' of the Vagrancy Act, 1824 (c 83), is not necessarily the mere wanderer of strict etymology *. Nor is a person making a bona fide collection in the street for a charitable object a beggar within the mischief of section 3 of the Vagrancy Act *

No one is likely to confound the piracy of the high seas with the piracy of copyright or to give in one branch of the law the meaning which would belong in another to a host of familiar words such as accept assure issue settlement

In section 21 of the Succession Duty Act 1853 (c 51) which provided that the instalments of duty payable by a successor should cease at his death, except when he was 'competent to dispose by will of a continuing interest in the property, the competency intended was obviously not mental sanity or freedom from personal incapacity but the possession of an estate of inheritance which was capable of disposition by will *

The Gasworks Clauses Act 1847 (c 15) did not by calling the debt due for gas rent authorise a distress for the debt under the repealed Bankruptcy Act 1869 (c 71) s 34, which regulated the power of distress of a landlord or other person to whom rent is due by the bankrupt *

The Mutiny Acts which exempt soldiers from the payment of tolls over bridges would not carry the exemption to a steam ferry boat because it is called a floating bridge *

* 1 Bl Comm (ed 1770) 60 See also Statute of Praemunire (16 Rich 2 c 5)

* *Monck v Hilton* (1877) 3 Ex D 268 *R v Dickinson* [1917] 2 K B 393

* *Mathers v Penfold* [1915] 1 K B 514

* *Att Gen v Hallett* (1857) 27 L J Ex 89 As to a judgment being final *Ridsdale v Clifton* (1877) 2 PD 276 *Ex p Moore* (1865) 14 QBD 627 *Ex p Grimwade* (1886) 17 QBD 357 *Re Henderson* (1888) 20 QBD 509 *Onslow v I R C* (1890) 25 QBD 465 *Salaman v Warner* [1891] 1 QB 734 *Re Alexander* [1897] 1 QB 216 *Re Binstead* [1893] 1 QB 199 *Re A Bankruptcy Notice* [1895] 1 QB 609

* *Ex p Hill* (1877) 6 Ch D 63 See *Ex p Harrison* (1884) 13 QBD 753 *Re Peake* (1884) 13 QBD 753 As to tolls in Railway Acts see cases collected in judgment of Field J *Brown v G W Ry* (1882) 9 QBD 750 See also *North Central Wagon Co v Manchester S & L Ry* (1886) 32 Ch D 477 (1887) 35 Ch D 191 (1888) 13 App Cas 554 As to water rate see *Badcock v Hunt* (1888) 22 QBD 145 *Floyd v Lyons* [1897] 1 Ch 633 *Haslett v Sharman* [1901] 2 Ir R 433 439

* *Ward v Gray* (1865) 34 L J M C 146

Section 6 of the Poor Relief Act, 1815 (c 137) which prohibited parish officials from being concerned in contracts for supplying goods materials or provisions for the use of the workhouse, meant for the use of the persons in the workhouse, and therefore did not apply to a contract for the supply of materials for the repair of the building¹⁰

Section 1 (2) of the now repealed Courts (Emergency Powers) Act, 1939 (c 67) which required the leave of the court to be obtained before the exercise by any person of a remedy available to him by way of (*inter alia*) the levying of distress did not require leave to be obtained before the levy of a distress on cattle damage feasant¹¹ This is too plain to need further illustration

Words used in Popular Sense

In dealing with matters relating to the general public, statutes are presumed to use words in their popular sense *uti loquitur vulgus*¹² But when dealing with particular businesses or transactions words are presumed to be used with the particular meaning in which they are used and understood in the particular business in question¹³ that meaning being rejected, however as soon as the judicial mind is satisfied that another is more agreeable to the object and intention¹⁴ Thus the Land Tax Acts 1797 and 1798 (c 5 and c 60) which exempted 'hospitals' from the land tax, were construed as applying to all establishments popularly known by that designation and even as extending to an asylum for

¹⁰ Repealed in part as to s 6 by the Poor Law Amendment Act 1868 (c 122) s 440 *Barber v Waite* (1834) 1 A & E 514

¹¹ *Watkinson v Hollington* [1944] 1 KB 16 CA

¹² *The Fusilier* (1865) 34 L J P M & A 27 per Dr Lushington See e.g. *Pitts v Millar* (1874) L R 9 Q B 380 *Grenfell v I R C* (1876) 1 Ex D 242 *Gordon v Jennings* (1882) 9 Q B D 45 46

¹³ Lord Esher M R *Unwin v Hanson* [1891] 2 Q B 119 and *The Dunelm* (1884) 9 P D 171 Grot b 2 c. 16 s 3 Vattel b 2 s 276 *Hunter v Clare* [1899] 1 Q B 635 (physician in technical sense) *Evans v Stevens* (1791) 4 T R 462 per Lord Kenyon *Morrall v Sutton* (1844) 14 L J Ch 266 *Doe v Jesson* (1805) 2 Bligh 2 *Doe v Harvey* (1825) 4 B & C 610 *Abbott v Middleton* (1858) 7 H L C 68 *The Pacific* (1864) 33 L J P M & A 120 See *Boulcault v Chatterton* (1877) 5 Ch D 275 per James L J *Re Spackman* (1890) 24 Q B D 728 *Re Hughes* [1893] 1 Q B 595 *Ravner v Rayner* [1904] 1 Ch 176 note p 191

¹⁴ *Roddy v Fitzgerald* (1858) 6 H L C 877 per Lord Wensleydale *Pelham Clinton v Newcastle (Duke of)* [1902] 1 Ch 34 CA affirmed [1903] A C 111 H L *Towns v Wentworth* (1858) 11 Moore P C 543 *Borss v C P R* [1953] 1 All E R 451

orphans¹⁵ when it appeared more consonant to the object of the Act to give it that wider meaning than to restrict it to what are alone hospitals in the strict legal sense of the term that is, eleemosynary institutions in which the persons benefited form a corporate body¹⁶

The power given in the Highway Act, 1835 (c 50) s 65, to a surveyor to lop trees growing near a highway, was construed in the popular sense as confined to cutting off lateral branches and not extending to topping¹⁷

An Act which privileged a bankrupt from arrest for debt was, on the same principle extended to arrests for non payment of money ordered to be paid by an order of the Court of Chancery, or by a rule of a common law court, though technically not constituting a debt

The provision of the repealed section 18 (8) of the Bankruptcy Act 1883 (c 52) which made a composition binding on creditors as regards any debts due to them from the debtor and provable in bankruptcy was held to apply to any contingent liabilities which would be released by an order of discharge¹⁸

Words in statutes are not infrequently construed in their popular and not in their technical meaning Thus, when it was enacted by the Marriage Act 1835 (c 54) that marriages already celebrated between persons within prohibited degrees should not be annulled for that cause unless by sentence pronounced in a suit then depending it was held that this last word was to be understood in a popular and not in a technical sense and that a suit was depending as soon as the citation had been issued and not only when the court begins *cognoscere causam*¹⁹

The payment of a fixed sum in each and every calendar month was held to be the payment of an annual sum within the meaning

¹⁵ *Colchester v Kewney* (1867) L.R. 1 Ex 368 L.R. 2 Ex 253 See *R v Manchester* (1821) 4 B & Ald 504 For a similar construction of almshouse see *Mary Clark Home v Anderson* [1904] 2 K.B. 645 On the other hand charitable institution is to be given its technical legal meaning *Adamson v Melbourne and Metropolitan Board of Works* [1929] A.C. 142

¹⁶ *Sutton's Case* (1627) 10 Rep 31a As to what is a hospital within Poor Removal Act 1846 (c 66) s 1 see *Ormskirk Union v Chorlton Union* [1903] 2 K.B. 498 *Ormskirk Union v Lancaster Union* (1913) 107 L.T. 620

¹⁷ *Unwin v Honson* [1891] 2 Q.B. 115 See now Highways Act 1959 (c 25) s 120

¹⁸ *Flint v Barnard* (1889) 22 Q.B.D. 90 *Hardy v Fothergill* (1888) 13 App.Cas. 351 *Re Craig's Claim* [1895] 1 Ch. 267

¹⁹ *Sherwood v Ray* (1837) 1 Moo 365 385 See *Ditcher v Denison* (1858) 11 Moo P.C. 324 *Beardsley v Giddings* [1904] 1 K.B. 847

of the Income Tax Act, 1853 (c 34), and therefore to be subject to income tax ²⁰

Where under the constitution of an association, originally founded in 1861, there were frequent changes of membership, technically amounting to the formation of partnerships after 1862, it was held that as the association was 'formed' within section 4 of the Companies Act 1862 (c 89) before the passing of the Act, the expression must be taken in its popular sense ²¹

Section 95 of the Highway Act, 1835 (c 50) ²² which authorised the court before which a road indictment was 'preferred' to give the prosecutor costs, was held to confer authority to award them on the judge who tried the indictment at Nisi Prius, even after its removal into the Queen's Bench, ²³ for the technical meaning of the word 'preferred' would have rendered the Act nugatory in a large majority of cases, road indictments being rarely tried at the assizes at which they are 'preferred' ²⁴

Where judgment was 'recovered' for £500 on a warrant of attorney to secure an annuity of £30, of which only £15 was due it was held that the defendant was protected from arrest by the enactment that no person should be taken in execution on a judgment where the sum recovered does not exceed £20. Though technically the judgment was 'recovered' for the larger sum the sum really recovered was under £20 ²⁵

The Railway Clauses Consolidation Act, 1845 (c 20) s 32, which, while giving companies power to take land for temporary purposes, provided that they should not be exempted from 'an action' for nuisance or other injury, was construed as not limited to what were technically 'actions', but as including all proceedings whether at law or in equity ²⁶

²⁰ *Re Cooper* (1917) 88 L.J.Ch. 105 see Income Tax Act 1952 (c. 10) Sched. D Case III

²¹ *Shaw v Simmons* (1844) 12 Q.B.D. 117 See Companies Act 1948 (c. 38) s 429

²² Repealed as to costs by Costs in Criminal Cases Act 1903 (c 15) s 10 and Schedule See now the Costs in Criminal Cases Act 1952 (c. 48) s 18 (2)

²³ *R v Pembroke* (1842) 12 L.J.Q.B. 47 259 *R v Preston* (1839) 7 Dowl. 593 *R v Papworth* (1802) 2 East 413 *R v Ipstones* (1868) L.R. 3 Q.B. 216

²⁴ *R v Ipstones* (1868) L.R. 3 Q.B. 216 at p. 219 per Cockburn C.J.

²⁵ Execution Act 1844 (c 96) s. 57 repealed by the Bankruptcy Repeal Act, 1869 (c 83) s 20 and Schedule See under repealed Act *Johnson v Harris* (1855) 24 L.J.C.P. 40

²⁶ *Fennick v East London Ry* (1875) L.R. 20 Eq. 544 'Action' as used in s. 1 Public Authorities Protection Act 1893 (c 61) has been similarly construed *Harrop v Oseff (Mayor)* [1898] 1 Ch. 525 *Fielden v Morley Corp* [1900] A.C. 133 See now Law Reform (Limitation of Actions) Act, 1954 ss. 1-3

Where the quarter sessions were empowered to order 'the party against whom an appeal was decided,' to pay the costs of the successful party it was held that the prosecutor who had procured the conviction successfully appealed against was for this purpose the party appealed against, though he was not so on the record or formally nor even being served with notice of the appeal²⁷ The convicting justices were not the parties appealed against though the Act required that the notice of appeal should be served on them

Even the word *party* has received the sense in which it is sometimes vulgarly used of *person* when it is plain that Parliament so intended it as in the repealed Court of Chancery Act 1852 (c 86) s 40 which enacted that any "party" who made an affidavit in a suit should be liable to cross examination²⁸

Although the word *children* is generally confined to legitimate children²⁹ it would be construed as including illegitimate children when such seemed to be more consonant to the intention Thus, the Clandestine Marriages Act, 1753 (c 33) (repealed by the Marriage Act, 1823 (c 76)), which declared void the marriage of minors without the consent of their parents or guardians was held to apply to illegitimate children since clandestine marriages by them were within the mischief which it was the object to remedy³⁰, and the Abduction Act 1557 (c 8), s 3³¹ which made it penal to take an unmarried girl under 16 from the possession of her parents against their will was held to apply to the taking of a natural daughter from her putative father³²

Five miles square was taken in its popular rather than strictly mathematical sense as an area equal to five miles square³³

A limited company incorporated under the Companies Acts is not a company incorporated by Act of Parliament³⁴

²⁷ *R v Hants JJ* (1840) 9 L J M C 109 *R v London JJ* [1895] 1 Q B 616 at p 631

²⁸ *Re Quart Hill Co* (1882) 21 Ch D 642

²⁹ *R v Helton* (1747) Burr S C 187 *R v Birmingham* (1846) 8 Q B 410 *R v Maude* (1842) 65 R R 753 *Hill v Crook* (1873) L R 6 H L 265 *Dickinson v N E Ry* (1864) 33 L J Ex 91 *per Pollock CB* *Dorin v Dorin* (1876) L R 7 H L 568 The word *son* means *prima facie* legitimate son *Re Makein* [1955] Ch 194

³⁰ *R v Hodnett* (1786) 1 T R 96 *R v St Giles* (1847) 11 Q B 173 *R v Brighton* (1861) 30 L J M C 197

³¹ Repealed by the Offences against the Person Act 1828 (c 31) s 1

³² *R v Cornforth* (1742) 2 Stra 116 *Dorin v Dorin* (1876) L R 7 H L 568 *Dickinson v N E Ry* (1864) 33 L J Ex 91

³³ *Robertson v Day* (1879) 5 App Cas 63 69

³⁴ *Re Smith* [1896] 2 Ch 590 See however *Elve v Boyton* [1891] 1 Ch 501

In a Customs Act which imposes duties on imported commodities the articles specified, such as 'spirits' would generally be understood in their known commercial sense³⁵

Bohea tea was understood to mean not the pure and unadulterated article to which the name strictly belongs, and which alone is known by it in China, but all teas usually bought and sold at home as Bohea³⁶

So to take an illustration from a contract a fire policy which limited the responsibility of insurers to explosions by gas was construed as referring only to that kind of gas which was popularly known by that term viz., common illuminating gas³⁷

Where a statute applied to the United Kingdom and the technical meaning of words differed in the different parts of the kingdom, the language would be taken in its popular sense³⁸

Before magistrates can find that a girl of 14 years of age is a child within the meaning of regulation 22 (11) of the Defence (General) Regulations 1939 it is not necessary to have some statutory definition making her a child. In the ordinary use of the English language a person of 14 years of age is a child³⁹

The ordinary use of the English language has been held to prevail as regards money and common soldier. Money was treated as meaning what the testatrix obviously intended and not what a series of judgments had established as the technical significance of the term⁴⁰. Common soldier was taken to be one who fights for his country and not necessarily one who is paid for doing so a *solidarius*⁴¹

The word debts has also been given its popular meaning⁴²

³⁵ *Att Gen v Bailey* (1847) 1 Ex 281 *Bailey v Harris* (1849) 12 Q B 905

³⁶ *Two Hundred Chests of Tea* (1824) 9 Wheat 430 see also *Gun Webb v Knight* (1877) 2 Q B D 530 *Grain Cotton v Logan* [1896] A C 457

³⁷ *Stanley v Western Ins Co* (1868) L R 3 Ex 71 *The Knight of St Michael* [1898] P 30 See as to covenant not to carry on the business of a beerhouse *Holt v Collyer* (1881) 16 Ch D 718 *London and Suburban Land Co v Field* (1881) 16 Ch D 645 and *Nicoll v Fenning* (1882) 19 Ch D 258

³⁸ *Saltoun v Advocate General* (1860) 3 Macq 659 *Macfarlane v Lord Advocate* [1894] A C 307 *Income Tax Commissioners v Pemsel* [1891] A C 531 per Lord Halsbury in a dissenting judgment at p 548 cited by Viscount Simon in *Income Tax Commissioners v Gibbs* [1942] A C 402 414 See also *London County Council v South Metropolitan Gas Co* [1904] 1 Ch 76 C A

³⁹ *Rodger v Larey* [1942] 1 K B 508 Child means infant child in the Naturalization Act 1870 (c 14) s 10 *Re Carlton* [1945] Ch 372

⁴⁰ *Perrin v Morgan* [1943] A C 399

⁴¹ *Blyth v Lord Advocate* [1945] A C 32 (Home Guard held to

⁴² *Re Pascoe* [1944] Ch 219

Meaning at the Time the Statute was Passed

The words of a statute will, generally, be understood in the sense which they bore when it was passed ⁴³ For instance, a private Act (6 & 7 Wm 4, ch c s 8) which provided that 'no action in any of His Majesty's Courts of Law' should be brought against certain shipowners without a month's notice has been held not to apply to proceedings in the Admiralty Division of the High Court of Justice for when the Act was passed the Admiralty court was not called, and was not one of His Majesty's Courts, nor were the proceedings there called an action ⁴⁴

The same rule has been applied in the case of *The Burns* in which it was held that the six months limitation prescribed by the Public Authorities Protection Act 1893 (c 61) s 1 (a) did not apply to an Admiralty action *in rem* ⁴⁵

In a Consolidation Act it will be found that the language bears the meaning attached to it in the original enactment For instance the provision in the Sheriffs Act 1887 (c 55) s 14 requiring sheriffs officers not to take arrested persons to prison for 24 hours applies only to arrests on mesne process or Crown debts, such being the construction given to the original enactment the Debtors Imprisonment Act, 1758 (c 28) ⁴⁶

Words in Accord with Intention

It is in the interpretation of general words and phrases that the principle of strictly adapting the meaning to the particular subject matter with reference to which the words are used finds its most frequent application However wide in the abstract they are more or less elastic and admit of restriction or expansion

⁴³ *Gas Light and Coke Co v Hardy* (1886) 17 Q B D 621 *per* Lord Esher M R. *Sharpe v Wakefield* (1889) 22 Q B D 242 [1891] A C 173 *R v Woodhouse* [1906] 2 K B 501 530 *Read v Lincoln (Bp)* [1892] A C 644

⁴⁴ *The Longford* (1889) 14 P D 34 *St Cross v Howard de Walden* (1795) 6 T R 338 *see now* Law Reform (Limitation of Actions etc) Act 1954 (c. 36) *see also* Chap 11 Secs. 1 and 6 How far this applies to new things *see* p 76

⁴⁵ [1907] P 137 *Mitchell v Aberdeen Insurance Committee* (1918) W C. & Ins C 206 Ct Sess. (Sc.) *Bradford Corp'n v Myers* [1916] 1 A C. 242 11 L. (E) *R v Port of London Authority ex p Aynock* [1919] 1 K B 176 C A The Act has now been repealed

⁴⁶ *Mitchell v Simpson* (1890) 25 Q B D 183 *Re Smith Hands v Andrews* [1893] 2 Ch 1 C A. *Smith v Baker* [1891] A C. 349 *per* Lord Watson *Bank of England vagliano* [1891] A C 144 *per* Lord Herschell *See also* p 24 *ante*

to suit the subject matter. While expressing truly enough all that the legislature intended, they frequently express more in their literal meaning and natural force and it is necessary to give them the meaning which best suits the scope and object of the statute without extending to ground foreign to the intention. It is, therefore, a canon of interpretation that all words if they be general and not express and precise are to be restricted to the fitness of the matter.⁴⁷ They are to be construed as particular if the intention be particular⁴⁸, that is, they must be understood as used with reference to the subject matter in the mind of the legislature and limited to it.

Thus, enactments which related to "persons" would be variously understood according to the circumstances in which the word was used as including or not including corporations⁴⁹ and again according to the circumstances, as limited to persons born in the King's allegiance, or as including all foreigners actually within the British dominions⁵⁰ or in British ships on the high seas⁵¹ or only persons domiciled in those dominions⁵².

Under the repealed Licensing Act 1872 (c. 94) s. 3, no person might sell intoxicating liquor without a licence and 'any person' selling without a licence was made subject to penalties, but it was held that the sale prohibited was restricted to a sale by a person who ought to be licensed and did not apply to a servant who sold liquor the property of his master, by his master's orders.⁵³

⁴⁷ *Bac. Max.* 10 *Wandsworth Board of Works v. United Telephone Co.* (1884) 13 Q.B.D. 904, 920.

⁴⁸ *Stradling v. Morgan* (1560) Plowd. 204. *Bradlaugh v. Clarke* (1883) 8 App. Cas. 354, 372. *Cox v. Hakes* (1890) 15 App. Cas. 506. *Viscountess Rhonda's Claim* [1922] 2 A.C. 339.

⁴⁹ *R. v. Gardner* (1774) Cowp. 79. *R. v. York* (1837) 6 A. & E. 419. *R. v. Beverley Gas Co.* (1837) 6 A. & E. 645. *Pharmaceutical Soc. v. London Supply Assoc.* (1880) 5 App. Cas. 857. *St. Leonard's v. Franklin* (1878) 3 C.P.D. 377. *Hirst v. West Riding Union Banking Co. Ltd.* [1901] 2 K.B. 560. *C.A. R. v. Minister of Agriculture and Fisheries ex p. Graham* [1955] 2 Q.B. 140. *C.A. By s. 19 of the Interpretation Act 1889 (c. 63)* person includes any body corporate or unincorporate unless the contrary intention appears (see Appendix). See also *Stroud's Judicial Dictionary* and Supplement tit. Person.

⁵⁰ *Courteen's Case* (1618) Hob. 270. *Nga Hoang v. R.* (1857) 7 Cox 489. *Low v. Routledge* (1868) L.R. 1 Ch. 42. *per Turner L.J.*

⁵¹ *Davidson v. Hill* [1901] 2 K.B. 606.

⁵² *Wilson v. Marryat* (1798) 8 T.R. 31. *The Indian Chief* (1800) 3 C. Rob. 12. *Croker v. Marquis of Hertford* (1844) 4 Moore P.C. 339, 361.

⁵³ *Williamson v. Norris* [1899] 1 Q.B. 7. *Boyle v. Smith* [1906] 1 K.B. 432. *Tilmes v. Littlewood* [1916] 1 K.B. 272.

In the Merchant Shipping Act, 1854 (c 104) ⁵⁴ which provided for the recovery of wages by 'persons belonging to a ship,' this expression would obviously be confined to persons employed in its service on board while in a statute which related to the salvage of 'persons belonging to the ship' it would as obviously include passengers as well as crew ⁵⁵

The Fraudulent Conveyances Act, 1571 (c 5) s 1, which made void as against creditors, all voluntary alienation of 'goods' was held to apply only to such goods as were liable to be taken in execution as the object of the Act was to prevent such property from being withdrawn from the reach of creditors. Consequently the word 'goods' was held not to include choses in action, so long as these were not subject to execution ⁵⁶. But the same word was held to include them in the reputed ownership clauses of former Bankruptcy and Insolvency Acts ⁵⁷ as they were deemed to fall within the specific object of the legislature which was to protect creditors against being deceived by an apparent ownership of property.

A bungalow constructed of wood and corrugated iron erected on a piece of land for exhibition and sale but not used or occupied or intended to be used or occupied on the spot on which it was erected, though clearly a wooden structure or erection of a movable or temporary character was held to be not within the meaning of those words in section 13 Metropolis Management and Building Acts Amendment Act 1882 (c 14) and not to require a licence in writing from the County Council for its erection. The Act was not aimed at such a structure ⁵⁸.

Damage caused by a ship to a pier or by the mainsail gear of a barge coming in contact with a pile driving engine fixed on a wharf as the barge was sailing past would not be damage by

⁵⁴ Repealed Merchant Shipping Act 1894 (c 60) Sched 22

⁵⁵ *The Fusilier* (1865) 3 Moore P C (N s) 51. *The Cybele* (1878) 3 P D 8. *The Renpor* (1883) 8 P D 115 C A

⁵⁶ *Dundas v Dutens* (1790) 1 Ves Jun 196. *Rider v Kidder* (1805) 10 Ves 360. *Norcutt v Dodd* (1841) Cr & Ph 100. *Sims v Thomas* (1840) 12 A & E 536. See now Law of Property Act 1925 (c 20) s 172. For other cases held not within the statute see *Trustee of Denny* [1919] 1 K B 583. *Pearce v Bulleel* [1916] 2 Ch 544. See herein Judgments Act 1838 (c 110) s 12.

⁵⁷ *Ryall v Rowles* (1750) 1 Ves Sen 367. *Ex p Baldwin* (1858) 27 L J Bank 17. *Insolvency of Re Mufferidge* (1860) 29 L J Ch 288 and *R v Saddlers Co* (1863) 10 H L Cas 404. See also as to goods notes 6 7 8 p 68 post.

⁵⁸ *L C C v Humphreys* [1894] 2 Q B 755. Cf *Westminster Council v L C C* [1902] 1 K B 376. See now London Building Act 1930 (c clviii) s 91.

collision within the meaning of the County Courts Admiralty Jurisdiction Acts, 1868 (c 71) s 3 and 1869 (c 51) s 4⁵⁹

In Bankruptcy Acts the word creditor is found to be limited usually, to persons who are creditors at the time of the bankruptcy and entitled to prove under it⁶⁰ and the Larceny Act, 1868 (c 116) s 1 which made it a criminal offence for any member of a co partnership to embezzle the moneys belonging to it, has been held not to apply to the case of an association having for its object not the acquisition of gain but the spiritual and mental improvement of its members⁶¹

The complex term inhabitant may be cited as having frequently furnished illustration of this adaptation of the meaning of what appears to suit most exactly the object of the Act In the abstract the word would include every human being dwelling in the place spoken of A right of way over a field to the parish church granted to the inhabitants of a parish would include every person in the parish⁶² But where the object of an Act was to impose a pecuniary burden in respect of property in the locality (as in the case of the Statute of Bridges (22 Hen 8 c 5) which threw the burden of making and repairing bridges on the inhabitants of the town or county in which they are situated and in the Riot and Black Acts⁶³) the expression would be construed as comprising all holders of lands or houses in the locality whether resident or not and corporate bodies as well as individuals but as excluding actual dwellers who had no rateable property in the place such as servants it being infinite and impossible to tax every inhabitant who is not a householder and who could not be distrained upon for non payment and therefore highly improbable that the legislature intended to tax them⁶⁴

⁵⁹ *Robson v The Kate* (1888) 21 Q B D 13 *The Normandy* [1904] P 187 *The Upcerne* [1912] P 160 See now Administration of Justice Act 1956 (c 46) s 1

⁶⁰ *Grace v Bishop* (1856) 11 Ex 424 *Re Poland* (1886) L R 1 Ch 356 Bankruptcy Act 1883 (c 52) s 48 (repealed Bankruptcy Act 1914 (c 59) and re-enacted by s 44 of that Act as to which see *Bullell and Colmore v Trustee in Bankruptcy* (1916) 32 T L R 661 *Re Rooker* [1916] W N 293) *Ex p Paine* [1897] 1 Q B 122 *Re Blackpool Motor Car Co* [1901] 1 Ch 77

⁶¹ *R v Robson* (1885) 16 Q B D 137 *Cf R v Tankard* [1894] 1 Q B 548 See now Larceny Act 1916 (c 40) s 40 (4)

⁶² *R v Mashiter* (1837) 6 A & E 165 6 L J K B 121 *per Littledale J* *R v Davis* (1837) 6 A & E 374

⁶³ *R v North Curry* (1825) 4 B & C 958 *per Bayley J*

⁶⁴ 2 Inst. 702 *R v North Curry* (1825) 4 B & C 958 *per Bayley J*

On the other hand where the object is to impose the performance of a personal service within the locality, the word 'inhabitant' would probably be construed as not comprising either corporate bodies or non resident proprietors. Thus, it was held that a person who occupied premises in one parish and carried on his business in person there, but resided in his dwelling house in another, was not an inhabitant of the former parish so as to be bound to serve as its constable⁶⁵. An Act which authorised the imposition of a rate on all who 'inhabited or occupied' any land or house and the appointment of a number of "inhabitants to collect the rates, was held to throw the latter duty only on actual dwellers in the locality⁶⁶. But here the word "occupied" would suggest a meaning for inhabitants distinct from 'occupiers'. A furnished house, not lived in during the year of assessment is an "inhabited dwelling house" and assessable to inhabited house duty⁶⁷.

Again another meaning would be given to the same expression where the object was to determine the settlement of a pauper, or the qualification of an elector. In those cases, a person is an inhabitant or resident in the place in which he usually sleeps⁶⁸. What amounts to inhabitancy in this sense it is impossible to define. Sleeping in a place once or twice does not constitute it, and on the other hand such residence generally in a place in this sense is quite compatible with much absence from it⁶⁹. But if an Act requires residence for a certain time at least, as a qualification it would be understood to make actual bodily presence in the place

⁶⁵ *R v Adlard* (1825) 4 B & C 772. *R v Nicholson* (1810) 12 East 330. *Williams v Jones* (1811) 12 East 346. Cf. *Wethered v Calcutt* (1842) 5 Scott N.R. 409.

⁶⁶ *Donne v Martyr* (1823) 8 B & C 62.

⁶⁷ House Tax Act 1851 (c 36) s 1 repealed Finance Act 1924 c 21. *Smith v Dauney* [1904] 2 K.B. 186. This case is still good law.

⁶⁸ *St Mary v Radcliffe* (1717) 1 Stra. 60 per Parker C.J. *R v Charles* (1772) Burr Set C 706. *R v Stratford* (1809) 11 East 176. *R v Mildenhall* (1820) 3 B & Ald 374. *Beal v Ford* (1878) 3 C.P.D. 73. *Ford v Drew* (1880) 5 C.P.D. 59. *Riley v Read* (1879) 4 Ex.D. 100. *Art Gen v Parker* (1747) 3 Atk. 577 per Lord Hardwicke L.C. *Gr Yarmouth Union v Bethnal Green Union* (1907) 97 L.T. 440. *Tewkesbury Union v Upton on Severn Union* (1913) 83 L.J.K.B. 37. *Daventry Union v Coventry Union* (1917) 86 L.J.K.B. 276.

⁶⁹ *R v Mitchell* (1818) 10 East 518. *Wescomb's Case* (1869) L.R. 4 Q.B. 110. *Taylor v St Mary Abbots* (1871) L.R. 6 C.P. 309. *Bond v St George's* (1871) L.R. 6 C.P. 314. *Whithorne v Thomas* (1845) 7 M. & Gr. 1. *Ford v Pye* (1874) L.R. 9 C.P. 269. *McDougal v Paterson* (1851) 11 C.B. 755. *Dunston v Paterson* (1859) 28 L.J.C.P. 185. *Spittall v Brook* (1887) 18 Q.B.D. 426. *Beal v Town Clerk of Exeter* (1888) 20 Q.B.D. 300 and cases there cited. *Donoghue v Brook* (1883) 57 L.J.Q.B. 122. *Gr Yarmouth Union v Bethnal Green Union* (1907) 97 L.T. 440.

for that time indispensable, as was held in the construction of the Act constituting the congregation of the University of Oxford⁷⁰

The same expression has received another meaning where the object of the Act was to preserve information regarding the place where a person was to be found at times when it was most likely that he should be sought as in the enactments which require a solicitor to indorse his "place of abode" on the summons which he issues, or the witness to a bill of sale to add to his signature a description of his occupation and "residence". In these cases it has been held, considering the object which the legislature had in view, that the place of business constituted the abode or residence intended⁷¹. But in general the place of business of a person would not be regarded as his "place of abode"⁷². It has been held to be his "address" as a witness to a bill of sale under sections 8-9 and schedule of the Bills of Sale Act 1882 (c 43)⁷³ but not to be his "address" for indorsement on a writ as plaintiff in an action⁷⁴.

A clerk or servant does not "carry on business" in the place where he is employed within the meaning of the Acts giving jurisdiction to county and other courts over persons who dwell or carry on business within their limits,⁷⁵ but the words would receive a wider meaning when the object of the enactment had reference to the distribution of business between different Bankruptcy Courts⁷⁶.

Under the provisions of the County Courts Acts which gave the Superior Courts concurrent jurisdiction when the parties dwelt more than twenty miles apart the principal office of a railway company was its dwelling⁷⁷ but not its other offices or stations⁷⁸. But the manufactory or shop where the business is substantially

⁷⁰ *R v Oxford (V C)* (1872) L R 7 Q B 471

⁷¹ *Thorp v Browne* (1867) L R 2 H L 220

⁷² *R v Hammond* (1852) 17 Q B 772. *R v Deighton* (1844) 13 L J Q B 241. *R v Coward* (1851) 20 L J Q B 359

⁷³ *Simmons v Woodward* [1892] A C 100. *Brandon Hill Ltd v Lane* [1915] 1 K B 250. *Re Boddington* (1915) 84 L J K B 2119

⁷⁴ *RSC Ord 4 r 1*. *Stey v Rees* (1890) 24 Q B D 748. In Ireland a magistrate suing in his official capacity may use his official place of business. *R v Co Tyrone JJ* [1901] 2 Ir R 497

⁷⁵ *Graham v Lewis* (1889) 22 Q B D 1 C A. See C C R 1936 Ord 2 r 1

⁷⁶ *Exp Breull* (1880) 16 Ch D 484

⁷⁷ *Adams v G W Ry* (1861) 30 L J Ex 124. *Taylor v Crowland Gas Co* (1854) 11 Ex 1. *Minor v L & N W Ry* (1857) 26 L J C P 39

⁷⁸ *Shiels v G A Ry* (1861) 30 L J Q B 331. *Brown v L & N W Ry* (1863) 32 L J Q B 318

carried on and not its registered office, is the dwelling within the meaning of the same provision, of a manufacturing company⁷⁹

For fiscal purposes a corporation is regarded as residing where the governing body carries on the supreme management, though the scene of its operations and sources of profit and even the majority of the shareholders, are out of the country, and though it has a foreign domicile and is registered abroad⁸⁰ A foreign corporation which had any establishment in this country would for the same purpose be considered as resident here, as regards the question of jurisdiction⁸¹

On the other hand, it was decided by the Court of Appeal in *Okura & Co v Forsbacka Jernverks Aktiebolag*⁸² in which it was held that a London firm of merchants who acted as agents for various firms including the defendants, did not so represent their principals as to constitute service upon them of a writ a valid service on their principals

Again the word 'occupier' has received different meanings varying with the object of the enactment Ordinarily the tenant of premises is the occupier of them although he may be personally absent from them⁸³ while a servant or an officer who is in actual occupation of premises *virtute officii* would not be an occupier⁸⁴ But in the Bills of Sale Act 1854 (c 36) (repealed by section 23 of the Bills of Sale Act 1878 (c 31)) which provided that personal chattels should be deemed in the possession of the grantor of a bill of sale so long as they were on the premises occupied by him actual personal occupation and not merely tenancy was intended and therefore the owner of chattels in rooms which he did not personally occupy was not in the apparent possession

⁷⁹ *Kevnsham v Baker* (1864) 33 L J Ex 41 *Aberystwith Pier Co v Cooper* (1865) 35 L J Q B 44

⁸⁰ *Newby v Colt's Arms Co* (1872) L R 7 Q B 293 *Haggin v Comptoir d'Escompte* (1889) 23 Q B D 519 *Carron Iron Co v Maclaren* (1855) 5 H L C 459 See *Att Gen v Alexander* (1875) L R 10 Ex 20

⁸¹ *Cesena Sulphur Co v Nicholson* (1876) 1 Ex D 478

⁸² [1914] 1 K B 715 C A

⁸³ *R v Poynder* (1823) 1 B & C 178 1 L J (os) K B 65 and see *R v Spurrell* (1866) L R 1 Q B 72 *R v St Pancras Ass't Com* (1877) 2 Q B D 481 *Re Garland* [1934] 1 Ch 670

⁸⁴ *Clark v Bury St Edmunds* (1857) 26 L J C P 12 *Bent v Roberts* (1878) 3 Ex D 66 *R v Spurrell* (1866) L R 1 Q B 72 *McClellan v Prichard* (1888) 20 Q B D 285

of them within that Act⁸⁵ A receiver and manager appointed by a debenture holder has been held to be the occupier of the mortgaged premises for the purposes of sections 130 and 133 of the Factories Act 1937 (c 67)⁸⁶

This restriction of meaning may be carried still further to promote the real intention and not exceed the object and scope of the enactment Thus an Act which reciting the inconveniences arising from churchwardens and overseers making clandestine rates enacted that those officers should permit every inhabitant of the parish to inspect the rates under a penalty for refusal was held not to apply to a refusal to one of the churchwardens, who was also an inhabitant As the object of the Act was limited to the protection of those inhabitants only who had previously no access to the rates (which the churchwardens had) the meaning of the term inhabitants was limited to them⁸⁷

In another case the majority of the judges of the Queen's Bench went further than the Chief Justice thought legitimate, in giving an unusual and even artificial meaning to a word so as to keep within the apparent scope of the Act The treaty between Great Britain and the United States of 1842, and the Extradition Act, 1843 (c 76),⁸⁸ which was passed to give the Executive the necessary powers for carrying its provisions into effect provided that each state should, on the requisition of the other deliver up to justice all persons who being charged with murder piracy or other crimes therein mentioned committed within the jurisdiction of either state should seek an asylum or be found within the territories of the other It was held that the word 'piracy' was confined to those Acts which were declared piracy by the municipal law of either country such as slave trading and did not include those which were piracy in the ordinary and primary sense of the word that is, *jure gentium* For as the latter offence was within the

⁸⁵ *Robinson v Briggs* (1871) L.R. 6 Ex 1 As to the word traveller see *Taylor v Humphreys* (1861) 30 L.J.M.C. 242 *Fisher v Howard* (1865) 34 L.J.M.C. 42 *Atkinson v Sellers* (1859) 28 L.J.M.C. 12 *Penn v Alexander* [1893] 1 Q.B. 522 As to lodger and occupier see *Bradley v Baylis* (1882) 8 Q.B.D. 195 210 *Morton v Palmer* (1887) 51 L.J.Q.B. 7 *Heawood v Bone* (1884) 13 Q.B.D. 179

⁸⁶ *Meigh v Wickenden* [1942] 2 K.B. 160 See also *Smith v Cammell Laird & Co* [1940] A.C. 242 and *Wilkinson v Rea* [1941] 1 K.B. 688 (occupier in Shipbuilding Regulations 1931)

⁸⁷ *Wethered v Calcutt* (1842) 5 Scott N.R. 409 See also *R v Mashiter* (1837) 6 L.J.K.B. 121 *R v Dane* (1837) 6 A. & E. 374

⁸⁸ Repealed by the Extradition Act 1870 (c. 52) s. 27

jurisdiction of all states and was triable by all and the offenders could not, consequently be said to seek an asylum in any state since none could be a place of safety for them that species of the crime was not within the mischief intended to be remedied by the treaty or the Act ⁸⁰

SECTION 2 — BENEFICIAL CONSTRUCTION

To Suppress the Mischief and Advance the Remedy

It is said to be the duty of the judge to make such construction of a statute as shall suppress the mischief and advance the remedy ⁸¹ Even where the usual meaning of the language falls short of the whole object of the legislature a more extended meaning may be attributed to the words if they are fairly susceptible of it The construction must not of course be strained to include cases plainly omitted from the natural meaning of the words ⁸² For instance the repealed Sunday Closing (Wales) Act, 1881 (c 61) s 1 which required that public houses should be closed at certain hours on Sundays was held incapable of being construed as extending to Christmas Day ⁸³

So it was held that a statutory rule ⁸⁴ directing that applications for new trials in cases tried by a jury should be made to the Court of Appeal could not be extended to cases tried by an official referee ⁸⁵

If, however there are circumstances in the Act showing that the phraseology is used in a larger sense than its ordinary meaning that sense may be given to it ⁸⁶ and where the object of a statute is the public safety, its wording may be interpreted widely to effect that object ⁸⁷ Thus the legislature having intended when passing

⁸⁰ *Re Ternan* (1864) 33 L J M C 201 See also *Att Gen (Hongkong) v Knock-sing* (1873) L R 5 P C 179

⁸¹ *Heydon's Case* (1584) 3 Rep 7b Lord Kenyon *Turtle v Hartwell* (1795) 6 T R 429 Cockburn C J *Twycross v Grant* (1877) 2 C P D 530 See e.g. *Re Dick* [1891] 1 Ch 476

⁸² *Ante* p 12

⁸³ *Forsythe v Colquhoun* (1883) 11 Q B D 71 See now Licensing Act 1953 (c 46) ss 102 103 112 (1)

⁸⁴ Judicature Act 1890 (c 44) s 1

⁸⁵ *Gower v Tobitt* (1891) 39 W R 193 See now Administration of Justice Act 1956 (c. 46) s 15

⁸⁶ *Barlow v Ross* (1890) 24 Q B D 381 at p 389 per Lord Esher M R and see *In the Goods of Groos* [1904] P 269

⁸⁷ See e.g. *Gardiner v Severnocks R D C* [1950] 2 All E.R. 84

the Workmen's Compensation Act, 1897 (c 37), that every workman in the prescribed trades should be entitled to compensation it was held that the Act ought to be construed, so far as possible, to give effect to its primary provisions⁹⁷

The repealed Merchant Shipping Act 1862 (c 63) s 54 (4) limiting the liability of shipowners where, among other things, the injury done was by reason of the improper navigation of their ships, extended to a case where a collision was due not to any default of the crew but to the breakdown of the steering gear through the negligence of engineers on shore who had improperly fixed it⁹⁸ It would extend to every case where the negligence was that of any person for whose negligence the owner was responsible

A young person whose work was partly indoor and partly outdoor the outdoor work being at some distance from the shop where he was employed was, when employed in outdoor work employed in or about a shop within the Shop Hours Act, 1892 (c 62)⁹⁹

To supply beer at a public house to a drunken man and his sober companion would be to sell liquor to the drunken man within the meaning of section 13 of the Licensing Act 1872 (c 94) although it was ordered and paid for by the sober companion¹

Acts which gave a 'single woman' who had a bastard child the right to sue the putative father for its maintenance were held to include in that expression not only a widow² but also a married woman living away from her husband³ for the general object of the Acts being to compel men to contribute to the support of their illegitimate offspring even a married woman living in circumstances incompatible with marital access, though not in popular language a

⁹⁷ *Lysons v Knowles* [1901] A C 79 *Fleming v Lochgelly Iron & Coal Co* (1902) 4 F 890

⁹⁸ *The Workworth* (1884) 9 P D 145 See Merchant Shipping Act 1894 (c 60) s 503

⁹⁹ *Collman v Roberts* [1896] 1 Q B 457 See also *Moyor of Wellington v Moyor of Lower Hutt* [1904] A C 773 But see *Kimberley W W Co v De Beers Mines* [1897] A C 515 *Re Bateman and Parker* [1899] 1 Ch 599 See now Shops Act 1950 (c 28)

¹ *Scotchford v Johnson* (1888) 57 L J M C 41 See now Licensing Act 1953 (c 46) s 136

² *Antony v Cordenham* (1700) 2 Bott 194 *R v Wymondham* (1843) 2 Q B 541

³ *R v Pilkington* (1853) 2 E & B 546 *sub nom Ex p Grimes* (1854) 22 L J M C 153 *R v Collingwood* (1848) 12 Q B 681 *R v Luffe* (1807) 8 East 193 Cf *Stacey v Lantell* (1879) 4 Q B D 291 *Jones v Davies* [1901] 1 K B 118 see also *Reigate Union v Croydon Union* (1889) 14 App Cas 465 *Jones v Evans* [1944] K B 582

single woman is nevertheless for the purposes of the Acts, and therefore in the contemplation of the legislature, as 'single as a woman who has no husband

Where, by section 141 Army Act, 1881 (c 58), assignment of or charges on pensions received by officers in respect of past services were forbidden but nothing was said in terms about executions or attachments it was held that those must be regarded as included otherwise the object to be effected viz to secure a provision which should keep the pensioners from want, and enable them to maintain a respectable social position would be frustrated⁴

A soldier who has gone into barracks with a view to being drafted to the seat of war is a soldier in actual military service within section 11 of the Wills Act 1837 (c 26)⁵

Dogs,⁶ horses cattle⁷ and shares in a limited company⁸ have by a beneficial construction been held to be 'goods' within the meaning of that word as used in certain statutes, while, on the other hand a linen bag was held not to be a case in which gunpowder could be carried to satisfy the requirements of the Metalliferous Mines Regulation Act, 1872 (c 77) s 23 that explosives shall not be taken into a mine except in a case or canister as such a case would not effect the object of the statute by affording protection against ignition from sparks⁹

An English trade mark and goodwill are property within the Stamp Act 1891 (c 39) s 59 and so is a share in a colonial patent¹⁰

On similar grounds the enactment in the repealed Artisans and Labourers Dwellings Improvement Act 1875 (c 36) s 20,

⁴ *Lucas v Harris* (1887) 18 Q B D 127 *Re Saunders* [1895] 2 Q B 117 4 4

⁵ *Re Hiscock* [1901] P 78 *Gattward v Knee* [1902] P 99 *Re Kitchen* (1919) 35 T L R 612 *Re Stable* [1919] P 10 *Re Thomas Estate* (1918) 34 T L R. 6 6 *Re Tollemoche's Estate* [1917] P 246 *Re Heywood's Estate* [1916] P 47 *Re Anderson's Estate* [1916] P 49 *Re Hale* [1915] 2 I R 362 See also *In the Goods of Rippon* [1943] P 61 (Territorial officer ordered to join unit) *Doherty v Mangan* [1943] I R 78 (flying officer of R.A.F. in England) *In the Goods of Rowson* (1944) 171 L T 70 (member of W.A.A.F. at balloon depot) These earlier authorities are discussed in *Re Wingham* [1949] P 187

⁶ Metropolitan Police Courts Act 1839 (c 71) s 40 *R v Slade* (1888) 21 Q B D 433

⁷ Merchant Shipping Act 1876 (c 80) s 23 see now Merchant Shipping Act 1894 (c 60) s 85 *Richmond Hill Co v Trinity House* [1896] 2 Q B 134

⁸ R S C Ord 50 r 2 *Evans v Davies* [1893] 2 Ch 216 *United Fruit Co v Leyland & Co* (1930) 144 L T 97

⁹ *Foster v Diphwys Casson Slate Co* (1887) 18 Q B D 428

¹⁰ *Brooke v I R C* [1896] 2 Q B 356 *Smelting Co of Australia v I R C* [1897] 1 Q B 175 Electrical energy is property see Electric Lighting Act 1909 (c 34) s 19

which, after authorising local authorities to purchase land for such dwellings provided that all rights or easements relating to the purchased land shall be extinguished but compensated for was held to include under the word rights inchoate as well as complete rights¹¹

Bedding to the value of £5 which is protected from seizure by section 147 County Courts Act, 1888 (c 43) which is incorporated into the Law of Distress Amendment Act 1888 (c 21), s 4, includes a bedstead¹²

Member in article 27 of Table A to the repealed Companies Act 1862 (c 89), which provided that any increased capital should be offered to the members *pro rata* included the representatives of a deceased member whose name was on the register¹³

The Railways Clauses Consolidation Act, 1845 (c 20) which required a railway company to keep in repair a bridge carrying a highway over their lines required them also to maintain the roadway upon the bridge¹⁴

A fishing boat of 10 tons provided with masts which unshipped, and sails used for going to sea, but propelled by four oars in harbour and shallow water was decided to be a ship within the Merchant Shipping Act 1862, which provided that when a collision between two ships took place the master of each ship was bound to render assistance to the other on pain of the cancellation or suspension of his certificate Though section 2 of the repealed Merchant Shipping Act, 1854 (c 104) enacted that the term ship should have the meaning thereby assigned to it, viz that it should include every description of vessel used in navigation not propelled

¹¹ *Barlow v Ross* (1890) 24 Q B D 381 Cf *Hankins v Rutter* [1892] 1 Q B 668 where easement was construed in its strictest sense *Honworth v Sutcliffe* [1895] 2 Q B 358 C A See also *Re Insole's Settled Estate* [1938] Ch 812 a decision on the Settled Land Act 1925 s 93

¹² *Davis v Harris* [1900] 1 Q B 729

¹³ *James v Buena Ventura Syndicate* [1896] 1 Ch 457 See also *Allen v Gold Reefs of West Africa* [1900] 1 Ch 656 Table A in the Companies Act 1948 (c 38) no longer contains this provision

¹⁴ 8 & 9 Vict c 20 s 46 *Lancashire & Yorkshire Ry v Bury* (1889) 14 App Cas 417 *North of England Ry v Langbaugh* (1871) 24 L T 544 See also as to a book within the repealed Copyright Act 1842 (c 45) s 2 *Maple & Co v Junior A & N Stores* (1882) 21 Ch D 369 *Cable v Marks* (1882) 52 L J Ch 107 *Davis v Comitti* (1885) 54 L J Ch 419 For an exhaustive disquisition on the Copyright Act 1911 (c 46) see Clerk and Lindsell on *Torts* tit Copyright And as to a boiler within the Boiler Explosions Act 1882 (c 22) *R v Explosions Act Commissioners* [1891] 1 Q B 703

by oars ¹⁵ this was considered not to be a definition, and not to exclude vessels which it did not include ¹⁶

On the other hand, a steam launch used to carry passengers on pleasure trips round an artificial lake has been held not to be a vessel used in navigation so as to need the suspension on board of a Board of Trade certificate ¹⁷

Another instance of beneficial construction is afforded by section three of the Common Lodging Houses Act 1853 (c 41) which forbade the keeping of 'a common lodging house' unless it had been inspected, approved, and registered. The object of the enactment being to secure for the poor using these houses conditions safeguarding health and preventing the spread of disease which people better off are supposed to be able to secure for themselves it was held to apply to a shelter kept for a charitable purpose and not for gain ¹⁸

A debtor residing abroad keeps out of the way to avoid service of process within the meaning of the Bankruptcy Rules for substituted service ¹⁹

Section 15 (7), Friendly Societies Act, 1875 (c 60) provided that registered friendly societies should be entitled to the privilege of having any money or property belonging to the society which should be in the possession of any officer of the society upon his bankruptcy handed over to the society in preference to any other debts or claims against his estate and it was held that the society was entitled to be paid out of such estate any balance due to it in respect of moneys received by the officer for it even though he had not in his possession those moneys in specie and they could not be traced ²⁰

¹⁵ For definition of vessel see Merchant Shipping Act 1894 (c 60) s 742

¹⁶ *Ex p Ferguson and Hutchinson* (1871) L.R. 6 Q.B. 280. Cf *The Mac* (1882) 7 P.D. 16. *Gapp v Bond* (1887) 19 Q.B.D. 200. *Clyde Navigation v Laird* (1883) 8 App.Cas. 658.

¹⁷ *Mayer of Southport v Morris* [1893] 1 Q.B. 359. *Salt Union v Wood* [1893] 1 Q.B. 370.

¹⁸ *Lagdsen v Booth* [1900] 1 Q.B. 401. *Lagdsen v Trotter* [1900] 1 Q.B. 617. See however *Parker v Talbot* [1905] 2 Ch. 643. *Gilbert v Jones* [1905] 2 K.B. 691. See now Public Health Act 1936 (c 49) Part IX. Public Health (London) Act 1936 (c 50) Part VI.

¹⁹ Bankruptcy Rules, 1886 Rule 154 (now Bankruptcy Rules, 1915 Rule 156). *Re Urquhart* (1889) 24 Q.B.D. 723.

²⁰ *Re Miller* [1893] 1 Q.B. 327. *Re Eilbeck* [1910] 1 K.B. 136. See now Friendly Societies Act 1896 (c 25) s 33.

Statutes requiring Something to be Done

The statutes which required notice of action for anything done ' under them are construed as including an omission of an act which ought to be done as well as the commission of a wrongful one ¹ Even criminal statutes which are subject to what has been called a strict construction will be found to furnish abundant illustrations of giving an extended meaning to a word ²

A statute which requires something to be done by a person would, except in cases subject to the principle that *delegatus non potest delegare*, be complied with, in general if the thing were done by another on his behalf and by his authority for it would be presumed that there was no intention to prevent the application of the general principle of the law that *qui facit per alium facit per se* unless there was something in either the language or the object of the statute which showed that a personal act was intended On this ground an Act of Parliament which requires that notice of appeal shall be given by churchwardens is complied with if given by their solicitor ³

In the absence of any provisions to the contrary in the Bills of Sale Acts, it has been held that a bill of sale may be executed by attorney, and the grantee may be the attorney of the grantor for such purpose ⁴

The repealed ⁵ Dramatic Copyright Act, 1833 (c 15) which required the written consent of the author of a drama to its representation, was held sufficiently complied with if the consent were given by the author's agent ⁶

¹ *Wilson v Halifax* (1868) L.R. 3 Ex. 114 *Poulsum v Thirst* (1867) L.R. 2 C.P. 449 *Davis v Curling* (1846) 8 Q.B. 286 *Newton v Ellis* (1855) 24 L.J. Q.B. 337 *Edwards v Islington* (1889) 58 L.J. Q.B. 165 *Harman v Ainslie* [1904] 1 K.B. 698

² See Chap. X. As to the interpretation to be put on the words 'criminal cause or matter' in s. 47 of the Judicature Act 1873 (c. 66) see *R. v Tyler* [1891] 2 Q.B. 588 *Ex p. Fulbrook* [1892] 1 Q.B. 86 and cases there cited *Ex p. Savarkar* [1910] 2 K.B. 1056 See now Judicature Act 1925 (c. 49) s. 31 (1) (a)

³ *R. v Middlesex* (1850) 20 L.J. M.C. 42 *R. v Carew* (1851) 20 L.J. M.C. 44n *R. v Kent JJ* (1873) L.R. 8 Q.B. 305 *France v Dutton* [1891] 2 Q.B. 208 *R. v St. Mary Abbots* [1891] 1 Q.B. 378 *Walsh v Southwell* (1851) 6 Ex. 150 *R. v Huntingdonshire* (1850) 19 L.J. M.C. 127 *Charles v Blackwell* (1877) 2 C.P.D. 151 *Re Lancaster* (1876) 3 Ch.D. 498 *Moussell Bros v L. & N. Ry* [1917] 2 K.B. 836

⁴ *Furnivall v Hudson* [1893] 1 Ch. 335

⁵ Repealed Copyright Act 1911 (c. 46) s. 36 Sched. 2

⁶ *Morton v Copeland* (1855) 24 L.J. C.P. 109

When an Irish statute, after giving to tenants for lives or for more than fourteen years the right of felling any trees which they had planted required that the tenant so planting them should file an affidavit within twelve months, in a form given by the Act which purported throughout to be made by the tenant personally the House of Lords construed the Act as satisfied by the affidavit of the tenant's agent. A stricter construction, it was said, would have rendered the Act inapplicable to most of the cases which it had in view.²⁷

The principle is well illustrated by two decisions under the repealed Parliamentary Voters Registration Act 1843 (c 18) which required that the person who objected to a voter should sign a notice of his objection and deliver it to the postmaster. This was held to require personal signature²⁸ but not personal delivery or receipt.²⁹ It was material that the person objected to should be able to ascertain that he really was objected to by the objector which he could not so easily do if a signature by an agent was admitted. Similarly to guard against personation the signature of a voting paper under the Act of 1835 dealing with municipal corporations was required to be personal and not by agent.³⁰ But there was no valid reason for supposing that the legislature did not intend to give effect to the rule *qui facit per alium facit per se* in the case of the mere delivery.

The knowledge of the servant may be constructively that of the master within the meaning of an Act even when making the master penally responsible.³¹ The Nuisances Removal Act, 1855 (c 121) which authorised justices to summon a person by whose act a nuisance arose, or if that person could not be ascertained the occupier of the premises in which it existed was held to authorise the summoning of the occupier if the person who had actually

²⁷ *Mountcashell v O'Neill* (1856) 5 HLC 937. See also the Timber (Ireland) Act 1888 (c 37) s 1.

²⁸ *Toms v Cuming* (1845) 14 LJCP 67. *Lewis v Roberts* (1862) 31 LJCP 51.

²⁹ *Cuming v Toms* (1844) 14 LJCP 54.

³⁰ 5 & 6 Will 4 c 76 s 32 repealed by the Municipal Corporations Act 1882 (c 50) s 5. *R v Tart* (1859) 28 LJQB 173. *Mfonks v Jackson* (1876) 1 CPD 683.

³¹ *Core v James* (1872) LR 7 QB 135. *Lush J* (but see *Pain v Boughtwood* (1890) 24 QBD 353). *R v Stephens* (1866) LR 1 QB 702. See also Stroud's *Judicial Dictionary* & Supp. tit. *Knowingly*.

done the act was his servant, since in law the act of the latter is that of the former ³²

On the same principle it has been held that the Truck Act, 1831 (c 37), s 3 which provides that the entire amount of wages earned by an artificer shall be actually paid to him in the current coin of the realm would be satisfied by payment being made to his authorised agent ³³

On the other hand the Statute of Frauds Amendment Act, 1828 (c 14) which requires an acknowledgment 'signed by the party chargeable thereby' to take a debt out of the Statute of Limitation, has been held to require personal signature and not to admit of a signature by an agent ³⁴ But this construction was based partly on the circumstance that another Statute of Limitation made express mention of an agent ³⁵

Where an Act required that notices should be signed by certain public trustees or by their clerk it was held that the signature of the clerk of their clerk who had a general authority from his employer to sign all documents issuing from his office was not a compliance with the Act ³⁶

A lithographic indorsement of a solicitor's name is not a compliance with the provision of the County Court Rules that he should indorse on the particulars his name or firm but the solicitor's name written by his authorised clerk will suffice ³⁷

Again where the statute required that the act should be done by the party himself, it would hardly admit of its being done by an agent, as in the case of the provision that a nomination paper of a candidate for municipal office should be delivered to

³² *Barnes v Ackroyd* (1872) L.R. 7 Q.B. 474. See Public Health Act 1936 (c 45), s 93. Public Health (London) Act 1936 (c 50) Sched V.

³³ *Hewlett v Allen* [1894] A.C. 383.

³⁴ *Hyde v Johnson* (1836) 2 Bing (N.C.) 776. See also *Swift v Jewell* (1842) L.R. 9 Q.B. 301. *Williams v Mason* (1873) 28 L.T. 232. *Barnick v Earl of Arundel* (1867) L.R. 2 Ex. 259. *Hurst v West Riding Union* [1901] 2 K.B. 560. *Citizens Life Assurance Co v Brown* [1904] A.C. 613. P.C. See now Limitation Act 1939 (c. 21) s 24.

³⁵ *Ante* p. 37.

³⁶ *Miles v Bough* (1842) 3 Q.B. 845. *Inglis v G.N.R.* (1852) 16 J. 1. *Brown v Tombs* [1891] 1 Q.B. 253.

³⁷ C.C.R. 1889 Ord. 6 r. 10. *R v Couper* (1890) 24 Q.1. Lord Esher M.R. dissenting. See now C.C.R. 1936 Ord. 4 r. 2.

the town clerk by the candidate himself, or his proposer or seconder³⁸

A statute which provided that a person not a party to an election petition who was charged with corrupt practices should have an opportunity of being heard by himself and of calling witnesses did not authorise his appearing by counsel or solicitor³⁹

The same principle applies where an Act requires a special qualification for doing anything. As for example under the Pharmacy Act 1868 (c 121) s 15 which prohibited under a penalty the sale of poisons by unqualified persons the shopman of a qualified employer not himself qualified was held liable to a penalty for selling except under the personal supervision of his employer⁴⁰

An unqualified person however who receives an order for poison and forwards it to a manufacturer who supplies it directly to the customer, has not the conduct and management of the sale to constitute him the seller within the meaning of the Act⁴¹

A statute which enacted that in any contract for letting a house for habitation by persons of the working classes there should be an implied condition that the house was fit for habitation was construed as importing a promise by the landlord to that effect and so giving a tenant a right to sue on it, to give effect to the intention⁴²

To Prevent a Failure of Intention

Sometimes the governing principle of the remedial enactment has been extended to cases not included in its language, to prevent a failure of justice and consequently of the probable intention. Thus section 50 of the Common Law Procedure Act 1854 (c 125) which empowered a court (upon the application of either party to a cause supported by the affidavit of such party of his belief that a material document was in the possession of his opponent)

³⁸ *Manks v Jackson* (1876) 1 CPD 683 distinguished in *Harford v Linskey* [1899] 1 QB 852 861

³⁹ The repealed Corrupt and Illegal Practices Prevention Act 1883 (c 51) s 38 *R v Mansel Jones* (1889) 23 QBD 29 *Monks v Jackson* (1876) 1 CPD 683

⁴⁰ *Pharmaceutical Soc v Wheeldon* (1890) 24 QBD 683 *Pharmaceutical Soc v Nash* [1911] 1 KB 50 *cf Lewis v Weston Super Mare* (1888) 40 Ch O 55 See now Pharmacy and Poisons Act 1933 (c 25) s 18

⁴¹ *Pharmaceutical Soc v White* [1901] 1 KB 601

⁴² Housing of the Working Classes Act 1885 (c 72) s 12 (now repealed) *Walker v Hobbs* (1889) 23 QBD 458

to order its production though at one time did not deem the affidavit of the solicitor of the party even when the party was abroad⁴³ was satisfied by the solicitor's affidavit that the party was a corporation and consequently incapable of making an affidavit, or, perhaps of forming a belief⁴⁴ and the rule was extended to persons other than solicitors.⁴⁵ The primary reason was recognised as being that all suits should be tried by a jury discovery.⁴⁶ As a corporation could make no affidavit it could formerly make one only by their solicitor, and the affidavit of the latter was considered a substantial compliance with the rule.

A provision of the Civil Procedure Act, 1882, which after depriving the parties to a reference made by order of court or judge of the power which they formerly had of enlarging the authority of their arbitrator, enabled the court from time to time to enlarge the time for the arbitrator's award. It was at first thought to be either confined to cases in which an award had been attempted,⁴⁷ or at all events to cases in which the arbitrator had no power to make his award.⁴⁸ But it was afterwards held that the power to enlarge the time in all references made by order of court, and to do so even when the arbitrator had made his award, was time to which he was limited had since been removed, consequently, so far, a nullity.⁴⁹

an appeal but at the same time requires the appellant to enter into recognisances to prosecute the appeal presents such a conflict. Either it excludes corporations from the right of appeal because a corporation is incapable of entering into recognisances or it extends the right to them without compliance with that special requirement. The latter would be unquestionably the beneficial way of interpreting the statute. The general and paramount object of the Act would receive full effect by giving to corporate bodies the same right of appeal against the burden imposed on them and the subsidiary provision would be understood as applicable only to those who were capable of entering into recognisances⁵¹

Extension to New Things

Except in some cases where the principle of excessively strict construction has been applied the language of a statute is generally extended to new things which were not known and could not have been contemplated by the legislature when it was passed. This occurs when the Act deals with a genus and the thing which afterwards comes into existence is a species of it⁵². Thus the provision of Magna Carta which exempted lords from the liability of having their carts taken for carriage was held to extend to degrees of nobility not known when it was made as dukes, marquises and viscounts⁵³.

The Engraving Copyright Act 1734 (c 13) which protected copyright in engravings by a penalty for piratically engraving etching or otherwise or in any other manner copying them extended to copies taken by photography⁵⁴.

A telegram may be a forged instrument according to the true interpretation of the Forgery Act 1861 (c 98) s 38⁵⁵.

⁵¹ *Cortis v Kent Waterworks* (1827) 7 B & C 314

⁵² *R v Smith* (1870) L.R. 1 C.C.R. 270 per Bovill C.J. *Lane v Cotton* (1701) 12 Mod 485 1 Ld Raym 746 per Holt C.J. referred to in *Mersey Dock Trustees v Gibbs* (1866) L.R. 1 H.L. 124 and *Bainbridge v Postmaster General* [1906] 1 K.B. 178 186 C.A.

⁵³ 1 Inst 35

⁵⁴ *Gambart v Ball* (1863) 32 L.J.C.P. 166 *Graves v Ashford* (1867) L.R. 2 C.P. 410 *Att Gen v Lockwood* (1842) 9 M. & W. 378 cf *Hansfaengl v Empire Palace* [1894] 2 Ch 1 *Hansfaengl v Newnes* [1894] 3 Ch 109 note also cases cited post pp 261-264. For an exhaustive résumé of the subject see Copinger on Copyright 9th ed.

⁵⁵ Partially repealed and re-enacted by the Forgery Act 1913 (c 27) *R v Riley* [1896] 1 Q.B. 309. See the Post Office (Protection) Act 1884 (c. 76) s 11.

The telephone is a telegraph within the meaning of the Telegraph Acts 1863 (c 112) and 1869 (c 73) though not invented or contemplated in 1869 ⁴⁴

Every company (including a private company ⁴⁵) registered under the Companies Acts is a public company within section 5 of the Apportionment Act 1870 (c 35) ⁴⁶

Where an Act of 1790 exempted ferry proprietors from assessment to any tax whatsoever in respect of the ferry, it was held that the exemption extended to income tax although that tax was first imposed considerably after 1790 ⁴⁷

Where annual contributions have been made was interpreted to cover a case where due effort towards payment had been made, so as not to deprive a cleaner of her pension ⁴⁸

⁴⁴ *Att Gen v Edison Telephone Co* (1880) 6 Q B D 244 *Postmaster General v National Telephone Co* [1907] 1 Ch 621
⁴⁵ *Re White* [1913] 1 Ch 231
⁴⁶ *Re Lysaght* [1898] 1 Ch 115 *Re Raven* (1914) 111 L.T. 938
⁴⁷ *Pole Carew v Craddock* [1920] 3 K B 109
⁴⁸ *Gissing v Liverpool Corpn* [1935] 1 Ch 1

CHAPTER 3

RESTRICTION TO THE SPECIFIC OBJECT IN VIEW

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SECTION 1—CONSEQUENCES TO BE CONSIDERED

BEFORE adopting any proposed construction of a passage susceptible of more than one meaning it is important to consider the effects or consequences which would result from it,¹ for they often point out the real meaning of the words.² There are certain objects which the legislature is presumed not to intend and a construction which would lead to any of them is therefore to be avoided. It is not infrequently necessary, therefore, to limit the effect of the words contained in an enactment (especially general words) and sometimes to depart not only from their primary and literal meaning but also from the rules of grammatical construction in cases where it seems highly improbable that the words in their wide primary or grammatical meaning actually express the real intention of the legislature. It is regarded as more reasonable to hold that the legislature expressed its intention in a slovenly manner than that a meaning should be given to them which could not have been intended.

Presumption against Implicit Alteration of Law

One of these presumptions is that the legislature does not intend to make any substantial alteration in the law beyond what it explicitly declares,³ either in express terms or by clear implication or in other words beyond the immediate scope and object

¹ *Grot de B & P* b 2 c 16 s 4 *US v Fisher* (1805) 2 Cranch 390

² *Puff L.N* b 5 c. 12 s 8

³ *Arthur v Bokenham* (1708) 11 Mod 150 *per Trevor J* *Harbert's Case* (1584) 3 Rep 13b *Rolfe v Flower* (1866) L.R. 1 P.C. 27 48 *National Assistance Board v Wilkinson* [1952] 2 Q.B. 648

of the statute. In all general matters outside those limits the law remains undisturbed. It is in the last degree improbable that the legislature would overthrow fundamental principles, infringe rights, or depart from the general system of law, without expressing its intention with irresistible clearness⁴ and to give any such effect to general words simply because they have a meaning that would lead thereto when used in either their widest, their usual or their natural sense would be to give them a meaning other than that which was actually intended⁵. General words and phrases therefore, however wide and comprehensive they may be in their literal sense must usually be construed as being limited to the actual objects of the Act. It would be perfectly monstrous⁶ to construe the general words of the Act so as to alter the previous policy of the law⁷. In construing the words of an Act of Parliament we are justified in assuming the legislature did not intend to go against the ordinary rules of law unless the language they have used obliges the court to come to the conclusion that they did so intend⁸.

Thus, a statute which authorised any or the nearest justice of the peace to try certain cases would not authorise a justice to try any such cases out of the territorial limits of his own jurisdiction⁹, or any in which he had a disqualifying interest or a bias¹⁰ or any which he was incapacitated from hearing by any other general principle of law¹¹. Still less would it authorise a justice to hear any such cases by any other course of proceeding than that established by law¹.

The Debtors Act 1869 (c 62), empowering any (inferior) court to commit for default of payment of a debt, in pursuance

⁴ *U.S. v. Fisher* (1805) 2 Cranch 390

⁵ See e.g. *George Wimpey & Co. Ltd v. BOAC* [1955] A.C. 169 at p. 191 per Lord Reid

⁶ *Leach v. R* [1912] A.C. 305 per Lord Halsbury

⁷ *Minet v. Leman* (1855) 20 Beav. 278. *R v. Bishop of Salisbury* [1901] 1 K.B. 573 per Channell J.

⁸ *River Wear Commissioners v. Adamson* (1877) 1 Q.B.D. 546-554 per Melish L.J. Harbours and Piers Clauses Act 1847 (c. 27) s. 74. *Att. Gen. v. Exeter Corp'n* [1911] 1 K.B. 1092.

⁹ 1 Hawk P.C. c. 65 s. 45. *The Peerless* (1841) 1 Q.B. 153. *R v. Fylingdales* (1827) 7 B. & C. 438.

¹⁰ *R v. Cheltenham* (1841) 1 Q.B. 467. *R v. Meyer* (1876) 1 Q.B.D. 173. *R v. L.C.C.* [1892] 1 Q.B. 190. *R v. Gr. Yarmouth JJ* (1882) 8 Q.B.D. 525.

¹¹ *Bonham's Case* (1609) 8 Rep. 118a. *Great Charte v. Kennington* (1743) 2 Stra. 1173. *R v. Sainsbury* (1791) 2 R.R. 433. *Lawson v. Reynolds* [1904] 1 Ch. 718.

¹² *Dalt* c. 6 s. 6. *Re Guerin* (1888) 53 J.P. 468. cf. *Exp. Dutton* (1911) 75 J.P. 558.

of an order or judgment of that or any other competent court," did not authorise such a court to commit unless the debtor was subject to its general jurisdiction by residence or business.¹³

The Merchant Shipping Act, 1854 (c 104) s 523, which authorised a distress would not authorise a seizure of goods *in custodia legis*.¹⁴

The provision in the Judicature Act 1873 (c 66) s 25 (8) that the court might grant an injunction in all cases in which it should consider it 'just and convenient' that such an order should be made did not extend the authority of the court beyond cases where there was an invasion of recognised legal or equitable rights.¹⁵

The provisions in R S C 1875 Ord 55 r 1 (now R S C Ord 65 r 1) and the repealed¹⁶ section 28 of the Regulation of Railways Act 1873 (c 48) that the costs of and incidental to proceedings should be in the discretion of the court was construed as giving no wider discretion than had always been exercised by the Court of Chancery, and therefore as not authorising an order on a successful defendant to pay a portion of the plaintiff's costs.¹⁷

Fresh evidence within the meaning of the Summary Jurisdiction (Married Women) Act 1895 (c 39) s 7 which gave magistrates jurisdiction to rescind a separation order previously made under section 4 of that Act meant the same sort of evidence as that upon which a new trial would in the ordinary course be granted.¹⁸

An Act which provided that a mayor should not be by reason of his office ineligible as a town councillor or alderman would not make him eligible when he acted in the judicial capacity of returning officer at the election for it would not be a just construction of the language used or a legitimate inference from it that the

¹³ *Washer v Elliott* (1876) 1 C P D 169 explained in *Re Ives* (1886) 16 Q B D 665 669 670

¹⁴ Repealed and re-enacted by Merchant Shipping Act 1894 (c 60) s 693 *The Westmoreland* (1845) 2 W Rob 394

¹⁵ *Beddow v Beddow* (1878) 9 Ch D 89 *Day v Brownrigg* (1878) 10 Ch D 294 and *Lord Hatherley Reuss v Bos* (1871) L R 5 H L 193 See also *Jackson v Barry Ry* [1893] 1 Ch 238 249 (C A) See now Judicature Act 1925 (c 49) s 45

¹⁶ Repealed Railway and Canal Traffic Act 1888 (c 25)

¹⁷ *Foster v G W Ry* (1882) 8 Q B D 515 See also *Re Mills Estate* (1887) 34 Ch D 24 *Lambton v Parkinson* (1887) 35 W R 545

¹⁸ *Johnson v Johnson* [1900] P 19 *Dodd v Dodd* [1906] P 189 199 See now the Matrimonial Proceedings (Magistrates Courts) Act 1960 (c 48) s 8

legislature had intended to repeal by a mere side wind the principle of law that a man cannot be a judge in his own case¹⁹

An Act which directed the election of officers would be understood as authorising such election only on a lawful day, and not on a Sunday,²⁰ and if the statute declared that the candidate who had the majority of votes should be deemed elected, it would be construed as not intending to override the general principle that voters who vote for a person whom they know to be ineligible throw away their votes¹

The enactment which gave a vote for the election of town councillors to every person of full age who had occupied a house for a certain time and provided that words importing the masculine gender should include females for all purposes relating to the right to vote was held having regard to the general scope of the Act to remove only that disability which was founded on sex but not to affect that which was the result of marriage as well as sex and, therefore not to give the right of voting to married women²

An Act which simply left the determination of a matter to a majority of vestrymen present at the meeting would not affect the common law right of the minority to demand a poll and the meeting would therefore be understood as continuing until the end of the poll²³

R S C Ord 37, r 7, under which the court has power in any cause or matter at any stage of the proceedings to order the attendance of any person to produce any documents which the court may think fit to be produced and which such person could be

¹⁹ *R v Owens* (1859) 28 L J Q B 316 *R v Tewkesbury* (1868) L R 3 Q B 639 *R v Milledge* (1879) 4 Q B D 332 *R v Henley* [1892] 1 Q B 504 *R v Morton* [1892] 1 Q B 39

²⁰ *R v Butler* (1685) 1 W B I 649 *R v Bridgewater* (1774) 1 Cowp 139

²¹ *R v Coaks* (1854) 23 L J Q B 133 discussed in *Pritchard v Bangor Corpn* (1888) 13 App Cas 241 *Beresford Hope v Sandhurst* (1889) 23 Q B D 79 *R v How* (1864) 33 L J M C 53 *R v St Matthew* (1875) 32 L T 558 *R v Wimbledon Loc Board* (1882) 8 Q B D 459

²² Municipal Corporation Elections Act 1869 (c 55) s 9 *R v Harrauld* (1872) L R 7 Q B 361 see *Chorlton v Lings* (1869) L R 4 C P 373 *Re March* (1884) 27 Ch D 166 *Beresford Hope v Sandhurst* (1889) 23 Q B D 79

²³ Municipal Corporations Act 1835 (c 76) s 18 repealed by the Municipal Corporations Act 1882 (c 50) *R v How* (1864) 33 L J M C 53 *White v Steel* (1863) 32 L J C P 1 *R v St Mary* (1838) 3 Nev & P 416 *R v D Oylly* (1840) 12 Ad & E 139 *Re Chillington Iron Co* (1885) 29 Ch D 159 See *R v Wimbledon Loc Board* (1882) 8 Q B D 459

compelled to produce at the trial does not authorise an order for the production of documents in the case of a person not a party to the litigation when there is no trial or application pending and the production is not necessary for carrying out an order already made ⁴

A statute which enacted that every conveyance in a particular form should be valid would not thereby cure an initial defect of title ⁵

The Tithe Act 1836 (c 71) s 64, in declaring maps made under its provisions satisfactory evidence of the matters therein stated did not make them evidence on a question of title between landowners that being a matter foreign to the scope of the Act ⁶ But such evidence has been held admissible in the case of a 'manor map' made long anterior to the date of action by a deceased person conversant with the district ⁷

A ship built in England for a foreigner would not be a 'British ship' within the provisions requiring registration and transfer by bill of sale even while still the property of the English builder ⁸

Section 126 of the Bankruptcy Act, 1869 (c 71) ⁹ which made a composition accepted in certain circumstances by creditors binding on all creditors whose names are shown in the debtor's statement, with the proviso that it shall not affect any other creditor, excluded only non assenting creditors but not creditors whose names were not stated in the debtor's statement and who in fact assented for it was understood as not intending to interfere with the general principle that it is competent to a person to bind himself by such an assent ¹⁰

It is evident that a literal construction would in these cases have carried the operation of the Act far beyond the intention

⁴ *Elder v Carter* (1890) 25 Q B D 194 *O Shea v Wood* [1891] P 237 286 *Straker v Reynolds* (1888) 22 Q B D 262 But *secus* under the Bankers Books Evidence Act 1879 (c 11) s 7 *Howard v Beall* (1889) 23 Q B D 1

²⁵ *Ward v Scott* (1812) 3 Camp 284 See also *Whidborne v Eccles Com* (1878) 7 Ch D 375 *Forbes v Eccles Com* (1873) L R 15 Eq 51

²⁶ *Wilberforce v Hearfield* (1877) 5 Ch D 709

²⁷ *Smith v Lister* (1895) 64 L J Q B 154

²⁸ *Union Bank v Lenanton* (1878) 3 C P D 243 See Merchant Shipping Act 1894 (c 60) s 1

⁹ Repealed by Bankruptcy Act 1883 (c 52) s 169 See now Bankruptcy Act 1914 (c 59) s 16

³⁰ *Campbell v Im Thurn* (1876) 1 C P D 267 discussed in *Breslauer v Brown* (1878) 3 App Cas 677 689

Restriction to Specific Object

Section 6 of the Habeas Corpus Act, 1679 (c 2), which for the prevention of unjust vexation by reiterated commitments for the same offence, enacts that no person who has been discharged on habeas corpus shall be imprisoned again for the same offence, except by the court wherein he is bound by recognisances to appear, or another court having jurisdiction in the cause would not extend to a case where the discharge was made on the ground that the commitment had been made without jurisdiction though the offence for which he was arrested on the second occasion was the same, for this was obviously beyond the object of the Act ³¹

It was held that section 26 of the Real Property Limitation Act 1833 (c 27), which deprived the owner of lands of the right of suing in equity for their recovery, on the ground of fraud, from a purchaser who did not know or have reason to believe that any such fraud had been committed should be construed as subject to the presumption that the legislature did not intend, by its general language to subvert the established principles of equity on the subject of constructive notice and was therefore to be read as meaning that the purchaser did not know or have reason to believe either by himself or by some agent whose knowledge or reason to believe was in equity equivalent to his own ³²

Section 47 of the Fines and Recoveries Act 1833 (c 74) which excludes the jurisdiction of the Court of Chancery with regard to curing defects in the execution of the powers of disposition given by the Act to tenants in tail and the rectifying in any circumstances of the want of execution of such powers of disposition has been held not to exclude the jurisdiction of the court from amending a deed made under the Act so as to make it effect the intention of the parties the object of the Act being to prevent the application of equitable doctrines so as to alter the effect of a deed executed according to the intention of the parties and not to exclude the power of the court to rectify a deed which by an error, did not conform to that intention ³³

³¹ *Att Gen (Hong Kong) v Kwok a Sing* (1873) L R 5 P C 179 *R v Brixton Prison (Govr) ex p Stallmann* [1912] 3 K B 424

³² *Vane v Vane* (1872) L R 8 Ch 383 See now Limitation Act 1939 (c. 21) s 26

³³ *Hall Dare v Hall Dare* (1886) 31 Ch D 251 See also *Bankes v Small* (1887) 36 Ch D 716 *Re Montagu* [1896] 1 Ch 549 *Meeking v Meeking* [1916] W N 367

The Factors Act 1889 (c 45) enacts *inter alia* by section 2 (1) that any mercantile agent entrusted with goods or the documents of title to goods shall be entitled to pledge the same provided they are in his possession with the consent of the owner. But this proviso is confined to transactions entered into by a mercantile agent in the ordinary course of his business *qua* mercantile agent and consequently does not validate a pledge of household furniture not in the way of trade made by an agent to whose possession it had been entrusted ³⁴

It has been decided that an Act which empowered the directors of an incorporated company to make contracts and bargains with workmen agents and undertakers would be construed as conferring on them authority to bind the company by such transactions without consulting their shareholders, but not as so altering the general law as to dispense with those formalities by which alone a corporation can bind itself to contracts, that is by writing under the corporate seal ³⁵

The Married Women's Property Act, 1882 (c 75), s 1 (2), which provides that a married woman shall be capable of suing and being sued in all respects as if she were a feme sole, is limited to actions relating to herself personally and does not make her competent to act as a next friend or guardian *ad litem* ³⁶

The provision in the repealed Friendly Societies Act 1829 (c 56) s 27 which required a reference to arbitration of every matter in dispute between a society and any of its members was on the same principle held to be confined to disputes with members as members and a breach of covenant by a member to repay a sum borrowed from his society was therefore, regarded as not falling within the arbitration clause the dispute being with the member as debtor not as member ³⁷. And it seems clear law

³⁴ *Waddington v Neale* (1907) 96 LT 786. *Cole v North Western Bank* (1875) LR 10 CP 354 372. And see *Pearson v Rose and Young* [1951] 1 KB 275.

³⁵ *East London Waterworks Co v Bailey* (1827) 4 Bing 283. But see now Companies Act 1948 (c 38) s 32.

³⁶ *Re Duke of Somerset* (1887) 34 Ch D 465. See also Law Reform (Married Women and Tortfeasors) Act 1935 (c 30) s 1.

³⁷ *Morrison v Glover* (1850) 4 Ex 430. See also *Prentice v London* (1875) LR 10 CP 679. *Willis v Wells* [1892] 2 QB 295. *Palliser v Dale* [1897] 1 QB 257. *Fleming v Self* (1854) 3 Eq 14. *Mulkern v Lord* (1879) 4 App Cas 182. But cf *Wright v Monarch Invest Soc* (1877) 5 Ch D 726 and *Hack v London Provid Building Soc* (1883) 23 Ch D 103. *Municipal Building Soc v Kent* (1884) 9 App Cas 260.

in cases within section 2 of the Building Society Act 1884 (c 41), that the remedy is by action and not by reference to arbitration ³⁹

Section 52 of the National Debt Act 1870 (c 71) which directed the Bank of England to keep a list of unclaimed stock which was to be open for inspection at the usual hours of business would not entitle a person who has no bona fide interest in any unclaimed stock to inspect such list ⁴⁰

An Act of the Manx legislature intituled for amending the criminal law which declared that its provisions should not affect the right of the courts to punish contempts as before and that the House of Keys the Clerk of the Rolls and the registrars of Ecclesiastical Courts should when in the execution of their respective offices have the power of punishing contempts in the same manner as a court, was construed as limiting this power to the House of Keys only when exercising judicial not legislative functions To give it that power when exercising the latter was obviously foreign to the object of the Act though the language in its primary and full sense, included it ⁴¹

On similar grounds a conveyance of property, knowingly ⁴² made solely to give a vote contrary to Parliamentary Election Act, 1695 (c 25), s 7 which declared such conveyances void and of none effect was void so far as to prevent the right of voting being acquired ⁴³ which was the whole aim of the Act but it was in other respects valid between the parties so as to pass the property ⁴⁴

Section 19 of the Judicature Act, 1873 (c 66) which gave the Court of Appeal jurisdiction to hear appeals from any judgment or order save as thereafter (section 47) mentioned was held not to give an appeal against an order of discharge of a prisoner on habeas corpus (though the order was not within the exception) on the ground partly that as no provision was made for enforcing an order of the Court of Appeal for re-arresting the prisoner the

³⁹ *Western Suburban etc Building Soc v Martin* (1886) 17 Q B D 609 C A

⁴⁰ *R v Bank of England* [1891] 1 Q B 785

⁴¹ *Re Brown* (1864) 33 L J Q B 193 280

⁴² *Marshall v Bowen* (1845) 14 L J C P 129 but see *Hoyland v Bremner* (1846) 15 L J C P 133

⁴³ This section (s 7 Ruffhead s. 6 in the Statutes Revised) was repealed by the Representation of the People Act 1918 (c 64)

⁴⁴ *Phillipotts v Phillipotts* (1850) 20 L J C P 11 referred to in *Badische Anilin und Soda Fabrik v Hickson* [1906] A C 419 427

order would be futile and partly that so important a change of the law was not contemplated by the legislature ⁴⁵

An Act which visited with fine and dismissal a road surveyor who demanded or wilfully received higher fees than those allowed by the Act would not affect a surveyor who under an honest mistake of fact demanded a fee to which he was not entitled,⁴⁶ and a sheriff whose officer had made an overcharge by mistake would not be liable to the penalty imposed⁴⁷ on any sheriff etc, who takes or demands any money or reward under any pretence whatsoever other than the fees or sums allowed ⁴⁸

An Act which empowered inspectors to inspect the scales weights and measures of persons offering goods for sale and to seize any found light and unjust was construed as limited to cases where the injustice was prejudicial to the buyer, and as not applying to a balance which gave seventeen ounces to the pound that is which was unjust against the seller, since the object and scope of the Act were limited to the protection of the former ⁴⁹

Where a statute makes it an offence in certain cases for any person to intimidate any other person but provides that nothing in the Act shall apply to seamen because there is a special disciplinary code applicable to them it has been held that the proviso only operates where the offence is committed by a seaman and not where it is committed against a seaman ⁵⁰

The enactment in the Bills of Sale Act (1878) Amendment Act 1882 (c 43) s 14, that a bill of sale shall be no protection in respect of chattels which, but for such bill of sale would have been liable to distress for rates and taxes must be restricted to cases of distress for such rates and taxes and has no application where proceedings by way of execution have been taken in the county court under section 261 of the Public Health Act, 1875 (c 55), or any section of like character in any subsequent Act

⁴⁵ *Cox v Hakes* (1890) 15 App Cas 506 Lord Bramwell 526 cites Maxwell 2nd ed p 242 now p 198 See also Judicature Act 1925 (c 49) s 31

⁴⁶ *R v Badger* (1856) 25 L J M C 81

⁴⁷ By the Sheriffs Act 1887 (c 55) s 29

⁴⁸ *Lee v Dangar* [1892] 2 Q B 337 *Bagge v Whitehead* [1892] 2 Q B 355

⁴⁹ *Brooke v Shadgate* (1873) L R 8 Q B 352 *East Gloucestershire Ry v Bartholomew* (1868) L R 3 Ex 15

⁵⁰ Conspiracy and Protection of Property Act 1875 (c 86) ss 7 16 *Kennedy v Cowie* [1891] 1 Q B 771 A seaman within these sections is a person actually employed on board ship and persons whose calling is the sea but who are not actually so employed are not within the exception *R v Lynch* [1898] 1 Q B 61

be construed with regard to the object of the statute⁵⁸ appears to govern the class of cases which establish that enactments requiring railway or other companies to make, to persons interested in hereditaments taken or injuriously affected by the companies full compensation not only for the land but for all damage sustained by reason of the exercise of parliamentary powers, are limited to cases where the damage would have been actionable but for the Act. Protection is given not to the person or business of a party prejudiced by the user of the railway in the way authorised by the Act after it is opened to the public but only in respect of damage resulting from the construction of the railway and works, to his estate or right in the land in its original condition without regard to any use to which it might be put⁵⁹. In other words the object of the enactments is not to create new rights but to give compensation for actual injury⁶⁰ where the right of action has been taken away. This right being taken away only when the powers are in all respects duly exercised, the provisions for compensation do not extend to cases where injury has been done through their improper or negligent exercise⁶¹.

The repealed Bills of Sale Act, 1854 (c. 36) which required the registration of bills of sale of personal chattels under which expression fixtures were expressly included gave rise to several decisions governed by the principle in question. The object of the enactment obviously did not extend to requiring the registration of every mortgage under which fixtures might happen to pass for this would include most mortgages of real property and it was held that the Act applied only to cases where the fixtures were

⁵⁸ See e.g. *Pilling v Abergele U D C* [1950] 1 K.B. 636.

⁵⁹ See *New River Co v Jahnsan* (1860) 2 E. & E. 435 p. 442 per Cockburn C.J. *Beckett v Midland Ry* (1867) L.R. 3 C.P. 94 per Willes J. *Hammersmith Ry v Brand* (1868) L.R. 4 H.L. 171. *Chamberlain v West End & Crystal Pal Ry* (1863) 2 B. & S. 617. *Semar v Metropolitan Ry* (1863) 32 L.J. Ex. 225. *R v Metropolitan Board of Works* (1869) L.R. 4 Q.B. 358. *Caledonian Ry v Walker's Trustees* (1882) 7 App. Cas. 259. *Cf. Metrop. Board v MacCarthy* (1874) L.R. 7 H.L. 243. *Glasgow Ry v Hunter* (1871) L.R. 2 Sc. App. 78. But see the exception *Re Stockport Ry* (1864) 33 L.J. Q.B. 251 upheld in *Camper Essex v Acton* (1889) 14 App. Cas. 153 H.L. and applied in *Gawer's Walk Schools v London Tilbury & Southend Ry* (1890) 24 Q.B.D. 326 and illustrated by *Horton v Colwyn Bay U D C* [1908] 1 K.B. 327. See also *Stroud's Judicial Dictionary* and Supp. tit. Injuriously affected.

⁶⁰ *R v Poulter* (1887) 20 Q.B.D. 132. *Mercer v Liverpool etc. Ry* [1903] 1 K.B. 652 C.A. [1904] A.C. 461 H.L.

⁶¹ *Clothier v Webster* (1862) 12 C.B.(N.S.) 790. *Gibbs v Liverpool Docks* (1858) 27 L.J. Ex. 321. *Ruck v Williams* (1858) 27 L.J. Ex. 357. See the cases collected in *Whitehouse v Fellowes* (1861) 10 C.B.(N.S.) 780.

dealt with as separate things. Accordingly a mortgage of a house for a term of years with such a separate assignment of the fixtures that the mortgagee might sever and deal with them as distinct from the house, required registration,⁶² but a mortgage for a term of years of a house with its fixtures and with a general power of sale over the mortgaged property not authorising a separate dealing by the mortgagee with the fixtures did not require registration.⁶³

Section 10 of the Judicature Act 1875 (c 77) which provided that in the administration of the assets of a person dying insolvent the same rules should be applied as to the respective rights of secured and unsecured creditors and as to the debts provable as were in force in bankruptcy was similarly the subject of several decisions limiting the scope of its operation.⁶⁴

The Metropolitan Building Act 1855 (c 122)⁶⁵ which gave a right to raise any party structure authorised by the Act on condition of making good all damage occasioned thereby to the adjoining premises was held not to authorise the raising of a structure which obstructed the ancient lights of the adjoining premises, for the only damage contemplated by the Act was structural, and not that which resulted from the invasion of a right. And, having regard to the scope of the enactment the expression 'making good' was understood to mean that the adjoining premises were to be restored to their original state not that pecuniary compensation should be made.⁶⁶

Some decisions on the construction of section 74 of the Harbours, Docks and Piers Clauses Act 1847 (c 27) illustrate the principle under consideration. That section enacted that the owner of a vessel was to be answerable for any damage done by it, or by

⁶² Repealed Bills of Sale Act 1878 (c 31) s 23. *Hawtry v Butlin* (1873) L.R. 8 Q.B. 290 explained in *Southport Banking Co v Thompson* (1887) 57 L.J. Ch. 114. *Ex p. Daglish* (1873) L.R. 8 Ch. 1072. *Waterfall v Penistone* (1857) 26 L.J. Q.B. 100 on which see *Walmesley v Milne* (1860) 29 L.J. C.P. 97. *Re Trethowan* (1877) 5 Ch.D. 559. *Re Eslick* (1877) 4 Ch.D. 496. *Climpson v Coles* (1889) 23 Q.B.D. 465. *Small v Nat. Prov. Bank* [1894] 1 Ch. 686. See also *Marsden v Meadows* (1881) 7 Q.B.D. 80.

⁶³ *Ex p. Barclay* (1874) L.R. 9 Ch. 567. *Mather v Fraser* (1856) 25 L.J. Ch. 361. *Re Yates* (1888) 38 Ch.D. 112 and see *Johns v Bare* [1899] 1 Ch. 359.

⁶⁴ See *Re Maggi* (1882) 20 Ch.D. 545 and the cases cited there but this case was in great part overruled by *Re Whitaker* [1904] 1 Ch. 299. *Al Causland v O'Callaghan* [1904] 1 Ir.R. 376. See also *Re Leng* [1895] 1 Ch. 652. See also the Administration of Estates Act 1925 (c 23) s 34.

⁶⁵ See now London Building Act 1930 (c. clviii).

⁶⁶ *Crofts v Haldane* (1867) L.R. 2 Q.B. 194.

any person employed in it to a harbour, pier or dock except when the vessel was in charge of a duly licensed pilot compulsorily taken. Construed literally as it was by the Queen's Bench,⁶⁷ it made an owner responsible for the injury done by his ship to a pier after she had been driven aground and necessarily abandoned by her crew and was dashed by the storm against the pier. But *e converso* Lord Cairns held that the owner was not liable on the ground that the general scope and object of the Act were merely to collect the clauses which Parliament usually inserted in local harbour bills and to give facilities of procedure to the undertakers of such works, so that the section did not create a new liability but only facilitated proceedings against the registered owner when damages were recoverable.⁶⁸

On this general principle of construction, a statute which made an act criminal or penal in unqualified terms would be understood as not applying where the act was excusable or justifiable on grounds generally recognised by law. Thus, a statute which imposed three months imprisonment and the forfeiture of wages on a servant who absented himself from his service before his term of service was completed would necessarily be understood as confined to cases where there was no lawful excuse for the absence.⁶⁹

A statute which made it felony to break from prison would not apply to a prisoner who broke out from the prison while it was on fire not to recover his liberty, but to save his life,⁷⁰ and one which declared it piracy to make a revolt in a ship would not include a revolt necessary to restrain the master from unlawfully killing persons on board,⁷¹ even if it could be justly called a revolt.

And a seaman would not be guilty of deserting who was driven by the cruelty of his officers to leave his ship.⁷²

⁶⁷ *Dennis v. Torell* (1872) L.R. 8 Q.B. 10.

⁶⁸ *River Wear Commissioners v. Adamson* (1877) 2 App. Cas. 743, 751. See also *ante* p. 8.

⁶⁹ 4 Geo. 4 c. 34 s. 3 (repealed by Conspiracy and Protection of Property Act 1875 (c. 86) s. 17). *Re Turner* (1846) 9 Q.B. 80. But see *Rider v. Wood* (1860) 29 L.J.M.C. 1. See also 21 Hen. 8 c. 13. *Gibbs Cod.* 887.

⁷⁰ 2 Inst. 560.

⁷¹ 11 Will. 3 c. 7 s. 9. *R. v. Rose* (1847) 2 Cox 329. *The Shepherdess* (1800) 5 C. Rob. 262.

⁷² *Edward v. Trevellick* (1855) 4 L.J.Q.B. 9. *Limland v. Stephens* (1801) 3 Esp. 69.

The sheriff who under a warrant arrests the driver of the mails, is no indictable for knowingly and wilfully obstructing and retarding the mail.⁷²

Restriction of Operation

Sometimes, to keep the Act within the limits of its object, and not to disturb the existing law beyond what the object requires it is construed as operative between certain persons or in certain circumstances or for certain purposes only though the language expresses no such circumscription of the field of its operation.⁷³ The (now repealed) Bills of Sale Act 1854 (c 26) s 2, for instance which required that, where a bill of sale was made subject to a declaration of trust, the declaration should be registered as well as the bill, on pain of invalidity against the assignee in the event of execution or bankruptcy was held to apply only to declarations of trust by the grantee for the grantor and not to trusts declared by the grantee in favour of other persons the object of the Act being only to protect creditors against sham bills of sale, and such object being completely attained by requiring the registration of the first mentioned trusts while the registration of any others would have been foreign to the purposes of the Act.⁷⁴

Section 13 of the Bills of Sale Act (1878) Amendment Act, 1882 (c 43) which prohibits the removal of the goods for five days after seizure, is confined to the protection of the person giving the bill, and gives the landlord no right to complain of an earlier removal.⁷⁵

Section 3 of the Distress for Rent Act 1737 (c 19) which gives to landlords a right of action to recover double the value of goods fraudulently carried off the premises to avoid a distress applies to goods of the tenant only and not to those of a stranger.⁷⁶

The provision in the Gaming Act 1845 (c 109) which after making all wagers null and void enacted that no suit should be maintained to recover money won on a wager or deposited to abide the event, was construed as only preventing a party to the

⁷² *L.S. v Kirby* (1868) 7 Wallace 452.

⁷³ For some illustrations, in addition to those which immediately follow see Chap. 7 Sec. 3.

⁷⁴ *Hill v Shepherd* (1858) 1 F & F 191 *Robinson v Collingwood* (1866) 34 L.J.C.P.

⁷⁵ See also *Hodson v Sharpe* (1808) 10 East 350.

⁷⁶ *Lane v Tyler* (1857) 45 L.J.Q.B. 461 *Tomlinson v Consolidated Credit Corp.* (1890) 24 Q.B.D. 135.

⁷⁷ *Tomlinson v Consolidated Credit Corp.*, *supra*.

wager from suing to recover his winnings and not as preventing him from suing the stake holder to recover his deposit before it had been actually appropriated.⁷⁸ Moreover an action will lie by one partner in a betting business against the other for an account of the partnership dealings.⁷⁹

The general language of section 299 of the Merchant Shipping Act 1854 (c 104) which provided that, if damage should arise to person or property from non observance of the sailing rules it should be considered as the wilful default of the person in charge of the deck at the time was confined, by a due regard to the object in view to the regulation of the rights of the owners of ships in cases of collision, and was therefore held not to affect the relations between the master and his owners so as to make the former guilty of barratry which would have been altogether foreign to the scope of the Act.⁸⁰

The Criminal Procedure Act 1853 (c 30) which after reciting that it was expedient to make provision for preventing the removal of indictments into the Queen's Bench enacted that whenever a certiorari to remove one should be awarded at the instance of the prosecutor he should enter into a recognisance to pay the costs if unsuccessful and that if the recognisance was not entered into the indictment should be tried in the court below was held inapplicable to a prosecutor who removed an indictment against a corporate body which was unable to appear by attorney in the inferior court. In such a case the removal of the indictment was a matter of necessity not of option for it could not be tried by the inferior court since the defendant could not appear there and it would have been unjust to extend the provision to a case clearly beyond the scope of the Act.⁸¹

Restriction to Subject

Section 19 of the Stamp Act 1853 (c 59) which made presentment of any draft on a banker payable to order or on demand

⁷⁸ *Hampden v Walsh* (1876) 1 QBD 189 *Diggles v Higgs* (1877) 46 LJ Ex 721 CA See also *Strachan v Universal Stock Exchange* (No 2) [1895] 2 QB 39 CA [1896] AC 166 HL

⁷⁹ *Keen v Price* [1914] 2 Ch 98

⁸⁰ *Grill v General Iron Screw Co* (1866) LR 1 CP 600 affirmed (1868) LR 3 CP 476 *Price v Union Lighterage Co* [1903] 1 KB 750 affirmed [1904] 1 KB 412 CA Now Merchant Shipping Act 1894 (c 60) s 419 (3)

⁸¹ *R v Manchester* (1857) 26 LJ MC 65 See also *Craven v Smith* (1869) LR 4 Ex 146

bankrupt and that the property disclaimed was to be deemed surrendered on the day of the adjudication was held to be limited to the relief of the bankrupt and the trustee in bankruptcy from liability and not to affect the rights and liabilities of a lessor and original lessee or under lessee ⁸⁷

Section 38 of the Companies Act 1867 (c 131), which required that every prospectus should specify all contracts entered into by the company or by its promoters before the issue of the prospectus and declared every prospectus which did not comply with these provisions to be fraudulent on the part of the promoters and directors who knowingly issued it as regards persons taking shares, was literally wide enough to include every contract made by a promoter even regarding his own private affairs but it was limited in construction to the object of the Act which was the protection of shareholders. It was held therefore to include only such contracts as were calculated to influence persons in applying for shares ⁸⁸ and it apparently does not create any duty towards bondholders ⁸⁹

The Stamp Acts which enacted that unstamped documents should not be pleaded or given in evidence or be available in law or equity were construed as meaning only that such documents should be unavailable to recover any debt or property ⁹⁰. The prohibition was however held not to extend to cases where the validity of the document was impugned on the ground of fraud or illegality ⁹¹. Section 93 of the Stamp Act 1891 (c 39) (reproducing Customs and Inland Revenue Act 1867 (c 23) s 7) which invalidates all contracts of sea assurance unless expressed in a policy and section 95 (2) which prohibits giving in evidence any policy not duly stamped do not prevent the admission of the slip in evidence on a collateral question of fraud or misrepresentation ⁹¹

In the same spirit the operation of the Diplomatic Privileges Act 1708 (c 12) which with the view of securing the inviolability

⁸⁷ Now s 34 Bankruptcy Act 1914 (c 59) *Smyth v North* (1872) L R. 7 Ex. 242 *Ex p Walton* (1881) 17 Ch D 746 *Hill v E & H I Dock Co* (1884) 9 App Cas. 448

⁸⁸ *Thycross v Grant* (1877) 2 CPD 469 discussed and explained in *Maclean v Tait* [1906] A C 24 29

⁸⁹ *Cornell v Hay* (1873) L R. 8 CP 328 See now Companies Act 1948 (c. 38) Sched IV Pt 1

⁹⁰ *R v Hawkesworth* (1786) 1 TR 450 *R v Gompert* (1847) 9 QB 824 *Ponsford v Walton* (1868) L R. 3 CP 167 See Stamp Act 1891 (c 39) s 14

⁹¹ *Ionides v Pacific Insurance Co* (1872) L R. 7 QB 517 *Citizens Insurance Co of Canada v Parsons* (1881) 7 App Cas. 96 125

accorded to ambassadors by the law of nations, enacted that all processes whereby an ambassador or his servant might be arrested or his goods seized should be null and void,⁹² was held not to extend beyond what might be necessary for the protection of the rank, duties and religion of the ambassador and not to protect his servant, who rented a house part of which he let in lodgings from having his goods taken by distress for non payment of a parochial rate. A house of that character not being absolutely necessary for the servant's residence to extend the operation of the Act to such a case would have been to cover ground foreign to its scope and object.⁹³

On similar principles it was held that when a workman who had been injured, but whose earning capacity was no longer affected, was conscripted into the Army, his Army pay did not count as 'earnings'⁹⁴ so as to entitle him to a revival of compensation under the Workmen's Compensation Act 1925, s 9 (3) (i).

SECTION 2—MENS REA IN CRIMINAL LAW

As *mens rea*, or a guilty mind, is, with some exceptions, an essential element in constituting a breach of the criminal law a statute however comprehensive and unqualified it be in its language is usually understood as silently requiring that this element should be imported into it unless a contrary intention be expressed or implied. The general rule of law is that no crime can be committed unless there is *mens rea*.⁹⁵ A statute for instance which in general terms enacted that every person who committed a certain act should be adjudged a felon would not include a child under seven or an idiot, or a lunatic during the loss of his reason⁹⁶ whether that loss be caused by intoxication or any other voluntary act⁹⁷ for it would be unreasonable to infer from the mere use

⁹² *Re Republic of Bolivia* [1914] 1 Ch 139

⁹³ *Novello v Toogood* (1823) 1 LJ (os) KB 181. *Parkinson v Potter* (1885) 16 QBD 152, 161

⁹⁴ *Jones v Amalgamated Anthracite Collieries Ltd* [1943] 1 KB 146 CA

⁹⁵ *Williamson v Norris* [1899] 1 QB 7, 14 per Lord Russell of Killowen CJ. See also the widely differing report at 68 LJQB 34. And see *R v Carmichael* [1940] 1 KB 630 (knowledge is vital to the commission of the offence (incest)). *Taylor v Central Garages (Exeter) v Raper* (1951) 115 JP 445

⁹⁶ 1 Hale 706. *Eyton v Studif* (1574) Plowd 459a. Bac Ab Stat (1) 6. See *Ex p Stamp* (1846) De Gex 345

⁹⁷ *R v Moore* (1852) 3 C & K 319

of an unqualified term an intention to repeal the general principle that such persons are not capable of a criminal intention

Drunkenness although producing temporary insanity is no defence to a crime⁹⁸ but where the crime is such that the intention of the accused is a constituent element it may be taken into consideration in determining whether the accused formed the intention necessary to constitute the crime in question⁹⁹

On the same principle an act done under an honest and reasonable belief in the existence of a state of things which if true would have afforded a complete justification both legally and morally for such act would not in general fall within a statute which prohibited it under a penalty¹. But one must be careful not to state the rule too widely. In *R v Tolson* Cave J observes. At common law an honest and reasonable belief in the existence of circumstances which if true would make the act for which a prisoner is indicted an innocent act has always been held to be a good defence. This doctrine is embodied in the somewhat uncouth maxim *Actus non facit reum nisi mens sit rea*. Honest and reasonable mistake stands in fact on the same footing as absence of the reasoning faculty as in infancy or perversion of that faculty as in lunacy. So far as I am aware it has never been suggested that these exceptions do not equally apply in the case of statutory offences unless they are excluded expressly or by necessary implication. But after commenting upon the above passage the Court of Criminal Appeal in *R v Wheat*² decided that the principle in *R v Tolson* is stated too widely. The court must pay strict regard to the wording of the statute. A bona fide belief on reasonable grounds that the person accused has been divorced affords no defence in law to the charge of bigamy although it may afford

⁹⁸ 1 Hale 32. *D P P v Beard* [1920] A C 479

⁹⁹ *R v Doherty* (1887) 16 Cox 306. *Cy West v Francis* (1882) 5 B & A 737. Murder is not a statutory offence in England but it was punishable by death under s 302 of the Indian Act XLV of 1860 (the Penal Code) and under s 86 a person who does the act in a state of voluntary intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated. One is presumed to know the consequences of one's acts and from that knowledge intention may be inferred. See Mayne's *Criminal Law of India* 4th ed p 108.

¹ See e.g. *Lee v Simpson* (1847) 16 L J C P 105. *Reade v Conquest* (1867) 11 C.B (N.S.) 479.

² *R v Tolson* (1889) 23 Q B D 168 at p 181.

³ *R v Wheat* [1921] 2 K B 119.

good reason for the infliction of a nominal punishment³ In the light of this judgment it may be open to question whether a woman who married a second time within seven years after she had been deserted by her husband, under a bona fide belief on reasonable grounds that he was dead, would not be guilty of bigamy⁴ or whether a licensed victualler who supplied liquor to a police constable whom he believed to be off duty, would not be guilty of supplying liquor to a police constable while on duty within the Licensing Act, 1872 (c 94) s 16 (2)⁵

Under a statute which made it a felony for persons tumultuously assembled to demolish a church or dwelling they could not be convicted if the demolition was done in the bona fide assertion of a legal right, though there was a riot in doing it⁶

If a man cut down a tree or demolished a house standing on land of which he was in undisturbed possession and believed himself to be the owner, he would not be punishable under statutes which prohibited such acts in general terms, though it turned out that his title was bad and that the property was not his⁷

If a man demanded goods with threats, bona fide believing that they belonged to him he would not be guilty of robbery though civilly liable⁸

A man who forcibly took a girl under sixteen from the custody of her guardian in the honest but mistaken belief that he was, himself, invested with that character, and acted simply in the exercise of his right as a guardian would not be guilty of the criminal offence of abduction though that is defined as 'unlawfully taking a girl under sixteen out of the possession and against the will of the person having the lawful care of her'⁹

A man who fished in a tidal river in the assertion of the general

³ *Sherras v De Rut en* [1895] 1 Q B 918 *cf* *Cundy v Le Cocq* (1884) 13 Q B D 207 and *Mullins v Collins* (1874) L.R. 9 Q B 292 See now Licensing Act 1953 (c. 46) s 142

⁴ *R v Phillips* (1842) 2 Moo C C 252 *sub nom* *R v Langford* (1842) Car & M 602 See *R v Badger* (1856) 25 L J M C 31

⁵ *R v Burnaby* (1703) 2 Ld Raym 900

⁶ *R v Hall* (1828) 3 C. & P 409 See also *R v Knight* (1909) 73 J P 15 In *R v Ford* (1907) 12 Canada Cr Cas 555 it was held no robbery forcibly to retake money won from the defendant at cards in the bona fide belief that prosecutor had cheated.

⁷ *R v Tinkler* (1859) 1 F & F 513 But see *R v Prince* (1875) L.R. 2 C C R. 154

right which the law gives to fish in such rivers,⁹ and in ignorance or in contestation of the exclusive right of fishing in it claimed by another would not be liable to conviction for "unlawfully and wilfully" fishing in the private fishery of another¹⁰

On this principle may perhaps rest the general rule of law that the jurisdiction given to justices of the peace, to try an offence summarily, is ousted when a claim of right or title is set up on reasonable grounds,¹¹ though their duty in such cases is, not to acquit but to forbear from adjudicating

The substance of the decisions is that it is necessary to look at the terms and the object of each Act that is under consideration to see whether and how far knowledge is of the essence of the offence created.¹ If where the Act is so construed *mens rea* is not expressly or by necessary implication excluded it is then that it will be regarded as essential.¹² Thus the offence of unlawfully taking a girl under sixteen out of the possession and against the will of her parents would be committed, although the offender believed from her appearance and assertions contrary to the fact, that she was older.¹⁴ The object of the legislature being to prevent a scandalous and wicked invasion of parental rights, it must be supposed that they intended that the wrongdoer should act at his peril.¹⁵

On the other hand a duty to report an occurrence cannot impose that duty on one who has no knowledge of the occurrence e.g., that an animal was suffering from a notifiable disease or that a motor accident had taken place.¹⁶

If, as has been held a person would not fall under section 30 of the Game Act 1831 (c 32) which punishes the pursuit of game on the land of another without the consent of the owner

⁹ *Carter v Murcot* (1768) 4 Burr 2163

¹⁰ *R v Stimpson* (1863) 32 L J M C 208

¹¹ *White v Feast* (1872) L R 7 Q B 353 per Blackburn J *Reece v Miller* (188) 8 Q B D 626 *Mann v Nurse* (1901) 17 T L R 569 and as to the whole question see *Mussell v Burch* (1876) 35 L T (N S) 486

¹² *Cundy v Le Cocq* (1884) 13 Q B D 207 per Stephen J approved *Hobbs v Hum- chester Corporation* [1910] 2 K B 471 at p 483 per Kennedy LJ

¹³ *R v St Margaret's Trust Ltd* [1958] 2 All E R 289 per Curiam at p 293

¹⁴ *R v Prince and R v Tinkler* *supra*

¹⁵ Stephen J *R v Tolson* (1889) 23 Q B D 190

¹⁶ *Nicholls v Hall* (1873) L R 8 C P 322 *Harding v Price* [1948] 1 K B 695

if he had the consent of the person whom he honestly and reasonably believed to be the owner¹⁷ he would yet be liable to conviction if he trespassed on land which he believed to be part of the property over which he had the licence, but which was in fact the property of a different person¹⁸ the statute infringed not being a mere criminal statute, but one passed to protect the peculiar rights of those entitled to shoot game¹⁹

Where a Railway Act, for the better prevention of accidents or injury which might arise on the railway from the unsafe and improper carriage of certain goods enacted that every person who should send gunpowder or similarly dangerous articles by the railway should mark or declare their nature under a penalty enforceable by imprisonment, it was held that guilty knowledge was essential to a conviction. An agent, therefore, who sent some cases of dangerous goods by a railway without mark or declaration, and was not only ignorant of their nature, but had been misinformed of it by his principal in answer to his inquiries incurred no penalty on the ground that his ignorance, in such circumstances, proved the absence of *mens rea*²⁰. Yet he was under no legal duty to send the goods, and he might have refused to do so without actual inspection.

A similar conclusion was come to where although there was no knowledge, there were means of knowledge which were neglected. The Embezzlement of Public Stores Act, 1697 (c. 41)²¹ after reciting that convictions of embezzling government stores had been found impracticable because direct proof of the immediate taking could rarely be made, enacted that the person in whose possession the goods bearing the King's mark should be found should forfeit the goods and £200, unless he produced at the trial an official certificate of the occasion of their coming into his possession. It was held under this statute by the Court for Crown Cases Reserved, that such a person was not liable to conviction in the absence of proof that he knew (though he had

¹⁷ *R v Cridland* (1857) 27 LJMC 23.

¹⁸ *Morden v Prier* (1860) 29 LJMC 313. But see *Dickinson v Felt* (1914) 78 JP 326.

¹⁹ *Watkins v Malor* (1875) LR 10 CP 66.

²⁰ *Hearne v Cartin* (1859) 28 LJMC 216. For the converse of this proposition see *Moussell v L & N W Ry* [1917] 2 KB 835.

²¹ Repealed and re-enacted with amplifications by the Public Stores Act, 1975 (c. 25).

reasonable means of knowing) that the goods bore the government mark.²² This decision however, might be questioned on the authority of another case, which was not cited, where the Court of Exchequer held that a dealer in tobacco was liable to the penalty imposed by the statute for having adulterated tobacco in his possession, though ignorant of the adulteration.²³ It may be doubted whether the literal construction of the language, enforcing vigilance for the protection of the public from danger or robbery, by visiting negligence²⁴ as well as misdeed with penal consequences, would not have been more in harmony with the intention, and have more completely promoted the object of the legislature.

The innocent possession of spirits which owing to natural causes, had exuded from the wood and collected at the bottom of a cask did not render the owner liable under the Finance Act 1898 (c 10) s 4 (1) which provided that 'a person shall not subject any cask to any process for the purpose of extracting any spirits absorbed in the wood thereof, or have on his premises any cask which is being subjected to any such process or any spirits extracted from the wood of any cask.'²⁵

Mens Rea Ignored

At the present time there is a large body of criminal law which has been framed in such terms as to make an act criminal without any *mens rea*.

A passenger may be compelled by law to show his ticket even though he has no intent to defraud.²⁶

²² *R v Sleep* (1861) 30 L J M C 170 *R v Willmetts* (1848) 3 Cox 281 *R v Cohen* (1868) 8 Cox 41 See *Aberdare v Hammett* (1875) L R 10 Q B 162 See also *Hopton v Thirlwall* (1864) 9 LT (ns) 327 where a person found to have in his possession the young of salmon in contravention of the Salmon Fishery Act 1861 (c 109) s 15 was held not liable to conviction since though he knew he was in possession did not know the fish was salmon See now Salmon and Freshwater Fisheries Act 1973 (c 16) s 3

²³ Tobacco Act 1842 (c 93) *R v Woodrow* (1846) 16 L J M C 122 see now Customs & Excise Act 1952 (c 44) See also *Burnby v Bollett* (1848) 16 M & W 644 per Parke B *R v Treeve* (1796) 2 East P C 821 *R v Dixon* (1814) 3 M & S 11

²⁴ Cf *R v Stephens* (1866) L R 1 Q B 702 *Coppen v Moore* (No 2) [1898] 2 Q B 306 *Commissioners of Trade etc v Bell* [1902] A C 563 P C *Mousell v L & V Ry* [1917] 2 K B 836 *Quality Dairies (York) v Pedley* [1952] 1 K B 275

²⁵ *Robinson v Dixon* (1903) 72 L J K B 717 See now Customs and Excise Act 1952 (c 44) s 114

²⁶ *Saunders v S E Ry* (1880) 5 Q B D 456 *Lowe v Ielp* [1896] 1 Q B 246

The offence of receiving two or more lunatics in an unlicensed house is committed though the persons were received in the belief based on reasonable grounds, that they were not lunatics.³²

The honest belief by a licensee that a bottle was properly sealed was no defence to an information under section 2 of the Intoxicating Liquors (Sale to Children) Act, 1901 (c 27), which rendered the sale of liquors to children under fourteen illegal, unless in corked and sealed vessels, if in fact the bottle was not properly sealed.³³ But a licensee bolder who had not delegated his authority nor concurred in a sale could not be convicted under the same section by reason of a barman selling to a person under fourteen.³⁴

Under a special Act which empowered a gas company to make the necessary works for its business subject to a penalty if it should suffer any washings to be conveyed or to flow 'into any stream or place corrupting or fouling the water the company was held liable to the penalty in a case where the washings percolated through the bottom of its gas tank and polluted a well, without the knowledge of its servants.³⁵ But where a person does an act which is lawful in itself but has become unlawful as a result of some action entirely unknown to him by some other person not his servant or agent it is said that he will not be liable even though *mens rea* is not a constituent of the offence.³⁶

Acts of Servants

The principle that, unless the legislature has indicated the contrary intention the infliction of penalties is to be presumed to be confined to cases where the offender has *mens rea* is well illustrated by those cases in which it has been sought to render a master penally responsible for the acts of his servant. 'A master who is not particeps in the offence can only be liable criminally for the acts of his servant if the statute which creates the offence does so in terms which impose an absolute prohibition.³⁷ Thus a surveyor could not be convicted of having caused a heap of

³² § 8 & 9 Vict. c. 100 § 44 repealed and re-enacted by Lunacy Act 1890 (c 5) § 315 *R v Bishop* (1880) 5 Q B D 259

³³ *Brooks v Mason* [1902] 2 K B 743 See now Licensing Act 1953 (c 46) § 128

³⁴ *Emary v Nolloth* [1903] 2 K B 264

³⁵ *Hipkins v Birmingham Gas Co* (1861) 30 L J Ex 60 And see *Quality Dairies (York) v Pedley* [1952] 1 K B 275

³⁶ *Reynolds v G H Austin & Sons* [1951] 2 K B 135 per Humphreys J at p 143

³⁷ *Gardner v Akeroyd* [1952] 2 Q B 743 per Goddard L.C.J.

stones to be laid upon a highway and of having allowed it to remain there at night to the danger of any person thereon, when the stones had been laid and allowed to remain there by a carter acting under the orders of a person to whom a surveyor had given general directions as to repairing the road the surveyor having no personal knowledge of the fact³⁸ Under the repealed Smoke Abatement, London, Act, 1853 (c 128), ss 1, 2, to support a criminal charge against an owner or occupier of trade premises within the metropolis of negligently using a furnace employed thereon so that the smoke was not effectually consumed, it was held that evidence of personal negligence was essential and that evidence of negligence on the part of a servant was insufficient³⁹

No doubt there may be a legal presumption that whatever a servant does in the course of the employment with which he is entrusted, and as part of it, is the master's act unless the contrary be shown⁴⁰ and a master may consequently be penally responsible for the act of his servant as if it were his own act unless he can show that what was done was in contravention of his orders On this ground a haker has been held liable to a penalty for selling bread in which his servant had mixed alum,⁴¹ and a carrier, whose waggoner had carried in the carrier's waggon game not sent by a qualified person (when the 6 Anne c 16, was in force), was properly convicted of carrying the game⁴²

A licensed victualler was held penally responsible under section 16 of the Licensing Act, 1872 (c 94), for the act of his servant in knowingly supplying liquor to a constable on duty,⁴³ the act being within the scope of the servant's employment⁴⁴ and where gaming had taken place on licensed premises to the knowledge of a servant

³⁸ Highway Act 1835 (c 50) s 56 *Hardcastle v Bielby* [1892] 1 Q B 709 but see *contra Taylor v Greenhalgh* (1876) 24 WR 311 *Pendlebury v Greenhalgh* (1876) 1 Q B D 36 CA See now Highways Act 1959 (c 25) s 150

³⁹ *Chisholm v Donlton* (1889) 22 Q B D 726 See also *Bagge v Whitehead* [1892] 2 Q B 355 *Lee v Dangar* [1892] 2 Q B 337

⁴⁰ *All Gen v Siddon* (1830) 35 R.R. 701 *Barnes v Ackroyd* (1872) L.R. 7 Q B 474 *Strutt v Chiff* [1911] 1 K B 1

⁴¹ *R v Dixon* (1814) 3 M & S 11

⁴² *R v Marsh* (1824) 2 B & C. 717 but see *Brett J R v Prince* (1875) L.R. 2 C.C.R. 154

⁴³ *Mullins v Collins* (1874) L.R. 9 Q B 292 See also *Brown v Foot* (1892) 61 L.J.M.C. 110 but see *Sherras v De Rut en* [1895] 1 Q B 918

⁴⁴ *A. L. Smith J Newman v Jones* (1886) 17 Q B D 137 See now 1953 (c. 46) s 142

who had been placed in charge of the premises it was held that the licensed person had 'suffered' gaming to be carried on on the premises within the meaning of section 17 of the Licensing Act 1872, though he had no knowledge of the gaming, and had not connived at it. Stephen J sums up the position thus: 'On general grounds I should entertain no doubt as to the intention of the statute. I think the meaning is that the landlord of the licensed premises must prevent that which the Act prohibits from being done on his premises and if he does not prevent it so much the worse for him.'⁴⁵

Under the Merchandise Marks Act, 1887 (c 28) s 2 (2) a master is criminally liable if his servants, within the general scope of their employment, sell goods to which a false trademark or false description has been applied although they do so contrary to their master's orders unless the master can show that he has acted in good faith and has done everything he reasonably can to prevent the commission of offences by his servants. That is to say under this Act the burden of proof is shifted and is not in accordance with the ordinary rules and principles of criminal law, in that the prosecution has not to prove *mens rea* but the defendant to be acquitted has to prove an absence of *mens rea*.⁴⁶

But the interpretation of the enactment under consideration may make it clear that the act of the servant, in the absence of delegation of authority to him by the master cannot be regarded as the act of the master and it is necessary to show that the latter had personal knowledge of the incriminating circumstances to ensure conviction. Thus the committee of a club cannot properly be convicted of selling liquor without a proper licence where the sale has been by the steward contrary to the express orders of the committee and without their knowledge or assent.⁴⁷

Where gaming had taken place on licensed premises to the knowledge of a potman who was employed on the premises but there was no evidence to show any connivance or wilful blindness

⁴⁵ *Bond v Evans* (1888) 21 QBD 249 257 cf *Stephen J in Mallinson v Carr* [1891] 1 QB 48 cited by Cozens Hardy MR in *Hobbs v Winchester Corp* [1910] 2 KB 471 also *Bosley v Davies* (1876) 1 QBD 84 *Redgate v Haynes* (1876) 1 QBD 89 *Crabtree v Hole* (1879) 43 JP 799. See now Licensing Act 1953 (c 46) s 141.

⁴⁶ *Coppen v Moore* (No 2) [1898] 2 QB 306 *Christie v Cooper* [1900] 2 QB 522 *Lemy v Watson* [1915] 3 KB 731 *Holmes v Pipers* [1914] 1 KB 57.

⁴⁷ *Newman v Jones* (1886) 17 QBD 132.

on the part of the licensed person and it did not appear that the servant was put in charge of the premises, it was held that the justices were right in refusing to convict the licensed person of suffering gaming on the premises ⁴⁸

A master would not be liable to be convicted for unauthorised false representation made by his servant as to the weight of sacks of coal ⁴⁹ *Secus*, if the representation was made by the servant in the course of his employ, ⁵⁰ even if the sacks themselves were made up and delivered by another firm acting as agents ⁵¹

Ignorance of Law

Where it is not open to the offender to plead absence of malice or wilful intent, a plea of ignorance or misapprehension of the law affords no defence ⁵² For instance, though a person in possession of naval stores is not liable to conviction unless he knows that they bear the government mark he would not escape on the ground that he did not know that the possession of such marked goods was prohibited

A man who unlawfully fished in a non tidal river or trespassed on land in search of game, would not escape conviction because he honestly believed that the public was entitled to fish or shoot there ⁵³ such a right not being known to the law

An apprentice who absented himself from his master's service did not escape the penal consequences by proving that he had done so in the honest though erroneous belief, founded on his lawyer's advice that his indentures were void and that he was consequently at liberty to leave his service ⁵⁴

A cabman who persisted in placing his cab on the premises of a railway company after being requested to remove it was penally

⁴⁸ *Somerset v Hart* (1884) 12 Q B D 360 See also *Massey v Morris* [1894] 2 Q B 412 and cf *Somerset v Wade* [1894] 1 Q B 574 576

⁴⁹ *Roberts v Woodward* (1890) 25 Q B D 412

⁵⁰ *Baker v Herd* (1894) 58 J P 413 and see *Franklin v Godfrey* (1894) 63 L J M C 239

⁵¹ *Brentnall and Cleland v L C C* [1945] K B 115 approving on this point *Mousell Bros v L N W Ry* [1917] 2 K B 836

⁵² See *Ellis v Kelly* (1861) 30 L J M C. 35 *Daniel v Janes* (1877) 2 C P D 351 *Hunter v Clare* [1899] 1 Q B 635

⁵³ *Hudson v M Rae* (1863) 33 L J M C. 65 *Smith v Cooke* (1915) 79 J P 245 *Leatt v Vine* (1861) 30 L J M C. 207 *Hargreaves v Diddams* (1875) L R. 10 Q B 582 *Watkins v Major* (1875) L R. 10 C P 662 *Pearce v Scotcher* (1882) 9 Q B D 162 See also *The Charlatta* (1810) 1 Dod 387

⁵⁴ 4 Geo 4 c 34 s 3 repealed by Conspiracy and Protection of Property Act 1875 (c 86) s 17 *Cooper v Simmons* (1862) 31 L J M C 138

liable for wilfully trespassing and refusing to quit,' though he was under the persuasion, which was unfounded, that there existed a legal right to place his vehicle there⁵⁵

It is necessary, as regards *mens rea*, not to confound innocence in the legal sense with a good conscience. Whatever may be the motive, an intention to do an act prohibited by the penal provision of a statute constitutes *mens rea*. "The state of mind of the perpetrator is immaterial"⁵⁶ Thus, to constitute the offence of applying a false trade description to goods with intent to defraud, within the meaning of the Merchandise Marks Act, 1887 (c 28), s 2 (1), it is not necessary that there should be any fraud, in the sense of intent to supply a worthless or inferior article but it is sufficient that an article is intended to be supplied of a different description from that which the customer intends to purchase and believes he is purchasing⁵⁷

The master of a ship who, under general instructions to complete his cargo on the best terms, traded with the enemy, would be guilty of the crime⁵⁸ of harratry, though he acted solely under the motive of serving his employer to the best advantage⁵⁹

A railway company which had suffered a weighing machine in its possession to continue out of repair for a fortnight, so that it indicated more than the true weight was held to fall within the enactment which imposed a penalty for being found in possession of a weighing machine incorrect or otherwise unjust although its servants had orders to make a due allowance for the defect when using it⁶⁰

Under section 31 of the repealed Bankruptcy Act, 1883 (c 52) which enacted that where an undischarged bankrupt obtained credit to the extent of £20 and upwards from any person, without informing such person that he was an undischarged bankrupt

⁵⁵ *Foulger v Steadman* (1873) L.R. 8 Q.B. 65. Cf *Jones v Taylor* (1859) 28 L.J.M.C. 204. There are no longer privileged cabs at London railway stations.

⁵⁶ *Bank of N S Wales v Piper* [1897] A.C. 383.

⁵⁷ *Starey v Chilworth Gunpowder Co* (1839) 24 Q.B.D. 90. *Wood v Burgess* (1890) 24 Q.B.D. 162. *Kirshenbaum v Salmon & Gluckstein* [1898] 2 Q.B. 19. *North Eastern Breweries v Gibson* (1904) 68 J.P. 356.

⁵⁸ *Vallejo v Wheeler* (1774) 1 Cowp. 143.

⁵⁹ *Earle v Rowcroft* (1806) 8 East 126.

⁶⁰ 5 & 6 Will. 4 c. 63 s. 28 (repealed by the Weights and Measures Act 1878 (c. 49) s. 25). *G W Ry v Baile* (1864) 34 L.J.M.C. 31. See also *Lone v Rendall* [1899] 2 Q.B. 673. *London C.C. v Payne* (No. 2) [1905] 1 K.B. 410.

be should be guilty of a misdemeanour, it was no defence to show that there was no intention to defraud ⁶¹

Probably, it may now be said that, in construing the operative verb of a prescribed offence in a case not covered by authority, it is not unusual to see whether that verb is controlled by such a word as 'knowingly'. If it is the doctrine of *mens rea* applies but even if it is not the onus of proof remains on the prosecution to show that *mens rea* is not a necessary ingredient of the offence ⁶²

⁶¹ *R v Dyson* [1894] 2 Q B 176. See now Bankruptcy Act 1914 (c. 59) s. 155 (a).

⁶² *Taylor & Central Garages (Exeter) v Roper* (1951) 115 J P 445. For *mens rea* in cases of manslaughter caused by reckless driving see *Andrews v DPP* [1937] A C. 576 583 and p. 274 *post* and see the newer offence of causing death by dangerous driving Road Traffic Act 1956 (c. 67) s. 8 see now Road Traffic Act 1960 (c. 16) s. 1.

CHAPTER 4

EXTENSION OF THE LETTER TO PREVENT EVASION OR ABUSE

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SECTION 1 — CONSTRUCTION TO PREVENT EVASION

I never understand what is meant by an 'evasion' of an Act of Parliament either you are within the Act or you are not. If you are not within it you are right; if you are within it the course is clear.¹ But some are prepared to steer a tortuous course and so evade the statute. In ordinary life in courts of law and sometimes even in statutes the phrase 'evasion' of an Act of Parliament connotes an attempt to avoid compliance therewith.

Every man is entitled if he can to order his affairs so that the tax attaching under the appropriate Acts is less than it otherwise would be.²

Everybody agrees that the word [evade] is capable of being used in two senses: one which suggests underhand dealing and another which means nothing more than the intentional avoidance of something disagreeable.³

As regards the first of these senses it does not really involve a question of verbal construction of a statute at all. It is simply

¹ *Edwards v Hall* (1856) 6 De G M & G 74 at p 89 per Lord Cranworth L.C.

² *I R C v Westminster (Duke)* [1936] A.C. 1 at p 19 per Lord Tomlin. See also *MacLay v Dixon* (1944) 170 L.T. 49 C.A. cited in note 46 post p 116 where it was held that a landlord was entitled to arrange matters so as not to attract the control of the Rent Restrictions Acts. With reference to what is called 'tax avoidance' the following quotation from the judgment of Lord Greene M.R. in *Howard de Walden (Lord) v I R C* [1942] 1 K.B. 389 at p 397 is of interest.

For years a battle of manoeuvre has been waged by the legislature and those who are minded to throw the burden of taxation off their own shoulders onto those of their fellow subjects. In that battle the legislature has often been worsted by the skill, determination and resourcefulness of its opponents. It would not shock us in the least to find that the legislature has determined to put an end to the struggle by imposing the severest of penalties. It scarcely lies in the mouth of the taxpayer who plays with fire to complain of burnt fingers.

³ *Simms v Registrar of Probates* [1900] A.C. 323 at p 334 P.C. per Lord Hobhouse.

fraud—no less than a flagitious attempt to pass off an existing state of things as being something other than that which it really is. Words, of course, may be used to assist in the illusion though it is rarely that the meaning of such words will be called in question. The question will be: Is an evasion being attempted? If so, the court will make short work of it. But when the second sense of 'evasion' is under consideration it merits careful though not necessarily favourable scrutiny and if the result of investigation shows that the avoidance is not, in fact within the mischief contemplated by the statute, it is in a legal sense neither an evasion nor blameworthy, the author being proved to have done nothing outside his right. In either case it may be said that there was an attempt at evasion but the attitude of the court towards the one will be very different from that as regards the other.

The office of the judge is, to make such construction as will suppress the mischief and advance the remedy and to suppress all evasions for the continuance of the mischief.⁴ To carry out effectually the object of a statute it must be so construed as to defeat all attempts to do, or avoid doing in an indirect or circuitous manner that which it has prohibited or enjoined.⁵ *Contra legem facit qui id facit quod lex prohibet. In fraudem vero legis facit, qui solvis verbis legis sententiam ejus circumvenit*⁶, and a statute is understood as extending to all such circumventions and rendering them unavailing. *Quondo aliquid prohibetur, prohibetur et omne per quod devenitur ad illud*⁷.

'Whenever it can be shown that the acts of the parties are adopted for the purpose of effecting a thing which is prohibited and the thing prohibited is in consequence effected the parties have done that which they have purposely caused though they may have done it indirectly.'⁸ When the thing done is substantially that which was prohibited, it falls within the Act simply because according to the true construction of the statute it is the thing thereby prohibited.⁹ Whenever courts see such attempts

⁴ *Magdalen College Case* (1616) 11 Rep 71b

⁵ Bac Ab Statute (J) Com Dig Parliamt (R) 28

⁶ Dig 1 3 28

⁷ 2 Inst 48

⁸ *Jeffries v Alexander* (1860) 8 H L C 594 at p 623 per Blackburn J discussed in *Re Robson* (1881) 18 Ch D 163

⁹ *Philpott v St George's Hospital* (1857) 6 H L C 338 at p 349 per Lord Cranworth LC

at concealment, they brush away the cobweb varnish" and show the transaction in its true light¹² They see things as ordinary men do¹³ and so see through them Whatever might be the form or colour of the transaction, the law looks to the substance¹⁴ For this purpose the courts go behind the documents and formalities and inquire into the real facts They may, and therefore must, inquire into the real nature of that which was done An Act is not to be evaded by putting forward documents which give a false description of the matter¹⁵ In all such cases, it is in truth, rather the particular transaction than the statute which is the subject of construction and if the transaction is found in reality to be within the statute it is not suffered to escape from the operation of the law by means of the disguise under which its real character is masked

Thus when one of the Acts against usury was in force it was said that if the contract really was an usurious loan of money the wit of man could not find a shift to take it out of the Act,¹⁶ and accordingly transactions which were ostensibly sales of land¹⁷ goods,¹⁸ or stock,¹⁹ or a lease²⁰ or an agency,²¹ or a partnership²² but were in reality usurious loans were held to fall within the Act

If a contract be a wager in substance, no matter how the end is brought about it would be void, though the object were concealed in the form given to the transaction²³

¹² *Collins v Blantern* (1767) 2 Wils 347 at p 349 *per* Wilmot CJ

¹³ *Warner v Armstrong* (1834) 3 Myl & K 45 at p 67 *per* Lord Brougham

¹⁴ *Solarte v Melville* (1827) 1 Man & Ry 204 *per* Lord Tenterden

¹⁵ *Re Watson* (1890) 25 Q B D 27 *Madell v Thomas* [1891] 1 Q B 230

¹⁶ *Floyer v Edwards* (1774) 1 Cowp 114 *per* Lord Mansfield

¹⁷ *Doe v Gooch* (1820) 3 B & Ald 664 *Doe v Chambers* (1814) 4 Camp 1

¹⁸ *Floyer v Edwards* (1774) 1 Cowp 114 *Davis v Hardacre* (1810) 2 Camp 375

¹⁹ *Harvey v Archbold* (1825) 3 B & C 626

²⁰ *Tate v Wellings* (1790) 3 TR 531 *Baldere v Jackson* (1809) 11 East 617 *White v Wright* (1824) 3 B & C 273

²¹ *Redo v Sanderson* (1617) Cro Jac 440 *Jestons v Brooke* (1773) 2 Cowp 793

²² *Harris v Boston* (1810) 2 Camp 348

²³ *Enderby v Gilpin* (1821) 5 Moo 571

²⁴ *Grewood v Blane* (1851) 11 CB 538 *Cf Ex p Phillips* (1861) 30 LJ Bk 1
Jeffries v Alexander (1861) 8 HL Cas 594 *Thacker v Hardy* (1879) 4 Q B D 685 See also *Read v Anderson* (1884) 13 Q B D 779 *C.A. Camunada v Hulton* (1891) 60 LJ MC 116 with which *cf R v Stoddart* [1901] 1 K B 177 See also *Higginson v Simpson* (1877) 2 CPD 76 *Hyams v Stuart King* [1908] 2 K B 696 *Re Deerpur* (1891) 60 LJ Q B 411 *Hill v Hill (William) (Park Lane) Ltd* [1949] AC 530 HL As to evasion of Truck Acts see *Gould v Haynes* (1890) 59 LJ MC 9

Whether a document ought to be registered under the Bills of Sale Acts is not concluded by its terms or form but depends on the evidence of the real nature of the transaction and the real intention of the parties. Thus if A be the real owner of the goods and B the pretended owner and B by a document purports to let the goods to A with liberty to B in certain events to seize them this may be construed as a licence by A, the real owner to B. If it be found as a fact that it was so given, then however absolute in form the document may be it comes within the operation of the Acts and, if it be not registered it is void.

The Theatres Act 1843 (c. 68), which prohibited under a penalty the performance of plays without licence would extend to a performance where the actors did not come on the stage but acted in a chamber below it and their figures were reflected by mirrors so as to appear to the spectators to be on the stage.²²

Section 2 of the Libel Act 1843 (c. 96), which requires in certain circumstances the insertion in a newspaper of a full apology for a libel would not be complied with if the apology, however suitable in its terms was printed in such type or in such part of the paper as would be likely to escape the attention of ordinary readers.²³

A tenant who covenanted not to assign his lease without his landlord's licence would be held to have broken his covenant by giving a warrant of attorney to confess judgment if he gave it for the express purpose of enabling the judgment creditor to take the lease in execution, for this was in effect and intention an assignment of the lease.²⁴ The transaction would be unobjectionable if divested of the intent to break the covenant.²⁵ A similar warrant of attorney, given by an insolvent to enable a favoured creditor to take his goods in execution would, in the same way, be within the provisions against fraudulent transfers of property.²⁷

²² See Bills of Sale Act 1891 (c. 35) *Beckett v Tower Assets Co* [1891] 1 Q B 638 *Maas v Pepper* [1905] A C. 102 *Johnson v Rees* (1915) 84 L J K B 1276

²³ *Day v Simpson* (1865) 34 L J M C. 149

²⁴ *Lafone v Smith* (1859) 28 L J Ex. 33

²⁵ *Doe v Carter* (1793) 8 T R 57 300. See however *Croft v Lumley* (1858) 6 H L C. 739

²⁶ *Bills v Smith* (1865) 34 L J Q B 68 *Re Lautin* [1900] 2 Q B 325

²⁷ *Sharpe v Thomas* (1830) 6 Bing 416 *Croft v Lumley* (1858) 6 H L C. 672. See Bankruptcy Act, 1869 (c. 71) s. 92 (repealed) and Bankruptcy Act 1914 (c. 59) s. 44 *Ex p Griffith* (1883) 23 Ch D 69 *Re Goldsmith* (1887) 13 Q B D 295. For an exception to this rule see *New & Trustee v Hunting* [1897] 1 Q B 607.

On this general principle the courts have repeatedly refused to review by mandamus, or otherwise, the proceedings of an inferior court in a matter within its jurisdiction, when a writ of certiorari is not granted²⁸ Where the payment of rates constitutes a personal qualification the Act would not be complied with if they were paid by another person on behalf of him who claims the qualification²⁹

Keeping Outside the Act

It is, however essential not to confound what is actually or virtually prohibited or enjoined by the language with what is really beyond the enacting part though it may be within the policy of the Act for it is only to the former case that the principle under consideration applies and not to cases where, however manifest the object of the Act may be the language is not co extensive with it An Act of Parliament is always subject to evasion in this sense for there is no obligation not to do what the legislature has not really prohibited, and it is not evading an Act to keep outside it³⁰ This is strikingly illustrated by a case from Australia decided by the Privy Council in which the very word 'evade' came in question³¹ By section 27 of the (South Australian) Succession Duty Act 1893 (which corresponded with section 8 of the Succession Duty Act, 1853 (c 51) property comprised in any non testamentary disposition or representing any debt incurred 'with intent to evade the payment' of succession duty was rendered liable to double duty In the colonial court from which the appeal to the Privy Council came Way C J said that in that provision 'evade means some device or stratagem some arrangement, trust or other device (whether concealed or apparent) by which what is really part of the estate of the deceased is made to appear to belong to somebody else in order to escape payment of duty That ruling

²⁸ *R v Yorkshire* (1834) 5 B & Ad 1003 1 A & E 563 *R v Eaton* (1787) 2 TR 472

²⁹ *R v Bridgnorth* (1839) 8 L J M C 86 *Durant v Withers* (1874) L R 9 CP 257 But cf *R v Bridgewater* (1790) 3 TR 550 *Hughes v Chatham* (1843) 13 L J C P 44 *R v S Kilvington* (1843) 5 Q B 216 See *Chinnery v Evans* (1864) 11 H L C 115 *Harlock v Ashberry* (1882) 19 Ch D 539

³⁰ *Edwards v Hall* (1856) 25 L J Ch 82 at p 84 per Lord Cranworth *Macbeth v Ashley* (1874) L R 2 Sc App 352 at p 359 per Lord Selborne

³¹ *Simms v Registrar of Probates* [1900] A C 323 See also *Bullivant v Att Gen for Victoria* [1901] A C 196 *Payne v R* [1902] A C 552 *Commr for Stamp Duties v Byrnes* [1911] A C 386 *Att Gen v Seccombe* [1911] 2 K B 688

was upheld by the Privy Council, and, accordingly it was held that a covenant by a deceased to pay £200 000 to his children which conferred on them a complete ownership of the debt and which (not having been paid during his life) diminished by that amount his net assets liable to duty (even though the covenant was a 'disposition of property' within the meaning of the Act) was not entered into 'with intent to evade' the duty, there being no evidence to show that the covenant was not a genuine transaction, or anything to impeach its bona fides.

A Duke of Richmond, being minded that his successors should escape estate duty, conceived the idea to and did, disentail and acquire the fee simple of certain estates in Scotland and procured a valuation of his successor's interest in the estates which came to £415,000 and another of his successor's son's interest which came to £287,000. These sums with interest thereon were charged on the estates and were assigned by the successor and his son to trustees upon trust to pay the income thereof to the successor for life and after his death to his son. No interest, however, was paid on them and the duke from time to time gave bonds for such interest amounting to £88,314. When the duke died in 1903, the Inland Revenue claimed estate duty in respect of these estates but it was held that none was payable because the said sums and interest amounted in the aggregate to more than the value of the estates that passed on the death of the duke.³²

A hiring for a few days less than a year though avowedly to prevent the servant from acquiring a settlement was not regarded as any evasion of the Act which gave a settlement on a year's service.³³

Where a testator, after devising a piece of land in a certain hamlet in fee simple directed that if any person should within twelve months after the testator's decease at his or her own expense, purchase and give a suitable piece of land for almshouses, the trustees of the will should pay a sum of money to the charity so instituted, but so that no part should be laid out in the purchase

³² *Att Gen v Duke of Richmond* [1909] A.C. 466 H.L. Lord Shaw (one of the two dissenting Lords) said "I do not think that the scheme was in this case accomplished without a contravention of the letter as well as a very plain violation of the spirit of the statute. See now Finance (1909-10) Act 1910 (c. 8) s. 5" as modified by Finance Act, 1958 (c. 56) s. 28 (8).

³³ *R v Little Coggles* (1817) 6 M. & S. 264. *R v Mursley* (1787) 1 T.R. 694.

of land, it was held that the bequest was valid, and did not fall within the Charitable Uses Act, 1735 (c 36) ³⁴

Again, where a testator devised land to two persons absolutely and signed an unattested paper expressing a desire with which they were unacquainted until after his death that it should be applied to charitable purposes, it was held that the devise was valid, and did not fall within that Act, for there was no binding trust for charitable purposes ³⁵

A beer shopkeeper who is licensed to sell beer only to be drunk off the premises evades the Act if he sells beer to be drunk on a bench which he provides for his customers close to his shop, the intention making it virtually, a sale for consumption on the premises, ³⁶ but a mere sale through a window to a person who stood on the road outside has been held not to be an evasion, though the buyer drank the beer immediately on receiving it ³⁷

A licensee was not authorised to sell liquor during prohibited hours for consumption off the premises by section 10 of the Licensing Act 1874 (c 49), which allowed the sale of liquor at any time to bona fide travellers by a person licensed to sell liquor on the premises ³⁸

The occupier of a field adjoining a turnpike did not evade though he avoided payment of toll by making a semicircular road between two gaps in his hedge one on each side of the toll bar, and driving by it instead of along that part of the highway which formed its chord ³⁹

Nor did a shipowner evade harbour dues charged on goods landed in it by landing his goods a few yards outside the boundary of the harbour ⁴⁰

An enactment which imposed a duty on legacies did not extend to a gift to take effect on the donor's death, made by a deed which

³⁴ *Phillpott v St George's Hospital* (1857) 6 H L C 338 *Dent v Allcroft* (1861) 30 Beav 335 See also *Edwards v Hall* (1856) 25 L J Ch 82

³⁵ *Wallgrave v Tebbs* (1856) 25 L J Ch 241 *Jones v Badley* (1867) L R 3 Eq 635

³⁶ *Cross v Watts* (1863) 32 L J M C 73 *Brigden v Helghes* (1876) 1 Q B D 330

³⁷ *Deal v Schofield* (1867) L R 3 Q B 8 a doubtful case decided on particular facts and probably nullified by s 66 (1) Licensing (Consolidation) Act 1910 (c 24) See now Licensing Act 1953 (c 46) s 124

³⁸ *Mountfield v Ward* [1897] 1 Q B 326

³⁹ *Harding v Headington* (1874) L R 9 Q B 157 *Veitch v Exeter* (1858) 27 L J M C 116

⁴⁰ *Wilson v Robertson* (1855) 24 L J Q B 185 *Harvey v Lyme Regis* (1869) 38 L J Ex 141

contained power of revocation, though such a gift had all the essential incidents of a legacy ⁴¹

A statute which imposes a tax, indeed, is always construed strictly, but the above decision which is no longer law, shows that if legislation closes only one of two doors, it is no evasion to use the other, which may have been left open

So, section 87 of the (repealed) Bankruptcy Act 1869 (c 71) which provided that the sheriff should retain for fourteen days the proceeds of goods sold in execution when exceeding £50, and if he received notice of the debtor's bankruptcy, should pay them to the trustee in bankruptcy, did not prevent a creditor for more than £50 from signing judgment for less than that amount though he did so avowedly to escape from the operation of the Act ⁴²

An agreement that the rent of demised premises should be reduced when and as soon as the income tax was abolished was held not to fall within the prohibition contained in section 73 of the Income Tax Act, 1842 (c 35), against all contracts binding the tenant to pay the income tax without deducting it from his rent ⁴³

A railway company, prevented from raising money by loan, may yet procure money by a sale of a portion of its rolling stock for the sum which it requires retaining the stock by hiring it for a term on payment of an annual sum which repays the purchase-money with interest ⁴⁴

The Act which required that all bills of sale of personal chattels should be registered within twenty one days from execution, on pain of being void against creditors was held not to invalidate an arrangement by which a fresh bill of sale was to be given every twenty one days, and none were to be registered until the debtor got into difficulties. Although such an arrangement was considered to be detrimental to the interests of the revenue and to be calculated to defeat and delay creditors and so was contrary to the general policy of the Act since it left the debtor apparently the owner of property which he had transferred, it was held not to be prohibited by its language and the last bill of sale, which

⁴¹ *Tompson v Browne* (1835) 5 L.J Ch 64

⁴² *Ex p Reya* (1877) 6 Ch D 332. See *Ex p Abbott* (1890) 15 Ch D 447. See now Bankruptcy Act, 1914 (c. 59) s. 41 (2)

⁴³ *Colbron v Travers* (1862) 31 L.J.C.P. 257. *Davies v Fitton* (1842) 2 Dr. & War 225. See also *Lamb v Brewster* (1879) 4 Q.B.D. 220, 607

⁴⁴ *Yorkshire Railway Wagon Co v MacLure* (1882) 21 Ch D 309. *cf* *Wilson* (1911) 27 T.L.R. 582

was duly registered was held valid against an execution creditor⁴³. This device however is now rendered nugatory by the Bills of Sale Act 1878 (c 31) s 9.

The owner of a cottage did not want to let it but was willing to do so for a limited time and then quarterly on terms which would prevent the Rent Restrictions Acts applying to the cottage. It was therefore arranged that the proposed tenant should sell to the owner of the cottage a number of articles of furniture on terms that they should be included in the letting and be repurchased by the proposed tenant when the tenancy came to an end. It was held that the parties were entitled to arrange that the letting should be a furnished letting in order to prevent the Acts applying⁴⁴.

Construction to Avoid Inconvenience

It has been found necessary to suffer an evasion or breach of an Act, where intolerable inconvenience would otherwise result. Though section 17 of the Stamp Act 1870 (c 97) (repealed and re enacted by the Stamp Act, 1891 (c 39) s 14) enacted that no document which is not properly stamped should be receivable in evidence and section 54 of the Act of 1870 (now section 38 of the Stamp Act 1891 (c 39)) provided that a person who received a bill of exchange or cheque not duly stamped could not recover upon it, or make it available for any purpose whatever, it has been held that if the cheque sued upon has a stamp sufficient on its face, the fact that it was post dated to the knowledge of the holder and so was not sufficiently stamped did not affect its admissibility in evidence. The ground of the decision was that a different conclusion would have introduced the greatest difficulty in the administration of justice involving an interruption of the trial by collateral inquiries into facts accompanying the giving of the instrument⁴⁵.

SECTION 2—CONSTRUCTION TO PREVENT ABUSE OF POWERS

Enactments which confer powers are so construed as to meet all attempts to abuse them either by exercising them in cases

⁴³ *Smale v Burr* (1873) L.R. 8 CP 64. Cf *Ex p Cohen* (1874) L.R. 7 Ch 20. *Ex p Stevens* (1875) L.R. 20 Eq 786. *Ramsden v Lupton* (1874) L.R. 9 QB 17 but see *Sales Agency v Elite Theatres* [1917] 2 KB 164.

⁴⁴ *Macloy v Dixon* [1944] 1 All E.R. 2. See also note 2 ante.

⁴⁵ *Gatty v Fry* (1877) 2 Ex D 265. *Blackburn J Austin v Bunyard* (1865) 6 B & S 687. *Royal Bank of Scotland v Tottenham* [1894] 2 QB 715. But cf *Clarke v Roche* (1877) 3 QB D 370.

not intended by the statute, or by refusing to exercise them when the occasion for their exercise has arisen⁴⁸ Though the act done was ostensibly in execution of the statutory power and within its letter, it would nevertheless be held not to come within the power if done otherwise than honestly and in the spirit of the enactment For instance, the power given by Bankruptcy Acts to a majority of creditors to make arrangements with their debtor⁴⁹ which were made by statute binding on the non assenting minority, would not be validly exercised so as to have this binding effect, if the conduct of the majority were tainted with fraud, or even, if from motives of benevolence, the majority had agreed to a composition disproportioned to the assets⁵⁰

So, the creditor who voted for a composition with his debtor under section 126 of the repealed Bankruptcy Act, 1869, was bound to vote bona fide for the benefit of the creditors and if it appeared that he gave his vote for the benefit of the debtor and not for that of the creditors it would have been rejected⁵¹

Malpractice by the debtor in obtaining a single vote sufficed to vitiate a creditor's resolution for liquidation by arrangement, under the Bankruptcy Act of 1869⁵²

Discretion

Where, as in a multitude of Acts, something is left to be done according to the discretion of the authority on whom the power of doing it is conferred the discretion must be exercised honestly and in the spirit of the statute otherwise the act done would not fall within the statute According to his discretion' means it has been said, according to the rules of reason and justice not private opinion⁵³, according to law and not humour it is to be,

⁴⁸ *Biddulph v St George's Vestry* (1864) 33 L J Ch 411 per Turner L J *Vernon v St James Vestry* (1880) 16 Ch D 449

⁴⁹ See Bankruptcy Act 1914 (c 59) s 16

⁵⁰ *Exp Cowen* (1867) L R 2 Ch 563 at p 570 per Lord Cairns *Exp Russell* (1875) L R 10 Ch 255 *Re Page* (1876) 2 Ch D 323 *Re Terrell* (1878) 4 Ch D 293 *Exp Aaronson* (1878) 7 Ch D 713 *Exp Ball* (1882) 20 Ch D 670

⁵¹ *Exp Cobb* (1873) L R 8 Ch 727 and see *Exp McHenry* (1883) 24 Ch D 35 CA

⁵² *Re Baum* (1878) 7 Ch D 719 CA

⁵³ *Rooke's Case* (1598) 5 Rep 100a *Keighley's Case* (1609) 10 Rep 140a *Lee v Bude Ry* (1871) L R 6 CP 580 at p 581 per Willes J

not arbitrary vague and fanciful, but legal and regular⁵⁴, to be exercised not capriciously, but on judicial grounds and for substantial reasons⁵⁵. And it must be exercised within the limits to which an honest man competent to the discharge of his office ought to confine himself,⁵⁶ that is, within the limits and for the objects intended by the legislature. These dicta may be summed up in the statement of Lord Esher that the discretion must be exercised without taking into account any reason which is not a legal one. If people who have to exercise a public duty by exercising their discretion take into account matters which the courts consider not to be proper for the guidance of their discretion, then in the eye of the law they have not exercised their discretion⁵⁷. Moreover, if a public authority bases its exercise of discretion on a misinterpretation of the statute which it purports to administer, the court has jurisdiction to interfere⁵⁸. 'I apprehend that the courts are not entitled to interfere (with a discretionary power given by a statute) unless either (a) the exercise of the discretion has not complied with the conditions provided by the statute for the exercise of the discretionary power or (b) the power has not been exercised judicially⁵⁹. Where a statute empowers Her Majesty in Council to make a regulation if it appears necessary or expedient, neither the necessity of the regulation nor the reasons which motivated Her Majesty to make it can be called into question⁶⁰. Where a Minister of the Crown has to be satisfied before taking certain action there is a presumption that he is acting reasonably and a statement by him that he is so satisfied will be conclusive⁶¹.

On the other hand if the decision of a Minister of the Crown shall not be questioned in any legal proceedings whatsoever the courts have no jurisdiction to question it even if it could be

⁵⁴ *R v Wilkes* (1769) 4 Burr 2527 at p 2539 per Lord Mansfield. *Sharpe v Wakefield* [1891] A C 173 at p 179 per Lord Halsbury L C.

⁵⁵ *Re Taylor* (1877) 4 Ch D 157 at p 160 per Jessel M R. *Doherty v Allman* (1879) 3 App Cas 709 at p 728 per Lord Blackburn.

⁵⁶ *Wilson v Rastall* (1792) 4 T R 757 per Lord Kenyon. *R v Audly* (1700) Salk 526. *R v Havell* (1779) 1 Doug 115.

⁵⁷ *R v St Pancras* (1890) 24 Q B D 375. *R v Board of Education* [1910] 2 K B 165.

⁵⁸ *R v Board of Education* [1910] 2 K B 165.

⁵⁹ *I R C v Ross & Coulter* [1948] 1 All E R 616 per Lord Thankerton, at p 619.

⁶⁰ *R v Comptroller General of Patents ex p Bayer Products Ltd* [1941] 2 K B 306 C A. *Progressive Supply Co v Dalton* [1943] Ch 54.

⁶¹ *Land Realisation Co v Postmaster General* [1950] Ch 435. But see *Nakkuda Ali v Jayaratne* [1951] A C 66.

shown that the decision was made in bad faith⁶² Moreover if the Minister's power is ministerial and not judicial or quasi judicial, his motives for exercising it cannot be questioned⁶³ But it was long ago settled that the power given by the Poor Relief Act, 1601 (c 2), to the overseers of parishes to raise a poor rate by taxation of the parishioners in such competent sums as they thought fit did not authorise an arbitrary rate on each parishioner, but required that the rates should be equal and proportionate to the means of the contributors⁶⁴ The Highway Act, 1835 (c 50), which provided that if any complaint was made against the road surveyor's accounts, the justices at special highway sessions should bear it and 'make such order thereon as to them should seem meet,' would not authorise them to allow, contrary to section 46, illegal expenses such as a charge for the use of the surveyor's horses, which were expressly forbidden to be incurred at all⁶⁵ Overseers, who were required by section 2 of the Beerhouse Act, 1840 (c 61),⁶⁶ to certify whether applicants for beer licences were real residents and ratepayers of the parish, were not entitled to refuse a certificate on the ground that in their opinion there were already too many public houses, or that the beershop was not required They had no right to shut their eyes to the facts, and to refuse to certify, when they were satisfied that the applicant possessed the qualifications required by the Act⁶⁷

Under a repealed enactment which provided that no licence should be refused by justices except on one or more of four specific grounds, it was held that justices, in refusing were bound to state on which of the grounds they based their refusal as otherwise they might, in abuse of their powers, refuse on other grounds than those to which they were limited⁶⁸

⁶² *Smith v East Elloe R D C* [1956] A C 736 H L a decision on the Acquisition of Land (Authorisation Procedure) Act 1946 (c 49) Sched 1 Part IV paras 15 and 16

⁶³ *Franklin v The Minister of Town and Country Planning* [1948] A C 87 H L

⁶⁴ *Earby v Cose* (1637) 2 Bulstr 354 *Marshall v Putman* (1833) 9 Bing 595 See *Jones v Mersey Docks* (1864) 11 H L C 443 and *Whitchurch v Fulham Board* (1866) L R 1 Q B 233

⁶⁵ *Barton v Piggott* (1874) L R 10 Q B 36

⁶⁶ Repealed in part by Wine and Beerhouse Act 1869 (c 27) s 21

⁶⁷ *R v Withyham* (1854) 2 Com.Law Rep 1657 See however *R v Kensington* (1847) 12 Q B 654 in which it was held that the giving of a certificate was not compulsory

⁶⁸ Wine and Beerhouse Act 1869 (c 27) s 8 *R v Sykes* (1875) 1 Q B D 52 *Ex p Smith* (1878) 3 Q B D 374 See *Ex p Gorman* [1894] A C 23

The power to take certain lands given to railway and other companies for their undertaking or to municipalities for their public works constitutes them sole judges whether they will take the lands but they must act bona fide for the purposes authorised by the Act, and not for a collateral purpose⁶⁹ and the lands must only be used for the purposes for which they were taken⁷⁰ unless authoritative sanction be given to their being otherwise used⁷¹. And, *semble*, the powers are not assignable⁷².

Discretion Fettered by Practice

Although, where the discretion has been settled by practice it seems right that this should not be departed from without strong reason⁷³ yet in cases where a statute confers a discretionary power an exercise of it in the fetters of self imposed rules of practice purporting to bind in all cases, would not be within the Act⁷⁴. Thus where an Act gave the court of quarter sessions power if it thought fit, to give costs in every poor law appeal it would be bound to exercise a fair and honest discretion in each case, and would not be entitled to govern itself by a general resolution or rule of practice to give nominal costs in all cases⁷⁵ for this would be in effect to repeal the provision of the Act.

A Licensing Act now repealed which empowered justices to grant licences to innkeepers and others to sell liquors, as in the exercise of their discretion they deemed proper would not justify a general resolution to refuse licences in a certain locality,⁷⁶ or to certain persons who did not consent either to take out an excise

⁶⁹ *Stockton Ry v Brown* (1860) 9 H.L.C. 246 *Lewis v Weston Loc Bd* (1883) 40 Ch.D. 55 *Stroud v Wandsworth Board of Works* [1894] 2 Q.B. 1 *Tracy v Pretty* [1901] 1 K.B. 444 and cf *Goldberg v Liverpool Corp'n* (1900) 82 L.T. 362

⁷⁰ *London County Council v Att Gen* [1902] A.C. 165 *Att Gen v Mersey Ry* [1907] A.C. 415 *Eccles Corp'n v South Lancashire Tramways Co* [1910] 2 Ch. 263 *Att Gen v West Gloucestershire Water Co* [1909] 2 Ch. 338 *Att-Gen v Leicester Corp'n* [1910] 2 Ch. 359

⁷¹ *Att Gen v Hanwell* [1900] 2 Ch. 377 *Att Gen v Pontypridd* [1906] 2 Ch. 257

⁷² *Edinburgh Street Tramways Co v Edinburgh* [1894] A.C. 456 *Eccles Corp'n v South Lancashire Tramways Co* *supra* in which case Cozens-Hardy M.R. said "A parliamentary franchise of this kind is not a bit of property which the owner can dispose of just as he might a stick or a table or an acre of land"

⁷³ 2 Inst. 298 *R v Chapman* (1838) 3 C. & P. 558 *Codd v Cabs* (1876) 1 Ex.D. 352, C.A.

⁷⁴ *Att Gen v Emerson* (1889) 24 Q.B.D. 56

⁷⁵ *R v Merloneth* (1844) 6 Q.B. 163 *R v Glamorganshire* (1850) 19 L.J.M.C. 172.

⁷⁶ *R v Balsall* (1854) 3 Com.L.R. 100

licence for the sale of spirits in addition to the licence for the sale of beer,⁷⁷ or in consideration of the grant of the licence to pay a sum of money for a public purpose⁷⁸

On the other hand, it has been held that a licensing authority may, in the exercise of its discretion, impose a condition that the applicant shall not apply to another authority for a different species of licence⁷⁹

Where a similar Act, after fixing the hours within which in toxicating liquors might be sold, authorised the licensing justices to alter the hours in any particular locality within the district requiring other hours it was held that they had no right to alter the time in every case by virtue of a general resolution to which they had come⁸⁰ And though their resolution was limited to a portion of the locality yet as this portion comprised every licensed house of the whole district the limitation was regarded as a mere attempt to evade the Act The statute required them to decide in the honest and bona fide exercise of their judgment, what particular localities required hours for opening and closing other than those specified by the Act and they were bound to satisfy themselves as to the special circumstances of the particular locality, which by taking them out of the general rule laid down by Parliament required that an exception should be made⁸¹ The statute laid down a general rule and permitted an exception, but here the exception had swallowed up the rule, and that which might fairly have been an exercise of discretion became no exercise of the kind of discretion meant by the Act⁸²

⁷⁷ *R v Sylvester* (1862) 31 L J M C 93 discussed in *Sharpe v Wakefield* [1891] A.C. 173 180

⁷⁸ *R v Bowman* [1898] 1 Q B 663

⁷⁹ *R v West Riding C.C.* [1896] 2 Q B 386

⁸⁰ *Macbeth v Ashley* (1874) L.R. 2 Sc.App. 352

⁸¹ *Macbeth v Ashley* (1874) L.R. 2 Sc.App. 352 at p. 359 *et seq.* per Lord Selborne

⁸² *Macbeth v Ashley* (1874) L.R. 2 Sc.App. 352 at p. 357 per Lord Cairns L.C.
See now Licensing Act 1953 (c. 46) s. 101

CHAPTER 5

RESTRICTION OF THE LANGUAGE TO BE IN HARMONY WITH OTHER PRESUMPTIONS

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SECTION 1 —PRESUMPTIONS AGAINST OUSTING ESTABLISHED, AND CREATING NEW, JURISDICTIONS

It is, perhaps on the general presumption against an intention to disturb the established state of the law, or to interfere with the vested rights of the subject¹ that so strong a leaning now exists against construing a statute so as to oust or restrict the jurisdiction of the superior courts although this feeling may owe its origin to the pecuniary interests of the judges in former times, when their emoluments depended mainly on fees². It is supposed that the legislature would not make any important innovation without a very explicit expression of its intention³ especially since in recent years such an intention has often been very explicitly expressed⁴. It would not be inferred for instance, from the grant of a jurisdiction to a new tribunal over certain cases that the legislature intended to deprive the superior court of the jurisdiction which it already possessed over the same cases. Thus, an Act

¹ See *Jacobs v Brett* (1875) L R 20 Eq 1

² *Scott v Avery* (1856) 5 H L C 811 per Lord Campbell *Oram v Brearey* (1877) 2 Ex D 346. So in construing contracts *Scott v Avery* supra *Tredwen v Holman* (1862) 1 H & C 72 *Edwards v Aberayron Insurance Soc* (1876) 1 Q B D 563 *Dawson v Fitzgerald* (1876) 1 Ex D 257

³ For a modern example see *Pyx Granite Co Ltd v Minister of Housing and Local Government* [1960] A C, 260 H L.

⁴ Thus the National Service (Armed Forces) Act 1939 (c 81) s 6 (9) provided that "No determination made for the purposes of this section shall be called in question in any court of law". See also the similar words in the Acquisition of Land (Authorisation Procedure) Act 1946 Sched I Part IV para. 16 and *Smith v East Elloe R D C* [1956] A C, 736 H L.

which provided that if any question arose upon taking a distress it should be determined by a commissioner of taxes would not thereby take away the jurisdiction of the High Court to try an action for an illegal distress⁶. Nor would that court be ousted of its preventive jurisdiction to stop by injunction the misapplication of poor rates by reason of the statutory power given to the Poor Law Commissioners to determine the propriety of all such expenditure⁶. Nor did it follow in either case, that because authority was given to the commissioners, it was taken away from the court. The matter is summarised by Willes J in *Wolverhampton New Waterworks Co v Hawkesford*⁷. There are three classes of cases in which a liability may be established founded upon a statute. One is, where there was a liability existing at common law, and that liability is affirmed by a statute which gives a special and peculiar form of remedy different from the remedy which existed at common law there, unless the statute contains words which expressly or by necessary implication exclude the common law remedy, the party suing has his election to pursue either that or the statutory remedy. The second class of case is, where the statute gives the right to sue merely but provides no particular form of remedy there, the party can only proceed by action at common law. But there is a third class, viz, where a liability not existing at common law is created by a statute which at the same time gives a special and particular remedy for enforcing it. The remedy provided by the statute must be followed, and it is not competent to the party to pursue the course applicable to cases of the second class⁸.

After quoting this passage Farwell J in *Stevens v Chown*⁹

⁶ Taxes Act 1803 (c. 99) (repealed by the Taxes Management Act 1880 (c. 19) s. 4). *Shaftesbury v Russell* (1823) 25 R.R. 534. See also *Rochdale Canal Co v King* (1849) 14 Q.B. 122. *Itchin Bridge Co v Southampton Local Board of Health* (1857) 27 L.J.Q.B. 128.

⁷ *Att Gen v Southampton* (1849) 17 Sim. 6. See *Burley v Chorlton* (1841) 3 Beav. 499. *Smith v Whitmore* (1863) 1 Hem. & M. 576. *Bennett and White (Calgary) v Municipal District of Sugar City No 5* [1951] A.C. 786 P.C. *Pry Granite Co Ltd v Ministry of Housing and Local Government* [1960] A.C. 260 H.L. (1859) 6 C.B.(N.S.) 336 at p. 356.

⁸ *Cf R v County Court Judge of Essex* (1887) 18 Q.B.D. 704 at p. 707 per Esher M.R. And see for particular instances of these heads, (i) *Great Western Ry v Sharman* (1892) 61 L.J.Q.B. 600 (ii) *Pulsford v Devenish* [1903] 2 Ch. 625 per Farwell J and *Dawson & Co v Bingley Urban Council* [1911] 2 K.B. 149 per Kennedy L.J. (iii) *Re Heare* [1893] 2 Q.B. 439 per Lord Esher. *Barracrough v Bown* [1897] A.C. 615 and *Meltham Spinning Co v Huddersfield Corpn* (1903) 89 L.T. 403 per Collins M.R. *R v Barnett* [1951] 2 K.B. 425.

⁹ [1901] 1 Ch. 894.

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which provided that if any question arose upon taking a distress it should be determined by a commissioner of taxes would not thereby take away the jurisdiction of the High Court to try an action for an illegal distress⁶ Nor would that court be ousted of its preventive jurisdiction to stop by injunction the misapplication of poor rates by reason of the statutory power given to the Poor Law Commissioners to determine the propriety of all such expenditure⁶ Nor did it follow in either case that because authority was given to the commissioners, it was taken away from the court. The matter is summarised by Willes J in *Holverhampton New Waterworks Co v Hawkesford*⁷ 'There are three classes of cases in which a liability may be established founded upon a statute. One is where there was a liability existing at common law, and that liability is affirmed by a statute which gives a special and peculiar form of remedy different from the remedy which existed at common law there, unless the statute contains words which expressly or by necessary implication exclude the common law remedy, the party suing has his election to pursue either that or the statutory remedy. The second class of case is, where the statute gives the right to sue merely, but provides no particular form of remedy there, the party can only proceed by action at common law. But there is a third class viz, where a liability not existing at common law is created by a statute which at the same time gives a special and particular remedy for enforcing it. The remedy provided by the statute must be followed and it is not competent to the party to pursue the course applicable to cases of the second class.'⁸

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⁹ [1901] 1 Ch. 894.

cited *R v Buchanan*¹⁰ as illustrating how, even where an Act contains a distinct prohibition and provides a special mode of punishment, nevertheless an indictment will lie adding 'there was nothing to prevent the old Court of Chancery from granting an injunction to restrain the infringement of a newly created statutory right unless the Act of Parliament creating the right provided a remedy which it enacted should be the only remedy' Similarly

Where the legislature has pointed out a mode of proceeding before a magistrate it is not, as a general rule, for another court to interfere to stop that proceeding by injunction although I do not think it would be right for me to say that there is absolutely no jurisdiction in the court to restrain proceedings before the magistrate.¹¹ And the mere fact that a statutory duty has been broken may not destroy the discretionary nature of the remedy of injunction in cases where an injunction would lie, but for some circumstance making it improper to grant it.¹²

Acts which give justices and other inferior tribunals jurisdiction in certain cases are not only generally understood when silent on the subject not to affect the power of control and supervision which the High Court exercises over the proceedings of such tribunals but are even strictly construed when their language is doubtful. Thus enactments to the effect that no court shall intermeddle in the cases,¹³ or that the case shall be heard and finally determined below,¹⁴ would not be construed as prohibiting such interference, and enactments which expressly provide that such proceedings shall not be removed by certiorari to the High Court have no application when the lower tribunal has overstepped the limits of its jurisdiction in making the order¹⁵ or is not duly

¹⁰ (1846) 8 Q B 883

¹¹ Two quotations from *Stannard v Vestry of St Giles Camberwell* (1882) 20 Ch D 190 at p 196 per Jessel MR and *Grand Junction Waterworks Co v Hampton U C* [1898] 2 Ch 331 at p 344 per Stirling J both cited with approval in *Merrick v Liverpool Corp'n* [1910] 2 Ch 449 per Eve J

¹² *Att Gen v L. N. & Ry* [1900] 1 Q B 78 per Vaughan Williams LJ *Att-Gen v Grand Junction Canal Co* [1909] 2 Ch 505

¹³ *R v Moreley* (1760) 2 Burr 1041

¹⁴ *R v Plowright* (1686) 3 Mod 95 2 Hawk PC c 27 s 23. See *Jacobs v Brett* (1875) L.R. 20 Eq 1 *Chambers v Green* (1875) L.R. 20 Eq 55. *Hawes v Fareley* (1877) 1 CPD 418 *Bridge v Branch* (1876) 1 CPD 633 *Chadwick v Ball* (1885) 14 Q B D 855

¹⁵ *R v Derbyshire* (1785) 2 Kenyon 299 *R v Somersetshire* (1826) 5 B & C 816 *R v St Albans* (1853) 22 L.J.M.C. 142 *R v Hood* (1855) 5 E & B 49 *R v S. Wales Ry* (1849) 13 Q B 988 *Re Penn* (1857) 7 E & B 660 *R v Hyde* (1852) 7 E. & B 859n *Exp Bradlaugh* (1878) 3 Q B D 409

constituted,¹⁶ or where the party who obtained the order obtained it by fraud,¹⁷ for the prohibition obviously applied only to cases which had been entrusted to the lower jurisdiction. But an enactment that a Ministerial order "shall not be questioned in any legal proceedings whatsoever" was held to prevent recourse to the courts even if the order were made fraudulently.¹⁸

Ouster by Implication

The saying has been attributed to Lord Mansfield that nothing but express words can take away the jurisdiction of the superior courts¹⁹ but it seems that it may in certain circumstances be taken away by implication.²⁰ Thus, a provision that if any dispute arises between a society and any of its members it shall be lawful to refer it to arbitration ousts the jurisdiction of the courts over such disputes.²¹ It is obvious that the provision from its nature would be superfluous and useless if it did not receive a construction which made it compulsory, and not optional to proceed by arbitration.

On similar grounds it was held that no action lay in the High Court on a county court judgment. The provisions made by the County Courts Act, 1846 (c 95) for enforcing such judgments would have been defeated, if the jurisdiction of the superior courts to entertain such an action had not been ousted.²²

Where an Act vested in the trustees of a loan society all its money and effects and the right of bringing and defending actions touching the property and rights of the society and, after enabling

¹⁶ *R v Cheltenham* (1841) 1 QB 467. *Colonial Bank of Australia v Willan* (1874) LR 5 PC 417, 443.

¹⁷ *R v Cambridge* (1835) 4 A & E 121 per Lord Denman. *R v Gillyard* (1848) 12 QB 527. *Colonial Bank of Australia v Willan* (1874) LR 5 PC 417.

¹⁸ *Smith v East Elloe R D C* [1956] AC 736 HL.

¹⁹ *R v Abbot* (1780) Doug 553 and more recently *Goldsack v Shore* [1950] 1 KB 708 per Evershed MR. Some doubt must therefore be cast on the older cases to the contrary.

²⁰ *Cates v Knight* (1789) 3 TR 445 and *Shipman v Henbest* (1790) 4 TR 116 per Ashurst J. *Jacobs v Brett* (1875) LR 20 Eq 6 per Jessel MR. *Oram v Brearey* (1877) 2 Ex D 346 per Pollock B. See also *Chadwick v Ball* (1885) 14 QB D 855 which overrules the last case.

²¹ *Crisp v Bunbury* (1832) 8 Bing 394. See also *Marshall v Nicholls* (1852) 18 QB 882. *Wright v Monarch Investment Soc* (1877) 5 Ch D 726. *Hack v London Provident Bldg Soc* (1883) 23 Ch D 103. *Municipal Bldg Soc v Kent* (1884) 9 App Cas 260. *Crosfield (Joseph) & Sons Ltd v Manchester Ship Canal Co* [1905] AC 421.

²² Repealed County Courts Act 1828 (c 43) s 188. *Berkelev v Elderkin* (1853) 1 E & B 805. See *Austin v Mills* (1854) 9 Ex 288. *Moreton v Holt* (1855) 10 Ex 707. Cf *Edwards v Coombe* (1872) LR 7 CP 519.

them to lend money in certain circumstances and to take notes for such loans in the name of their treasurer for the time being to secure repayment authorised a justice, at the suit of the treasurer, to enforce payment by distress, it was held that the treasurer was limited to that remedy ²³ He had no rights but such as the statute gave him and therefore could not sue except in the manner directed ²⁴ But another court held that the trustees might sue on such notes in the superior courts ²⁵

Where an Act imposed penalties and took away the certiorari, and a subsequent one, after increasing the penalties and extending the restrictions of the first, provided that all "the powers provisions, exemptions matters and things" contained in the earlier statute should, except as they were varied, be as effectual for carrying out the latter Act as if re enacted therein it was held that the clause which took away the certiorari was incorporated in the new Act, and consequently that the jurisdiction of the superior courts was ousted ²⁶

New Special Jurisdictions

Where, indeed, a new duty or cause of action is created by statute, and a special jurisdiction out of the course of the common law is prescribed there is no ouster of the jurisdiction of the ordinary courts for they never had any Thus, where a repealed Act ²⁷ created penalties of £50 and £10 and after enacting that the former should be recovered in the superior courts, authorised justices to impose the latter with powers of mitigation it was held that the superior courts had no jurisdiction in respect of the lower penalty ²⁸

Where it was enacted by the Metropolis Management Act 1855 (c 120) that the owners of the houses which formed a street should pay the vestry the estimated cost of paving it, and that the amount should in case of dispute, be ascertained by and recovered before justices it was held that the pecuniary obligation and

²³ *Dundalk Ry v Tapster* (1841) 1 QB 667

²⁴ *Timms v Williams* (1842) 3 Q B 413 *Prentice v London* (1875) L.R. 10 C.P. 679 *Willis v Wells* [1892] 2 Q B 225 *Falser v Dale* [1897] 1 Q B 257 C.A.

²⁵ *Albon v Pyke* (1847) 11 L.J.C.P. 266

²⁶ *R v Fell* (1830) 1 B & Ad 380

²⁷ Duties on Post Horses Act, 1785 (c. 51) repealed by the Stage Carriages Act, 1832 (c. 120) s. 1

²⁸ *Cates v Knight* (1789) 3 T.R. 447 Cf *Shipman v Henbest* (1790) 4 T.R. 109
Leigh v Kent (1789) 3 T.R. 36. *Balls v Attwood* (1791) 1 H Bl 546

the mode of enforcing it were so indissolubly united that no direct action lay against an owner for his contribution.¹⁹

The repealed Nuisances Removal Act, 1848 (c 123), which enacted that, if the owner of offensive premises did not remove the nuisance, the guardians might do so and that the costs and expenses incurred by them should be deemed money paid for the use of the owner, and might be recovered as such by them in the county court, or before two justices, was held to give exclusive jurisdiction to those tribunals.²⁰ Now, by the Public Health Act, 1936 (c 49), s 100, action may be taken in the High Court

Summary Powers

In proceedings before a court invested with summary powers, it must clearly be shown that the offence falls within its jurisdiction. 'Proceedings in cases of this nature, which are to deprive a man of his freehold in a summary way, without letting him be tried by his peers, are always construed strictly, and never extended by intendment of matter which don't appear on the face of the case.' It has been said that the words conferring such a jurisdiction must be clear and unambiguous,²¹ and that an instrument must be construed into a jurisdiction.²² For example, in *Attorney-General v. Ashwell*, which, in providing that compensation should be paid to a person who sustained damage in carrying out certain work, provided that in case of dispute as to the amount, the matter should be referred to arbitration has been held to be confined to cases where the amount only was in dispute and not to cases where the liability to arbitration where the liability to pay was in dispute.²³ Effect must of course be given to the clear intention where the Act without doubt confers a jurisdiction in summary terms does so by plain and necessary implication.

Thus an Act which without expressly empowering any tribunal to try the offence imposed penalties on any person who exposed diseased animals for sale unless he showed 'to the justices before whom he is charged that he was ignorant of the condition of the animals, and gave him an appeal if he felt aggrieved' by the adjudication of justices was construed as plainly giving justices jurisdiction over the offence ³⁵

Where a statute gives a right to recover expenses in a court of summary jurisdiction from a person not otherwise liable the jurisdiction of the High Court is ousted except by way of appeal ³⁶

Grant of Jurisdiction by Implication

One enactment has been considered as granting jurisdiction by implication in a remarkable manner. The County Courts Admiralty Jurisdiction Act, 1868 (c 71), after reciting that it was desirable that some county courts should have Admiralty jurisdiction and authorising the Queen in Council to confer such jurisdiction on any of those courts, empowered them to try certain classes of cases over which the Court of Admiralty had jurisdiction directing the judge to transfer any case to the Admiralty Court where the amount claimed exceeded £300 and giving also to the latter court in all cases not only an appellate jurisdiction but power to transfer to itself any suit instituted in the lower court. By the County Courts Admiralty Jurisdiction Amendment Act 1869 (c 51) the county courts on which Admiralty jurisdiction had been thus conferred were further authorised to try any claim arising out of any agreement made in relation to the use or hire of any ship or in relation to the carriage of any goods in any ship where the claim did not exceed £300. The Court of Admiralty had no jurisdiction over these cases before the Act was passed but it followed that in thus giving the jurisdiction to the county court, the statute also gave to the Admiralty Court by implication not only appellate but also original jurisdiction besides introducing the anomaly of dealing with small cases on different principles of law from large

³⁵ *Cullen v Trimble* (1872) L.R. 7 Q.B. 416 *Johnson v Colam* (1875) L.R. 10 Q.B. 544 *R v Worcestershire JJ* (1854) 23 L.J.M.C. 113

³⁶ *Barracough v Brown* [1897] A.C. 615

ones, while the apparent object of the enactments was merely to distribute the existing Admiralty jurisdiction ³⁷

SECTION 2—JURISDICTION OVER THE CROWN

The rule is commonly stated in the form that the Crown is not bound by a statute unless it is directly or by necessary implication referred to "The King is not generally bound by all statutes in general words unless he is specially named" ³⁸ It has been said that the law is *prima facie* presumed to be made for subjects only,³⁹ but this is nowadays perhaps to be regarded as rather an overstatement of the position of the Crown ⁴⁰ At all events the Crown is not reached except by express words or by necessary implication in any case where it would be ousted of an existing prerogative or interest ⁴¹ It is presumed that the legislature does not intend to deprive the Crown of any prerogative right or property unless it expresses its intention to do so in explicit terms, or makes the inference irresistible "It is quite obvious that it would be useless and meaningless for the legislature to impose restrictions and limitations upon and to attach conditions to, the exercise by the Crown of the powers conferred by a statute if the Crown were free at its pleasure to disregard these provisions and by virtue of its prerogative to do the very thing the statutes empowered it to do One cannot in the construction of a statute attribute to the legislature (in the absence of compelling words) an intention so absurd It was suggested that when a statute is passed empowering the Crown to do a certain thing which it might theretofore have done by virtue of its prerogative, the prerogative is merged in the statute I confess I do not think the word merged is happily chosen I should prefer to say that when such a statute, *expressly*

³⁷ See *The Alina* (1880) 5 Ex D 227 *Everard v Kendall* (1870) 1 Y 215 422 *Cargo ex Argos* (1873) L.R. 5 P.C. 134 *Gaudet v Brown* (1872) 1 Y 221 314 and the cases there cited. The claims formulated in the *subsequent* cases have been held *outside* the jurisdiction *R v City of London Council* (1871) 1 Y 221 314 23 *The Zeus* (1888) 13 P.D. 185 *R v City of London Council* (1871) 1 Y 221 314 273

³⁸ *Hulton v Berkley* (1562) Plowd. 236 where many *expressions* are used *per cur* *Att Gen v Donaldson* (1842) 11 L.J. 17 337

³⁹ *Att Gen v Hancock* [1940] 1 K.B. 427 at p. 431 *per* *W. L. R.* 11 273

⁴⁰ Inst., Ed 1809 Pt. II 191 *Att Gen v Allgood* (1743) 1 Wm. 4 24 13, 1300 *tive* (E.) 5 (e) Co Litt. 43b *Chit Prerogative* 387 *per* *W. L. R.* 11 273 1300 *Car* 526 *Huggins v Bambridge* (1740) Willes 241 242 *per* *W. L. R.* 11 273 1300 *E.* 434 *Perry v Eames* [1891] 1 Ch 638 *Haydon* 1300 1301 (1851) 7 74b

the will and intention of the King and of the three estates of the realm is passed it abridges the Royal Prerogative while it is in force to this extent that the Crown can only do the particular thing under and in accordance with the statutory provisions and that its prerogative power to do that thing is in abeyance.⁴¹ But a statute is not to be regarded as cutting down the prerogative more than its language necessarily requires.⁴²

Where the language of the statute is general and in its wide and natural sense would divest or take away any prerogative or right from the Crown, it is construed so as to exclude that effect.⁴³ Thus, the Land Transfer Act, 1897 (c. 65) which vested the legal estate in the personal representatives of a deceased person did not bind the Crown and the legal estate in escheated land did not, under section 1 vest in the Solicitor to the Treasury as the Crown's nominee.⁴⁴

The compulsory clauses of Acts of Parliament which authorise the taking of lands for railway or other purposes such as are contained in the Lands Clauses Consolidation Act, 1845 (c. 18) would not apply to Crown property, unless made so applicable in express terms or by necessary inference.⁴⁵

Nor would a provision in a local Act ordering that the revenue of a corporation should be expended in a specified way, and should not be applied for any other purpose whatsoever take away the duty of paying income tax to the Crown in the absence of express words to that effect.⁴⁶

Again as it is a prerogative of the Crown not to pay tolls or rates or other burdens in respect of property, it was long since established that the Poor Relief Act, 1601 (c. 2) which authorised the imposition of a poor rate on every inhabitant and occupier of property in the parish did not apply to the Crown or to its direct or immediate servants whose occupation was for the purposes

⁴¹ *Att-Gen v. De Keyser's Royal Hotel* [1920] A.C. 508 at p. 539 per Lord Atkinson, applied in *Re A. Off. Don Commercial Bank* [1954] Ch. 315.

⁴² *Re Pratt* [1951] Ch. 225 per Evershed M.R. at p. 23.

⁴³ *Ban. Ab. Prerog.* (F) 5. *Crooke's Case* (1691) Show. 408.

⁴⁴ *Re Hastings* [1877] P. 40. As to the devolution of real estate on personal representatives see now the Administration of Estates Act 1975 (c. 23) s. 1. *escheat* was abolished by *ibid.* s. 45.

⁴⁵ *Re Cuckfield Board* [1954] 24 L.J. Ch. 555.

⁴⁶ *Mersey Docks v. Lucas* (1883) 8 App. Cas. 891. *Paddington Burial Board v. I.R.C.* (1884) 13 Q.B.D. 9.

of the Crown exclusively, and so was, in fact the occupation of the Crown itself⁴⁷ Thus property occupied by the servants of the Crown exclusively for public purposes as by the Post Office,⁴⁸ the Horse Guards,⁴⁹ the Admiralty,⁵⁰ a volunteer corps,⁵¹ a county association under the Territorial and Reserve Forces Act 1907 (c 9)⁵² and even by local police,⁵³ by the judges as lodgings at the assizes⁵⁴ by a county court⁵⁵ or for a sessions house⁵⁶ or a jail⁵⁷ or by the Commissioners of Public Works and Buildings in respect of a toll bridge of which they were in occupation as servants of the Crown⁵⁸ was held exempt from poor rate⁵⁹ and is not now rateable to the general rate

Property in the occupation of the sovereign would also not be liable to the common law burden of sewers rate one reason assigned being that it could not be enforced⁶⁰

⁴⁷ *Mersey Docks Co v Cameron* (1864) 11 HLC 443 per Lords Westbury and Cranworth *Amherst v Sommers* (1788) 2 TR 372 *R v Harrogate* (1850) 15 QB 1012 *R v St Martin's* (1867) LR 2 QB 493

⁴⁸ *Smith v Birmingham* (1857) 26 LJ MC 105 note remarks by Fry LJ in *Bray v Lancashire JJ* (1889) 22 QBD 484 But a sub post office is not in the occupation of the Crown *Williams v Neath Assessment Committee* (1935) 154 LT 261

⁴⁹ *Amherst v Sommers* (1788) 2 TR 372 *R v Jay* (1858) 27 LJ MC 25

⁵⁰ *R v Stewart* (1858) 27 LJ MC 81

⁵¹ *Pearson v Holborn Union* [1893] 1 QB 389 But a volunteer drill hall is not exempt from the operation of the sanitary provisions of the Metropolis Management Act 1855 (c. 120) *Westminster Vestry v Hoskins* [1899] 2 QB 474 *Derby Territorial Army Assoc v Derby Assessment Committee* [1935] 2 KB 373

⁵² *Hixon v Thomas* [1911] 1 KB 43 Nor is such property subject to the Rent etc Restriction Acts even if let by the Association to a private individual *Territorial and Auxiliary Forces Association of the City of London v Nichols* [1949] 1 KB 35 CA

⁵³ *Lancashire v Stretford* (1858) 27 LJ MC 209 Cf *Showers v Chelmsford Union* [1891] 1 QB 339

⁵⁴ *Hodgson v Carlisle* (1857) 8 E & B 116 *Coomber v Berks Justices* (1884) 9 App Cas 81

⁵⁵ *R v Manchester* (1854) 23 LJ MC 48

⁵⁶ *Nicholson v Holborn Assessment Committee* (1887) 18 QBD 161 But see *Worcestershire C C v Worcester Union* [1897] 1 QB 480

⁵⁷ *R v Shepherd* (1841) 1 QB 170 *Beds v St Paul* (1852) 7 Ex 650 *Gambier v Lydford* (1854) 3 E & B 346 See *Mersey Docks Co v Cameron* (1864) 11 HLC 443 *Leith Commissioners v Poor Inspectors* (1866) LR 1 Sc Ap 17 *Tinncliffe v Birkdale* (1888) 20 QBD 450 *Bray v Lancashire JJ* (1889) 22 QBD 484 *Durham C C v Chester le Streets* [1891] 1 QB 330

⁵⁸ *R v McCann* (1868) LR 3 QB 677 *Att Gen v Cornwall County Council* (1933) 97 JP 281

⁵⁹ Cf *Bute v Grindall* (1786) 1 TR 338 *R v Ponsonby* (1842) 3 QB 14 *R v Shee* (1843) 4 QB 2 *R v Stewart* (1858) 27 LJ MC 81 See Bro Ab Prerog du Roy 112 *R v Cook* (1790) 3 TR 519 *Westaver v Perkins* (1859) 28 LJ MC 227

⁶⁰ *Smith v Keats* (1832) 4 Hagg 279 per Dr Lushington *Att Gen v Donaldson* (1842) 10 M & W 117

The Royal Dockyards at Deptford have been held not assessable to the land tax ⁶¹

The Crown was not bound by section 150 of the Public Health Act 1875 (c 55), and, therefore, was not liable for the cost of paving a street on which property in its occupation abutted ⁶²

But if the tax attached to the land and not to its owner or occupier this rule would not be applicable and land charged with it in the hands of a subject would not become exempted on vesting in the sovereign ⁶³

The Custodian of Enemy Property, being a Crown servant is not liable to tax on the interest obtained by investing the property in his possession ⁶⁴

On the same general principle the numerous Acts of Parliament which have at various times taken away the remedy by way of certiorari have always been held not to apply to the Crown.⁶⁵ Section 5 of the Laws Continuance etc Act, 1739 (c 18)⁶⁶ which limited the time for issuing that writ to six months from the date of the conviction⁶⁷ and section 5 of the Quarter Sessions Act 1849 (c 45) which authorises the quarter sessions to give costs to the successful party in any appeal⁶⁸ do not apply to the Crown (the prosecutor) but only to the defendant

Although now by virtue of the Summary Jurisdiction Acts a Court of Summary Jurisdiction has power to award costs for or against the Crown in proceedings taken by the Crown under any of the Inland Revenue Statutes⁶⁹ apparently the right of the Crown as to proceedings in the High Court touching the revenue

⁶¹ *Att Gen v Hill* (1836) 2 M & W 160 *Cf Colchester (Ld) v Kewney* (1867) L.R. 1 Ex 368

⁶² *Hornsey U D C v Hennell* [1902] 2 K.B. 73 See now ss 189 and 190 of the Highways Act 1959 (c 25)

⁶³ *Colchester (Ld) v Kewney* (1867) L.R. 1 Ex 368

⁶⁴ *Bank voor Handel en Scheepvaart NV v Administrator of Hungarian Property* [1954] A.C. 584 H.L.

⁶⁵ See for example *R v Cumberland* (1803) 3 B & P 354 *R v Allen* (1817) 15 East 333 *R v Boulbee* (1836) 4 A. & E. 498

⁶⁶ Repealed S.L.R. 1858

⁶⁷ *R v Farewell* (1744) 2 Stra 1709 *R v James* (1786) 1 East 304n *R v Berkley* (1754) 1 Kenyon 80

⁶⁸ *R v Beadle* (1857) 26 L.J.M.C. 111

⁶⁹ *Thomas v Pritchard* [1903] 1 K.B. 209

Nor is the Crown bound by the Rent Restrictions Acts⁸⁰ not even as between a tenant of the Crown and his sub tenant⁸¹, nor by the now repealed Courts (Emergency Powers) Acts⁸²

False scales in possession of a baker postmaster, being Crown property were unaffected by the provision of the Weights and Measures Act 1878 (c 49)⁸³

Moreover where the Crown itself is not bound by a statute any servant of the Crown acting within the scope of his authority is similarly exempt⁸⁴

The British Transport Commission is not an emanation of the Crown nor it appears, is any nationalised undertaking unless the Act setting it up expressly declares it to be acting on behalf of the Crown as for instance the Central Land Board⁸⁵ or when the beneficial purpose of the Act would be wholly nullified if the Crown were not bound⁸⁶⁻⁸⁷

Manifest Intention to include the Crown

The Crown however is sufficiently named in a statute when an intention to include it is manifest For instance, the Summary Jurisdiction Act 1857 (c 43), which (by section 2) entitled either party, after the hearing by a justice of any information or complaint which he had power to determine to apply for a case for the opinion of one of the superior courts, and, after authorising (by section 4) the justice to refuse the application if he deemed it frivolous provided that it should never be refused when made by or under the direction of, the Attorney General and directed (by section 6) the superior court not only to deal with the decision appealed against, but to make such order as to costs as seemed fit was held by the Queen's Bench to include the Crown and to authorise an order against it for the payment of costs The

⁸⁰ *Wiral Estates Ltd v Shaw* [1932] 2 K B 247 *Clark v Downes* (1931) 145 L.T. 20 *Territorial and Auxiliary Forces Association of the City of London v Nichols* [1949] 1 K B 35 C.A.

⁸¹ *Rudler v Franks* [1947] K B 530 But see now Crown Lessees (Protection of Sub Tenants) Act 1952 (c 40) and the Rent Act 1957 (c 25)

⁸² *All Gen v Hancock* [1940] 1 K B 427 *Re Hutley's Legal Charge* [1941] Ch 369 dissenting from *All Gen of the Duchy of Lancaster v Moresby* [1919] W N 69

⁸³ *R v Kent JJ* (1889) 24 Q B D 181

⁸⁴ *Chare v Hart* (1918) 88 L.J.K.B. 833

⁸⁵ *Tamlin v Hannaford* [1950] 1 K B 18 C.A.

⁸⁶⁻⁸⁷ *Province of Bombay v Municipal Corporation of Bombay* [1947] A C 58 P.C.

language of the second section was wide enough to include the Crown and as the fourth referred to the Crown as plainly as if it had spoken expressly of Crown cases the language of the sixth, authorising costs was construed as applying to such cases also as well as to cases between subject and subject⁸⁸

But, although the Crown be named in some sections of a statute, this does not necessarily extend to it the operation of other parts thereof⁸⁹ Before the Crown Proceedings Act, 1947 (c 44) the fact that the Crown was statutorily entitled to make charges for salvage operations did not render it liable as a negligent salvor⁹⁰

Crown's Prerogative Rights or Property not in Question

It is said that the rule does not apply when the Act is made for the public good the advancement of religion and justice the prevention of fraud or the suppression of injury and wrong⁹¹, for religion justice and truth are the sure supporters of the crowns and diadems of kings⁹² But it is probably more accurate to say that the Crown is not excluded from the operation of a statute where neither its prerogative, rights nor property are in question

The Statute De Donis (13 Edw 1)⁹³, the Statute of Merton (20 Hen 3) against usury running against minors⁹⁴, the Statute of Marlborough (52 Hen 3 c 22) against distraining freeholders to produce their title deeds⁹⁵, the 32 Hen 8, c 28, concerning discontinuances⁹⁶ the 31 Eliz 1, c 6, against simony⁹⁷ and the 'Disabling Statute,' 1571 (c 10) respecting ecclesiastical leases⁹⁸

⁸⁸ *Moore v Smith* (1859) 28 L.J.M.C. 126 See *Théberge v Laundry* (1877) 2 App. Cas. 102 and *Cushing v Dupuy* (1880) 5 App. Cas. 409 *Tennant v Union Bank of Canada* [1894] A.C. 31 *Mases v Parker* [1896] A.C. 245

⁸⁹ *Re Bonham ex p Postmaster General* (1879) 10 Ch.D. 595 *Perry v Eames* [1891] 1 Ch. 658 *Wheaton v Maple & Co* [1893] 3 Ch. 48

⁹⁰ *Anglo Saxon Petroleum Co Ltd v Lords Commissioners of the Admiralty* [1947] 1 K.B. 794 C.A.

⁹¹ *Case of Ecclesiastical Persons* (1601) 5 Rep. 14a *Magdalen College Case* (1616) 11 Rep. 70b 73a *R v Armagh (Archbp)* (1722) Stra. 516 Bac. Ab. Prerogative (E.) 5 But see the criticism of this dictum in *Territorial and Auxiliary Forces Association of the City of London v Nichols* [1949] 1 K.B. 35 C.A. per Scott L.J. at p. 45

⁹² 5 Rep. 14b

⁹³ *Hillon v Berkley* (1562) Plow. 223 11 Rep. 72a

⁹⁴ Repealed as to England S.L.R. 1863 as to Ireland S.L.R. (1) 1872 2 Inst. 89

⁹⁵ Repealed as to England S.L.R. 1863 as to Ireland S.L.R. (1) 1872 2 Inst. 14. 2 Inst. 681

⁹⁶ Co. Litt. 120a, note 3

⁹⁷ 5 Rep. 14a 11 Rep. 68b *R v Armagh (Archbp)* (1722) Stra. 516

were held to apply to the Crown, though it was not named in them⁹⁹

So, the Law Terms Act 1830 (c 70), which was passed for the better administration of justice, and enacted that writs of error upon judgments given in any of the superior courts should be returned to the Exchequer Chamber, was held to apply to a judgment on an indictment¹ and on a petition of right² although the Crown was not named or referred to in the Act. No prerogative was affected by this construction³

Although by common law the Crown has power to dismiss at pleasure a civil or military officer (including a colonial judge⁴), a colonial statute⁵ manifestly intended for the benefit of officers and inconsistent with such a condition restricts the power of the Crown⁶

Crown taking advantage of Statute

The only remaining question which is one of great historical interest and importance is whether the Crown can successfully say 'We are not bound by the statute but we are at liberty to take advantage of it'. At first sight such a statement appears somewhat strange. There is undoubtedly a long series of statements in text books repeating each other for some centuries but there is something to be said for the view argued by Sir John Simon that they start with a passage in an unsuccessful argument of a law officer which was not even relevant to the case before the court but which has been taken out by a text writer and repeated for centuries until it was believed that it must have some foundation⁷. It will need careful consideration when that question arises⁸.

The Crown Proceedings Act, 1947 (c 44), s 31 (1) enacts that 'This Act shall not prejudice the right of the Crown to take

⁹⁹ See *Bac Ab Prerog* (E) 5

¹ *R v Wright* (1834) 1 A & E 434

² *De Bode v R* (1849) 13 Q B 364

³ *Per cur* *ibid* 379

⁴ *Terrell v Secretary of State for the Colonies* [1953] 2 Q B 487

⁵ New South Wales Civil Service Act 1884

⁶ *Gould v Stuart* [1896] A C 575

⁷ *Magdalen College Case* (1616) 11 R at 68a 68b—argument of Yelverton the King's Solicitor

⁸ *Cayzer Irvine & Co v Board of Trade* [1927] 1 K B 269 at p 294 *per* Scrutton LJ

advantage of the provisions of an Act of Parliament although not named therein and it is hereby declared that in any civil proceedings against the Crown the provisions of any Act of Parliament which could, if the proceedings were between subjects be relied upon by the defendants as a defence to the proceedings whether in whole or in part, or otherwise may, subject to any express provision to the contrary, be so relied upon by the Crown. But this subsection may not clarify the position where the Crown is not strictly, a 'defendant in civil proceedings' since it begs the question of whether there previously existed any such right as that claimed.⁸

⁸ As to the effect of erroneous declarations of the previous law see pp 304-8 *et seq*

CHAPTER 6

FURTHER PRESUMPTIONS

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SECTION 1 — PRESUMPTION AGAINST INTENDING AN EXCESS OF JURISDICTION

ANOTHER general presumption is that the legislature does not intend to exceed its jurisdiction

Legislation Primarily Territorial

Primarily, the legislation of a country is territorial. The general rule is, that *extra territorium jus dicenti impune non paretur*¹. The laws of a nation apply to all its subjects and to all things and acts within its territories including in this expression not only its ports and waters which form in England part of the adjacent country, but its ships, whether armed or unarmed and the ships of its subjects on the high seas or in foreign tidal waters, and foreign private ships within its ports. They apply also to all foreigners within its territories (not privileged like sovereigns and ambassadors) as regards criminal² police and indeed all other matters except some questions of personal status or capacity in which, by the comity of nations the law of their own country or the *lex loci actus* or *contractus* applies³. This does not indeed comprise the whole of

¹ Dig II 1 20

² So that an American committing a crime in Holland and fleeing to England is regarded as a Dutch subject for the purposes of extradition *R v Gan* (183) 9 QBD 93. See also *Att Gen (Hong Kong) v Awok-a Sing* (1873) L.R. 5 PC 179. *The Indian Chief* (1800) 3 C Rob 12. See also *Ex p Piot* (1883) 43 LT 10 and note especially *R v Holloway Prison Governor* (1917) 76 JP 310.

³ See *Niboyet v Niboyet* (1878) 4 PD 1 per Brett LJ. *San Teodoro v San Teodoro* (1880) 5 PD 79. *cf Worms v De Vaktor* (1880) 49 LJ Ch 261. *Le Sueur v Le Sueur* (1876) 1 PD 139. *Firebrace v Firebrace* (1879) 4 PD 63. *Re Goodman's Trusts* (1881) 17 Ch D 266 and note *Le Mesurier v Le Mesurier* [1895] AC 517 PC., disapproving *Niboyet v Niboyet* (1878) *supra*.

the legitimate jurisdiction of a state, for it has a right to impose its legislation on its subjects, natural or naturalised⁴ in every part of the world⁵, and on such matters as personal status or capacity it is understood always to do so,⁶ but, with that exception, in the absence of an intention clearly expressed or to be inferred either from its language, or from the object, subject matter or history of the enactment the presumption is that Parliament does not design its statutes to operate on its subjects beyond the territorial limits of the United Kingdom⁷. They are, therefore, to be read, usually as if words to that effect had been inserted in them⁸. It has been said, however, that perhaps no territorial limits affect offences at common law, and that the courts of England merely decline to try such offences as a matter of international comity⁹.

Thus an act of bankruptcy by a British subject committed abroad such as an assignment by a trader of all his effects did not make him liable to the bankruptcy laws until they were amended by extending them expressly to acts whether within the realm or elsewhere¹⁰.

The power conferred on the court by section 27 of the Bankruptcy Act 1883 (c 52) now repealed and replaced by section 25 (6) of the Bankruptcy Act 1914 (c 59) to order that any person who, if in England, would be liable to be brought before it under

⁴ Co Litt 129a Story Conf L s 21 *Sussex Peerage* (1844) 11 Cl & F 85 146 *Mette v Mette* (1859) 28 L.J.P. & M. 117

⁵ Our law has at different times made treason treason felony burning the King's ships and magazines breaches of the Foreign Enlistment Acts homicide bigamy procuration (see Criminal Law Amendment Act 1885 (c 69) s. 2 amended by the Criminal Law Amendment Act 1912 (c. 20) s. 1) and slave-dealing punishable when committed by British subjects in any part of the world also any offences committed by them on board any foreign ship to which they do not belong (Merchant Shipping Act 1894 (c 60)) and offences by them in Turkey China Siam and Japan and such other states as are within the provisions of the Foreign Jurisdiction Act 1890 (c 37) and in some parts of Polynesia (Pacific Islanders Protection Acts 1872 (c 19) and 1875 (c. 51))

⁶ See e.g. *Brook v Brook* (1858) 9 H.L.C. 193 Story Conf L s 114 *Lolley's Case* (1812) Russ & Ry 237 See also Story Conf L ss 100 *et seq.* Wheat Elem. Internat. L. Pt. 2 c. 2 ss 6 7

⁷ *Rose v Himely* (1808) 4 Cranch 241 per Marshall C.J. *The Zollverein* (1856) Swab 96 per Dr Lushington *Cope v Doherty* (1858) 4 K. & J. 367 *Poll v Danbe* [1901] 2 K.B. 579 *Macleod v Att. Gen. for New South Wales* [1891] A.C. 455 *R v Russell* [1901] A.C. 446 But see *Joyce v D.P.P.* [1946] A.C. 347 H.L.

⁸ *Rosseter v Cahmann* (1853) 8 Ex. 361 per Pollock C.B. and per cur. *The Amalia* (1863) 1 Moo P.C. (N.S.) 471

⁹ *R v Martin* [1956] 2 Q.B. 272 at pp. 285-286 per Devlin J. obiter

¹⁰ *Ingliss v Grant* (1794) 5 T.R. 530 *Norden v James* (1777) 2 Dick. 533 See Bankrupts (England) Act 1825 (c 16) s. 3 Bankruptcy Act 1869 (c. 71) s. 6 Bankruptcy Act 1883 (c 52) s. 4

the section, shall be examined in Scotland or Ireland 'or in any other place out of England, does not apparently extend to places abroad which are not within the jurisdiction of the British Crown.¹¹

The Poor Law Amendment Act, 1844 (c 101) which authorised a court to make an order against a British subject after he had been served with a summons, was held not to give jurisdiction to make it when the service had been effected abroad.¹²

It has also been held that a provision that service may be effected by leaving the summons at the last place of abode of the person to be served was not to be interpreted as meaning that the summons may be left at his last place of abode in England when he has subsequently obtained a place of abode abroad.¹³

The alleged father of a bastard child who left England before the child's birth and did not return till the child was more than twelve months old was held to have ceased to reside in England within twelve months after the birth of such child so as to give the justices jurisdiction to adjudicate upon a summons taken out within twelve months after his return.¹⁴

The Weights and Measures Act, 1835 (c 63) (repealed and re-enacted by the Weights and Measures Act, 1878 (c 49) ss 15 and 86), which prohibited the sale of liquids otherwise than by imperial measure, would not be considered as affecting a contract between British subjects for the sale of palm oil to be measured and delivered on the coast of Africa.¹⁵ A different construction would have involved the absurd supposition that the legislature intended that English subjects should carry English measures abroad.¹⁶ Besides setting aside by a side wind, the general principle that the validity of a contract is determined by the law of the place of its performance.

Under that same general principle, any statute which regulated the formalities and ceremonies of marriage, would, in general, be limited similarly in effect to the territorial jurisdiction of Parliament.¹⁷

¹¹ *Re Drucker* (No 2) [1902] 2 K B 210

¹² *R v Lightfoot* (1856) 25 L J M C 115

¹³ Bastardy Laws Amendment Act 1872 (c 65) s 4 *Berkeley v Thompson* (1884) 10 App Cas 45 *R v Farmer* [1892] 1 Q B 637 *Burbury v Jackson* [1917] 1 K B 16 *Grocock v Grocock* [1919] WN 163 But *aliter* where he has not obtained a place of abode abroad *R v Webb* [1896] 1 Q B 487 See now Affiliation Proceedings Act 1957 (c 55) in which these words are not reproduced.

¹⁴ *R v Evans* [1896] 1 Q B 228

¹⁵ *Rosseter v Cahlmann* (1853) 8 Ex 361

¹⁶ *Rosseter v Cahlmann* (1853) 8 Ex 361 at p 363 *per Parke B*

¹⁷ *Scrimshire v Scrimshire* (1752) 2 Hagg Cons 395 Story Conf L s. 221

Extra Territorial Legislation

An intention that a statute shall have extra territorial operation may be readily collected from the nature of the enactment¹⁸ The whole aim of the Royal Marriages Act, 1772 (c 11), for instance, which according to the preamble had for its object the prevention of members of the Royal Family marrying without the consent of the sovereign and rendered null and void the marriage of every descendant of George II without the consent of the reigning sovereign, would have been defeated if a marriage of such a descendant in some place out of the British Dominions had not fallen within it It was accordingly held that the statute imposed an incapacity, which attached to the person and followed him all over the world¹⁹ though the marriage were valid according to the law of the country where it was celebrated²⁰

So, the Marriage Act 1835 (c 54) which declared all marriages between persons within the prohibited degrees null and void was held to create a personal incapacity in all British subjects domiciled in the United Kingdom though married in a country where such marriages were valid²¹

The Fatal Accidents Acts 1846 (c 93) and 1864 (c 95) apply for the benefit of the representatives of a deceased foreigner, who while on the high seas in a foreign ship sustains a fatal injury owing to the negligence of a British ship²²

Rule 14 of Sched II Part I of the Elementary Education Act, 1870 (c 75), which vacated the seat of any member of a School Board who had been punished with imprisonment for any crime included crimes committed against the Crown out of England²³

The Guardianship of Infants Acts also apply in certain circumstances outside England²⁴

This wider effect has been given even to a criminal statute where such must have been manifestly its intention The Slave Trade Act 1824 (c 113) which made it felony for any person

¹⁸ See e.g. *Howgate v Bagnall* [1951] 1 K.B. 265

¹⁹ *The Sussex Peerage* (1844) 11 Cl. & F. 85

²⁰ *Swift v Kelly* (1835) 3 Knapp 257

²¹ *Brook v Brook* (1858) 9 H.L.C. 193 *Pugh v Pugh* [1951] P. 482 See Story Confli. L. s. 86 and also s. 100 See now Marriage Act 1949 (c. 76)

²² *Davidsson v Hill* [1901] 2 K.B. 606

²³ *Conybeare v London School Bd* [1891] 1 Q.B. 118

²⁴ See *Re Dulles Settlement* [1951] Ch. 265 C.A.

to deal in slaves or to transport them, or equip vessels for their transport, was held to apply to British subjects committing any such offences on the coast of Africa, the notorious scene of the crimes which it was the object of the Act to suppress²⁵ if not in every other part of the world also,²⁶ though it was not in express terms declared to be applicable abroad

As the courts of British colonies were empowered by the Admiralty Offences (Colonial) Act, 1849 (c 96) to punish certain offences committed at sea with among other things transportation the Penal Servitude Act 1857 (c 3), which abolished transportation and substituted penal servitude, was held to extend to the colonies, though it made no mention of them²⁷

SECTION 2 — PRESUMPTION AGAINST A VIOLATION OF INTERNATIONAL LAW

Under the same general presumption that the legislature does not intend to exceed its jurisdiction every statute is to be so interpreted and applied so far as its language admits, as not to be inconsistent with the comity of nations or with the established rules of international law²⁸ If therefore, it designs to effectuate any such object it must express its intention with irresistible clearness to induce a court to believe that it entertained it, for if any other construction is possible it would be adopted to avoid imputing such an intention to the legislature²⁹ All general terms must be narrowed in construction to avoid it³⁰ But if the statute is unambiguous, its provisions must be followed even if they are contrary to international law³¹

For instance although foreigners are subject to the criminal law of the country in which they commit any breach of it, and also, for most purposes, to its civil jurisdiction a foreign sovereign, an ambassador a foreign army of occupation and foreign public

²⁵ *R v Zulueta* (1843) 1 Car & K. 215 *Santos v Illidge* (1860) 28 L.J.C.P. 317 overruled on another point (1861) 29 L.J.C.P. 348

²⁶ *Santos v Illidge* (1861) 29 L.J.C.P. 348 at p. 352 per Bramwell B

²⁷ *R v Mount* (1875) L.R. 6 P.C. 283

²⁸ *Leroux v Brown* (1852) 12 C.B. 801 per Maule J. *Bluntschli Voelkerrecht* s. 847 Dr Lushington *The Zollverein* (1856) Swab 96 and *The Annapolis* (1861) Lush 295 *Bloxam v Favre* (1883) 8 P.D. 101

²⁹ *Per cur* *U.S. v Fisher* (1805) 2 Cranch 390 and *Murray v Charming Betty* (1804) 2 Cranch 64

³⁰ *Le Louis* (1817) 2 Dods. 229 per Lord Stowell

³¹ *Niboyet v Niboyet* (1878) 4 P.D. 1

property are, by the law of nations, not subject to them,³² and statutes would be read as tacitly embodying this rule. Hence, whilst the ambassador of a foreign state is in this country, and accredited to the sovereign, the Statute of Limitations does not begin to run against his creditors as he could not be served with process during that period.³³

It is an admitted principle of public law that except as regards pirates *jure gentium* and perhaps, nomadic races and savages who have no political organisation,³⁴ a nation has no jurisdiction over offences committed by a foreigner out of its territory including its ships and waters as already mentioned³⁵ and the general language of any criminal statute would normally be so restricted in construction as not to violate this principle.³⁶

Thus, section 8 of the repealed Offences against the Person Act 1828 (c 31) (re enacted by section 10 of the Offences against the Person Act 1861 (c 100)), which enacted that when any person feloniously injured abroad or at sea, died in England or receiving the injury in England died at sea or abroad, the offence should be dealt with in the country where the death or injury occurred, would not authorise the trial of a foreigner who inflicted a wound at sea in a foreign ship, of which the sufferer afterwards died in England.³⁷

³² Wheat Elem Int L. Pt 2 c 2 see the cases collected in *The Parlement Belge* (1880) 5 PD 197 *The Constitution* (1879) 4 PD 39. See also *The Ripon City* [1897] P 226 and as to the general principle *Mighell v Sultan of Johore* [1894] 1 QB 149 CA. It seems to be accepted that diplomatic officers and their suites are as a matter of comity if not of strict international law privileged against prosecution for any breach of the criminal law in England. *Russell on Crime* 11th ed p 1809. The position of course may be modified by treaty.

³³ Limitation Act 1623 (c 16) 4 & 5 Anne c 3 s 19 Diplomatic Privileges Act 1708 (c 12) s 3 *Musurus Bey v Gadban* [1894] 2 QB 352 *Re Republic of Bolivia Exploration Syndicate* [1914] 1 Ch 139. And see Limitation Act 1939 (c 21) s 22.

³⁴ See e.g. *Ortolan Dipl de la Mer* 1 285. By the West Africa Offences Act 1871 (c 8) offences committed within 20 miles from our West African Settlements on British subjects or residents within those settlements by persons not the subjects of any civilised power were made cognisable by the superior courts of the Settlements. This Act has now been repealed by the Statute Law Revision Act 1958.

³⁵ Ante p 138. See Wheat Elem Int L. Pt 2 c 2 s 9 *The Parlement Belge* (1880) 5 PD 197 *R v Anderson* (1869) LR 1 CC 161 *R v Seberg* (1870) LR 1 CC 264 *R v Carr* (1882) 10 QBD 76 *R v Lopes* (1858) 27 LJMC 48 *R v Lesley* (1860) 29 LJMC 97. See as to ships *R v Keyn* (1876) 2 Ex D 63 per Lindley J. *Carr v Francis Times & Co* [1902] AC 176.

³⁶ But see *Joyce v D P P* [1946] AC 347 HL a decision of some difficulty.

³⁷ *R v Lewis* (1857) 20 LJMC 104. See also *R v Depardo* (1807) 9 RR. 693 *R v De Mattos* (1836) 7 C & P 458 *Nga Hoong v R* (1857) 7 Cox 489 *R v Bjornsen* (1865) 34 LJMC 180. As to offences committed within territorial

It has been repeatedly decided in America that an Act of Congress which enacted that any person committing robbery in any vessel on the high seas should be guilty of piracy, applied only to robbery in American vessels and not to robbery in foreign vessels even by an American citizen ³⁸

An Act of Parliament which authorised the commanders of our ships of war to seize and prosecute 'all ships and vessels' engaged in the slave trade was construed as not intended to affect any right or interest of foreigners contrary to the law of nations ³⁹ Though speaking in just terms of indignation of the traffic in human beings, it spoke only in the name of the British nation Its prohibition of the trade as contrary to the principles of justice, humanity, and sound policy, applied only to British subjects It did not render it unlawful as regarded foreigners ⁴⁰ It was even held that a foreigner who was not prohibited by the law of his own country from carrying it on was entitled to recover in an English court damages for the seizure of a cargo of his slaves by a British man of war, for our courts being open to all aliens in amity with us and the act of the man of war being wrongful the only question was what injury the plaintiff had sustained from it ⁴¹

But a British subject resident in an enemy country was not empowered by section 6 of the repealed Naturalisation Act, 1870 (c 14) to become naturalised in that enemy country during time of war with this country and the act of becoming naturalised in such circumstances constituted the crime of high treason ⁴²

Although a foreigner residing in England who contracts debts, even abroad, ⁴³ and commits an act of bankruptcy in England,

waters see Territorial Waters Jurisdiction Act 1878 (c 73) S 267 Merchant Shipping Act 1854 (c 104) (repealed by Merchant Shipping Act 1894 (c 60)) would seem to have been limited to British subjects See also s 527 *Harris v Franconia* (1877) 2 C.P.D. 173 As to the position on British aircraft see *R v Martin* [1956] 2 Q.B. 272

³⁸ *U.S. v Howard* (1818) 3 Wash. 340 *U.S. v Palmer* (1818) 3 Wheat. 610 *U.S. v Klintonck* (1820) 5 Wheat. 144 *U.S. v Kessler* (1829) Bald. 15 cited by Cockburn CJ in *R v Keyn* (1876) 2 Ex.D. 172

³⁹ *Le Louis* (1817) 2 Dods. 214 *Sr Juan Nepomuceno* (1824) 1 Hagg. 265 *The Antelope* (1825) 10 Wheat. 66 See also *R v Serra* (1845) 1 Den. 104 Cf *The Amedie* (1810) 1 Acton. 240

⁴⁰ *Madra o v Willes* (1820) 3 B. & Ald. 353 at p. 358 per Best J
⁴¹ *Madra o v Willes* (1820) 3 B. & Ald. 353 See also *Santos v Illidge* (1860) 29 L.J.C.P. 348 Cf *Forbes v Cochrane* (1824) 2 L.J.K.B. 67

⁴² See *R v Lynch* [1903] 1 K.B. 444 *Dawson v Meuli* (1918) 118 L.T. 357 and *R v Commanding Officer Middlesex Regiment* [1917] 2 K.B. 129

⁴³ *Ex p Pascal* (1876) 1 Ch.D. 509

would be liable to the English bankruptcy laws he did not formerly fall within them if he committed the act of bankruptcy abroad although section 4 of the Bankruptcy Act, 1883 (c 52), made it an act of bankruptcy, whether committed 'in England or elsewhere' ⁴¹

The Rules of Court, 1883 (now rescinded) directing how writs were to be served on persons sued in the name of their firm, did not give jurisdiction over foreign firms whose location was abroad ⁴²

So an English court would have no jurisdiction to wind up a foreign company having no branch in England ⁴³

Section 17 of the British Nationality and Status of Aliens Act, 1914 (c 17) replacing section 2 of the Naturalisation Act 1870 (c 14) which enacted that real and personal property of every description may be taken acquired held, and disposed of by an alien in the same manner in all respects as by a natural-born British subject, has been held in a case decided under the earlier Act not to entitle a will to probate here which was made by an alien whose domicile of origin was English, but who was domiciled abroad at the time of making such will and of her death the will having been executed according to the forms required by English law but not in manner required by the law of the country of her domicile ⁴⁴

The Merchant Shipping Act, 1854 (c 104), sections 458 and 476, which gave the Court of Admiralty jurisdiction over all claims whatsoever relating to salvage reward for saving lives has been held not to extend to the salvage of life on a foreign ship

⁴¹ *Cooke v Fogeler* [1901] A C 102 *Ex p Blain* (1879) 12 Ch D 522 *Re Pearson* [1892] 2 Q B 263 See also *Bulkeley v Shut* (1871) L R 3 P C 764 *Bateman v Service* (1881) 6 App Cas 386 *Ex p O Loughlen* (1871) L R 6 Ch 406 *Davis v Park* (1873) L R 8 Ch 862 *Ex p Crispin* (1873) L R 8 Ch 374 *Re Debtors* [1936] 1 Ch 622 But see now the extended definition of debtor in the Bankruptcy Act 1914 (c 59) s 1 (2) and *Williams on Bankruptcy* 17th ed pp 26-27 and *Re a Debtor* (No 335 of 1947) [1948] 2 All E R 533

⁴² *Western Nat Bank v Pere* [1891] 1 Q B 304 *Russell v Cambefort* (1889) 23 Q B D 526 *Dobson v Festl* [1891] 2 Q B 92 *Grant v Anderson* [1892] 1 Q B 108 See also *Lysaght v Clark* [1891] 1 Q B 552 *Heinemann v Hale* [1891] 2 Q B 83 *St Gobain Co v Hovermann's Agency* [1893] 2 Q B 96 *Worcester Banking Co v Firbank* [1894] 1 Q B 784 *Machier v Burns* [1895] 2 Ch 630

⁴³ *Re Lloyd Generale Italiano* (1885) 29 Ch D 219 See the discussion in *Stiebel's Company Law* 3rd ed p 748

⁴⁴ *Bloxam v Favre* (1883) 9 P D 130 *Re Lyne's Settlement Trusts* *Re Gibbs* [1919] 1 Ch 80 *Re Simpson* [1916] 1 Ch 502

or the supply of necessities when the vessel is more than three marine miles from our shore⁴⁸

Real and Personal Property

As it is a rule of all systems of law that real property is exclusively subject to the laws of the state within whose territory it lies any Act which dealt in general terms with the real estate of a bankrupt or testator of unsound mind would be construed as not extending to his lands abroad,⁴⁹ or in our colonies, unless it clearly appeared that the Act was intended to reach them⁵⁰ But a statute which imposed a stamp duty on all conveyances of land executed in England would obviously not be so limited in construction⁵¹

It being also a general principle that personal property has, except for some purposes such as probate,⁵² no other *situs* than that of its owner the right and disposition of it are governed by the law of the domicile of the owner, and not by the law of their local situation⁵³ The Bankruptcy Acts therefore, which affect an assignment of a bankrupt's personal property, would properly be construed as applying to such property elsewhere⁵⁴

When an Act imposes a burden in respect of personal property, it would be construed as far as its language permitted as not intended to contravene the general principle⁵⁵ Thus the Legacy Duty Act 1796 (c 52) which imposed a duty on every legacy given by any will of any person out of his personal estate and the Succession Duty Act, 1853 (c 51), which imposed a duty on every disposition of property by which 'any person became entitled to any property on the death of another, were held not to apply where the deceased was a foreigner, or even a British

⁴⁸ *The Johannes* (1860) Lush 182. But see Merchant Shipping Act 1894 (c 60) s 544 (1) *The Pacific* [1898] P 170 on which see *Jorgensen v Neptune Co* [1901] 4 Fraser 992. See also *Laws v Smith* (1883) 9 App Cas 356 P C

⁴⁹ *Selkirk v Davis* (1814) 2 Rose 311 *Cockerell v Dickens* (1840) 3 Moo P C 133. See *Sill v Worswick* (1791) 1 H Bl 665 *Phillips v Hunter* (1795) 2 H Bl 407. *Hunter v Potts* (1791) 4 T R 182. *Re Blithman* (1866) L R 2 Eq 23. *Freke v Carbery* (1873) L R 16 Eq 461. *Waite v Bingley* (1882) 21 Ch D 674. *Duncan v Lawson* (1889) 41 Ch D 394. *Re Hawthorne* (1883) 23 Ch D 743. *Pepin v Bruyère* (1902) 71 L J Ch 39. *Story Confl L* s 428 551 etc

⁵⁰ See *Re Hewitt's Estate* (1858) 6 W R 537. Cf *Re International Pulp Co* (1876) 3 Ch D 594

⁵¹ *Re Wright* (1855) 11 Ex 458

⁵² See *Hart v Hewitt* (1873) L R 8 Ch 860

⁵³ *Story Confl L* s 376. See e.g. *Re Elliott* (1891) 39 W R 297

⁵⁴ See *Re Atkinson* (1882) 21 Ch D 100

⁵⁵ See e.g. *Grenfell v I R C* (1876) 1 Ex D 242

subject domiciled abroad, though the property was in England⁵⁶ But they would affect personal property abroad, if the deceased was domiciled in England though a foreigner⁵⁷

Foreigners residing abroad but carrying on business in England by agents obtaining orders in England were held to be liable to income tax on profits so made (unless all contracts for the sale and all deliveries of the merchandise to customers were made in a foreign country)⁵⁸ The old jurisdiction of interpleader did not empower our courts to bar the claim of a foreigner residing abroad⁵⁹

Statute Unambiguously in Conflict with International Law

It is hardly necessary to add however that if the language of an Act of Parliament unambiguously and without reasonably admitting of any other meaning applies to foreigners abroad, or is otherwise in conflict with any principle of international law, the courts must obey and administer it as it stands whatever may be the responsibility incurred by the nation to foreign Powers in executing such a law,⁶⁰ for the courts cannot question the authority of Parliament, or assign any limits to its power⁶¹ They could not, therefore, properly put a construction upon a statute different

⁵⁶ *Re Bruce* (1832) 2 Cr. & J. 436 *Arnold v Arnold* (1837) 6 L.J. Ch. 218 *Thomson v Advocate General* (1845) 12 Cl. & F. 1 discussed in *Lawson v I.A.C.* [1896] 2 Ir. R. 418 and approved in *Harding v Queensland Commissioner of Stamps* [1878] A.C. 796 P.C. *Sully v Att. Gen.* (1860) 29 L.J. Ex. 464 *Re Atkinson* (1897) 21 Ch. D. 100 *Cf. Att. Gen. v Campbell* (1872) L.R. 5 H.L. 524 *Re Cigalis Settlement* (1878) 7 Ch. D. 351 *Colquhoun v Brooks* (1839) 14 App. Cas. 493 *London Bank of Mexico v Apthorpe* [1891] 2 Q.B. 378 *San Paulo Ry. v Carter* [1896] A.C. 31 But as regards Finance Act 1894 see *Hinans v Att. Gen.* [1910] A.C. 27

⁵⁷ *Att. Gen. v Napier* (1851) 6 Ex. 217 *Blackwood v R.* (1887) 8 App. Cas. 81 P.C.

⁵⁸ *Pommery v Apthorpe* (1886) 56 L.J. Q.B. 155 *Herle v Colquhoun* (1883) 70 Q.B.D. 753 *Gralinger v Gough* [1896] A.C. 325 But see *Kudak Ltd v Clark* [1903] 1 K.B. 505 *Gnaniophone Co. v Stanley* [1908] 2 K.B. 89 *Goer v Bell* [1904] 2 K.B. 136 *De Beers Mines v Howe* [1906] A.C. 455 *Turn v Scanlin* [1928] A.C. 34 Income Tax Act 1853 (c. 34) Sched. D Income Tax Act 1952 (c. 10) Sched. D Case 1

⁵⁹ *Patoni v Campbell* (1843) 13 L.J. Ex. 85 *Lintsey v Barron* (1848) 6 C.B. 291 But see *Credit Gerondeuse v Van Heede* (1884) 12 Q.B.D. 171 on which see *Re Busfield* (1886) 32 Ch. D. 123 approved in *Dubout v Macpherson* (1889) 23 Q.B.D. 340

⁶⁰ *Per cur. The Marlanna Flora* (1826) 11 Wheat. 40 *The Zollverein* (1856) Swab. 96 *The Johannes* (1860) Lush. 182 *The Amalia* (1856) 32 L.J.P.M. & A. 191 *Ellis v McHenry* (1871) 40 L.J.C.P. 109 115 *Theophile v Solicitor General* [1950] A.C. 186 11 L. per Lord Porter

⁶¹ *Cf. Bonham's Case* (1609) 8 Rep. 118a commented on in *Kemp v Neville* (1861) 31 L.J.C.P. 158 See also *Dav v Saradge* (1614) 110b. 87 *London (City of) v Hood* (1701) 12 Mod. 688 1 Kent Comm. 417

or the supply of necessities when the vessel is more than three marine miles from our shore ⁴⁸

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As it is a rule of all systems of law that real property is exclusively subject to the laws of the state within whose territory it lies, any Act which dealt in general terms with the real estate of a bankrupt or testator of unsound mind would be construed as not extending to his lands abroad ⁴⁹ or in our colonies, unless it clearly appeared that the Act was intended to reach them ⁵⁰. But a statute which imposed a stamp duty on all conveyances of land executed in England would obviously not be so limited in construction ⁵¹.

It being also a general principle that personal property has, except for some purposes such as probate, ⁵² no other *situs* than that of its owner, the right and disposition of it are governed by the law of the domicile of the owner and not by the law of their local situation ⁵³. The Bankruptcy Acts, therefore which affect an assignment of a bankrupt's personal property would properly be construed as applying to such property elsewhere ⁵⁴.

When an Act imposes a burden in respect of personal property, it would be construed as far as its language permitted as not intended to contravene the general principle ⁵⁵. Thus the Legacy Duty Act, 1796 (c. 52) which imposed a duty on every legacy given by any will of any person out of his personal estate and the Succession Duty Act, 1853 (c. 51) which imposed a duty on every disposition of property by which 'any person became entitled to any property on the death of another' were held not to apply where the deceased was a foreigner or even a British

⁴⁸ *The Johannes* (1860) Lush. 182. But see Merchant Shipping Act 1894 (c. 60) s. 544 (1) *The Pacific* [1898] P. 170 on which see *Jorgensen v Neptune Co* [1907] 4 Fraser 992. See also *Laws v Smith* (1883) 9 App. Cas. 356 P.C.

⁴⁹ *Selkirk v Davis* (1814) 2 Rose 311. *Cockerell v Dickens* (1840) 3 Moo. P.C. 131. See *Sill v Worswick* (1791) 1 H.B. 665. *Phillips v Hunter* (1795) 2 H.B. 40. *Hunter v Potts* (1791) 4 T.R. 182. *Re Blithman* (1866) L.R. 2 Eq. 23. *Freke v Carbery* (1873) L.R. 16 Eq. 461. *Walte v Bingley* (1887) 21 Ch.D. 674. *Duncan v Lawson* (1889) 41 Ch.D. 394. *Re Hawthorne* (1883) 23 Ch.D. 743. *Pepin v Bruvère* (1902) 71 L.J. Ch. 39. *Story Conf. L.* ss. 428, 551 etc.

⁵⁰ See *Re Hewitt's Estate* (1858) 6 W.R. 537. Cf. *Re International Pulp Co* (1876) 3 Ch.D. 594.

⁵¹ *Re Wright* (1855) 11 Ex. 458.

⁵² See *Hart v Herwig* (1873) L.R. 8 Ch. 860.

⁵³ *Story Conf. L.* s. 376. See e.g. *Re Elliott* (1891) 39 W.R. 497.

⁵⁴ See *Re Atkinson* (1887) 21 Ch.D. 100.

⁵⁵ See e.g., *Grenfell v I.R.C.* (1876) 1 Ex.D. 24.

subject domiciled abroad, though the property was in England⁵⁶ But they would affect personal property abroad, if the deceased was domiciled in England though a foreigner⁵⁷

Foreigners residing abroad but carrying on business in England by agents obtaining orders in England, were held to be liable to income tax on profits so made (unless all contracts for the sale and all deliveries of the merchandise to customers were made in a foreign country)⁵⁸ The old jurisdiction of interpleader did not empower our courts to bar the claim of a foreigner residing abroad⁵⁹

Statute Unambiguously in Conflict with International Law

It is hardly necessary to add, however that if the language of an Act of Parliament, unambiguously and without reasonably admitting of any other meaning applies to foreigners abroad or is otherwise in conflict with any principle of international law, the courts must obey and administer it as it stands whatever may be the responsibility incurred by the nation to foreign Powers in executing such a law,⁶⁰ for the courts cannot question the authority of Parliament or assign any limits to its power⁶¹ They could not, therefore, properly put a construction upon a statute different

⁵⁶ *Re Bruce* (1832) 2 Cr & J 436 *Arnold v Arnold* (1837) 6 L.J Ch 218 *Thomsan v Advocate General* (1845) 12 Cl & F 1 discussed in *Lawson v I R C* [1896] 2 Ir 418 and approved in *Harding v Queensland Commissioner of Stamps* [1898] AC 796 PC *Sully v Att Gen* (1860) 29 L.J Ex 464 *Re Atkinson* (1882) 21 Ch D 100 *Cf Att Gen v Campbell* (1872) LR 5 HL 524 *Re Cigalas Settlement* (1878) 7 Ch D 351 *Colquhoun v Brooks* (1889) 14 App Cas 493 *London Bank of Mexico v Apthorpe* [1891] 2 QB 378 *San Paulo R v Carter* [1896] AC 31 But as regards Finance Act 1894 see *Winans v Att Gen* [1910] AC 27

⁵⁷ *Att Gen v Napier* (1851) 6 Ex 217 *Blackwood v R* (1882) 8 App Cas 81 PC
⁵⁸ *Pommery v Apthorpe* (1886) 56 L.J QB 155 *Herle v Colquhoun* (1888) 20 QBD 753 *Grainger v Gough* [1896] AC 325 But see *Kadak Ltd v Clark* [1903] 1 KB 505 *Gramophone Co v Stanley* [1908] 2 KB 89 *Goer v Bell* [1904] 2 KB 136 *De Beers Mines v Howe* [1906] AC 455 *Tarn v Scanlan* [1978] AC 34 Income Tax Act 1853 (c 34) Sched D Income Tax Act 1952 (c 10) Sched D Case I

⁵⁹ *Patroni v Campbell* (1843) 13 L.J Ex 85 *Lindsey v Barron* (1848) 6 CB 291 But see *Credits Gerundense v Van Weede* (1884) 12 QBD 171 on which see *Re Busfield* (1886) 32 Ch D 123 approved in *Dubout v Macpherson* (1889) 23 QBD 340

⁶⁰ *Per cur The Marianna Flora* (1826) 11 Wheat 40 *The Zollverein* (1856) Swab 96 *The Johannes* (1860) Lush 182 *The Amaha* (1856) 32 L.J PM & A 191 *Ellis v McHenry* (1871) 40 L.J CP 109 115 *Theophile v Solicitor General* [1950] AC 186 HL *per Lord Porter*

⁶¹ *Cf Bonham's Case* (1609) 8 Rep 118a commented on in *Kemp v Neville* (1861) 31 L.J CP 158 See also *Day v Savadge* (1614) Hob 87 *London (City of) v Wood* (1701) 12 Mod 688 1 Kent Comm 447

from that which they would otherwise give it to merely because its language would otherwise fail to give to a foreigner the full advantage of the provisions of a treaty ⁶²

Section 4 of the Statute of Frauds, which enacted that no action shall be brought in respect among others of contracts not to be performed within a year unless they were in writing, was construed literally as regulating the procedure of our courts, and, therefore, as prohibiting a suit in England on a contract made in France and in accordance with French law, but not in conformity with the formalities required by our law ⁶³ But this construction has been questioned ⁶⁴ and having regard to the principle under consideration, the enactment might reasonably have been confined to those contracts which it was within the province of Parliament to regulate

SECTION 3 —HOW FAR STATUTES CONFERRING RIGHTS AFFECT FOREIGNERS

Generally, we must assume that the legislature confines its enactments to its own subjects over whom it has authority, and to whom it owes a duty in return for their obedience Nothing is more clear than that it may also extend its provisions to foreigners in certain cases But the presumption is rather against the extension ⁶⁵ This presumption prevailed in considering statutes of a special and exceptional kind, such as the Copyright Act, 1709 (c 19) ⁶⁶, the Income Tax Acts ⁶⁷ and the Merchant Shipping Act 1854 (c 104) ⁶⁸ But in considering the Fatal Accidents Acts 1846 1864 (cc 93 95) Kennedy J upon whose judgment these remarks are founded held that the basis of the claim to which these Acts gave statutory authority was negligence causing injury a wrong which the law of every civilised country treats as an actionable wrong It was more reasonable to hold

⁶² *Re Californian Fig Syrup Co* (1889) 40 Ch D 620 *I R C v Collico Dealings Ltd* [1960] 2 All E.R. 44 CA

⁶³ *Leroux v Brown* (1852) 22 LJ CP 3 *Jones v Victoria Graving Dock* (1877) 2 QB D 323

⁶⁴ See *Williams v Wheeler* (1860) 8 CB (NS) 299 *Gibson v Holland* (1865) LR 1 CP 8 per Willes J and the notes to *Burmyr v Darnell* (1704) and *Mostyn v Fabrigas* (1770) 1 Sm LC 13th ed p 689 See also Story Conf L. s 235n observing on *Acebal v Levy* (1834) 10 Bing 376

⁶⁵ *Jefferys v Boosey* (1854) 4 HLC 815 at p 970 per Lord Brougham

⁶⁶ *Jefferys v Boosey* (1854) 4 HLC 815

⁶⁷ *Colquhoun v Heddon* (1890) 25 QB D 135

⁶⁸ *The Zollverein* (1856) Swab 96 *Cope v Doherty* (1858) 4 K. & J 367

that Parliament did intend to confer the benefit of this legislation on foreigners as well as upon subjects, and certainly that as against an English wrongdoer a foreigner has a right to maintain his action under the statutes in question ⁶⁹

When personal rights are conferred, and persons filling any character of which foreigners are capable are mentioned foreigners would be comprehended in the statute ⁷⁰ It was held that the Act of Anne which gave a copyright of fourteen years to the 'author of the work' did not apply to a foreign author resident abroad ⁷¹ The decision would probably have been different if the author had been in England when his work was published ⁷², the same reasoning did not apply to the repealed Copyright Act, 1842 (c 45) ⁷³

It was provided by section 35 (4) of the Copyright Act 1911 (c 46) that, in the case of an unpublished work, the making of which extended over a considerable time, the conditions of the Act conferring copyright should apply if the author was during any substantial part of that period a British subject or a resident within the parts of His Majesty's dominions to which the Act extended ⁷⁴ The author would have British copyright if his play was first produced in England, notwithstanding that he was resident in the United States ⁷⁵

It was held that a foreigner was entitled to maintenance and to gain a settlement under the Poor Laws ⁷⁶

On the other hand, it has been held that the Poor Law Amendment Act 1844 (c 101), which empowered the mother of a natural child to sue its putative father for its maintenance, did not extend to a foreign woman who had become pregnant in England but had given birth to the child abroad ⁷⁷ The history, as well as the language of the enactment showed that the liability arose from the birth of the child in this country ⁷⁸ But the mere fact that the child was

⁶⁹ *Davidson v Hill* [1901] 2 K B 606 612 dissenting from *Adam v British and Foreign Steamship Co* [1898] 2 Q B 430

⁷⁰ *Jefferys v Boosey* (1854) 4 H L C 815 at p 895 per Maule J

⁷¹ *Jefferys v Boosey supra*

⁷² *Ibid* Lord Cranworth L C 952

⁷³ *Routledge v Low* (1868) L R 3 H L 107

⁷⁴ See now Copyright Act 1956 (c 74) And see Clerk and Lindell on *Torts* tit Copyright and Copinger on *Copyright*

⁷⁵ *Falcon v Famous Players Film Co* [1926] 2 K B 474 493

⁷⁶ *R v Eastbourne* (1803) 4 East 103 A foreigner appears to be able to take advantage of the National Health Act 1946 (c 81) while in England

⁷⁷ *R v Blane* (1849) 13 Q B 769

⁷⁸ Coleridge J *R v Blane supra* 773

born abroad does not prevent an order being made when it is shown that the status of the child is not governed by foreign law⁷⁹ and in the converse case of conception abroad and birth in England, the law would extend to the mother⁸⁰.

Questions of the rights and liabilities of foreigners at sea which once exercised the courts have since been clarified by statute. Thus in 1876 seven judges held that the Central Criminal Court had no jurisdiction to try a German accused of manslaughter while in command of a German vessel within three miles of Dover beach and six judges held that the court had jurisdiction⁸¹. But under the Territorial Waters Jurisdiction Act 1878 (c 73) s 2, it was enacted that such an offence was within the jurisdiction of the Admiral.

Again the question whether a foreigner could avail himself of the privilege of the Merchant Shipping Act 1854 (c 104) s 504 limiting his liability to damages after a collision to the value of the ship and freight was answered in the negative by *Page Wood v C. Prima facie* it would not be a true construction to hold that the clause extends to foreign ships on the high seas—matters beyond the jurisdiction of the English legislature⁸². But the Act was held to protect a British ship in a suit by a foreign ship when the collision took place in British waters⁸³ and by the amending Act 1862 (c 63) section 54, the provision was extended in terms to foreigners.

When the collision took place on the high seas between a foreign and a British vessel it was first thought that the Act of Parliament could not assist the British vessel⁸⁴ but this view did not prevail. The intention of the Act was to put British and foreign ships on the same footing and it was not exceeding the legislative powers of Parliament to enact that all suitors having recourse to our courts to obtain damages for an injury shall obtain them only to the value of the thing by which the loss was occasioned⁸⁵. For the

⁷⁹ *R v Humphreys ex p Ward* [1914] 3 K B 1237.

⁸⁰ *Hampton v Rickard* (1874) 43 L J M C 133.

⁸¹ *R v Keyn* (1876) 2 Ex D 63. But see *Joyce v D P P* [1946] A C 347 H L.

⁸² *Cope v Doherty* (1858) 4 K & J 367. See *R v Keyn* (1876) 2 Ex D 63. *The Wild Ranger* (1862) 32 L J P M & A 49. *The Leon* (1881) 6 P D 148. See *The Saxonia* (1862) Lush 410. Cf *The Cal Johann* (1821) cited 1 Hagg Adm 113. See now Merchant Shipping Act 1894 (c 60) ss 502–509.

⁸³ *General Iron Screw Co v Schurmanns* (1860) 29 L J Ch 877.

⁸⁴ See *The Dumfries* (1856) Swab 63.

⁸⁵ *The Amalia* (1863) 1 Moo P C (N S) 471.

nature and extent of legal remedies are governed by the *lex fori* and it is no breach of international law or any interference with the rights of foreigners to determine what redress is to be given to suitors who resort to our courts. Where a remedy is sought to be obtained the party seeking it must take it according to the law of that country in which it is to be enforced.⁸⁸ The same rule obtains in America.⁸⁹ Proceedings may be taken against a foreigner if there is a cause of action which arose within the jurisdiction of the court or a cause of action in respect of the breach of a contract made within the jurisdiction.⁹⁰ Where a contract is made in England the contract and all its incidents are usually⁹¹ governed by the law of the country in which it is made.⁹²

A foreigner, for instance, was liable to arrest in this country for a debt contracted abroad though it would have exposed him to no such peril there and he would be barred in our courts by our Statute of Limitations though he was not by the prescription of his own country.⁹³

The provisions of the Admiralty Court Act 1861 (c 10) which gave (by sections 4 and 5) to the Court of Admiralty jurisdiction over any claims for the building of any ship and also for necessities supplied to any ship elsewhere than in the port to which she belonged unless the owner were domiciled in England, were at one time held to be confined to British ships on the ground of the improbability that the British Parliament had intended to legislate for foreigners in foreign ports,⁹⁴ but this no longer represents the law.⁹⁵ And the seamen of a ship of any nation were held to be entitled to sue for wages in the Admiralty Court, under section 10 of the same Act which gave that court jurisdiction over any claim by a seaman of

⁸⁸ *The Vernon* (1842) 1 W Robb 316 citing *Don v Lippmann* (1837) 5 Cl & F 1

⁸⁹ *Bank of U S v Dannally* (1834) 8 Peters 361

⁹⁰ *Jackson v Spittall* (1870) L R 5 CP 542 552

⁹¹ But see *Hamlyn v Talisker Distillery* [1894] A C 202 per Lord Herschell at pp 207-208 and *Benaim v Debono* [1924] A C 514 P C

⁹² *Jacobs v Crédit Lyonnais* (1884) 12 Q B D 589 See Cheshire *Private International Law* 5th ed

⁹³ *De La Vega v Vianna* (1830) 1 B & A 284 287 followed in *General Steam Navig Co v Guillon* (1843) 11 M & W 877 see also *Lope v Burslem* (1843) 4 Moo P C 300 *British Linen Co v Drummand* (1830) 9 L J K B 213 *Huber v Steiner* (1835) 2 Bing N C 202 *Re Reuss Kostritz* (1880) 49 L J P & M 67 *The Lean* (1881) 6 PD 148 *Alliance Bank of Simla v Carey* (1880) 5 CP D 429

⁹⁴ *The India* (1863) 32 L J P M & A 185

⁹⁵ *The Mecca* [1895] P 95 See Administration of Justice Act 1956 (c 46) ss 1 3

CHAPTER 7

CONSTRUCTION TO AVOID COLLISION WITH OTHER PROVISIONS

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SECTION 1 — REPUGNANCY—REPEAL BY IMPLICATION

Repugnancy

AN author must be supposed to be consistent with himself, and therefore if in one place he has expressed his mind clearly it ought to be presumed that he is still of the same mind in another place, unless it clearly appears that he has changed it¹ In this respect, the work of the legislature is treated in the same manner as that of any other author, and the language of every enactment must be construed as far as possible in accordance with the terms of every other statute which it does not in express terms modify or repeal² The law therefore, will not allow the revocation or alteration of a statute by construction when the words may be capable of proper operation without it³ It cannot be assumed that Parliament has given with one hand what it has taken away

¹ Puff L.N.b 5 c. 12, s 9

² See ante pp 33 et seq As to repeal see post pp 156 et seq 389 et seq

³ *Lin v Wyn* (1662) Brdg Rep by Bannister 122 per Bridgman C.J. *Aulner v Phillips* [1891] 2 Q.B. 272 per A.L. Smith J. *Felton v Bowers* [1900] 1 Q.B. 593 *Aberdeen Suburban Tramways Co v Aberdeen Magistrates* 1927 S.C. 683 *Bebb v Frank* [1939] 1 K.B. 558

any ship for wages⁹⁴. It has been held that as the English sailing rules are not binding on foreign ships on the high seas, a foreign ship was precluded in a collision suit from imputing to the British ship with which the collision occurred a breach of any of those rules on the ground that it had no right to the benefit of rules by which it was not itself bound⁹⁵.

In a claim founded on a tort committed in foreign territory the party claiming reparation in a British court is not entitled to the benefit of the foreign law against the admitted provisions of the statute law of England⁹⁶.

⁹⁴ *The Nina* (1867) 37 L J Adm 17

⁹⁵ *The Zollverein* (1856) Swab 96

⁹⁶ *The Halley* (1868) L R 2 P C 193

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with the other⁴. But it is impossible to construe absolute contradictions. Consequently if the provisions of a later Act are so inconsistent with, or repugnant to, those of an earlier Act that the two cannot stand together,⁵ the earlier stands impliedly repealed by the later⁶. *Leges posteriores priores contrarias abrogant*⁷. *Ubi duae contrariae leges sunt semper antiquam abrogat nova*⁸.

A difference indeed, has been said to exist in this respect between the effect of a saving clause, or exception, and a proviso in a statute⁹. When the proviso appended to the enacting part is repugnant to it it unquestionably repeals the enacting part¹⁰ but it is said by Lord Coke that when the enactment and the saving clause (which reserves something which would be otherwise included in the words of the enacting part¹¹) are repugnant—as where a statute vests a manor in the King saving the rights of all persons, or vests in him the manor of A saving the rights of A—the saving clause is to be rejected, because otherwise the enactment would have been made in vain¹². One authority which he cites for this proposition is the case of the reversal of the Duke of Norfolk's Attainder Act 1546 (38 Hen 8), by an Act of Mary. The latter Act declared that the statute of 1546 which had attainted the Duke was no Act, but utterly void, providing however, that this reversal should not take from the grantees of Henry VIII or Edward VI any lands of the Duke which those Kings had granted to them. That provision was held inoperative to save the rights of the grantees

⁴ *Dormer v Newcastle on Tyne Corpn* [1940] 2 K B 204 217 CA a case in which the words 'nothing in this Act' were held to mean 'nothing in the preceding three sections of this Act'.

⁵ *West Ham v Fourth City Building Society* [1892] 1 Q B 654. See *O'Haherty v McDowell* (1857) 6 H L C 142 per Lord St Leonards obiter and *The Danube II* [1920] 1 104.

⁶ *Co Litt* 112. *Shep Touchst* 88. *Grot* b 2 c 16 s 4. *Sims v Doughty* (1799) 5 Ves 243. *Constantine v Constantine* (1801) 6 Ves 100. *Morrall v Sutton* (1844) 1 Phil 533. *Brown v G B Ry* (1882) 9 Q B D 753 per Field J. *Argyll (Duke) v I R C* (1913) 109 LT 893 per Scrutton J. who cites this passage at p 895. *Hall v Arnold* [1950] 2 K B 543.

⁷ 1 Rep 25b. 11 Rep 62b.

⁸ *Livy* b 9 c 34.

⁹ There may also be certain procedural differences between the effect of an exception and that of a proviso see e.g. *R v James* [1902] 1 K B 540. *R v Audley* [1907] 1 K B 383.

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But this resulted it is said, not because the saving clause was repugnant to the enacting part, but because the latter in declaring the attainder void, in effect established also that the lands of the Duke had never vested in the Crown, that none consequently had ever passed to the grantees and that there was thus no interest to be saved on which the clause could operate ¹³

The illustrations given by Coke are cases of conveyance of land and the rule as regards the construction of repugnant passages in a conveyance by deed has always been that the earlier of them prevails ¹⁴ But it may be questioned whether there is any solid ground for this distinction between a saving clause and a proviso in a statute

There is no rule that the first or enacting part is to be construed without reference to the proviso The proper course is to apply the broad general rule of construction which is that a section or enactment must be construed as a whole each portion throwing light if need be on the rest ¹⁵

The true principle undoubtedly is that the sound interpretation and meaning of the statute, on a view of the enacting clause saving clause and proviso taken and construed together is to prevail ¹⁶ "If the two sections are repugnant the known rule is that the last must prevail ¹⁷ But How can we say that one provision is repealed by the other when both received the Royal Assent at the same moment?" ¹⁸

Where the second section is an interpretation section there is no rule that it should prevail over the first ¹⁹

Section 40 of the County Courts Act 1934 (c 53) providing that a county court should not have jurisdiction to try an action for slander was overridden by section 63 (3) of the same Act ²⁰

Where a section in a statute is merely a re enactment of a

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¹⁴ Co Litt. 112 *Shep Touchst* 81 *Cotter v Merrick* (1657) Hard 94 *Furnivall v Coombes* (1843) 12 L J C P 265 explained in *Williams v Hathaway* (1877) 6 Ch D 544

¹⁵ *Jennings v Kelly* [1940] A C 206 229 *Curtis v Maloney* [1951] 1 K B 736

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with the other⁴. But it is impossible to construe absolute traditions. Consequently if the provisions of a later Act inconsistent with or repugnant to those of an earlier Act the two cannot stand together⁵ the earlier stands impliedly repealed by the later⁶. *Leges posteriores priores contrarias abrogant* *duae contrariae leges sunt semper antiquam abrogat nova*⁷.

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⁴ *Dummet v. Newnham* (1874) 12 Ch. D. 204. 17 C.A. 2 case in which the words "not in this Act" were held to mean "nothing in the Act" and "three sections of the Act".

⁵ *West Ham v. Corpn. of City of London* (1897) 1 Q.B. 654. See *Ulster v. The Duke of Devonshire* (1897) 6 H.L.C. 14. per Lord St. Leonards. *ob. cit.* and *The People v. [1897] P. 104*.

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Where the second section is an interpretation section there is no rule that it should prevail over the first ¹⁹

Section 40 of the County Courts Act 1934 (c 53) providing that a county court should not have jurisdiction to try an action for slander was overridden by section 63 (3) of the same Act ²⁰

Where a section in a statute is merely a re enactment of a

¹³ *Walsingham's Case* (1579) Plowd 565 See *Savings Institution v Makin* (1844) 23 Maine 370

¹⁴ Co Litt 112 Shep Touchst 81 *Cotter v Merrick* (1657) Hard 94 *Furnivall v Coombes* (1843) 12 LJ CP 265 explained in *Williams v Hathaway* (1877) 6 Ch D 544

¹⁵ *Jennings v Kelly* [1940] AC 206 229 *Curtis v Maloney* [1951] 1 KB 736

¹⁶ *Kent's Commentary on American Law* 12th ed Vol 1 463n

¹⁷ *Wood v Riley* (1867) LR 3 CP 26 at p 27 per Keating J

¹⁸ *Castrique v Page* (1853) 13 CB 458 at p 461 per Jervis CJ during argument

¹⁹ *Jobbins v Middlesex County Council* [1949] 1 KB 142

²⁰ *Hardwicke v Gilroy* [1944] 1 KB 460 CA

section in a previous statute it cannot operate as a repeal of an intermediate enactment ²¹

Where a passage in a schedule to a statute was repugnant to one in the body of the statute, the latter was held to prevail ²² and the mere wording of a specimen form in a Schedule to an Act cannot restrict or enlarge a provision in the Act itself ²³

Where there are two sections dealing with the same subject matter, one section being unqualified and the other containing a qualification, effect must be given to the section containing the qualification ²⁴

Where (as often happens) a proviso is inserted to protect persons who are unreasonably apprehensive of the effect of an enactment where there is really no question of its application to their case, the enactment is not to be construed against the intention of the legislature so as to impose a liability upon people who were not so apprehensive. The proviso may prevent a possible construction which was not intended ²⁵

But where an Act made general provision for trustees in one section and special provision for the Official Receiver in another section, it was held that the latter could not take advantage of the general provisions by calling himself a trustee ²⁶

A proviso should not be interpreted so as to have greater effect than strict construction of the proviso renders necessary ²⁷

Implied Repeal

When the later of two general enactments is couched in negative terms it is difficult to avoid the inference that the earlier one is

²¹ *Morisse v Royal British Bank* (1856) 26 L J C P 62 64. The Bankrupt Laws Consolidation Act 1849 (c 106) s 182 which provided that a creditor who proved his debt under bankruptcy should relinquish his suit merely re enacted the Bankrupts (England) Act 1825 (c 16) s 59 and did not repeal the Winding Up Act 1844 (c 111) s 10 which left the right of suit unaffected.

R v Baines (1840) 12 A & E 227. *Allen v Flicker* (1839) 10 A & E 640. *Patteson J R v Russell* (1849) 13 Q B 237. *Dean v Green* (1882) 8 P D 79. *Ex p Cox* (1887) 56 L J Q B 532. *Clarke v Gant* (1853) 8 Ex 252. *Jacobs v Hort* (1900) 2 F (Just) 33 57. *Shore v Cunningham* [1917] 2 Ir R 360. As to Title Preamble Marginal Notes Instruments and Schemes see pp 39-50 *et seq*.

²² *Dean v Green* (1882) 8 P D 79.

²³ *Moss v Elphick* [1910] 1 K B 465 468.

²⁴ *Bretherton v U K Totalisator Co* [1945] K B 555 citing *West Derby Guardians v Metropolitan Life Assurance* [1897] A C 647.

²⁵ *Re a Debtor* (No 416 of 1940) *ex p Official Receiver* [1950] Ch 423 C A.

²⁷ *Re Tobrisky* [1947] Ch 465 C A.

impliedly repealed by it. For instance where a general Act exempted from licensing regulations the sale of a certain kind of beer and a subsequent one enacted that no beer should be sold without a licence it would obviously be impossible to save the former from the repeal implied in the latter.⁸

The Highways Act, 1835 (c 50) s 109 (repealed by the Public Authorities Protection Act, 1893 (c 61) s 2), which enacted that "no action" for anything done under it should be begun after three months from the cause of action, was so clearly inconsistent as regarded actions against justices with the Constables Protection Act 1750 (c 44) s 8 which limited the time to six months, that it necessarily repealed the latter.⁹

Even when the later statute is in the affirmative, it is often found to involve that negative which makes it fatal to the earlier enactment.¹⁰ The requirements of the Fines and Recoveries Act, 1833 (c 74), s 40, which empowered a married woman to dispose by deed of land which she held in fee provided she did so with the concurrence of her husband and by deed acknowledged were impliedly repealed by the Married Women's Property Act 1882 (c 75) which enabled her in general terms to dispose of all real property as if she were a *feme sole*.¹¹

If an Act requires that a juror shall have £20 a year and a new one enacts that he shall have 20 marks the latter necessarily implies, on pain of being itself inoperative that the earlier qualification shall not be necessary and thus repeals the first Act.¹²

An Act empowering a railway company to erect a station on any scheduled lands within the limits of deviation would override the provisions of the earlier Metropolis Management Amendment Act 1862 (c 102) s 75 which forbade the erection of buildings

⁸ *Read v Storey* (1861) 30 L J M C 110 remedied by the Revenue (No 1) Act 1861 (c 21) s 3 now repealed by Finance (1909-1910) Act 1910 (c 8) s 96 and Sched 6

⁹ *Rlx v Borton* (1840) 12 A & E 470

¹⁰ *Bac Ab Stat (D) Foster's Case* (1590) 5 Rep 59. See *Garnett v Bradley* (1878) 3 App Cas 944 per Lord Blackburn. See however *post* pp 177 *et seq*

¹¹ *Re Drummond* [1891] 1 Ch 524. See now Law Reform (Married Women and Tortfeasors) Act 1935 (c 30) s 1

¹² *Jenk* 2nd Cent Case 73 1 Bl Comm 89

beyond the general line of buildings in a street ³³ but this rule is not necessarily of universal application ³⁴

Where the Poor Relief Act, 1662 (c 12) enabled two justices of the peace 'whereof one to be of the quorum,' to remove any person likely to be chargeable to the parish which he came to inhabit, and the Poor Removal Act, 1795 (c 101) after reciting this provision, repealed it and enacted that no person should be removable until he became chargeable in which case "two justices of the peace were empowered to remove him, it was held that the later Act dispensed with the qualification of being of the quorum ³⁵

The provision of section 6 of the Poor Relief Act 1601 (c 2) which gave an appeal without any limits as to time against overseers accounts was impliedly repealed by a subsequent Act which gave power to appeal to the next quarter sessions ³⁶

The Nuisances Removal Act 1848 (c 123) in providing that the cost of obtaining and executing an order of justices under the Act against an owner of premises should be recoverable in the county court impliedly repealed as regards such cases the enactment of section 58 of the County Courts Act 1846 (c 95) that those courts should not take cognisance of cases where title to real property was in question for it would have been inoperative if the court could not decide the question of ownership ³⁷ and this ruling still represents the law ³⁸

An order made under the authority of the Judicature Act 1875 (c 77) enacting that the costs of all proceedings in the High Court shall be in the discretion of the court and that where an action is tried by a jury the costs shall follow the event unless the judge at the trial or the court otherwise orders was held to repeal so much of the Limitation Act 1623 (c 16) as deprived a successful

³³ *City & South London Ry v London C C* [1891] 2 Q B 513 *London C C v London School Bd* [1892] 2 Q B 606 *Uckfield U D C v Cranborough Water Co* [1899] 2 Q B 664 See now London Building Act 1930 (c clviii) Pt III

³⁴ *London County Council v Wandsworth & Putney Gas Co* (1900) 82 L T 562

³⁵ *R v Llangian* (1863) 32 L J M C 225 Those of the quorum were wont to be chosen especially for their knowledge of the laws of the land

³⁶ s 6 repealed by Poor Law Act 1927 (c 14) *R v Worcestershire* (1816) 5 M & S 457

³⁷ *R v Harden* (1852) 22 L J Q B 299 See Public Health Act 1936 (c 49) ss 96 293

³⁸ *Fordham v Akers* (1864) 33 L J Q B 67 See County Courts Act 1959 (c 22)

plaintiff of costs in an action of slander when he did not recover as much as 40s damages³⁹

An enactment that the *Custos Rotulorum* shall nominate a fit person to be clerk of the peace *quandiu se bene gesserit*, impliedly repealed an earlier one which authorised the appointment *durante bene placito*, for a grant under the former would be inconsistent with one under the latter of the above Acts⁴⁰

Where a statute made it actionable to sell a pirated copy of a work with knowledge that it was pirated and a subsequent Act contained a similar provision but without any mention of guilty knowledge it was held that the earlier Act was so far abrogated that an action was maintainable for a sale made in ignorance of the piracy⁴¹

Where the Wild Birds Protection Act 1872 (c 78) imposed a penalty of 5s for killing or selling a wild bird between March and August unless it was proved that the bird had been brought from abroad before March and a later Act for the protection of wild fowl (the Preservation of Wild Fowl Act 1876 (c 29))⁴² after reciting that this enactment was insufficient for the protection of wild birds during the breeding season, imposed a penalty of 20s for killing or possessing a wild bird between February and July, it was held that the later Act impliedly repealed the proviso of the earlier Act, which admitted the excuse that the bird had been imported⁴³

Where an Act required that a consent should be given in writing attested by two witnesses and a subsequent Act made the consent valid if in writing but made no mention of witnesses this silence was held to repeal by implication the provision which required them⁴⁴

³⁹ *Garnett v Bradley* (1878) 3 App Cas 944 *Rockett v Clippingdale* [1891] 2 Q B 293 *Mersey Docks v Lucas* (1883) 8 App Cas 891 per Jessel M R *Gardner v Whitford* (1858) 4 C B (ns) 665 R S C Ord 65 r 1

⁴⁰ *Owen v Saunders* (1697) 1 Lord Raym 158 See also *Re North Wales Gunpowder Co* [1892] 2 Q B 220 See now Local Government (Clerks) Act 1931 (c 45)

⁴¹ *West v Francis* (1822) 5 B & Ald 737 *Gambart v Sumner* (1859) 29 L J Ex 98 For disquisition on Copyright Act 1956 (c 74) see *Clerk and Lindsell on Torts* 12th ed Chap 29 and *Copinger on Copyright* See *mens rea ante* pp 95 *et seq*

⁴² Repealed by the Wild Birds Protection Act 1880 (c 35) s 7

⁴³ *Whitehead v Smithers* (1877) 2 C P D 553 See the Wild Birds Protection Act 1880 (c 35) *Harris v Lucas* [1919] 2 K B 291 *Taylor v Rogers* (1881) 50 L J M C 132 and *Green v Carstang* (1901) 66 J P 102 See now the Protection of Birds Act 1954 (c 30)

⁴⁴ *Cumberland v Copeland* (1862) 31 L J Ex 353 *Jefferys v Boosey* (1854) 4 H L C 943 per Jervis C J *Kyle v Jefferys* (1859) 3 Macq 611 per Lord Wensleydale See *Hodgson v Bell* (1890) 24 Q B D 525 *Derby v Bury Commissioners* (1868) L R 4 Ex 222 This exposition of repeal by implication is approved in terms by *Scrutton L J Ellen Street Estates v Minister of Health* [1934] 1 K B 590 596

A curious complication of legislation involving a repeal by implication is afforded by the Judicature Act 1873 (c 66) and the County Courts Acts, 1875 (c 50) and 1888 (c 43). By the Judicature Act, 1873 (c 66), s 45 which came into operation in 1875 it was enacted that from a decision of a divisional court on an appeal from a county court there should be no further appeal without the leave of the divisional court. But section 10 of the County Courts Act 1875 which came into operation the following day, enacted that there should be an appeal without leave from the divisional court if the latter altered the judgment of the county court in an Admiralty cause and consequently *pro tanto* repealed section 45 of the Judicature Act. The County Courts Act 1888 (c 43), s 188 repealed the provision of the County Courts Act 1875 (c 50) referred to but provided that the repeal should not revive any enactment not in force when it was passed. This express repeal consequently did not revive section 45 of the Judicature Act 1873 (c 66) so far as it was impliedly repealed by the County Courts Act 1875 (c 50) s 10⁴⁵.

Where a statute contemplates in express terms that its enactments will repeal earlier Acts by their inconsistency with them the chief argument or objection against repeal by implication is removed and the earlier Acts may be more readily treated as repealed.

Thus where after a local Act had directed the trustees of a turnpike to keep their accounts and proceedings in books to which all persons should have access the Turnpike Roads Act 1822 (c 126), (which recited the great importance of one uniform system being adhered to in the laws regulating turnpikes and enacted that former laws should continue in force, except as they were thereby varied or repealed) directed that the trustees should keep their accounts in a book to be open to the inspection of the trustees or creditors of the tolls and that the book of their proceedings should be open to the inspection of the trustees it was held that the power of inspection of the proceedings given by the first Act to 'all persons' was repealed⁴⁶.

Again, if the co existence of two sets of provisions would be

⁴⁵ *The Dart* [1893] P 33. See also *The Delano* [1895] P 40. The appeal is now to the Court of Appeal. County Courts Act 1959 (c 22) s 110.

⁴⁶ *R v Northleach* (1834) 5 B & Ad 978.

destructive of the object for which the later was passed, the earlier would be repealed by the later

When a local Act empowered one body to name the streets and to number the houses in a town and another local Act gave the same power to another body the earlier would be superseded by the later Act for to leave the power with both would be to defeat the object of the legislature⁴⁷ But if one Act imposed a toll payable to turnpike trustees for passing along a road and another transferred the duty of repairing the road to another body prohibiting also the trustees from repairing it the toll would not be thereby impliedly repealed⁴⁸

A later Act which conferred a new right would repeal an earlier right if the co existence of such rights would produce inconvenience, for the just inference from such a result would be that the legislature intended to take the earlier right away⁴⁹

Thus the Country Bankers Act 1826 (c 46) (now repealed) which, besides limiting and varying the common law liabilities of members of banking companies, provided that suits against such companies should and lawfully might be instituted against the public officer, was held to take away by implication the common law right of suing the individual members⁵⁰ for, from the nature of the case this must have been what the legislature intended⁵¹

In other circumstances also, the inconvenience or incongruity of keeping two enactments in force has justified the conclusion that one impliedly repealed the other, for the legislature is presumed not to intend such consequences Thus the charges contained in the Distress for Rent Rules 1888 made under section 8 of the

⁴⁷ *Daw v Metropolitan Board* (1862) 31 L.J.C.P. 223 See *Cortis v Kent Water works* (1827) 7 B & C 314 *R v Middlesex* (1831) 2 B & Ad 818 *Bates v Winstanley* (1815) 4 M & S 429

⁴⁸ *Phipson v Harvett* (1835) 1 Cr M & R 473 Cf *Brown v G W Ry* (1882) 9 Q.B.D. 744 See also *Tabernacle Bldg Soc v Knight* [1892] A.C. 298 *Re Kirkleatham Local Board* [1893] 1 Q.B. 375

⁴⁹ See *post* Chap 8 Sec. 1

⁵⁰ *Steward v Greaves* (1843) 12 L.J.Ex. 109 *Chapman v Milvain* (1850) 5 Ex. 61 *Davison v Farmer* (1851) 6 Ex. 252 *O Flaherty v McDowell* (1857) 6 H.L.C. 142 *Green v R* (1876) 1 App.Cas. 513 *Roles v Rosewell* (1794) 5 T.R. 538 and *Hardy v Bern* (1794) 5 T.R. 636

⁵¹ *O Flaherty v McDowell* (1857) 6 H.L.C. 157 *per* Lord Cranworth *Conley v Bias* (1877) 5 Ch.D. 944

Law of Distress Amendment Act, 1888 (c 21) superseded the charges in the Schedule to the Distress (Costs) Act, 1817 (c 93)⁶²

An intention to repeal an Act may be gathered from its repugnancy to the general course of subsequent legislation. Thus the Trade to the East Indies Act, 1720 (c 21) which prohibited hottomry loans by Englishmen to foreigners on foreign ships engaged in the Indian trade was held to have been silently repealed by the subsequent enactments which put an end to the monopoly of the East India Company and threw its trade open to foreign as well as to all British ships⁶³

SECTION 2 —CONSISTENT AFFIRMATIVE ACTS

But repeal by implication is not favoured⁶⁴. A sufficient Act ought not to be held to be repealed by implication without some strong reason⁶⁵. It is a reasonable presumption that the legislature did not intend to keep really contradictory enactments on the Statute Book, or on the other hand, to effect so important a measure as the repeal of a law without expressing an intention to do so. Such an interpretation therefore is not to be adopted unless it be inevitable. Any reasonable construction which offers an escape from it is more likely to be in consonance with the real intention⁶⁶.

Parallel Acts

It is sometimes found that the conflict of two statutes is apparent only as their objects are different and the language of each is restricted as pointed out in a preceding chapter, to its own object or subject. When their language is so confined they run in parallel

⁶² *Walker v Retter* [1911] 1 K B 1103. See also *Manchester (Mayor) v Lyons* (1883) 22 Ch.D 287 and *New Windsor Corporation v Taylor* [1899] A C 41.

⁶³ *The India (No 2)* (1864) 33 L.J.P.M. & A. 193. *R v Northleach* (1834) 5 B. & Ad. 978. *West Ham v Fourth City Building Soc* [1892] 1 Q.B. 654. *Cf Shrewsbury v Scott* (1859) 6 C.B.(N.S.) 1. See other illustrations in *Re Yearwood's Trusts* (1877) 5 Ch.D. 545. *R v I.R.C.* (1888) 21 Q.B.D. 569. *R v West Riding* [1891] 1 Q.B. 722.

⁶⁴ *Foster's Case* (1614) 11 Rep. 63a. If it is possible it is my duty so to read the section as not to effect an implied repeal of the earlier Act. *Re Chance* [1936] Ch. 266 at p. 270 *per* Farwell J.

⁶⁵ *G. H. Ry v Swindon & Cheltenham Ry* (1884) 9 App.Cas. 787 at p. 809 *per* Lord Bramwell. S. 19 of the Extradition Act, 1870 is not abrogated by Art. IV of the Treaty of Extradition between U.K. and France 1876. *R v Corrigan* [1931] 1 K.B. 527.

⁶⁶ *Cf Lewis v Berrey* [1936] Ch. 274 279.

lines without meeting. Thus the Real Property Limitation Act 1833 (c 27) which limited the time for suing for the recovery of land (which is defined to include tithes) to twenty years after the right accrued, was found not to affect the provision of the Tithe Act 1832 (c 100) which enacted that claims to exemption from tithes should be valid after non payment for thirty years for the former Act dealt with conflicting claims to the right of receiving tithes which were admittedly payable while the latter related to the liability to pay them.⁵⁷ In the one case tithe was real property, in the other a chattel.⁵⁸

So section 13 of the Judgments Act 1838 (c 110) which enacted that a judgment against any person should operate as a charge on 'lands rectories advowsons tithes and hereditaments in which the judgment debtor had an interest, was held to be limited to the property of debtors who had the power of charging their property that is, to lay rectories advowsons, and tithes and so did not conflict with or repeal by implication the 'Disabling Statute 1571 (13 Eliz 1 c 10) which makes void all chargings of ecclesiastical property in ecclesiastical hands.⁵⁹

The Elementary Education Act 1876 (c 79) s 11, which provided one course of proceeding for the habitual neglect to send a child to school did not conflict with another which provided a different mode of proceeding for a neglect which was not habitual but occasional only, and both therefore could stand.⁶⁰

Section 6 of the Poor Relief Act 1815 (c 137)⁶¹ which imposed a penalty of £100 recoverable by the common informer by action on any parish officer who for his own profit supplied goods for the use of a workhouse or for the support of the poor, was held unaffected by section 77 of the Poor Law Amendment Act, 1834

⁵⁷ *Ely (Dean of) v Cash* (1846) 15 L.J. Ex. 341. See now Limitation Act 1939 (c 21) ss 4-31.

⁵⁸ *Ely (Dean of) v Bliss* (1852) 2 De G.M. & G. 459. See also *R v Everett* (1852) 1 E. & B. 273. *Adey v Trinity House* (1853) 22 L.J.Q.B. 3 (S.C.). *Hunt v Gt Northern Ry* (1851) 20 L.J.Q.B. 349. *Grant v Ellis* (1841) 9 M. & W. 113. *Manning v Phelps* (1854) 10 Ex. 59. *Hardon v Hesketh* (1859) 4 H. & N. 175. Cf *Re Knight* (1848) 1 Ex. 802. *Hill v Hall* (1876) 1 Ex.D. 11. *Irish Land Commission v Grant* (1884) 10 App.Cas. 14. *Flannagan v Shaw* [1920] 3 K.B. 96.

⁵⁹ *Hawkins v Gathercole* (1854) 24 L.J.Ch. 338. *Ashburton (Ltd) v Nocton* [1915] 1 Ch. 274 (C.A.). Charges on land of judgment debtors are now abolished see Administration of Justice Act 1956 (c. 46) s 34(1).

⁶⁰ *Re Murphy* (1877) 2 Q.B.D. 397. *Ex p Attwater* (1877) 5 Ch.D. 27. See now Education Act 1944 (c. 31) s 40.

⁶¹ Section repealed, Poor Law Amendment Act 1863 (c. 122) s 44.

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(c 76) which inflicted a fine of £5 recoverable summarily half for the informer and half for the poor rates on any such officer who supplied goods for his profit to an individual pauper.⁶² It had been decided before the passing of the later Act (which indeed was passed in consequence of that decision) that the earlier enactment applied only to a supply for the poor generally, but not to the supply of an individual pauper.⁶³

The prohibition contained in section 4 of the Trade Union Act 1871 (c 31) against a court entertaining any legal proceedings for the purpose of enforcing an agreement for the application of the funds of a trade union to provide benefits for members has been held not to be impliedly repealed by the provision in section 10 of the Trade Union Act Amendment Act 1876 (c 22) that a member may nominate any person to receive any moneys due to the trade union on his decease and that the object of the later enactment being not to depart from the policy of the earlier one but to enable members to give away small sums due to them without incurring the trouble of making a will or the expense of probate.⁶⁴

Particular Exception to General Intention

Where a general intention is expressed and also a particular intention which is incompatible with the general one the particular intention is considered an exception to the general one.⁶⁵ Even when a later enactment or the later part of one is in the negative it is sometimes reconcilable with the earlier one by so treating it. If for instance an Act in one section authorised a corporation to sell a particular piece of land and in another prohibited it from selling any land the first section would be treated not as repealed by the sweeping terms of the other but as being an exception to it.⁶⁶

In this manner two Acts passed in 1833 were construed as reconcilable. Section 42 of the Real Property Limitation Act

⁶² *Robinson v Emerson* (1866) 4 II & C 352

⁶³ *Proctor v Manwaring* (1819) 3 B & Ald 145

⁶⁴ *Crocker v Angh* [1891] 1 QB 70

⁶⁵ *Best CJ Churchill v Crease* (1828) 5 Bng 180 see e.g. *Pillington v Cooke* (1843) 17 LJ Ex 141

⁶⁶ *Romilly v R De Hinton v Eason* (1859) 25 LJ Ch 600

1833 (c 27) which provided that no action for rent, or for interest on money charged on land, should be brought after six years, and the Civil Procedure Act, 1833 (c 42) passed three weeks later, which provided that no action for rent reserved by lease under seal, or for money secured by bond or other specialty, should be brought after twenty years (afterwards reduced to twelve years by section 8 of the Real Property Limitation Act, 1874 (c 57)) were construed as reconcilable by holding that the later enactment was an exception out of the former. And the effect of the conjoined enactments (which did not repeal the statute of James⁶⁷ so far as related to simple contract debts charged on land, but stood with it) was that no action to enforce a simple contract debt whether charged on land or not, should be brought after six years unless interest has been paid or an acknowledgment given and as to any specialty debt whether charged on land or not, no action should be brought after twelve years either on a covenant or for a remedy against land unless interest had been paid or an acknowledgment given⁶⁸.

Two Negative Statutes Affirmative inter se

It may be observed also, that two statutes expressed in negative terms may be affirmative *inter se* and not contradictory, though negative as regards a third at which they are avowedly aimed. They may make two holes in the earlier Act which can stand side by side without merging into one⁶⁹. For instance, 13 Anne c 15,⁷⁰ having made void all loans at more than 5 per cent interest, the Bank of England Act 1833 (c 98) enacted that no bill or note payable at three months or less should be void for usury, and the Usury Act 1839 (c 37)⁷¹ that no bill or note payable at twelve months or less should be void on that ground but with the additional provision that the Act was not to apply to loans

⁶⁷ Limitation Act 1623 (c 16)

⁶⁸ *Hunter v Nockolds* (1850) 19 L J Ch 177 (but see *Sutton v Sutton* (1883) 22 Ch D 511 at p 518 per Cotton LJ) *Barnes v Glendon* [1899] 1 Q B 885 *Page v Foley* (1836) 2 Bing 679 *Sims v Thomas* (1840) 12 A & E 536 *Humfrey v Gery* (1849) 7 C B 567 *Fearnside v Flint* (1883) 22 Ch D 579 *Kirkland v Peatfield* [1903] 1 K B 756 *Re Smith* [1893] 2 Ch 1 *Re Deere* (1875) L R 10 Ch 658 *Richens v Wiggins* (1903) 32 L J M C 144. See now Limitation Act 1939 (c 21) s 2.

⁶⁹ *Maule J. Clack v Sainsbury* (1852) 11 C.B. 695

⁷⁰ Repealed by Usury Laws Repeal Act 1854 (c 90)

⁷¹ Repealed by S.L.R. (No. 2) Act 1874 (c. 96)

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on real security. It was held that the last mentioned Act did not repeal the Act of 1833. The negative words in which both were expressed had reference to the Act of Anne but *inter se*, the Acts of 1833 and 1839 were affirmative statutes, and the proviso of the later one therefore did not affect the short loans dealt with by the earlier one.⁷²

Later Statute Purely Affirmative

Further it is laid down generally that when the later enactment is worded in affirmative terms only without any negative expressed or implied it does not repeal the earlier law.⁷³ Thus, an Act which authorised the quarter sessions to try a certain offence would involve no inconsistency with an earlier one which enacted that the offence should be tried by the Queen's Bench or the assizes, and would therefore not repeal it by implication.⁷⁴

The Offences against the Person Act, 1875 (c 94) s 4 which made it a misdemeanour carnally to know a girl above twelve and under thirteen with or without her consent, did not prevent a conviction of rape under the Offences against the Person Act 1861 (c 100) s 48 upon a girl between those ages.⁷⁵

An Act which imposes a liability on certain persons to repair a road would not be construed as impliedly exonerating the parish from its common law duty to do so.⁷⁶

A by law which authorised the election of 'any person as Chamberlain of the City of London was not deemed inconsistent with an earlier one which required of the candidates a certain qualification but was limited to eligible persons.⁷⁷

A local Act in directing that the chimneys of buildings should be built of such materials as the corporation approved did not affect the provisions of the earlier general Act (Chimneys Act, 1840 (c 85) s 6) which required that chimneys should be built of stone or brick.⁷⁸

⁷² *Clack v Sainsbury* (1852) 11 CB 695. *Nixon v Phillips* (1852) 7 Ex. 192. *Ex p Warrington* (1853) 22 LJ Bank. 33.

⁷³ *Co Litt*, 115a. *Anon* (1774) Loft 465.

⁷⁴ *Muir v Hore* (1877) 47 LJ MC. 17.

⁷⁵ *R v Ratcliffe* (1882) 10 QBD 74.

⁷⁶ *R v St George's Hanover Square* (1812) 3 Camp. 222. *R v Southampton* (1852) 18 QB 841.

⁷⁷ *Gibson v Preston* (1870) LR. 3 QB 218.

⁷⁸ *Tobacco Pipe Makers v Woodroffe* (1826) 7 B & C. 838. *R v Saddlers Co* (1863) 10 HLC. 404.

⁷⁹ *Hill v Hall* (1876) 1 Ex.D 111.

A by law made under section 74 of the Elementary Education Act 1870 (c 75) requiring children to attend school so long as it was open (which was at least thirty hours in the week) did not repeal the provision in the Workshop Regulation Act, 1867 (c 146) s 14, which required that children under thirteen employed in a workshop should be sent to school for at least ten hours weekly ⁷⁹

An Act which provided that if a person suffered bodily injury from the neglect of a mill owner to fence dangerous machinery after notice to do so from a factory inspector, the mill owner should be liable to a penalty recoverable by the inspector and applicable to the party injured or otherwise as the Home Secretary should determine, would not affect the common law right of the injured party to sue for damages for the injury ⁸⁰

A bond by a collector, with one surety, good under the ordinary law, would not be deemed invalid because the Act which required it enacted that the collector should give good security by a joint and several bond with two sureties at least ⁸¹

The County Courts Act Amendment Act 1867 (c 142), which authorised a judge of the superior court in which an action is brought, to send the case for trial to a county court was construed as not impliedly repealing the earlier Law Terms Act, 1830 (c 70), which authorised any judge of the superior court to transact the chamber business of the other courts as well as his own, but the later Act was read with the earlier, and the expression 'judge of the court in which the action was brought' was thus construed as equivalent to any judge of any of the superior courts of law ⁸²

Section 52 of the Stamp Act 1815 (c 184) ⁸³ which directed that all affidavits required by existing or future Acts for the verification of accounts should, unless when otherwise expressly provided, be made before the Commissioners of Stamps was held unaffected by the Bank Notes Act, 1828 (c 23), s 7, which empowered

⁷⁹ Repealed by Factory and Workshop Act 1878 (c 16) s 107 *Bury v Cherryholm* (1876) 1 Ex D 457 See Education Act 1918 (c 39) s 14

⁸⁰ Factories Act 1844 (c 15) (repealed) *Casswell v Worth* (1856) 25 L J Q B 121 See *Ambergate Ry v Midland Ry* (1853) 23 L J Q B 17 See now Factories Act 1937 (c 67)

⁸¹ *Peppin v Cooper* (1819) 2 B & Ald 431 See *Austen v Howard* (1816) 7 Taunt 28 327

⁸² *Owens v Jones* (1868) L R 3 Q B 469 See County Courts Act 1959 (c 22) s 45

⁸³ Repealed by the Stamp Duties Management Act, 1891 (c 38) s 28 and replaced by s 24

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justices of the peace to administer the oath in similar cases. Although the later Act did otherwise provide," it did not make the provision inconsistent with the earlier Act.⁸⁴

The Highway Act 1835 (c 50) which enacted that no action for anything done under it should be begun until twenty one days' notice of action had been given did not repeal (as regards the notice of action to justices) section 1 of the Constables' Protection Act 1750 (c 44)⁸⁵ which gave justices the privilege of a month's notice when sued for anything done in the execution of their office,⁸⁶ though as already mentioned it was at the same time held to repeal the provision of the same Act which limited the time to six months.⁸⁷

Where one Bankruptcy Act empowered the court to make the bankrupt an allowance and a later one enacted that the creditors should determine whether any and what allowance should be made to him it was held that the former power was still in force when the creditors did not exercise that given them by the later Act.⁸⁸

SECTION 3—GENERALIA SPECIALIBUS NON DEROGANT

It is but a particular application of the general presumption against an intention to alter the law beyond the immediate scope of the statute (*supra* p 78) to say that a general Act is to be construed as not repealing a particular one that is one directed towards a special object or a special class of objects.⁸⁹ A general later Act does not abrogate an earlier special one by mere implication. *Generalia specialibus non derogant*⁹⁰ or in other words where there are general words in a later Act capable of reasonable and sensible application without extending them to subjects specially

⁸⁴ *R v Greenland* (1867) 36 L J M C 37

⁸⁵ Repealed, Public Authorities Protection Act 1893 (c 61)

⁸⁶ *Rix v Borton* (1840) 12 A. & E. 470

⁸⁷ For other cases on this point, see e.g. *Jenkins v Jones* (1882) 9 Q B D 128

⁸⁸ *Northwich v St Pancras* (1889) 22 Q B D 164 *Mitford Union v Wayland Union* (1890) 25 Q B D 164 *Calville Estate v I R C* [1930] 2 K B 393 See ante p 157

⁸⁹ *Ex p Ellerton* (1864) 33 L J Bank. 32 See *Bankruptcy Act 1914* (c 59) s 58

⁹⁰ *Garnett v Bradley* (1878) 3 App Cas 950 per Lord Hatherley

Quoted and approved by Smith L J *Lancashire Asylums Board v Manchester Corporation* [1900] 1 Q B 458 471 Cf *London & Blackwall Ry v Limehouse* (1857) 3 K & J 123 per Page Wood V C. *Thorpe v Adams* (1871) L R. 6 C P 384 *Kutner v Phillips* [1891] 2 Q B 125 *R v Champneys* (1871) L R. 6 C P 384 *Kutner v Phillips* [1891] 2 Q B 267 at p 272 per A. L. Smith L J *Ashton-under-Lyne v Pugh* [1898] 1 Q B 45 *Baird v Tunbridge Wells* [1894] 2 Q B 867 *Lodge v Huddersfield Corp* (No 1) [1898] 1 Q B 847 859

⁹¹ *Jenk. 3rd Cent. 41st Case*

dealt with by earlier legislation you are not to hold that earlier and special legislation indirectly repealed altered, or derogated from merely by force of such general words, without any indication of a particular intention to do so.⁹² In such cases it is presumed to have only general cases in view, and not particular cases which have been already otherwise provided for by the special Act. Having already given its attention to the particular subject and provided for it, the legislature is reasonably presumed not to intend to alter that special provision by a subsequent general enactment unless that intention be manifested in explicit language,⁹³ or there be something which shows that the attention of the legislature had been turned to the special Act and that the general one was intended to embrace the special cases provided for by the previous one,⁹⁴ or there be something in the nature of the general one making it unlikely that an exception was intended as regards the special Act. In the absence of these conditions, the general statute is read as silently excluding from its operation the cases which have been provided for by the special one.

Thus, the Rules of the Supreme Court as to costs do not operate to repeal the provisions of the special statutes giving special costs in particular cases.⁹⁵

In like manner the language of the Bills of Sale Acts requiring the registration of agreements by which right to a charge or security on personal chattels is conferred although clearly wide enough to include debentures of a joint stock company, was held not to include such instruments, as the registration of them had been otherwise provided for by the Companies Clauses Consolidation

⁹² *Seward v The Vera Cruz* (1884) 10 App Cas 59 at p. 68 per Lord Selborne C. *Hawkins v Gathercole* (1854) 6 De G M & G at p. 31 per Turner L.J. *Lyn v Wyn* (1662) Bridg. (ed. Bannister) 122 per Smith J. *Thames Conservators v Hall* (1868) L.R. 3 C.P. 421. *Dodds v Shepherd* (1876) 1 Ex D 75 per Bramwell B. *Aberdeen Suburban Tramways Co v Aberdeen Magistrates* [1927] S.C. 683. *Gloucester (Bishop of) v Cunningham* [1943] K.B. 101 C.A. *Wiltshire County Valuation Committee v Boyce* [1948] 2 K.B. 125. But see *Harlow v Minister of Transport* [1951] 2 K.B. 98.

⁹³ *Fitzgerald v Champneys* (1861) 30 L.J. Ch. 777 per Wood V.C. *Barker v Edger* [1898] A.C. 754 per Lord Hobhouse.

⁹⁴ *Garnett v Bradley* (1878) 3 App Cas 950 per Lord Hatherley. See also per curiam *R v Poor Law Commissioners* (1837) 6 A. & E. 34, 48 and see *The Dragoman* (1895) 11 T.L.R. 428. Bruce J.

⁹⁵ *Reeve v Gibson* [1891] 1 Q.B. 652. *Hasker v Wood* (1885) 54 L.J. Q.B. 419. See also *Quinn v M. Anlay* [1902] 2 K.B. 1r 315.

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Act 1845 (c 16) and the repealed Companies Act 1862 (c 89) s 43⁹⁶

Section 7 of the Admiralty Court Act 1861 (c 10), which gave jurisdiction to that court over any claim for damage done by any ship was held not to authorise an action for damages for loss of life under the Fatal Accidents Act, 1846 (c 93) actions under that Act being in respect of a special class of claims involving numerous and important considerations which the legislature could not be supposed to have had in contemplation in using words of so general a character⁹⁷ and in no case did it apply for the benefit of aliens abroad it being clear law that an Act of the British Parliament is not an allocation addressed *urbis et orbi*⁹⁸

Again where a local Act for completing a bridge across the Thames exempted the owners of the adjoining ground which was to be embanked at their expense from all taxes and assessments whatsoever it was held that later general Acts imposing taxes and rates in respect of lands and houses did not repeal that exemption,⁹⁹ but thus apparently is no longer good law.

The general provision of the Married Women's Property Act 1882 (c 75) s 1 which gave power to a married woman to dispose by will of any real or personal property in the same manner as if she were a *feme sole*, has been held not to override the special provision of the Gifts for Churches Act, 1803 (c 108) (repealed as to Ireland by the Church of Ireland Acts Repeal Act, 1851 (c 71)) which enacted that the powers conferred by that Act of making a gift by will for the purpose of erecting a church should not extend to the case of a married woman acting without the concurrence of her husband.

Where an Act took away the right of bringing an action respecting certain disputes which were referred to the summary adjudication of the justices it was held that the subsequently established county

⁹⁶ *Re Standard Manufacturing Co* [1891] 1 Ch 627 See Companies Act 1948 (c 38) s 95

⁹⁷ *Seward v The Vera Cruz* (1884) 10 App Cas 59

⁹⁸ *Adam v British and Foreign Steamship Co* [1898] 2 QB 430

⁹⁹ *Williams v Pritchard and Eddington v Borman* (1790) 4 TR 2 and 4

¹ *Perchard v Heywood* (1800) 8 TR 468 *Duncan v Scottish N E Ry* (1870) LR 2 Sc App 20 *Sion College v London Corp* [1901] 1 KB 617 621

² *Re Smith's Estate* (1887) 35 Ch D 589 And see the Law Reform (Married Women and Tortfeasors) Act 1935 (c 30) s 1

courts acquired no jurisdiction to try such cases, under the general authority to try all pleas "3

The provision of the Judicature Act, 1875 (c 77) that, except where it was otherwise provided by the Act or the rules annexed to it the judgment of the court should be obtained by motion, was held not to affect the County Courts Act of 1856 (c 108) which after authorising the superior courts to send certain cases to the county courts for trial, had directed that the judgment might be signed in accordance with the result as certified by the registrar 4

The general provisions of the Rules of the Supreme Court as to appeals to the Queen's Bench Division from inferior courts were held not to repeal the special provisions of section 8 of the Mayor's Court of London Procedure Act, 1857 (c clvii), as to imposing the obligation on the party appealing from that court in certain cases to give security for costs 5

The Metropolitan Police-Courts Act, 1839 (c 71), s 47, which provided that penalties under existing and future Acts which should be adjudged by police magistrates, should be paid to the receiver of the police district, and the subsequent Gaming Houses Act 1854 (c 38), which enacted that the penalties which it inflicted should be recoverable before two justices (or before a police magistrate, since he has the same jurisdiction as two justices) and should be paid to the overseers of the poor of the parish in which the offence was committed were construed so as to be consistent with each other by limiting the application of the penalties under the later Act to cases where they were imposed by justices, and applying them in conformity with the earlier statute, where they were adjudged by a police magistrate 6

An Act which declared all debtors to be subject to the bankruptcy laws would include debtors who had the privilege of Parliament from personal arrest, but any provisions of those Acts which authorised the arrest of bankrupts would be held inapplicable to

³ *Ex p Payne* (1849) 18 L.J.Q.B. 197 *Brown v L & N W Ry* (1863) 32 L.J.Q.B. 318

⁴ *Scutt v Freeman* (1877) 2 Q.B.D. 177 *Johnson v Wilson* (1882) 46 L.T. 647 R.S.C. Ord 40 r 1 County Courts Act 1959 (c 22) s 45

⁵ *Morgan v Bowles* [1894] 1 Q.B. 236

⁶ *Wray v Ellis* (1858) 28 L.J.M.C. 45 See also *Receiver for the Metropolitan Police District v Bell* (1872) L.R. 7 Q.B. 433 In *R v Titterton* [1895] 2 Q.B. 61 in which *Wray v Ellis* is doubted and distinguished it was held that in cases of prosecutions instituted by a local authority fines must be paid to the officer of such authority

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a person entitled to the privilege Unless it expressed a contrary intention plainly, it would be presumed that the legislature did not intend to interfere with it⁷

Even where the Acquisition of Land (Assessment of Compensation) Act 1919 (c 57), which provided new machinery for the settlement of any question of disputed compensation for compulsorily acquired land enacted that the Act or Order under which the land had been acquired should have effect subject to the Act of 1919 the House of Lords held that the general language of the 1919 Act ought not in the absence of clear words, to be construed as affecting the special provisions of a private Act of 1917 for purchase of land by a local authority at a price to be determined in default of agreement under the Lands Clauses Acts⁸

The maxim *generalia specialibus non derogant* was also applied to prevent the Housing Act 1925 (c 14), s 65, overriding the special provisions of the London Open Spaces Act, 1893 (c lxxi),⁹ and the Land Drainage Act 1930 (c 44) overriding the local North Level Act 1857 (c cix)¹⁰

Similarly the Rent Restriction Acts do not apply to a parsonage house for which special provision is made in the Pluralities Act 1838 (c 106)¹¹

To be affected by this rule Acts must cover the same territory and a general enlargement of the right of appeal does not derogate from but provides an extension of earlier and special legislation¹²

Personal Acts and Local Customs

Personal Acts and local customs affecting only certain persons in their rights privileges or property offer other illustrations of the rule that special enactments are unaffected by the general words of a more general enactment Thus the Fines and Recoveries Act 1833 (c 74) which in the most comprehensive terms authorised every tenant in tail to bar his entail in a certain manner did not apply to the tenant in tail of property entailed by special Act of

⁷ *Newcastle v Morris* (1870) L.R. 4 H.L. 661

⁸ *Blackpool Corporation v Starr Estate Co* [1922] 1 K.B. 604

⁹ *R v Minister of Health ex p Villiers* [1936] 2 K.B. 29

¹⁰ *North Level Commissioners v River Welland Catchment Board* [1938] 1 Ch 379

¹¹ *Gloucester (Bishop of) v Cunningham* [1943] K.B. 101 C.A.

¹² *Walker v Hemmatt* [1943] 1 K.B. 604 which cites examples of *generalia specialibus non derogant*

Parliament, such as the Shrewsbury, Marlborough, Wellington and other special parliamentary entails¹³

In the same way the Judgments Act 1838 (c 110), which, by sections 13 and 19, in general terms enacted that a judgment of a superior court should operate as a charge on the lands of the debtor from the time of its registration in the Common Pleas was held not to repeal by implication the Middlesex Registry Act 1708 (c 20) which had enacted that no judgment should bind lands in Middlesex but from the time of its registration in the register office for Middlesex¹⁴

An Act which authorised any person to sell beer who obtained a licence for the purpose would not be construed as repealing the custom or local law of a borough which disqualified all persons who were not burgesses from selling beer¹⁵

An Act which required all persons to serve as jurors of the county in general terms would not be construed as extending to a hundred when those who served as jurors in the hundred were by custom exempted from service in the county¹⁶

The repealed Hawkers Act 1810 (c 41) which empowered licensed hawkers to set up in any trade in the place where they resided was held not to give them that privilege in a borough where, by custom or by law strangers were not allowed to trade¹⁷

Where a railway company had authority, under a special Act to take certain lands in the metropolis for executing works on them it was held that its powers were unaffected by the Metropolis Management Act 1855 (c 120) which was passed shortly afterwards, giving the same powers to a public body¹⁸

An Act which authorised the lord of a manor and his heirs to

¹³ *Fitzgerald v Champneys* (1861) 30 L J Ch 777 per Wood V C *Abergavenny v Brace* (1872) L R 7 Ex 145 and cf *Re Cuckfield Board* (1854) 19 Beav 153

¹⁴ *Westbrook v Blythe* (1854) 23 L J Q B 386 *Dale v Case* (1881) 6 Q B D 376 *Enraght v Penance (Ld)* (1882) 7 App Cas 240 *Frit v Hobson* (1880) 14 Ch D 542 The Middlesex Deeds Register has been closed down Middlesex Deeds Act 1940 (c 34)

¹⁵ *Leicester v Burgess* (1833) 5 B & Ad 246 Beerhouse Act 1830 (c 64) s 29 cf *Huxham v Wheeler* (1864) 33 L J M C 153 *Hutchins v Player* (1663) Bridg 272

¹⁶ *R v Pugh* (1779) Doug 188 *R v St James v Westminster* (1836) 5 A & E 391 *R v Johnson* (1839) 6 Cl & F 41

¹⁷ *Simson v Moss* (1831) 2 B & Ad 543 *Llandaff Market Co v Lyndon* (1861) 30 L J M C 105

¹⁸ *London & Blackwall Ry v Limehouse* (1857) 26 L J Ch 164 cf *Daw v Metrop Board* (1862) 12 C B (N s) 161

break up the pavement of the streets of a town, to lay down water pipes to convey water to and through the town from his estate would not be affected by a subsequent Act which vested the same streets and pavements in a public body and empowered it to sue any person who broke them up ¹⁹

General Act may Repeal Explicitly

In all the foregoing cases the general Act seemed intended to apply to general cases only and there was nothing to rebut that presumption. But if there be in the Act or in its history some thing showing that the attention of the legislature had been turned to the earlier special Act and that it intended to include the special cases within the general Act, or something in the nature of either Act to render it unlikely that any exception was intended in favour of the special Act, the maxim under consideration ceases to be applicable. The Prescription Act 1832 (c 71), for example in giving an indefeasible right to light after an enjoyment of twenty years,

notwithstanding any local custom,' plainly abolished the custom of London which authorised the owner of an ancient house to build a new one on its old foundations to any height though thereby obscuring the ancient lights of his neighbour ²⁰

It has been held that the Dower ²¹ and Inclosure ²² Acts applied to gavelkind lands though this local customary tenure is not expressly mentioned in either Act

By charters granted by King Henry II and subsequent sovereigns and confirmed by Acts of Parliament, the Corporation of Exeter were entitled to receive and did receive (*inter alia*) the revenue fines imposed within their borough but, though not mentioned in the Act that right was taken away by the general enactment of section 33 (1) of the Inland Revenue Regulation Act 1890 (c 21) which enacted that all fines penalties, and forfeitures incurred under any Act relating to inland revenue which are not otherwise legally appropriated, shall be applied to the use of Her Majesty ²³

¹⁹ *Goldson v Buck* (1812) 15 East 372

²⁰ *Salters Co v Jay* (1842) 3 Q B 109 *R v London (Mayor)* (1847) 13 Q B 1
Merchant Taylors v Truscots (1856) 11 Ex 855

²¹ *Farley v Bonham* (1861) 30 L J Ch 239. Dower was abolished as regards deaths after 1925 by the Administration of Estates Act 1925 (c 23) s 45

²² *Miner v Leman* (1855) 24 L J Ch 547

²³ *Att Gen v Exeter Corporation* [1911] 1 K B 1092

General Act may Repeal Implicitly

Though the sheriffs of the Counties Palatine of Lancaster and Durham were expressly forbidden by the Imprisonment for Debt Act, 1827 (c 71) to arrest on mesne process issuing from the Courts of Westminster for less than £50, this enactment was held to have been repealed by the Judgments Act 1838 (c 110) s 3, which, after abolishing generally all arrests for debt gave a judge power, in certain circumstances, to order such an arrest in every action for any sum of £20 or upwards²⁴

The Charitable Uses Act 1735 (c 36),⁵ was held to extend to a corporate body which had been empowered by an earlier Act to take land by devise and without licence in mortmain²⁶

The Lands Clauses Consolidation Act, 1845 (c 18) and other Acts of a like character, which authorised the compulsory taking of land for works of public utility such as railways, and gave corresponding powers to tenants in tail or for life to convey the lands so required applied to tenants in tail under special parliamentary entails such as the Abergavenny entail²⁷

The county courts acquired jurisdiction under their general authority to hear 'all pleas' where the debt or damage did not exceed £20 to enforce the payment of a rate imposed under a local Act passed before those courts were established and which had made such rates recoverable only by action in the superior courts²⁸

A local Act which provided that the prisoners of the borough to which it applied, which had a separate quarter sessions, should be maintained in the county jail on certain specified terms was held to be superseded by the Prisons Act, 1842 (c 98) (now repealed), which enacted that every borough which had quarter sessions should, when its prisoners were sent to the county jail pay the county the expenses including those of repairs and improvements²⁹

²⁴ *Brown v McMillan* (1846) 7 M & W 196

²⁵ Repealed by the Mortmain and Charitable Uses Act 1888 (c 42)

²⁶ *Luckraft v Prudham* (1877) 6 Ch D 205 *Morrison v Genl Steam Navig Co* (1853) 22 LJ Ex 233 *Mersey Docks v Lucas* (1883) 8 App Cas 891 *per Jessel MR* *Gardner v Whitford* (1858) 4 CB(NS) 665 *Webster v Southey* (1887) 36 Ch D 9 at p 22

²⁷ *Re Cuckfield Board* (1854) 24 LJ Ch 585 *cf Fitzgerald v Champneys* (1861) 30 LJ Ch 777

²⁸ *Stewart v Jones* (1852) 22 LJ QB 1 But it has been held that arrears of the general rate are not recoverable in the county court *Liverpool Corporation v Hope* [1938] 1 KB 75 and see County Courts Act 1959 (c 22) s 40

²⁹ *Bramston v Colchester* (1856) 25 LJ MC 73

The provision in section 129 of the Metropolis Management Act 1855 (c 120),³⁰ that the magistrate's decision on matters under that Act shall be final and conclusive was impliedly repealed by the Summary Jurisdiction Act, 1879 (c 49) which authorised any person questioning a decision of a court of summary jurisdiction to apply for a case to be stated.³¹

Where a city gas company had been precluded by its private Act from charging more than four shillings for every thousand feet of gas of a certain quality and the Metropolis Gas Act, 1860 (c 125) required the city gas companies to supply a better and more expensive gas at the rate prescribed by it which might amount to five shillings and sixpence per thousand feet, it was held that the later provision impliedly repealed the earlier prohibition. Here however, the general Act avowedly applied to the company and it would have been unreasonable that the better gas which it required should be supplied at the price mentioned in the special Act merely because the latter had not been repealed in express terms.³²

General Act incorporated into Special Act

When a general Act is incorporated into a special one the provisions of the latter would prevail over any of the former with which they were inconsistent.³³ It may be added also that when an Act on one subject, such as highways, incorporates some of the provisions comprised in another relating to a different subject such as poor rates it does not thereby incorporate the modifications of those provisions which are subsequently made in the latter Act.³⁴

Repeals by Private Acts

It has been said to be a rule that one private Act of Parliament cannot repeal another except by express enactment³⁵ but necessary implication must, no doubt be considered as involved

³⁰ Repealed Public Health (London) Act 1891 (c 76).

³¹ *R v Bridge* (1890) 24 QBD 609 *Goodwin v Sheffield Corporation* [1902] 1 K.B. 629.

³² *Great Central Gas Co v Clarke* (1862) 32 LJ CP 41 *Parry v Croydon Gas Co* (1863) 15 CB (NS) 568.

³³ *Att Gen v G E Ry* (1872) LR 7 Ch 475 LR 6 HL 367.

³⁴ *Bird v Adcock* (1878) 47 LJ MC 123.

³⁵ *Birkenhead Dock v Laird* (1853) 4 De GM & G 732 per Turner LJ *Purnell v Wolverhampton New Waterworks Co* (1861) 10 CB (NS) 576 per Erie CJ. See e.g. *Phipson v Harsett* (1835) 1 Cr M & R 473.

in this expression³⁶ if the intention of the legislature be so manifested. If the later of the two Acts be inconsistent with the continued existence of the earlier one the earlier must inevitably be abrogated.³⁷ Nor can a private Act repeal a general Act except by express words,³⁸ but it may except certain matters from the provisions of a general Act, by giving itself a complete rule on the subject.³⁹

SECTION 4—IMPLIED REPEAL IN PENAL ACTS

The question whether a new Act impliedly repeals an old one (see *ante* pp 156 *et seq*) has frequently arisen in construing Acts which deal anew with existing offences without expressly referring to the past legislation respecting them. The problem often arises whether the manner in which the matter is dealt with in the later Act shows that the legislature intended merely to make an amendment or addition to the existing law or to treat the whole subject *de novo* and so to make a *tabula rasa* of the pre-existing law. Of course, where the objects of the two Acts are not identical, each of them being restricted to its own object no conflict takes place. Thus an Act which empowered justices to commit for a month an apprentice guilty of any misconduct in his service was not repealed by a later one which empowered them to compel an apprentice who absented himself to make compensation for his absence and to commit him in default for three months.⁴⁰ The object of the first Act was to punish the apprentice while that of the other was to compensate the master. It may be remarked that by virtue of section 12 of the Employers and Workmen Act 1875 (c 90) the summary jurisdiction of justices is now confined to those apprentices upon whose binding a premium not exceeding £25 has been paid.

New Punishment Imposed

It would seem that an Act which (without altering the nature

³⁶ Cf Lord Mansfield's dictum in *R v Abbot* (1780) 2 Doug 553.

³⁷ See e.g., *Daw v Metrop Board* (1862) 31 LJ CP 223. *British Columbia Electric Ry v Stewart* [1913] A.C. 816.

³⁸ *North Metropolitan Tramways Co v L.C.C.* (1895) 60 JP 23 per Lord Esher. *The Clan Gordon* (1887) 7 PD 190. *Wallasey United Tramways & Omnibus Co v Wallasey U.D.C.* (1900) 17 TLR 15 per Lord Halsbury L.C.

³⁹ *Re Westminster Estate of St Sepulchre's Parish* (1864) 4 De GJ & Sm 232, per Lord Westbury L.C. *London Chatham & Dover Ry v Wandsworth Board of Works* (1873) LR 8 CP 185.

⁴⁰ *Gray v Cookson* (1812) 16 East 13. Cf *R v Doule* (1861) 6 H & N 753.

of the offence, as by making it felony instead of misdemeanour) imposes a new kind of punishment or provides a new course of procedure for that which was already an offence, at least at common law, is usually regarded as cumulative and as not superseding the pre-existing law. For instance, though the Blasphemy Act 1697 (c 35),⁴¹ visited the offence of blasphemy with personal incapacities and imprisonment, an offender might also be indicted for the common law offence.⁴²

The repealed 2 W & M (Sess 2), c 8, which prohibited keeping swine in houses in London on pain of the forfeiture of the swine so kept did not abolish the liability to fine and imprisonment on indictment at common law for the nuisance.⁴³

Section 10 of the Poor Relief Act, 1691 (c 11), in imposing a penalty of £5, recoverable summarily on parish officers who refused to receive a pauper removed to their parish by an order of justices, was held to leave those officers still liable to indictment for the common law offence of disobeying the order which the justices had authority to make under the Poor Relief Act, 1662 (c 12). In cases such as these it is to be presumed that the legislature knew that the offence was punishable by indictment, and that as it did not in express terms abolish the common law proceeding it intended that the two remedies should co-exist.⁴⁴ At all events the change made by the new law was not of a character to justify the conclusion that there was any intention to abrogate the old and in most of the examples cited the presumption against an intention to oust the jurisdiction of the superior courts would strengthen it.

Where the Metropolitan Police Act 1839 (c 47) by one section (s 57) empowered a magistrate to impose a penalty of not more than 40s for an offence and by another section (s 77) empowered him if the penalty was not paid to commit the offender to prison for a month and a later statute (Metropolitan Police Act 1864 (c 55) s 1) repealed section 57 and substituted for it one empowering the magistrate to impose the same penalty or to commit to prison for not more than three days it was held that this did not impliedly repeal section 77 but that it was competent for the

⁴¹ Partially repealed by 53 Geo 3 c 160.

⁴² *R v Carlile* (1819) 3 B & Ald 161. See also *Steele v Brannan* (1872) L.R. 7 C.P. 261 at p 268.

⁴³ *R v Higg* (1705) 2 Salk 460.

⁴⁴ *R v Robinson* (1759) 2 Burr 800 at p 803 per Lord Mansfield.

magistrate to sentence an offender to pay a penalty of 40s and in default of payment to be imprisoned for a month ⁴⁵

Under section 33 of the Interpretation Act, 1889 (c 63) (see Appendix) where an offence is punishable under more than one Act or under an Act and at common law, the offender unless the contrary intention appears may be punished under either, but shall not be punished twice for the same offence

Alteration of Offence or Punishment

Where a statute alters the quality and incidents of an offence, as by making that which was a felony merely a misdemeanour it would be construed as impliedly repealing the old law. Thus, the Stealing of Deer Act, 1775 (c 30),⁴⁶ which imposed a pecuniary penalty on persons who hunted or killed deer with their faces blackened was held to have repealed so much of the 'Black Act (9 Geo 1, c 22) as made that offence capital ⁴⁷

Again where the punishment or penalty is altered in degree but not in kind the later provision would be considered as superseding the earlier one ⁴⁸

The Artificers Act, 1718 (c 27),⁴⁹ which imposed a fine of £100 and three months imprisonment for a first offence, and a fine at discretion and twelve months imprisonment for a second was held to be impliedly repealed by the Artificers etc, Act, 1749 (c 13) ⁵⁰ which increased the punishment for the first offence to a fine of £500 and twelve months imprisonment and for the second to £1 000 and two years imprisonment ⁵¹

It was held in America that a statute which punished the rescue or harbouring of a fugitive slave by a penalty of 500 dollars recoverable by the owner for his own benefit and reserved all rights of action for damages, was repealed by a later enactment which

⁴⁵ *R v Hopkins* [1893] 1 Q B 621

⁴⁶ Repealed by Criminal Statutes Repeal Act, 1827 (c. 27) s. 1

⁴⁷ *R v Davis* (1783) 1 Leach 271 *Lee v Dangar* [1892] 2 Q B 348 per Lord Esher M R. and see the Criminal Law Act, 1722 (c. 22) (repealed by the Criminal Statutes Repeal Act, 1827 (c. 27) s. 1

⁴⁸ *Henderson v Sherborne* (1837) 2 M & W 236 *Att-Gen v Lockwood* (1842) 9 M & W 391 *Robinson v Emerson* (1866) 4 H & C. 355 per Martin B *Cole v Coulton* (1860) 29 L J M C. 125 *Cf Sims v Pav* (1889) 58 L J M C 39

⁴⁹ Repealed, 5 Geo 4 c. 97

⁵⁰ Repealed, S L.R. Act, 1867 (c. 59)

⁵¹ *R v Cator* (1802) 4 Burr 2076

CONSTRUCTION TO AVOID COLLISION

imposed for the same offences a penalty of 1,000 dollars on conviction and gave the party aggrieved 1,000 dollars by way of damages recoverable by action⁵²

Indeed, it has been laid down generally, that if a later statute again describes an offence created by a former one and affixes a different punishment to it varying the procedure—giving for instance an appeal where there was no appeal before—the earlier statute is impliedly repealed by it⁵³

Section 11 of the Harbours Act 1814 (c 159) which imposed a penalty of £10 leviable not by distress but by imprisonment, in default of immediate payment on any person throwing ballast or rubbish out of a vessel into a harbour or river so as to tend to the obstruction of the navigation, and gave an appeal was held to repeal by implication the earlier Harbours Act 1745 (c 22) which had imposed without appeal a penalty of not less than 50s and not more than £5 for the same offence, leviable by distress or imprisonment in default of distress. The preamble of the later Act, indeed recited that it was expedient to 'extend the provisions of the earlier one and though its implied repeal seems to have been thought at variance with such an intention it may be questioned whether its provisions were not 'extended' by what was in effect their re-enactment with an increased penalty and a summary method of its recovery⁵⁴

Whether the position is the same since the passing of the Interpretation Act 1889 s 33⁵⁵ is a more doubtful question in three cases since that Act the section was not brought to the notice of the court,⁵⁶ and in a fourth decided on other grounds *Kay J* was emphatic that in view of the section no question of implied repeal could now arise⁵⁷

⁵² *Norris v Crocker* (1851) 13 Howard 429

⁵³ *Per cur Michell v Brown* (1858) 28 L.J.M.C. 53. *Re Baker* (1857) 2 H. & N. 219 *per Bramwell B.* *Youle v Mappin* (1861) 30 L.J.M.C. 237 *per Martin B.*

⁵⁴ *R v Youle* (1861) 6 H. & N. 753. *Youle v Mappin* (1861) 30 L.J.M.C. 234. *Parry v Croydon Gas Co* (1863) 15 C.B. (N.S.) 568. *Cf Owens v Jones* (1868) L.R. 3 Q.B. 469.

⁵⁵ See Appendix

⁵⁶ *Fortescue v St Matthew Vestry* [1891] 2 Q.B. 170. *Summers v Holborn Board of Works* [1893] 1 Q.B. 612. *Smith v Benabo* [1937] 1 K.B. 518.

⁵⁷ *Keep v Vestry of St Mary Newington* [1894] 2 Q.B. 524. C.A. at p. 538.

It has been observed by the Supreme Court of the United States that in the interpretation of laws for the collection of revenue the provisions of which are often very complicated and numerous in order to guard against frauds, it would be a strong proposition to assert that the main provisions of any such law were repealed merely because in subsequent laws other powers were given and other modes of proceeding were provided to ascertain whether any frauds had been attempted. The more natural inference is that such new laws are auxiliary to the old.⁵⁸

Offence within Different Enactments

But little weight can attach to the argument that because an offence falls within two distinct enactments in their ordinary meaning a secondary construction is to be sought to exclude it from one of the two. An enactment which prohibited under a penalty any person concerned in the administration of the poor laws from supplying goods ordered for the relief of any pauper was not construed as excluding a poor law guardian merely because another provision expressly made such officers liable to a much higher penalty for supplying the parish workhouse with goods.⁵⁹

Where one section of an American Act enacted that no ship from a foreign port should unload any of her cargo but in open day on pain of forfeiture of both goods and ship, and another prohibited the unloading of any ship bound for the United States before she arrived at the proper place of discharge of her cargo, on pain of forfeiture of the unladen goods it was held that a foreign ship bound for New York and unloading a part of her cargo at night at an intermediate harbour in the United States did not escape from falling within the former section merely because she also fell within the latter. It was observed that there was no principle of law or interpretation to authorise a court to withdraw a case from the express prohibitions of one clause on the ground that the offence was also punished by a different penalty in another. Neither could be held nugatory.⁶⁰

Where however the Nuisances Removal Act 1855 (c 121) by one section empowered justices to order the abatement of a

⁵⁸ *Per cur* *Wood v U.S.* 16 Peters 342 362

⁵⁹ *Davies v Harvey* (1874) L.R. 9 Q.B. 433

⁶⁰ *The Industry* (1812) 1 Gallison 114

nuisance punishing disobedience of their order with a fine of 10s a day, and by another section empowering them to prohibit the recurrence of the nuisance under a penalty of 20s a day, it was held in a case where orders had been made at different times under both sections, and two informations were laid for a breach of both by a fresh act of the same nuisance, that there could be only one conviction ⁶¹ the general principle being that a person cannot be convicted twice on the same facts

⁶¹ *Edleston v Barnes* (1875) 1 Ex D 67. See Public Health Act 1936 (c. 49) Part III

CHAPTER 8

CONSTRUCTION MOST AGREEABLE TO JUSTICE AND REASON

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SECTION 1 — PRESUMPTION AGAINST INTENDING WHAT IS INCONVENIENT OR UNREASONABLE

IN determining either the general object of the legislature, or the meaning of its language in any particular passage it is obvious that the intention which appears to be most in accord with convenience reason justice and legal principles should, in all cases of doubtful significance be presumed to be the true one. An argument drawn from an inconvenience it has been said is forcible in law¹, and no less, but rather more force is due to any drawn from an absurdity or injustice. The question of inconvenience or absurdity must be looked at in the light of the state of affairs at the date of the passing of the statute not in the light of subsequent events². Moreover, a court of law has nothing to do with the reasonableness or unreasonableness of a statutory provision except so far as it may help it in interpreting what the legislature has said³.

The treaty between Louis XII and the Pope, which gave the King the right of appointing to 'all bishoprics vacated by the death of bishops in France' was, for instance properly construed

¹ Co Litt 97a

² *Att Gen v Prince Ernest Augustus of Hanover* [1957] A C 436 H L

³ *Cooke v Vogeler* [1901] A C 107 per Lord Halsbury

not as giving him the right of appointing to a foreign bishopric whenever its incumbent happened to die in France but more consistently with good sense and convenience, as authorising him to fill the bishoprics of his own kingdom when their holders died, whether at home or abroad ⁴

The Highway Act, 1835 (c 50), s 105, which gave an appeal to any person who thought himself aggrieved by any order, conviction, judgment or determination of a justice did not apply to a prosecutor who complained of an acquittal. If it had the person acquitted would be liable to be twice vexed for the same cause. Besides, the prosecutor could not legitimately be considered as aggrieved ⁵

Where there is an appeal from a magistrate's decision 'when the sum adjudged to be paid on conviction shall exceed two pounds, the question whether the penalty only, or the penalty plus the costs were intended would be decided on similar general considerations of convenience and reason. It would be thought more likely that the legislature intended to give an appeal only when the offence was of some gravity and not merely where the costs (which would vary according to the distances to be travelled by the parties and their witnesses, the number of the latter, and similar accidental circumstances) happened to swell the amount above the fixed limit ⁶

An Act regulating local rates which gave an appeal against any rate to the quarter sessions and provided for enforcing its payment, that two justices might issue a distress warrant against the goods of the defaulter if he did not on being summoned 'prove to them that he was not chargeable with or liable to pay such rate' would not be construed as authorising the justices to enter upon any inquiry into the validity of the rate if it was valid on its face though literally, the defaulter would unquestionably prove his non liability if he proved its invalidity. If the question of validity which was left to the quarter sessions was also open to the justices who were required to enforce the rate, they might decide against the validity of the rate after it had been adjudged

⁴ Puff L.N. b 5 c 12 s 8

⁵ s 105 partly repealed by the Summary Jurisdiction Act 1884 (c 43) s 4 *R v London JJ* (1890) 25 Q.B.D. 357. But under the Summary Jurisdiction Acts 1857 and 1879 (c 43 and c 49) see *Stokes v Mitcheson* [1907] 1 K.B. 857

⁶ *R v Warwickshire* (1856) 25 L.J.M.C. 119 *R v Noels* [1905] 2 K.B. 456

valid by the quarter sessions,⁷ a conflict which could not readily be supposed to have been intended. It would be otherwise indeed if the rate bore invalidity on its face by not showing that it was made in accordance with the statutory authority given for the purpose for they could not be required to enforce what did not profess to be a valid demand made by competent authority.⁸

A constable, authorised by statute at all times to enter licensed premises to prevent or detect violations of the licensing laws cannot demand admission unless he has some reasonable ground for suspecting a breach of the law.⁹

An Act which empowered magistrates to make an order that any dog found to be dangerous should be kept under proper control or destroyed might, on this principle, be construed as giving the magistrate the option of making an absolute order for the destruction of a dangerous dog and not as requiring that his order should be in the alternative terms of the Act, which would place the option in the hands of the owner of the dog for this would be much less efficacious and convenient.¹⁰

The Forgery Act, 1861 (c 98) which, after making it felony to engrave without authority plates of bank notes purporting to be notes of the Bank of England or of Ireland, or of any other company, declared in another section that the enactment should not apply to Scotland except where it was expressly so provided, was held to apply to the engraving of the notes of a Scottish bank, the rational object and meaning of the excluding provision being not that forgeries against Scottish banks might be committed in England without impunity, but that, when committed in Scotland they should not fall within the Act.¹¹

Where an Act, after transferring all duties of paving and lighting from existing commissioners to a board of works provided that all contracts with the former should remain valid that no action

⁷ *Birmingham v Shaw* (1849) 10 Q B 868. *Re Williams* (1853) 2 E & B 84. *R v Kingston JJ* (1858) 27 L J M C 199. *R v Bradshaw* (1860) 29 L J M C 176. *R v Higginson* (1862) 31 L J M C 189. *Ex p May* (1862) 31 L J M C 161. *R v Linford* (1857) 7 E & B 950. *R v Finnis* (1859) 28 L J M C 201. *Wake v Mayor of Sheffield* (1883) 11 Q B D 291. (1884) 12 Q B D 142.

⁸ *Re Eastern Counties Ry* (1856) 25 L J M C 49. See *R v Croke* (1774) 1 Cowp 30.

⁹ Licensing Act 1874 (c 49) s 16 see now the Licensing Act 1953 (c 46) s 151.

¹⁰ *Duncan v Dowding* [1897] 1 Q B 575. *R v Dobbins* (1883) 48 J P 182.

¹¹ *Pickering v Marsh* (1874) 43 L J M C 143.

¹¹ *R v Brackenridge* (1868) L R 1 C C 133. *Cf Re O Loughlen* (1871) L R 6 Ch 406. See Forgery Act 1913 (c 27) ss 2 18 21.

upon them against the commissioners should abate, and that all liabilities under such contracts should be paid out of rates to be made by the new board, it was held, on the ground of its being the more convenient course, that an action on a contract made with the commissioners might be brought against the board¹²

The Summary Jurisdiction Act, 1857 (c 43) which authorised a party aggrieved by a decision of justices to apply within three days for a case, and directed that at the time of the application and before the case was delivered to him, he should enter into recognisances to prosecute the appeal, was held substantially complied with if the recognisances were entered into within the three days, though not at the time of the application¹³

It has been repeatedly held that when an Act gives an appeal to the 'next' sessions it means not necessarily the next which takes place in order of time or an adjournment of it¹⁴ but the next to which it is practicable with fair diligence to carry the appeal¹⁵. It is obvious that a stricter construction would often have the effect of taking away the appeal which the legislature intended to give.

When an Act gave any person aggrieved¹⁶ by an order of justices four months for making his complaint to the quarter sessions it was construed to mean not that the complaint must be heard within that time, but that the appellant should have that time for notifying his intention to appeal. Otherwise he might sometimes be limited to a few weeks or, if no sessions were held within the four months, he would be deprived of his appeal altogether¹⁷.

The Workmen's Compensation Act 1897 (c 37) s 2 (1) provided that proceedings for the recovery of compensation under the Act should not be maintainable unless notice of the accident had been given as soon as practicable and unless the claim for compensation with respect to such accident has been made

¹² *Sinnott v Whitechapel* (1858) 27 L.J.C.P. 177

¹³ *Chapman v Robinson* (1858) 28 L.J.M.C. 30

¹⁴ *R v Sussex* (1797) 7 T.R. 107

¹⁵ As to what is 'next practicable' sessions see *R v Surrey JJ* (1880) 6 Q.B.D. 100 *R v Middlesex JJ* (1888) 32 S.J. 221

¹⁶ *Graves Case* (1869) L.R. 4 Q.B. 715 *Boyce v Higgins* (1854) 23 L.J.C.P. 5 *Ex p Learoyd* (1880) 13 Ch.D. 321 *Ex p Thoday* (1877) 2 Ch.D. 229 797 *Verdin v Wray* (1877) 2 Q.B.D. 608 *Cf Rochfort v Atherley* (1876) 1 Ex.D. 511 *Re Shaftoe's Charity* (1878) 3 App.Cas. 872

¹⁷ *R v Essex* (1864) 34 L.J.M.C. 41 *R v Middlesex* (1817) 6 M. & S. 279 See also *post* p. 195

within six months from the occurrence of the accident causing the injury. The House of Lords held the claim for compensation to mean a notice of claim for compensation sent to the employer, and not the initiation of proceedings ¹⁸

An Act which authorised the quarter sessions to give a successful appellant against a conviction costs against the party appealed against, and directed that the notice of appeal should be served on the convicting justice, was construed as not making the latter a party to the appeal, for it was to be presumed that the legislature did not intend so great an anomaly as rendering a judicial officer liable to costs for an act done bona fide in the discharge of his judicial functions ¹⁹. The respondent, in such a case, is the prosecutor before the magistrate, though this construction involves the hardship of making him liable to the costs of a proceeding of which he has had no notice, or perhaps even knowledge.

A statute which enacted that 'a solicitor may make an agreement in writing with his client respecting the amount and manner of his remuneration' was held to require impliedly that the agreement should be signed by the client as otherwise it would be possible for a solicitor to place a document signed by himself only and containing terms favourable to him before his client and then contend that the latter was bound by it ²⁰.

Where one Act authorised the recovery of certain claims before justices of the peace, proceedings before whom must be begun within six months, and another Act authorised their recovery, when not exceeding £20, in the county courts where the term of limitation was six years, it was held that suits for them in the latter courts were limited to six months, to avoid imputing to the legislature the anomalous intention of allowing six years for the recovery of small sums, while giving only six months for larger ones ²¹.

¹⁸ *Powell v Main Colliery Co* [1900] A C 366. But apparently a mere notice of accident is not a claim. *Perry v Clements* (1901) 49 W R 669.

¹⁹ *R v Hants* (1840) 1 B & Ad 654. *R v Smith* (1860) 29 L J M C 216. *R v Purdey* (1864) 34 L J M C 4. *R v Bradlaugh* (1877) 2 Q B D 569. (1878) 3 Q B D 607. *R v London JJ* [1895] 1 Q B 616.

²⁰ *Re Lewis* (1876) 1 Q B D 724, but this case and the above stated reason therefor were subject to adverse criticism in *Re Thompson* [1894] 1 Q B 462. See however *Bake v French* [1907] 2 Ch 215. See now *Solicitors Act 1957* (c 27) ss 57-59.

²¹ *Public Health Act 1848* (c 63) s 39. *Local Government Act 1858*. Amendment Act 1861 (c 61) s 24. *Tottenham Board v Rowell* (1876) 1 Ex D 514. *Blackburn (Mayor of) v Sanderson* [1902] 1 K B 794. *Bolton Corp v Scott* (1913) 77 J P 193. C A. See now *Local Government Act, 1933* (c 51) s 120 and *Public Health Act 1936* (c 49) s 293.

Similarly, on the ground (among others) that it would be unreasonable to presume that the legislature intended to impose a more severe penalty on a person who without malice wilfully gathered uncultivated mushrooms than on one who unlawfully and maliciously destroyed cultivated roots or plants used for food, it was held that in view of section 24 of the Malicious Damage Act, 1861 (c 97) which imposed a penalty of one month's imprisonment or a fine of £1 for the latter offence, section 52 of the same Act, which made it an offence punishable with two months imprisonment or a fine of £5 to wilfully or maliciously commit any damage injury or spoil to or upon any real or personal property whatsoever for which no punishment is hereinbefore provided, could not be regarded as applying to a case such as the former ²

But a milk carrier who damaged his master's milk not to injure his master but to make a profit for himself, was held to be guilty of an offence under the latter section ³ upon the ground that if an act be done wilfully or wantonly it raises a presumption it is done maliciously ⁴

The Bankruptcy Acts ⁵ which vested the future as well as the present property of the bankrupt in the assignee or trustee imported the necessary exception, to save him from starving of the remuneration which the bankrupt might earn by his labour after his bankruptcy and the damages which he might recover for any personal injury ⁶ and while establishing the right of the trustee to future property as between himself and the bankrupt, did not affect the right of the latter as between himself and his debtor unless the trustee interfered, to sue for a debt which accrued due after the vesting of the property in the trustee and the provision contained in the Acts that the bankrupt should not have power to recover such debts was similarly limited in effect ⁷ And generally property earned by the personal exertions and skill of the bankrupt

²² *Gardier v Mansbridge* (1887) 19 Q B D 217

²³ *Roper v Knott* [1898] 1 Q B 868

²⁴ *R v Welch* (1875) 40 J P 183

²⁵ Bankruptcy Act 1914 (c 59) repeals practically all earlier statutes

²⁶ *Beckham v Drake* (1849) 2 H L C 579 *Re Wilson* (1878) 8 Ch D 364

²⁷ *Hebert v Sayer* (1844) 5 Q B 965 *Jackson v Burnham* (1857) 8 Ex 173 *Jameson v Brick Co* (1878) 4 Q B D 208 *Cohen v Mitchell* (1890) 25 Q B D 262 But see *Re Clark* [1894] 2 Q B 393 and see Bankruptcy Act 1914 (c 59) s 38

does not pass to his trustee ²⁸ But, for such moneys to be immune, there must be an element of periodicity in the earnings ²⁹

An Act which imposes a penalty on the piracy of a dramatic work or any part thereof, would not be broken unless a material and substantial part was pirated It is not to be supposed that the legislature intended to punish the misappropriation of what was of no value ³⁰

Where a statute provides that a local authority may serve a notice requiring the performance of work within a time to be specified in the notice, a reasonable time for the completion of the work must be allowed ³¹

Evasion

A construction which facilitated the evasion of a statute would, on similar grounds of inconvenience be avoided Thus an Act which forbade an innkeeper to suffer any gaming in his house or premises was construed as extending to gaming by himself and his personal friends in his private rooms in the licensed premises, for a construction which limited the prohibition to the guests in the public rooms would have opened the door to collusion and evasion ³²

And yet a construction facilitating evasion (see *supra*, pp 108 *et seq*) even to the extent of defrauding the Revenue may be justified and required by considerations of convenience as in the case of Stamp Acts where the question whether a document produced on the hearing of a trial is sufficiently stamped depends solely on what appears on the face of the document to the exclusion of all extrinsic evidence to prove the contrary To admit evidence to invalidate it would lead to the intolerable inconvenience of holding

²⁸ *Shoolbred v Roberts* [1899] 2 Q B 560

²⁹ *Ibid* [1899] 2 Q B 560 563

³⁰ *Chatterton v Cave* (1877) 2 CPD 42 3 App Cas 483 *Pike v Nicholas* (1869) LR 5 Ch 251 *Bradbury v Hatten* (1872) LR 8 Ex 1 *Planché v Braham* (1837) 4 Bing NC 17 *D Almaine v Boosey* (1835) 1 Yo & C 301 *Walter v Steinkopff* [1892] 3 Ch 489 For an exhaustive disquisition on the Copyright Act 1956 (c. 74) see Copinger on the Law of Copyright

³¹ *Bristol Corporation v Sinnatt* [1918] 1 Ch 62 See, as to the words council of a borough *Hyde Corporation v Bank of England* (1882) 21 Ch D 176

³² *Patten v Rhymer* (1860) 29 LJMC 189 *Corbet v Haigh* (1879) 5 CPD 40 see also *Iles v West Ham Union* (1882) 8 QBD 79 per Brett LJ Cf *Brigden v Helghes* (1876) 1 QBD 330 *Tassell v Osenden* (1877) 2 QBD 383 *Lester v Torrens* (1877) 2 QBD 403 *Bosley v Davies* (1876) 1 QBD 84 *Gallagher v Rudd* [1893] 1 Q B 114

a collateral inquiry, to the interruption of the trial of the cause in which the paper was tendered "A clog which the legislature could not have intended" ³³

Joint or Separate Pecuniary Penalties

Acts which impose a pecuniary penalty have sometimes given rise to a question when there were two or more offenders, whether one joint or several separate penalties were intended. Where the Act has left it open to doubt, this has been said to depend on whether the offence was in its nature joint or several. When the offence is one in which every participator is justly punishable in proportion to the part which he took in it, the inference would obviously be that a separate penalty on each was intended. In the offence of assaulting and resisting a custom house officer, one may resist, another molest a third run away with the goods. All are distinct acts each a separate offence, and each offender would be liable for his own separate offence ³⁴. Nor does the omission to prosecute one of the parties exonerate the others.

Under the partially repealed Act of Toleration, 1688 (c 18), which enacted that if any person or persons maliciously disturb a congregation such person or persons 'shall on conviction of the said offence, be liable to a penalty of £20, it was held that every person engaged in such a disturbance would be liable to a separate penalty ³⁵.

Where two men were convicted of an assault and sentenced to pay one penalty under the Offences against the Person Act, 1828 (c 31),³⁶ the conviction was quashed because a penalty ought to have been imposed on each offender severally the offence being in its nature several ³⁷.

Under section 30 of the Game Act 1831 (c 32), which enacts that if any person shall trespass in the daytime on land in search

³³ *Whistler v Forster* (1863) 32 L.J.C.P. 161. *Austin v Bunyard* (1865) 6 B. & S. 687. 695. *Gatty v Fry* (1877) 2 Ex D. 265 approved in *Royal Bank of Scotland v Tottenham* [1894] 2 Q.B. 715. Cf. *Clarke v Roche* (1877) 3 Q.B.D. 170.

³⁴ *R v Clark* (1777) 2 Cowp. 610 per Lord Mansfield. *R v Littlechild* (1871) 40 L.J.M.C. 137.

³⁵ *R v Hube* (1792) 5 T.R. 542.

³⁶ Repealed by Criminal Statutes Repeal Act, 1861 (c. 95) s. 1.

³⁷ *Morgan v Brown* (1836) 5 L.J.M.C. 77.

of game "such person" shall be liable to a penalty of £2 every offender is liable to a separate penalty³⁸

But it has been said that, where the offence is in its nature single and is punished by a pecuniary penalty, one penalty can be imposed on all the offenders jointly, upon the ground that if it be the offence and not the offender that is visited with punishment by the statute, only one penalty is incurred, however large may be the number of persons who incurred it

Thus, under a statute of Anne,³⁹ which enacted that if any unqualified person or persons 'kept or used hounds for destroying game, 'the person or persons' so offending should forfeit £5, it was held that to keep or use a greyhound for such purpose was punishable by one penalty only whether the dog was kept or used by one or by several persons. Only one dog was kept, it was said, and only one penalty falling on all the offenders jointly, was impossible⁴⁰. The decision has been perhaps better defended on the ground that the Act speaking of persons in the plural and providing that for such 'offence' in the singular they should pay £5, and not £5 "each," one joint offence and penalty were contemplated⁴¹.

In an old case cited in support of this construction it was held that the Distress Act 1554 (c. 12) which prohibited the impounding of a distress in the wrong place 'upon pain every person offending should forfeit to the party aggrieved for every such offence a hundred shillings and treble damages gave only one penalty against three persons⁴². But, although this decision is said to have been based on the ground that the offence was one only and joint the penalty was recoverable only by the party grieved and was consequently to be regarded as a compensation to him and not as a punishment on the offenders⁴³. Viewed in this light it is clear that only one penalty could be recovered for the injury was the same whether it was done by one or by several persons and it could

³⁸ *Mayhew v Wardley* (1863) 14 C D (N S) 550 *Pratt v Martin* [1911] 2 K B 90

³⁹ Exercise of Trades Act 1712 (c. 14) repealed by S L R Act 1867 (c. 59)

⁴⁰ *Hardymann v Whitaker* (1749) 2 East 573n *R v Mathews* (1797) 10 Mod 26
R v Bleasdale (1792) 4 T R 809

⁴¹ *R v Dean* (1843) 12 M & W 42 per Alderson B

⁴² *Partridge v Naylor* (1596) Cro Eliz 480 cited in *R v Clark* (1777) 2 Cowp 610 *R v King* (1711) 1 Salk 182

⁴³ See e.g. *Stevens v Jeacocke* (1848) 11 Q B 731. For a discussion of this case in which it was distinguished see *Gorris v Scott* (1874) L R 9 Ex 125

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³⁴ *R v Clark* (1777) 2 Cowp. 610 *per Lord Mansfield* *R v Littlechild* (1871) 40 L.J.M.C. 137

³⁵ *R v Hube* (1792) 5 T.R. 542

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³⁷ *Morgan v Brown* (1836) 5 L.J.M.C. 77

of game, "such person shall be liable to a penalty of £2, every offender is liable to a separate penalty"³⁸

But it has been said that, where the offence is in its nature single and is punished by a pecuniary penalty, one penalty can be imposed on all the offenders jointly, upon the ground that if it be the offence and not the offender that is visited with punishment by the statute, only one penalty is incurred, however large may be the number of persons who incurred it

Thus, under a statute of Anne³⁹ which enacted that if any unqualified person or persons "kept or used hounds for destroying game, the person or persons so offending should forfeit £5, it was held that to keep or use a greyhound for such purpose was punishable by one penalty only whether the dog was kept or used by one or by several persons. Only one dog was kept, it was said, and only one penalty falling on all the offenders jointly, was imposable⁴⁰. The decision has been perhaps better defended on the ground that the Act speaking of persons in the plural, and providing that for such 'offence' in the singular they should pay £5 and not £5 each one joint offence and penalty were contemplated⁴¹.

In an old case cited in support of this construction it was held that the Distress Act, 1554 (c. 12), which prohibited the impounding of a distress in the wrong place, "upon pain every person offending should forfeit to the party aggrieved for every such offence" a hundred shillings and treble damages gave only one penalty against three persons⁴². But, although this decision is said to have been based on the ground that the offence was one only and joint, the penalty was recoverable only by the party grieved and was consequently to be regarded as a compensation to him and not as a punishment on the offenders⁴³. Viewed in this light it is clear that only one penalty could be recovered for the injury was the same whether it was done by one or by several persons and it could

³⁸ *Mayhew v Wardley* (1863) 14 C D (NS) 550 *Pratt v Martin* [1911] 2 K B 90

³⁹ Exercise of Trades Act 1712 (c. 14) repealed by S L R Act 1867 (c. 59)

⁴⁰ *Hardymann v Whitaker* (1749) 2 East 573n *R v Mathews* (1797) 10 Mod 26
R v Bleasdale (1792) 4 T R 809

⁴¹ *R v Dean* (1843) 12 M & W 42 per Alderson B

⁴² *Partridge v Naylor* (1596) Cro Eliz. 480 cited in *R v Clark* (1777) 2 Cowp 610 *R v King* (1711) 1 Salk 182.

⁴³ See e.g. *Stevens v Jeacocke* (1848) 11 Q B 731. For a discussion of this case in which it was distinguished see *Gorris v Scott* (1874) L R 9 Ex 125

hardly have been intended that the pecuniary compensation for a wrong should vary in amount with the number of persons concerned in doing it

In referring to cases of this kind Lord Mansfield observed that if partridges were netted by night two or three or more men might draw the net but still it constituted but one offence and that killing a hare was but one offence, whether one killed it or twenty and that it could not be killed more than once⁴⁴

But however pertinent such considerations might be in measuring the damage done to the owner of the game they seem less applicable to the question of punishing on public grounds, a breach of the law. The question whether the offence was joint or several evidently arose not from the nature of the offence but from the nature of the penalty. If the penalty had been corporal instead of pecuniary the distinction between joint and several offences could hardly have occurred for it would have been found difficult to apply the rule of one joint penalty to two offenders sentenced to five weeks imprisonment or twenty five lashes. It would seem that the question whether the penalty is to be understood as separate or joint where the Act is not explicit would be better governed by the consideration whether the penalty was intended as compensation for a private wrong or as a punishment for an offence against public justice

Language Unambiguous

It is hardly necessary to add that all such considerations are immaterial where the language of the Act is not open to doubt. Thus where it was enacted that every person who assisted in unshipping or concealing prohibited goods should forfeit treble their value or £100 at the election of the Commissioners of Customs, it was held that every person concerned in the offence was liable to a separate penalty⁴⁵ although undoubtedly the offence was as joint in its nature as in the case of the wrongful removal of the distress⁴⁶

⁴⁴ *R v Clark* (1777) 2 Cowp 610

⁴⁵ Customs Act 1833 (c 53) repealed by Customs Act 1845 (c 84) s 2 *R v Dean* (1843) 12 M & W 39

⁴⁶ *Partridge v Taylor* (1596) Cro Eliz 480 See ante p 191

The provision in section 2 of the Bankruptcy (Discharge and Closure) Act, 1887 (c 66), that the Court of Bankruptcy should refuse a bankrupt his discharge "in all cases" where the debtor had committed an offence under the Debtors Act, 1869 (c 62), was held to apply only to cases connected with or arising out of the bankruptcy and not to a misdemeanour committed subsequently to the adjudication, the language used being so wide that if it received its full grammatical meaning it would produce injustice so enormous that the legislature could not have intended mere general words to lead to such a result ⁵¹

The Public Authorities Protection Act 1893 (c 61) ⁵² which provided that a judgment for a successful defendant in an action against a public authority shall carry costs to be taxed as between solicitor and client, did not take away the discretionary power vested in a judge to deprive the successful defendant of his costs ⁵³

The East India Company Act, 1780 (c 70) which protected magistrates in India from actions for any wrong or injury done by them in the exercise of the judicial office, was held to exempt them from liability only when acting bona fide in cases in which, by mistake they acted without jurisdiction ⁵⁴

The Merchant Shipping Act 1873 (c 85), s 17, which enacted that if in any case of collision, it was proved that any of the regulations for preventing collisions had been infringed, the ship which infringed them should be deemed in fault unless the circumstances justified departure from the regulations was held to apply only to cases where the infringement could have contributed to the collision but not where it could not possibly have done so ⁵⁵ just as an Act ⁵⁶ which imposed a penalty for piloting a ship down the Thames without licence was evidently limited to piloting on a voyage, and would not apply to a person in charge of a ship when merely warping from one wharf to another to unload the cargo ⁵⁷

⁵¹ *Re Brockelbank* (1889) 23 Q B D 461 *Re Jones* (1890) 24 Q B D 589 affirmed 59 L J Q B 331 See now Bankruptcy Act 1914 (c 59) s 26

⁵² Repealed Law Reform (Limitation of Actions etc) Act 1954 (2 & 3 Eliz. 2 c 36) s 1

⁵³ *Bostock v Ramsey U D C* [1900] 2 Q B 616 R S C Ord 65 r 1

⁵⁴ Repealed Government of India Act 1915 (c 61) *Caldar v Halket* (1840) 3 Moo P C 28

⁵⁵ Repealed s 419 (4) Merchant Shipping Act 1894 (c 60) *The Englishman* (1878) 3 P D 18 *The Magnet* (1875) L R 4 A & E 417 *The Fanny Carrill* (1875) 13 App Cas 455n approved in *The Duke of Buccleuch* [1891] A C 310

⁵⁶ Pilotage Act 1731 (c 20) repealed S L R Act 1867 (c 59)

⁵⁷ *R v Lambe* (179) 5 T R 76

An imperative requirement that assessment sessions should be held so that all appeals should be determined before a certain date would not operate so unjustly as to deprive a person of the right to appeal where, through press of business at the sessions his appeal could not be heard before that date ⁵⁸

Section 106 of the Metropolis Management Amendment Act 1862 (c 102) ⁵⁹ which provided that no writ or process should issue for anything done under it but after a month's notice would not apply to summary relief by injunction, for if it did the wrong might be irremediable which could not be intended ⁶⁰ Besides the object of the provision was only to give the defendant time to make amends before he was sued ⁶¹

Nor would a similar enactment that no action should be brought in which a certain body of shipowners would be liable for any damage to any ship without a month's notice apply to proceedings *in rem* in the Admiralty Division for if such a notice were necessary the proceedings might be futile as the ship might sail away before the expiration of the month and avoid seizure ⁶²

Section 5 of the Cruelty to Animals Act, 1849 (c 92) which required 'every person' who impounded an animal, or caused it to be impounded or confined, to supply it with food, would not apply to the keeper of the pound ⁶³

The enactment in section 12 of the Licensing Act, 1872 (c 94) that every person found drunk on licensed premises should be liable to a penalty, though literally wide enough to include the publican who had got drunk anywhere and was found in that condition in his bed after the house was closed, would be construed according to the manifest object of the Act, as confined to persons found on the premises while using it as a house for public resort ⁶⁴

⁵⁸ Valuation (Metropolis) Act 1869 (c 67) *R v London JJ and L. C. C.* [1893] 2 Q B 476

⁵⁹ Repealed Public Authorities Protection Act 1893 (c 61)

⁶⁰ *Att Gen v Hackney Board* (1875) L R 20 Eq 626

⁶¹ *Flower v Low Leyton* (1877) 5 Ch D 347 *Foot v Mayor of Margate* (1883) 11 Q B D 299

⁶² 6 & 7 Will 4 ch c (local and personal) s 8 *The Longford* (1889) 14 P D 34

⁶³ *Dargan v Davies* (1877) 2 Q B D 118 See Protection of Animals Act 1911 (c 27) s. 7

⁶⁴ Repealed Licensing (Consolidation) Act 1910 (c 24) see now Licensing Act 1953 (c. 46) s 136 *Lester v Torrens* (1877) 2 Q B D 403 *R v Pellv* [1897] 2 Q B 33 See *Warden v Tye* (1877) 2 C P D 74 *Cf Patten v Rhymmer* (1877) 29 L J M C. 189

prevented the occupier from obtaining the full value, that the hypothetical tenant was similarly subject to them ⁷⁰

An Act which prohibited the negligent use of furnaces in such a manner as not to make them consume smoke 'as far as possible' meant only so far as the smoke could be consumed consistently with the due carrying on of the business for which the furnace was used, and not so far as it was physically possible to consume it without regard to the detriment which the business carried on would suffer, the Act not having expressed any intention to interfere with it ⁷¹

The Carriers Act, 1830 (c 68), which exempted carriers from responsibility for the loss of certain articles worth more than £10 unless their nature and value were declared, also enacted that the Act should not affect any special contract of carriage, and this proviso was construed not literally as making the Act inapplicable whenever any special contract was made, but only as not affecting any special contract inconsistent with the exemption provided by the Act ⁷²

The ordinary stipulation in a bill of lading excepting liability for breakage, leakage and damage would be similarly limited in construction as not extending to any such injury caused by the shipowner or his servants ⁷³

So the clause in a bill of lading of goods from Malaga to Liverpool authorising the ship to call at any port or ports, in any rotation, in the Mediterranean Levant Black Sea or Adriatic or on the coasts of Africa, Spain, Portugal, France Great Britain, and Ireland for any purpose would be limited to ports in geographical order which were substantially on the course of the voyage ⁷⁴

Absurdity

The same argument applies where the consequence of adopting one of the two interpretations would be to lead to an absurdity

⁷⁰ *Worcester v Droitwich* (1876) 2 Ex D 49

⁷¹ *Cooper v Woolley* (1867) L R 2 Ex 88

⁷² *Baxendale v G E Ry* (1869) L R 4 Q B 244 For a disquisition on the liability of carriers under this Act see *Chitty on Contracts* 22nd ed Vol 11 chap 4

⁷³ *Phillips v Clark* (1857) 26 L J C P 168 *Czech v Gen Steam Nav Co* (1867) L R 3 C P 14 *Chartered Bank of India v Netherlands Steam Nav Co* (1883) 10 Q B D 521 *per Lindley L J* See also *The Pearlmoor* [1904] P 286

⁷⁴ *Glynn v Margetson* [1892] 1 Q B 337 *White v Granada S S Co* (1896) 13 T L R 1

Thus section 3 (now repealed) of the Newspaper Libel Act 1881 (c 60) which enacted that no criminal prosecution should be commenced against a newspaper for libel without the fiat of the Director of Public Prosecutions, was held not to apply to a criminal information for to hold otherwise would lead to the absurd and scandalous result that that officer, who was to act under the superintendence of the Attorney General might not only overrule the latter, but also the Queen's Bench Division in the exercise of their power to give leave to file such information.⁷⁵

The provision of section 54 of the Public Health Act, 1875 (c 55) that where a local authority 'supply water' within their district they shall have certain powers to carry mains within and without that district is not to be construed in its literal sense so as to involve the absurdity of requiring that the authority must have begun actually to supply some water before it can take advantage of the powers conferred, but is to be understood as conferring those powers upon the local authority as soon as it undertakes to supply water under the provisions of the Act.⁷⁶

Similarly, a sewer made by a landowner for the sole purpose of draining houses erected by him on his own land is not by reason of its enhancing the value of the houses, 'made for his own profit' within the meaning of the exception in section 13 of the Public Health Act, 1875 (c 55) so as not to vest in and be under the control of the local authority. It would be absurd to suppose that it was intended that the operation of section 13 the whole object of which is to vest sewers in the local authority should be thus practically reduced to a nullity.⁷⁷

The 'whimsical' result that a councillor might be disqualified for office but nevertheless immediately eligible for re-election was avoided by applying the well known method of construction *reddendo singula singulis*.⁷⁸

⁷⁵ *Yates v R* (1883) 14 Q B D 648

⁷⁶ *Jones v Conway Water Supply* [1893] 2 Ch 603. See now Public Health Act 1936 (c 49) s 119.

⁷⁷ *Ferrand v Hallas Land Co* [1893] 2 Q B 135. *Bowles v Colmer* (1895) 64 L.J. Ch 414. *Croydsale v Sinbury etc Urban Council* [1898] 2 Ch 515. But a sewer though constructed for sanitary purposes may be a sewer for a profit see *Minehead Local Bd v Luttrell* [1894] 2 Ch 178. *Sjkes v Sowerby U D C* [1900] 1 Q B 594 and *South Strand Estate Development Co v East Preston R D C* [1934] Ch 234. See now Public Health Act 1936 (c. 49) ss 17-20.

⁷⁸ *Bishop v Deakin* [1936] 1 Ch 409 at p 414 per Clauson J.

The Factors Act, 1842 (c 39), s 6 (now repealed) which protected a fraudulent agent from conviction if he 'disclosed' his offence on oath in any examination in bankruptcy was held not to include a confession made there after committal by a magistrate which was in substance only a repetition of the facts proved before the magistrate, the ground being that it would have been absurd and mischievous to enable a man to provide an indemnity for himself by simply making a statement of facts already known and provable *alunde* and not in any way advancing either civil or criminal justice by the alleged "disclosure" ⁷⁹

Although under section 11 (1) of the Welsh Church Act 1914 (c 91), the Welsh Commissioners have "full power to decide all questions which it may be necessary to decide for the purposes of this Act," one would need very plain language before one could conclude that Parliament intended to make them judges in their own cause ⁸⁰

Hardship a Snare

It is to be borne in mind that the injustice and hardship which the legislature is presumed not to intend are not merely such as may occur in individual and exceptional cases only. Laws are made *ad ea quae frequentius accidunt* ⁸¹, and individual hardship not infrequently results from enactments of general advantage. The argument of hardship has been said to be always a dangerous one to listen to ⁸². It is apt to introduce bad law ⁸³ and has occasionally led to the erroneous interpretation of statutes ⁸⁴. The court ought not to be influenced or governed by any notions of hardship ⁸⁵. It must look hardships in the face rather than break down

⁷⁹ *R v Skeen* (1859) 28 I J M C 91 so held by nine judges against five. See *Lewes v Barnett* (1876) 6 Ch D 252.

⁸⁰ *Wingrove v Morgan* [1934] 1 Ch 423 at p 430 per Bennett J.

⁸¹ *Eastern Counties etc Ry v Marriage* (1862) 9 H L C 32 at p 52 per Bramwell B. See also Dig 1 3 3 to I 3 10.

⁸² *Per cur Munro v Butt* (1858) 8 E & B 754.

⁸³ *Winterbottom v Wright* (1842) 10 M & W 116 per Rolfe B. *Brand v Hammer Smith Ry* (1869) L R 2 Q B 241. *Adams v Graham* (1864) 33 L J Q B 71.

⁸⁴ *Cf e.g. Perry v Skinner* (1837) 2 M & W 471 with *R v Mill* (1850) 20 L J C P 16 and *R v Shiles* (1841) 1 Q B 919 and *Welch v Nash* (1807) 8 East 394 with *R v Phillips* (1866) L R 1 Q B 648. See *Re Palmer's Trade Mark* (1882) 21 Ch D 47.

⁸⁵ *Rhodes v Smethurst* (1838) 4 M & W 42 at p 63 per Lord Abinger. *Re Perkins* (1890) 24 Q B D 613 at p 618 per Lord Esher M R.

the rules of law,⁸⁶ and if in all cases of ordinary occurrence, the law in its natural construction, is not inconsistent, or unreasonable or unjust, that construction is not to be departed from merely because it may operate with hardship or injustice in some particular case⁸⁷

SECTION 3—CONSTRUCTION AGAINST IMPAIRING OBLIGATIONS OR PERMITTING ADVANTAGE FROM ONE'S OWN WRONG

On the general principle of avoiding injustice and absurdity, any construction would, if possible, be rejected (unless the policy and object of the Act required it) which enabled a person to defeat or impair the obligation of his contract by his own act or otherwise to profit by his own wrong. 'A man may not take advantage of his own wrong he may not plead, in his own interest, a self created necessity'⁸⁸ Thus in Act which authorised justices in certain circumstances, to discharge an apprentice from his indenture, 'on the master's appearance' before them would justify a discharge in his wilful absence. The Act it was observed must have a reasonable construction so as not to permit the master to take advantage of his own obstinacy. It would be very hard that supposing the master was profligate and ran away, the apprentice should never be discharged.⁸⁹

For similar reasons, the Vaccination Act 1867 (c 84), which authorised a justice to summon a parent to appear with his child before him for breach of its provisions, and upon his appearance 'to order the vaccination of the child if he should find that it had not already undergone that operation was held to authorise such an order without the appearance of the child when the parent refused to produce it. A literal construction making the production of the child a condition precedent to the making of the order, would have involved the supposition that the legislature had intended to allow the parent to defeat its object by disobeying the summons which it had ordered.⁹⁰

⁸⁶ *Berkeley Peerage* (1861) 4 Camp 419 *Jesson v Wright* (18 0) 2 Bligh 55 *Ford v Aetle* (1882) 9 Q B D 139 and *Kirk v Todd* (1882) 21 Ch D 484

⁸⁷ See Co Litt 97b 152b *Miller v Salomons* (1853) 7 Ex 475 *Williams v Roberts* (1852) 7 Ex 628 *Young v Leamington (Mayor)* (1882) 8 App Cas 517 H L. at p 527 per Lord Blackburn

⁸⁸ *Kish v Taylor* [1911] 1 KB 625 at p 634 per Fletcher Moulton L.J

⁸⁹ *Dutton's Case* (1701) 2 Salk 490 See *Gordon v G B Ry* (1881) 8 Q B D 44 Cf *R v Bucks* (1803) 3 East 342 and *R v Staffordshire* (1854) 23 L J M C 17

⁹⁰ *Dutton v Atkins* (1871) L R 6 Q B 373 *R v Cinque Ports JJ* (1886) 17 Q B D 191 Cf *Barnardo v Ford* [1892] A C 3 6

A parent who sent his child to the board school without also sending the school fees did not 'cause the child to attend the school within the meaning of the repealed Elementary Education Act 1870 (c 75) s 74⁹¹

A trustee in bankruptcy who has received a sum is liable to arrest under the provision in section 4 of the Debtors Act, 1869 (c 62), which makes a trustee liable to imprisonment for disobeying an order to pay a sum in his possession or his control though in fact he has spent it all⁹²

The provision of section 8 of the Real Property Limitation Act 1874 (c 57), that no action should be brought to recover certain sums of money within twelve years next after a present right to receive the same should have accrued to some person capable of giving a discharge for it, must be taken in its ordinary sense, and is not to be interpreted as referring to 'a present right to sue for the same,' which may be contingent on the doing of some act by the person entitled to receive the sum and may be delayed by him accordingly⁹³

Although the Gaming Act, 1710 (c 19), s 1⁹⁴ enacted that bills and notes founded on the consideration of money lost at play should be 'utterly frustrate void and of none effect, to all intents and purposes,' its operation was confined to preventing the drawer (or any person claiming under him⁹⁵) from recovering from the loser, but it left the instrument unaffected in the hands of an innocent indorsee for value suing the drawer⁹⁶. The statute was construed as if the words were voidable against certain persons only but were valid as regards others, and this still represents the law in the case of a bona fide holder without notice⁹⁷

Where a repealed Act⁹⁸ provided that if the purchaser at an auction refused to pay the auction duty when this was made

⁹¹ *London School Board v Wright* (1884) 12 Q B D 578 *London School Board v Wood* (1885) 15 Q B D 415

⁹² *Middleton v Chichester* (1871) L R 6 Ch 152 *Lewes v Barnett* (1876) 6 Ch D 252

⁹³ *Hornsey Loc Bd v Monarch Investment Bldg Soc* (1889) 24 Q B D 1 See now Limitation Act 1939 (c 21)

⁹⁴ Amended by the Gaming Act 1835 (c 41) ss 1 and 3

⁹⁵ *Bowyer v Bampton* (1741) 2 Stra 1155

⁹⁶ *Edwards v Dick* (1821) 4 B & Ald 212

⁹⁷ *Per cur Hay v Ayling* (1851) 16 Q B 423 *Woolf v Hamilton* [1898] 2 Q B 337 C A

⁹⁸ The Auctioners Licences Act 1776 (c 50)

a condition of sale, his bidding should be 'null and void to all intents and purposes,' it was held that the object of the enactment was completely attained by making the bidding voidable only at the option of the seller, thus avoiding the injustice and impolicy of enabling a man to escape from the obligation of his contract by his own wrongful act, which a literal construction would have involved²⁹

A special Act which provided that a company should not issue any shares, and that no share should vest in the person accepting it until one fifth of its amount was paid up and that the shareholder who had not paid up one fifth should have no right of property in the shares allotted to him or capacity to transfer them, was considered as limited in its application to the protection of the public. To construe it as applying also to the benefit of the shareholder would have been to absolve him from liability to pay up calls until he had paid the requisite proportion or in other words to enable him to profit by his own default a consequence too unjust and unreasonable to have been intended.³

On similar grounds probably enactments which avoid or abridge the effect of conveyances, contracts and instruments have generally received a construction more compatible with the obvious object and policy of the legislature than with the natural meaning of the language. Thus the Parliamentary Elections Act, 1695 (c 25) which declared void all conveyances of property, 'in order to multiply voices (for voting in parliamentary elections) did not apply where the vendor was not privy to the illegal object⁴ and even where there was privity it was valid and effectual as between the parties to it to pass the interest⁵

Notwithstanding that the Infants Relief Act 1874 (c 62) s 1, makes all contracts for the supply to an infant of goods which are not necessities absolutely void the infant cannot recover

²⁹ *Malins v Freeman* (1838) 7 L.J.C.P. 212

¹ *East Gloucestershire Ry v Bartholomew* (1868) L.R. 3 Ex 15 *McEwan v West London Wharves etc., Co* (1871) L.R. 6 Ch 655 Cf however *R v Staffordshire* (1806) 7 East 549 *Mellinraith v Dublin etc Ry* (1871) L.R. 7 Ch 139 and *Ex p Parbury* (1861) 30 L.J.Ch 513

² *Marshall v Bowen* (1845) 14 L.J.C.P. 149 *Hoyland v Bremner* (1846) 15 L.J.C.P. 133

³ *Phillipotts v Phillipotts* (1850) 20 L.J.C.P. 11

the money he has paid for them if he has used or consumed them⁴

Although the Sunday Observance Act 1677 (c 7) has the effect of avoiding contracts made on Sunday by and with tradesmen and other classes of persons in the course of their ordinary calling, the invalidity affects only those persons who, when contracting with them knew their calling those who dealt with them in ignorance of it would be entitled to sue on the contract⁵

In all these cases the intention of the legislature was considered as completely carried out by the restricted scope given to its enactments. But where, having regard to the general policy of the Act as well as to the language and the structure of the sentence it would not have that effect the words abridging or avoiding the effect of instruments, contracts and dealings would receive their primary and natural meaning. Thus in the Bills of Sale Act 1854 (c 36), assignments not registered were null and void in the full and natural sense of the words,⁶ and in the amending Act of 1882 (c 43) the provision of section 9 which avoids a bill of sale unless made in accordance with the form in the schedule has been held to avoid it *in toto* and not merely as regards the personal chattels comprised in it so that a covenant contained in it for the payment by the grantee of the principal and interest thereby secured was said to be rendered inoperative⁷

Where an Act recited the mischiefs of binding out apprentices without the sanction of the justices of the peace and enacted that no indenture of such apprenticeships should be valid unless approved by two justices under their hands and seals it was held that an indenture, approved under hand but not under seal, was absolutely void⁸

⁴ *Valentini v Canali* (1889) 42 QBD 166. For another instance where void has been held to mean voidable to avoid injustice see *Re Brall* [1893] 2 QB 381 and see also *Crawshaw v Harrison* [1894] 1 QB 79 and *Cory & Son Ltd v France Fenwick & Co Ltd* [1911] 1 KB 114.

⁶ *Blossome v Williams* (1824) 3 B & C 232. *Drury v Defontaine* (1808) 1 Taunt 131.

⁷ See e.g. *Richards v James* (1867) 1 R 2 QB 285. Cf *Ex p Blainberg* (1883) 23 Ch O 254.

⁸ *Davies v Rees* (1886) 17 QBD 408. But see *Heseltine v Simmons* [1892] 2 QB 547 in which it was held that where a bill is avoided under s 8 for an untrue statement as to consideration it does not necessarily avoid the covenant to repay under s 9.

⁹ *R v Stoke Damerel* (1836) 7 B & C 569. *R v Banbergh* (1843) 2 B & C 222.

The same effect was given (in an action by the trustees against their lessee for rent which had been made payable to them) to a local Act which provided that every lease of turnpike tolls should make the rent payable to the treasurer, in default of which it should be 'null and void'.

It may probably be said that where a statute not only declares a contract void but imposes a penalty for making it, it is not voidable merely.¹⁰ The penalty makes it illegal.¹¹ In general, however, it would seem that where the enactment has relation only to the benefit of particular persons, the word 'void' would be understood as 'voidable' only at the election of the persons for whose protection the enactment was made and who are capable of protecting themselves but that, when it relates to persons not capable of protecting themselves or when it has some object of public policy in view which requires the strict construction, the word receives its natural full force and effect.¹²

SECTION 4¹³—RETROSPECTIVE OPERATION

Upon the presumption that the legislature does not intend what is unjust rests the leaning against giving certain statutes a retrospective operation.¹⁴ *Nova constitutio futuris formam imponere debet non praeteritis*. They are construed as operating only in cases or on facts which come into existence after the statutes were passed¹⁵ unless a retrospective effect be clearly intended.¹⁶ It is a fundamental rule of English law that no statute shall be construed

⁹ *Pearse v Morrice* (1834) 2 A. & C. 84. Cf. *Hodson v Sharpe* (1808) 10 East 350.

¹⁰ *Gye v Felton* (1813) 4 Taunt. 876.

¹¹ But this distinction must be understood to apply only to cases where the statute enacts that an agreement or deed made in violation of its provisions shall be wholly void. *Doe v Pitchers* (1815) 6 Taunt. 359 at p. 369 per Gibbs C.J.

¹² *R v Hipswell* (1828) 8 B. & C. 471 per Bayley J. *Betham v Gregg* (1834) 10 Bing. 352. *Storie v Winchester* (1850) 19 L.J.C.P. 217. See further Stroud's *Judicial Dictionary* and *Supp. tit. Void* and see also *Moneylenders Acts 1900-1927* and cases thereon. *Chitty on Contracts* 22nd ed. Vol. I Chap. 12.

¹³ That page seems to me to contain an almost perfect statement of the principle that you do not give a statute retrospective operation unless there is perfectly clear language showing the intention of Parliament that it should have a retrospective application. *Croxford v Universal Insurance Co* [1936] 2 K.B. 253 at p. 281 per Scott L.J. referring to *Maxwell*.¹⁴ 2 Inst. 292.

¹⁵ *Midland Ry v Pye* (1861) 10 C.B. (N.S.) 191 per Erle C.J. *R v Ipswich* (1877) 2 Q.B.D. 269 per Cockburn C.J. *Young v Hughes* (1859) 4 H. & N. 76. *Fanshott v Taylor* (1855) 4 E. & B. 910 per Pollock C.B. *Young v Adams* [1898] A.C. 469. *London Fan & Motor Co v Silverman* [1942] 1 All E.R. 307.

¹⁶ *Bank of Athens v Royal Exchange Assurance* [1938] 1 K.B. 771.

to have a retrospective operation unless such a construction appears very clearly in the terms of the Act, or arises by necessary and distinct implication ¹⁷

Perhaps no rule of construction is more firmly established than this that a retrospective operation is not to be given to a statute so as to impair an existing right or obligation, otherwise than as regards matter of procedure, unless that effect cannot be avoided without doing violence to the language of the enactment. If the enactment is expressed in language which is fairly capable of either interpretation, it ought to be construed as prospective only ¹⁸. But if the language is plainly retrospective it must be so interpreted ¹⁹. At the same time it is laid down that regard must be paid to the dominant intention, and the Act in question [the Law Reform (Married Women and Tortfeasors) Act, 1935 (c 30)] was held to be retrospective and was construed as putting an end to the liability of a husband for his wife's torts whenever committed unless legal proceedings had been started before the passing of the Act ²⁰.

Where an Act abrogated the doctrine of common employment it was held that although that Act was not retrospective the doctrine ought not to be extended in any cases in which it might still apply ²¹.

A statute is not to be construed to have a greater retrospective operation than its language renders necessary ²². Even in construing a section which is to a certain extent retrospective the maxim ought to be borne in mind as applicable whenever the line is reached at which the words of the section cease to be plain ²³. For it is to

¹⁷ This statement of the fundamental rule was cited and approved in *West v Gwynne* [1911] 2 Ch 15 per Kennedy LJ see also *Smith v Callander* [1901] A C 297. *Re Snowdown Colliery* (1925) 94 L J Ch 305 CA. cf *Ingle v Farrand* [1927] A C 417 428.

¹⁸ *Re Athlumney* [1898] 2 Q B 551 at p 552 per Wright J. And see *London Fan & Motor Co v Silverman* [1942] 1 All E R 307 and *Langford Property v Paj* [1943] 2 All E R 687.

¹⁹ *R v Oliver* [1944] 1 K B 68 76 where this page is referred to and see *D P P v Lamb* [1941] 2 K B 89 4 case in which the penalty was increased by Order in Council after the relevant offences had been committed by the respondents.

²⁰ *Barber v Pigden* [1937] 1 K B 664 673.

²¹ *Smedley v Moura Colliery* [1948] WN 467.

²² *Lauri v Renad* [1892] 3 Ch 421 per Lindley LJ. *Re Nautilus Steam Shipping Co*.

Ex p Gibbs & Co [1936] 1 Ch 17 26.

²³ *Reid v Reid* (1886) 31 Ch D 409 per Bowen LJ. *Main v Stark* (1890) 15 App Cas 388. *Reynolds v Att Gen for Nova Scotia* [1896] A C 240.

The same effect was given (in an action by the trustees against their lessee for rent which had been made payable to them) to a local Act which provided that every lease of turnpike tolls should make the rent payable to the treasurer, in default of which it should be "null and void" *.

It may probably, be said that where a statute not only declares a contract void but imposes a penalty for making it, it is not voidable merely ¹⁰. The penalty makes it illegal ¹¹. In general, however, it would seem that where the enactment has relation only to the benefit of particular persons, the word "void" would be understood as 'voidable' only at the election of the persons for whose protection the enactment was made and who are capable of protecting themselves but that, when it relates to persons not capable of protecting themselves, or when it has some object of public policy in view which requires the strict construction the word receives its natural full force and effect ¹².

SECTION 4 ¹³—RETROSPECTIVE OPERATION

Upon the presumption that the legislature does not intend what is unjust rests the leaning against giving certain statutes a retrospective operation ¹⁴. *Nova constitutio futuris formam imponere debet, non praeteritis*. They are construed as operating only in cases or on facts which come into existence after the statutes were passed ¹⁵ unless a retrospective effect be clearly intended ¹⁶. It is a fundamental rule of English law that no statute shall be construed

* *Pearse v Morrice* (1834) 2 A. & E. 84. Cf. *Hodson v Sharpe* (1808) 10 East 330.

¹⁰ *Gye v Felson* (1813) 4 Taunt. 876.

¹¹ But this distinction must be understood to apply only to cases where the statute enacts that an agreement or deed made in violation of its provisions shall be wholly void. *Doe v Fitchers* (1815) 6 Taunt. 359 at p. 369 per Gibbs C.J.

¹² *R v Hipswell* (1828) 8 B. & C. 471 per Bayley J. *Betham v Gregg* (1834) 10 Bing. 352. *Storie v Manchester* (1850) 19 L.J.C.P. 217. See further Stroud's *Judicial Dictionary* and Supp. tit. Void and see also Moneylenders Acts 1900-1927 and cases thereon. *Chitty on Contracts* 22nd ed., Vol. I Chap. 12.

¹³ That page seems to me to contain an almost perfect statement of the principle that you do not give a statute retrospective operation unless there is perfectly clear language showing the intention of Parliament that it should have a retrospective application. *Croxford v Universal Insurance Co* [1936] 2 K.B. 253 at p. 281 per Scott L.J., referring to *Maxwell* ¹⁴ 2 Inst. 292.

¹⁵ *Midland Ry v Pye* (1861) 10 C.B. (N.S.) 191 per Erle C.J. *R v Ipswich* (1877) 2 Q.B.D. 269 per Cockburn C.J. *Young v Hughes* (1859) 4 H. & N. 76. *Vansittart v Taylor* (1855) 4 E. & B. 910 per Pollock C.B. *Young v Adams* [1898] A.C. 469. *London Fan & Motor Co v Silverman* [1942] 1 All E.R. 307.

¹⁶ *Bank of Athens v Royal Exchange Assurance* [1938] 1 K.B. 771.

to have a retrospective operation unless such a construction appears very clearly in the terms of the Act, or arises by necessary and distinct implication¹⁷

'Perhaps no rule of construction is more firmly established than this that a retrospective operation is not to be given to a statute so as to impair an existing right or obligation otherwise than as regards matter of procedure, unless that effect cannot be avoided without doing violence to the language of the enactment. If the enactment is expressed in language which is fairly capable of either interpretation it ought to be construed as prospective only'¹⁸ But if the language is plainly retrospective it must be so interpreted¹⁹ At the same time it is laid down that regard must be paid to the dominant intention and the Act in question [the Law Reform (Married Women and Tortfeasors) Act, 1935 (c 30)] was held to be retrospective and was construed as putting an end to the liability of a husband for his wife's torts whenever committed unless legal proceedings had been started before the passing of the Act²⁰

Where an Act abrogated the doctrine of common employment it was held that although that Act was not retrospective the doctrine ought not to be extended in any cases in which it might still apply²¹

A statute is not to be construed to have a greater retrospective operation than its language renders necessary.²² Even in construing a section which is to a certain extent retrospective the maxim ought to be borne in mind as applicable whenever the line is reached at which the words of the section cease to be plain.²³ For it is to

¹⁷ This statement of the fundamental rule was cited and approved in *West v Gwynne* [1911] 2 Ch 15 per Kennedy L.J. see also *Smith v Callander* [1901] A.C. 297. *Re Snowdown Colliery* (1925) 94 L.J.Ch. 305 C.A. cf *Ingle v Farrand* [1927] A.C. 417 4-8.

¹⁸ *Re Athlumney* [1898] 2 Q.B. 551 at p. 552 per Wright J. And see *London Fan & Motor Co. v Silverman* [1942] 1 All E.R. 307 and *Langford Property v Paj s* [1943] 2 All E.R. 687.

¹⁹ *R v Oliver* [1944] 1 K.B. 68-76 where this passage is referred to and see *D.P.P. v Lumb* [1941] 2 K.B. 89 a case in which the penalty was increased by Order in Council after the relevant offences had been committed by the respondents.

²⁰ *Barber v Pigden* [1937] 1 K.B. 664-673.

²¹ *Smedley v Moira Colliery* [1948] W.N. 467.

²² *Laurie v Renad* [1892] 3 Ch. 421 per Lindley L.J. *Re Nautilus Steam Shipping Co. Ex p. Gibbs & Co.* [1936] 1 Ch. 17-26.

²³ *Reid v Reid* (1886) 31 Ch.D. 409 per Bowen L.J. *Main v Stark* (1890) 15 App. Cas. 388. *Reynolds v Att. Gen. for Nova Scotia* [1896] A.C. 240.

be observed that the retrospective effect of a statute may be partial in its operation

Thus it has been said that section 35 of the Divided Parishes and Poor Law Amendment Act, 1876 (c 61), which contained a code of transmitted status in relation to poor law settlement, must be considered as fully retrospective for all purposes except only as regards adjudications made before the commencement of the Act, so that, to determine the settlement of children born after 1876 it may be that their father's settlement is governed by the section even though his settlement, for the purposes of his own removal, is not affected by it ²⁴

Retrospective Operation as regards Vested Rights

It is chiefly where the enactment would prejudicially affect vested rights, or the legality of past transactions, or impair contracts, that the rule in question prevails. Every statute, it has been said which takes away or impairs vested rights acquired under existing laws, or creates a new obligation or imposes a new duty, or attaches a new disability in respect of transactions or considerations already past, must be presumed, out of respect to the legislature,²⁵ to be intended not to have a retrospective operation ²⁶

Where vested rights are affected *prima facie* it is not a question of procedure. ²⁷ 'There is nothing in the Act of 1938 which is intended to alter past rights which became vested before the new Act came into operation by reason of the parties acting upon and being entitled to act upon the law as it stood before the new Act came into operation' ²⁸

The provision of the Statute of Frauds that no action should

²⁴ *Bath v Bernick* [1892] 1 Q.B. 731

²⁵ *Chancellor Kent Dash v Van Kleeck* (1811) 7 Johnson 503 *Ward v British Oak Insurance Co* [1932] 1 K.B. 392

²⁶ *Story J Soc for Propag of Gospel v Wheeler* (1814) 2 Gallison 139 *Chase C J Calder v Bull* (1872) 3 Dallas 390 cited by *Willes J Phillips v Eyre* (1871) L.R. 6 Q.B. 1 where the distinction between retrospective and *ex post facto* legislation is indicated *Lopez L.J. Re Fulborough School Board Election* [1894] 1 Q.B. 737 But see *R v Line* (1875) L.R. 10 Q.B. 195 and *Re a Solicitors Clerk* [1957] 1 W.L.R. 1216 In the latter case the difficulty was avoided by describing the statute as not retrospective because the disability (disqualification from acting as a solicitor's clerk) operated only *in futuro* from the date of the judgment (*sed quare*)

²⁷ *National Real Estate and Finance Co v Hassan* [1939] 2 K.B. 61 66

²⁸ *Ibid* p. 74 per Scott L.J.

be brought to charge any person on any agreement made in consideration of marriage, unless the agreement were in writing was held not to apply to an agreement which had been made before the Act was passed ²⁹

The Charitable Uses Act, 1735 (c 36),³⁰ in the same way was held not to apply to a devise made before it was enacted ³¹

The Apportionment Act, 1870 (c 35) which enacted that after the passing of the Act rents were to be considered as accruing from day to day, like interest, and to be apportionable in respect of time accordingly, would seem not to apply to a will made before the Act, though the testator died after it came into operation ³² The testator was presumed to have in view the state of the law when he made his will ³³ The contrary presumption that the testator who left his will unaltered after the Act was passed intended that it should operate on the will ³⁴ would imply that he knew that the law had been changed

It was held that the Gaming Act, 1845 (c 109), which made all wagers void and enacted that no action should be brought or maintained for a wager, applied only to wagers made after the Act was passed ³⁵

The Gaming Act 1892 (c 9) which prevented a letting agent from recovering from his employer sums paid for debts, was held not to prevent such recovery where the sums had been paid before the passing of the Act ³⁶

The Gaming Act 1922 (c 19) which repealed section 2 of the Gaming Act, 1835 (c 41) did not render incompetent an action under the Act of 1835 begun before the Act of 1922 was passed ³⁷

²⁹ *Gilmore v Shuter* (1678) 2 Lev 227 2 Mod 310 *Ash v Abdy* (1678) 3 Swanst 664 *Doe v Page* (1844) 5 Q B 767 *Doe v Bold* (1847) 11 Q B 127

³⁰ Repealed save part of s 5 by the Mortmain and Charitable Uses Act 1888 (c 42) s 13

³¹ *Att Gen v Lloyd* (1747) 3 Atk 551 *Ashburnham v Bradshaw* (1740) 2 Atk 36

³² *Jones v Ogle* (1872) L R 8 Ch 192 but see *Capson v Capson* (1874) 43 L J Ch 677 *Brownrigg v Pike* (1882) 51 L J P 29 *Constable v Constable* (1879) 48 L J Ch 6-1

³³ *Re March* (1884) 27 Ch D 166 but see *Re Bridger* [1894] 1 Ch 297 and *Re Llanover* [1903] 2 Ch 330

³⁴ See *Hasluck v Pedley* (1874) L R 19 Eq 271

³⁵ *Moon v Durden* (1848) 2 Ex 22 on which see *West v Gwynne* [1911] 2 Ch 1 per Buckley LJ *Pettambersdass v Thackoorseydass* (1850) 7 Moo P C 239 See *Ex p White* (1864) 33 L J Bank 22

³⁶ *Knight v Lee* [1893] 1 Q B 41

³⁷ *Beadling v Goll* (1922) 39 T L R 128 cf *Bowling v Camp* (1922) 39 T L R, 31

nor even an action begun after the Act of 1922 was passed but in respect of causes arisen before that date ³⁸

The Pacific Islanders Protection Act, 1872 (c 19), which made it unlawful for a vessel to carry native labourers of the Pacific Islands without a licence did not apply to a voyage begun before the Act was passed ³⁹

Where one of the ingredients of an offence had been committed after the passing of the Act which created the offence, but before the Act came into operation, the fact that the other ingredients were committed subsequently did not make the offence one within the Act ⁴⁰

The Bills of Sale Act (1878) Amendment Act, 1882 (c 43) which made void bills of sale not registered within seven days of their execution was held not to apply to instruments executed before the Act came into operation. Compliance, it is evident, would have been impossible where the deed had been executed more than seven days before the Act was passed ⁴¹

The Extra Parochial Places Act, 1857 (c 19) which declared that extra parochial places should for poor law and other purposes be deemed parishes was held not retrospective so as to confer the status of irremovability on a pauper who had resided in such a place for five years before the Act ⁴²

If a statute is passed which renders the performance of a contract impossible the contract is cancelled and the statute operates retrospectively. Where H covenants not to do an act or thing which was lawful to do and an act of parliament comes after and compels him to do it the statute repeals the covenant so if H covenants to do a thing which is lawful and an act of parliament comes in and hinders him from doing it the covenant is repealed. But if a man covenants not to do a thing which was then unlawful

³⁸ *Henshall v Porter* [1923] 2 K. B. 193

³⁹ *Burns v Nowell* (1880) 5 Q. B. D. 444

⁴⁰ Bankruptcy Act 1890 (c 71) s. 26 see now Bankruptcy Act 1914 (c. 59) s. 154. *R v Griffiths* [1891] 2 Q. B. 145

⁴¹ *Hickson v Darlow* (1883) 23 Ch. D. 690

⁴² *R v St Sepulchre* (1859) 28 L. J. M. C. 187. *R v Ipswich Union* (1877) 2 Q. B. D. 269. *Sunderland v Sussex* (1881) 5 Q. B. D. 99. *Barton Regis v Liverpool* (1878) 3 Q. B. D. 295. *Gardner v Lucas* (1878) 3 App. Cas. 582

and an act comes and makes it lawful to do it, such act of parliament does not repeal the covenant ' 43

The enactments of the Patents, Designs and Trade Marks Act, 1883 (c 57) were held not to affect any patents granted before the commencement of the Act 44 and it has been decided that the repealed International Copyright Act, 1886 (c 33), s 6 was not to be construed so as to revive or re create a right which had expired before it was passed, or take away from the public the right which they had acquired under previous legislation 45

The Married Women's Property Act, 1882 (c 75) s 1 (4) did not entitle a plaintiff, who was suing a married woman upon a promissory note made by her before the passing of the Act to have judgment against her in such terms as to be available against separate property to which she became entitled after the date of the note 46 Nor did it operate upon property falling into the possession of a married woman after the passing of the Act to which she had acquired a title before so as to make it her separate estate 47

Even a statute which confers a benefit, such as abolishing a tax, would not be construed retrospectively to relieve the persons subject to the burden before it was abolished An Act passed in August, providing that on all goods captured from the enemy and made prize of war a deduction of one third of the ordinary duties should be made was held not to apply where the prize with her cargo though condemned in September had been brought into port in June when certain duties accrued due 48

The repealed Bankruptcy Act 1849 (c 106) which made a deed of arrangement now or hereafter entered into by a trader with six sevenths of his creditors binding on the non executing

43 *Holt C J Brewster v Kitchell* (1697) 1 Salk 198 *cf Doe v Rugeley* (1844) 6 QB 107 *Newington L B v Cottingham L B* (1879) 12 Ch D 725 *Baily v De Crespigny* (1869) L.R. 4 Q.B. 180

44 *Re Brandon* (1884) 9 App Cas 589 Contrast the Patents and Designs Act 1932 (c 32) s 14 This Act shall apply to patents granted before as well as after the passing of this Act

45 *Lauri v Renad* [1892] 3 Ch 402 For the present law as to existing and "substituted right see the Copyright Act 1956 (4 & 5 Eliz. 2 c 74)

46 *Turnbull v Forman* (1885) 15 Q.B.D. 234 Subs. (4) of s 1 of the Act of 1882 is repealed by the Married Women's Property Act 1893 (c 63) s. 4

47 *Reid v Reid* (1886) 31 Ch D 402.

48 *Prince v U.S* (1814) 2 Gallison 204

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⁴¹ *Hickson v Darlow* (1883) 23 Ch D 690

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Even a statute which confers a benefit, such as abolishing a tax would not be construed retrospectively to relieve the persons subject to the burden before it was abolished An Act passed in August providing that on all goods captured from the enemy and made prize of war a deduction of one third of the ordinary duties should be made was held not to apply where the prize with her cargo though condemned in September had been brought into port in June when certain duties accrued due ⁴⁸

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⁴⁷ *Reid v Reid* (1886) 31 Ch D 402

⁴⁸ *Prince v U S* (1814) 2 Gallison 204

creditors at the expiration of three months after they should have had notice, was held to apply only to deeds executed after the passing of the Act ⁴⁹ To apply such an enactment to past transactions, even though the property had been completely distributed among the creditors who had signed, would have been so unjust that it was expedient to seek any means of getting rid of the apparent effect of the word now, which was accordingly understood as restricted to arrangements not completed but yet binding in equity at the time when the Act was passed

A non trader was held not liable to adjudication as a bankrupt in respect of a debt contracted before the enactment, which first made non traders liable to the bankruptcy laws ⁵⁰

The provisions of sections 32 and 34 of the Bankruptcy Act, 1883 (c 52) which are still in force, and which provide that where a debtor is adjudged bankrupt he shall be subject to certain disqualifications, were held to disqualify those persons only who were made bankrupt after the passing of the Act ⁵¹

Section 1 of the Mercantile Law Amendment Act, 1856 (c 97) (repealed by section 60 of the Sale of Goods Act 1893 (c 71)) which provided that no *fieri facias* should prejudice the title to goods of a bona fide purchaser for value before actual seizure under the writ, was held not to apply where the writ had been delivered to the sheriff before the Act was passed As the execution creditor had the goods already bound by the delivery of the writ the statute, if retrospective would have divested him of a right which he had acquired ⁵²

Section 14 of the Mercantile Law Amendment Act, 1856 (c 97) which provided that a debtor shall not lose the benefit of certain Statutes of Limitation by his co debtor's payment of interest, or part payment of the principal was held not to affect the efficacy of such a payment made before the Act was passed ⁵³ A different

⁴⁹ 12 & 13 Vict (c 106) *Wagh v Middleton* (1853) 8 Ex 352 *Marsh v Higgins* (1850) 19 LJ CP 297 *Larper v Bibby* (1855) 5 HLC 481 *Noble v Gadban* (1855) 5 HLC 504 *Re Phoenix Bessemer Co* (1876) 45 LJ Ch 11 *Reed v Higgins* (1863) 32 LJ CP 131 See now Bankruptcy Act 1914 (c 59) s 16

⁵⁰ *Williams v Harding* (1866) LR 1 HL 9

⁵¹ *Re Pulborough School Board Election* [1894] 1 QB 725 *Re Thompson* (1919) 88 LJ KB 646

⁵² *Williams v Smith* (1859) 28 LJ Ex 286

⁵³ *Jackson v Woolley* (1858) 27 LJ QB 448 See now Limitation Act 1939 (c 21) s 25

decision would have deprived the creditor of a right of action against one of his debtors

The provision in section 10 of the Judicature Act, 1875 (c 77) that in winding up companies whose assets are insufficient the bankruptcy rules as to the rights of creditors and other matters should apply, was held not to reach back to a company already in liquidation when the Act was passed ⁵⁴

Nor is a statute retrospective, in the sense under consideration because a part of the requisites for its action is drawn from a time antecedent to its passing ⁵⁵

On the other hand section 5 of the Mercantile Law Amendment Act 1856 (c 97) which entitles a surety who pays the debt of his principal to an assignment of the securities for it held by the creditor would apply to the case of a surety who had entered into the suretyship before the Act but had paid off the debt after it came into operation ⁵⁶

Section 2 of the Infants Relief Act 1874 (c 62), which enacted that no action should be brought on a ratification made after majority, of a contract made during infancy, was held to apply to ratifications of contracts made before the Act was passed ⁵⁷

The Court of Chancery which acquired jurisdiction under section 4 of the Law of Property Amendment Act 1859 (c 35) ⁵⁸ to relieve in respect of the forfeiture of a lease in consequence of a breach of a covenant to insure exercised this new jurisdiction where the breach occurred after, but the lease had been made before, the Act was passed ⁵⁹

The provision of section 14 of the Conveyancing Act 1881 (c 41) ⁶⁰ which relieved tenants against forfeiture for breach of covenant was held to apply to a case where judgment had been already given before the Act was passed and the landlord might have

⁵⁴ *Re Suche & Co* (1875) 1 Ch D 48 See now Companies Act 1948 (c 38) s 316

⁵⁵ *R v St Mary Whitechapel* (1843) 12 Q B 127 per Lord Denman *R v Christ church* (1849) 12 Q B 149 See *R v Portsea* (1881) 7 Q B D 384 *Ex p Dawson* (1875) L R 19 Eq 433 *Re a Solicitor s Clerk* [1957] 1 W L R 1216

⁵⁶ *De Wolf v Lindsell* (1868) L R 5 Eq 209

⁵⁷ *Ex p Kibble* (1875) L R 10 Ch 373

⁵⁸ See now Law of Property Act 1925 (c 20) s 146

⁵⁹ *Page v Bennett* (1855) 29 L J Ch 398

obtained possession but for a stay of proceedings to give the tenant time to appeal ⁶⁰

Section 3 of the Conveyancing and Law of Property Act 1892 (c 13) applied to 'all leases' whether executed before or after the commencement of the Act, and in the absence of express provisions to the contrary, engrafted, upon every covenant against assignment or underletting without consent, a proviso that no fine or sum of money in the nature of a fine shall be payable in respect of such consent ⁶¹

Section 8 of the Metropolitan Water Board (Charges) Act 1907 (c clxxi) is retrospective in removing from the Board the duty of providing laying down and maintaining the water communication pipe and imposing that duty on the owner or occupier of the premises supplied with water ⁶²

Section 6 of the Married Women's Property (Scotland) Act 1881 (c 21) applies to marriages entered into before the passing of that Act as well as to those contracted subsequently ⁶³

Pending Actions

In general when the law is altered during the pendency of an action the rights of the parties are decided according to the law as it existed when the action was begun unless the new statute shows a clear intention to vary such rights ⁶⁴

Thus section 32 of the Medical Act 1858 (c 90) which, as amended by subsequent statutes, enacted that no person should after January 1 1859 recover any charge for medical treatment unless he shall prove at the trial that he was on the medical register was held not to apply to an action for medical services begun before that date but tried after it ⁶⁵

An administration bond given to the Ordinary not being assignable until the Court of Probate Act 1858 (c 95) an action begun

⁶⁰ *Quilter v Mapleson* (1882) 9 Q & D 672 distinguished as being a matter concerned with procedure only *Re a Debtor* (No 490 of 1935) [1936] Ch 237 at p 242 per Lord Wright MR

⁶¹ *West v Gwynne* [1911] 2 Ch 15 See now Law of Property Act, 1925 (c 20) s 144

⁶² *Batt v Metropolitan Water Board* [1911] 2 K B 965 *Mist v Metropolitan Water Board* (1915) 84 L J K B 2041

⁶³ *Paterson v Poe* (1883) 8 App Cas 678

⁶⁴ Such intention may be by implication *Hutchinson v Jauncey* [1950] 1 K B 574 C A *Jonas v Rosenberg* [1950] 2 K B 52 C A

⁶⁵ *Thistleton v Frewer* (1862) 31 L J Ex 230 *Wright v Greenroy* (1861) 31 L J Q B 4 *Cf Leman v Housley* (1875) L R 10 Q B 66

by the assignee before that Act was passed was held not maintainable after it came into operation ⁶⁶

Where however, an Act is passed between the trial of an action and the hearing of an appeal that Act will be taken into account at the appeal, though, unless it is of retrospective effect it will not affect the rights of the parties. But it may serve to interpret the earlier legislation ⁶⁷

Declaratory Acts

If a statute is in its nature a declaratory Act the argument that it must not be construed so as to take away previous rights is not applicable

Thus, the Customs and Inland Revenue Act, 1889 (c 7) s 11, declaring that the provisions of the Customs and Inland Revenue Act 1881 (c 12), s 38, with regard to the imposition of stamp duties upon personal property passing under voluntary settlements should be construed as if marriage settlements were included, though until then they had not been regarded as voluntary settlements resulted in a decision that the provisions of the later Act were retrospective and that the construction provided by it must be applied to the description of the property sought to be taxed, and thus although the property passed to the beneficiaries and proceedings to recover the duty were taken before the second Act came into force ⁶⁸

Retrospective Intention

It is hardly necessary to add that whenever the intention is clear that the Act should have a retrospective operation it must unquestionably be so construed,⁶⁹ even though the consequences may appear unjust and hard ⁷⁰

Thus the Wine and Beerhouse Amendment Act 1870 (c 29), s 14 ⁷¹ which enacted that every person convicted of felony

⁶⁶ *Young v Hughes* (1859) 4 H & N 76

⁶⁷ *Stovin v Fairbrass* (1919) 88 L J K B 1004. But see *Re Fernald* [1960] A C. 965 H L

⁶⁸ *Att Gen v Theobald* (1890) 24 Q B D 557. *Scott v Craig & Representatives* (1896) 24 Rettie 462. But see *Young v Adams* [1898] A C 469 D C

⁶⁹ See e.g. *Re Williams and Stepney* [1891] 2 Q B 257

⁷⁰ See e.g. *Stead v Carey* (1845) 14 L J C P 177. *Bell v Bilton* (1828) 4 Bing 615

⁷¹ Repealed Licensing (Consolidation) Act 1910 (c 24) s 112 and Sched 7. See now Licensing Act 1953 (c 46) s 30

should forever be disqualified from selling spirits by retail and that if any such person should take out or have taken out a licence for that purpose it should be void, was held to include a man who had been convicted of felony before, and had obtained a licence after, the Act was passed. Although the expression 'convicted of felony' might have been limited to persons who should thereafter be convicted, yet as the object of the Act was to protect the public from having beerhouses kept by men of bad character the language was construed in the sense which best advanced the remedy and suppressed the mischief though giving perhaps a retrospective operation to the enactment.⁷²

The Summary Jurisdiction (Married Women) Act, 1895 (c 39) s 4, which provided (*inter alia*) that any married woman 'whose husband shall have been guilty of persistent cruelty to her and shall by such cruelty or neglect have caused her to leave and live separately and apart from him, may apply to any court of summary jurisdiction for an order or orders under the Act, was held to be retrospective in its operation and to apply to acts of cruelty committed before the Act came into operation'.⁷³

After the passing of the Statute of Frauds Amendments Act 1828 (c 14) which enacted that in actions grounded upon simple contracts, no verbal promise should be deemed sufficient evidence of a new contract to bar the Limitation Act 1623 (c 16) it was held that such a promise given before the Act (which was then sufficient to bar the statute) could not be received in evidence in an action begun before but not tried until after the passing of the Act.⁷⁴ This decision has been supported on the ground that the time for deciding what is or is not evidence is when the trial takes place, and that when the Act told the judge what was and was not then to be evidence he was bound to decide in obedience to it.⁷⁵ But some stress is also to be laid on the circumstance that the Act did not come into operation until eight months after its passing for the concession

⁷² *Hitchcock v Hay* (1837) 6 A & E 943 *R v Fine* (1875) L.R. 10 Q.B. 195 Lush J dissenting considered in *Re Fulborough School Board* [1894] 1 Q.B. 725 *Chappell v Purday* (1843) 13 L.J. Ex. 7

⁷³ *Lane v Lane* [1896] P. 133

⁷⁴ *Hilliard v Lenard* (1829) Moo. & M. 297 *Towler v Chatterton* (1829) 6 Bing. 258 See Limitation Act 1939 (c 21) s 23

⁷⁵ *Marsh v Higgins* (1850) 9 C.B. 351 per Cresswell J But cf *supra* p. 212

of this interval seemed to show that the hardship in question had been in the contemplation of the legislature and had been thus provided for⁷⁶

An Act which was passed in August, but was not to come into operation till October, making non traders liable to bankruptcy, applied to a person who contracted a debt and committed an act of bankruptcy between those dates. It was considered that no injustice was done, since the Act had told him what would be the consequence of contracting the debt before he contracted it⁷⁷

On this ground also it was held that section 11 of the Summary Jurisdiction Act, 1848 (c 43), which limited the time for taking summary proceedings before justices to six months from the time when the matter complained of arose, was fatal to proceedings begun after the passing of the Act in respect of a matter which had arisen more than six months before it was passed,⁷⁸ though the interval between the passing of the Act and its coming into operation was only six weeks. If the Act had come into immediate operation, it was observed, the hardship would have been so great that the inference might have been against an intention to give it a retrospective operation but the provision suspending its operation for however short a time was to be taken as an intimation that the legislature had provided it as the period within which proceedings respecting antecedent matters might be taken⁷⁹

In the same way, section 10 of the Mercantile Law Amendment Act 1856 (c 97) which enacted that no person should be entitled to commence an action after the time limited by reason of his being abroad or in prison was held to apply to causes of action which had accrued before the Act was passed. But some weight was due to the circumstance that another section of the same Act kept alive in express terms a cause of action already accrued, and thus afforded the inference that no such intention had been entertained as none was expressed as regards cases under section 10⁸⁰

⁷⁶ *Towler v Chatterton* 6 Bing 264 per Park J

⁷⁷ *Ex p Rashleigh* (1875) 2 Ch D 9 CA Cf *Williams v Harding* (1866) L R 1 H L 9

⁷⁸ *R v Leeds Ry* (1852) 18 QB 343 *Ings v London & S W Ry* (1868) L R 4 C P 19

⁷⁹ *R v Leeds Ry* (1852) 18 QB 343 at p 346 per Lord Campbell

⁸⁰ *Cornill v Hudson* (1857) 27 L J Q B 8 *Pardo v Bingham* (1869) L R 4 Ch 735
See now Limitation Act 1939 (c 21) s 22

Retrospective Operation as regards Procedure

In both of the above cases the construction, though fatal to the enforcement of a vested right, by shortening the time for enforcing it, did not in terms take away any such right, and in both it seems to fall within the general principle that the presumption against a retrospective construction has no application to enactments which affect only the procedure and practice of the courts⁸¹ even where the alteration which the statute makes has been disadvantageous to one of the parties. It matters not that the effect of a procedural alteration is to make a prosecution under a penal Act possible where formerly it had been impossible⁸². Although to make a law punishable that which at the time when it was done was not punishable is contrary to sound principle, a law which merely alters the procedure may, with perfect propriety, be made applicable to past as well as future transactions⁸³ and no secondary meaning is to be sought for an enactment of such a kind. No person has a vested right in any course of procedure⁸⁴. He has only the right of prosecution or defence in the manner prescribed for the time being by or for the court in which he sues and, if an Act of Parliament alters that mode of procedure he has no other right than to proceed according to the altered mode⁸⁵. The remedy does not alter the contract or the tort: it takes away no vested right, for the defaulter can have no vested right in a state of the law which left the injured party without or with only, a defective remedy. If the time for pleading were shortened or new powers of amending were given it would not be open to the parties to gainsay such a change: the only right thus interfered with being that of delaying or defeating justice: a right little worthy of respect⁸⁶. Thus the repeal of the Sale of Goods Act 1893 (c 71) s 4 as to the need for a note or memorandum in writing deprived a defendant of the defence of the

⁸¹ *Wright v Hale* (1860) 30 L.J. Ex. 40. *The Idun* [1899] P 236. *Att Gen v Theobald* (1890) 24 Q.B.D. 557 at p 560. And see *Att Gen and Newton Abbot R.D.C. v Dyer* [1947] Ch 67 at pp 88-89.

⁸² *R v Chandra Dharma* [1905] 2 K.B. 335. *R v Austin* [1913] 1 K.B. 551.

⁸³ *Macaulay's History of England* 1st ed. Vol 3 p 715 and Vol 5 p 43. *Trials of Torrington and Fenwick* Chaps 16-23.

⁸⁴ *Costa Rica v Erlanger* (1874) 3 Ch.D. 69 per Mellish J. See e.g. *The Dumfries* and other cases ante pp 150-151.

⁸⁵ *Wright v Hale* (1860) 30 L.J. Ex. 40 at p 43 per Wilde B. *Att Gen v Sillem* (1864) 10 H.L.C. 704 per Lord Wensleydale. *Warner v Murdoch* (1877) 4 Ch.D. 752.

⁸⁶ See e.g. *Cornish v Hocking* (1853) 22 L.J.Q.B. 142. *Dash v Van Kleeck* (1811) 7 Johns. 503. *The People v Tibbetts* (1825) 4 Cowen 392.

absence of such a note notwithstanding that the writ was issued and the defence delivered before the repeal⁸⁷

But to deprive a suitor in a pending action of an appeal to a superior tribunal which belonged to him as of right is a very different thing from regulating procedure⁸⁸ The appellate court must give effect to the same law as that which was in force at the date of the earlier proceedings⁸⁹

The general principle however seems to be that alterations in procedure are retrospective, unless there be some good reason against it⁹⁰ Where, for instance, the defendant pleaded to an action for a small sum that the jurisdiction of the court had been taken away by a Court of Requests Act, and that Act was repealed after the plea but before the trial it was held that the plaintiff was entitled to judgment⁹¹

When the legislature gave a new remedy by the Admiralty Court Acts of 1840 and 1861,⁹² for enforcing rights in the Admiralty, those Acts were held to extend to rights which had accrued before the new remedy had been provided⁹³

The provision of the repealed section 128 of the Common Law Procedure Act, 1852 (c 76)⁹⁴ that the plaintiff might issue execution within six years from the recovery of a judgment without revival of the judgment, was held to apply to a judgment which had been recovered more than a year and a day before the Act was passed and which therefore could not have been put in force under the previous state of the law without revival⁹⁵

The power given to a married woman by the Married Women's Property Act, 1882 (c 75), s 1 (2) of suing in all respects as if she were a *feme sole*, was held to enable her so to sue in respect of torts

⁸⁷ *Craxfords (Ramsgate) Ltd v Williams and Steer Manufacturing Co Ltd* [1954] 3 All E R 17

⁸⁸ *Colonial Sugar Refining Co v Irving* [1905] A C 369 per Lord Macnaghten

⁸⁹ *Re a Debtor (No 490 of 1935)* [1936] 1 Ch 237 at p 243 per Lord Wright M R But see *Re Verna za* [1960] A C 965 H L

⁹⁰ *Gardner v Lucas* (1878) 3 App Cas 603 *Kimbray v Draper* (1868) L R 3 Q B 160 *Welby v Parker* [1916] 2 Ch 1

⁹¹ *Warne v Beresford* (1837) 6 L J Ex 192

⁹² C 65 s 6 and c 10 ss 6 35

⁹³ *The Alexander Larsen* (1841) 1 W Rob 283 See *The Ironsides* (1862) 31 L J P M & A 129

⁹⁴ Repealed by the S L R and Civil Procedure Act 1883 (c 49) s 3

⁹⁵ *Boodle v Davis* (1853) 8 Ex 351

or breaches of contract committed before the passing of the Act ⁹⁶

Section 37 of the Solicitors Act, 1843 (c 73), which made taxable solicitors bills for work done out of court and which also provided that from the passing of the Act, no solicitor should bring an action for costs until a month after he had delivered his bill, was held to apply to costs incurred before the passing of the Act ⁹⁷

On this principle it was held that section 31 of the Civil Procedure Act, 1833 (c 42) ⁹⁸ which provided that, in actions brought by executors the plaintiff should be liable for costs, was applicable to an action begun before the Act came into operation, ⁹⁹ and though *Littledale J* ¹ and afterwards *Parke B* ² disapproved of the decision it appears to have been generally concurred in by the courts ³

The Common Law Procedure Act 1860 (c 126) s 34 ⁴ which deprived a plaintiff in an action for a wrong of costs if he recovered by verdict less than £5, unless the judge certified in his favour, was held to apply to actions begun before the Act had come into operation but tried after, ⁵ and a similar effect was given to the County Courts Act Amendment Act, 1867 (c 142) as regards giving security for costs in the county courts ⁶

The provision which extended the time for making decrees nisi absolute from three to six months applied to suits pending when the Act came into operation ⁷

Where, under the provisions relating to vexatious litigants ⁸ the Attorney General procured an order against which an appeal

⁹⁶ *Weldon v Winslow* (1884) 13 Q B D 784. See also *Weldon v De Bathe* (1884) 14 Q B D 339. *Lowe v Fox* (1885) 15 Q B D 667. Cf *Re Lumley* [1894] 3 Ch 135.

⁹⁷ *Binns v Hey* (1843) 13 L J Q B 28. *Brooks v Bockett* (1847) 9 Q B 847. *Scadding v Eyles* (1846) 9 Q B 858. See Solicitors Act 1957 (c 27) ss 68-69.

⁹⁸ s 31 repealed by the Civil Procedure Acts Repeal Act 1879 (c 59) coupled with the S L R and Civil Procedure Act 1883 (c 49) s 4 (with saving for local or personal actions).

⁹⁹ *Freeman v Moyes* (1834) 1 A & E 338. *Pickup v Wharton* (1834) 2 C & M 405. *Grant v Kemp* (1834) 2 Cr & M 636. *Ex p Dawson* (1875) L R 19 Eq 433.

¹ *Freeman v Moyes* (1834) 1 A & E 338 at p 341.

In Pinhorn v Sonster (1853) 8 Ex 138.

² *Wright v Hale* (1860) 30 L J Ex 43 per Channell B. *Re Lord* (1855) 1 A & J 90 per Wood V C.

⁴ Repealed by S L R and Civil Procedure Act 1883 (c 49).

Wright v Hale (1860) 30 L J Ex 40.

⁵ *Kimbray v Draper* (1868) L R 3 Q B 160.

⁷ *Watton v Watton* (1866) L R 1 P D 227. The period is now three months again.

⁸ Supreme Court of Judicature (Consolidation) Act 1925 (c 49) s 51 (1).

was made, and the provisions were widened⁹ between the making of the order and the hearing of the appeal it was held that the Attorney General could cross appeal and obtain an order in the wider terms¹⁰

But a new procedure would be presumably inapplicable, where its application would prejudice rights established under the old¹¹ or would involve a breach of faith between the parties

For this reason those provisions of the repealed section 32 of the Common Law Procedure Act, 1854¹² which permitted error to be brought on a judgment upon a special case and gave an appeal upon a point reserved at the trial, were held not to apply where the special case was agreed to, and the point was reserved before the Act came into operation¹³

Where a special demurrer stood for argument before the passing of the Common Law Procedure Act 1852 (c 76) it was held that the judgment was not to be affected by that Act which abolished special demurrers but must be governed by the earlier law¹⁴ The judgment was, in strictness, due before the Act and the delay of the court ought not to affect it

In considering whether a statute was intended to be retrospective in its operation reference has been made to prescribed forms appended to rules made under the statute, and to the fact that their being headed the day of 189 indicated that they were not intended to apply to a period before 1890¹⁵

Where rights and procedure are dealt with together the intention of the legislature may well be that the old rights are to be determined by the old procedure and that only the new rights under the substituted section are to be dealt with by the new procedure

Section 8 of the Patents and Designs Act, 1919 (c 80) which substituted the court for the Treasury as the tribunal to determine

⁹ Supreme Court of Judicature (Amendment) Act 1959 (c 39) s 1

¹⁰ *Re Vernazza* [1960] A C 965 H L

¹¹ *Ex p Phoenix Bessemer Co* (1876) 45 L J Ch 11 But see *Re Vernaz a supra*

¹² Repealed by S L R and Civil Procedure Act 1883 (c 49) s 3

¹³ *Hughes v Lumley* (1854) 24 L J Q B 29 *Vansittart v Taylor* (1855) 4 E & B 910

¹⁴ *Pinhorn v Sonster* (1853) 8 Ex 138 *R v Crowan* (1850) 14 Q B 221 *Hobson v Neale* (1853) 8 Ex 131

¹⁵ Bankruptcy Act 1890 (c 71) s 25 section repealed by Deeds of Arrangement Act 1914 (c 47) and replaced by s 13 of that Act *Re Norman* [1893] 2 Q B 369 See *ante* pp 43 49-50

the compensation payable for the use of a patent by a government department and altered the nature of the rights of the Crown and the patentee, was held not to be retrospective to enable a patentee to proceed under it where the whole user of the patent by the Government was before the Act came into operation ¹⁸

¹⁸ *Re Hale's Patent* [1920] 2 Ch 377

CHAPTER 9

EXCEPTIONAL CONSTRUCTION

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SECTION 1—MODIFICATION OF THE LANGUAGE TO MEET THE INTENTION

WHERE the language of a statute in its ordinary meaning and grammatical construction leads to a manifest contradiction of the apparent purpose of the enactment or to some inconvenience or absurdity hardship or injustice presumably not intended a construction may be put upon it which modifies the meaning of the words, and even the structure of the sentence¹ This may be done by departing from the rules of grammar, by giving an unusual meaning to particular words by altering their collocation or by rejecting them altogether, under the influence no doubt, of an irresistible conviction that the legislature could not possibly have intended what its words signify, and that the modifications thus made are mere corrections of careless language and really give the true meaning Where the main object and intention of a statute are clear it must not be reduced to a nullity by the draftsman's unskilfulness or ignorance of the law, except in a case of necessity, or the absolute intractability of the language used² Nevertheless, the courts are very reluctant to substitute words in

¹ *Att Gen v Lockwood* (1842) 9 M & W 398 per Alderson B *Miller v Salomons* (1853) 7 Ex 475 *Jubb v Hull Dock Co* (1846) 9 Q B 443 per Lord Denman *Wigton v Snaith* (1851) 16 Q B 503 per Lord Campbell *Becke v Smith* (1836) 2 M & W 195 per Parke B *Wright v Williams* (1836) 1 M & W 99 *Hollingsworth v Palmer* (1849) 18 L J Ex 409 414 *Ex p Rashleigh* (1875) 2 Ch D 13 per James L J *Norman v Norman* [1950] 1 All E R 1082 Grot De B & P b 2 c 16 s 12 (4)

² *Salmon v Duncombe* (1836) 11 App Cas 627 *R v Vasey* [1905] 2 K B 748 *R v Ettridge* [1909] 2 K B 24 See *Rose v Rose* [1897] 1 Ir R 9 at pp 39-42

a statute, or to add words to it,³ and it has been said that they will only do so where there is a repugnancy to good sense.⁴

In a case already mentioned where a colonial ordinance, passed to give effect to the treaty between this country and China, authorised the extradition to the Chinese Government of any of its subjects charged with having committed 'any crime or offence against the laws of China' the Privy Council construed these words as limited to those crimes and offences which are punishable by the laws of all civilised nations and as not including acts which though against the laws of China, would be innocent in Europe.⁵ As the literal meaning of the words was wide enough to include political offences against the law of a foreign state, an English court might feel bound to think it impossible that they could have been used in that sense. But it might be doubted whether the other party to the treaty understood our stipulation in the same narrow sense, or, indeed, whether it did not understand it as including above all others, those crimes which all governments are most desirous to punish viz those against themselves.⁶

Where the clearly expressed intention of a colonial ordinance was to give to any subject of the Queen resident in the colony the power of disposing by will according to English law of property both real and personal which otherwise would devolve according to the law of the colony, and where a section of the ordinance was operative for that purpose except that it concluded with the provision 'as if such subject resided in England' the effect of which would be to leave both the *lex situs* and the *lex domicilii* in operation, thus reducing the section to a nullity it was held that the concluding words ought not to be so construed as to destroy all that had gone before, and therefore should be treated as immaterial the powers conferred not being affected by the question of residence in England.⁷

When it was settled that the Limitation Act 1623 (c 16) applied

³ *Moss v Charnock* (1802) 2 East 399 *King v Burrell* (1840) 12 Ad & El 460 per Paterson J *Green v Wood* (1845) 7 Q B 178 per Denman CJ *Crawford v Spooner* (1846) 6 Moo PC 1 *R v Trafford* (1850) 15 Q B 200 per Campbell CJ

⁴ *Fredericks v Payne* (1867) 1 H & C 534 per Pollock CB

⁵ *Att Gen (Hong Kong) v Kwok a Sing* (1873) L R 5 P C 17

⁶ The same wide expressions were used in *West Africa* 371 (c 8) (now repealed) and in the Straits Settlements Act

⁷ *Salmon v Duncombe* (1836) 11 Ac

to India⁸ it was necessary for that purpose to construe the expression 'beyond the seas' as meaning out of the territories⁹

The same statute, which after limiting the time for suing gave a further period to persons abroad 'after they returned' was construed as giving that extended time to the executor of a person who never returned, but died abroad¹⁰

In the provision of section 5 of the Arbitration Act 1889 (c 49), that where a submission provides that the reference shall be to a single arbitrator and all parties do not concur in the appointment of an arbitrator, any party may serve the other parties with a written notice to 'appoint an arbitrator, appoint must be read as 'concur in appointing' as it could not be supposed that the intention was that the party who would not concur in an appointment should have the appointment in his own hands¹¹

An Act which made it penal 'to be in possession of game after the last day' allowed for shooting would if construed literally include cases where the possession had begun before the last day and therefore lawfully and to avoid this injustice it was construed as applying only where the possession did not begin until after the close of the season. That is, the words 'to begin' were interpolated before 'to be in possession'¹²

Under the Factory and Workshop Act, 1895 (c 37) s 27 (3), which prohibited the use of an underground bakehouse unless it was 'so used at the commencement of the Act' it was held that an old established bakehouse which was vacant at the commencement of the Act but whose owner was seeking a tenant, was within the exemption¹³

When one section enacted that if the plaintiff recovered a sum not exceeding £5 he should have no costs and another that if he recovered less than £5 and the judge certified he should have his costs, the literal meaning of the last clause leaving it

⁸ *East India Co v Paul* (1849) 7 Moo P C 85

⁹ *Ruckmaboye v Lulloobhoy* (1852) 8 Moo P C 4

¹⁰ *Townsend v Deacon* (1849) 3 Ex 706 *Forbes v Smith* (1855) 11 Ex 161 24 L J Ex 299

¹¹ *Re Eyre and Leicester Corp'n* [1892] 1 Q B 136 See now Arbitration Act 1950 (c 27)

¹² Game Act 1761 (c 19) *Partridge's Act* 1799 (c 34) both Acts repealed as to England by the Game Act 1831 (c 32) s 1 *Simpson v Unwin* (1832) 1 L J M C 28

¹³ *Schuer erfes v Wilkins* [1898] 1 Q B 640 See now Factories Act 1937 (c 67) s 54

inoperative where the sum recovered was exactly £5, it was held to avoid imputing so incongruous and improbable an intention to the legislature that the words 'less than' should be read as equivalent to 'not exceeding' the general principle being that

Acts of Parliament should be construed with a candid mind and with an intention to understand them ¹⁴

Section 32 of the Insolvent Debtors Act 1826 (c 57),¹⁵ which invalidated voluntary conveyances made by insolvents 'within three months before the commencement of the imprisonment' which, literally would exclude the time of imprisonment was construed as if the words had been 'within a period commencing three months before the imprisonment'. The literal construction, in leaving uninvalidated voluntary conveyances made after the imprisonment had begun would have led to an incongruity which the legislature could not be supposed to have intended ¹⁶

Section 65 of the County Courts Act 1888 (c 43) which provided that where the claim in an action of contract did not exceed £100 a judge of the High Court might order the action to be tried in any county court in which the action might have been commenced was construed with the addition of the words 'if it had been a county court action' as otherwise the enactment would have been insensible and inoperative ¹⁷

The Bankruptcy Act, 1869 (c 71), providing that all the property acquired by the bankrupt during the continuance of the bankruptcy should be divisible among his creditors and providing also that he might obtain his discharge not only at the close, but during the continuance of his bankruptcy it was held that the earlier passage must be read in substance as meaning that the future property which was to be divisible was that acquired either during the continuance of the bankruptcy or before the earlier discharge of the bankrupt ¹⁸. This construction was deemed necessary to avoid leaving the bankrupt incapable of acquiring property after he had given up everything to his creditors simply because the property had not been realised and consequently the bankruptcy not closed ¹⁹

¹⁴ *Garby v Harris* (1852) 7 Ex 591

¹⁵ Repealed S. L. R. Act 1873 (c 91)

¹⁶ *Becke v Smith* (1836) 6 L J Ex 54

¹⁷ *Curtis v Stovin* (1889) 2 Q B D 513 *Burkill v Thomas* [1892] 1 Q B 312 See now County Courts Act 1959 (c 22) s 45

¹⁸ See as to this point *Hill v Settle* [1917] 1 Ch 319 C A

¹⁹ *Ebbs v Boulnois* (1875) L R 10 Ch 479 *Cholmeley School v Sewell* [1894] 2 Q B 906

Honest Intention to Act within Powers

It is obvious that the provisions in numerous statutes which limit the time and regulate the procedure for legal proceedings for compensation for acts done in the execution of his office by a justice or other person, or under or by virtue or in pursuance of his authority do not mean what the words in their plain and unequivocal sense convey since an act done in accordance with law is not actionable and therefore needs no special statutory protection²⁰ Such provisions are obviously intended to protect in certain circumstances acts which are not legal or justifiable²¹ and the meaning given to them by a great number of decisions seems in the result, to be that they give protection in all cases where the defendant did or neglected²² what is complained of while honestly intending to act in accordance with his statutory powers and, whether reasonably or not believing in the existence of such facts or state of things as would if really existing have justified his conduct²³

Thus if an Act authorised the arrest of a person who entered the dwelling house of another at night with intent to commit a felony (Larceny Act 1861 (c 96) s 51) an arrest made in the honest and not unreasonable but mistaken belief that the person arrested had entered with that intent would be protected Apparently however, there would be no protection if the arrest were made under a misconception not of the facts but of the law as for instance if the person making the arrest believed that the

²⁰ *Per cur Hughes v Buckland* (1846) 15 L J Ex 233

¹ See e.g. *Warne v Varley* (1795) 6 T R 443 *Lea v Facey* (1887) 19 Q B D 352 354 *Esher M R*

² *Wilson v Halifax* (1868) L R 3 Ex 114 *Newton v Ellis* (1855) 24 L J Q B 337

²³ See among many other authorities *Greenway v Hurd* (1792) 4 T R 553 *Roberts v Orchard* (1864) 33 L J Ex 65 *Booth v Clive* (1851) 20 L J C P 151 *Carpue v London & Brighton Ry* (1844) 5 Q B 747 *Tarrant v Baker* (1854) 23 L J C P 21 *Burling v Harley* (1858) 27 L J Ex 258 *Aine v Evershed* (1847) 10 Q B 148 *Hermann v Senescrial* (1862) 32 L J C P 43 *Dawning v Capel* (1867) L R 2 C P 461 *Leete v Hart* (1868) L R 3 C P 322 *Chamberlain v King* (1871) L R 6 C P 474 *Selmes v Judge* (1871) L R 6 Q B 724 *Mason v Aird* (1882) 51 L J Q B 244 *Denny v Thwaites* (1876) 2 Ex D 21 *Cree v St Pancras Vestry* [1899] 1 Q B 693 *Betts v Metropolitan District Receiver* [1932] 2 K B 595 *Nelson v Cookson* [1940] 1 K B 100 Thus the Public Authorities Protection Act 1893 (c 61) was held to extend its protection to municipal bodies in the execution of duties in connection with commercial enterprises undertaken under statutory authority *The Ydon* [1899] P 236 *Parker v London C C* [1904] 2 K B 501 But see *Lyles v Southend on Sea* [1905] 2 Y B 1 *Natanael Telephone Co v Kingston upon Hull* (1903) 89 L T 291 *per Buckley J* *Sharpington v Fulham* [1904] 2 Ch 449 *Myers v Bradford Corporation* [1916] 1 A C 242 H L

prisoner had only attempted to enter—a different offence for which the enactment in question does not authorise arrest—or if, where the law justified an immediate apprehension, an arrest was made which was not immediate²⁴ As a general proposition however, unreasonableness of belief is immaterial if the belief be honest though it is an important element in determining the question of honesty²⁵

The repealed Corrupt Practices Prevention Act, 1863 (c 29)²⁶ which enacted by section 7²⁷ that no witness before an election inquiry should be excused from answering self-incriminating questions relating to corrupt practices at the election under inquiry, and entitled him when he answered every question relating to those matters to a certificate of indemnity declaring that he had answered all such criminating questions was held to apply only where the witness answered truly in the opinion of the commissioners for it was not to be supposed that any answer however false or contemptuous, was equally intended.²⁸ It is observable that this interpolation was made in the Act, notwithstanding that it repealed an earlier enactment which had protected the witness only when he made true discovery

Obvious Oversights

Section 374 of the repealed Merchant Shipping Act 1854 (c 104) which enacted that no licence granted by the Trinity House to pilots shall continue in force beyond the 31st of January 'after its date but that the same may be renewed on such 31st of January in every year, or any subsequent day' was construed as meaning not that the renewed licences must be issued on or after that day but that they should take effect from January 31. This departure from the strict letter was justified by the great inconvenience which would have resulted from a rigid adherence to it since it would have left the whole district for a certain period probably days possibly weeks without qualified pilots²⁹

²⁴ *Griffith v Taylor* (1876) 2 CPD 194. *Morgan v Palmer* (1824) 2 LJ (OS) 418.
145 See now Larceny Act 1916 (c 50) s 27

²⁵ *Clark v Molineux* (1877) 3 QBD 237

²⁶ Repealed by Corrupt and Illegal Practices Prevention Act 1883 (c 51)

²⁷ See Representation of the People Act 1949 (c 68) s 123 (7)

²⁸ *R v Hulme* (1870) LR 5 QB 377. *R v Holl* (1881) 7 QBD 575

²⁹ *The Beta* (1869) 3 Moo PC (NS) 43

In section 7 of the Railway and Canal Traffic Act 1854 (c 31), which enacts that railway and canal companies shall be liable for the loss of or any injury done to 'any horse cattle, or other animals' (which would include a dog) entrusted to them for carriage with the proviso that no greater damage should be recovered for the loss of or injury done to 'any of such animals' beyond the sums thereafter mentioned—specifying certain sums for horses neat cattle sheep and pigs but making no mention of dogs—the proviso was read, in order to reconcile it with the enacting part as dealing only with 'any of the following of such animals' ³⁰

Where a railway company was made liable to make good the deficiency in the parochial rates arising from their having taken rateable property until its works were completed and liable to assessment the House of Lords held that the intention was that the liability should cease as regards any one parish as soon as that portion of the line which ran through it was completed in other words that the Act was to be read as fixing the liability when 'its works in the parish' were completed ³¹

A case in the Queen's Bench may be cited as furnishing a remarkable example of judicial modification to supply an apparent case of omission to avoid an injustice and absurdity which the legislature was presumed not to have intended Under the Judgments Act 1838 (c 110) s 36³ an insolvent prisoner for debt might be discharged from imprisonment, either upon his own petition or upon the petition of any of his creditors Section 10 of the Bankruptcy Act 1847 (c 102) ³² in abolishing the circuits of the Insolvent Commissioners and transferring their jurisdiction to the county courts provided that 'if an insolvent petitions, the insolvent court should refer his petition to the court of the district where he was imprisoned but it omitted all mention of cases where the petitioner was a creditor The court, however considered that an intention to include the latter sufficiently appeared To confine the section to its literal meaning would have involved the unjust result that though a vesting order might be

³⁰ *Harrison v London & Brighton Ry* (1862) 29 L.J.Q.B. 409 reversed on another point (1862) 31 L.J.Q.B. 113 *R v Strachan* (1872) L.R. 7 Q.B. 463 See another instance of interpolation in *Perry v Skinner* (1837) 6 L.J. Ex. 124

³¹ *East London Ry v Whitechurch* (1874) L.R. 7 H.L. 81

³ Repealed Bankruptcy Repeal Act 1869 (c. 83)

³² Repealed Bankruptcy Repeal Act 1869 (c. 83)

made and the debtor be deprived of his property, he would remain imprisoned. The words "if an insolvent petitions" were accordingly understood merely to have put that case as an example of the more general intention viz., if a petition be presented. For the purposes of the legislature, it was immaterial whether the petition was the insolvent's or the creditor's.³⁴

Common Sense

Notwithstanding the general rule that full effect must be given to every word yet if no sensible meaning can be given to a word or phrase³⁵ or if it would defeat the real object of the enactment it may or rather it should be eliminated.³⁶ The words of a statute must be construed so as to give a sensible meaning to them if possible. They ought to be construed *ut res magis valeat quam pereat*.³⁷

The Carriers Act 1830 (c. 68), s. 1 which enacts that a carrier should not be responsible for the loss of certain articles delivered for carriage unless the sender declares their value and nature, at the time of delivery at the office of the carrier has been held to protect the carrier where the parcel was delivered to his servant elsewhere than at the office and no declaration was made either there or elsewhere the fair meaning of the statute and the paramount object of the legislature being that the carrier should in every case be apprised of the nature and value of the article entrusted to him whether it was delivered at the office or elsewhere.³⁸

The Poaching Prevention Act 1862 (c. 114) which authorised constables to search any person whom they suspected of coming from any land in unlawful pursuit of game and if any game was found upon him to detain and summon him was held to authorise

³⁴ *R v Dowling* (1857) 8 E. & B. 605 sub nom. *Ex p Greenwood* (1857) 27 L.J.Q.B. 28.

³⁵ *Yorkshire Fire and Life Insurance Co v Clayton* (1881) 8 Q.B.D. 421.

³⁶ *Lyde v Barnard* (1876) 1 M. & W. 115 per Lord Abinger. *Stone v Yeovil* (1876) 1 C.P.D. 701 per Brett J. though in that case the elimination was not necessary and where elimination is unnecessary there is no power to delete see *ibid.* on appeal (1876) 2 C.P.D. 99.

³⁷ *Curtis v Stovin* (1889) 22 Q.B.D. 513 per Bowen L.J. *The Duke of Buccleuch* (1889) 15 P.D. 86 per Lindley L.J. *R v Bishop of Oxford* (1879) 4 Q.B.D. 245 and the reversing judgment 4 Q.B.D. 325. *Att Gen v Beauchamp* [1900] 1 K.B. 650. See also *Whitney v R C* [1906] A.C. 37 at p. 52 per Lord Dunedin and the Foreword to this work.

³⁸ *Baxendale v Hart* (1857) 6 Ex. 769.

a constable to summon a man whom he saw on a footway with a gun in his hand picking up a rabbit thrown from an adjoining enclosure just after the report of a gun but whom he did not search. There was nothing in the general object of the Act to lead to the supposition that the enormous absurdity of requiring an actual bodily search in such circumstances was intended and such a departure from the language of the Act was therefore considered as really meeting the true intention ³⁹

The Extradition Act 1870 (c 52) s 8 when authorising the apprehension of a person on warrant included the detention of one already in custody, though arrested without a warrant ⁴⁰

The Poor Removal Act 1795 (c 101) s 2, which empowered justices to suspend in case of sickness the order of removal of any pauper who should be brought before them for the purpose of being removed was construed as authorising such suspension without the actual bringing up of the pauper before the justices, as the literal construction would have defeated the humane object of the enactment ⁴¹

To prevent the enormous injustice which would result from a literal interpretation of the enactment that the Court of Bankruptcy should refuse a bankrupt his discharge in all cases where the debtor had committed an offence under the Debtors Act 1869 (c 62), it was held that the words connected with or arising out of the bankruptcy must be added to qualify the general words ⁴²

The Conjunctions or and and

To carry out the intention of the legislature it is occasionally found necessary to read the conjunctions or and and 'one for the other'. The Disabled Soldiers Act 1601 (c 3) ⁴³ for instance in speaking of property to be employed for the maintenance of

³⁹ *Hall v Knox* (1863) 33 L J M C 1 *Lloyd v Lloyd* (1885) 14 Q B D 725 which discusses *Clarke v Crowder* (1869) L R 4 C P 638 and *Turner v Morgan* (1875) L R 10 C P 587 where the statute was construed strictly Cf *Vinter v Hind* (1883) 10 Q B D 63

⁴⁰ *R v Weil* (1832) 9 Q B D 701

⁴¹ *R v Everdon* (1807) 9 East 101

⁴² *Re Brockelbank* (1889) 23 Q B D 461 and see *ante* p 194 See now s 26 (2) second paragraph of the Bankruptcy Act 1914 (c 59)

⁴³ Repealed by S L R Act 1863 (c 125)

sick *and* maimed soldiers referred to soldiers who were either the one 'or the other and not only to those who were both ⁴⁴

The Bankrupts Act 1603 (c 15) ⁴⁵ which made it an act of bankruptcy for a trader to leave his dwelling house to the intent *or* whereby his creditors might be defeated or delayed' if construed literally would have exposed to bankruptcy every trader who left his home even for an hour if a creditor called during his absence for payment. This absurd consequence was avoided and the real intention of the legislature was beyond reasonable doubt effected by reading *or* as *and* so that an absence from home was an act of bankruptcy only when coupled with the design of delaying or defeating creditors ⁴⁶

This substitution of conjunctions however has been some times made without sufficient reason and it has been doubted whether some of the cases of turning *or* into *and* and vice versa, have not gone to the extreme limit of interpretation ⁴⁷. It may be questioned for instance whether the judges who 'were at the making' of the Forgery Act 1413 (c 3), which required that jurors to try an action when the debt or damages amounted to forty marks should have land worth forty shillings were justified in construing it by equity and converting the disjunctive *or* into 'and' ⁴⁸

The Court of Queen's Bench on one occasion (now overruled) held that the power given to justices by the Highway Act 1835 (c 50) ⁴⁹ to order the diversion of a highway when it appeared nearer *or* more commodious to the public was limited to cases where the new road was both nearer *and* more commodious ⁵⁰

⁴⁴ Duke Charit Uses 127. Cf. *R v Brixton Prison Governor ex p B d ell* [1937] 1 K B 305.

⁴⁵ Repealed Bankrupts (England) Act 1825 (c 16) s 1.

⁴⁶ *Fowler v Padget* (1798) 7 T R 509. *R v Mortlake* (1805) 6 East 397. See now Bankruptcy Act 1914 (c 59) s 1 (1) (d).

⁴⁷ *Mersey Docks v Henderson* (1888) 13 App Cas 603 per Lord Halsbury LC. See also *Green v Premier Glynrhonwy Slate Co* [1928] 1 K B 561 at p 568 per Scrutton LJ. You do sometimes read *or* as *and* in a statute. But you do not do it unless you are obliged because *or* does not generally mean *and* and *and* does not generally mean *or*. For a full collection of the cases hereon see Stroud's *Judicial Dictionary* and Supp tit OR READ AS AND AND VICE VERSA.

⁴⁸ Co Litt 272a.

⁴⁹ ss 85-91.

⁵⁰ *R v Shilex* (1841) 1 Q B 919.

but the same court subsequently held that the power was exercisable when the new road was either the one *or* the other ¹

It has been said that in a penal statute *or* should only be changed into *and* or vice versa if the result is more favourable to the subject but there is no rule of law to that effect ²

May Must

Statutes which authorise persons to do acts for the benefit of others or as it is sometimes said for the public good or the advancement of justice have often given rise to controversy when conferring the authority in terms simply enabling and not mandatory. In enacting that they *may* or *shall* if they think fit, or, *shall* have power or that it shall be lawful for them to do such acts a statute appears to use the language of mere permission but it has been so often decided as to have become an axiom that in such cases such expressions may have—to say the least—a compulsory force ³ and so would seem to be modified by judicial exposition. On the other hand in some cases the authorised person is invested with a discretion and then these expressions seem divested of that compulsory force, and probably that is the *prima facie* meaning.

In an early case where it was contended that the Poor Relief Act 1662 (c 12), s 18 ⁴ in enacting that the churchwardens and overseers shall have power and authority to make a rate to reimburse parish constables certain expenses left it optional with them to make it or not the court held that it was obligatory on them to make it whenever disbursements had been made and not been paid ⁵

So where a statute directed that churchwardens should deliver their accounts to justices and enacted that the latter shall and they are hereby authorised and empowered if they shall so think fit to examine the accounts and disallow unfounded charges it

⁵¹ *R v Phillips* (1866) L R 1 Q B 648 *Bright v Frant* (1863) 32 L J M C 204 *Harrington v Ramsay* (1853) 8 Ex 879 *Oldfield v Dodd* (1853) 8 Ex 578

⁵² *R v Oakes* [1959] 2 All E R 92

⁵³ *Per cur R v Tithe Commrs* (1850) 14 Q B 474 *Border R D C v Roberts* [1950] 1 K B 716 *per Somervell J*

⁵⁴ Repealed by the Parish Constables Act 1872 (c 92) s 13 and replaced by s 4 of that Act

⁵⁵ *R v Parlow* (1693) Carth 293 *R v Derby* (1694) Skin 370 But see *Border R D C v Roberts* [1950] 1 K B 716

was held that the justices could not decline to enter upon the examination⁵⁸ or be at liberty to allow charges not sanctioned by law⁵⁹

Again section 13 of the Weights and Measures Act 1889 (c 21) which provides that an inspector 'may take in respect of the verification and stamping of weights measures, and weighing instruments the fees specified' has been held to be obligatory and to impose on the inspector a duty to take the fees in all cases⁶⁰

Though section 9 of the Indictable Offences Act 1848 (c 42) enacted that justices may issue a summons on an information laid before them only if they shall think fit it was held that they were not at liberty to refuse it on any extraneous considerations such as that the prosecution was inexpedient or that the law would operate unjustly in the particular case⁶¹

So in *Backwell's Case* Lord Keeper North held and of the same opinion were all the judges that the statute which enacted that the Chancellor should have full power to issue a commission of bankruptcy against a bankrupt trader on the petition of his creditors imperatively required its issue, declaring that may was in effect must⁶²

Under section 13 of the County Courts Act, 1850 (c 61)⁶³ which enacted that the superior court may give the plaintiff the costs of his action if he lived more than twenty miles from the defendant it was held that the court was bound to give them in every case in which the plaintiff and defendant dwelt more than that distance apart⁶⁴

Under the provision of section 5 of the Arbitration Act 1889 (c 49) that, where a submission provides that the reference shall be to a single arbitrator and all parties do not concur in appointing an arbitrator any party may serve the other parties with a written notice to appoint and if the appointment is not made in seven clear

⁵⁸ *R v Cambridge* (1839) 8 Dowd 89 *R v Oxford (Bp)* (1879) 4 Q B D 575 at p 545 per Bramwell L J Cf *R v Norfolk* (1832) 4 B & Ad 238

⁵⁹ *Barton v Piggott* (1874) L.R. 10 Q B 86

⁶⁰ *R v Roberts* [1901] 2 K B 177

⁶¹ *R v Adamson* (1875) 1 Q B D 201 *R v Faucest* (1868) 11 Cox CC 305 *Ex p Lewis* (1888) 21 Q B D 191 *R v Birde* (1890) 60 L J M C 17 *R v Mead* (1916) 80 J P 332

⁶² Bankrupts Act 1571 (c. 7) Bankrupts Act 1603 (c 15) *Backwell's Case* (1683) 1 Vern 152

⁶³ Repealed by the County Courts Act 1888 (c 43) s. 188

⁶⁴ *McDougal v Paterson* (1851) 21 L J C P 27 *Crake v Powell* (1857) 21 L J Q B 183 overruling *Jones v Harrison* (1851) 6 Ex 328

days the court may," on the application of the party who gave the notice appoint an arbitrator it is obligatory on the court to make an appointment if applied to ⁶³

An Act which made it 'lawful' for a court to stay proceedings in actions against companies under liquidation until proof of the plaintiff's debt ⁶⁴ and a bankruptcy rule which provided that where the court has given no directions as to the disallowance of the costs of improper or unnecessary proceedings, the taxing master may look into the question were held equally imperative ⁶⁵

The provision of section 56 of the repealed Corrupt and Illegal Practices Prevention Act 1883 (c 51) that certain jurisdiction conferred by the Act may be exercised by one of the judges for the time being on the rota for the trial of election petitions was read as equivalent to must and the jurisdiction could not be exercised by any other judge ⁶⁶

An Act which empowered a vestry to make a paving rate and provided that when it appeared to the vestry that the rate was not incurred for the equal benefit of the whole parish it might 'exempt the party not benefited, was held to impose a duty and not merely to confer a power, on the vestry to apportion the burden when the case arose ⁶⁷

May' where used in section 9 of the Conspiracy and Protection of Property Act 1875 (38 & 39 Vict c 86) was held to be imperative ⁶⁸ and the provision in the Fugitive Offenders Act, 1881 (c 69) s 4 that a superior court may unless sufficient cause is shown to the contrary order the discharge of a prisoner who is not conveyed out of the country within one month of his committal for that purpose is mandatory upon the court ⁶⁹

⁶³ *Re Eyre and Leicester Corpn* [1892] 1 Q B 136 distinguished where the persons invoking the assistance of the court are foreigners outside the jurisdiction of the court *Re Bjornstad and the Ouse Shipping Co* [1924] 2 K B 673 See now Arbitration Act 1950 (c 27)

⁶⁴ Joint Stock Companies Act 1848 (c 45) s 73 now repealed *Marson v Lund* (1849) 13 Q B 664

⁶⁵ *Baines v Wormsley* (1878) 47 L J Ch 844

⁶⁶ *Shaw v Reckitt* [1893] 1 Q B 779

⁶⁷ *Howell v London Dock Co* (1858) 27 L J M C 177 For comments on this case which was an anomalous one see *R v G B Ry* (1858) 28 L J M C 59 See also *Dormont v Furness Ry* (1883) 11 Q B D 496

⁶⁸ *R v Mitchell ex p Livesey* [1913] 1 K B 561

⁶⁹ *Re Shuter* [1960] 1 Q B 142

same time cast upon the persons empowered. For these are cases where a power is deposited with public officers to be used for the benefit of persons having rights in the matter. So whenever a statute confers an authority to do a judicial act in a certain case it is imperative on those so authorised to exercise the authority when the case arises and its exercise is duly applied for by a party interested and having a right to make the application and the exercise depends not on the discretion of the courts or judges, but upon proof of the particular case out of which the power arises.⁷⁴ If a statute empowered justices to adjudicate in certain cases that is to impose a certain penalty on persons whom they should find guilty of a certain offence it is uncontestable that they would have no option to decline jurisdiction because the statute used only the word *may* instead of *shall*. There would be here such a right in the public as to make it the duty of the justices to exercise the power. Whether the language was facultative only or mandatory, it would be equally obligatory on them to hear and determine the complaint to decide one way or the other whether the accused was guilty and to impose the penalty if he was.⁷⁵

The Supreme Court of the United States similarly laid it down that that which public officers are empowered to do for a third person the law requires shall be done whenever the public interest or individual rights call for the exercise of the power, since the latter is given not for their benefit but for his, and is placed with the depository to meet the demands of right and to prevent the failure of justice. In all such cases the court observed the intent of the legislature which is the test, is not to grant a mere discretion, but to impose a positive and absolute duty.⁷⁶

⁷⁴ *McDougal v Paterson* (1851) 11 C B 755. *Sheffield Corporation v Luxford Same v Morrell* [1929] 2 K B 180 *per* Talbot J. See also *Re Burton and Blinkhorn* [1903] 2 K B 300 where it was held that the Solicitors Act 1843 (c 73) s 32 which enacted that a solicitor *shall and may* be struck off the rolls for certain offences did not give the court a discretion to impose any less punishment: see now Solicitors Act 1957 (c 27) s 34. In some cases this rule seems to have been overlooked and the word *may* construed as simply permissive. See *e.g.* *R v Eye* (1821) 4 B & Ald 271. *Bell v Crane* (1873) L.R. 8 Q B 481. *R v South Weald* (1864) 33 L.J.M.C. 193. *De Beauvoir v Welch* (1827) 7 B & C 266. See however *R v Norfolk* (1832) 4 B & Ald 238. *Re Kelly* [1895] 1 Q B 180 followed and qualified in *Re Newson* (1909) 53 S.J. 342.

⁷⁵ *Julius v Oxford (Bp)* (1880) 5 App Cas 214 *per* Lord Blackburn. *R v Cumberland* (1836) 4 A & E 695. *Supervisors v U S* (1866) 4 Wallace 446. See s 32 Interpretation Act 1889 (c 63) which provides that when an Act confers a power or imposes a duty

On the other hand, it appears that the powers of a catchment board to maintain river walls does not impose a duty although riparian owners may be damaged by the board's failure to maintain them⁷⁷

It Shall be Lawful

Where it was enacted that it shall be lawful for the superior courts to issue commissions to examine witnesses abroad it was held that the court was not bound to issue such a commission simply on proof that the persons whose evidence was required were abroad but that it was in the discretion of the court to determine upon the special circumstances of each case, whether it was advisable in the interests of justice to issue it or not⁷⁸

Under the Bridges Act 1803 (c 59) s 2 which enacted that where a country bridge is narrow it shall and may be lawful for the quarter sessions to order it to be widened it was held (having regard to the nature of the court entrusted with the power and to the subject matter which might involve other considerations besides the width of the bridge such as the cost of the proposed work and its possible disproportion to any public benefit likely to be derived from it) that it was discretionary to make the order or not⁷⁹

Again where it was enacted that if part of the consideration for an annuity were returned or paid in goods or retained on any pretence it should be lawful for the court to cancel the annuity deed if it should appear that any such practices had been used, the court considered that this last expression limited the enactment to cases where any of the forbidden acts had been done *malo animo* and held that it was in their discretion to set the deed aside or not⁸⁰

the power may be exercised and the duty shall be performed from time to time as the occasion requires and by the holder for the time being of the office on which the power is conferred or the duty imposed (See Appendix)

⁷⁷ *Smith v Candle Fen Ely (Cambridge) Commissioners* [1938] 4 All ER 64
Gillett v Kent Rivers Catchment Board [1938] 4 All ER 810 The board will not even be liable for misfeasance in repairing the walls unskilfully provided that they do not thereby increase the damage *East Suffolk Rivers Catchment Board v Kent* [1941] AC 74

⁷⁸ *Evidence on Commission Act 1831* (c 22) s 4 *Castell v Groom* (1852) 18 QB 490 See *Armour v Walker* (1883) 25 Ch D 673 *Lawson v Vacuum Brake Co* (1884) 27 Ch D 137 This latter case explained in *Coch v Allcock* (1888) 21 QB D 1 affirmed 57 LJ QB 489 See now RSC Ord 37

⁷⁹ *Re Newport Bridge* (1859) 29 LJMC 52 See now Highways Act 1959 (c 25)

⁸⁰ *Enrolment of Grants of Annuities Act 1813* (c 141) s 6 repealed by *Usury Laws Repeal Act 1854* (c 90) *Barber v Gamson* (1821) 4 B & Ald 281 *Girdlestone v Allan* (1827) 1 B & C 61

The Church Discipline Act 1840 (c 86) which enacted that in every case of a clergyman charged with an ecclesiastical offence or concerning whom a scandal might exist of having committed such an offence it shall be lawful for the bishop on the application of any person complaining of it or if he thinks fit on his own motion to appoint a commission to examine witnesses to ascertain if there be sufficient *prima facie* ground for instituting further proceedings was held to leave it discretionary with the bishop to appoint a commission on receiving such a complaint. Having regard to the pre-existing state of the law and the character of the bishop's office it was considered that it was his duty before issuing the commission to determine on the expediency of instituting the prosecution taking into his consideration the nature, credibility or importance of the charge and the status, solvency and religious character of the complainant as well as the general interests of the church.⁸¹

This subject underwent much discussion in *R v Oxford (Bp)* and elicited various views. The Queen's Bench held that it was imperative to issue the commission where a complaint had been made of an ecclesiastical offence⁸² but the Court of Appeal reversed this decision⁸³ and this reversal was upheld on appeal to the House of Lords⁸⁴ who were practically unanimous in their view.

According to Lord Cairns such words as 'it shall be lawful' are always simply permissive⁸⁵ or enabling. They confer a power and do not of themselves do more. But there may be something in the nature of the thing empowered to be done something in the object for which it is to be done something in the conditions under which it is to be done something in the title of the persons for whose benefit the power is to be exercised which may couple the power with a duty and make it the duty of the person in whom the power is reposed to exercise it when called upon to do so. It lies on those who contend that an obligation exists to exercise the power to show in the circumstances of the case something which according to the above principles creates

⁸¹ *R v Oxford (Bp)* (1879) 4 Q B D 243 525 *Julius v Oxford (Bp)* (1880) 5 App Cas 214 *Allcroft v London (Bp)* [1891] A C 665 *R v Chichester (Bp)* (1859) 2 E & E 209

⁸² *R v Oxford (Bp)* (1879) 4 Q B D 245

⁸³ 4 Q B D 525

⁸⁴ *Sub nom Julius v Oxford (Bp)* (1880) 5 App Cas 214

⁸⁵ 5 App Cas 214 at p 22.

that obligation and the cases decide only that where a power is deposited with a public officer for the purpose of being used for the benefit of persons who are specifically pointed out, and with regard to whom a definition is supplied by the legislature of the conditions upon which they are entitled to call for its exercise, that power ought to be exercised and the court will require it to be exercised⁸⁶ Lord Penzance said that the words "it shall be lawful" are distinctly words of permission only and the true question is not whether they mean something different but whether, having regard to all the circumstances—to the person enabled, to the general object of the statute and to the persons for whose benefit the power may have been intended to be conferred—they do or do not create a duty in the person on whom it is conferred to exercise it. It is not enough that the thing empowered to be done should be for the public benefit in order to make it imperative to exercise that power on all occasions falling within the statute. It may be assumed that all powers conferred by statute on individuals in general public Acts are for the public benefit, or they would not have been conferred. He could find no specific authority for the proposition that in a certain class of statutes such words as "it shall be lawful" import *prima facie* not permission but obligation. The effect of the cases in which the exercise of the power conferred was held to be obligatory was that, though the statutes concerned had in terms only conferred a power the circumstances were such as to create a duty and to show that the exercise of any discretion by the person empowered could not have been intended⁸⁷ Lord Selborne's view was that words such as "it shall be lawful" are not ambiguous and susceptible either of a discretionary or obligatory sense, but their meaning is the same, whether there is or is not a duty or obligation to use the power which they confer. They are potential, and never (in themselves) significant of any obligation. The question whether a judge or public officer to whom a power is given by such words is bound to use it upon any particular occasion or in any particular manner, must be solved *aliunde* and in general it is to be solved from the context, from the particular provisions or from the general scope and objects of the enactment conferring the power⁸⁸ Lord Blackburn's opinion

⁸⁶ 5 App Cas 214 *et seq*

⁸⁷ 5 App Cas 214 at p 228

⁸⁸ 5 App Cas 214 at p 235

was that the enabling words gave a power which *prima facie* might be exercised or not, but if the object for which the power is conferred is for the purpose of enforcing a right whether public or private there may be a duty cast upon the donee of the power to exercise it for the benefit of those who have that right when required on their behalf. Where there is such a duty it is not inaccurate to say that the words conferring the power are equivalent to saying that the donee must exercise it⁸⁹. But he could not agree with the view that whenever the statute is for the public good and of general interest and concern powers conferred by enabling words are *prima facie* to be considered powers which must be exercised⁹⁰.

If They Shall Think Fit

The power is not made less imperative by express references to the discretion of the authorised person. The duty of issuing a summons⁹¹ or of examining the churchwardens' accounts⁹² was as obligatory under the statute which empowered the justices to issue it or to examine them if they should so think fit as it would have been if this expression had been omitted.

Where the judgment creditor of a company might have execution against any individual shareholder of it if he failed after due diligence to obtain satisfaction of his debt from the company, it was held by the Common Pleas that there was no discretion to withhold this remedy from him in any case in which the court was satisfied that the specific facts indicated by the statute existed—viz. that the debt was unpaid that due endeavours had been made and had failed to put in force the execution against the company⁹³ and it may be added that the creditor had done nothing to disentitle him to execution against the shareholder⁹⁴—although the statute not only directed that the leave of the court was to be asked for the execution but provided that it should be lawful

⁸⁹ 5 App Cas 214 at p 241 *R v Mitchell* [1913] 1 K.B. 561

⁹⁰ 5 App Cas 214 at p 245

⁹¹ *R v Adamson* (1875) 1 Q.B.D. 201 *R v Evans* (1890) 54 J.P. 471

⁹² *R v Cambridge* (1839) 8 Dowd 89

⁹³ Joint Stock Companies Act 1844 (c. 110) (repealed) *Morisse v Royal British Bank* (1856) 26 L.J.C.P. 62 *Hill v London and County Insur Co* (1857) 26 L.J.Ex. 89 *Cf Shrimpton v Sidmouth etc Ry* (1867) L.R. 3 C.P. 80 (decided on Companies Clauses Consolidation Act 1845 (c. 16)) discussed without approval in *Lee v Bude and Torrington Junction Ry* (1871) L.R. 6 C.P. 576 at p 581

⁹⁴ *Scott v Uxbridge Ry* (1866) L.R. 1 C.P. 596

for the court to grant or refuse the application for it, and to make such order as it might see fit

Another familiar instance may be found in the case of a distress warrant to enforce a poor rate. It is well known that in every case where certain specific facts are proved—viz, that a rate valid on its face was made by a competent authority, that the rated land is in the district and in the occupation of the defaulter and that the latter has been summoned and has not paid—the justices have no option to refuse the warrant though the statute says only that they ‘ may ’ issue it ‘ if they think fit ’. In all such cases they must exercise the power they must think fit to do so whenever the occasion for it has arisen.

In America where it was enacted that city councils ‘ might if deemed advisable ’⁹⁵ or even ‘ might if they believed that the public good and the best interests of the city required it, ’⁹⁷ levy a special tax to be expended in the liquidation of their debts, the Supreme Court issued a mandamus to levy the tax where it was proved that a debt existed and that there were no other means in possession or prospect for its payment holding that the discretion of the councils was limited by their duty and could not consistently with the rules of law⁹⁸ be resolved in the negative.⁹

It is important here to notice the distinction between a discretion to exercise a power and a discretion to determine only whether the occasion for it has arisen. This is illustrated by the construction of the enactment that justices may ‘ if they think fit ’ issue a summons upon an information laid before them. Here the power is so far discretionary that they may grant or refuse the summons according as they judge in the honest exercise of their discretion⁹⁹ that a *prima facie* credible case is shown for it, but its exercise is imperative, in the sense that they are bound to form an opinion and if their opinion is that such a case is shown it is not competent to them to refuse to exercise it on extraneous grounds such as that the prosecution is inadvisable.¹ An arbitrary or capricious exercise of a

⁹⁵ *R v Finnis* (1859) 28 L J M C 401 *R v Boteler* (1864) 33 L J M C 101 *R v Cambridge* and *R v Adamson* *supra* p 239

⁹⁶ *Supervisors v U S* (1866) 4 Wallace 446

⁹⁷ *Galena v Amy* (1866) 5 Wallace 705

⁹⁸ Adverting to *R v Barlow* (1633) 2 Salk 609

⁹⁹ See *ante* pp 117 *et seq*

¹ *R v Adamson* (1875) 1 Q B D 201 *R v Fawcett* (1868) 11 Cox C C 305

discretion would be no exercise at all. Again as regards the power to order the examination of witnesses abroad,³ the power was discretionary not because the language was merely enabling but because the legislature did not intend that the power should be exercised where injustice would result and the decision of the court that no such consequence was likely to ensue was a fact essential to make the exercise of the power a duty. So in the *Bishop of Oxford's Case* though the power was widely discretionary as regards the question whether the occasion for its exercise arose the bishop could not have declined to hear the complaint⁴ nor if his own judicial discretion uninfluenced by considerations foreign to his duty had decided that the occasion for it had arisen could he consistently with the intention of the legislature have refused to issue the commission.⁵

Omissions

An omission which the context shows with reasonable certainty to have been unintended may be supplied at least in enactments which are construed beneficially as distinguished from strictly. Thus when section 33 Fines and Recoveries Act 1833 (c 74) in providing that if the protector of a settlement should be (1) a lunatic or (2) convicted of felony or (3) an infant the Court of Chancery should be the protector in lieu of the lunatic or the infant omitted the case of the convict of felony it was held by Lord Lyndhurst that the omission might be supplied to give effect to the manifest intention. Without it the mention of the case of felony in the first part of the sentence was insensible and it necessarily implied the missing words.⁶

Although no original limit of time was specially mentioned in section 180 (9) of the Public Health Act 1875 (c 55) within which

² *R v London (Bp)* (1890) 24 Q B D 213 per Lopes L J. *R v St Pancras* (1890) 24 Q B D 375 per Lord Esher M R.

³ *Castelli v Groom* (1852) 18 Q B 490.

⁴ *Julius v Oxford (Bp)* (1880) 5 App Cas 214 at p 241 per Lord Blackburn. *R v London (Bp)* (1890) 24 Q B D 213 at p 240 per Lindley L J.

⁵ See *R v Oxford (Bp)* (1879) 4 Q B D 525 at p 555 per Bramwell L J.

Note —For the cases on IT SHALL BE LAWFUL, MAY MUST SHALL SHALL AND LAWFULLY MAY see those titles in Stroud's *Judicial Dictionary* and Supp.

⁶ *Re Hainewright* (1843) 1 Phil 258. See also in deeds *Dent v Clayton* (1864) 33 L J Ch 503. *Wilson v Wilson* (1854) 5 H L C 40 and in wills *Greenwood v Greenwood* (1877) 5 Ch D 954. *Re Redfern* (1878) 6 Ch D 133.

an umpire had to make his award yet as there was an express provision that the time for making an award by an umpire under the Act should not in any case be extended beyond two months from the reference to him—a provision which implied the existence of an original limit—it was held that by analogy to the original limit fixed in the case of arbitrators, an original limit of twenty one days from the date of the reference to him must be inferred to have been fixed in his case also.⁷

Where a statute enacted that suits ‘against’ an association should be brought in the district where it was established without making any provision for suits by the association but an earlier Act had in a similar clause provided for suits both by and against the Supreme Court of the United States held that the omission was accidental and might be supplied.⁸

Section 6 of the Statute of Frauds Amendment Act 1828 (c 14) furnished another example of clerical neglect which was treated in the same spirit. It enacted that no action should be brought in respect of a representation made by one person concerning the conduct or credit of another to the intent that the latter may obtain credit goods or money upon unless the representation was in writing. The text was clearly imperfect. Lord Abinger, while deeming any conjectural transposition of the words in admissible held that the word upon must be rejected as non sensical but Baron Parke considered that the court was at liberty either by transposition to read the passage ‘may obtain goods or money on credit or to interpolate after upon the words such representations’.⁹

By section 58 of the London Building Act 1894 (c cxxiii) a wall built as or becoming a party wall in any part shall be deemed a party wall for such part of its length as is so used that meant (though not so expressed) height as well as length so that only so much of the height as well as only so much of the

⁷ *Yeadon Loc Bd v Yeadon Waterworks* (1888) 41 Ch D 52. See Public Health Act 1936 (c 49) s 303 and see now Food and Drugs Act 1955 (c 16) s 131.

⁸ *Kennedy v Gibson* (1869) 8 Wallace 493. Cf *Hancocks v Lobache* (1878) 3 CPD 197. This latter case since the passing of the Married Women's Property Act 1882 (c. 75) is no longer good law.

⁹ *Lide v Barnard* (1836) 1 M & W 101 115. *United Alkali Co v Simpson* [1894] 2 QB 121. Lord Coleridge C.J.

length of wall which had been used as a party wall was to be deemed a party wall within the section ¹⁰

The reference in section 6 of the Intestates Estates Act 1890 (c 29) to the testamentary expenses of an intestate being obviously a slip in drafting has been read as referring to the expenses of obtaining letters of administration and of administration generally ¹¹

In statutes governed by the principles of strict construction, such emendations have been refused ¹²

Clerical errors may be read as amended as where for instance, an Act refers to another by title and date and mistakes the latter ¹³

It has been asserted that no modification of the language of a statute is ever allowable in construction except to avoid an absurdity which appears to be so not to the mind of the expositor merely but to that of the legislature that is when it takes the form of a repugnancy ¹⁴ In this case the legislature shows in one passage that it did not mean what its words signify in another and a modification is therefore called for and sanctioned beforehand as it were, by the author But the authorities do not appear to support this restricted view They would seem rather to establish that the judicial interpreter may deal with careless and inaccurate words and phrases in the same spirit as a critic deals with an obscure or corrupt text, when satisfied on solid grounds ¹⁵ from the context or history of the enactment or from the injustice, inconvenience or absurdity of the consequences to which it would lead that the language thus treated does not really express the intention and that this amendment probably does ¹⁶

¹⁰ *London etc Dairy Co v Morley and Lanceley* [1911] 2 K B 257 1143 See the London Building Act 1930 (c clviii)

¹¹ *Re Twigg's Estate* [1892] 1 Ch 579 See now Administration of Estates Act 1925 (c 23) s 33 (2)

¹² *Underhill v Longridge* (1859) 29 L J M C 65

¹³ 2 Inst 290 *Anon Skinn* 110 *R v Walock* (1845) 7 Q B 329 *Re Boothroyd* (1846) 15 L J M C 57

¹⁴ *Motteram v E C Ry* (1859) 7 C B (N S) 58 per Willes J in *Bell Cox v Hakes* (1890) 15 App Cas 406 at p 542 Lord Field accepting Willes J's dictum adds absurdity *Abel v Lee* (1871) L R 6 C P 365 *Christopherson v Lotinga* (1864) 15 C B (N S) 809 Brett J *Boon v Howard* (1874) L R 9 C P 305

¹⁵ Cf *Green v Wood* (1845) 7 Q B 178 and cases cited pp 12 *et seq ante*

¹⁶ This passage was cited with approval in *Re Lockwood* [1958] Ch 231

SECTION 2 —EQUITABLE CONSTRUCTION

Former Rules

The practice of modifying the language, and controlling the operation of enactments was formerly carried to great lengths. It used to be laid down that a remedial statute should receive an equitable construction so that cases out of its letter should if within the general object or mischief of the Act, be brought within the remedy which it provided.¹⁷ The extremely wide construction given to the expression charitable use or trust in the Statute of Charitable Uses 1601 (c 4)¹⁸ is a remarkable example of this construction the Court of Chancery including in that phrase a number of subjects which undoubtedly no one outside the Court of Chancery would have supposed to be comprehended within it.¹⁹

It is to be observed indeed that the expression equitable is often used in the older authorities in diverse senses. Lord Mansfield said that equity was synonymous with the intention of the legislature²⁰ and in this sense an equitable construction is free from objection. Thus the equitable construction which included uses within the Statute De Donis though that enactment spoke only of lands and tenements and may have originally contemplated only common law estates²¹ and which applied 2 Hen 5, c 3²² (requiring that a juror should have lands worth 40 shillings) to the *cestui que use* and not to the feoffee when the legal estate was in the latter²³ would seem to fall within the now recognised ordinary rules of construction.

The statute 4 Edw 3 c 7 which gave executors an action against trespassers for a wrong done to their testator was said to have given them also an action on the case by the equity of the statute²⁴ but the decision was strictly on the letter of the Act.

¹⁷ Co Litt 24b Bac Ab Statute (1) 6 Com Dig, Parliament R 13

¹⁸ Repealed by the Mortmain and Charitable Uses Act 1888 (c 42) s 13

¹⁹ *Income Tax Commissioners v Fensel* [1891] A C 531 at p 542 per Lord Halsbury L.C. See *Re Foveaux* [1895] 2 Ch 501

²⁰ *R v Williams* (1758) 1 W Bl 93

²¹ *Corbet's Case* (1600) 1 Rep 83

²² Repealed as to England by S.L.R. Act 1863 (c 125)

²³ Co Litt 27b

²⁴ *Russell v Pratt* (1589) 1 Leon 193 *Rutland v Rutland* (1595) Cro Eliz 377

It turned on the construction of the word trespass which was held to mean a wrong done generally, and of trespassers which was held to mean wrongdoers²⁵

The decision that the Statute of Gloucester (6 Edw 1) c 5 (which gives the action of waste against lessees for life or for years, to recover the wasted place and treble damages) reached by equity a tenant for one year and even for half a year was apparently of a similar character.²⁶

So while it is said that it is on the equity or equitable construction of the Distress for Rent Act 1689 (c 5) (which empowers a landlord to sell for the best price the goods which he has distrained for arrears of rent if the tenant does not replevy in five days) that an action lies against the landlord who sells after impounding but before the expiration of five days²⁷ or after a tender of the rent and expenses within that time²⁸ or for less than the best price²⁹ it has been held nevertheless that trover will not lie no more apparently being meant than that a cause of action was given by implication³⁰ against a landlord who thus abused the power of sale thereby conferred on him.

Byles J. in his terse way summed up the view he held by saying that within the equity means the same thing as within the mischief of a statute.³¹

But the expression has been more generally used in other senses. In the construction of old statutes, it has been understood as extending to general cases the application of an enactment which literally was limited to a special case. Thus, the Statute of Westminster 1 (3 Edw 1), c 4 which enacted that a vessel should not

²⁵ *Wilson v Knubley* (1806) 7 East 133 per Lord Ellenborough. It was held to extend to all torts except those relating to the testator's freehold or where the injury was of a purely personal nature. See *Williams v Carj* (1635) 1 Mod 401 12 Mod 71 *Berwick v Andrews* (1703) 2 Lord Raym 971 *Bradshaw v Lum* and *York Ry* (1875) L R 10 CP 189 *Leggott v Ct Northern Ry* (1876) 1 Q B 115 599 *Bramwell LJ Twycross v Grant* (1877) 4 CP D 40 *Inlling v Ct Eastern Ry* (1887) 9 Q B D 110 112

²⁶ Co Litt 53a 2 Inst 302

²⁷ *Wallace v King* (1788) 1 H Bl 13 *Pitt v Shew* (1821) 4 B & Ald 209 *Harper v Taswell* (1833) 6 C & P 166

²⁸ *Johnson v Upham* (1859) 28 L J Q B 252 *R v Cox* (1759) 2 Burr 785, *R v Younger* (1793) 5 T R 449

²⁹ Com Dig Distress (D) 8 *Farwell on Powers* Chap 17

³⁰ See Chap 12 Sec 2 *post*

³¹ *Shuttleworth v Le Fleming* (1865) 19 C B (N S) 703

be adjudged a wreck if a man, a dog or a cat escaped from it was regarded as exempting a vessel from such adjudication, by an equitable construction if any other animal escaped those named being put only for example ³²

The 46th chapter of the same statute which directed the judges of the King's Bench to hear their causes in due order, was extended, on the same principle to the judges of the other courts,³³ and the Statute of Westminster 2 (13 Edw 1) c 31, which gave the bill of exceptions to the ruling of the judges of the Common Pleas, was similarly held applicable not only to the other judges of the superior courts but to those of the county courts, the hundred, and the courts baron their judges being still more likely to err ³⁴

The Imprisonment by Justices of the Peace Act 1403 (5 Hen 4, c 10) which forbade justices of the peace to commit to any other than the common gaol was held to be equally imperative on all other judicial functionaries ³⁵

The Prisoners for Debt Act 1377 (1 Ric 2, c 12) which forbade the Warden of the Fleet to suffer his prisoners for judgment debts to go at large until they had satisfied their debts was held to include all gaolers ³⁶

The Statute of Gloucester (6 Edw 1) c 11, in speaking of London was considered as intending to include all cities and boroughs equally the capital having been named alone for excellency ³⁷

The statute or writ *Circumspecte Agatur* (13 Edw 1) which directed the judges not to interfere with the Bishop of Norwich or his clergy in spiritual suits was construed as protecting all other prelates and ecclesiastics the Bishop of Norwich being put but for an example ³⁸

This kind of construction which would not be tolerated now ³⁹ was said to have been given to ancient statutes in consequence of

³² 2 Inst 167 5 Rep 107

³³ 2 Inst 256

³⁴ 2 Inst 426 *Strother v Hutchinson* (1838) 4 Bing NC 83

³⁵ 2 Inst 43

³⁶ *Platt v Sheriffs of London* (1550) Plowd 35

³⁷ 2 Inst 32

³⁸ 2 Inst 487

³⁹ *Affler v Salomons* (1853) 7 Ex 475 per Pollock C B

from decreeing the specific performance of such agreements though not in writing where they had been partly performed by the party seeking to enforce the contract. On all questions on that statute it was said the end and purport for which it was made—namely, to prevent frauds and perjuries—were to be considered and any agreement in which there was no danger of either was considered as out of the statute⁴⁶. The statute was not made to protect or be the means of, fraud⁴⁷ and as it would be a fraud on one of the parties if a partly performed contract were not completely performed, the Court of Chancery compelled its performance in contradiction to the positive enactment of the statute⁴⁸. Upon this principle an attorney's undertaking to pay his client's debt and costs has been enforced on motion of the court of which he was an attorney although void by the statute⁴⁹. The general doctrine cited above however was said by Eyre C.B. to raise the very mischief which the statute intended to prevent⁵⁰ and would probably have found no more favour at a later period in equity⁵¹ than it did in the courts of common law where it was never recognised⁵².

Similar considerations affected the construction which was put upon the Middlesex Registry Act 1708 (c. 20)⁵³ which after reciting that frauds were committed by means of secret conveyances enacted that deeds and wills affecting lands either at law or in equity should be adjudged fraudulent and void against subsequent purchasers unless a memorial of them were registered. It was nevertheless held that such instruments though unregistered

⁴⁶ *Att Gen v Day* (1794) 1 Ves Sen 221 per Lord Hardwicke. See Law of Property Act 1925 (c. 20) s. 40.

⁴⁷ *Carter v Boehm* (1766) 3 Burr 1918 per Lord Mansfield. *Lincoln v Wright* (1859) 4 De G. & J. 16 per Turner L.J. *Haugh v Kaye* (1872) L.R. 7 Ch. 469. *Williams v Evans* (1875) L.R. 19 Eq. 547. *Ungley v Ungley* (1871) 5 Ch. D. 887. *Re Duke of Marlborough* [1894] 2 Ch. 133.

⁴⁸ *Bond v Hopkins* (1802) 1 Sch. & Lef. 433 per Lord Redesdale. *Att Gen v Day* (1794) 1 Ves Sen 221. *Lester v Foxcroft* (1701) Colles 108. 1 White & Tudor's Eq. Ca. 881 where the later authorities are collected. 2 Story's Eq. Jur. ss. 752 et seq. *Webster v Webster* (1858) 27 L.J. Ch. 115. *Wilson v West Hartlepool Co* (1865) 34 L.J. Ch. 241. *Nunn v Fabian* (1865) L.R. 1 Ch. 35. *Frame v Dawson* (1807) 14 Ves. 387 applied in *Dickinson v Barrow* [1904] 2 Ch. 339. *Maddison v Alderson* (1883) 8 App. Cas. 467. *Humphreys v Green* (1882) 10 Q.B.D. 148. *Britain v Rossiter* (1879) 11 Q.B.D. 123.

⁴⁹ *Evans v Duncan* (1831) 1 Tyrw. 283.

⁵⁰ *O'Reilly v Thompson* (1791) 2 Cox. Eq. Ca. 273.

⁵¹ See e.g. *Hughes v Morris* (1852) 21 L.J. Ch. 761.

⁵² *Boydell v Drummond* (1809) 11 East 112, 159. *Cocking v Ward* (1845) 15 L.J.C.P. 245.

⁵³ s. 18.

were valid against subsequent purchasers who had notice of them ⁵⁴ It has been doubted whether the efficacy of the Act was not materially impaired by such a departure from its letter ⁵⁵

On similar grounds, it would seem although the various Acts of Parliament which created stocks since the beginning of the reign of George I provided that no method of assigning or transferring the stock except that provided by the Act should be valid or available in law and directed that the owner of stock might devise it by will, attested by two witnesses it was established by repeated decisions (before the Wills Act 1837 (c 26)) that notwithstanding such express terms stock might be disposed of by an unattested will it being held that, if not valid as a devise the will nevertheless bound the executor as a direction for the disposition of the stock ⁵⁶

Modern Rule

The foregoing principle of equitable construction has fallen into discredit, though sometimes sought to be revived under the new name of Legislation by Construction ⁵⁷ It was condemned, indeed by Sir Francis Bacon who declared that *non est interpretatio sed divinatio quae recedit a litera* ⁵⁸ Lord Tenterden lamented it ⁵⁹ and pronounced it dangerous ⁶⁰ and it may now be considered as altogether discarded as regards the construction of most modern statutes ⁶¹ Statutes are now to be considered as framed with a view to equitable as well as to legal doctrines ⁶² For instance, the fact that an execution creditor had notice when his debt was contracted that his debtor had given a bill of sale to another person which was not registered was held not to prevent the execution creditor from availing himself of the non registration ⁶³

⁵⁴ *Le Neve v Le Neve* (1747) Amb 436 *Davis v Strathmore* (1810) 16 Ves 419
Willis v Brown (1839) 10 Sim 127

⁵⁵ *Wyatt v Barwell* (1815) 19 Ves 439 per Sir W Grant *Doe v Allsop* (1821) 5 B & Ald 142

⁵⁶ *Ripley v Waterworth* (1802) 7 Ves 425 *Franklin v Bank of England* (1826) 7 L J K B 183

⁵⁷ See *Re English Scottish and Australian Bank* [1893] 3 Ch 385 per Williams J
⁵⁸ Adv of Learning

⁵⁹ *R v Turvey* (1819) 2 B & Ald 520

⁶⁰ *Bandling v Barrington* (1827) 6 B & C 475

⁶¹ *Ex p Walton* (1881) 17 Ch D 750 per Jessel MR *Irish Land Commission v Brown* [1904] 2 Ir R 200 211

⁶² *Edwards v Edwards* (1876) 2 Ch D 291 at p 296 per James LJ and p 297 per Mellish LJ

⁶³ *Edwards v Edwards* (1876) 2 Ch D 291

Where however a modern statute is strictly ⁶⁴ *in pari materia* with one which has already received an equitable construction that construction is extended to it on the general principle that they form together one body of law and are to be construed together ⁶⁵ Thus section 3 of the Civil Procedure Act, 1833 (c 42) which limited the time for bringing actions on bonds and other specialties to twenty years (afterwards twelve years) ⁶⁶ in language identical with that used in section 3 of the Limitation Act 1623 (21 Jac c 16), respecting simple contract debts received the same equitable construction as had been given to the last named Act, and the administrator of the obligor of a bond which had been put in suit in 1831, in which year the action abated by the death of the obligor was held to be liable to be sued in 1858 within a year from the grant of letters of administration ⁶⁷

Equity of a Statute

It may not be out of place to mention here that the expression the equity of a statute is sometimes used as meaning the principle or ground of a rule adopted from analogy to a statute For instance 6 Ricb 2 (c 2) ⁶⁸ which provided that a writ should abate if the declaration showed that the contract sued upon was made in a different county from that mentioned in the writ is said to have led (by the equity of that statute or the analogy which it furnished) to the introduction by the judges in the reign of James I of the practice of changing the venue on motion where there was no variance between the writ and declaration as to the place where the cause of action arose ⁶⁹

Statute contrary to Natural Equity or Reason

It was formerly asserted that a statute contrary to natural equity or reason (such as one which made a man a judge in his

⁶⁴ Cf *Adam v Inhabitants of Bristol* (1834) 2 A & E 389

⁶⁵ *Ante* pp 32 *et seq*

⁶⁶ Real Property Limitation Act 1874 (c 57) s 1

⁶⁷ *Sturgis v Darell* (1860) 29 L J Ex 472 and see as to when time under the statute began to run *Wakefi Id etc Bank v Yates* [1916] 1 Ch 452 See now Limitation Act 1939 (c 21) s 2 Law Reform (Miscellaneous Provisions) Act 1934 (c 41) s 1 (1) and see for an example of the peculiar position of administrators *Airey v Airey* [1958] 2 Q B 300 CA

⁶⁸ Repealed by the Civil Procedure Acts Repeal Act 1879 (c 59)

⁶⁹ *Night v Farnaby* (1706) 2 Salk 670 *Craft v Bont* (1669) 1 Saund 247 Tidd Pr c 24

what Lord Coke said in his Reports on this point may have been one of the many things that King James alluded to, when he said that in Coke's Reports there were many dangerous conceits of his own uttered for law to the prejudice of the Crown Parliament and subjects.⁷

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⁷ Kent's *Commentary on American Law* 12th ed. Vol. 1 pp. 447-448

CHAPTER 10

STRICT CONSTRUCTION

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SECTION I — CONSTRUCTION OF PENAL LAWS

THE rule which requires that penal and some other statutes shall be construed strictly was more rigorously applied in former times when the number of capital offences was very large¹ when it was still punishable with death to cut down a cherry tree in an orchard, or to be seen for a month in the company of gipsies, or for a soldier or sailor to beg and wander without a pass. Invoked in the majority of cases *in favorem vite* it has lost much of its force and importance in recent times and it is now recognised that the paramount duty of the judicial interpreter is to put upon the language of the legislature, honestly and faithfully its plain and rational meaning and to promote its object.

The rule was founded however on the tenderness of the law for the rights of individuals and on the sound principle that it is for the legislature not the court to define a crime and ordain its punishment². It is unquestionably a reasonable expectation

¹ Previous to the Revolution the number on the Statute Book is said not to have exceeded 50. During the reign of George II 63 new ones were added. In 1770 the number was estimated in Parliament at 154 (Cavendish Debates ii 12) but by Blackstone (Comm iv 18) at 160 and Romilly in a pamphlet which he wrote in 1786 (Observation on a late publication entitled Thoughts on Executive Government London) observed that in the sixteen years since the appearance of Blackstone's Commentaries it had considerably increased. Lecky *History of England* Chap 4.

² 4 Bl Comm 4.

³ *US v Wiltberger* (1870) 5 Wheat 95.

that, when the legislature intends the infliction of suffering or an encroachment on natural liberty or rights or the grant of exceptional exemptions powers and privileges, it will not leave its intention to be gathered by mere doubtful inference, or convey it in cloudy and dark words only⁴ but will manifest it with reasonable clearness. Thus, a mere declaration that all lotteries are unlawful does not create any offence on which a prosecution can be based⁵. The rule of strict construction does not indeed, require or sanction that suspicious scrutiny of the words or those hostile conclusions from their ambiguity or from what is left unexpressed which characterise the judicial interpretation of affidavits in support of *ex parte* applications⁶ or of magistrates convictions where the ambiguity goes to the jurisdiction⁷. Nor does it allow the imposition of a restricted meaning on the words wherever any doubt can be suggested to withdraw from the operation of the statute a case which falls both within its scope and the fair sense of its language. This would be to defeat not to promote the object of the legislature⁸ to misread the statute and misunderstand its purpose⁹. A court is not at liberty to put a limitation on general words which is not called for by the sense or the objects or the mischiefs of the enactment¹⁰ and no construction is admissible which would sanction a fraudulent evasion of an Act¹¹.

But the rule of strict construction requires that the language shall be so construed that no cases shall be held to fall within it which do not fall both within the reasonable meaning of its terms and within the spirit and scope of the enactment¹². Where

⁴ 4 Inst 332

⁵ *Sales Matic Ltd v Hinchcliffe* [1959] 3 All E R 401 a decision on the Betting and Lotteries Act 1934 (c 58) s 21

⁶ See e.g. *Perks v Severn* (1806) 7 East 194 *Fricke v Poole* (1829) 9 B & C 543

⁷ *R v Davis* (1833) 5 B & Ad 551 *R v Jones* (1841) 12 A & E 684 *Coleridge J*

R v Toke (1838) 8 A & E 227 *per cur Lindsay v Leigh* (1848) 11 QB 455

R v Stamford (1848) 11 QB 66 *Fletcher v Calthrop* (1845) 6 QB 880

⁸ Bac Ab Stat (1) 9 *R v Hodnett* (1786) 1 TR 101

⁹ *Nicholson v Fields* (1862) 31 LJ Ex 236 *Foley v Fletcher* (1858) 3 H & N 781

¹⁰ *U S v Coombs* (1838) 12 Peters 80

¹¹ Com Dig Parl (R) 28 Bac Ab Stat (1) 9 *Britton v Ward* (1619) 2 Roll 127 *per cur U S v Bilberger* (1820) 5 Wheat 95 *U S v Gooding* (1827) 12 Wheat 460 *American Fur Co v U S* (1829) 2 Peters 367 *U S v Coombs* (1838) 12 Peters 80 *U S v Hart ell* (1867) 6 Wallace 385 395 See ante Chap 4

¹² Best CJ *Fletcher v Soudes* (1826) 3 Bing 580 *Brady's Case* (1696) 1 Salk 348 *R v Harvey* (1747) 1 Wils 164 *Danes v Painter* (1674) Freeman KB 175 *Scott v Paquet* (1867) LR 1 PC 557 *Ellis v McCormick* (1869) LR 4 QB 271 *The Gauntlet* (1871) LR 4 PC 191 *per James LJ R v South Shields Licensing JJ* [1911] 2 KB 1 *per Lord Alverstone CJ Evans v Cross* [1938] 1 KB 694

an enactment may entail penal consequences, no violence must be done to its language to bring people within it but rather care must be taken that no one is brought within it who is not within its express language¹³ To determine that a case is within the intention of a statute its language must authorise the court to say so, but it is not admissible to carry the principle that a case which is within the mischief of a statute is within its provisions so far as to punish a crime not specified in the statute because it is of equal atrocity or of a kindred character with those which are enumerated¹⁴ If the legislature has not used words sufficiently comprehensive to include within its prohibition all the cases which fall within the mischief intended to be prevented it is not competent to a court to extend them¹⁵ It is immaterial for this purpose whether the proceeding prescribed for the enforcement of the penal law be criminal or civil¹⁶

The degree of strictness applied to the construction of a penal statute depended in great measure on the severity of the statute Where it merely imposed a pecuniary penalty it was construed less strictly than where the rule was invoked *in favorem vite* Formerly, an indictment for the capital felony of assaulting a person at a certain time and place and feloniously cutting or feloniously robbing him was fatally bad because it did not allege that the cutting or the robbing was done then and there while a similar omission in an indictment for the misdemeanour of a common assault was considered immaterial¹⁷

Lord Hale mentions that the statute 1 Edw 6 c 12 which made the stealing of horses in the plural a capital offence gave rise to a doubt, which it was thought necessary to remove by enactment in the following session of Parliament whether it included the theft of one horse only, the doubt resting on the slender foundation that an earlier Act spoke of stealing any horse in the singular number¹⁸

¹³ *London C C v Aylesbury Dairy Co* [1898] 1 Q B 106 See also *R v Martin* [1956] 2 Q B 272

¹⁴ *U S v Willberger* (1870) 5 Wheat 96

¹⁵ *Proctor v Manwaring* (1819) 3 B & Ald 145 *per* Lord Tenliden *Robinson v Emerson* (1866) 4 H & C 352 at p 356

¹⁶ *Henderson v Sherborne* (1837) 2 M & W 236 *Nicholson v Fields* (1862) 31 L J Ex 236 *Fletcher v Hudson* (1881) 7 Q B D 611 *The Bolina* (1812) 1 Gallison 83 Story J

¹⁷ 2 Hale 178 *R v Baude* (1603) Cro Jac 41 *R v Francis* (1735) 2 Stra 1015

¹⁸ 2 Hale 365 *Cf R v Rowlands* (1882) 8 Q B D 530 as to defrauding creditors when one only is defrauded Now by s 1 (1) of the Interpretation Act 1889 (c 63) (*see* Appendix) words in the singular include the plural and vice versa unless the contrary intention appears

Perhaps the same spirit may be found in the decisions that a court was not bound to know that a colt was a horse in an Act against horse stealing¹⁹ or that a pig was a 'hog' in an Act against hog stealing²⁰ and that an enactment which made it a felony to 'stab cut or wound' did not reach the case of biting off a nose or a finger because the injury thus inflicted was not caused by an instrument²¹ nor that of breaking a collar bone, when the skin was not also broken.

A strict construction requires at least, that no case shall fall within a penal statute which does not comprise all the elements which whether morally material or not are in fact made to constitute the offence as defined by the statute. Thus the Coventry Act (22 & 23 Car. 2 c. 1) (repealed by the Offences against the Person Act 1828 (c. 31)) which made capital the infliction, with malice aforethought and by lying in wait, of a variety of disfiguring or disabling bodily injuries was held not to include any such outrage however malicious and deliberate when not preceded by a lying in wait with the intent of committing it.²² And it was much doubted whether a person who inflicted such injuries with intent to murder and not merely to maim and disfigure fell within the Act.²³

If a pirate attacks a vessel but instead of taking her extorts from her master a promise to pay a sum for her redemption no piracy would be committed for there is no taking.²⁴

The Riot Act 1714 (c. 5) which makes it a felony for rioters to remain assembled for more than an hour after the proclamation set forth in the Act has been made has been held to fail of effect if the proclamation is not made fully and accurately as if for example the final words 'God save the King [Queen]' are omitted.²⁵

¹⁹ *R v Bearey* (1801) Russ. & Ry. 416. Cf. *R v Heward* (1871) Russ. & Ry. 494.

²⁰ *US v McLain* (1800) 2 Brev. 443 (Tennessee).

²¹ *R v Stevens* (1834) 1 Moo. C.C. 409. *R v Harris* (1836) 7 C. & P. 446. *R v Jeans* (1844) 1 C. & K. 439. Cf. *R v Stadtholt* (1833) 5 C. & P. 404. *R v Firby* (1834) 2 Lew. 16. *R v Walham* (1849) 3 Cox C.C. 447. *R v Ovens* (1879) 1 Moo. C.C. 705.

²² *R v Wood* (1830) 4 C. & P. 351.

²³ *R v Tukner* (1790) 1 East 1 C. 375. *R v Child* (1830) 4 C. & P. 41.

²⁴ *R v Clay* (1711) 1 East P.C. 400 per Lord King and Yates J. *cf. Fitz Willes J. and Lyte B.* See also *R v Williams* (1720) 1 East 1 C. 474.

²⁵ *Moloy De J. e. Malim*, Chap. 4, § 13. For a definition of this offence see *Att. Gen. (H. J. King) v Awoke-Sing* (1873) L.R. 51 C. 179.

²⁶ *R v Child* (1830) 4 C. & P. 41. *R v Wood* (1830) 5 C. & P. 516.

A person cannot be convicted of perjury if the oath was administered by one who had not legal authority to administer it as in the case of an affidavit in the Admiralty sworn before a Master in Chancery, though the Admiralty was in the habit of admitting affidavits so sworn.⁷

A statute which imposed a penalty where sacks of coal upon being weighed should be found deficient in weight of coal and prescribed that, in the weighing, the sacks were to be weighed both with and without the coals therein, was not complied with by putting the full sacks successively into one scale and an empty sack with the weights which the coal in each should weigh in the other, and consequently the penalty was held not recoverable by the buyer in such a case⁸ the precise procedure indicated by the statute not having been followed.

An enactment which made it a misdemeanour by a bankrupt to commit certain acts within four months next before the presentation of a bankruptcy petition *against* him did not have that effect where the petition was presented by the bankrupt himself.⁹

An Act¹⁰ which made it penal to personate 'any person entitled to vote' would not be violated by personating a dead voter.¹¹

A penalty imposed on a man who ran away leaving his wife and children chargeable or whereby they became chargeable would not be incurred by his simple desertion without the intent that his family should become chargeable to the parish.¹²

A husband has been held not liable to conviction for refusing to maintain his wife when she refused to live with him though her refusal was owing to his ill treatment.¹³

A gamekeeper who kills wild rabbits in his master's woods which it was his duty to protect and takes them away at once

⁷ *R v Stone* (1854) 23 L J M C 14

⁸ 1 & 2 Will 4 c lxxvi s 57 *Meredith v Holman* (1847) 16 L J Ex 126 *Smith v Wood* (1889) 59 L J Q B 5

⁹ Debtors Act 1869 (c 62) s 11 *Re Burden* (1888) 21 Q B D 24 See now Bankruptcy Act 1914 (c 59) s 154

¹⁰ Poor Law Amendment Act 1851 (c 105)

¹¹ *Whiteley v Chappell* (1869) 38 L J M C 51 *R v Brown* (1800) 2 East P C 1007 Contrast *R v Martin* (1817) Russ & Ry 324 and *R v Cramp* (1817) Russ & Ry 327 where a contrary result was arrived at on the construction of Navy Prize Money Act 1814 (c 93) s 89 in relation to prize money

¹² *Reeve v Yeates* (1862) 31 L J M C 241 *Sweeney v Spooner* (1863) 32 L J M C 82

¹³ *Flannigan v Bishopwearmouth* (1857) 27 L J M C 46 *Pape v Pape* (1887) 20 Q B D 76

and sells them is not guilty of embezzling the rabbits for he did not get possession of them for or on account of his master³⁴

The Solicitors Act 1860 (c 127) s 26, which imposed a penalty on an unqualified person who, either in his own or another's name did any act appertaining to the office of proctor for fee or reward would not apply to mere agents, or to acts which, though usually performed by proctors, were not of strict right incident to their office, such as preparing the documents necessary for obtaining letters of administration where there was no contest³⁵

The Larceny Act, 1861 (c 96), s 88, which punished the obtaining with intent to defraud of any chattel money, or valuable security by a false pretence was not violated by obtaining credit on account by a false pretence,³⁶ nor by obtaining a dog by a false pretence, for a dog was not a chattel which was the subject of larceny at common law³⁷

An agent entrusted with money to invest on mortgage is not liable to conviction for embezzling it as entrusted to him for safe custody³⁸

The forging of an indorsement on a document in the form of a bill of exchange but having no drawer's name thereon, would not be a forging of an indorsement on a bill of exchange³⁹

Obtaining from the correspondent of a banker a sum of money on a cheque drawn in favour of the correspondent on the banker on whom the drawer falsely pretended he had authority to draw would not be an attempt to obtain money from the banker by false pretences. If the correspondent were to obtain the money from the banker it would not be obtained by the authority of the

³⁴ *R v Read* (1878) 3 Q B D 131 See Larceny Act 1916 (c 50) s 17

³⁵ *Stephenson v Higginson* (1851) 3 11 L.Cas 638 *Law Socy v Shaw* (1887) 9 Q B D 1 See Solicitors Act 1957 (c 27) s 18

³⁶ *R v Havell* (1829) 1 Moo C C 224 see Larceny Act 1916 (c 50) s 32 Probably however the offender would come within the mischief of s 13 of the Debtors Act 1869 (c 62) and s. 156 of the Bankruptcy Act 1914 (c 59) *R v Jones* (1897) 67 L J Q B 41

³⁷ *R v Robinson* (1859) 28 L J M C 58 But chattels includes choses in action such as shares in a joint stock company *Robinson v Jenkins* (1890) 24 Q B D 275 and a dog may be "goods" *R v Skyle* (1838) 21 Q B D 433 By the Larceny Act 1861 (c 96) s 18 dog-stealing was made a criminal offence See CHATTELS, and GOODS AND CHATTELS. Stroud's Judicial Dictionary and Supp

³⁸ Larceny Act 1861 (c 96) s. 76 *R v Newman* (1882) 8 Q B D 706 See now Larceny Act 1916 (c 50) s. 20

³⁹ *R v Ha per* (1831) 7 Q B D 78 Cf *R v Berman* [1891] 1 Q B 117

drawer of the cheque nor, presumably, by his wish, for he would gain nothing by it ⁴⁰ It might, however constitute a misdemeanour within the meaning of the Debtors Act 1869 (c 62) s 13 (1)

The provision in section 29 of the Sheriffs Act 1887 (c 55) which imposes a penalty on any sheriff's officer who "takes or demands any money or reward under any pretext whatever other than the fees or sums allowed by that or any other Act would not apply to a claim for charges disallowed on taxation as the claim must be taken to have been a demand for such items of the charges as should be allowed on taxation ⁴¹ Moreover the penalty is inflicted for the doing of an act in the nature of a criminal offence and to constitute such an offence there should be *mens rea* and, consequently he is not liable to a penalty for a mere mistake ⁴²

The Act which punishes the administration of a noxious drug would not include a substance which is not in itself poisonous but noxious only when given in excess, as cantharides ⁴³ A provision which prohibits unloading coal across a footway does not apply to coke ⁴⁴

It was held that the Act which imposed a penalty for baiting animals did not apply to setting dogs in pursuit of rabbits in a small enclosed space of three or four acres from which the rabbits could not escape the word "baiting" being if not etymologically at least popularly, confined to attacks on animals tied to a stake ⁴⁵

Again it has been held that a person is not guilty of "frequenting" a street with intent to commit a felony in the absence of evidence that he has been there more than once ⁴⁶

⁴⁰ *R v Garrett* (1853) 23 L J M C 20

⁴¹ *Woolford v Trustee v Levy* [1892] 1 Q B 772

⁴² *Lee v Dangar* [1892] 2 Q B 337 As to *mens rea* see *ante* pp 95-107

⁴³ *R v Hennah* (1877) 13 Cox C C 547 Cf *R v Wilson* (1857) 26 L J M C 18

⁴⁴ Metropolitan Streets Act 1867 (c 134) s 5 (now repealed) *Fletcher v Fields* [1891] 1 Q B 790 But see London Traffic (Restrictions on Delivery of Coke) Regulations 1937

⁴⁵ *Pitts v Millar* (1874) 9 Q B D 380 As to domestic animal under the Cruelty to Animals Acts 1849 (c 92) and 1854 (c. 60) see *Yates v Higgins* [1896] 1 Q B 166 and cases therein cited But see now Protection of Animals Act 1911 (c. 27) s 1 (3) as amended by the Protection of Animals Act (1911) Amendment Act 1921 (c 14)

⁴⁶ Vagrancy Act 1824 (c. 83) s 4 (amended by Prevention of Crimes Act, 1871 (c. 117) s 15) *Clark v R* (1885) 14 Q B D 92 but see *Land v Walker* (1902) 40 Sc L R 254 *Davis v Jeans* (1904) 41 Sc L R 476 and see *Pointon v Hill* (1884) 12 Q B D 306 as to "wandering abroad to beg and gather alms" within s 3 of same Act.

Also it has been decided that a person charged under the Apothecaries Act 1815 (c 194) s 20, with acting and practising as an apothecary was not amenable to more than one penalty although it was proved he had supplied medicine to several persons on the same day ⁴⁷

An article kept ready for use in a back room or cellar was not exposed for sale within section 6 of the Margarine Act, 1887 (c 29) ⁴⁸

A person found on premises for an immoral purpose involving no breach of the criminal law does not fall under the penalty imposed for being found on premises "for an unlawful purpose" ⁴⁹

Nor would a man who obtained a licence to retail beer by means of a certificate that he was a person of good character be liable to conviction for using a certificate which he knew to be false merely because he cohabited with a woman without being married to her ⁵⁰

The Metropolis Management Amendment Act 1862 (c 102) in incorporating the powers for the 'suppression' of nuisances conferred by an earlier local Act which contained besides several provisions for getting rid of existing nuisances a prohibition against keeping pigs was held not to have comprised this last provision, as the effect of it was not to suppress, but to prevent the creation of nuisances ⁵¹

Where a local Act after providing by one section that any structure built or rebuilt except on the site of a former dwelling should not be used as a dwelling unless there was an open space of twenty feet in front of it without the previous consent of the local board imposed, by another a penalty if any building or work were made or suffered to continue contrary to the provisions of the Act the court refused to construe the latter section as including

⁴⁷ *Apothecaries Co v Jones* [1893] 1 Q B 89 *Grieg v Bendeno* (1858) 27 L J M C 294

⁴⁸ *Crane v Lawrence* (1890) 25 Q B D 152 *Cf Wheat v Brown* [1892] 1 Q B 418 *Barlow v Terrett* [1891] 2 Q B 107 followed in *Firth v McPhail* [1905] 2 K B 300 *Hobbs v Winchester* [1910] 2 K B 471 Apparently selling margarine spread on bread in an eating house was not exposing for sale within the meaning of the Act *Moore v Pearce & Dining etc Rooms* [1895] 2 Q B 657

⁴⁹ Vagrancy Act 1824 (c 83) *Hayes v Stevenson* (1860) 3 L T 296

⁵⁰ *Leader v Yell* (1864) 33 L J M C 231

⁵¹ *Chelsea Vestry v Aing* (1865) 34 L J M C 9 *G H Ry v Bishop* (1872) L R 7 Q B 550 See Public Health (London) Act 1936 (c 50) Part III

the offences prohibited in the former though the effect of the decision was to leave them without specific provision for their punishment ⁶²

On the ground that an enactment giving a power of committal for non payment of a debt is a highly penal one it was held that section 5 (2) of the Debtors Act, 1869 (c 62), which gave such a power in the case of default made by any person in payment of any 'debt due from him' in pursuance of a judgment did not apply to the case of a judgment debt with execution limited to the separate property of a married woman which could not properly be described as a debt due from her upon the strict construction which such a section required ⁶³

It has been held that a garnishee order absolute is not a 'final judgment' against the garnishee within section 4 (1) (g) of the Bankruptcy Act 1883 (c 62) for the words 'final judgment' have a proper professional meaning and should be construed strictly ⁶⁴

Using a vehicle not properly licensed involved a monetary penalty under the Vehicles (Excise) Act 1949 (c 89), s 13 (2) but was not a criminal offence ⁶⁵

New Things outside Old Laws

As illustrative of the rule of strict construction it has been said that while remedial laws may extend to new things not *in esse* at the time of making the statute,⁶⁶ penal laws may not. Thus the 31 Eliz 1 c 12 (repealed by 7 & 8 Geo 4 c 27, s 1) which took away the benefit of clergy from accessories after, as well as before, the fact, was held not to extend to accessories made by subsequent enactment. The receiver therefore, of a stolen horse who was made an accessory by a later statute was held not ousted ⁶⁷

Where the Larceny Act, 1861 (c 96) s 91,⁶⁸ made it felony to receive with guilty knowledge a chattel the stealing of which

⁶² *Pearson v Kingston on Hull* (1865) 35 L J M C 36 *disc* Martin B. See another example in *Elliott v Majendie* (1872) L R 7 Q B 429

⁶³ *Scott v Morley* (1887) 20 Q B D 120 *Re Gardiner* (1887) 20 Q B D 249. But see as to who is a debtor within the meaning of the Bankruptcy Act 1914 (c. 59) s 1 (2) of that statute

⁶⁴ *Ex p Chinery* (1884) 12 Q B D 342 *Ex p Schmitz* (1884) 12 Q B D 511 *Ex p Whinney* (1884) 13 Q B D 476 *Re Henderson* (1888) 20 Q B D 509 *Ex p Lester* [1893] 2 Q B 113. See Bankruptcy Act 1914 (c 59) s 1 (1) (g)

⁶⁵ *Brown v Allweather Mechanical Greeting Co* [1954] 2 Q B 443. See now Finance Act 1953 (c 34) s 33 which overrules this case

⁶⁶ 2 Inst 35 *per cur* *Dawes v Painter* (1674) Freeman K B 175

⁶⁷ Fost Cr L 372

⁶⁸ See now Larceny Act 1916 (c 50) s 33

was felony either at common law or under that Act, and a subsequent Act made a partner who stole partnership property liable to conviction for the stealing as though he had not been a partner, it was held that to receive such stolen property was not an offence under the earlier Act ⁵⁹

The Act to prevent stock jobbing which after referring in the preamble to the great inconveniences which had arisen, and daily arose by the wicked practice of stock jobbing—diverting men from their ordinary pursuits ruining families discouraging industry, and injuring commerce—declared void all such contracts

in any public or joint stock or other public securities whatsoever was held notwithstanding the mischief in view and the wide terms used not to apply to transactions in foreign funds ⁶⁰ or in railway shares ⁶¹ on the ground that the former were not dealt in, and the latter were not known in England when the Act was passed.

A provision in an Act that Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act refers only to documents in existence at the time when the Act was passed ⁶²

Old Laws extended to New Things

But this degree of strictness may be regarded as extreme. It could hardly be contended that printing a treasonable pamphlet was not an offence against the Treason Act 1351 (st 5 c 2), because printing was not invented until a century after it was passed or that it would not be treason to shoot the monarch with a pistol ⁶³

Section 2 of the Beer Act 1816 (c 58) ⁶⁴ which enacted that no brewer or dealer in beer should have or put into beer, any liquor for darkening its colour or use molasses or any preparation in lieu of malt and hops, under a penalty of £200 was held not to be confined to such dealers as were known at the time when the Act was passed viz licensed victuallers licensed by a magistrate

⁵⁹ Larceny Act 1868 (c 116) s 1 *R v Smith* (1870) L.R. 1 C.C.R. 266 *R v Streeter* [1900] 2 Q.B. 601

⁶⁰ Stock Jobbing Act 1733 (c 8) (now repealed) *Henderson v Bise* (1822) 3 Stark 158 *Wells v Porter* (1836) 2 Bing N.C. 722 *Cf Smith v Lido* (1858) 27 L.J.C.P. 196 335

⁶¹ *Hewitt v Price* (1847) 11 L.J.C.P. 292 *Cf Ex p Copeland* (1853) L.J.Bk. 17

⁶² *Meek v Powell* [1952] 1 K.B. 164 at p 168 *per Parker J*

⁶³ Hallam Const Hist c 15

⁶⁴ Repealed Customs and Inland Revenue Act 1885 (c 51) s 10

under the Alehouses Act 1551 (c 25) but to include the retailer of beer furnished with an excise licence, who first came into legal existence under the Beerhouse Act 1830 (c 64) ⁶⁵

So section 18 of the Game Act, 1831 (c 32) authorising justices to license any householder to sell game who was not licensed to sell beer by retail, included not only householders licensed under the Beerhouse Act, 1830 (c 64), but also those who held an "additional" licence under section 1 of the Revenue Act, 1863 (c 33) ⁶⁶

The Bank of England Act 1708 (c 30) which enacted that if any sort of prohibited goods should be landed without payment of duty, the offender should forfeit treble value was held to extend to gloves, which were not prohibited until the Importation Act, 1765 (c 19) ⁶⁷

A Market Act which prohibited the sale of provisions in any part of the town but the market place would extend to parts of the town built after the Act was passed on what were then fields ⁶⁸ and this rule applies in cases where the old market provides in sufficient accommodation ⁶⁹

It was held that the repealed Engraving Copyright Act, 1734 (c 13), which imposed a penalty for piratically engraving by etching or otherwise or 'in any other manner' copying prints and engravings applied to copying by photography, though that process was not invented till more than a century after the Act was passed ⁷⁰

Bicycles were held to be carriages within the provision of the Highway Act, 1835 (c 50), against furious driving though not so held for taxing purposes ⁷¹ and tricycles propelled by steam to be locomotives within the Locomotives Act, 1865 (c 83) though not invented when those Acts were passed ⁷²

⁶⁵ *Att Gen v Lockwood* (1842) 9 M & W 378

⁶⁶ *Shoolbred v St Pancras JJ* (1890) 24 Q B D 346 With regard to the disputed point as to whether or not a person owning several shops and selling beer in one of them could hold a licence to sell game see *R v Bird* (1898) 42 S J 397

⁶⁷ *Att Gen v Sagers* (1814) 1 Price 182

⁶⁸ *Collier v Worth* (1876) 1 Ex D 464 *R v Cottle* (1851) 16 Q B 412 *Milton v Faversham* (1867) 10 B & S 548n

⁶⁹ *Gr Eastern Ry v Goldsmid* (1884) 9 App Cas 927

⁷⁰ *Gambart v Ball* (1863) 14 C B (ns) 306 *Graves v Ashford* (1867) L R 2 C P 410 *Ex p Beal* (1868) L R 3 Q B 387

⁷¹ *Williams v Ellis* (1880) 5 Q B D 175

⁷² *Taylor v Goodwin* (1879) 4 Q B D 228 see an interesting disquisition on this case in *Simpson v Teignmouth etc Bridge Co* [1903] 1 K B 405 *Parkyn v Preist* (1881) 7 Q B D 313

Under an Act which imposed a penalty for selling bread other wise than by weight, except bread usually sold under the denomination of fancy bread, it was held penal to sell bread which would have fallen within the exception at the time when the Act was passed, but which had since ceased to be sold under the denomination of fancy bread ⁷³

Omissions not Supplied

The general principle of strict construction is well exemplified by comparing the manner in which an omission which it was inferable from the text was the result of accident has been generally dealt with in penal and in remedial Acts. Thus, where the owner of mines was required, under a penalty, in case (1) of loss of life in the mine by accident or (2) of personal injury arising from explosion to send notice of such accident to an inspector within twenty four hours from the loss of life (omitting the case of personal injury) the court refused to supply in order to make the defendant liable to a conviction the obvious omission in the latter branch of the sentence and held that notice was not necessary when personal injury from explosion short of loss of life had occurred although the mention of such injury in the earlier part of the sentence was idle and insensible without such an interpolation ⁷⁴

The Weights and Measures Act 1835 (c 63) s 28, which empowered inspectors to examine weights, measures and scales in shops and if upon examination it appeared that the said weights or measures (omitting scales) were light or unjust to seize them was held not to authorise a seizure of scales ⁷⁵

The repealed Municipal Corporations Act 1835 (c 76) after empowering the borough justices to appoint a clerk to the justices provided that it should not be lawful to appoint to that office any alderman or councillor that the clerk should not prosecute any offender committed for trial and that any person being an alderman or councillor 'who should act as clerk to the justices or shall otherwise offend in the premises, should forfeit £100

⁷³ *R v Hood* (1855) L.R. 4 Q.B. 559. *Cf Aerated Bread Co v Gregg* (1873) L.R. 8 Q. 355 in which a conviction by justices was upheld and see also *l v Bread Co v Stubbs* (1896) 74 L.T. 704

⁷⁴ *Underhill v Longridge* (1859) 29 L.J.M.C. 65

⁷⁵ *Thomas v Stephenson* (1853) 22 L.J.Q.B. 258. But see now Weights and Measures Act 1878 (c. 49) s 48

recoverable by action. This clearly did not reach a clerk who prosecuted offenders committed by the justices if he were not alderman or councillor and yet the manifest intention seemed to be that he should be subject to the penalty for either or both offences of acting if disqualified, and of prosecuting. But to effectuate this intention it would have been necessary to interpolate the words 'any person who' before 'shall otherwise offend', and this the court refused to do to bring a person within the penal enactment,⁷⁶ though also relieving him from indictment.⁷⁷

So, the court refused to supply a *casus omissus* under the Vaccination Act, 1871 (c 98), as it was an enactment creating an offence.⁷⁸

Possibly if the statutes in these cases had been remedial, the omission would have been supplied, but there is no case directly in point. In *Re Wainwright*⁷⁹ Lord Lyndhurst LC observes 'It is not the court's province to supply an omission in an Act and if any such correction would extend the penal scope of an Act, still less will the court be inclined to correct. But where the alternative lies between either supplying by implication words 'which appear to have been accidentally omitted' or adopting a construction which deprives certain existing words of all meaning, it is usual to supply the words'.⁸⁰

Section 78 of the repealed Highway Act, 1835 (c 50) which enacted that if any person (1) riding a horse or (2) driving a carriage rode or drove furiously 'every person so offending should be liable on conviction before a magistrate to forfeit £5 if 'the driver' was not the owner of the carriage, and £10 if 'the driver' was the owner (not mentioning the rider) was construed as making the rider, who was not the owner of the horse, as well as the driver, liable. In other words, the section was read as providing that, while the owner of a carriage was liable to a penalty of £10 the offender in all the other cases mentioned was liable to £5.⁸⁰

⁷⁶ *Coe v Lawrence* (1853) 22 LJ QB 140 at p 142 per Coleridge J

⁷⁷ *R v Davis* (1870) LR 1 CC R 272 *Exp National Merc Bank* (1880) 15 Ch D 42

⁷⁸ *Broadhead v Holdsworth* (1877) 2 Ex D 321. And see *Equitable Life Assurance Society of the US v Reed* [1914] AC 587 PC

⁷⁹ *Re Wainwright* (1843) 1 Phil 258 *Jubb v Hull Dock Co* (1846) 9 QB 443 455

Craies on Statute Law 5th ed pp 103 et seq 501 et seq

⁸⁰ *Williams v Evans* (1876) 1 Ex D 277 overruling *R v Bacon* (1870) 11 Cox CC 540 *Chatterton v Parker* (1914) 78 JP 339 Cf *Underhill v Langridge* (1859) 29 LJ MC 65

Wide Sense given to Words

The rule of strict construction however whenever invoked comes attended with qualifications and other rules no less important, and it is by the light which each contributes that the meaning must be determined⁸¹ Among them is the rule that that sense of the words is to be adopted which best harmonises with the context and promotes in the fullest manner the policy and object of the legislature⁸² The paramount object, in construing penal as well as other statutes is to ascertain the legislative intent and the rule of strict construction is not violated by permitting the words to have their full meaning or the more extensive of two meanings, when best effectuating the intention⁸³ They are indeed, frequently taken in the widest sense sometimes even in a sense more wide than etymologically belongs or is popularly attached to them in order to carry out effectually the legislative intent, or to use Sir Edward Coke's words to suppress the mischief and advance the remedy⁸⁴

Thus, the Act which makes it felony to set fire to or damage a ship or vessel⁸⁵ has been construed as including an open boat of eighteen feet in length⁸⁶

Under the statute which makes it a misdemeanour knowingly to utter counterfeit coin is included a genuine coin from which the milling has been filed and replaced by another,⁸⁷ but on the other hand where there was no evidence of intention to utter a counterfeit coin made up of two genuine coins split and soldered together so as to constitute a double beaded piece the statute was held inapplicable⁸⁸

⁸¹ *Per cur* *US v Hartwell* (1867) 6 Wallace 385 395

⁸² I think the legislature by passing this s 11 intended packing or wrapping paper by whatever name it was called to be the subject of a tax because it was to be in competition with an English product *Scrutton L J in Powell Lane Manufacturing Co v Putnam* (1931) cited by Horridge J in *Newman Manufacturing Co v Marrable* [1931] 2 K B 297 304 I think that I ought to look at the object of this section I think it was intended to protect the English button trade See [1931] 2 K B 305n

⁸³ *US v Hartwell* (1867) 6 Wallace 396

⁸⁴ *Heydon's Case* (1584) 3 Rep 7b

⁸⁵ The term vessel includes any ship or boat or any other description of vessel used in navigation *Merchant Shipping Act, 1894* (c 60) s 742

⁸⁶ *Semble* *Patteson J R v Bowyer* (1831) 4 C & P 559 *Cf Ex p Ferguson and Hutchinson* (1871) L.R. 6 Q B 280

⁸⁷ *R v Hermann* (1879) 4 Q B D 284

⁸⁸ *R v McMahon* (1894) 15 NSWLR 131

The possession of a die for making a false stamp, known to be such by its possessor is, however innocent his intention a possession 'without lawful excuse within the Post Office (Protection) Act 1884 (c 76), s 7⁸⁹

Although the Act which punishes a man for running away from his wife and children,' thereby leaving them chargeable to the parish applies not only to the desertion of legitimate children this rests not on any indisposition to depart from the strict and narrow meaning of the word but on the ground that the object of the legislature was limited to the enforcement of the man's legal obligation, which did not extend to the support of his illegitimate children⁹⁰

But the statute which made it a criminal offence to take an unmarried girl from the possession and against the will of her father or mother was held to apply to the case of a natural daughter taken from her putative father⁹¹ for the wider construction obviously carried out more fully the aim and policy of the enactment The taking from the possession again in the same enactment is construed in the widest sense, implying neither actual nor constructive force and extending to voluntary and temporary elopements made with the active concurrence of the girl⁹²

Sir Edward Coke thought that burglary might be committed in a church, because a church is the mansion of God but Lord Hale thought this opinion only a quaint turn without any argument⁹³ It is now, however, provided by section 27 of the Larceny Act 1916 (c 50), that to break and enter a place of divine worship is a felony exactly analogous in character to the breaking and entering of a dwelling house

⁸⁹ Repealed Post Office Act 1908 (c. 48) See now Post Office Act 1953 (c 36) s 63 *Dickins v Gill* [1896] 2 Q B 310

⁹⁰ *R v Maude* (1842) 11 L J M C 120 on which see *Woolwich v Fulham* [1906] 2 K B 240 at p 247 per Vaughan Williams L J *Westminster v Gerard* (1621) 2 Bulst 346 As to whether or not a man who runs away from his wife and children one or more of whom is illegitimate is guilty of an offence under the Vagrancy Act 1824 (c 83) s 3 see 20 J P at p 364

⁹¹ Offences Against the Person Act 1861 (c 100) s 55 repealed Sexual Offences Act 1956 (c 69) and replaced by s 20 of that Act *R v Cornforth* (1742) 2 Stra 1162 See also *R v Hodnett* (1786) 1 T R 96

⁹² *R v Robins* (1844) 1 C & K 456 *R v Kipps* (1850) 4 Cox C C. 167 *R v Biswell* (1847) 2 Cox C C. 279 *R v Manktelow* (1853) 22 L J M C 115 *R v Timmins* (1860) 30 L J M C 45

⁹³ 1 Hale 556 See *Folkestone Corp v Woodward* (1872) L R 15 Eq 159 *Wright v Ingle* (1885) 16 Q B D 379

The breaking required to constitute burglary includes acts which would not be so designed in popular language, such as lifting the flap of a cellar⁹⁴ or pulling down the sash of a window⁹⁵ or raising a latch⁹⁶ or even descending a chimney, for that is as much closed as the nature of things permits⁹⁷. Lord Hale, who doubted whether the latter act was a breaking was relieved from deciding the point in the case before him, as it was elicited that some bricks had been loosened in the thief's descent which sufficed to constitute a breaking⁹⁸. Indeed, the burglar 'breaks' into a house if he gets admittance by inducing the inmate to open the door by a trick as by a pretence of business, or by raising an alarm of fire⁹⁹.

A threatening letter is sent when it is dropped in the way of the person for whom it is destined so that he may pick it up¹ or is sent to A that he may deliver it to B², or is affixed in some place where B would be likely to see it³ or is placed on a public road near his house so that it may however indirectly, reach him, which it eventually does after passing through several hands⁴ or perhaps even if it does not reach the person addressed⁵ although in none of these cases would the paper be popularly said to have been sent.

A person who writes and publishes an article in a newspaper intending to encourage the murder of another person anywhere is guilty of encouraging a person to murder though the article is not addressed to any particular person⁶.

To make false signals and thereby to bring a train to a stop on a railway was held to be within the enactment which made

⁹⁴ *Brown v Case* (1799) 2 East PC 487 *R v Russell* (1833) 1 Moo CC 377 *Cf R v Lawrence* (1830) 4 C & P 231

⁹⁵ *R v Haines* (1821) Russ & Ry 451

⁹⁶ *R v Jordan* (1836) 7 C. & P 43.

⁹⁷ 1 Hawk c 38 s 4 *R v Brice* (1821) Russ & Ry 450

⁹⁸ 1 Hale 552

⁹⁹ 2 East PC 485

¹ *R v Jepson and R v Lloyd* (1767) 2 East PC 1115 1122 *R v Wagstaff* (1819) Russ & Ry 398

² *R v Paddle* (1822) R & R. 484

³ *R v Williams* (1843) 1 Cox CC 16

⁴ *R v Grimwade* (1844) 1 Den 30 See also *R v Jones* (1851) 5 Cox CC 276

⁵ *R v Adams* (1888) 22 QB D 66

⁶ *Offences Against the Person Act 1861* (c 100) s 4 *R v Most* (1881) 7 QB D 744 *R v Antonelli* (1906) 70 JP 4

it an offence to 'obstruct a railway, and an enactment which made it a misdemeanour to do anything to obstruct an engine or carriage using a railway was held to include railways not yet open to public traffic and to apply though no engine or carriage was obstructed⁸

The collection of alms on false and fraudulent pretences is an 'immoral act' within the meaning of the Clergy Discipline Act 1892 (c 32) s 2⁹ as is also habitual swearing and ribaldry¹⁰

A person "suffers gaming to go on in his house who purposely abstains from knowing of it, or purposely goes out of reach of seeing or hearing it¹¹ and he uses an instrument for the destruction of game on a Sunday who sets a snare on Saturday and leaves it till Monday¹²

An Act which makes it penal to administer or to cause to be taken a noxious drug to procure abortion would be violated by one who supplied such a drug to a woman and explained to her how it was to be taken, and she afterwards took it accordingly in his absence¹³ And a man supplies such a drug knowing it to be intended' to procure abortion if he so intended it though the woman did not¹⁴

To supply beer at a public house to a drunken man would be to 'sell' the liquor to him although it was ordered and paid for by a sober companion¹⁵

A repealed Act which prohibited under a penalty 'the copying of a painting without the owner's leave was held to reach a

⁷ *R v Hadfield* (1870) LR 1 CCR 253 *R v Hardy* (1871) LR 1 CCR 278
Cf Walker v Horner (1876) 1 QBD 4 *Bastable v Little* [1907] 1 KB 59 with
Betts v Stevens [1910] 1 KB 1 *Gully v Smith* (1884) 12 QBD 121

⁸ *R v Bradford* (1860) 29 LJMC 171

⁹ *Fit maurice v Hesketh* [1904] AC 266 *Beneficed Clerk v Lee* [1897] AC 226

¹⁰ *Moore v Oxford (Bp)* [1904] AC 283

¹¹ Licensing Act 1872 (c 94) s 17 repealed by Licensing (Consolidation) Act 1910 (c 24) *Redgate v Haynes* (1876) 1 QBD 89 *Bond v Evons* (1888) 21 QBD 249 *Cf Somerset v Hart* (1884) 12 QBD 360 and *Somerset v Wade* [1894] 1 QB 574 *Massey v Morris* [1894] 2 QB 412 See now Licensing Act 1953 (c 46) s 141

¹² *Allen v Thompson* (1870) LR 5 QB 336 *Ruther v Harris* (1876) 1 Ex D 97

¹³ *R v Wilson* (1857) 26 LJMC 18 *R v Farrow* (1857) D & B 164 *Cf R v Hennah* (1877) 13 Cox CC 547

¹⁴ *R v Hillman* (1864) 33 LJMC 60 *Cf R v Fretwell* (1862) 31 LJMC 145

¹⁵ Licensing Act 1872 (c 94) s 13 repealed Licensing (Consolidation) Act 1910 (c 24) *Scatchard v Johnson* (1888) 57 LJMC 41 See *Pletts v Campbell* [1895] 2 QB 229 and *Radford v Williams* (1914) 78 JT 90 See now Licensing Act 1953 (c 46) s 136

photograph of an engraving which the proprietor of the painting had made from it ¹⁶

A servant receives money 'for or in the name or on account of his master' within the Act against embezzlement who having a cheque given to him in his own name for his master, gets it cashed by a person ignorant of the circumstances, for, though that person did not pay the money on account of the master, it was enough that it was received on his account ¹⁷

The Sale of Food and Drugs Act, 1875 (c 63), which made it penal to sell an adulterated article to the prejudice of the purchaser included a sale to an officer who made the purchase not with his own money or for his own use but with the public money and for analysis ¹⁸

A man who fires from a highway at game has trespassed on the land of the owner of the soil on which the highway runs for the right of way over the road is only an easement and if a man uses it for an unlawful purpose he becomes a trespasser ¹⁹ If he walks with a gun with intent to kill game, he 'uses' the gun for that purpose without firing within the statute which makes using a gun with that intent penal ²⁰ and the offence of 'taking game is complete when the game is snared, though neither killed nor removed' ²¹

A public place too has received a very wide meaning in cases of nuisance ²² and a workhouse was held to be a public building within the Factory and Workshop Act, 1901 (c 22) s 149 (1) Sched VI Part I, cl 20 ²³

A person who pays for goods by a cheque on a bank where he has no assets is guilty of 'obtaining goods by false pretences

¹⁶ *Ex p Beal* (1868) L R 3 Q B 387. Cf *Gambart v Ball* (1863) 14 C B (N S) 306

¹⁷ *R v Gale* (1876) 2 Q B D 141. Cf *R v Read* (1878) 3 Q B D 131

¹⁸ *Hayle v Hittman* (1879) 4 Q B D 233. See now Food and Drugs Act 1955 (c 16) s 2 (1). See the numerous cases on this phrase sub PREJUDICE OF PURCHASER in Stroud's *Judicial Dictionary* and Supp.

¹⁹ *Majbew v Wardley* (1863) 14 C B (N S) 550. *R v Pratt* (1855) 4 E & B 860. *Harrison v Rutland (Duke)* [1893] 1 Q B 142.

²⁰ Game Act 1706 (c 16) s 4 repealed by the Game Act 1831 (c 32) s 1 and see s 23 of this latter Act. *R v Ains* (1716) 1 Sess Ca 88. See also *US v Morris* (1940) 14 Peters 464.

²¹ Preservation of Fish and Conies Act 1765 (c 14) repealed by Criminal Statutes Repeal Act 1827 (c 27). *R v Glover* (1814) Russ & Ry 269.

²² See *R v Thallman* (1863) 33 L J M C 58. See *Golding v Stocking* (1869) L R 4 Q B 516. *Langrish v Archer* (1832) 10 Q B D 44.

²³ *Mill End Guardians v Hoare* [1903] 2 K B 493. See Factories Act 1937 (c 67) s 103.

for in giving the cheque he impliedly represents that he has authority from the bank to draw it and that it is a good and valid order for payment of the amount ²¹ If, however, a person at the time he gives the cheque believes that it will be paid on presentation he cannot be convicted of a false pretence ²² But, on the other hand, if a person promise to give (say) £100 on the signature of a note there is a representation of an existing fact, *viz*, that the money was ready on the delivery of the note ²³

An Act ²⁴ which imposed a penalty on corn dealers for omitting to make a return of every parcel of corn bought from them would be broken though the unreturned sales were not evidenced in writing as required by the Statute of Frauds and therefore were not enforceable in a court of justice ²⁵

The enactment which punished every person, whether employed by the Postmaster General or by any person under him, or on behalf of the post office who stole a letter with money in it was held to include a person who gratuitously assisted a postmaster, at his request in sorting the letters ²⁶

The Bankruptcy Act, 1849 (c 106) which disentitled a bankrupt to his certificate if he had within a year of his bankruptcy lost £200 by 'any contract for the purchase or sale of Government or other ' stock was held to apply to one who had lost that amount in the purchase of railway shares, and by several contracts ²⁷

The employment of an English steam tug in towing a prize to the captor's waters is a breach of the provision of the Foreign Enlistment Act, 1870 (c 90), against dispatching a ship to be employed in the military or naval service of a foreign state ²⁸

²¹ *R v Ha elton* (1874) LR 2 CC 134 *R v Parker* (1837) 7 C & P 829 *Cf R v Benson* [1908] 2 KB 270

²² *R v Walne* (1879) 11 Cox CC 647 CCR

²³ Larceny Act 1861 (c 96) s 90 *R v Gardan* (1889) 23 QB D 354 See Larceny Act, 1916 (c 50) s 32

²⁴ Importation of Corn Act 1828 (c 60) repealed by Duties on Corn Act 1842 (c 14) s 1

²⁵ *R v Townrow* (1830) 1 B & Ad 465

²⁶ *R v Reason* (1853) 23 LJMC 11 *R v Foulkes* (1875) LR 2 CCR 150 *Cf Martin v Ford* (1793) 5 TR 101 and *Bennett v Edwards* (1839) 7 B & C 586 6th point See now Post Office Act 1953 (c 36) s 5. Larceny Act 1916 (c 50) s 12

²⁷ *Ex p Copeland* (1853) 22 LJ Bk 17 *Cf Hewitt v Price* (1842) 11 LJ C 1 297

²⁸ *Dyke v Elliott* (1872) LR 4 PC 184

The Factories Act, 1844 (c 15)²² provided that, if any accident occurred in a factory causing an injury to any person employed there of such a nature as to prevent his return to work before 9 a.m. on the next day it must, under a penalty, be reported by the occupier of the factory to the district surgeon and the sub-inspector. It was held that the Act applied to all accidents whether caused by the machinery of the factory or otherwise, and that the sufferer was prevented from returning to his work next day, within the meaning of the Act, although he did return for that purpose, but was unable to work.²³

Certain repealed sections of the Corrupt Practices Prevention Act, 1854 (c 102) which declared that whoever, 'directly or indirectly,' made a gift to a person to induce him to endeavour to procure the return of any person to Parliament should be deemed guilty of bribery, were held to extend to a gift made to induce its recipient to vote for the giver at a preliminary test ballot, held to select one of three candidates to be proposed when the election came. In voting for the giver at the test ballot the voter indirectly 'endeavoured to procure' his return at the election.²⁴

An enactment which prohibited any officer concerned in the administration of the poor laws from supplying for his own profit 'any goods ordered' to be given in parochial relief to any person was held to reach a guardian whose partner had, with the knowledge of the facts, sold a bedstead to the relieving officer on behalf of the parish for delivery to a pauper, although the guardian was ignorant of the transaction the bedstead had not been 'ordered' by the guardians,²⁵ and it was only lent not given in parochial relief.²⁶

An officer of a local board who was a shareholder in a company having a contract with the board was held to be interested in a bargain or contract with the board within the meaning

²² Repealed Factory and Workshop Act 1878 (c 16). See Factories Act 1937 (c 67) s 64.

²³ *Lakeman v Stephenson* (1868) L.R. 3 Q.B. 19.

²⁴ *Britt v Robinson* (1810) L.R. 3 C.P. 503.

²⁵ *Greenhow v Parker* (1861) 31 L.J. Ex. 4. *Woolley v Kay* (1856) 25 L.J. Ex. 351.

²⁶ *Davies v Harve* (1874) 47 L.J. M.C. 121. *Stanley v Dodd* (1822) 1 D. & R. 397. *Cf. Proctor v Manwaring* (1819) 3 B. & Ald. 145.

of the Public Health Act, 1875 (c 55) s 193 and liable to the penalty imposed by that statute ³⁷

Some of the decisions relative to the theft of writings seem to convey a fair impression of the spirit in which criminal statutes have been construed. As neither land nor mere rights were capable of being stolen it was early established that title deeds relating to lands and written contracts, which were mere rights or the evidences of rights were not the subjects of larceny. To steal a skin worth a shilling was felony, but when it had £10 000 added to its value by what was written on it it was no offence at common law to take it away and a person who broke into a house at night with the intention of stealing a mortgage deed would not have been guilty of felony, for the theft was not a felony but a misdemeanour only ³⁸. Most of these anomalies have however, been removed by the Larceny Act 1916 (c 50).

But, even before the passing of this Act, a paper like a pawn broker's ticket indicating not a mere right of action but a right to a specific personal chattel of which the holder of the ticket may be regarded as in possession (for the possession of the pledgee is his possession for the purpose of an indictment) would be the subject of larceny ³⁹.

And a like rule obtained in the case of a railway ticket which had been obtained by false pretences the ticket being evidence of a right to be carried on the railway ⁴⁰.

But there are examples of the narrower sense being adopted. An Act which punished an agent who in violation of good faith and contrary to the purpose of his trust sold negotiated, transferred pledged, or in any manner converted to his own use any chattel or valuable security with which he was entrusted would not include a policy of insurance entrusted to him for collection for it is neither a chattel capable of sale or barter, nor yet a valuable security, for this implies that money is payable irrespectively of

³⁷ *Todd v Robinson* (1885) 14 QBD 739. *Nutton v Wilson* (1889) 22 QBD 744. *Barnacle v Clark* [1900] 1 QB 279. *Burgess v Clark* (1884) 14 QBD 735. *Whiteley v Barley* (1888) 21 QBD 154. *R v Whiteley* (1889) 58 LJMC 164. *Cox v Ambrose* (1890) 60 LJQB 114. *Cf Morris v Howden* [1897] 1 QB 378. See Local Government Act 1933 (c 51) s 123. Local Government Act 1948 (c 26) s 131 (4). *Rands v Oldroyd* [1959] 1 QB 204.

³⁸ *Arg in R v Westbeer* (1740) 2 Stra 1133. *R v Pooley* (1880) Russ & Ry 12. *R v Powell* (1852) 21 LJMC 78.

³⁹ *R v Morrison* (1859) 28 LJMC 210. *R v Fitchie* (1857) 76 LJMC 90.

⁴⁰ *R v Boulton* (1850) 19 LJMC 67. *R v Beecham* (1851) 5 Cox CC 181. *Marks v Benjamin* (1839) 9 LJMC 20.

any contingency and it is not capable of being sold negotiated transferred, or pledged ⁴¹

An Act ⁴² which made it felony riotously to demolish pull down, or destroy or begin to demolish, pull down or destroy a church or dwelling would not reach a case where the demolition had not gone beyond movable shutters not attached to the freehold for, whatever might have been the intent of the rioters this was not a beginning of the demolition of the house to which the shutters belonged ⁴³ Nor would a partial demolition of the building be a 'beginning to demolish' within the Act if not done with the intention of completing it ⁴⁴ But if the structure were in all substantial respects destroyed, the offence would be included in the Act although some portion as for instance a chimney, had been suffered to remain uninjured ⁴⁵ Nor would it be considered as beyond the operation of the Act if the demolition had been effected by fire although arson is a distinct felony provided for by a different enactment ⁴⁶

In strict accordance with the rule that if a man is guilty of an illegal act and that act results in death he is guilty of manslaughter, a motorist committing the offence under the Road Traffic Act 1930 (c 43) s 11 (now Road Traffic Act 1960 (c 16) s 2) of driving recklessly would if he thereby caused death be guilty of manslaughter But the House of Lords has held that a very high degree of negligence is required to be proved before felony is established, and the mere breach of the enactment is not sufficient ⁴⁷

Modern Trend of Construction

The tendency of modern decisions upon the whole is to narrow materially the difference between what is called a strict and a

⁴¹ Larceny Act 1861 (c 96) s 75 repealed Larceny Act 1901 (c. 10) *R v Tailcoat* (1877) 2 Q B D 157 but in this case there was a remarkable division of opinion of the judges See Larceny Act 1916 (c 50) ss 20 46

⁴² Malicious Injuries to Property Act, 1821 (c 30) (repealed by Criminal Statutes Repeal Act, 1861 (c 95)) As to existing law see Malicious Damage Act 1861 (c 97) s 11

⁴³ *R v Howell* (1839) 9 C. & P 437 *Pilcher v Stafford* (1864) 33 L.J.M.C 113 *Edleston v Barnes* (1875) 1 Ex D 67

⁴⁴ *R v Thomas* (1830) 4 C & P 237 *Littledale J* *R v Price* (1833) 5 C & P 510 *Tindal C.J* *Drake v Footitt* (1881) 7 Q B D 401

⁴⁵ *R v Langford* (1842) Car & M 602

⁴⁶ *R v Harris* and *R v Simpson* (1842) Car & M 661 669

⁴⁷ *Andrews v D.P.P.* [1937] A.C. 576 per Lord Atkin A statutory offence has now been created of causing death by dangerous driving see Road Traffic Act 1960 (c 16) s. 1

beneficial construction All statutes are now construed with a more attentive regard to the language and criminal statutes with a more rational regard to the aim and intention of the legislature than formerly It is unquestionably right that the distinction should not be altogether erased from the judicial mind,⁴⁸ for it is required by the spirit of our free institutions that the interpretation of all statutes should be favourable to personal liberty,⁴⁹ and this tendency is still evinced in a certain reluctance to supply the defects of language, or to eke out the meaning of an obscure passage by strained or doubtful influences ⁵⁰ The effect of the rule of strict construction might almost be summed up in the remark that, where an equivocal word or ambiguous sentence leaves a reasonable doubt of its meaning which the canons of interpretation fail to solve, the benefit of the doubt should be given to the subject and against the legislature which has failed to explain itself ⁵¹ But it yields to the paramount rule that every statute is to be expounded according to its expressed or manifest intention ⁵ and that all cases within the mischiefs aimed at are, if the language permits to be held to fall within its remedial influence ⁵²

SECTION 2—STATUTES ENCROACHING ON RIGHTS OR IMPOSING BURDENS

Encroachment on Rights

Statutes which encroach on the rights of the subject whether as regards person or property, are similarly subject to a strict

⁴⁸ *Nicholson v Fields* (1862) 31 L J Ex 233 per Pollock C B

⁴⁹ *Henderson v Sherborne* (1837) 2 M & W 239 per Lord Abinger

⁵⁰ *The Industry* (1812) 1 Gall 117 per Story J

⁵¹ *R v Chapman* [1931] 2 K.B 606 at p 609 per Lord Hewart C J approving this passage See *Hull Dock Co v Browne* (1831) 2 B & Ad 59 *Nicholson v Fields* (1862) 31 L J Ex 233 *Foley v Fletcher* (1858) 28 L J Ex 106 Puff LN b 5 c 12 s 5 *Barb n 4 Lewis v Carr* (1876) 1 Ex D 484 *Secretary of State for India v Scoble* [1903] A C 299 *East Indian Ry v Secretary of State for India* [1905] 2 K.B 413 CA *Cf Chadwick v Pearl Life Insurance Co* [1905] 2 K.B 507 *London and Country Commercial Properties Investments v Att Gen* [1953] 1 W L R 312 at p 319 (Control of Borrowing Order 1947) *R v Wimbledon JJ ex p Derwent* [1953] 1 Q B 380

⁵ 4 Inst 330 *The Sussex Peerage* (1844) 11 Cl & F 143 *R v Treanor* [1939] 1 All E R 330 CCA

⁵² *Fennell v Riddler* (1826) 4 L J (os) KB 207 *The Industry* (1812) 1 Gall 114 117 See *R v Charretie* (1849) 13 QB 447 *Wynne v Middleton* (1745) 1 Wils 126 *Archer v James* (1862) 2 B & S 61 *Smith v Walton* (1877) 3 C P D 109 *Mav v G H Ry* (1873) LR 7 QB 384 *Cockburn C J R v Adams* (1888) 22 Q B D 66

construction in the sense before explained⁵⁴ It is a recognised rule that they should be interpreted, if possible, so as to respect such rights⁵⁵ A statute under which a houseowner is being deprived of his rights to property should be construed strictly against the local authority⁵⁶ If there is ambiguity as to the meaning of the section inasmuch as it is a disabling section the construction which is in favour of the freedom of the individual (to contract) should be given effect⁵⁷ Proprietary rights should not be held to be taken away by Parliament without provision for compensation unless the legislature has so provided in clear terms⁵⁸ It is presumed where the objects of the Act do not obviously imply such an intention, that the legislature does not desire to confiscate the property or to encroach upon the right of persons and it is therefore expected that, if such be its intention it will manifest it plainly if not in express words at least by clear implication and beyond reasonable doubt⁵⁹ It is a proper rule of construction not to construe an Act of Parliament as interfering with or injuring persons' rights without compensation, unless one is obliged so

⁵⁴ The Home Secretary's power to order detention under reg. 18a of the Defence (General) Regulations 1939 after reciting that he has reasonable cause to believe was affirmed by the House of Lords in *Liversidge v Anderson* [1942] A.C. 206 Lord Atkin diss. at p. 225. But in *Nakkuda Ali v Javoratne* [1951] A.C. 66 the Privy Council held that an authority can be compelled to disclose the grounds on which he acts and submit them to the court. *Liversidge v Anderson* supra was distinguished on the basis of the special conditions prevailing at the time of the framing of the Regulation which allowed a special construction to be put on the phrase. See also *Ross Clunis v Papadopoulos* [1958] 1 W.L.R. 546.

⁵⁵ *Walsh v Secretary of State for India* (1863) 10 H.L.C. 367 at p. 386 per Lord Westbury. *Marshall v Blackpool Corporation* [1932] 1 K.B. 688. *Hough v Hindus* (1884) 12 Q.B.D. 224 per Bowen L.J. *Druce & Co v Beaumont Property Trust* [1935] 2 K.B. 257, 264.

⁵⁶ *Re Bowman* [1932] 2 K.B. 621, 633.

⁵⁷ *David v De Silva* [1934] A.C. 106. See *O'Connor v Isaacs* [1956] 2 Q.B. 288.

⁵⁸ *Consell Iron Co v Clavering Trustees* [1935] 2 K.B. 42, 65. But see *Billings v Reed* [1945] K.B. 11 where the words breach of duty were construed so as to deprive a plaintiff of her right of action since otherwise they would have facilitated evasion of the statute. See Lord Greene at pp. 418-9.

⁵⁹ *Western Counties Ry v Windsor and Annapolis Ry* (1882) 7 App.Cas. 178 at p. 188. *Commissioners of Public Works v Logan* [1903] A.C. 355. *Wells v London & Tilbury Ry* (1877) 5 Ch.D. 130. *Re Lundy Co* (1871) L.R. 6 Ch. 467. *Ex p Jones* (1875) L.R. 10 Ch. 663 per cur. *Randolph v Milman* (1868) L.R. 4 C.P. 113. *Green v R* (1876) 1 App.Cas. 513. *Ex p Sheil* (1877) 4 Ch.D. 789. *Rendall v Blair* (1890) 45 Ch.D. 153. *Duke of Devonshire v O'Connor* (1890) 24 Q.B.D. 473 per Lord Esher M.R. referring to the judgment of Cockburn C.J. in *Sowerby v Smith* (1874) L.R. 9 C.P. 524. *Corporation of Yarmouth v Simmonds* (1878) 10 Ch.D. 518. *Minister of Health v Stafford* [1957] Ch. 730.

to construe it ⁶⁰ But a local authority was permitted by the erection of street shelters to interfere with the adjacent property owner's right to a free frontage since the section impliedly authorised such interference in reasonable exercise of the powers which it conferred ⁶¹

A local Harbours Act which imposed a penalty on any person who placed articles 'on any quay, wharf or landing place within ten feet of the quay head, or on any space of ground immediately adjoining the said haven within ten feet from high water mark so as to obstruct the free passage over it was held to apply only to ground over which there was already a public right of way, but not to private property not subject to any such right and in the occupation of the person who placed the obstruction on it ⁶² Notwithstanding the comprehensive nature of the general terms used it was not to be inferred that the legislature contemplated such an interference with the rights of property as would have resulted from construing the words as creating a right of way

The Partnership Act 1865 (c 86) ss 1-5 ⁶³ which provided that when a loan to a trader bore interest varying with the profits of the trade, the lender should not if the trader became bankrupt recover until the claims of the other creditors were satisfied, did not deprive the creditor of any rights acquired by mortgage. Though he could not recover he was entitled to retain ⁶⁴

On this ground it would seem Statutes of Limitation are to be construed strictly. The defence of lapse of time against a just demand is not to be extended to cases which are not clearly within the enactment while provisions which give exceptions to the operation of such enactments are to be construed liberally ⁶⁵

Similarly, a penal statute which throws the burden of proof of innocence on to the defendant does not lay the same high standard

⁶⁰ *Att Gen v Horner* (1884) 14 Q B D 257 per Brett MR. *Colonial Sugar Refining Co v Melbourne Harbour Trust Commissioners* [1927] A C 343. *Central Control Board (Liquor Traffic) v Cannon Brewery Co* [1919] A C 744. *Newcastle Breweries Ltd v R* [1920] 1 K B 854. *Bond v Nottingham Corporation* [1940] Ch 429. C A

⁶¹ *Edgington v Swindon Corporation* [1939] 1 K B 87

⁶² *Harrod v Worship* (1861) 30 L J M C. 165 diss Wightman J. See also *Hells v London & Tilbury Ry* (1877) 5 Ch D 126

⁶³ Re-enacted by Partnership Act 1890 (c. 39) s. 3-4 (d)

⁶⁴ *Ex p Sheil* (1877) 4 Ch D 789

⁶⁵ See *Roddam v Worley* (1857) 1 De G & J 1 per Lord Cranworth

of proof on him as would be required on the part of the prosecution to secure a conviction in a normal case ⁶⁶

Statutes imposing Burdens

Statutes which impose pecuniary burdens also are subject to the same rule of strict construction. It is a well settled rule of law that all charges upon the subject must be imposed by clear and unambiguous language because in some degree they operate as penalties ⁶⁷. The subject is not to be taxed unless the language of the statute clearly imposes the obligation ⁶⁸.

In a Taxing Act one has to look merely at what is clearly said. There is no room for any intendment. There is no equity about a tax. There is no presumption as to a tax. Nothing is to be read in, nothing is to be implied. One can only look fairly at the language used ⁶⁹. A construction for example, which would have the effect of making a person liable to pay the same tax twice in respect of the same subject matter would not be adopted unless the words were very clear and precise to that effect ⁷⁰. In a case of reasonable doubt the construction most beneficial to the subject is to be adopted ⁷¹. Still less is the language of a section

⁶⁶ *R v Carr Brioni* [1943] K B 607 sub nom *R v Carr Brant* [1943] 2 All E.R. 156

⁶⁷ *Denn v Diamond* (1825) 4 B & C 243 per Bayley J. see also *Doe v Smith* (1837) 8 Bing 152. *Horris v Birch* (1842) 9 M & W 594. *Sneeum v Morshall* (1841) 7 M & W 419. *R v Barclay* (1882) 8 Q B D 306. *Portington v All Gen* (1869) L.R. 4 H.L. 100 applied by *Hamilton J in Northumberland (Duke) v I R C* [1911] 2 K B 343 at p 358 reversed on other grounds on appeal [1911] 2 K B 1011. *CA Oriental Bank v Wright* (1880) 5 App Cas 842. *I R C v Angus* (1889) 23 Q B D 579. *Lanston Monotype Corp v Anderson* [1911] 2 K B 1019. *CA Coltness Iron Co v Black* (1881) 6 App Cas 315 330 cited in *Ormond Investment Co v Betts* [1928] A C 143 151.

⁶⁸ *Per cur Hull Dock Co v Brønne* (1831) 2 B & Ad 59 see *Nicholson v Fields* (1862) 31 L J Ex 233. *Parry v Croydon Gas Co* (1863) 11 C B (N.S.) 579 15 C B (N.S.) 568. *Att Gen v Seccombe* [1911] 2 K B 688. *Hennell v I R C* [1933] 1 K B 415. *Liverpool Corporation v Arthur Maiden Ltd* [1938] 4 All E.R. 200. *Russell v Scott* [1948] A C 42. H.L. per Lord Simonds. *D Aylgord Goldsmith v I R C* [1953] A C 347 H.L.

⁶⁹ *Cape Brandy Syndicate v I R C* [1921] 1 K B 64 per Rowlatt J at p 71 approved by Viscount Simon L.C. in *Canadian Eagle Oil Co v R* [1946] A C 119 at p 140. See also *Re Earl Fitzwilliam's Agreement* [1950] Ch 448.

⁷⁰ *Carr v Fowle* [1898] 1 Q B 251. Cf *Haward De Balden v I R C* [1942] 1 K B 389 at p 398 where the court declared itself unmoved by the argument of hardship in a tax evasion case.

⁷¹ *Stockton Ry v Barrett* (1844) 11 Cl & F 607 per Lord Lyndhurst. *Re Micklethwait* (1855) 11 Ex 456. *Re Thorley* [1891] 2 Ch 613. *Pryce v Monmouthshire Canal Co* (1879) 4 App Cas 197. *I R C v Ross & Coulter* [1948] 1 All E.R. 616 per Lord Thankerton. See also *Fry v I R C* [1959] Ch 86 C.A.

to be strained in order to tax a transaction which, had the legislature thought of it, would have been covered by appropriate words ?

Thus, in estimating a bank manager's total income from all sources to ascertain whether he is entitled to partial relief from income tax the yearly value of his free residence in the bank premises where he is bound to reside is not to be taken into account as 'income' ⁷³

The provision of section 32 of the Customs and Inland Revenue Act, 1881 (c 12) that if it shall be discovered that the personal estate of a deceased person was undervalued at the time of probate the person acting in the administration of the estate shall deliver a further affidavit with an account duly stamped with the amount of excess duty which ought to have been paid in the first instance does not apply to persons who have completed the duties of administration ⁷⁴

Where land employed as the site of an almshouse was, on that account, declared by two successive statutes to be exempt from land tax the fact that other land had since been applied to the same charitable purpose and the original land had been by order of the Court of Chancery directed to be held by the trustees of the charity to their own use, free from its charitable trusts did not render it liable even in the hands of a tenant to the taxation from which it had been previously exempt ⁷⁵

An Act which imposed a stamp on every writing given on the payment of money, 'whereby any sum debt or demand was 'acknowledged to have been paid, settled balanced or otherwise discharged' was held not to extend to a receipt given on the occasion of a sum being deposited ⁷⁶

If one instrument be incorporated, by reference, in another its words would not be counted as part of the incorporating deed for the purpose of stamp duty, under an Act imposing a duty

⁷³ *I R C v Wolfson* [1949] 1 All E.R. 865 per Lord Simonds at p 868

⁷⁴ *Tennant v Smith* [1892] A.C. 150 See also *Secretary of State for India v Scoble* [1903] A.C. 299 on which see *East India Ry v Secretary for India* [1905] 2 K.B. 413 and *Chadwick v Pearl Life Assurance* (1905) 74 L.J.K.B. 671 *Att Gen of British Columbia v Ostrum* [1904] A.C. 144

⁷⁵ *Att Gen v Smith* (1892) 62 L.J.Q.B. 288 *Re Nunn's Estate* [1894] 1 Ir R. 252.
⁷⁶ *Cox v Rabbits* (1878) 3 App.Cas. 473 *St Thomas's Hospital v Hudgell* [1901] 1 K.B. 364 And see *United Towns Electric Co Ltd v Att-Gen for Newfoundland* [1939] 1 All E.R. 423

⁷⁷ *Tomkins v Ashby* (1827) 6 B. & C. 541 See also *Wroughton v Turtle* (1843) 13 L.J. Ex. 57 *Mullett v Hutchison or Hutchinson* (1828) 7 B. & C. 639

according to its length on the instrument, together with every schedule, receipt or other matter put or endorsed thereon or annexed thereto ' 77

Where an Act⁷⁶ imposed a stamp duty on newspapers, and defined a newspaper as comprising ' any paper containing public news, intelligence, or occurrences to be dispersed and made public,' and also ' any paper containing any public news, intelligence or occurrences or any remarks or observations thereon published periodically or in parts or numbers, at intervals not exceeding twenty six days ' and not exceeding a certain size it was held that a publication the main object of which was to give news but which was published at intervals of more than twenty six days, was not liable to the stamp duty as a newspaper⁷⁸

The Railway Passenger Duty Act 1842 (c 79) which imposed a stamp duty on every charterparty, or memorandum, or other writing between the captain or owner of a vessel and any other person relating to the freight or conveyance of goods on board was held not to extend to a guarantee for the due performance of a charterparty⁷⁹

And yet where an Act⁸¹ after imposing a stamp on contracts exempted those which were made relative to the sale of goods a guarantee for the payment of the price on such a sale was held included in the exemption⁸² the same words being susceptible of meaning different things when used to impose a tax or to exonerate from it⁸³

The Scientific Societies Act, 1843 (c 36) which exempted from rating the buildings of certain societies, provided they were supported wholly or in part by ' voluntary contributions,' applied only where the payments were a gratuitous offering for the benefit of others and not the price of an advantage purchased by the

⁷⁷ *Fishmongers Co v Dimsdale* (185) 12 CB 557 The stamp duty for length (in addition to *ad val* duty and called ' progressive duty ') was imposed by the Stamp Act 1815 (c 184) and was continued by the subsequent Stamp Acts until the Stamp Act 1870 (c 97)

⁷⁸ 6 & 7 Will 4 c. 76 repealed by the Inland Revenue Repeal Act 1870 (c 99)

⁷⁹ *Ast Gen v Bradbury* (1851) 7 Ex 97

⁸⁰ s 2 and 5 *hed Rein v Lane* (1867) L.R. 2 Q B 144

⁸¹ 23 Geo 2 c 53 s 4 repealed S L R Act 1861 (c. 101)

⁸² *Warrington v Furbor* (1807) 8 East 242

⁸³ *Rein v Lane* (1867) L.R. 2 Q B 144 *per* Blackburn J citing *Curry v Edenson* (1790) 3 TR 527 and *Warrington v Furbor* (1807) 8 East 242 See also *Armistage v Hillinson* (1878) 3 App Cas 355

contributor⁸⁴ The payments must be a gift made from disinterested motives for the benefit of others *

Lord Ellenborough remarked that the cases to which a duty attached ought to be fairly marked out and that a liberal construction ought to be given to words of exception confining the operation of the duty⁸⁵

It is to be observed however, that all exemptions from taxation increase the burden on other members of the community and should therefore be deprecated⁸⁷

At the same time such Acts, like penal Acts are not to be so construed as to furnish a chance of escape and a means of evasion⁸⁸ The Stamp Act 1870 (c 97) s 3 and Schedule which imposed an *ad valorem* duty on settlements by which any definite and certain amount of stock is settled, obviously applied although the interests in the stock were contingent and defeasible where the amount of the stock was definite and certain⁸⁹ Where the Crown is entitled to charge one stamp duty under one Act and a higher rate under another Act the Crown is at liberty to choose which it will apply⁹⁰ Indeed, as in criminal statutes the widest meaning is given to the language when necessary to effectuate the intention of the legislature For instance in one of the Church Building Acts which enacted that the repairs of district churches might be provided for by a rate on the district the word repairs was construed as comprising not only reparation of the structure but all incidental matters necessary for the due performance of service such as lighting cleaning stationery and organist's salary⁹¹

Where an Act provides for amendments to profits tax to be made in certain circumstances, but does not in terms impose the tax,

⁸⁴ *Savoy (Overseers) v Art Union of London* [1896] A C 296 per Lord Herschell
Att Gen v Ellis [1895] 2 Q B 466

⁸⁵ *Russell Institution v St Giles and St George Bloomsbury* (1854) 23 L J M C 65 per Lord Campbell C J

⁸⁶ *Warrington v Furbor* (1807) 8 East 242 But see *Littman v Barron* [1951] Ch 993 at p 1002 per Cohen L J

⁸⁷ *I R C v Forrest* (1890) 15 App Cas 334 per Lord Halsbury

⁸⁸ *US v Thirty six Barrels of Wine* (1870) 7 Blatchf 459 *Att Gen v Furness Ry* [1899] 2 Q B 267 See *Howard de Walden v I R C* [1942] 1 K B 389

⁸⁹ Repealed Stamp Act 1891 (c 39) s 123 *Onslow v I R C* [1891] 1 Q B 239
I R C v Oliver [1909] A C 427 *Massereene (Discount) v I R C* [1900] 2 Ir R 138

⁹⁰ *Speyer Bros v I R C* (1902) 66 JP 551 *Anderson v I R C* [1939] 1 K B 341

⁹¹ *R v Consistory Court* (1867) 31 L J Q B 106 See *R v Warwick* (1846) 8 Q B 926 *Att Gen v L & N Ry* (1881) 6 Q B D 216 *Re Thorley* [1891] 2 Ch 613

according to its length on the instrument, together with every schedule receipt or other matter put or endorsed thereon, or annexed thereto ' 77

Where an Act ⁷⁸ imposed a stamp duty on newspapers, and defined a newspaper as comprising 'any paper containing public news intelligence, or occurrences to be dispersed and made public' and 'also any paper containing any public news, intelligence or occurrences, or any remarks or observations thereon published periodically or in parts or numbers, at intervals not exceeding twenty six days and not exceeding a certain size' was held that a publication the main object of which was to give news but which was published at intervals of more than twenty days was not liable to the stamp duty as a newspaper ⁷⁹

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And yet where an Act ⁸¹ after imposing a stamp on a sale exempted those which were made relative to the sale of a guarantee for the payment of the price on such a sale included in the exemption ⁸² the same words being of meaning different things when used to impose and to exonerate from it ⁸³

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⁷⁷ *Fishmongers Co v Dimsdale* (1852) 12 C B 557 The duty (in addition to *ad val* duty and called progressive) was imposed by the Stamp Act 1815 (c 184) and was continued by the Stamp Act 1870 (c 97)

⁷⁸ 6 & 7 Will 4 c 76 repealed by the Inland Revenue Act 1890

⁷⁹ *All Gen v Bradbury* (1851) 7 Ex 97

⁸⁰ s 2 and Sched *Rein v Lane* (1867) L R 2 Q B 144

⁸¹ 23 Geo 2 c 58 s 4 repealed S L R Act 1861 (c 101)

⁸² *Harrington v Furber* (1807) 8 East 242

⁸³ *Rein v Lane* (1867) L R 2 Q B 144 *per* Blackburn J *cf.* *Warrington v Furber* (1807) 8 East 242 and *Warrington v Furber* (1807) 8 East 242 *per* Wilkinson (1878) 3 App Cas 355

which enacted that no action should be brought on contracts (s 4), or that the contracts should not be good (section 17),⁹⁷ unless the agreement or some note or memorandum thereof shall be in writing and signed by the party to be charged therewith, or some other person thereunto by him lawfully authorised, has given rise to many decisions apparently in this spirit

Thus although it is unquestionably necessary that all the essential elements of the contract shall appear in writing such as the subject matter,⁹⁸ the consideration⁹⁹ and the parties,¹ it has been held that it is not necessary that they should be contained in any formal document²

A note or letter, by the party to be charged stating the material particulars, orally accepted, suffices³

The statute is satisfied, also, by a number of letters or other documents connected either physically by being fastened together⁴ or by their own internal evidence if all the elements of the contract may be collected from the whole correspondence⁵

An envelope shown by evidence to have enclosed a letter relating

⁹⁷ See also Sale of Goods Act 1893 (c 71) s 4 where the words were shall not be enforceable by action

⁹⁸ *Shardlow v Cotterell* (1881) 20 Ch D 90 *Valle of Neath Colliery v Furness* (1876) 45 LJ Ch 276 *Marshall v Berridge* (1881) 19 Ch D 233

⁹⁹ *Wain v Harlerts* (1804) 7 R.R. 645 *Re Frost* [1881] 2 Ch 556 [1899] 2 Ch 207 CA

¹ *Williams v Lake* (1859) 29 LJ QB 1 *Williams v Byrnes* (1863) 1 Moo PC (N.S.) 154 *Williams v Jordan* (1877) 6 Ch D 517 *Beer v London and Paris Hotel Co* (1875) LR 20 Eq 412 See under s 7 30 Vict c 23 (repealed Stamp Act 1891 (c 39) and practically re-enacted by s 93 of that Act) *Re Arthur Average Assoc* (1876) LR 10 Ch 542 *Cf Edwards v Aberayron Soc* (1876) 1 QB D 563

² *Gray v Smith* (1889) 43 Ch D 208 *Barkworth v Young* (1856) 26 LJ Ch 153 on which see *Troxell v Shenion* (1878) 8 Ch D 324 *per Jessel MR* *Re Howle* [1893] 1 Ch 84 *Jones v Victoria Dock Co* (1877) 2 QB D 314

³ *Coleman v Upcot* (1706) 5 Vin Ab 527 pl 17 *Helford v Bea ely* (1747) 3 Atk 503 *Bill v Bament* (1841) 11 LJ Ex 81 *Rushton v Whalmore* (1878) 8 Ch D 467 *Munday v Asprey* (1880) 13 Ch D 855 *Cave v Hastings* (1881) 7 QB D 175

⁴ *Kenworthy v Schofield* (1824) 2 LJ (os) KB 175

⁵ *Shortrede v Cheek* (1834) 3 LJ KB 125 *Baydell v Drummond* (1809) 11 East 147 *Dobell v Hutchinson* (1835) 3 A & E. 355 *Hatts v Ainsworth* (1862) 31 LJ Ex 448 *Morris v Wilson* (1859) 5 Jur (ns) 163 *Crane v Powell* (1868) LR 4 CP 143 *Bonnewell v Jenkins* (1878) 8 Ch D 70 *Commins v Scott* (1875) LR 20 Eq 11 *Kronheim v Johnson* (1877) 7 Ch D 60 *Beckwith v Talbot* (1877) 5 Otto 289 (U.S.) See *Ridgway v Wharton* (1854) 6 HLC 238 cited in *Jones v Victoria Dock Co* (1877) 2 QB D 314 *supra* *Studds v Watson* (1884) 23 Ch D 705 *Hussey v Horne-Payne* (1879) 4 App Cas 311 *Bristol Aerated Bread Co v Maggs* (1890) 44 Ch D 616 *Bellamy v Debenham* (1890) 45 Ch D 481

Parliament must be deemed to have intended the amendments to be effective, and words will be supplied to attain that object⁹²

In America, revenue laws are not regarded as penal laws in the sense that requires them to be construed with strictness in favour of the defendant. They are regarded rather in their remedial character as intended to prevent fraud, suppress public wrong, and promote the public good, and are construed so as most effectually to accomplish those objects⁹³

Statutes inflicting Costs

It has been said that all statutes which inflict costs are to be construed strictly, on the ground that such costs are a kind of penalty⁹⁴. There is little authority in support of the proposition. On the other hand the power of ordering the payment of costs has been sometimes construed on the principle of beneficial and liberal construction, as where, for instance they have been imposed on persons who were strangers to an action of ejectment but at whose instance it was brought or defended⁹⁵

Regulating Enactments

Enactments also which impose forms and solemnities on contracts on pain of invalidity, are construed so as to be as little restrictive as possible of the natural liberty of contracting. It was in allusion to the Statute of Frauds that Lord Nottingham said that all Acts which restrain the common law that is apparently, which impose restrictions unknown to the common law ought themselves to be restrained in exposition⁹⁶. The Statute of Frauds

⁹² *English Sewing Cotton Co. Ltd v I R C* [1947] 1 All E.R. 679

⁹³ *Cliquot v Champagne* (1865) 3 Wallace 145. And see *Hood Batts v I R C* [1946] 2 All E.R. 768 at p. 772 per Lord Greene M.R.

⁹⁴ *Cone v Bowles* (1690) 1 Salk 205. *Cobb v Mid Wales Ry* (1866) L.R. 1 Q.B. 351. There was no strictness in the interpretation of the Public Authorities Protection Act 1893 (c. 61) s. 1 (b) which gave costs as between solicitor and client to a successful defendant in an action for an act done in pursuance of a statutory or other duty or authority. *Fielden v Morley* [1900] A.C. 133. *Harrop v Ossett* [1893] 1 Ch. 525. *Toms v Clacton* (1898) 78 L.T. 712. *North Metrop. Tramways Co v London C.C.* [1898] 2 Ch. 145. *Chamberlain v Bradford* (1901) 83 L.T. 518. *Lyles v Southend-on-Sea* [1905] 2 K.B. 1. *Gilbert v Gosport and Alverstoke U.D.C.* [1916] 2 Ch. 587.

⁹⁵ *Hutchinson v Greenwood* (1855) 24 L.J.Q.B. 2. *Mobbs v Vandenberg* (1864) 33 L.J.Q.B. 177. Cf. *Evans v Rees* (1861) 9 C.B. (N.S.) 391. *Anstey v Edwards* (1855) 16 C.B. 212. *Hayward v Giffard* (1838) 7 L.J.Ex. 256. *R v Pembridge* (1842) 3 Q.B. 901.

⁹⁶ *Ash v Abdy* (1678) 3 Swanst. 664.

which enacted that no action should be brought on contracts (s 4) or that the contracts should not be good (section 17),⁹⁷ unless the agreement or some note or memorandum thereof shall be in writing and signed by the party to be charged therewith or some other person thereunto by him lawfully authorised has given rise to many decisions apparently in this spirit

Thus, although it is unquestionably necessary that all the essential elements of the contract shall appear in writing such as the subject matter⁹⁸ the consideration⁹⁹ and the parties¹ it has been held that it is not necessary that they should be contained in any formal document²

A note or letter, by the party to be charged stating the material particulars orally accepted suffices³

The statute is satisfied, also by a number of letters or other documents connected either physically by being fastened together⁴ or by their own internal evidence if all the elements of the contract may be collected from the whole correspondence⁵

An envelope shown by evidence to have enclosed a letter relating

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⁹⁹ *Hain v Harlerts* (1804) 7 R R. 645 *Re Frost* [1881] 2 Ch 556 [1899] 2 Ch 207 C.A

¹ *Williams v Lake* (1859) 29 L J Q B 1 *Williams v Byrnes* (1863) 1 Moo P C (N s) 154 *Williams v Jordan* (1877) 6 Ch D 517 *Beer v London and Paris Hotel Co* (1875) L R 20 Eq 412 See under s 7 30 Vict c 23 (repealed Stamp Act 1891 (c 39) and practically re-enacted by s 93 of that Act) *Re Arthur Average Assoc* (1876) L R 10 Ch 542 *Cf Edwards v Aberayron Soc* (1876) 1 Q B D 563

² *Gray v Smith* (1889) 43 Ch D 203 *Barkworth v Young* (1856) 26 L J Ch 153 on which see *Trowell v Shenton* (1878) 8 Ch D 324 *per* Jessel M R *Re Hoyle* [1893] 1 Ch 84 *Jones v Victoria Dock Co* (1877) 2 Q B D 314

³ *Coleman v Upcot* (1706) 5 Vin Ab 527 pl 17 *Belford v Beazely* (1747) 3 Atk 503 *Bill v Bament* (1841) 11 L J Ex 81 *Rushton v Whatmore* (1878) 8 Ch D 467 *Munday v Asprey* (1880) 13 Ch D 855 *Cave v Hastings* (1881) 7 Q B D 125

⁴ *Kenworthy v Schofield* (1824) 2 L J (o s) K B 175

⁵ *Shortrede v Cheek* (1834) 3 L J K B 125 *Boydell v Drummond* (1809) 11 East 142 *Dobell v Hutchinson* (1835) 3 A & E 355 *Watts v Ainsworth* (1862) 31 L J Ex 448 *Morris v Wilson* (1859) 5 Jur (N s) 168 *Crane v Powell* (1868) L R 4 C P 123 *Bonnewell v Jenkins* (1878) 8 Ch D 70 *Communs v Scott* (1875) L R 20 Eq 11 *Kronheim v Johnson* (1877) 7 Ch D 60 *Beckwith v Talbot* (1877) 5 Otto 289 (U S) See *Ridgway v Wharton* (1854) 6 H L C 238 cited in *Jones v Victoria Dock Co* (1877) 2 Q B D 314 *supra* *Studds v Watson* (1884) 28 Ch D 305 *Hussey v Horne Payne* (1879) 4 App Cas 311 *Bristol Aerated Bread Co v Maggs* (1890) 44 Ch D 616 *Bellamy v Debenham* (1890) 45 Ch D 481

to the contract can supply the name of a party to the memorandum in writing ⁶

A letter from the purchaser addressed to a third person stating the terms of the contract ⁷ and one from the purchaser to the seller, which after setting forth its terms repudiated the contract have been held sufficient notes or memoranda of the bargain to satisfy the statute ⁸

It has been said that the cases have gone very far in putting the correspondence of parties together to constitute a memorandum to satisfy the statute ⁹ Indeed as it becomes necessary in such a case to inquire what the contract really was to determine whether the informal papers constitute a written note of it it may be said that the very evil is let in against which the statute aimed ¹⁰

So although it is necessary that the parties to the contract should be sufficiently described to admit of their identification ¹¹ it is not necessary that they should be described by name It has been held, for instance that a contract of sale signed by the auctioneer as the agent of the proprietor, or of the trustee for the sale of the property sold sufficiently described the seller ¹²

On the other hand a contract similarly signed by the agent of the vendor has been held not to suffice ¹³ for a mere assertion that the person who sells is the seller is obviously not a description of the seller, nor does it tend to his identification But in view of subsequent decisions this proposition is somewhat open to question ¹⁴

Again as regards the signing or subscribing of an instrument as party or witness the enactments which require these formalities have been construed with similar indulgence The testator who

⁶ *Pearce v Gardner* [1897] 1 QB 688

⁷ *Gibson v Holland* (1865) LR 1 CP 1 Sugd V & F 139 14th ed See also *Re Hoyle* [1893] 1 Ch 84 *Re Holland* [1902] 2 Ch 360 CA

⁸ *Bailey v Sweeting* (1861) 30 LJ CP 150 *Wilkinson v Evans* (1866) LR 1 CP 407 *Buxton v Rust* (1872) LR 7 Ex 1 279

⁹ *McLean v Nicoll* (1861) 7 Jur (ns) 999 per Pollock B

¹⁰ *McLean v Nicoll* (1861) 7 Jur (ns) 999 per Channell B See e.g. *Rishton v Whatmore* (1878) 8 Ch D 467

¹¹ *Chalwood v Bedford* (1738) 1 Atk 499 *Champion v Plummer* (1805) 8 RR 795 *Jones Bros v Joyner* (1900) 82 LT 768 *Williams v Lake* (1859) 29 LJ QB 1

¹² *Salé v Lambert* (1874) LR 18 Eq 1 *Catling v King* (1877) 5 Ch D 660 *Rossiter v Miller* (1877) 3 App Cas 1124 *Hood v Borringian* (1868) LR 6 Eq 218

¹³ *Potter v Duffield* (1874) LR 18 Eq 4 *Jarrett v Hunter* (1886) 34 Ch D 187 per Kay J

¹⁴ *Commins v Scott* (1875) LR 20 Eq 11 *Filby v Hounsell* [1896] 2 Ch 737

wrote his will with his own hand and began by declaring that it was his will setting forth his name was deemed to have thereby sufficiently signed his will¹⁵ and an attesting witness who wrote his name on the will elsewhere than at the end of it was deemed to have sufficiently "subscribed" it within the Statute of Frauds¹⁶

A letter beginning Messrs H & Co Gentlemen drawn up by their clerk by their authority, and presented by him to E for signature, has been held to be sufficiently signed by a person authorised by H & Co, so as to entitle E who had signed it, to sue them for breach of the contract contained in the letter¹⁷

An agreement, too has been held to be sufficiently signed by a corporate body within the meaning of the Statute of Frauds where a resolution ordering its engrossment and execution was passed by the body and signed by the chairman¹⁸

Statutes conferring Exceptional Privileges

Acts which establish monopolies¹⁹ or confer exceptional exemptions and privileges correlatively trenching on general rights, are subject to the same principle of strict construction²⁰ The statute *De Malefactoribus in Parcis* (21 Edw 1)¹ which authorised a park keeper to kill trespassers whom he found in his park and who refused to yield to him was construed as strictly limited to a legal park²²—that is, one established by prescription or Royal Charter and not merely one by reputation³

The enactment²⁴ that shipowners should not be liable for damage done by their ships without their default beyond the value of the ship and her freight was held to include in this value everything belonging to her owners that was on board

¹⁵ Statute of Frauds (29 Car 2 c 3) s 5 repealed by Wills Act 1837 (c 26) *Lemayne v Stanley* (1681) 3 Lev 1

¹⁶ *Roberts v Phillips* (1855) 24 L J Q B 171 *In the Goods of Streatley* [1891] P 172

¹⁷ *Evans v Hoare* [1892] 1 Q B 593

¹⁸ *Jones v Victoria Graving Dock Co* (1877) 2 Q B D 314 *Daniels v Trefusis* [1914] 1 Ch 788

¹⁹ *Reed v Ingham* (1854) 3 E & B 899 *per Lord Campbell Direct U S Cable Co v Anglo American Co* (1877) 2 App Cas 394

²⁰ See e.g. *R v Hull Dock Co* (1824) 3 B & C 516 *Brunskill v Watson* (1868) L R 3 Q B 418

²¹ Repealed Criminal Statutes Repeal Act 1827 (c 27) s 1
1 Hale 491 3 Dyer 326b Com Dig Parl (R) 20

²² Co Litt 233a 2 Blackstone s Com 38 416

²⁴ Responsibility of Shipowners Act 1813 (c 159) s 1 (repealed Merchant Shipping Repeal Act 1854 (c 120) s 4)

for the performance of her adventure such as the fishing stores of a vessel employed in the Greenland fishery although they would not have been covered by a policy on 'the ship and freight' and the phrase 'the value of the ship and her appurtenances' had been used ten times in other parts of the Act.²⁵ This decision rested on the ground that the enactment abridged the common law right of the injured person and that the shipowner was not entitled to more than the meaning of the words strictly imported.

Similarly the enactments which exonerate a shipowner from liability for damage caused by his ship through the default of a compulsorily employed pilot are restricted to cases where the pilot was the sole cause of the damage without any default on the part of the master or crew.²⁶

The position with regard to the discretion of statutory corporations and whether they are required to exercise their powers reasonably may require decision in the future. 'With the growth of statutory corporations to which monopolies are given by the statutes creating them it may become of supreme importance to decide on the construction of the relevant statute to what extent if any a refusal by the statutory body to do business with a particular trader may afford that trader a right of action.'²⁷

New Jurisdictions

The same principle of construction is applied to enactments which create new jurisdictions or delegate subordinate legislative or other powers.²⁸

As the Government of India was precluded from legislating directly as to the sovereignty or dominion of the Crown over any part of its territories in India, an enactment by the Indian Legislative Council making a notification in the Gazette conclusive evidence of a cession of territory was held inoperative to prevent a

²⁵ *Gale v Laurie* (1826) 29 R.R. 199. *Smith v Kirby* (1876) 1 Q.B.D. 131.

²⁶ *The Protector* (1839) 1 W.Rob. 45. *The Diana* (1842) 4 Moo.P.C. 11. *The Sona* (1867) L.R. 1 P.C. 4, 6 discussed by Lord Chelmsford in *Clide Navigation Co v Barclay* (1877) 1 App.Cas. 790. Cf *The Warkworth* (1889) 9 P.D. 145. *Canada Shipping Co v British Shipowners Association* (1939) 22 Q.B.D. 727. 23 Q.B.D. 34. C.A.

²⁷ *Eric Gnapp v Petroleum Board* [1949] 1 All.E.R. 980 C.A. per Tucker L.J.

²⁸ See e.g. *James L.J. Flower v Lloyd* (1877) 6 Ch.D. 301. *Diss v Aldrich* (1877) 2 Q.B.D. 179.

court in India from inquiring into the nature and lawfulness of the cession ²⁹

A general order, made by the judges of the Court of Chancery under parliamentary authority to regulate the procedure of that court, which directed how a defendant in any suit might be served with process abroad ³⁰ was held by Lord Westbury ³¹ to be limited to those suits in which service abroad had been provided for by law, viz suits relating to land and public stock by the Service of Process Act 1832 (c 33), and the Service of Process Act, 1834 (c 82) ³². If the order had been construed literally as applicable to all suits it would, while professedly only regulating the procedure, have in effect, extended the jurisdiction of the court an object foreign to the Act which conferred the power of regulation. This decision indeed, was afterwards overruled but on the ground that the jurisdiction of the court had always existed, though there was no power of enforcing it and that the order therefore did not extend the jurisdiction ³³.

The power given to a county court judge in every case, if he shall think just to order a new trial is exercisable only where such reasons exist as would lead the High Court to grant a new trial ³⁴.

Under a power to regulate the practice of their courts it is more than doubtful whether the county court judges have authority to make a rule empowering a judge to appoint a deputy registrar if the registrar is absent at the sitting of the court ³⁵.

The Queen's Remembrancer Act 1859 (c 21) s 26 ³⁶ which empowered the Barons of the Exchequer to make rules as to the process, practice and pleading of their court in revenue cases was held not to authorise them to make rules granting an appeal

²⁹ *Damodhar v Deoram* (1876) 1 App Cas 332

³⁰ See R S C Ord 11 for Rules as to service out of the jurisdiction

³¹ *Cookney v Anderson* (1863) 1 De G J & Sm 365 See also *Lanman v Audley* (1837) 6 L J Ex 136 *Great Australian Co v Martin* (1880) 5 Ch D 1 *Fowler v Barstow* (1882) 20 Ch D 240

³² Repealed S L R (No 2) Act 1890

³³ *Drummond v Drummond* (1866) L R 2 Ch 32 *Hope v Hope* (1854) 23 L J Ch 682 See also *Re Busfield* (1886) 32 Ch D 123

³⁴ County Courts Act 1888 (c 43) s 93 *Murtagh v Barry* (1890) 24 Q B D 632 *How v L & N W Ry* [1892] 1 Q B 392 C.A. and a like rule applies in case of refusal to order new trial *Pole v Bright* [1892] 1 Q B 603 Cf *Johnson v Johnson* [1900] P 19 See now C C R, 1936 Ord 37 r 1

³⁵ *Wetherfield v Nelson* (1869) L R 4 C P 571 As to references to the official referee *Longman v East* (1878) 3 C P D 142

³⁶ Repealed S L R and Civil Procedure Act 1881 (c 59) s 3 and Sched

to the Exchequer Chamber and House of Lords³⁷ A different construction would in effect have given the Barons authority to confer jurisdiction on two superior courts and to impose on them the duty of hearing an appeal against its decisions³⁸

A power given to the court subject to the restrictions of the Act to authorise the grant of leases, followed by a proviso that any person entitled to the possession of settled estates might apply to the court for the exercise of the power was held not exercisable except on the application of such a person³⁹

When commissioners were authorised at the same time that they awarded compensation to apportion the payment among those benefited an apportionment made at a subsequent time was held invalid⁴⁰

The repealed Licensing Act, 1872 (c 94), s 51 enacting that where justices have ordered a distress in default of payment of a penalty they may order in default of its payment imprisonment for six months was held not to authorise imprisonment where (in consequence of the defendant's admitting his inability to pay the fine) no order of distress had been made It would indeed, have been idle to issue a distress but the words were express and positive⁴¹

Where an Act gives an appeal to the next quarter sessions that court cannot, under a general power to regulate its procedure reject it on the ground of non-compliance with certain regulations not prescribed by the Act such as failure to file appeal⁴² failure to give notices not required by the statute,⁴³ or failure to lodge the appeal a specified number of days before the Sessions⁴⁴ It might perhaps unless the statute required that the appeal should be decided at the same Sessions⁴⁵ lawfully postpone the hearing

³⁷ *Att Gen v Sillers* (1864) 10 H L C 704 *Cf Re Hann* (1886) 18 Q B D 393

³⁸ *Att Gen v Sillem* (1864) 10 H L C 704 at p 775 *per Lord Kingsdown*

³⁹ *Taylor v Taylor* (1876) 1 Ch D 426 3 Ch D 145

⁴⁰ *Mayor of Montreal v Stevens* (1878) 3 App Cas 605

⁴¹ *Re Brown* (1878) 3 Q B D 545 *per Cockburn CJ* *dubist Mellor J* See other illustrations in the construction of the powers given to the Railway Commissioners *G W Ry v Ry Commrs* (1881) 7 Q B D 182 *Toomer v London Ch & D Ry* (1877) 2 Ex D 450 discussed in *Warwick Canal Co v Ry Commrs* (1881) 50 L J Q B 201 *West Ham Corp v G F Ry* (1895) 64 L J Q B 340

⁴² *R v West Riding* (1842) 2 Q B 705

⁴³ *R v West Riding* (1833) 5 B & Ad 667 *R v Norfolk* (1834) 3 L J M C 66

⁴⁴ *R v Surrey* (1849) 6 D & L 735 *R v Buex* (1835) 5 E & B 291

⁴⁵ *R v Pawlett* (1873) L R 8 Q B 491 *R v Staffordshire* (1837) 4 A & E 847

⁴⁶ *R v Belton* (1848) 11 Q B 388

of an appeal not complying with those conditions within such time, but to reject it altogether would be to refuse the appellant the privilege given by the Act, by imposing conditions which the legislature had not imposed

Where the judge of the Court of Arches was required under the Public Worship Regulation Act, 1874 (c 85), to hear a cause in London or Westminster, it was held that he had no power to hear it elsewhere in the province of Canterbury and that all his proceedings there were void ⁴⁶

Statutes conferring Powers

The power given by the Poor Relief Act, 1601 (c 2) to justices to appoint four three, or two substantial householders as parish overseers was not well executed by appointing more than four ⁴⁷ or by appointing a single one even when he was the only householder in the parish ⁴⁸

Section 355 of the repealed Merchant Shipping Act, 1854 (c 104), which empowered the Board of Trade to give the master of a ship a certificate to pilot any ships belonging to the same owner was construed as requiring that the name of the owner should be mentioned in the certificate and a certificate representing another person as the owner was held not granted in compliance with the statute ⁴⁹

Where trustees who were authorised to borrow £30 000 for building a chapel and to levy the amount, with interest by a rate borrowed £32,000 and made a rate to pay the interest on the whole of that sum, it was held, not only that they had exceeded their power, but that the rate was bad *in toto* and a distress to recover it unwarranted ⁵⁰

Where by statute contractual rights are conferred clear words

⁴⁶ *Hudson v Tooth* (1877) 3 Q B D 46

⁴⁷ *R v Loxdale* (1758) 1 Burr 445 See *R v All Saints Derby* (1810) 13 East 143

⁴⁸ *R v Cousins* (1864) 33 L J M C 87 *R v Clifton* (1794) 2 East 168 Cf *Preece v Pulley* (1880) 49 L J C P 686 and cf under the Trustee Act 1850 (c 60) s 32 *Shipperdson's Trusts* (1880) 49 L J Ch 619 *Stokes Trusts* (1872) L R 13 Eq 333 *Harford's Trusts* (1879) 13 Ch D 135 but see *Re Colyer* (1880) 50 L J Ch 79

⁴⁹ *The Earl of Auckland* (1861) 30 L J P M & A 121 127 See also *The Bristol City* [1902] P 10

⁵⁰ *Ritcher v Hughes* (1824) 2 L J K B 61

are required in the statute in order to place a limitation upon those contractual rights ⁵¹

A corporate body constituted by statute for certain purposes is regarded as so entirely the creature of the statute that acts done by it without the prescribed formalities or for objects foreign to those for which it was formed would be, in general, null and void ⁵²

Statutory Instruments and By laws

Instruments and by laws made under statutory powers enforceable by penalties are construed like other provisions encroaching on the ordinary rights of persons. They must, on pain of invalidity be clear and definite and free from ambiguity, and should not make unlawful things that are otherwise innocent ⁵³. They must not be in excess of the statutory power authorising them, nor repugnant to that statute or to the general principles of law ⁵⁴. If rules are made under a statute, sections of which are later repealed and re enacted in a narrower form the rules must be cut down so as not to conflict with the narrower statute ⁵⁵. But if a statute is repealed and re enacted in a wider form, the old rules, in so far as they are continued, are not thereby enlarged ⁵⁶ though they may be consequentially amended ⁵⁷. If the subject is deprived of his right to resort to the courts of law of his country it must be by express enactment and not by by law ⁵⁸.

⁵¹ *Morris and Bastert v Loughborough Corporation* [1908] 1 K.B. 205

⁵² *Chambers v Manchester etc Ry* (1864) 33 L.J.Q.B. 268 *Payne v Cork Co Ltd* [1900] 1 Ch. 308

⁵³ *Scott v Pillner* [1904] 2 K.B. 855 at p. 858 per Lord Alverstone C.J.

⁵⁴ See *Hacking v Lee* (1860) 29 L.J.Q.B. 204 *Ex p Davis* (1872) L.R. 7 Ch. 526 *Bentham v Hoyle* (1878) 3 Q.B.D. 289 *Johnson v Croydon* (1886) 16 Q.B.D. 708 *Dick v Badart* (1883) 10 Q.B.D. 387 *Strickland v Hayes* [1896] 1 Q.B. 290 distinguished in *Burnett v Berry* [1896] 1 Q.B. 641 *Gentel v Rapps* [1900] 1 K.B. 160 *Thomas v Sutters* [1900] 1 Ch. 10 *Mantle v Jordan* [1891] 1 Q.B. 248 *Kruse v Johnson* (a leading case) [1898] 2 Q.B. 91 *Aitson v Ashe* [1899] 1 Q.B. 425 *White v Morley* [1899] 2 Q.B. 34 *Walker v Stretton* (1896) 44 W.R. 525 *Simmons v Malling* [1897] 2 Q.B. 433 *Gray v Sylvester* (1897) 61 J.P. 807 *Godwin v Walker* (1896) 12 T.L.R. 367 *Browncombe v Johnson* (1898) 78 L.T. 265 *Scott v Glasgow* [1899] A.C. 470 *London & S.W. Ry v Hills* [1906] 1 K.B. 512 *Slowe v Threshle* (1901) 38 Sc.L.R. 799 *Nash v Finlay* (1907) 85 L.T. 682 *MacFisheries (Wholesale & Retail) Ltd v Coventry Corporation* [1937] 3 All E.R. 299

⁵⁵ *Re Simplin Marshall Ltd* [1959] Ch. 229

⁵⁶ *Canadian Pacific Steamships Ltd v Bryers* [1958] A.C. 485 H.L.

⁵⁷ *Miller & Cash Stores Ltd v West Ham Corporation* [1955] 3 All E.R. 282

⁵⁸ *Paul v Wheat Commission* [1937] A.C. 139 153

A municipal power of regulation or of making by laws for good government without express words of prohibition, does not authorise the making it unlawful to carry on a lawful trade in a lawful manner. Moreover, a power to regulate and govern seems to imply the continued existence of that which is to be regulated and governed.⁵⁹ But there is a well recognised principle that, where there is a competent authority to which an Act of Parliament entrusts the power of making regulations it is for that authority to decide what regulations are necessary and any regulations which they may decide to make should be supported unless they are manifestly unreasonable or unfair.⁶⁰

A by law can be divided if on part being omitted, the rest of the by law reads grammatically, and when it can thus be divided one part may be rejected as bad while the rest may be held good.⁶¹

In determining the validity of by laws made by public representative bodies under statutory powers their consideration is approached from a standpoint different from that adopted towards by laws of railway or other companies which carry on business for their own profit, although incidentally for the advantage of the public. Courts of justice are slow to condemn municipal by laws as invalid on the supposed ground of unreasonableness, and support them if possible by a benevolent interpretation crediting those who have to administer them with an intention to do so in a reasonable manner,⁶² and with being the best judges whether a particular by law is required in their district or not.⁶³ But on the other hand if a by law necessarily involves that which is unreasonable it is the duty of the court to declare it to be invalid.⁶⁴

A local Act which authorised a navigation company to make by laws for the orderly use of the navigation and for the government of the boatmen carrying merchandise on it was held not to authorise

⁵⁹ *Toronto v. Virgo* [1896] A.C. 88 per Lord Davey *Att. Gen. (Ontario) v. Att. Gen. (Dominion of Canada)* [1896] A.C. 348 P.C.

⁶⁰ *London County Council v. Bermondsey Bioscope Co.* [1911] 1 K.B. 445 per Lord Alverstone

⁶¹ *Strickland v. Hayes* [1896] 1 Q.B. 290 per Lindley L.J.

⁶² *Kruse v. Johnson* [1898] 2 Q.B. 91 unreasonable explained per Lord Russell C.J. at p. 99

⁶³ *Salt v. Scott Hall* [1903] 2 K.B. 245 per Channell J.

⁶⁴ *Stiles v. Galinski* [1904] 1 K.B. 621 per Lord Alverstone C.J.

a by law which closed the navigation on Sundays and prohibited the use of any boat on it except for going to church ⁶⁵

Where a charter which founded a school empowered the governors to remove the master at their discretion and also authorised them to make by laws it was held that a by law ordaining that the master should not be removed unless sufficient cause was exhibited in writing against him signed by the governors and declared by them to be sufficient was void for the power to make by laws did not authorise the making of one which restrained and limited the powers originally given to the governors by the founder. This was in effect to alter the constitution of the school ⁶⁶

Where however the statute conferring the power to make by laws enacts that any such laws consistent with the provisions of the statute and not repugnant to any other law in force shall have the force of law when confirmed by the Executive it is doubtful whether a court would not be precluded from questioning the reasonableness of such by laws or whether they are *ultra vires* unless it be in some very extreme case ⁶⁷

Where Parliament has delegated its legislative function to a Minister of the Crown without retaining any specific control over the exercise of that function by the Minister (such as a condition that an order made by the Minister should be laid before Parliament and be subject to annulment by Parliament) the court has the right and duty to decide whether the Minister has acted within the limits of his delegated power

Where however, the power delegated to the Minister is a discretionary power the exercise of that power within the limits of the discretion will not be open to challenge in a court of law ⁶⁸

⁶⁵ *Calder and Hebble Nav Co v Piling* (1845) 14 L J Ex 223 distinguished in *Thomas v Sutters* [1900] 1 Ch 10

⁶⁶ *R v Darlington School* (1845) 14 L J Q B 67 doubted by Lord Hatherley in *Dean v Bennett* (1870) L R 6 Ch 489. See also *R v Cutbush* (1768) 4 Burr 2204. *Chilton v London & Croydon Ry* (1847) 16 L J Ex 89. *Williams v G W Ry* (1854) 10 Ex 16. *R v Rose* (1855) 24 L J M C 130. *Bostock v Staffordshire Ry* (1852) 25 L J Ch 325. *Foster v L C & D Ry* [1895] 1 Q B 711. *United Land Co v G E Ry* (1875) L R 10 Ch 586. *Morton v London & N W Ry* (1879) 9 Ch D 623. 13 Ch D 268. *Shillito v Thompson* (1876) 1 Q B D 12. Cf *Bonner v G W Ry* (1883) 24 Ch D 1

⁶⁷ *Slattery v Naylor* (1888) 13 App Cas 446. See *Institute of Patent Agents v Lockwood* [1894] A C 347. *Devonport Corp v Toer* [1902] 2 Ch 182. *Att Gen v Dorin* [1912] 1 Ch 369

⁶⁸ *Minister of Health v R ex p Taffe* [1931] A C 494 at pp 532 533 per Lord Thankerton

Private Acts

Enactments of a local or personal character which confer any exceptional exemption from a common burden,⁶⁹ or invest private persons or bodies for their own benefit and profit with privileges and powers interfering with the property or rights of others, are construed against those persons or bodies more strictly perhaps than any other kind of enactment. Any person whose property is interfered with has a right to require that those who interfere shall comply with the letter of the enactment so far as it makes provision on his behalf.⁷⁰ To deprive him by a private Act, of the right to do what he was doing for reward at the passing of the Act requires clear and unequivocal words in the private Act.⁷¹ The courts take notice that the statutory powers are obtained on the petitions framed by their promoters and, in construing them regard them as they are in effect, as contracts⁷² between those persons, or those whom they represent, and the legislature on behalf of the public and for the public good.⁷³ Their language is therefore treated as the language of their promoters who asked the legislature for them and when doubt arises as to its construction the maxim (ordinarily inapplicable to the interpretation of statutes) that *verba cartarum fortius accipiuntur contra proferentem*⁷⁴ or that words are to be understood most strongly against him who uses them is justly applied. For this reason saving clauses in a private Act, which may be said to have been inserted by way of compromise may be given a wider interpretation than the rest of the Act.⁷⁵ The benefit of the doubt is to be given to those who

⁶⁹ e.g. Acts which exempt lands from all taxes and assessments whatsoever are construed as applying only to then existing taxes and assessments. *Williams v Pritchard* (1790) 4 Term Rep. 2. *Perchard v Heywood* (1800) 8 Term Rep. 468. *Sion College v London (Mayor)* [1901] 1 K.B. 617 distinguished in *Netherlands Steamboat Co v London Corp* (1904) 68 J.P. 377 C.A.

⁷⁰ *Herron v Rathmines Improvement Commissioners* [1892] A.C. 498 at p. 523 per Lord Macnaghten. *Longlam v City of London Corporation* [1949] 1 K.B. 208 C.A.

⁷¹ *Bournemouth Swanage Motor Road & Ferry Co v Harvey & Sons* [1929] 1 Ch. 686 Greer L.J. dissenting. *Longham v City of London Corporation* [1949] 1 K.B. 208.

See *Milnes v Mayor of Huddersfield* (1886) 11 App. Cas. 523 per Lord Selborne.

⁷² On this ground a contract by such a body never to use a power given by Parliament was held void. *Ayr Harbour v Oswald* (1883) 8 App. Cas. 623.

⁷³ Co. Litt. 36a.

⁷⁴ *Tanner v Oldman* [1896] 1 Q.B. 60 per Wright J.

might be prejudiced by the exercise of the powers which the enactment grants and against those who claim to exercise them⁷⁶ Indeed if words in a local or personal Act seem to express an intention to enact something unconnected with the purposes of the promoters which the committee, if they had done their duty, would not have allowed to be introduced almost any construction, it has been said would seem justifiable to prevent them from having that effect⁷⁷ But it must be in a doubtful case calling for construction A court is not at liberty to make laws, however strongly it may feel that Parliament has overlooked some necessary provision or even has been overreached by the promoters of a private Bill⁷⁸

Even if such statutes were not regarded in the light of contracts⁷⁹ they would seem to be subject to strict construction on the same ground as grants from the Crown to which they are analogous are subject to it As the latter are construed strictly against the grantee on the ground that prerogatives rights, and emoluments are conferred on the Crown for great purposes and for the public use and are therefore, not to be understood as diminished by any grant beyond what it takes away by necessary and unavoidable construction⁸⁰ so the legislature in granting away in effect, the ordinary rights of the subject should be understood as granting no more than actually passes by necessary and unavoidable construction Thus a private Act only exempts its promoters from the general law and from compliance with individual sections of a Public Act to the extent expressly declared in

⁷⁶ See among many authorities *R v Croke* (1774) 1 Cowp 26 *Gildart v Gladstone* (1810) 11 East 685 *Hull Dock Co v Browne* (1831) 2 B & Ad 58 *Patteson v R v Cumbemorth* (1836) 4 A & E 741 *Blakemore v Glamorganshire Canal Co* (1832) 1 M & K 154 *Webb v Manchester Ry* (1839) 4 My & C 116 *Stockton & Darlington Ry v Barrett* (1844) 11 Cl & F 590 *Scales v Pickering* (1828) 4 Bing 448 *Parker v G W Ry* (1844) 13 LJ CP 105 *Eversfield v Mid Sussex Ry* (1858) 3 De G & J 286 *Simpson v S Staffordshire Waterworks* (1865) 34 LJ Ch 380 *R v Wycombe* (1867) LR 2 QB 310 *Morgan v Metropolitan Ry* (1868) LR 4 CP 97 *Fenwick v East London Ry* (1875) LR 20 Eq 544 *Hipkins v Birmingham Gas Co* (1861) 6 H & N 250 *Att Gen v Furness Ry* (1878) 47 LJ Ch 776 *Lamb v N London Ry* (1870) LR 4 Ch 522 *Clowes v Staffordshire Potteries* (1872) LR 8 Ch 125 *Altrincham v Cheshire Lines Committee* (1885) 15 QB D 597 and see *Dewsbury Waterworks Board v Penistone Union* (1885) 16 QB D 585 *Langham v City of London Corporation* [1949] 1 KB 208

⁷⁷ *River Wear Commrs v Adamton* (1877) 2 App Cas 743 per Lord Blackburn

⁷⁸ *Bristol Guardians v Bristol Waterworks Co* [1914] AC 379 at p 387 per Lord Loreburn

⁷⁹ See *R v York & N Midland Ry* (1853) 2 LJ QB 41

⁸⁰ *The Rebeckah* (1799) 1 C Rob 227 at p 230 per Sir W Scott (Lord Stowell)

it ⁸¹ Where heads of agreement are set out in a private Act, the agreement may become authorised by statute so as to provide statutory rights to the parties to the agreement ⁸

The principle of strict construction is less applicable where the powers are conferred on public representative bodies for essentially public purposes ⁸³

⁸¹ *Re Verrall* [1916] 1 Ch 100

⁸² See *Pye Granite Co Ltd v Ministry of Housing and Local Government* [1960] A C 260 H L., distinguishing *R v Midland Railway Co* (1887) 19 Q B D 540

⁸³ *N London Ry v Metrop Bd of Works* (1859) Johns. 405 per Wood V-C
Lewis v Weston-super-Mare Local Board (1888) 40 Ch D 55 *Pallister v Gravesend* (1850) 9 C B 774 *Galloway v London (Mayor)* (1864) L.R. 1 H L. 34 *Quinton v Bristol (Mayor)* (1874) L.R. 17 Eq 524 *Att-Gen v Cambridge* (1873) L.R. 6 H L. 303 *Richmond v N London Ry* (1868) L.R. 3 Ch 679 *Lyon v Fishmongers Co* (1876) 1 App Cas 662 *Venour's Case* (1876) 2 Ch D 522.

CHAPTER 11

SUBORDINATE PRINCIPLES

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SECTION 1 —EFFECT OF USAGE

It is said that the best exposition of a statute or any other document is that which it has received from contemporary authority *Optima est legum interpret consuetudo*¹ *Contemporanea expositio est optima et fortissima in lege*² Where this has been given by enactment or judicial decision it is of course to be accepted as conclusive³ But further the meaning publicly given by contemporary or long professional usage is presumed to be the true one even when the language has etymologically or popularly a different meaning It is obvious that the language of a statute must be understood in the sense in which it was understood when it was passed,⁴ and those who lived at or near the time when it was passed may reasonably be supposed to be better acquainted than their descendants with the circumstances to which it had relation as well as with the sense then attached to legislative expressions⁵ Moreover, the long

¹ Dig I 3 37

² 2 Inst 11

³ See e.g. *Booth v Ibbotson* (1827) 1 Yo. & J 360 per Hullock B. *Bank of England v Anderson* (1837) 3 Bin. N.C. 666 per Tindal C.J. *Dor v Owens* (1842) 10 M. & W. 521 per Parke B. *Curlen v Mornington* (1857) 26 L.J.Q.B. 181

⁴ Ante p. 58

⁵ Co Litt 8b. 2 Inst 18. 282 Bac Ab Stat (I) 5 2 Hawk c. 9 s. 3 *R v Varlo* (1775) 1 Cowp. 250 *Leigh v Kent* (1789) 3 T.R. 364 *Blankley v Winstanley* (1789) 3 T.R. 279 and *R v Scot* (1790) 3 T.R. 602 *R v Wallis* (1791) 5 T.R. 380 *Kitchen v Bartsch* (1805) 7 East 53 *Stewart v Lawton* (1823) 1 Bing. 377

acquiescence of the legislature in the interpretation put upon its enactment by notorious practice may perhaps, be regarded as some sanction and approval of it⁶. It often becomes, therefore material to inquire what has been done under an Act this being of more or less cogency, according to circumstances in determining the meaning given by contemporaneous exposition⁷.

It has been sometimes said indeed that usage is only the interpreter of an obscure law and cannot control the language of a plain one. If it has put a wrong meaning on unambiguous language, it is rather an oppression of those concerned than an exposition of the Act and must be corrected⁸. It may, indeed well be the rule, as Lord Eldon laid it down in a case of a breach of trust of charity property, that if the enjoyment of property had been clearly a continued breach for even two centuries of a trust created by a deed or will it would be just and right to disturb it⁹. But it seems different where the legislature has stood by and sanctioned by its non interposition the construction put upon its own language by long and notorious usage, and the proposition above stated certainly falls short of the full effect which has been often given to usage. Authorities are not wanting to show that where the usage has been of an authoritative and public character its interpretation has materially modified the meaning of apparently unequivocal language.

A power given by the Felons and Murderers Act 1514 (c. 6) to the judges of the Queen's Bench to issue a writ of *procedendo* was held from the course of practice to be exercisable by a single judge at chambers¹⁰.

Although the 31 Eliz. 1 c. 5—which limited the time for bringing actions on penal statutes to two years when the action was brought

Att Gen v Parker (1747) 3 Atk. 576. *Att Gen v Forster* (1805) 10 Ves. 338. *R v Mashiter* (1837) 6 A. & E. 153. *R v Davie* (1837) 6 A. & E. 374. *Newcastle v Att Gen* (1845) 12 Cl. & F. 402. *Smuth v Lindo* (1858) 27 L.J.C.P. 196. 335. *R v Herford* (1860) 29 L.J.Q.B. 249. *Att Gen v Jones* (1858) 33 L.J.Ex. 249. *Marshall v Exeter (Bp)* (1862) 31 L.J.C.P. 262. *Montrose Peerage* (1853) 1 Macq. H.L. 401.

⁶ *The Anna* (1876) 1 P.D. 253 per James L.J.

⁷ *R v Canterbury (Archbp)* (1848) 11 Q.B. 581 per Coleridge J.

⁸ *Sheppard v Gosnold* (1672) Vaugh. 170. *Dunbar v Roxburgh* (1835) 3 Cl. & F. 354. *R v Hogg* (1787) 1 T.R. 72 per Grose J. *Gwyn v Hardwicke* (1856) 1 H. & N. 53 per Pollock C.B. *Esher Urban Council v Marks* (1902) 71 L.J.K.B. 309.

⁹ *Att Gen v Bristol* (1820) 2 Jac. & W. 321.

¹⁰ *R v Scaife* (1851) 17 Q.B. 238. *Leigh v Kent* (1789) 3 T.R. 362.

SUBORDINATE PRINCIPLES

for the Queen and to one year when brought as well for the Queen as for the informer—was silent as to actions brought for the informer alone it was held partly on the ground of long professional under standing that the last mentioned actions were limited to one year ¹¹

Though 15 Rich 2 c 3 enacted that the Admiralty should have no jurisdiction over contracts made in the bodies of counties, nevertheless seamen engaging in England have always been admitted to sue for wages in that court ¹² where the remedy is easier and better than in the common law courts on the ground, it has been said ¹³ that *communis error facit jus* or rather as it was observed by Lord Kenyon ¹⁴ not *communis error* but uniform and unbroken usage *facit jus*

Were the language obscure said Lord Campbell in a celebrated case, instead of being clear we should not be justified in differing from the construction put upon it by contemporaneous and long continued usage There would be no safety for property or liberty if it could be successfully contended that all lawyers and statesmen have been mistaken for centuries as to the true meaning of an old Act of Parliament ¹⁵ If we find a uniform interpretation of a statute materially affecting property and perpetually recurring which has been adhered to without interruption it would be impossible to introduce the precedent of disregarding that interpretation ¹⁶

Great importance is to be attached to old authorities on the strength of which many transactions may have been adjusted and rights determined But where they are plainly wrong and especially where the subsequent course of judicial decisions has disclosed weakness in the reasoning on which they were based and practical injustice in the consequences that must flow from them I consider it is the duty of this House to overrule them if it has not lost the right to do so by itself expressly affirming them ¹⁷

This principle of construction would seem to be applicable to an ecclesiastical case of much celebrity The rubric of the first

¹¹ *Dyer v Best* (1866) L.R. 1 Ex. 152

¹² *Smith v Tilly* (1664) 1 Keb 712

¹³ *Clay v Sudgrave* (1700) 1 Salk 33 *per* Lord Holt

¹⁴ *R v Essex* (1792) 4 T.R. 594

¹⁵ *Gorham v Exeter (Bp)* (1850) 15 Q.B. 73

¹⁶ (1871) L.R. 3 P.C. 605

¹⁷ *Morgan v Crawshaw* (1871) L.R. 5 H.L. 304 at p. 320 *per* Lord Westbury

West Ham Union v Edmonton Union [1908] A.C. 1 at p. 4 *per* Lord Loreburn

See also *per cur* *Hebbert v Purchas*

Prayer Book of Edward VI (1549) ordered that clergymen should wear albs and copes while administering the Communion. The second Prayer Book, with the Act of Uniformity 1551 (c 1) prohibited those vestments and substituted surplices. These last dresses were again ordered by the conjoined effect of the Act of Uniformity, 1558 (c 2) and the Advertisements or Orders issued in pursuance of it and the albs and copes soon disappeared the surplice becoming the sole officiating vestment until the Restoration. The rubric of the Prayer Book of 1662, however with the Act of Uniformity, 1662 (c 4) (which confirmed the Act of 1558), directed that the vestments used under the book of 1549 should be retained and be in use,¹⁸ but the surplice alone continued to be worn for nearly two centuries. When the right or duty of wearing the old vestments was asserted the Privy Council held that the last rubric (which had the force of a statute) did not repeal the Act and Advertisements of Elizabeth I and must be read as if both sets of vestments were inserted in it.¹⁹ This construction which was not reconcilable with the meaning of the words of the rubric, nor perhaps in harmony with the ordinary principles of interpretation was, however the construction which had been put upon it by long and general usage. Any other indeed, it was remarked would have been oppressive and unjust by subjecting to heavy penalties every clergyman who had failed to use the garments of the first book.²⁰

The Court of Queen's Bench was influenced in its construction of a statute of Anne²¹ by the fact that it was that which had been generally considered the true one for one hundred and sixty years.²²

Even a modern Act has received an interpretation from authoritative usage which could hardly have been otherwise given to it. The Central Criminal Court Act 1834 (c 36) which empowered the judges of that court, or any two or more of them to try

¹⁸ Whether through disingenuousness or negligence? Dean Stanley in his *Christian Institutions* p 167. *Seem* it was done advisedly for the attention of the bishops had been called to the possibility of a return to vestments as the result of the wording *Hebbert v Purchas* (1871) L.R. 3 P.C. 605 643.

¹⁹ *Ridsdale v Clifton* (1877) 2 P.D. 276. Kelly C.B. and two other members of the Council dissenting. See *Letters to Lord Chancellor Cairns* by Chief Baron Kelly 1878 p 14.

²⁰ *Ridsdale v Clifton* (1877) 2 P.D. 276 at p 308 and *Hebbert v Purchas* (1871) L.R. 3 P.C. 605 at p 647.

²¹ 8 Anne c 14 s 1.

²² *Cox v Leigh* (1874) L.R. 9 Q.B. 333.

all offences which might be tried under a commission of oyer and terminer for London or Middlesex was construed to authorise a single judge to try such cases such having been the universal practice of other superior courts of criminal judicature held under commissions of oyer and terminer as well as the established practice of the Central Criminal Court for the thirty six years since the passing of the Act ²³

When I find that there has been such a course of legislation consistently imposing a time limit I am not inclined to construe the provision in subsection (2) of section 16 [of the Local Government Act, 1929 (c 17)] as a departure from that consistent course of legislation unless the words clearly compel me to do so ²⁴

When the question arose whether a person convicted at one time of several offences could be considered, at the time of the adjudication as 'in prison undergoing imprisonment within section 25 of the Summary Jurisdiction Act 1848 (c 43) (which authorised the convicting justice in that case, to make the period of imprisonment for the second offence begin from the expiration of that of the first) it was decided in the affirmative partly indeed in conformity with the construction put on the analogous enactment in the Criminal Law Act 1827 (c 28) but partly also in consequence of the practice of the judges for forty years ²⁵

In all these cases a contrary resolution would to use the words of Parker C J ²⁶ have been an overturning of the justice of the nation for years past The understanding which is accepted as authoritative on such questions however is not that which has been speculative merely or floating in the minds of professional men It must have been long acted on in general practice ²⁷ and publicly A mere general practice for instance which had grown up in a long series of years on the part of the officers of the Crown of not using patented inventions without remuneration to the

²³ *Leveson v R* (1869) L R 4 Q B 394 Cf however *Clow v Harper* (1878) 3 Ex D 198 *Clyde Navigation v Laird* (1883) 8 App Cas 658 per Lords Blackburn and Watson *Gaussen v Lower Bann Navigation Trustees* [1909] N Ir 11 See p 301

²⁴ *Allen v Waters & Co* [1935] 1 K B 200 at p 213 per Goddard J

²⁵ *R v Cutbush* (1867) L R 2 Q B 379

²⁶ In *R v Bewdley* (1712) 1 P Wms 223

²⁷ *Isherwood v Oldknow* (1815) 3 M & S 396 per Lord Ellenborough *Waterford Peerage* (183) 6 Cl & F 173 per Lord Cottenham *Re Ford and Hill* (1879) 10 Ch D 370 per James LJ

patentee under the impression that the Crown was precluded from using them without his licence was held ineffectual to control the true construction or true state of the law which was that the Crown was not excluded from their use.²⁸ Repeated violation of the express terms of a modern statute passed in the public interest does not confer rights on the wrongdoer.²⁹

Some however, of the cases cited—e.g., *Leveson v R*, *supra* p 300—may well be doubted for Lord Watson's statement³⁰ denying that *contemporanea expositio* has any application to a modern Act was later affirmed by the Court of Appeal.³¹ Lord Watson said: "When there are ambiguous expressions in an Act passed one or two centuries ago it may be legitimate to refer to the construction put upon these expressions throughout a long course of years by the unanimous consent of all parties interested as evidencing what must presumably have been the intention of the legislature at that remote period. But I feel bound to construe a recent statute according to its own terms when these are brought into controversy and not according to the views which interested parties may have hitherto taken."³²

A universal law cannot receive different interpretations in different towns.³³ A mere local usage cannot be invoked to construe a general enactment even for the locality.³⁴ *A fortiori* is thus the case when the local custom is manifestly at variance with the object of the Act as, for instance, a custom for departing from the standard of weights and measures which the legislature plainly desires to make obligatory on all and everywhere.³⁵

²⁸ *Feather v R* (1865) 35 L.J.Q.B. 200. See *Dublin Corp'n v Trinity College* (1903) 88 L.T. 305 H.L.

²⁹ *George Legge & Sons v Henlock Corp'n* [1938] A.C. 204, 222.

³⁰ *Clyde Navigation Co v Lord* (1883) 8 App.Cas. 658 at p. 673. *L.C.C. v South Metropolitan Gas Co* [1904] 1 Ch. 76. *Re No. 12 Regent Street Oxford* [1948] Ch. 735 per Jenkins J. See however *Clyde Navigation v Laird* *supra* at p. 670 per Lord Blackburn and *L.C.C. v Central Land Board* [1959] Ch. 386 where practice notes issued by the Board were prayed in aid against them to interpret the Town and Country Planning Act 1947 (c. 51).

³¹ *Goldsmiths Co v Hays* [1907] 1 K.B. 95 at p. 107.

³² *R v Hogg* (1787) 1 T.R. 728 per Grose J. approved in *Income Tax Commissioners v Pemsel* [1891] A.C. 531, 548.

³³ *R v Saltern* (1784) Cald. 444. *Lord Adocate v Walker Trustees* [1912] A.C. 95 H.L. Cases in the sixteenth and seventeenth centuries to the contrary cannot now be taken to be good law.

³⁴ *Noble v Durell* (1789) 3 T.R. 271.

Where the construction of the Act is ambiguous recourse may be had to the rules made under the authority of the Act ³⁵

Light may also be thrown on the meaning of an obscure enactment by the exposition of a statute by a text writer of established repute ³⁶

SECTION 2—CONSTRUCTION IMPOSED BY STATUTE

When the legislature puts a construction on an Act a subsequent cognate enactment in the same terms would *prima facie* be understood in the same sense. Thus, as section 125 of the Bankrupts (England) Act 1825 (c 16), which made void securities given by a bankrupt to creditors as a consideration for signing the bankrupt's certificate was stated in the preamble of the Gaming Act, 1835 (c 41), to have had the effect of making such securities void even in the hands of innocent holders for value and was by the latter Act modified so as to make them valid in such hands it was considered, when the Act of 1825 was repealed and its 125th section was re enacted in its original terms in the Bankrupt Law Consolidation Act, 1849 that the renewed enactment ought to receive the construction which the preamble of the Gaming Act 1835 (c 41) had put on the earlier one ³⁷

The expression *taxed cart*, in a local Act, was held to mean a vehicle which had been defined as a taxed cart by the House Tax Act, 1803 (c 161) ³⁸

Where it is gathered from a later Act that the legislature attached a particular meaning to certain words in an earlier cognate one this would be taken as a legislative declaration of its meaning there ³⁹ Subsequent legislation on the same subject may be looked into in order to see what is the proper construction to be put upon an earlier Act ⁴⁰

³⁵ *Re Bier* (1871) 6 Ch App Cas 875 879

³⁶ See *Craies on Statute Law* 5th ed pp 139 *et seq* and cases there cited

³⁷ *Goldsmid v Hampton* (1858) 27 L.J.C.P. 286

³⁸ *Williams v Lear* (1872) L.R. 7 Q.B. 285 overruling *Purdy v Smith* (1859) 28 L.J. M.C. 150. See also *Hard v Beck* (1863) 32 L.J.C.P. 113

³⁹ *R v Smith* (1791) 4 T.R. 419 *Morris v Mellon* (1827) 6 B. & C. 434 *Att Gen v Clarkson* [1900] 1 Q.B. 136 *per* Sir Francis Jeune P.

⁴⁰ *Cape Brandy Syndicate v I.R.C.* [1921] 2 K.B. 403 414 *Ormond Investment Co v Betts* [1927] 2 K.B. 326 *Camille and Henry Dreyfus Foundation Inc v I.R.C.* [1956] A.C. 32 affirming [1954] Ch. 672. But see *Casanova v R* (1866) L.R. 1 P.C. 268 where the statutes were not quite *in pari materia*

It must be taken for granted that the legislature is acquainted with the actual state of the law⁴¹ and of the practice of the courts⁴². Therefore when the words of an old statute are either incorporated in or by reference made part of, a new statute this is understood to be done with the object of adopting any legal interpretation which has been put on them by the courts⁴³ though not necessarily all the reasons for that interpretation⁴⁴. So the same words appearing in a subsequent Act *in pari materia*, the presumption arises that they are used in the meaning which has been judicially put on them and that, unless there be something to rebut that presumption⁴⁵ the new statute is to be construed as the old one was⁴⁶. The presumption may, however be displaced in special circumstances *e.g.*, where intervening legislation *in pari materia* would make it unjust or absurd to adopt the interpretation applied to the earlier Act in construing the later one⁴⁷.

One reason for instance for holding that section 504 of the Merchant Shipping Act, 1854 (c 104) (which limited the liability of shipowners and is replaced by section 503 of the Merchant Shipping Act 1894 (c 60)) did not extend to foreign ships was that the enactment was taken from the Responsibility of Shipowners Act 1813 (c 159) which had received that construction judicially⁴⁸.

⁴¹ *Young v Leamington (Mayor)* (1832) 8 App Cas 526 *per* Lord Blackburn *Ex p Kent C C* [1891] 1 Q B 725 *Wallis v Russell* [1902] 11 R 585

⁴² *Re Barnard's Banking Co* (1868) L R 3 Ch 769

⁴³ *Dale's Case* (1831) 6 Q B D 376 at p 453 *per* James L J *Greaves v Tofield* (1831) 14 Ch D 571 *Clark v Wallond* (1833) 52 L J Q B 322 *Jay v Johnstone* [1893] 1 Q B 25 *Webb v Outrim* [1907] A C 81 at p 89 *As to Consolidation Acts ante pp 24 58* *Barras v Aberdeen Steam Trawling & Fishing Co* [1933] A C 402 H L (Sc.) *Re Earl Fitzwilliam's Agreement* [1950] Ch 448

⁴⁴ *Re Earl Fitzwilliam's Agreement* [1950] Ch 448

⁴⁵ *Mersey Docks & Harbour Board v Cameron* (1864) 11 H L C 443 *Royal Crown Derby Porcelain Co v Russell* [1949] 2 K B 417

⁴⁶ *Mansell v R* (1857) 27 L J M C 4 *see also Jones v Mersey Docks Co* (1864) 11 H L C 480 *Ex p Thorne* (1876) 3 Ch D 457 *Ex p Atwater* (1877) 5 Ch D 27 *Ex p Campbell* (1871) L R 5 Ch 607 *Barlow v Teal* (1885) 15 Q B D 405 *per* Lord Coleridge *Avery v Wood* [1891] 3 Ch 118 *Colonial Bank v Whinney* (1886) 30 Ch D 285 *North British Rail Co v Budhill Coal & Sandstone Co* [1910] A C 116 at p 127 *per* Lord Loreburn *Lennon v Gibson & Howes Ltd* [1919] A C 309 *Marshall v Wilkinson* [1948] 2 All E R 175 (H L Sc.) *Re Power's Settlement Trusts* [1951] Ch 1074 *John Summers & Co Ltd v Frost* [1955] A C 740 at p 760 *per* Lord Morton of Henryton *See also e.g. Sturgis v Dorell* (1860) 28 L J Ex 366 and *Young v Gentle* [1915] 2 K B 661 *per* Reading C J

⁴⁷ *Tursi v Tursi* [1958] P 54 (interpretation of identical section in Matrimonial Causes Acts 1937 (c 57) and 1950 (c 25) affected by passing of Law Reform (Miscellaneous Provisions) Act 1949 (c 100))

⁴⁸ *Cope v Doherty* (1858) 27 L J Ch 610 *per* Turner L J

On similar grounds Order 31 in Schedule I to the Judicature Act, 1875 (c 77) r 11,⁴⁹ received the same construction as had been given to the earlier enactment from which it was copied⁵⁰ But the mere fact that a statute is re enacted after it has received judicial interpretation does not prevent a superior court from overruling that interpretation⁵¹

It has also been held that the limitation of liability afforded by section 503 of the Merchant Shipping Act 1894 (c 60) to a private shipowner does not extend to the Procurator General, who under the Prize Court Rules 1914, was substituted for the actual captor of a ship alleged to contain contraband of war⁵²

Even where the Acts are not *in pari materia* the meaning notoriously given to expressions in the earlier may be taken to be that in which they are used in the later Act Thus section 61 of the Income Tax Act, 1842 (c 35) which exempted from charge property applicable to charitable purposes was held to use this expression in the wide sense of what is a charity within the Statute of Charitable Uses (43 Eliz c 4)⁵³

Error of Fact or Law in a Statute

But an Act of Parliament does not alter the law by merely betraying an erroneous opinion of it⁵⁴ If the view be truly erroneous the section has misfired⁵⁵

For instance the Shopbooks Evidence Act 1609 (c 12) which enacted that shop books should not be evidence above a year

⁴⁹ Now RSC Ord 31 r 14

⁵⁰ *Bustros v White* (1876) 1 Q B D 423 See also *Anderson v Bank of Columbia* (1876) 2 Ch D pp 654 656

⁵¹ *Royal Crown Derby Porcelain Co v Russell* [1949] 2 K.B 417

⁵² *The Oscar II* [1919] P 171 See Prize Court Rules 1939 (SR & O 1939 No 1466)

⁵³ *Income Tax Commissioners v Pemsel* [1891] A.C. 531 *I R C v Scott* [1892] 2 Q B 152 See Income Tax Act 1952 (c 10) s 447

⁵⁴ See e.g. *Dore v Gray* (1788) 2 T.R. 358 per Ashurst J *Ex p Lloyd* (1851) 1 Sim (N.S.) 248 per Cranworth V.C. *I R C v Dowdall O Mahoney & Co Ltd* [1954] A.C. 401 *Camille and Henry Dreyfus Foundation Inc v I R C* [1954] Ch 672 affirmed [1956] A.C. 39 *Kirkness v John Hudson & Co Ltd* [1954] A.C. 69 *I R C v Butterley & Co Ltd* [1955] Ch 453 affirmed [1957] A.C. 3 For an instance of erroneous recital of another statute *Port of London Authority v Canvey Island Commissioners* [1932] 1 Ch 492

⁵⁵ *Re County of London Housing Order* [1956] 1 All E.R. 818 at p 840 per Upjohn J citing *Avrshire Employers Mutual Insurance Association Ltd v I R C*, 1946 S.C.(H.L.) 1 and *I R C v Dowdall O Mahoney & Co Ltd* [1954] A.C. 401

before action did not make them evidence within the year, though the enactment was obviously passed under the impression, not improbably confirmed by the practice of the courts in those days that they were admissible in evidence ⁵⁶

An Act of Edw 6 which continued till the end of the then next session an Act of Hen 8,⁵⁷ which was not limited in duration, was considered to be idle in that respect and not to abrogate it ⁵⁸

An Act which provided that no more than 6d in the £ should be paid for appraisement in cases of distress for rent, whether by one broker or more did not alter the earlier law which required that goods distrained for rent should be appraised by two brokers ⁵⁹

Although the bare recital in a statute is not sufficient to repeal the positive provisions of a former statute without a clause of repeal, yet where it is gathered from a later Act that the legislature attached a certain meaning to certain words in an earlier cognate Act this would be taken as a legislative declaration of its meaning ⁶⁰

A passage in an Act which showed that the legislature assumed that a certain kind of beer might be lawfully sold without a licence could not be treated as an enactment that such beer might be sold when the law imposed a penalty on every unlicensed person who sold any beer ⁶¹

Section 27 of the Highways and Locomotives (Amendment) Act 1878 (c 77) which provided that section 149 of the Public Health Act 1875 (c 55) which had vested the streets of a town in its local authority should not be construed to pass minerals to the local authority, was considered not to afford the inference that the soil and freehold of the streets vested in all other respects ⁶²

⁵⁶ *Pitman v Maddox* (1699) 2 Salk 690 See also *Dore v Gray* (1788) 2 T R 358

⁵⁷ 28 Hen 8 c 14 repealed S L R 1863

⁵⁸ *The Prices of Wine* (1618) Hob 215

⁵⁹ *Allen v Flicker* (1839) 10 A & E 640

⁶⁰ *Ormond Investment Co v Betts* [1928] A C 143 at p 164 per Lord Atkinson citing *Dore v Gray* (1788) 2 T R 358 *supra* See also *Camille and Henry Dreyfus Foundation Inc v I R C* [1954] Ch 672 (affirmed [1956] A C 39) and the cases therein cited

⁶¹ *Read v Storey* (1861) 30 L J M C, 110 See Revenue (No 1) Act 1861 (c 21) s 3 repealed Finance (1909-10) Act 1910 (c 8) Sched VI

⁶² *Coverdale v Charlton* (1878) 4 Q B D 116 *Wandsworth Bd of Works v United Telephone Co* (1884) 13 Q B D 904 *Ralls v St George Southwark* (1880) 14 Ch D 785 *Tunbridge Wells v Baird* [1896] A C 434 *Finchley Electric Light Co v Finchley Urban District Council* [1903] 1 Ch 437 C A See now Highways Act 1959 (c 25) s 302

Earlier bankruptcy statutes in making traders with the privilege of Parliament liable to be made bankrupts had expressly provided that they should be exempted from arrest and when the Bankruptcy Act 1861 (c 134) enacted that all debtors should be liable to bankruptcy without making any similar provision on behalf of peers and Members of Parliament it was held that they were nevertheless protected by the privilege⁶³

Many Enclosure Acts were passed under the once prevalent opinion that the lord of a manor had a seignorial right of sporting over every part of the manor whereas he had only a right of sporting over the waste as incident to the ownership of the land⁶⁴. When those Acts divested him of the freehold and vested it in the tenants among whom they allotted it but reserved to the lord all the rights of sporting which had been enjoyed by himself and his predecessors a conflict of opinion arose whether this reservation entitled the lord to the right of shooting over the enclosures⁶⁵.

The Night Poaching Act, 1844 (c 29) in reciting that the Night Poaching Act 1828 (c 69) which punished night poaching on land, whether open or enclosed 'had been evaded by the destruction of game not on open and enclosed lands as described in that Act, but on public roads and paths and in making provision to meet the evasion proceeded on an erroneous view of the law for public roads and paths were lands within the meaning of the earlier Act and the person who killed game while standing on them was a trespasser not being there in the exercise of the right of way which alone justified his presence but unlawfully to seek game⁶⁶

Provisions sometimes found in statutes enacting imperfectly or for particular cases only that which was already and more widely the law have occasionally furnished ground for the contention that an intention to alter the general law was to be inferred from the partial or limited enactment resting on the maxim *expressio unius exclusio alterius*. But that maxim is inapplicable in such

⁶³ *Newcastle v Morris* (1870) L R 4 11 L 661

⁶⁴ *Pickering v Noyes* (1825) 28 R R 430 *Sowerby v Smith* (1874) L R 9 C P 524

⁶⁵ See *Greathead v Morley* (1841) 10 L J C P 246 *Ewart v Graham* (1859) 7 H L C 331 *Sowerby v Smith* (1874) L R 9 C P 524 *Devonshire (Duke) v O Connor* (1890) 24 Q B D 469 *Ecroyd v Coulthard* [1898] 2 Ch 358 C A

⁶⁶ *R v Pratt* (1855) 24 L J M C 113 *Harrison v Rutland (Duke)* [1897] 1 Q B 142 *Mayhew v Wardley* (1863) 14 C B (N S) 550

cases. The only inference which a court can draw from such superfluous provisions (which generally find a place in Acts to meet unfounded objections and idle doubts) is that the legislature was either ignorant or unmindful of the real state of the law, or that it acted under the influence of excessive caution. If the law be different from what the legislature supposed it to be the implication arising from the statute, it has been said, cannot operate as a negation of its existence⁶⁷ and any legislation founded on such a mistake has not the effect of making that law which the legislature erroneously assumed to be so.

Thus, when in contending that debts due by corporate bodies were subject to foreign attachment in the Mayor's court the express statutory exemptions of the East India Company and the Bank of England were cited as supplying the inference that corporate bodies were deemed by the legislature to be subject to that process the judicial answer was that it was more reasonable to hold that the two great corporations prevailed on Parliament to prevent all questions as to themselves by direct enactment than to hold that Parliament by such special enactment meant to determine the question in all other cases adversely to corporations⁶⁸.

A local Act which in imposing wharfage dues for the maintenance of a harbour on certain articles expressly exempted the Crown from liability in respect of coals imported for the use of royal packets and the provision in Turnpike Acts⁶⁹ which exempted from toll carriages and horses attending the Queen or going or returning from such attendance were not suffered to affect the more extensive exemptions which the Crown enjoys by virtue of its prerogative⁷⁰.

On the other hand it has been laid down that where a statute confers powers upon a company which the company as owner of property, could have exercised without statutory power the powers expressly given must be treated as either superfluous or as purposely inserted to define that is to limit the right conferred

⁶⁷ *Per cur. Mollwo v Court of Wards* (1872) L.R. 4 P.C. 419-437. *Shrensbury v Scott* (1860) 6 C.B. (N.S.) 1 *per Cockburn C.J.*

⁶⁸ *London Joint Stock Bank v London (Mayor)* (1875) 1 C.P.D. 17 affirmed (1881) App. Cas. 393 H.L.

⁶⁹ Turnpike Roads Act 1822 (c. 126) s. 32 and 4 Geo. 4 c. 95 s. 24.

⁷⁰ *Heymouth v August* (1865) 34 L.J.M.C. 81. *Hornsey Urban District Council v Hennell* [1902] 2 K.B. 73. *Westover v Perkins* (1859) 28 L.J.M.C. 227. *Smithett v Blythe* (1830) 9 L.J. (O.S.) K.B. 39.

and as implying a prohibition of the exercise of the more extensive rights which the company might have by virtue of its ownership of property. The restrictive interpretation is the true mode of regarding statutory powers conferred on bodies created for public purposes and authorised to acquire land for such purposes.⁷¹

A mere recital in an Act whether of fact or of law is not conclusive and courts are at liberty to consider the fact or the law to be different from the statement in the recital unless, indeed it be clear that the legislature intended that the law should be or the fact should be regarded as being,⁷² as recited.

If for instance, a road was stated in an Act to be in a certain township, or a town to be a corporate borough, the statement though some evidence of the fact alleged, would be open to contradiction.⁷³

Section 3 of the Extradition Act 1873 (c 60),⁷⁴ would hardly by merely reciting that an accessory after the fact is by English law liable to be punished as if he were the principal offender be understood as making so important a change of the law.

Alteration of Law Intended

In all these cases no inference necessarily arose that the legislature intended to alter the law and to make it as it was alleged to be. A different effect however would be given to an Act which showed whether by recital or enactment that it intended to effect a change. If the intention is manifested in words competent to make the law in future there is no principle which can deny them this effect.⁷⁵

Such was the effect of The Municipal Corporations Act, 1841 (c 48)⁷⁶ which enacted that municipal corporations should be rateable in respect of their property as though it were not corporate

⁷¹ *London Assoc. of Shipowners v London & India Docks* [1892] 3 Ch 24, and see *Barraclough v Brown* [1897] A.C. 615.

⁷² The Habeas Corpus Suspension Act 1794 (c 54) (repealed S.L.R. Act 1871 (c 116)) reciting that a conspiracy had been formed for subverting the laws and Constitution and for introducing the anarchy prevalent in France this recital was relied on as proof of the conspiracy in the treason trials of 1794. Eyre C.J. in addressing the Grand Jury in *Hardy's Case* (1794) 24 State Trials 200.

⁷³ *R v Haughton* (1853) 22 L.J.M.C. 89. *R v Greene* (1837) 6 A. & E. 548. 1 E. & B. 501. 516.

⁷⁴ Amended Extradition Act 1895 (c 33).

⁷⁵ *Per cur. Postmaster General v Earl* (1827) 12 Wheat. 148 (U.S.A.).

⁷⁶ Repealed Municipal Corporations Act 1832 (c 50) s. 5.

property but that such property, when lying wholly within a borough the poor of which were relieved by one entire poor rate should continue exempt from rateability as if the Act had not passed. Before the Act was passed the general opinion had been that such property was exempt but later decisions had settled that it was not. It was held⁷⁷ that the above enactment exempted it notwithstanding the final words which were considered as not conveying a different intention.

One ground on which the Exchequer Chamber held that the attesting words on the true faith of a Christian of the abjuration oath were essential parts of the oath was that Parliament had put that construction on them when a few years after enacting the oath it allowed the Jews to omit those words when the oath was tendered to them *ex officio*⁷⁸.

A statute of the United States enacted that the district court should in certain cases, have concurrent jurisdiction with the state and circuit courts, as if (contrary to the fact) the district court had not already and the circuit court had jurisdiction. But, although the language plainly indicated only the opinion that the jurisdiction existed in the circuit court and not an intention to confer it this effect was nevertheless given to the Act to prevent its being inoperative and to carry out what was the obvious object of the Act⁷⁹. The district court could not have had concurrent jurisdiction with the circuit court unless the latter could take cognisance of the same suits.

SECTION 3—CONSTRUCTION OF WORDS IN BONAM PARTEM—EFFECT OF MULTIPLICITY OF WORDS—OF VARIATION OF LANGUAGE

Lawful and Rightful Sense

It is said in a certain and limited sense truly that words must be taken in a lawful and rightful sense⁸⁰. When an Act for instance gave a certain efficacy to a fine levied on land it meant only a fine lawfully levied⁸¹.

⁷⁷ *R v Oldham Corp'n* (1868) L.R. 3 Q.B. 474.

⁷⁸ *Security of the Sovereign Act 1714* (c. 13) (repealed by *Promissory Oaths Act 1871* (c. 48)). *Papists Act 1723* (c. 4) (repealed 5 L.R. 1867). *Salomons v Miller* (1853) 8 Ex. 778. *Miller v Salomons* (1853) 7 Ex. 475.

⁷⁹ *Postmaster General v Early* (1827) 12 Wheat. 143.

⁸⁰ See e.g. *R v Hulme* (1870) L.R. 5 Q.B. 377.

⁸¹ Co Litt. 381b. 2 Inst. 590.

The provision that a judgment of the lord mayor's court, when removed to the superior court, shall have the same effect as a judgment of the latter would not apply to a judgment which the inferior tribunal had no jurisdiction to pronounce ⁸²

The landlord's claim to recover arrears of rent out of goods seized in execution by the bailiff of a county court under the County Courts Act 1888 (c 43), s 160,⁸³ depended upon whether the seizure was lawful. If the goods did not belong to the debtor and the seizure was consequently unlawful the claim under the section could not arise ⁸⁴

A rule of a building society authorising a director to reimburse himself for any loss incurred in executing the powers given him by the rules does not apply to acts *ultra vires* and beyond the powers the society could confer ⁸⁵

An Act which required the payment of rates as a condition precedent to the exercise of the franchise would not be construed as excluding from it a person who refused to pay a rate which was illegal though so far valid that it had not been quashed or appealed against ⁸⁶

A covenant by a tenant to pay all parliamentary taxes is construed to include only such as he may lawfully pay and not the landlord's property tax which it would be illegal for him to engage to pay ⁸⁷

A statutory authority to abate nuisances would not justify an order to abate one when it could not be obeyed without committing a trespass ⁸⁸

A highway surveyor who was required by the Highway Act 1862 (c 61) s 16 to 'conform in all respects to the orders of the board in the execution of his duties' was like the clergyman

⁸² *Bridge v Branch* (1876) 1 C P D 633

⁸³ See now County Courts Act 1959 (c 22) s 137

⁸⁴ *Hughes v Smallwood* (1890) 25 Q B D 306. Cf *Beard v Knight* (1858) 27 L J Q B 359. *Foulgar v Taylor* (1860) 29 L J Ex 154

⁸⁵ *Cullerne v London Bldg Soc* (1890) 25 Q B D 485

⁸⁶ *R v Windsor (Mayor)* (1844) 7 Q B 908. *Brayer v Halcomb* (1835) 3 A & E. 381

⁸⁷ *Gaskell v King* (1809) 11 East 165. See *Edgware Highway Board v Harrow Gas Co* (1874) L R 10 Q B 9. *Owen v Body* (1836) 5 A & E 28

⁸⁸ *Scarborough (Mayor) v Rural Authority of Scarborough* (1876) 1 Ex D 344 but see *Parker v Inge* (1836) 17 Q B D 584 and *Broadbent v Shepherd* [1901] 2 K B 274

who had sworn canonical obedience to his bishop⁸⁹ bound to obey only lawful orders which his superior had authority to give, so that he was personally liable for his act if the board had no jurisdiction to make the order under which he did it⁹⁰ Section 199 of the Companies Act, 1862 (c 89), providing for the winding up of companies of more than seven members not registered under the Act applied only to companies which might be lawfully formed without registration, but not to those which were prohibited unless registered⁹¹ But money earned in an unlawful vocation is properly assessed to income tax⁹²

Where analogous words are used each may be presumed to be susceptible of a separate and distinct meaning for the legislature is not supposed to use words without a meaning⁹³ But the use of tautologous expressions is not uncommon in statutes and there is no such presumption against fullness or even superfluity of expression in statutes or other written instruments as amounts to a rule of interpretation controlling what might otherwise be their proper construction⁹⁴

Identical Expressions

It has been justly remarked that when precision is required no safer rule can be followed than always to call the same thing by the same name⁹⁵ It is at all events reasonable to presume that the same meaning is implied by the use of the same expression

⁸⁹ *Long v Gray* (1863) 1 Moo P C (n s) 411

⁹⁰ *Mill v Hawker* (1875) L R 10 Ex 92 *cf Dews v Riley* (1851) 11 C B 434

⁹¹ *Re Padston etc Assoc* (1882) 20 Ch D 137 *Shaw v Benson* (1883) 11 Q B D 563 See Companies Act 1948 (c 38) ss 429 434

⁹² Income Tax Act 1842 (c 35) Sched D *Partridge v Mallandaine* (1880) 18 Q B D 276 *per Denman J* See now Income Tax Act 1952 (c 10) s 123 Sched D Case 11 *Southern v A B* [1933] 1 K B 713 (profits of street bookmaker) *Lindsay Woodward and Hiscox v I R C* [1933] S C 33 (rum running in U S A)

⁹³ See e.g. the distinction between rights and interests in the International Copyright Act 1886 (c 33) s 6 (repealed Copyright Act 1911 (c 46) see Copyright Act 1956 (c 74)) *Moul v Groenings* [1891] 2 Q B 443 between moneys paid under and in respect of a gaming contract *Tatham v Reese* [1893] 1 Q B 44 approved in *Saffery v Mayer* (1901) 70 L J K B 145 See also other examples in *Brighton Guardians v Strand Guardians* [1891] 2 Q B 156 and *Hill v William Hill (Park Lane) Ltd* [1949] A C 530 H L *per Lord Greene* at p 552

⁹⁴ *Hough v Windus* (1884) 12 Q B D 229 *per Lord Selborne* L C

⁹⁵ Sir G C. Lewis *Obs and Reas in Palit* vol 1 p 91

in every part of an Act⁸⁶ Accordingly in ascertaining the meaning to be attached to a particular word in a section of an Act, though the proper course would seem to be to ascertain that meaning if possible from a consideration of the section itself, yet, if the meaning cannot be so ascertained other sections may be looked at to fix the sense in which the word is there used⁸⁷

But the presumption is not of much weight The same word may be used in different senses in the same statute⁸⁸ and even in the same section⁸⁹ especially in a consolidating statute where the word derives from two earlier enactments¹

In the Admiralty Offences (Colonial) Act, 1849 (c 96) for instance which made any person in a British possession charged with any crime at sea liable to be tried in the colony and provided that where the offence was murder or manslaughter of any 'person who died in the colony of an injury feloniously inflicted at sea the offence should be considered as having been committed wholly at sea the word person would include any human being when relating to the sufferer, but would as regards the offender, include only those persons who on general principles of law, are subject to the jurisdiction of our legislature and responsible for their acts

In the enactment which makes it a felony for anyone, "being married to marry again while the former marriage is in force the same word has obviously two different meanings necessarily implying the validity of the marriage in the one case and as necessarily excluding it in the other²

⁸⁶ *Courtauld v Legh* (1869) L R 4 Ex 126 at p 130 *per* Cleasby B *R v Poor Law Commrs* (1837) 6 A & E 56 at p 68 *per* Lord Denman *Re Kirkstall Brewery* (1877) 5 Ch D 535 *Beaman v A R T S* [1949] 1 K B 550 *per* Somervell LJ at p 567 Cf the judgments of Cockburn CJ in *Smith v Brown* (1871) L R 6 Q B 731 and of Baggallay LJ in *The Franconia* (1877) 2 P D 174

⁸⁷ *Spencer v Metrop Bd of Works* (1882) 22 Ch D 142 *per* Jessel MR

⁸⁸ *Whitley v Stumbles* [1930] A C 544 (premises) *Carter v S U Carburettor Co* [1942] 2 K B 288 (tenant)

⁸⁹ *Doe v Angell* (1846) 9 Q B 328 (rent)

¹ *R v Burt ex p Presburg* [1900] 1 Q B 625

² *U S v Palmer* (1818) 3 Wheat 631 *R v Lents* (1857) Dears & B 182 and other cases cited *ante* pp 144 *et seq*

³ Offences Against the Person Act, 1861 (c 100) s 57 *R v Allen* (1872) L R 1 C C R 367 41 L J M C 97 98 For another illustration see *Pharmaceutical Soc v Piper* [1893] 1 Q B 686 (approved in *Pharmaceutical Soc v Armonson* [1894] 2 Q B 720) where the word article was said to have different meanings in different parts of s 17 of the Pharmacy Act 1868 (c 121) So otherwise is used in different senses in the Married Women's Property Act 1882 (c 75) *Re Tidswell* (1887) 56 L J Q B 548 and dwelling house in the Rent Acts *Minns v Moore* [1950] 1 K B 241

Though by section 27 (2) of the Metropolitan Building Act 1855 (c 122) separate sets of chambers in large buildings were to be deemed to be separate buildings and to be separated by proper party walls, etc accordingly yet it was held that they were not separate buildings within the meaning of Schedule 2 Part 1 of the same Act under which the district surveyor was entitled to charge a fee in respect of every new building surveyed by him ⁴

The word made was used in different senses in the London Government Act, 1899 ⁵

It seems to have been once thought that in section 2 of the Gaming Act 1710 (c 19) ⁶ which gave the loser at play a right to recover by action his losses above £10 when lost at a single sitting and gave an informer the right to recover them and treble value besides if the loser did not take proceedings in time the expression a single sitting might receive two different meanings according as the plaintiff was the loser or an informer that is, that a sitting suspended for dinner should be held single and continuous when the loser sued but be broken into two sittings when the action was brought by the informer, on the ground that in the one case the Act was remedial and therefore entitled to a beneficial construction while in the latter it was penal and therefore to be construed strictly ⁷ But unquestionably the interpreter is bound, in general to disclaim the right to assign different meanings to the same words on the ground of a supposed general intention of the legislature ⁸

As the same expression is as a general rule to be presumed to be used in the same sense throughout an Act or a series of cognate Acts a change of language probably, suggests the presumption of change of intention ⁹ and, as has been seen the change of language in the later of two statutes on the same subject has often the effect of repealing the earlier provision by implication ¹⁰ Where

⁴ *Moir v Williams* [1892] 1 Q B 264 See now London Building Act 1930 (c clviii) s 80

⁵ *Parrish v Hackney Corp'n* (1912) 55 SJ 670 See now London Government Act 1939 (c 40)

⁶ Repealed by the Gaming Act 1845 (c 109) s 15

⁷ *Bones v Booth* (1778) 2 W Bl 1276

⁸ *R v Poor Law Commrs* (1838) 6 A & E 56 at p 68 per Lord Denman

⁹ *R v Great Bolton* (1828) 8 B & C 74 per Lord Tenterden *Ricket v Met Ry* (1867) L.R. 2 H.L. 207 *Ex p Haines* [1945] 1 K.B. 183 *Evans v Evans* [1948] 1 K.B. 175

¹⁰ See cases cited *ante* pp 156 *et seq*

a limited interpretation has been placed upon prior Acts of Parliament and the words of an amending Act have been enlarged, the inference is that the enlargement must have been intentional on the part of the legislature¹¹

So where by earlier enactments penalties on members of Parliament for sitting and voting before being sworn were expressly recoverable by common informers, and by the repealing Parliamentary Oaths Act 1866 (c 19) s 5 the penalties were made recoverable by action, without saying by whom it was held that the common informer could not sue but only the Crown¹²

It has been held that where section after section of an Act relating to the winding up of companies was limited to winding up by the court the absence of any such limitation in another section which contained provisions as to procedure 'if the winding up of a company was not concluded within a year after its commencement' indicated an intention on the part of the legislature that the latter section should also apply to cases of voluntary winding up¹³

Where one section of the Adulteration of Food and Drugs Act 1872 (c 74)¹⁴ imposed a penalty for selling as unadulterated, articles of food which were adulterated and another provided that the seller of an article of food who knowing that it was mixed with a foreign substance to increase its bulk weight did not declare the admixture to the purchaser should be deemed to have sold an adulterated article the former section would reach a seller who was ignorant of the adulteration, since where knowledge was intended to be an element in an offence under the Act the legislature had conveyed its intention in express terms¹⁵

Where an Act recited and repealed an earlier one, which had authorised two justices 'whereof one to be of the quorum' to remove any person likely to be chargeable to the parish and enacted that no person should be removed until actually chargeable, when two justices (omitting all mention of either being

¹¹ *Hurlbutt v Barnett* [1893] 1 QB 77

¹² *Bradlaugh v Clarke* (1883) 8 App Cas 354

¹³ Companies (Winding up) Act 1890 (c 63) s 15 repealed Companies (Consolidation) Act 1908 (c 69) s 268 Sched 6 Part I *Re Stock & Share Auction & Banking Co* [1894] 1 Ch 736

¹⁴ Repealed Sale of Food and Drugs Act 1875 (c 63) See now Food and Drugs Act 1935 (c 16)

¹⁵ *Fit patrik v Kelly* (1873) LR 8 QB 337 See *Pope v Tearle* (1874) LR 9 CP 499 *Roberts v Egerton* (1874) LR 9 QB 494

of the quorum) might remove him it was held that this qualification was not necessary under the later Act ¹⁶

A man who sends his servants or his dogs on the land of another would be in law as much a trespasser as if he had entered on the land in person,¹⁷ but an Act which imposed a penalty for committing a trespass by entering or being upon land would be construed as limiting by these superadded words the trespass to a personal entrance ¹⁸

Section 59 of the Pilotage Act 1825 (c 125) which exempted from compulsory pilotage any ship whatever which 'is within the limits of the port to which she belongs, was construed as exempting from compulsory pilotage a London vessel while within the Port of London though on a voyage from Bordeaux but she would not have been exempted under section 379 of the Merchant Shipping Act, 1854 (c 104) (repealed Merchant Shipping Act 1894 (c 60), s 625) which exempted ships 'navigating within the limits of the port to which they belong' ¹⁹

In the Settlement of the Poor Act 1819 (c 50) ²⁰ which provided that no person should acquire a settlement in a parish by a forty days residence in a tenement rented by him, unless if a house, it was held and if land, it was occupied by him for a year, effect was given to the two different words as expressing different ideas by holding that a house need not be occupied for the purpose of acquiring a settlement ²¹ though it was observed this was probably not really intended by the legislature ²²

Variation of Language

But, just as the presumption that the same meaning is intended for the same expression in every part of an Act is as we have seen

¹⁶ *R v Llangian* (1863) 32 L J M C 225 *diss Cockburn C.J*

¹⁷ *Baker v Berkeley* (1827) 3 C & P 32 *Dimmock v Allen* (1811) cited 2 Marsh 582

¹⁸ *R v Pratt* (1855) 24 L J M C 113 But see *Read v Edwards* (1864) 34 L J C P 31

¹⁹ *The Stettin* (1867) Br & Lush 199 *Hickman v Masey* [1900] 1 Q B 752 *Genl Steam Nav Co v Brit Colon Steam Nav Co* (1869) L R 4 Ex 238

²⁰ Repealed by the Poor Relief (Settlement) Act 1825 (c 57) s 1 which section is itself repealed by S L R 1873

²¹ *R v North Collingham* (1823) 1 B & C 578 *R v Great Bolton* (1828) 8 B & C 71

²² *R v North Collingham* (1823) 1 B & C 578 *per Best J* See other illustrations in *Lawrence v King* (1868) L R 3 Q B 345 *Ex p Gorely* (1865) 34 L J Bank 1 *Gale v Laurie* (1826) 5 B & C 156 *Cornill v Hudson* (1857) 27 L J Q B 8 *Wiley v Crawford* (1861) 30 L J Q B 319

not of much weight so the presumption of a change of intention from a change of language (of no great weight in the construction of any documents) seems entitled to less weight in the construction of a statute than in any other case for the variation is sometimes to be accounted for by a mere desire to avoid the repeated use of the same words²³ sometimes by the circumstance that the Act has been compiled from different sources and sometimes by the alterations and additions from various hands which Acts undergo in their progress through Parliament. Though the statute is the language of the three estates of the realm, it seems legitimate in construing it to take into consideration that it may have been the production of many minds and that this may better account for any variety of style and phraseology which is found than a desire to convey a different intention²⁴. Even where the variation occurs in different statutes the change is often not indicative of a change of intention.

Thus there is no difference between a stream and a river in sections 27 and 28 of the Salmon Fishery Act, 1861 (c 109)²⁵ and ordinary luggage in an Act and personal luggage in a by law made under it have been construed as meaning the same thing²⁷.

Nor can there be any material difference between suffering and knowingly suffering persons to gamble in a public house²⁸.

To turn cattle loose on a public thoroughfare which is subject to a penalty by section 54 of the Metropolitan Police Act 1839 (c 47) is substantially identical with leaving cattle there without a keeper, contrary to section 74 of the Highway Act 1835 (c 50)²⁹.

²³ *Hadley v Perks* (1866) LR 1 QB 444 at p 457 per Blackburn J. *R v Frost* (1839) 9 C & P 129 per Lord Abinger. *Brace v Abercrom Colliery Co* [1891] 2 QB 705 per Lindley LJ. *R v Price* (1870) LR 6 QB 411 per Cockburn CJ. *Reed v Nutt* (1890) 24 QBD 669 per Lord Esher MR. As to accidental omissions see ante p 241.

²⁴ *Lines v Hersom* [1951] 2 KB 682 per Lord Goddard CJ at p 686.

²⁵ *Hadley v Perks* (1866) LR 1 QB 444. *Hopes v Hopes* [1949] P 227 at p 237 per Denning LJ. But see *Wheatley v Wheatley* [1950] KB 39.

²⁶ *Rolle v Whyte* (1868) LR 3 QB 286. See now Salmon and Freshwater Fisheries Act 1923 (c 16) s 92 (river includes stream).

²⁷ *Hudston v Midland Ry* (1869) LR 4 QB 366 discussed in *Marrow v G* 11 Ry (1871) 40 LJ QB 300.

²⁸ Alehouse Act 1828 (c 61). Licensing Act 1872 (c 94) repealed Licensing (Consolidation) Act 1910 (c 24) s 79. *Bosley v Davies* (1876) 1 QBD 84.

²⁹ See now Highways Act 1959 (c 25) s 135. See *Sherborn v Wells* (1863) 32 LJMC 179.

The definition in the London Hackney Carriage Act, 1843 (c 86) s 2 of a hackney carriage as a carriage plying for hire in any 'public place' is identical in meaning with the earlier Act, the London Hackney Carriage Act, 1831 (c 22) which defined it as plying for hire in any street or road³⁰

It may be questioned whether too much importance has not sometimes been attached to a variation of language³¹ Nor is a variation of position important. Interests of religion generally comes at the end of section 2 (6) of the Union of Benefices Measure, 1923 (No 2) and at the beginning of section 2 (1) of the Amendment Measure, 1936 (No 2). The change of position does not affect the sense of the measure³²

An Act which enacted that 'it shall and may be lawful' for a justice to hear a certain class of cases under £50 and that penalties above that sum shall³³ be sued for in the superior courts was held equally imperative in both cases even though the effect was to oust the jurisdiction of the superior courts in the former³⁴

Where under earlier bankruptcy statutes certain voluntary settlements could be avoided by an order for sale by a trustee in bankruptcy and were thus voidable only the enactment in section 47 of the Bankruptcy Act 1883 (c 52) that such settlements should be void as against the trustee was construed as also merely rendering them voidable the object of the legislature being conceived to be unchanged and the purpose of the alteration to be merely convenience in drafting³⁵

A change of language effected by the omission in a later statute of words which occurred in an earlier one would make no difference in the sense when the omitted words of the earlier enactment were unnecessary

³⁰ *Skinner v Usher* (1872) L R 7 Q B 423. See also *Curtis v Embery* (1872) L R 7 Ex 369.

³¹ See e.g. *R v South Weald* (1864) 33 L J M C 192. *Ex p Jarman* (1877) 4 Ch D 835.

³² *Re Union of the Benefices of Westoe and South Shields St Hilda* [1939] A C 269.

³³ Duties on Post Horses Act 1785 (c 51) (repealed by the Stage Carriages Act 1832 (c 120) s 1 which Act is repealed by S L R 1874). See e.g. *Haldane v Beauchlerk* (1849) 3 Ex 658. *Montague v Smith* (1852) 17 Q B 688.

³⁴ *Cates v Knight* (1789) 3 T R 442.

³⁵ Repealed Bankruptcy Act 1914 (c 59) s 168 and Sched 6. *Re Brall* [1893] 2 Q B 381 approved by Court of Appeal. *Re Carter and Kenderdine* [1897] 1 Ch 776.

Thus, where the first Act, after enacting that in an 'indictment for murder the manner or means of death need not be stated superfluously provided that the term "indictment should include inquisition (which it did *ex vi termini* without any such provision³⁶), and a subsequent consolidation Act repealed and re enacted the same enactment omitting the unnecessary interpretation clause it was held that the word "indictment was to be read in its full and established meaning and not in the restricted sense in which the legislature apparently understood it in the earlier statute ³⁷

The Merchant Shipping Act 1854 (c 104), which required (following an earlier Act) that the transfer of ships should be registered, but omitted the proviso of the earlier which declared that a transfer not registered should not be valid for any purpose whatever, was construed as making such a transfer void notwithstanding the omission of the proviso ³⁸

The Real Property Act, 1845 (c 106) which after repealing a similar enactment of the preceding session made certain leases void when not made by deed was construed as leaving the unsealed document valid as an agreement although the repealed Act had an express provision to that effect which the repealing one omitted ³⁹

Even where the omitted words were material to the sense but might be implied the omission would not, in itself be considered material, if leading to consequences not likely to be intended

Thus although the Bankruptcy Act 1869 (c 71) in making an assignment by a debtor of all his property an act of bankruptcy, omitted the words 'with intent to defeat or delay his creditors which had been in former Acts it was held that no alteration had

³⁶ 2 Hale 155* *Withpole's Case* (1628) Cro Car 134 *Aliter* information *R v Slaton* (1881) 8 Q B D 267 *Lates v R* (1885) 14 Q B D 648 *Att Gen v Bradlaugh* (1885) 14 Q B D 667

³⁷ *R v Ingham* (1864) 33 L J Q B 183

³⁸ *Liverpool Borough Bank v Turner* (1861) 30 L J Ch 379 See also *Batthjany v Bouch* (1881) 50 L J Q B 421 and Merchant Shipping Act 1894 (c 60) ss 24-26

³⁹ *Bond v Rosling* (1860) 30 L J Q B 227 *Parker v Taswell* (1858) 27 L J Ch 812 *Tidey v Mollett* (1864) 16 C B (ns) 298 per Byles J See however *Halsh v Lonsdale* (1882) 21 Ch D 9 on which see *Coatsworth v Johnson* (1886) 55 L J Q B 220 See now Law of Property Act 1925 (c 20) s 5

been made in the law for those words had been really superfluous and misleading.⁴⁰

A statute which required witnesses before an election commission to answer self-criminating questions and indemnified them against prosecution for the offences confessed if the commissioners certified that they had answered the questions was held not to differ substantially from an earlier one which gave the indemnity only when it was certified that the answers were true. The court shrank from inferring from the mere dissimilarity of the terms of the two Acts though the omitted words were material the improbable intention in the later one to protect a witness who had answered in fact but falsely or contemptuously.⁴¹

It has indeed been said that generally statutes *in pari materia* ought to receive a uniform construction notwithstanding any slight variations of phrase the object and intention being the same.⁴² It has frequently been laid down in America that mere change of phraseology is not to be deemed to alter the law.⁴³ The general language of a statute which repealed one of limited operation and re-enacted its provisions in an amended form would be construed as equally limited in operation unless an intention to extend it clearly appeared.⁴⁴

'The introduction of new words into an existing section may alter the meaning of the words already there. But no such alteration can result unless (a) the requirements of the English language demand it or (b) those requirements permit it and the sense of the section demands it.'⁴⁵

But an amending Act may have a different effect. When an amending Act alters the language of the principal statute the alteration must be taken to have been made deliberately.⁴⁶

⁴⁰ *Re Hood* (1877) L.R. 7 Ch. 302. See *Horn v. Ion* (1837) 4 B. & Ad. 78. See also *Ex p. Copeland* (1853) 22 L.J. Bank. 17 and note a similar omission in s. 1 of Bankruptcy Act 1914 (c. 59).

⁴¹ *R. v. Hulme* (1870) L.R. 5 Q.B. 377. See *Duncan v. Tindal* (1853) 22 L.J.C.P. 137. *Hughes v. Morris* (1852) 2 De G. M. & G. 349. *McCalmont v. Rankin* (1853) 2 De G. M. & G. 403. *Kennedy v. Gibson* (1869) 8 Wallace 498. See *ante* p. 226.

⁴² *Per cur. Murray v. E. I. Co.* (1821) 5 B. & Ad. 204 referring to the Statutes of Limitation.

⁴³ Sedg. Interp. Stat. 234, 428.

⁴⁴ *Per cur. Brown v. MacLachlan* (1872) L.R. 4 P.C. 543. But see *Grey v. I. R. C.* [1960] A.C. 1 H.L.

⁴⁵ *Lord Howard de Walden v. I. R. C.* [1948] 2 All E.R. 825 H.L. *per* Lord Uthwatt at p. 830.

⁴⁶ *D. R. Fraser & Co. v. Minister of National Revenue* [1949] A.C. 24 P.C. at p. 33.

SECTION 4 — ASSOCIATED WORDS UNDERSTOOD IN A COMMON SENSE

When two words or expressions are coupled together, one of which generally includes the other, it is obvious that the more general term is used in a meaning excluding the specific one. Though the words cows, 'sheep and horses for example standing alone comprehend heifers lambs and ponies respectively they would be understood as excluding them if the latter words were coupled with them ⁴⁷

The word land which in its ordinary legal acceptance includes buildings standing upon it is evidently used as excluding them when it is coupled with the word 'buildings' ⁴⁸ If after imposing a rate on houses buildings works tenements and hereditaments, an Act exempted land this word would be restricted to land unburdened with houses buildings or works which would otherwise have been unnecessarily enumerated ⁴⁹

In the Poor Relief Act, 1601 (c 2) s 1 which imposed a poor rate on the occupiers of lands houses, tithes, and "coal mines the same word was similarly limited in meaning as not including mines other than coal mines ⁵⁰ The mention of one kind of mine showed that the legislature understood the word land which in law comprehended all mines as not including any

In the same way, although the word person, in the abstract includes artificial persons that is corporations ⁵¹ the Statute of Uses (27 Hen 8 c 10) which enacted that when a person stood seised of tenements to the use of another person or body corporate the latter person or body should be deemed to be seised of them was understood as using the word person

⁴⁷ *R v Cook* (1774) 2 East PC 616 *R v Loom* (1827) 1 Moo CC. 160

⁴⁸ See e.g. *Denhurst v Feilden* (1845) 7 M & Gr 187 *Peto v West Ham* (1859) 28 LJMC 240 doubted by Blackburn J in *R v Midland Ry* (1875) LR 10 QB 389

⁴⁹ *R v Midland Ry* (1855) 4 E & B 958 *Crayford v Rutter* [1897] 1 QB 650

⁵⁰ *Lead Smelting Co v Richardson* (1762) 3 Burr 1341 *R v Sedgley* (1831) 2 B & Ad 65 *R v Cunningham* (1804) 5 East 478 *Atorgan v Crawshaw* (1871) LR 5 HL 304 *Thursby v Briercliffe* [1894] 2 QB 11 [1895] AC 32 Cf *Southwark etc Water Co v Hampton Urban Council* [1900] AC 3 HL

⁵¹ 2 Inst 722 See however *Weavers Co v Forrest* (1746) 1 Stra 1241 *Harrison's Case* (1777) 1 Leach 180 *St Leonards v Franklin* (1878) 3 CPD 377 *Pharmaceutical Society v London & Provincial Supply Assoc* (1880) 5 App Cas 857 As to foreign corporations *Ingate v Austrian Lloyd's* (1858) 27 LJCP 373 *Scott v Royal Warr Co* (1876) 1 QBD 404 *Royal Mail Co v Braham* (1877) 2 App Cas 381

in the former part of the sentence as not including a body corporate. Consequently, the statute did not apply where the legal seisin was in a corporation.⁵²

The same construction was given for the same reason to the same word in the Charitable Uses Act 1735 (c 36).⁵³

The legal maxim *expressio unius, exclusio alterius*⁵⁴ may be applied to cases such as these. Thus whenever a general Act of Parliament confers immunities which expressly exempt certain persons from the effect and operation of its provisions, it excludes all exemptions to which the subject might have been before entitled at common law.⁵⁵ But the maxim is not now applied in all cases.⁵⁶

When two or more words which are susceptible of analogous meaning are coupled together *noscuntur a sociis*. They are understood to be used in their cognate sense. They take as it were, their colour from each other that is the more general is restricted to a sense analogous to the less general. The expression, for instance places of public resort, assumes a very different meaning when coupled with "roads and streets" from that which it would have if the accompanying expression was "houses".⁵⁷

In section 6 of the Refreshment Houses Act 1860 (c 27)⁵⁸ respecting houses "for public refreshment resort and entertainment, the last word was understood not as a theatrical or musical or other similar performance but as something contributing to bodily, not mental, gratification".⁵⁹

⁵² Bac. Reading Stat Uses 43 57

⁵³ Repealed except s 5 (in part) by the Mortmain and Charitable Uses Act 1883 (c. 42) s 13. *Walker v Richardsan* (1837) 6 L.J. Ex 229

⁵⁴ *Ante* p 306

⁵⁵ *St Paul v Warden v Lincoln (Bishop) as St Paul v Dean* (1817) 4 Price 65. See also *Dewhurst v Fellten* (1845) 7 M. & Gr 182

⁵⁶ See e.g. *Colquhoun v Barks* (1888) 21 Q.B.D. 52 where Lopes L.J. describes the maxim as "a valuable servant but a dangerous master". *London Joint Stock Bank v London (Mayor)* (1875) 1 C.P.D. 1 at p 17. *Dean v Wiesengrund* [1955] 2 Q.B. 120

⁵⁷ See e.g. *Re Jones* (1852) 7 Ex 556. *R v Brown* (1857) 17 Q.B. 833. *Ex p Freestone* (1856) 25 L.J.M.C. 121. *Davies v Douglas* (1859) 28 L.J.M.C. 193. *Sewell v Taylor* (1859) 29 L.J.M.C. 50. *Case v Storey* (1869) L.R. 4 Ex 319. *Skinner v Usher* (1877) L.R. 7 Q.B. 423. *R v Charlesworth* (1851) 2 L.M. & P 117. *Wilson v Ha fax* (1868) L.R. 3 Ex 114. *Ex p Aupps* [1897] 1 Q.B. 1

⁵⁸ Amended by the Revenue (No 2) Act 1861 (c 91) ss. 8 10

⁵⁹ *Muir v Aron* (1874) L.R. 10 Q.B. 494. See *Taylor v Oram* (1861) 31 L.J.M.C. 25. *Hovvs v I R C* (1876) 45 L.J.M.C. 36 46 L.J.M.C. 15 but with another context "entertainment" may easily have another connotation. E.g., see *R*

The Tithes in London Act 1545 (c 12)⁶⁰ which exempted magnates and noblemen from tithes was held, on this ground not to extend to an ecclesiastical magnate such as a dean, but to apply only to magnates of a 'noble' kind⁶¹

In the same way section 17 of the Statute of Frauds which required that contracts for the sale of goods wares and merchandise for £10 or upwards should be in writing and the Factors Act of 1842 (c 39)⁶² which protected certain dealings of agents entrusted with the documents of title of goods and merchandise did not extend to shares or stock in companies⁶³ or to the certificates of them⁶⁴. In each of these cases the meaning of the more general word is in a measure derived from or at least limited by the more specific one with which it is associated

The Bankruptcy Act 1849 (c 106)⁶⁵ which made a fraudulent gift delivery or transfer of property an act of bankruptcy⁶⁶ included only such deliveries or transfers as were of the nature of a gift that is, such only as altered the ownership of the property. It did not include a delivery to a bailee for safe custody⁶⁷

In section 90 of the repealed Bankruptcy Act 1869 (c 71) which authorised the court to order a bankrupt to set aside a sum out of his 'salary or income' towards payment of his debts, the latter word was held to mean income of the nature of salary such as periodical payments under a contract for a theatrical engagement⁶⁸ or the earnings of a commercial traveller employed at so much a year, terminable at a week's notice,⁶⁹ but not to apply

v *Tucker* (1877) 2 Q B D 417 *Terry v Brighton Aquarium Co* (1875) L R 10 Q B 306 *Reid v Wilson* (1895) 64 L J M C 60 *Baxter v Langle* (1863) L R 4 C P 21 *Lee v Simpson* (1847) 16 L J C P 105 *Lamb v Stott* (1899) 36 Sc L R 913

⁶⁰ 37 Hen 8 (c 12)

⁶¹ *St Paul's (Warden) v Lincoln (Bishop), as St Paul's (Dean)* (1817) 4 Price 65

⁶² Now the Factors Act 1889 (c 45)

⁶³ *Tempest v Kilner* (1846) 3 C B 249 *Bowlby v Bell* (1846) 16 L J C P 18 *Humble v Mitchell* (1839) 9 L J Q B 29 *Heseltine v Siggers* (1848) 1 Ex 856

⁶⁴ *Freeman v Appleyard* (1862) 32 L J Ex 175. See however *Evans v Davies* [1893] 2 Ch 216 where shares were held to be within the words 'goods wares or merchandise' of R S C Ord 50 r 2. No reference appears however to have been made to the principle under consideration or to the foregoing authorities

⁶⁵ See now Debtors Act 1869 (c 62)

⁶⁶ Cf Bankruptcy Act 1914 (c 59) s 1 (1) (b)

⁶⁷ *Cotton v James* (1830) 8 L J K B 745 *Intt v Beeston* (1869) L R 4 Ex 159

⁶⁸ *Ex p Shine* [1892] 1 Q B 522 *Re Graydon* [1896] 1 Q B 417

⁶⁹ *Ex p Brindle* (1887) 56 L T 498

to wages⁷⁰ or the earnings of a professional man.¹ These latter statements are however much qualified by the decision of the Court of Appeal in *Re Roberts*⁷²

In the Thames Conservancy Act 1857 (c cxlvii) s 53, which, after empowering the conservators to license the construction of jetties in the river, provided that this should not take away any right claim privilege franchise or immunity to which the occupiers of land on the banks were entitled the word 'right' was limited by the associated words to vested rights of property and did not include the right of navigation which the occupiers enjoyed not otherwise than the public generally.³

In section 1, Prescription Act 1832 (c 71), the expression any right of common was similarly restricted by the succeeding words "or other profit or benefit to be taken and enjoyed from or upon any land so as not to include rights in gross but only those usual rights of common and *profit a prendre* which were in some way appurtenant to the land and limited to the wants of a dominant tenement"⁴

And in section 2 of the same Act, relating to claims by custom prescription or grant "to any way or other easement," the expression included only easements analogous to a right of way that is rights of utility and benefit, and not merely of recreation and amusement.⁵

An Act⁶ which made it felony to break and enter into a dwelling shop, warehouse, or counting house would not include a workshop, but only that kind of shop which had some analogy with a warehouse that is one for the sale of goods.⁷

A statutory prohibition on the conveyance of gunpowder into a mine except in a case or canister would prevent the use of

⁷⁰ *Re Jones* [1891] 2 Q B 231

⁷¹ *Ex p Bennell* (1885) 14 Q B D 301. See *Re Rogers* [1894] 1 Q B 425 and Bankruptcy Act 1914 (c 59) s 51

⁷² [1900] 1 Q B 122 at p 129

³ *Kearns v Cordwainers Co* (1859) 3 L J C P 285 discussed in *Lyon v Fishmongers Co* (1876) 1 App Cas 662

⁴ *Shuttleworth v Le Fleming* (1865) 34 L J C P 309

⁵ *Mounsey v Ismay* (1865) 34 L J Ex 52. See *Webb v Bird* (1862) 10 C B (N.S.) 268 13 C B (N.S.) 841

⁶ 7 & 8 Geo 4 c 29 (repealed Criminal Statutes Repeal Act 1861 (c. 95))

⁷ *R v Sanders* (1839) 9 C. & P 79

such a case as a linen bag which is not of the same solid and substantial description as a canister ⁷⁸

Debentures of a company are not stock or shares within section 14 of the Judgments Act, 1838 (c 110),⁷⁹ and the wages of a collier were not within the meaning of the words salary or income of section 53 of the Bankruptcy Act 1883 (c 52) as they were not 'income *eiusdem generis* with salary ⁸⁰

The County Courts Act, 1846 (c 95) s 128, in making a person subject to the jurisdiction of the court of the district within which he dwells or carries on his business, included under the latter expression not only a personal carrying on of business, but cases where it was carried on altogether by an agent ⁸¹

Section 6 of the Admiralty Court Act, 1861 (c 10), which gave the Admiralty Court jurisdiction when the shipowner is not domiciled in England, over any claim of the owner of goods carried into any English port for damage done to them by the negligence or misconduct of, or for 'any breach of duty or of contract by the shipowner master, or crew seemed confined to breaches of duty or contract having some analogy to what is provided in the earlier part of the section and was, therefore, held not to apply to the wrongful refusal of a master to take a cargo to a port abroad ⁸²

On the same principle an Act which prohibited the "taking or destroying of the spawn of fish would not include a 'taking' of spawn to remove it to another bed for the word destroying with which taking was associated indicated that the taking which was prohibited was dishonest or mischievous ⁸³

In an Act which made it penal to take or kill fish without the leave of the owners of the fishery the same kind of taking was similarly held to have been intended ⁸⁴

⁷⁸ Metalliferous Mines Regulation Act 1872 (c 77) s 23 (2) (repealed Mines & Quarries Act 1954 (c 70)) *Foster v Diphwys Casson Slate Co* (1887) 18 Q B D 429 see ante p 68

⁷⁹ *Sellar v Bright & Co* [1904] 2 K B 446

⁸⁰ *Re Jones* [1891] 2 Q B 231 See Bankruptcy Act 1914 (c 59) s 51

⁸¹ *Minor v London & N Ry* (1857) 26 LJ CP 39 *Shields v Rait* (1849) 18 LJ CP 120 Cf *Re Norris* (1888) 5 M B R 111 See now CCR 1936 Ord 2 r 1

⁸² *The Dannebrog* (1874) L R 4 A & E 386

⁸³ *The Fish Act* 1605 (c 12) (repealed Salmon Fishery Act 1861 (c 109) s 39) *Bridger v Richardson* (1814) 2 M & S 568

⁸⁴ *The Game Act* 1670 (c 25) (repealed by the Game Act 1831 (c 32) s 1) *R v Mallinson* (1758) 2 Burr 679

An Act which prohibited the having or keeping of gunpowder did not apply to a person who "had gunpowder for a merely temporary purpose as a carrier the kind of having intended by the Act being explained by the word 'keeping' with which it was associated ⁸⁵

Where an Act punished the having in his possession or conveying anything suspected of being stolen and not satisfactorily accounted for the former expression was limited by the latter and did not therefore apply to possession in a house ⁸⁶

An Act which made it felony to cast away or destroy a ship was held not to apply to a case where a ship was run aground or stranded upon a rock but was afterwards got off in a condition capable of being refitted ⁸⁷

This rule was applied to the construction of the repealed Offences against the Person Act 1837 (c 85) which made it felony to shoot cut, stab or wound and the latter term was held to be restricted, by the verbs which preceded it, to injuries inflicted by an instrument Consequently, to bite off a finger or nose, or to burn the face with vitriol was not to wound within the meaning of the Act ⁸⁸

One phrase or clause in the same way, sometimes materially limits the effect of another with which it is associated Thus an Act which disencumbered lands to all intents and purposes and then went on to make them descendible as lands at common law was held to disencumber them only for the purposes of descent ⁸⁹

The section of the Grants of Life Annuities Act 1776 (c 26) ⁹⁰ which excepted from the general provisions of the enactment any voluntary annuity granted without regard to pecuniary consideration, was construed as using the word voluntary not in its

⁸⁵ Gunpowder Act 1772 (c 61) (repealed by the Gunpowder Act 1860 (c 139) s 1) *Biggs v Mitchell* (1862) 31 L.J.M.C. 163 See *R v Strugnell* (1865) L.R. 1 Q.B. 93 But see *Shelley v Bethell* (1883) 12 Q.B.D. 11

⁸⁶ Metropolitan Police Courts Act 1839 (c 71) s 24 This section is supplemental only to the Metropolitan Police Act 1839 (c 47) s 66 and is qualified thereby *Hadley v Perks* (1866) L.R. 1 Q.B. 444

⁸⁷ *De Londo v Case* (1765) 2 East P.C. 1098

⁸⁸ *R v Harris* (1836) 7 C. & P. 446 *R v Stevens* (1834) 1 Moo.C.C. 409 *R v Murrow* (1835) 1 Moo.P.C. 456 *Jenning v Case* (1838) 2 Lewin.C.C. 130 See *R v Waudby* [1895] 2 Q.B. 482 See ante p 256

⁸⁹ *Blissman v Cotten* (1663) 1 Lev 79

⁹⁰ Repealed by S.L.R. Act 1861 (c 101)

usual legal sense as without consideration, but as without pecuniary consideration⁹¹

SECTION 5 — GENERIC WORDS FOLLOWING MORE SPECIFIC

Ejusdem Generis

It is, however, the use of a general word following but not preceding,⁹² other less general terms *ejusdem generis* which affords the most frequent illustration of the rule under consideration. In the abstract general words like all others, receive their full and natural meaning though they should not be extended so as to confine matters to which they are obviously not germane. As an example of the above general proposition section 3 of the Civil Procedure Act 1833 (c 42)⁹³ which limited the time for suing upon any bond or other specialty, comprehends under the last expression every kind of specialty, including a statute⁹⁴. In such and cognate cases, the general principle applies that the terms are to receive their plain and ordinary meaning and courts are not at liberty to impose on them limitations not called for by the sense the objects or the mischief of the enactment⁹⁵.

But the general word which follows particular and specific words of the same nature as itself takes its meaning from them and is presumed to be restricted to the same genus as those words⁹⁶. In other words, it is to be read as comprehending only things of the same kind as those designated by them unless of course there be something to show that a wider sense was intended⁹⁷ as for

⁹¹ *Crespigny v Wittenoom* (1797) 4 TR 790. See *Blake v Attersoll* (1824) 2 B & C. 875. *Evatt v Hunt* (1853) 22 L.J.Q.B. 348.

⁹² See e.g. *King v George* (1877) 5 Ch D 627. *Ambatielos v Anton Jurgens Margarine Works* [1933] A.C. 175 at p. 183. *Canadian National Railway v Canadian Steamship Lines Ltd* [1945] A.C. 204 at p. 211. *Re Wellsted's Will Trusts* [1949] Ch 296.

⁹³ Repealed Limitation Act 1939 (c 21).

⁹⁴ *Cork & Brandon Ry v Goode* (1853) 22 L.J.C.P. 193. discussed and distinguished in *Thomson v Clanmorris (Lord)* [1900] 1 Ch. 718.

⁹⁵ *U.S. v Coombs* (1838) 12 Peters 80. See *Att Gen (Palestine) v Fakhry Ajjat* [1947] A.C. 332. *Roe v Hemmings* [1951] 1 K.B. 676.

⁹⁶ *Thames and Mersey Marine Insurance Co v Hamilton Fraser & Co* (1887) 12 App.Cas. 484. *Fenwick v Schmal* (1868) L.R. 3 C.P. 313 per Willes J. *Eton R.D.C. v Rl er Thames Conservators* [1950] Ch 340.

⁹⁷ *R v Edmondson* (1859) 23 L.J.M.C. 213. And see *Camberwell Assessment Committee v Ellis* [1900] A.C. 521. 11 L. *Evans v Cross* [1938] 1 K.B. 694.

instance a proviso specifically excepting certain classes clearly not within the suggested genus⁸⁸

Unless there is a genus or category there is no room for the application of the *ejusdem generis* doctrine. The words 'war disturbance or any other cause' comprise a category of violent acts attributable to human agency⁸⁹

Plate, linen and chattels in the coach house and stables do not make up a category excluding horses¹

'Loss of time from deficiency of men or owner's stores breakdown of machinery or damage to hull or other accident preventing the work of the steamer' does not admit the principle of *ejusdem generis*

Nor do the words 'theatres and other places of public entertainment' create a genus²

In a modern Privy Council case it has been said that there must be more than one species mentioned to constitute a genus

The mention of a single species, for example, water rates does not constitute a genus³. But possibly this would not apply if a single species were wide enough to comprehend a large number of varieties e.g., domestic animal⁴

Section 43 of the Customs Laws Consolidation Act 1876 (c 36), which provides that 'the importation of arms, ammunition, gunpowder or any other goods may be prohibited by proclamation or Order in Council, relates only to goods of a like character or description to those specifically mentioned and not to other things of an entirely different description'⁵

The Sunday Observance Act, 1677 (c 7), which enacts that no tradesman, artificer, workman, labourer, or other person whatsoever, shall do or exercise any labour business or work of

⁸⁸ *Allen v Emmerson* [1944] 1 K B 362

⁸⁹ *Tillmans & Co v S S Knutsford* [1908] 2 K B 385 per Farwell L J

¹ *Anderson v Anderson* [1895] 1 Q B 749

² *Owners of S S Magnhild v Macintyre* [1920] 3 K B 321 per McCordie J who discusses Maxwell on *Statutes* in this connection. See also *Hood Barrs v I R C* [1946] 2 All E R 768 C A

³ *Allen v Emmerson* [1944] 1 K B 262

⁴ *United Towns Electric Co Ltd v Att Gen for Newfoundland* [1939] 1 All E R 423 at p 428. *L C C v Tann* [1954] 1 W L R 371 and see *Roe v Hemmings* [1951] 1 K B 676

⁵ See 70 L Q R 172 in which the effect of *Alexander v Tredegar Iron and Steel Co Ltd* [1944] K B 390 [1945] A C 286 is discussed

⁶ *Att Gen v Brown* [1920] 1 K B 773. Owing to the passing of an Indemnity Act during the pendency of an appeal in this case the Court of Appeal formally allowed the appeal on terms by consent see [1921] 3 K B 29

their ordinary callings upon the Lord's Day" has been held not to include a coach proprietor,⁷ a farmer,⁸ a barber,⁹ and possibly a solicitor¹⁰ the word "person" being confined to followers of callings like those specified by the preceding words.

For a similar reason the 20 Geo 2 (c 19), which empowered justices to determine differences between masters and servants in hushandry artificers handicraftsmen and persons in some other specific employments and 'all other labourers, did not include a domestic servant¹¹ or a man employed to take care of goods seized under a writ,¹² for, though in the abstract they might be labourers their employments had no analogy with those specified. It would include however a man who contracted to work by the piece not by the day provided the relation of the master and servant existed¹³.

The Metropolitan Building Act, 1855 (c 122)¹⁴ which entitled a district surveyor or other person' to a month's notice of action for anything done under the Act was held on this principle to give that privilege not to every person sued, but only to persons *ejusdem generis* with a district surveyor, that is persons having an official duty¹⁵.

An Act which empowered quarter sessions to order the treasurer of the county riding division or place to pay costs only applied to a 'place' *ejusdem generis* with 'county riding, division that is, a place having a separate court of quarter sessions¹⁶.

⁷ *Sandiman v Breoch* (1827) 5 L.J. (o.s.) K.B. 298.

⁸ *R v Clenorth* (1864) 4 B. & S. 927 *sub nom R v Sylvester* (1864) 33 L.J.M.C. 79.

⁹ *Palmer v Snow* [1900] 1 Q.B. 725.

¹⁰ *Peate v Dickin* (1834) 4 L.J. Ex. 28.

¹¹ *Kitchen v Shaw* (1837) 6 A. & E. 729. *Cf Ex p Hughes* (1854) 23 L.J.M.C. 138. *Davies v Berwick* (1861) 30 L.J.M.C. 84. *Morgan v London Gen Omnibus Co* (1884) 13 Q.B.D. 84. See however *Bound v Lawrence* [1892] 1 Q.B. 276 at pp. 229-230 *per Fry L.J.* See also *Cook v North Metrop Tramways Co* (1887) 18 Q.B.D. 683.

¹² *Bramwell v Penneck* (1827) 7 B. & C. 536.

¹³ *Lowther v Radnor* (1806) 8 East 113. *cf Lancaster v Greaves* (1829) 9 B. & C. 628. *Ex p Johnson* (1839) 7 Dowd 702. *R v Heywood* (1813) 1 M. & S. 624. See also *Gordon v Jennings* (1882) 9 Q.B.D. 45.

¹⁴ Repealed London Building Act 1894 (c. ccxvii) s. 215 Sched. 4.

¹⁵ *Williams v Golding* (1865) L.R. 1 C.P. 69. *Cf Newton v Ellis* (1855) 24 L.J.Q.B. 337. See *contra Driffeld Co v Waterloo Co* (1886) 31 Ch.D. 638.

¹⁶ Vagrancy Act 1824 (c. 83) s. 9. So much of this section as relates to costs is repealed by Costs in Criminal Cases Act 1908 (c. 15) s. 10 and Sched. *R v West Riding JJ* [1900] 1 Q.B. 291. See now Costs in Criminal Cases Act 1952 (c. 48).

Section 75 of the Larceny Act, 1861 (c 96) (now Larceny Act, 1916 (c 50), ss 19-22), which made it a misdemeanour for any 'banker merchant broker attorney or other agent to convert to his own use any valuable security entrusted to him for any special purpose was held under the words or other agent not to include any ordinary agent who might from time to time be entrusted with valuable securities but only persons whose occupation was similar to those specifically enumerated¹⁷

In an Act imposing a penalty on unqualified persons navigating any wherry, lighter or other craft, the last word would include only vessels of the same kind as wherries and lighters and not steam tugs which carried neither passengers nor goods¹⁸ But the same word would be more comprehensive if it had followed boats and vessels¹⁹

A prohibition against deducting from an artificer's wages any part of them for frame rent and standing, or other charges, would not include under the last word a fine incurred for breach of agreement²⁰

The Distress for Rent Act, 1737 (c 19) which by section 8 authorises the distress for rent of 'corn grass, or other product growing on the demised lands includes only products similar to grass and corn and not young trees, which, though unquestionably products of the land are of a different character from the products specified by the earlier terms²¹

For the same reason young trees were not included in the Larceny Act 1861 (c 96) s 36 which punished the stealing of any plant root fruit or vegetable production growing in a garden orchard, nursery ground hothouse or conservatory²²

An Act which prohibited playing or betting in any street at or with any table or instrument of gaming would not include

¹⁷ *R v Portugal* (1886) 16 Q B D 487 *R v Prince* (1827) 2 C & P 517 *R v Kane* [1901] 1 K B 472

¹⁸ 7 & 8 Geo 4 c lxxv s 37 *Reed v Ingham* (1854) 23 L J M C 156 The words any cathedral collegiate chapter or other schools in the proviso at the end of the Charitable Trusts Act 1853 (c 137) s 62 (partly repealed by S L R Act 1875 (c 66)) were similarly construed in *Re Stockport Schools* [1898] 2 Ch 687

¹⁹ *Tisdell v Combe* (1838) 7 A & E 788

²⁰ *Willis v Thorp* (1875) L R 10 Q B 383

²¹ *Clark v Gaskarth* (1818) 8 Taunt 431

²² *R v Hodges* (1829) 1 Moo & M 341 See *Radnorshire Bd v Evans* (1863) 32 L J M C 100 *Smith v Barnham* (1876) 1 Ex D 419

under the last general words, half-pence used for tossing for money ²³

A by law which imposed a penalty for causing an obstruction in the streets in various specified ways, all of a temporary character, or otherwise causing or committing any other obstruction nuisance or annoyance' in any of the streets, was held not to include, under the latter words, any obstruction which was not of a temporary character ²⁴

The enactment which prohibited the establishment without licence of the business of a blood boiler bone boiler fellmonger slaughterer of cattle, horses or animals of any description, soap boiler tallow melter, tripe boiler, other noxious or offensive business trade or manufacture, was held not to include under the final general terms any employments not connected, as all the specified trades were with animal matter and so did not reach brick making ²⁵ nor a small pox hospital ²⁶

A fishing net with an illegally small mesh is not an instrument within the Salmon Fishery Acts which prohibit the use of any otter lath, or jack wire or snare, spear gaff, strokehall snatch or other like instrument for the purpose of catching salmon ²⁷

Where, in the repealed Cruelty to Animals Act, 1849 (c 92) s 11 in defining animal nineteen kinds of animals were specified all being beasts and none being a bird the words or any other domestic animal which followed were held not to include a fighting cock ²⁸

An Act ²⁹ which gave a vote to the occupier of a house

²³ *Watson v Martin* (1865) 34 L J M C 50 rectified by the Vagrant Act Amendment Act 1873 (c 38) s 3 *Hirst v Molesbury* (1870) L R. 6 Q B 130 *Cf R v O Connor* (1882) 15 Cox C C 3 See further *Toller v Thomas* (1871) 24 L T 508

²⁴ *R v Dickenson* (1857) 26 L J M C 204

²⁵ Public Health Act 1848 (c 63) s 64 repealed by Public Health Act 1875 (c 55) s 343 Sched 5 Pt 3 *Wanstead Board v Hill* (1863) 3 L J M C 135

²⁶ Public Health Act 1875 (c 55) s 112 *Watlington L. Bd v Manchester Corp* [1893] 2 Ch 19 *Cf Metropolitan Asylum District v Hill* (1881) 6 App Cas 193 *Passy v Oxford* (1879) 43 J P 622 See Public Health Act 1936 (c 49) s 107

²⁷ Salmon Fishery Act 1861 (c 109) s 8 amended by Salmon Fishery Act, 1873 (c. 71) s 18 *Jones v Davies* [1898] 1 Q B 405 See now Salmon and Freshwater Fisheries Act 1923 (c 16) s 1

²⁸ *Johnstone v Abercrombie* (1897) 30 Sc L R 260 See now Protection of Animals Act 1911 (c 27) s 15

²⁹ Representation of the People Act 1832 (c 45) s 27 repealed Representation of the People Act 1918 (c 64) s 47 and Sched 8

warehouse counting house shop or other building' included, in the latter term only buildings which like those specifically mentioned were of some permanence and utility and contributed to the beneficial occupation of the land increasing thereby its value ³⁰

The words tenements and hereditaments which, in their technical sense, embrace not only every species of right connected with land, such as rents tithe, rights of common and seignorial rights but also offices have been confined to habitable structures when coupled with and following such words as houses, ware houses and shops' ³¹

Area in section 4 of the Vagrancy Act 1824 (c 83) following inclosed yard or garden is not an extensive place, but one akin to a yard or garden ³²

For the rule to operate it is not necessary that the word 'other' should be used All times of public processions rejoicings or illuminations and in any case when the streets are thronged or liable to be obstructed ³³ only applies to cases *ejusdem generis* with public processions rejoicings and illuminations ³⁴

General Words Construed Generally

Of course the restricted meaning which primarily attaches to the general word in such circumstances is rejected when there are adequate grounds to show that it has not been used in the limited order of ideas to which its predecessors belong If it can be seen from a wider inspection of the scope of the legislation that

³⁰ *Powell v Boraston* (1864) 34 L.J.C.P. 73 See also *Morish v Harris* (1865) L.R. 1 C.P. 155 Cf *Hodgson v Jex* (1876) 2 Ch.D. 122 *Chapman v Chapman* (1877) 4 Ch.D. 800

³¹ *R v Manchester Waterworks Co* (1823) 1 B. & C. 610 *R v East London Waterworks Co* (1852) 17 Q.B. 512 See also *Chelsea Waterworks v Bowley* (1851) 17 Q.B. 358 *Metrop Ry v Fowler* [1893] A.C. 416 *R v Neville* (1846) 8 Q.B. 452

³² *Knott v Blackburn and Another* [1944] 1 K.B. 77 For other cases on the *ejusdem generis* rule see *Spackman v Case* (1849) 1 McN. & G. 170 *Re Anglo Greek Steam Co* (1866) L.R. 2 Eq. 1 *Re Langham Rink Co* (1877) 5 Ch.D. 669 See however *inter alia* *Re Suburban Hotel Co* (1867) L.R. 2 Ch. 737 *Re German Date Coffee Co* (1882) 20 Ch.D. 169 *Re Chic Ltd* [1905] 2 Ch. 345 *Re Melson* [1906] 1 Ch. 841 *Re Crigglestone Co* [1906] 2 Ch. 327 *Stephens v Mysore Reefs Mining Co* [1902] 1 Ch. 745 *Re Symington* (1905) 43 Sc.L.R. 157 See under the Apportionment Act 1870 (c 35) *Re Cox's Trusts* (1878) 9 Ch.D. 159

³³ Town Police Clauses Act 1847 (c 89) s 21

³⁴ *R v Wallis* (1793) 5 T.R. 375 *Brownsea Haven Properties Ltd v Poole Corporation* [1958] Ch. 574 overruling *Teale v Williams* [1914] 3 K.B. 395

the general words notwithstanding that they follow particular words are nevertheless to be construed generally, effect must be given to the intention of the legislature as gathered from the larger survey³⁵

Upon this principle it has been held that, having regard to the object of section 32 of the Patents Designs and Trade Marks Act, 1883 (c 57)—repealed by section 36 of the Patents and Designs Act, 1907 (c 29)—as seen on a consideration of the whole section and the law existing at the time of its enactment in construing the reference to threats of legal proceedings ‘by circulars advertisements or otherwise’ which it contained the words or otherwise were not to be restricted to threats by measures *ejusdem generis* with circulars or advertisements but were to be regarded as extending the previous words so as absolutely to prohibit any threats whatever of legal proceedings by a patentee for the infringement of his patent unless they were followed up speedily by an action³⁶

Where an inspector of nuisances was authorised to inspect articles of food deposited in any place for sale and a penalty was imposed on persons who prevented him from entering any slaughter house shop building market or other place, where any carcase was deposited for sale it was held that the latter word was not confined to places *ejusdem generis* with those which preceded it. The earlier passage which gave authority to enter ‘any place’ obviously required that the same word should receive an equally extensive meaning in the subsequent passage³⁷

Section 53 of the Public Health Act 1848 which imposed a penalty for making any sewer drain privy, cesspool ashpit building or other work contrary to the provisions of the Act included under the word ‘building’ not only constructions of a character similar to those previously mentioned but also dwelling houses³⁸

Where a special Act passed in 1767 authorised the owner of

³⁵ See e.g. *Rands v Oldroyd* [1959] 1 QB 204

³⁶ *Skinner & Co v Shew & Co* [1893] 1 Ch 413 distinguished in *Beven v Welsbach Incandescent Gas Light Co* (1902) 20 R P C 69 p 73

³⁷ *Young v Grattidge* (1863) L.R. 4 QB 166 See also *Harris v Jenns* (1861) 30 L J M C. 183

³⁸ *Pearson v Kingston-upon-Hull* (1865) 35 L J M C 36 See *Morish v Harris* (1865) L.R. 1 C P 455 See Public Health Act, 1936 (c 49) Part 2

a bridge to take a toll on every coach, chariot berlin hearse, chaise chair, cabash wagon wain, dray, cart, car, or other carriage whatsoever,' the *ejusdem generis* principle was not applied, and, on the ground that the legislature intended every vehicle passing over the bridge to pay toll a bicycle was held to be a carriage within the Act ³⁹

When justices empowered to prepare a standard for an equal county rate were authorised to direct overseers, assessors of rates, and other persons having the management of the rates or valuations to make returns of the annual value of the property in the parish and to require 'the said overseers assessors, collectors and any other persons whomsoever to produce parochial and other rates and valuations and other documents in their custody or power the context showed that the final generic expression was not confined to officials but extended to private persons ⁴⁰

Where an Act imposed a rate on a variety of tenements and buildings which were enumerated and on other buildings and hereditaments meadow and pasture excepted the exception appended to the concluding general words showed that the latter were used in their widest sense and were not limited in meaning by the particular terms which preceded them ⁴¹

Specific Words of Different Genera

The general principle in question applies only where the specific words are all of the same nature Where they are of different genera the meaning of the general word remains unaffected by its connection with them Thus where an Act made it penal to convey to a prisoner in order to facilitate his escape any mask dress, or disguise or any letter or any other article or thing it was held that the last general terms were to be understood in their primary and wide meaning and as including any article or thing whatsoever which could in any manner facilitate the escape of a prisoner such as a crowbar⁴ Here the several particular

³⁹ *Cannan v Abingdon* [1900] 2 Q B 66 Cf *Plmouth Tramway Co v General Tolls Co* (1897) 75 L.T. 467 *Corkery v Carpenter* [1951] 1 K B 102 But see *Simpson v Teignmouth Bridge Co* [1903] 1 K B 40⁵ *Smith v Kyngnersley* [1903] 1 K B 788

⁴⁰ *R v Doubleday* (1861) 3 E & F 501

⁴¹ *R v Shrewsbury Gas Co* (1832) 1 L J M C 18 *Allen v Emmerson* [1944] 1 K. n 362

⁴ *R v Payne* (1866) L R 1 C C 27 See also *Shillito v Thompson* (1876) 1 Q B D 21

words disguise and letter ' exhausted the whole genera and the 1st general words must be understood, therefore as referring to other genera

General Object of Act

The general object of the Act also sometimes requires that the final generic word shall not be restricted in meaning by its predecessors. Thus the Frauds by Workmen Act 1777 (c 56) s 10 which, after reciting that stolen materials used in certain manufactures are often concealed in the possession of persons who have received them with guilty knowledge and that the discovery and conviction of the offenders is in consequence difficult proceeds to authorise justices to issue search warrants for purloined materials suspected to be concealed "in any dwelling house outhouse yard garden or other place," has been held to include under the last word a warehouse which was a mile and a half from the dwelling house⁴³. Though such a warehouse would probably not be usually considered as *ejusdem generis* with a dwelling house coupled with its enumerated dependencies it was reasonable having regard to the preamble and the general object of the statute to think that the warehouse was within the contemplation of the legislature, as it was a very likely place for the concealment against which the enactment was directed and a narrower construction would have restricted the effect instead of promoting the object of the Act.

The requirement of section 32 of the Municipal Corporations Act, 1835 (c 76)⁴⁴ that municipal voting papers should be signed by the voter and state the name of the street lane, or place in which the property was situated in respect of which he claimed to vote was considered satisfied by a statement of the parish where the property lay the object of the provision being apparently the identification of the voter⁴⁵.

Several decisions on the Betting Act, 1853 (c 119)⁴⁶ are instructive examples of the application of the above mentioned rules as to the effect of words of analogous meaning on each other,

⁴³ *R v Edmundson* (1859) 28 L.J.M.C. 213

⁴⁴ Repealed by the Municipal Corporations Act 1882 (c 50) s 5

⁴⁵ *R v Spratley* (1856) 6 E. & B. 363 *per* Lord Campbell and Crompton J. See *Lowther v Bentinck* (1875) L.R. 19 Eq. 166

⁴⁶ Repealed Betting and Gaming Act 1960 (c 60)

and that of specific words on the more general one which closes the enumeration of them as well as of their subordination to the more general principle of gathering the intention from a review of the whole enactment and giving effect to its paramount object. Section 3 of the Act enacted that any person who being 'the owner or occupier of any house office room or place, should 'open keep, or use or knowingly permit' it to be used for the purpose of betting should be liable to a penalty of £50 and to an action for the recovery of any deposit made with him in respect of the bet. The Exchequer Chamber held that a man who habitually resorted to a certain spot under a tree in Hyde Park and there made bets was not the occupier of the place within the meaning of the Act, as that expression derived a meaning from the one with which it was coupled which implied some legal and exclusive title to the place.⁴⁷ Again, where the owners of a racecourse knowingly permitted the public, on the payment of an entrance fee to enter an uncovered enclosure adjacent to a racecourse where race meetings were held most of the public going there to back horses with bookmakers who were admitted on the same terms and had no special rights in the enclosure the House of Lords held that the enclosure so used was not a place opened kept or used for betting with persons resorting thereto within the Act.⁴⁸ But a temporary wooden structure erected on a piece of ground rented by the person who used it for betting purposes though unroofed and not fixed to the soil was held to be a place within the Act⁴⁹ and in another case a man who carried on the same business, standing on a stool sheltered under a large umbrella on which was printed an indication of the business, was held to be the occupier of a place within the Act as he had in fact appropriated it for his proceedings, though he paid no rent and had no greater right to stand on the spot than any others of the public who were admitted.⁵⁰ For a case to come within section 1 of this Act it

⁴⁷ *Doggett v Catterns* (1865) 34 L.J.C.P. 159. See also *Thwaites v Coulthwaite* [1896] 1 Ch. 496.

⁴⁸ *Powell v Kempton Racecourse Co* [1899] A.C. 143 H.L.

⁴⁹ *Show v Morley* (1868) L.R. 3 Ex. 137.

⁵⁰ *Bows v Fenwick* (1874) L.R. 9 C.P. 339 approved in *Powell v Kempton Racecourse Co* *supra* and applied in *Thwaites v Coulthwaite* [1896] 1 Ch. 496. See similar

was not necessary that the receipt of the money should take place at the house, or office or even within the United Kingdom ⁵¹

Words of Rank

Analogous to the rules above considered is another, namely that when words descriptive of the rank of persons or things are used in a descending order according to rank the general words superadded to them do not include (though standing alone they would do so) persons or things of a higher rank or importance than the highest named if there be any lower species to which they can apply In such a case the general word is taken not as generic but as including only what is lower in the genus than the lowest specified

Thus, section 3 of the Disabling Statute 1571 (13 Eliz 1 c 10), which avoided conveyances by masters and fellows of colleges deans and chapters of cathedrals parsons, vicars and "others having any spiritual or ecclesiastical living does not include bishops ⁵²

Chapter 28 of the Statute of Marlborough (52 Hen 3) which gave a right of action in certain cases to abbots priors and other prelates of the church, did not according to Sir Edward Coke include bishops because among other reasons the bishop is of a higher degree than an abbot ⁵³ It may be presumed that there were prelates of a lower degree than abbots and priors otherwise the generic expression so construed would have been without effect To avoid this the rule in question would be rejected and the general term would receive its full and natural meaning and include the higher denominations ⁵⁴

Duties imposed under the general head of metals upon copper, brass pewter, and tin and on all other metals not

cases *Galloway v Maries* (1882) 8 Q B D 275 criticised in *Powell v Leighton Racecourse Co* *supra* *Lidell v Lofthouse* [1896] 1 Q B 293 *M Inan v Hildreth* [1897] 1 Q B 600 *R v Humphreys* [1898] 1 Q B 875 *Brown v Patch* [1899] 1 Q B 892 *Belton v Busby* [1899] 2 Q B 380 *Tromans v Hodgkinson* [1903] 1 K B 30 *R v Deaville* [1903] 1 K B 468 See also in connection with similar enactments *Langrish v Archer* (1882) 10 Q B D 44 *Taylor v Smitten* (1883) 11 Q B D 407

⁵¹ *Lennox v Stoddart* [1907] 2 K B 21

⁵² *Archbp of Canterbury's Case* (1596) 2 Rep 46b *Copland v Powell* (1823) 1 Bing 373 *Cope v Barber* (1872) L R 7 C P 393

⁵³ 2 Inst 131 457 478 2 Rep 46b

⁵⁴ 2 Inst 137

enumerated," would not include the higher metals of gold or silver, which are commonly known as precious metals ⁵⁵

The Game Act, 1670 (c 25) ⁵⁶ which empowered the lords of manors and other royalties ' to grant a deputation to a game keeper, was limited to the lords of such royalties as are inferior to manors, for if a royalty of a higher nature had been meant it would have preceded the term manor ⁵⁷

The Statute of Westminster II (13 Edw I) which prohibited salmon fishing from Lady day to St Martin's in the waters of the Humber, Ouse, Trent Done, Arre Derewent Werfe Nid Yore Swale, Tese Tine Eden and all other waters wherein salmons be taken, was considered as including, in the final general expression only rivers inferior to those enumerated and therefore as not comprising *nobile illud flumen* the Thames ⁵⁸ It does not appear whether the rivers specified were named in order of descending importance

An Act (since repealed) which punished cruelty to any horse mare gelding mule ass, ox cow, heifer sheep or other cattle was held not to include a hull ⁵⁹

It was, indeed once thought that in the Cattle Stealing Act, 1740 ⁶⁰ which made it a capital felony to steal sheep or other cattle, this last expression was much too loose to include any other cattle than those already specified viz, sheep but this extreme strictness of construction may be, perhaps best attributed to the excessive severity of the law in question ⁶¹

A statute which spoke of indictments before justices of the peace and ' others having power to take indictments was understood on the general ground under consideration, as not applying to the superior court ⁶² But sections 1 (1) and 2 of the Indictable Offences Act 1848 (c 42), which authorised justices of the peace to inquire into indictable offences committed on the high seas or abroad and to bind the witnesses to appear at the next "Assize of

⁵⁵ *Casher v Holmes* (1831) 2 B & Ad 592 Parke J

⁵⁶ Repealed by the Game Act 1831 (c. 32) s 1

⁵⁷ *Ailesbury v Pattison* (1778) 1 Doug 28 See also *Evans v Stephens* (1873) 4 T 224 459

⁵⁸ 2 Inst 478

⁵⁹ Cruel Treatment of Cattle Act 1822 (c 71) *Exp Hill* (1827) 3 *Ad & V* 225

⁶⁰ Repealed 7 & 8 Geo 4 c 27 s 1

⁶¹ 1 Bl Comm 88 Cf *Child v Hearn* (1874) L.R. 9 Ex 376 *per Lord & J* (1826) 3 Bing 580 *R v Paty* (1770) 2 W Bl 721 *Wright v Jones* 12

4 Q B 582

⁶² 2 Rep 46b

oyer and terminer or jail delivery or superior court of a County Palatine, or the Quarter Sessions,' would authorise a justice to hold an inquiry into an offence committed by a colonial governor in his colony which is triable by the Queen's Bench. That court was included in the words 'court of oyer and terminer' ⁶³

SECTION 6 —MEANING OF SOME PARTICULAR EXPRESSIONS

It may be convenient to mention, in conclusion, the meaning in which a few words and expressions in frequent use in statutes are, in general understood

Unless the contrary intention appears ⁶⁴ in statutes passed after 1850 words importing the masculine gender include females the singular includes the plural and the plural the singular ⁶⁵ the expression 'person' includes a 'body corporate' ⁶⁶ the word 'county' includes county of a town or of a city in all statutes passed between 1851 and 1889 inclusive ⁶⁷, the word 'land' includes messuages tenements and hereditaments, houses, and buildings of any tenure the words 'oath,' 'swear,' and 'affidavit' include affirmation, declaration affirming and declaring, in the case of persons by law allowed to declare or affirm instead of swearing ⁶⁸

Computation of Time

The word 'month' means calendar month ⁶⁹ but six months may sometimes mean the period between two feast days as between Michaelmas and Lady day ⁷⁰ Half a year consists of 182 and a quarter of a year of ninety one days ⁷⁰

⁶³ *R v Eyre* (1868) L.R. 3 Q.B. 487. See also *Chorlton v Lings* (1868) L.R. 4 C.P. 374 and *Connelly v Steer* (1881) 7 Q.B.D. 520.

⁶⁴ For an example of a contrary intention appearing see *R v National Arbitration Tribunal* [1952] 1 K.B. 46.

⁶⁵ Interpretation Act 1889 (c. 63) s. 1 (see Appendix). See *R v Industrial Disputes Tribunal ex p Queen Mary College* [1957] 2 Q.B. 483.

⁶⁶ Interpretation Act 1889 (c. 63) ss. 2, 19. *Moult v L. & N.W.R.* [1917] 2 K.B. 836, at p. 842. As regards women *H.M. Edwards v Att. Gen. of Canada* [1930] A.C. 124.

⁶⁷ Interpretation Act 1889 (c. 63) s. 4 (see Appendix). Counties of cities and counties of towns were all made into county boroughs by the Local Government Act 1888 (c. 41) s. 31 and 3rd Schedule and *semble* in legislation passed after January 1, 1890 they would not be included in the word 'county'.

⁶⁸ Interpretation Act 1889 (c. 63) s. 3. See Appendix.

⁶⁹ See *Morgan v Davies* (1878) 3 C.P.D. 260. See however generally *Walker v Constable* (1798) 3 Wils. 25. *Rogers v Hull Dock Co.* (1864) 34 L.J.Ch. 165. *Wilkinson v Cahert* (1878) 47 L.J.C.P. 679. *Barlow v Teal* (1885) 54 L.J.Q.B. 400.

⁷⁰ *Co Litt* 135b. 6 Rep. 61b. *Cro Jac.* 167.

Expressions of time in an Act of Parliament mean (unless it is otherwise specifically stated) Greenwich mean time,¹ subject to the statutory provisions as regards summer time.⁷ In the computation of time distinctions have been made by the courts which were founded chiefly on considerations of convenience and justice. The general rule anciently seems to have been that both terms or endings of the period given for doing or suffering some thing were included, but, when a penalty or forfeiture was involved in non-compliance with a condition within the given time the time was reckoned by including one and excluding the other of the terminal days.^{7a}

A distinction was afterwards made depending on whether the point from which the computation was to be made was an act to which the person against whom the time ran was privy or not. Thus if the time ran from when he was arrested or received a notice of action it might justly be computed as including the day of that event but not so if it ran from the death of another person^{7a} a fact of which he would not, as in the previous cases, necessarily be cognisant. In other words in such and cognate cases the exact meaning is signified by the phrase 'from and after'.^{7a} But it has also been laid down that when a period of time allowed to a person is included between the dates of two acts to be done by another person, as where it is enacted that no action shall be brought against a justice unless notice of the intention to bring it has been given to him a month before the writ is issued both the terminal days are to be excluded.⁸ The notice under the enactment having been given on April 28 the action it was held

¹ Statutes (Definition of Time) Act 1880 (c 9) as amended by the Time (Ireland) Act 1916 (c 45). Sunset is not an expression of time within these Acts and does not mean sunset at Greenwich but sunset in the relevant part of the country. *Gordon v Cann* (1899) 68 L J Q B 434.

⁷ See Summer Time Act 1922 (c 22). Summer Time Act 1925 (c 64).

^{7a} *De Morgan Comp Alm* cited in Sir G C Lewis *Obs and Reas in Politics* Vol 1 387n.

^{7a} *Lester v Garland* (1808) 15 Ves 253 per Sir W Grant. *Young v Higgon* (1840) 6 M & W 53 per Parke B. *Newman v Hardwicke* (1838) 3 Nev & P 368. *Glassington v Rawlins* (1800) 3 East 407. *Migotti v Colville* (1878) 48 L J M C 48. Insurance against accidents for 12 months from Nov 24 1887 covers an accident occurring on Nov 24 1888. *South Staffordshire Tramways Co v The Sicknes & Accident Assurance Association* (1890) 60 L J Q B 47.

^{7a} *Sheffield Corp'n v Sheffield Electric Light Co* [1898] 1 Ch at p 209.

^{7a} Constables Protection Act 1750 (c 44) s 1 (repealed). Justices Protection Act 1848 (c 44). *Young v Higgon* (1840) 6 M & W 54. See *Pellow v Wonford* (1829) 9 B & C 134. *Blunt v Heslop* (1838) 3 N & P 553. *R v West Riding* (1821) 4 B & Ald 623. *Weeks v Bray* (1868) L R 3 Q B 212.

was rightly brought on May 29. What was requisite was that two days of the same number should not be comprised in the computation.⁷⁷

An Act which received the Royal assent on August 9, 1899 gave a company power to take lands which was to cease after three years from the passing of the Act. The company served a notice to treat for the purchase of lands on August 9, 1902 and it was held that the notice was served in time, it being a well established rule that, where a particular time is given from a certain date within which an act is to be done, the day of the date is to be excluded.⁷⁸

Again, when so many 'clear days'⁷⁹ or so many days 'at least'⁸⁰ are given to do an act, or 'not less than' so many days are to intervene, both the terminal days are excluded from the computation.⁸¹ In other cases it would seem the rule is to exclude the first and include the last day.⁸²

To satisfy the provision of section 1 of the Bankruptcy Act 1890 (c. 71) (Bankruptcy Act, 1914 (c. 59) s. 1) which enacted that a debtor committed an act of bankruptcy if execution had been levied by seizure of his goods and the sheriff had held them for twenty one days, it was necessary that the sheriff should hold the goods for twenty one whole days, excluding the day of seizure.⁸³

Where a statute refers to the age of any person, the common law rule usually applies that the person reaches that age on the day before his birthday.⁸⁴

⁷⁷ *Freeman v Read* (1860) 30 L.J.M.C. 123. See also *Webb v Fairman* (1838) 7 L.J.Ex. 140. *R v Price* (1854) 8 Moo.P.C. 203. *Visconti v Colville* (1878) 4 C.P.D. 233. *Re Southam* (1882) 19 Ch.D. 169.

⁷⁸ *Goldsmiths Co v West Metropol Ry* [1904] 1 K.B. 1. *Stewart v Chapman* [1951] 2 K.B. 79.

⁷⁹ *R v Herefordshire JJ* (1820) 3 B. & Ald. 531. *Liffin v Pitcher* (1842) 6 Jur. 537. See *Walker v Crystal Palace Gas Co* [1891] 2 Q.B. 300, dissented from in *The Courier* [1891] P. 355. *O'Hara v Elliott* [1893] 1 Q.B. 367. *R v Turner* [1910] 1 K.B. 346. *Re Hector Whaling* [1936] Ch. 705.

⁸⁰ *Zouch v Empey* (1811) 4 B. & Ald. 577. *R v Salop* (1838) 8 A. & E. 173.

⁸¹ *Re Railway Sleepers Co* (1885) 29 Ch.D. 204. *Robinson v Waddington* (1849) 13 Q.B. 753. *At Queen v Jackson* [1903] 2 K.B. 163. *Emmerson v Oliver* (1905) 43 S.L.R. 291.

⁸² *R v Life v Bartholomew* [1891] 1 Q.B. 161.

⁸³ *Re North* [1895] 2 Q.B. 764.

⁸⁴ See e.g. *R v Clifford* (1933) 27 Cr.App.R. 44. But for some purposes the age is reached on the birthday, see e.g. National Insurance Act 1946 (c. 67) s. 78 (4) (c).

When a statute requires that something shall be done forth with " or immediately or even instantly, it would probably be understood as allowing a reasonable time for doing it ⁸⁵ An application to deprive a plaintiff of costs, which must be made " at the trial " was deemed made in time when made an hour after the trial was over and the judge was trying another cause ⁸⁶

If the statute requires some act to be done periodically and recurrently once in a certain space of time, as for instance, the inspection of the boilers of steamers once in six months it would probably be understood to mean that not more than six months should elapse between the two acts It would not be satisfied by dividing the year into two equal periods and doing the act once at the beginning of the first and once at the end of the second period ⁸⁷

A repealed Act which imposed a penalty for absence for more than a certain time in any one year meant not a calendar year computed from January 1, but a year computed back from the day when the action for the penalty was brought ⁸⁸

It used to be laid down as a general rule that courts refused to take notice of all fractions and divisions of a day for the uncertainty, which is always the mother of confusion and contention ⁸⁹ and in civil cases a judicial act, such as a judgment is taken conclusively to have been done at the first moment of the day ⁹⁰

⁸⁵ See *Toms v Wilson* (1863) 32 L J Q B 382 *Brighty v Norton* (1862) 32 L J Q B 38 *Forsdike v Stone* (1868) L R 3 CP 607 *Griffith v Taylor* (1876) 2 CP D 202 *Massey v Sladen* (1868) L R 4 Ex 13 *R v Aston* (1868) 19 L J M C 236 *Hancock v Somes* (1859) 28 L J M C 196 *Costar v Hetherington* (1859) 28 L J M C 198 *Thompson v Gibson* (1841) 10 L J Ex 243 *per Rolfe B* *R v Berkshire JJ* (1878) 4 Q B D 469 *per Cockburn J* *Cf Ex p Sillence* (1877) 7 Ch D 239 *Gibbs v Stead* (1828) 8 B & C 533 *Tennant v Bell* (1846) 9 Q B 684 *Lowe v Fox* (1885) 15 Q B D 667 See further *Stroud's Judicial Dictionary* tit FORTH WITH and IMMEDIATELY

⁸⁶ *Kynaston v Mackinder* (1878) 47 L J Q B 76 See also *Page v Pearce* (1841) 10 L J Ex 434 *Cf R v Berks* (1878) 4 Q B D 469

⁸⁷ *Virginia & Maryland St Nav Co v US* (1840) Taney & Campbell s Maryland Rep 418

⁸⁸ Benefices (England) Act 1803 (c. 84) repealed and re-enacted with restrictions as to non residence by the Pluralities Act 1838 (c 106) s 32 *Cathcart v Hardy* (1814) 2 M & S 534

⁸⁹ *Clayton s Case* (1585) 5 Rep 1b

⁹⁰ *Shelley s Case* (1581) 1 Rep 93b *Bright v Mills* (1859) 28 L J Ex 223 See also *Re North* [1895] 2 Q B 264

But as regards the acts of parties, including in this expression acts which though in form judicial are in reality the acts of parties the courts do notice such fractions whenever it is necessary to decide which of two events first happened⁹¹ Thus they will notice the hour when a party issued a writ of summons or filed a bill or delivered a declaration or the sheriff seized goods⁹²

A person who was keeping a dog at noon without a licence would not escape from conviction by procuring a licence at 1 p m⁹³

Where the titles of the Crown and of the subject accrue on the same day the title of the Crown is preferred⁹⁴

Sundays are included in computations of time, except when the time limit is less than six days in which case the Sunday is excluded⁹⁵ It has been held however, that where an Act which made no mention of Sunday required that a recognisance should be entered into in two days after a notice of appeal, and the notice was given on a Friday recognisances on the following Monday were too late, though Sunday was the last day and they could not be entered into then⁹⁶ Daily includes Sundays⁹⁷ Of course when an Act expressly excludes Sunday the days given for doing an act are working days only⁹⁸

A continuing act such as trespass or imprisonment dates in the computation of the time allowed for bringing an action in respect of it, from the day of its determination⁹⁹ A bankrupt

⁹¹ *Campbell v Strangeways* (1877) 3 CPD 107 per Grove J *Chick v Smith* (1840) 8 Dowl 340 per Patteson J *per cur R v Edwards* (1853) 9 Ex 628 *Marshall v James* (1874) 43 LJCP 281 *Migotti v Colville* (1878) 4 CPD 233 *Tomlinson v Bullock* (1879) 4 QBD 230 *Clarke v Bradlaugh* (1881) 8 QBD 63 See further post p 396

⁹² 2 Lev 141 176 and *per cur R v Edwards supra*

⁹³ *Campbell v Strangeways* (1877) 3 CPD 107

⁹⁴ *Att Gen v Capell* (1686) 2 Show 636 *R v Giles* (1840) 8 Price 293 *Ciles v Grover* (1832) 1 Cl & F 74 *R v Edwards* (1853) 9 Ex 628

⁹⁵ RSC Ord 64 rr 2 3 *Mitch v Frankau* [1909] 2 KB 100

⁹⁶ *Ex p Simpkin* (1859) 29 LJMC 23 *Peacock v R* (1858) 27 LJCP 224

⁹⁷ *London C C v S Metropolitan Gas Co* [1904] 1 Ch 76

⁹⁸ *Pease v Norwood* (1869) LR 4 CP 235 *Ex p Hicks* (1875) LR 20 Eq 143

⁹⁹ *Massey v Johnson* (1810) 12 East 67 *Hardy v Ryle* (1829) 9 B & C 603 *Collins v Rose* (1839) 8 LJ Ex 273 *Pease v Chaytor* (1863) 32 LJMC 121 *Whitehouse v Fellowes* (1861) 30 LJCP 305 As to subsidence see *Darley Main Colliery Co v Mitchell* (1886) 11 App Cas 127 As to continuing nuisance, see cases in *Battishill v Reed* (1856) 25 LJCP 290 and *Whitehouse v Fellowes supra* As to encroachment *Coggins v Bennett* (1877) 2 CPD 568 *Rumball v Schmidt* (1882) 8 QBD 603 *Welsh v West Ham (Mayor)* [1900] 1 QB 324

remaining abroad with intent to defeat his creditors was held to commit a fresh act of bankruptcy every day¹

Distances

Distances were formerly measured by the nearest and most usual road or way and this is undoubtedly the popular manner of measuring them². But if the nearest practicable mode of access were adopted, should it be a carriage way or a bridle path, or a footpath? If the way were by a tidal river the distance might vary every hour of the day³. Unless a contrary intention appears distances will, for the purposes of any Act passed after January 1 1890, be measured in a straight line on a horizontal plane⁴. Indeed without enactment, that would seem a universal rule for all Acts without distinction⁵.

Other Expressions

In every Act expressions referring to writing unless the contrary intention appears are to be construed as including references to printing lithography photography and other modes of representing or reproducing words in a visible form⁶.

In every Act subsequent to 1866 unless the contrary intention appears the word 'parish' means, as regards England and Wales a place for which a separate poor rate is or can be made or a separate overseer appointed⁷.

An offence made punishable in the language of our old statutes by 'judgment of life or member' is thereby made a felony,⁸ but when the judgment is 'forfeiture of body and goods' or 'to be at the King's will for body, lands and goods' the offence is a misdemeanour only¹⁰.

¹ *Ex p. Bunny* (1857) 26 L.J. Bank. 83.

² 1 Hawk. P.C. 8th ed. 390. Cf. 23 L.J.C.P. 144n.

³ *Lake v. Butler* (1855) 5 E. & B. 92 at p. 97 per Coleridge J.

⁴ *Lake v. Butler* (1855) 5 E. & B. 92 at p. 96 per Lord Campbell. See *Stokes v. Grissell* (1854) 14 C.B. 678. *Jewell v. Stead* (1856) 25 L.J.Q.B. 294. *R. v. Saffron Walden* (1846) 15 L.J.M.C. 115. *Duignan v. Walker* (1859) 28 L.J.Ch. 867. *Moufflet v. Cole* (1872) L.R. 8 Ex. 32. *Coulbert v. Troke* (1875) 1 Q.B.D. 1.

⁵ Interpretation Act 1889 (c. 63) s. 34. See Appendix.

⁶ *Lake v. Butler* (1855) 5 E. & B. 92. *Jewell v. Stead* (1856) 25 L.J.Q.B. 294. As to the general measurement of distance see *Moufflet v. Cole* (1872) L.R. 8 Ex. 32.

⁷ Interpretation Act 1889 (c. 63) s. 20. See Appendix.

⁸ Interpretation Act 1889 (c. 63) s. 5 (now repealed). See Appendix.

⁹ 1 Hawk. 305.

¹⁰ Co. Litt. 391. 3 Inst. 145.

When a "second offence" is the subject of distinct punishment, it is an offence committed after conviction of a first ¹¹

When a case is made triable, or a penalty recoverable, in 'a Court of Record' the Supreme Court of Judicature alone but not the quarter sessions is intended ¹²

The punishment of 'fine and ransom' is a single pecuniary penalty ¹³ and when it is to be imposed at the King's pleasure, this is to be done in his courts and by his justices ¹⁴

When imprisonment is provided immediate imprisonment is generally understood ¹⁵ and forfeiture means forfeiture to the Crown except when it is imposed for wrongful detention or dispossession in which cases the forfeiture goes to the benefit of the party wronged ¹⁶

When can an ice cream vendor selling from a box tricycle be said to be stationary, so as to require a licence? Lord Hewart C J held that a halt for a reasonable time would not make him stationary ¹⁷

The words "guilty of an offence" mean being found guilty of an offence and, in an instrument prescribing penalties, relate to the date of the conviction, and not the date of the offence ¹⁸

All means 'all' and does not mean 'some unless you find a compelling context which forces you to put some limitation on the word' ¹⁹

¹¹ 2 Inst 468 which was relied on and applied in *R v South Shields Licensing JJ* [1911] 2 K B 1

¹² 6 Rep 19b 2 Hale 29 Jenk Cent. 228

¹³ 1 Inst 127a

¹⁴ 1 Hale 375

¹⁵ 8 Rep 119b

¹⁶ 1 Inst 159a 11 Rep 60b

¹⁷ *Taylor v Townend* [1938] 2 K B 193 LCC (General Powers) Act 1927 (c. xxii) s 30 Humphreys J had difficulty in making sense of the section

¹⁸ *Buckman v Button* [1943] 1 K B 405 approved in *R v Oliver* [1944] 1 K B 68 CCA See also *D P P v Lamb* [1941] 2 K B 89

¹⁹ *Re Wellsted's Will Trusts* [1949] Ch 296 per Lord Greene MR., at p 306

CHAPTER 12

INTENTIONS ATTRIBUTED TO THE LEGISLATURE WHEN IT EXPRESSES NONE

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SECTION 1 —IMPLIED ENACTMENTS—NECESSARY INCIDENTS AND CONSEQUENCES

PASSING from the interpretation of the language of statutes it remains to consider what intentions are to be attributed to the legislature where it has expressed none on questions necessarily arising out of its enactments

Although as already stated the legislature is presumed to intend no alteration in the law beyond the immediate and specific purposes of the Act these are considered as including all the incidents or consequences strictly resulting from the enactment. Thus when the legislature imposes upon the promoters of a rail way or other undertaking an obligation to construct and maintain works it necessarily follows that they must bear the cost of construction and maintenance, unless there be an express or plainly implied provision to the contrary ¹

An Act ² which declared an offence to be felony would impliedly give it all the incidents of felony and would make it an offence to be an accessory before or after it ³

¹ *West India Improvement Co v Att Gen of Jamaica* [1894] A C 243
Criminal Law Act 1722 (c. 22) (The Black Act) repealed by Criminal Statutes
Repeal Act, 1827 (c. 27) s 1

³ 1 Hale 632 704 *Coalheavers Case* (1768) 1 Leach 66 *R v Reice* (1767) 4 Burr at p 2075

Where an Act directs that a new offence which it creates shall be tried by an inferior court according to the course of the common law the inferior court tries it as a common law court, subject to all the incidents of common law proceedings, and subject therefore to removal by writs of error, habeas corpus and certiorari.⁴

Where trustees were appointed by statute to perform duties which would, of necessity continue without limit of time, it was held that, from the nature of the powers given to them they were impliedly made a corporation.⁵

When a local authority had statutory powers to "recover" expenses it was thereby also impliedly empowered not only to sue for them, but to sue in its collective designation although not incorporated.⁶

The right of shareholders to "inspect" and "peruse" a register of debenture stock impliedly carried with it the right to take copies. The enactment might otherwise confer a mere illusory right.⁷

The Bankruptcy Acts, in requiring a bankrupt to answer self-criminating questions relative to his trade and affairs made his answers subject to the general rules of the law of evidence and consequently admissible in evidence against him even in criminal proceedings. To hold otherwise would have been, in effect to suppose that the legislature in expressly changing the law which had hitherto protected him from answering intended also to make the further change by mere implication of suspending *pro tanto* the ordinary rule as regards the admissibility of self-prejudicing statements.⁸

The Judgments Extension Act 1868 (c 54), which provided

⁴ *Hartley v Hooker* (1777) 2 Cowp 524 per Lord Mansfield

⁵ *Ex p Newport Trustees* (1849) 16 Sim 346. Cf *Williams v Lords of Admiralty* (1851) 11 C B 420. *Ribers v Adams* (1878) 3 Ex D 361. See also *Tone Conservators v Ash* (1829) 10 B & C 349 and *Jeffreys v Gurr* (1831) 2 B & Ald 833 where incorporation was implied from the circumstance that there would otherwise be no means of enforcing the rights given by the statute. Cf *Salford (Mayor) v Lancashire C C* (1890) 25 Q B D 384

⁶ *Mills v Scott* (1873) L R 8 Q B 496

⁷ Companies Clauses Act 1863 (c 118) s 28. *Mutter v Eastern & Midlands Ry* (1888) 38 Ch D 92. *Nelson v Anglo American Land Co* [1897] 1 Ch 130. *Perkins v London & N W Ry* (1874) 1 Ry & Can Traffic Cas 327. *Ormerod v St George's Iron Works* [1905] 1 Ch 505. C A. Cf *R v Glamorganshire C C* [1936] 2 All E R 168 (inspection of minutes of county council by agent of ratepayer) but this implied right to take copies is negated by an express provision as to mode of obtaining copies. *Re Balaghat Gold Co* [1901] 2 K B 665

⁸ *R v Scott* (1856) 25 L J M C 128. *R v Widdop* (1872) L R 2 C C R 3. *R v Erdheim* [1896] 2 Q B 260. *Re Sankey* (1890) 25 Q B D 17

for the execution in Scotland and Ireland of judgments recovered in England, was considered as having impliedly abolished the rule of procedure which required that a plaintiff residing out of the jurisdiction should give security for costs the logical reason for the rule (which was, that if the verdict were against the plaintiff he would not be within the reach of the process of the court for costs) having been swept away by the enactment⁹

The owner or master of a ship was formerly tacitly relieved from liability for the injuries done by the ship through the acts or neglect of a pilot where the employment of the latter was compulsory by law, the pilot performing a duty imposed by statute, and being neither appointed by nor under the control of the owner or master¹⁰ But a master or shipowner is now by virtue of the Pilotage Act, 1913 (c 31) s 15 liable for the negligence of a qualified pilot even when the employment of a pilot is compulsory

An Act which simply creates a corporation impliedly gives it the general legal attributes of one among which is an ordinary power to make contracts¹¹ but speaking generally its powers are only those which are expressly conferred or which by necessary implication, are included in the express powers Under the Companies Acts, for example, the powers of a company are further restricted by its memorandum and articles of association and a contract entered into by a company beyond its competency could not be ratified even by the unanimous assent of the shareholders for this would be an attempt to do what the Act of Parliament prohibits¹²

The difference between a statutory corporation and a corporation incorporated by royal charter is well settled The former can do such acts *only* as are authorised directly or indirectly, by the statute creating it, the latter speaking generally can do everything that an ordinary individual can do If, however the corporation by charter be a municipal corporation then it is also subject to

⁹ *Raeburn v Andrew* (1874) L R 9 Q B 118 Principle not applied *Re Howe Mach ine Co* (1889) 41 Ch D 113 (but order subsequently discharged)

¹⁰ *Carruthers v Sydebotham* (1815) 4 M & S 77 *The Maria* (1839) 1 W Rob 95 *The Agricol's* (1843) 2 W Rob 10 *Lucey v Ingram* (1840) 9 L J Ex 196 *The Clan Gordon* (1882) 7 P D 190 *Cf The China* (1868) 7 Wallace 67

¹¹ See *Ashbury etc Co v Riche* (1875) L R 8 H L 653 and the cases collected in *S of Ireland Colliery v Waddle* (1868) L R 3 CP 463 L R 4 CP 617

¹² *Ashbury etc Co v Riche* (1875) L R 7 H L 653 at p 672 *per* Lord Cairns.

the restrictions imposed by the Municipal Corporations Act 1882 (c 50) as amended ¹³

Where an Act provided that the costs and expenses incidental to passing it should be paid by the Metropolitan Board but did not state to whom they should be paid, it was held that they were payable to the promoters only and not to agents and other persons employed by them ¹⁴

A private Act which after annexing a rectory to the deanery of Windsor, recited that the dean's residence at the latter place would oblige his frequent absence from the rectory and required him to appoint a curate to reside there was deemed to give him, by implication an exemption from residence ¹⁵

But this extension of an enactment is confined to its strictly necessary incidents or logical consequences. When for instance, a statute requires the performance of a service, it implies no provision that the person performing it shall be remunerated ¹⁶

An Act which empowered justices to discharge an apprentice from his apprenticeship if ill treated by his master would not inferentially empower them to order a return of the premium for however just it might be that such a return should be made and convenient that it should be ordered by the tribunal which cancelled the indenture, such a power was not the logical or necessary incident or result of that which was expressly conferred ¹⁷

Money received by the treasurer of a trading club on account of the club is nonetheless the property of the members as beneficial owners because the club was formed in contravention of section 4 of the Companies Act, 1862 (c 89) and has consequently no legal existence as a company, association or co partnership ¹⁸

¹³ *Att Gen v Newcastle upon Tyne and N E Ry* (1889) 23 Q B D 497 497 *Att Gen v Tynemouth Corpn* [1898] 1 Q B 604 CA. *L C C v Att Gen* [1902] A C 165 H L. *Att Gen v Manchester* [1906] 1 Ch 643 per Farwell J. The borough fund is now no longer the subject of restraint see Local Government Acts 1933 (c 51) and 1948 (c 26) and *Att Gen v Leicester Corpn* [1943] Ch 86

¹⁴ *Wyatt v Metrop Bd of Works* (1862) 31 L J C P 217 distinguished in *Re Haldon's Estate Act* [1889] W N 96 CA

¹⁵ *Wright v Legge* (1815) 6 Taunt 48

¹⁶ *Jones v Carmarthen* (1841) 8 M & W 605 per Lord Abinger. *R v Hull* (1853) 22 L J Q B 324. *R v Allday* (1837) 26 L J Q B 292. See also *Alresford v Scott* (1881) 7 Q B D 210

¹⁷ *R v Vandeleur* (1718) 1 Stra 69. *East v Pell* (1839) 8 L J M C 33

¹⁸ *R v Tankard* [1894] 1 Q B 548. See Companies Act 1948 (c 38) ss 429 434

Where a gas company was required by statute to supply gas to the public lamps in a town from sunset to sunrise at a fixed annual sum per lamp the burners to consume not less than a certain amount of gas per hour, there was no implied provision that on failure of the supply on certain days it was only to be entitled to a smaller sum ¹⁹

The Tithe Act, 1836 (c 71) s 80 which authorised a tenant who paid the tithe rent charge to deduct the amount from the rent next due gave a tenant no implied right to sue the landlord for the payment, the landlord not being liable to pay the tithe ²⁰

Section 13 of the Stannaries Act 1869 (c 19) which gives power to a cost book mining company to bring an action against a shareholder for unpaid calls, in the name of their purser, does not consequently authorise the purser to present a bankruptcy petition in his own name on behalf of the company against a shareholder in respect of a judgment recovered by him in such action ²¹

A county council incorporated under the Local Government Act 1888 (c 41), is a purely statutory body and has not the powers of a municipal or common law corporation Therefore, the possession of statutory powers to purchase and work tramways does not empower it to work omnibuses in connection with the tramways ²²

Where a statute requires a thing to be done but does not impose a specific fine for not doing it it is not for the court inferentially to draw the conclusion that a penalty is incurred ²³

SECTION 2 — IMPLIED POWERS AND OBLIGATIONS

Implied Powers

Whenever a corporation is created by Act of Parliament with reference to the purposes of the Act and solely with a view to

¹⁹ *Richmond Gas Co v Richmond Corpn* [1893] 1 Q B 56

²⁰ Repealed Tithe Act 1936 (c 43) *Dawes v Thomas* [1892] 1 Q B 514 As to land tax see *Andrew v Handcock* (1819) 1 Brod & Bing 37 As to when payable by tenant *Parish v Sleeman* (1860) 29 L J Ch 96 *Manning v Lunn* (1845) 2 Car & K 13

²¹ *Re Nance* [1893] 1 Q B 590 See *Guthrie v Fisk* (1874) 3 B & C 178 *Sunderland Bd v Frankland* (1873) L R 8 Q B 18

²² *London C C v Att Gen* [1902] A C 165 H L

²³ *Hammond v Pulsford* [1895] 1 Q B 223

carrying these purposes into execution, not only the objects which the corporation itself may legitimately pursue must be ascertained from the Act itself but the powers which the corporation may legitimately use in furtherance of these objects must either be expressly conferred or derived by reasonable implication from its provisions.⁴

Where an Act confers a jurisdiction it impliedly also grants the power of doing all such acts or employing such means, as are essentially necessary to its execution. *Cui jurisdictio data est ea quoque concessa esse videntur sine quibus jurisdictio explicari non potuit.* Thus an Act which empowered justices to require persons to take an oath as special constables and gave them jurisdiction to inquire into an offence impliedly empowered them to apprehend the persons who unlawfully failed to attend before them for those purposes. Otherwise, the jurisdiction could not be effectually exercised.⁵

Where an inferior court is empowered to grant an injunction the power of punishing disobedience to it by commitment is impliedly conveyed by the enactment for the power would be useless if it could not be enforced.⁶

Where a statute empowers a justice to bind a person over, or to cause him to do something and the person in his presence refuses the justice has implied authority to commit him to jail till he complies.⁷

An Act which authorises the making of by laws impliedly authorises the annexation of a reasonable pecuniary penalty for their infringement recoverable (in the absence of other provision) by action or distress.⁸

The enactment that at the election of poor law guardians the

⁴ *Business Men v. Rye Dee Co* (1835) 10 App. Cas. 354 at p. 36 per Lord Watson cited in *Att. Gen. v. Racecourse Betting Control Board* [1935] 1 Ch. 34 at p. 37 per Lord Hanworth M.R. Illustrations of legitimate or illegitimate powers are collected in *Doncha v. Gas Light & Coke Co* [1941] 2 Ch. 46 at p. 431.

⁵ Dig. II. 1. 2. See e.g. *Att. Gen. v. Fulham Corporation* [1911] 1 Ch. 440 per Sargent J.

⁶ *Qu. v. before Jas. et* (1611) 1 Per. 131. ⁷ *Blank v. Chas.* 13 s. 15. Cf. *R. v. Twyford* (1841) 5 A. & E. 430. See also *Hare v. Plummer* (1643) 1 Saund. 10. *Baron v. Henson* (1841) 11 E.J. 341.

⁸ *Ex p. Mear* (1872) 4 Q.B. 12. 1st 431.

⁹ ² *Blank v. Chas.* 13 s. 15.

¹ 5 Rev. 612. ² 3 J.C. Com. 154. *H. v. A. v. on* (1831) L.R. 10 Q.B. 157. *R. v. Sankar* (1873) 3 Q.B. 177. See *Interpretation Act* 1933 (c. 63) s. 3 in Appendix.

votes should be taken and returned as the commissioners should direct impliedly authorised the appointment of a returning officer ³⁰

An Act which, after empowering the parishioners to elect an assistant overseer provided that his power should cease where an assistant overseer had been appointed by the poor law commissioners (who had previously no power to make such an appointment) and while their order of appointment remained in force, would seem to have given the commissioners that power by implication ³¹

Where a judgment was recovered in a county court against its bailiff, a power to appoint a special bailiff to levy execution in that case was held to be necessarily incident to the court ³

So it was held that when a duty was imposed on a county and costs necessarily arose in questioning the propriety of an act done to enforce that duty—as for instance, in disputing the liability of a fine imposed on the county for neglect to repair the county jail—the justices, who had the superintendence of the county purse had impliedly the right to defray such costs out of it ³², but not to originate litigation,³³ or promote litigation ³⁵

In the same way, when powers, privileges or property are granted by statute everything indispensable to their exercise or enjoyment is impliedly granted also as it would be in a grant between private persons. Thus by a private grant or reservation of trees the power of entering on the land where they stand and of cutting them down and carrying them away is impliedly given or reserved and by the grant of mines the power to dig them is impliedly conferred ³⁶

Under a parliamentary authority to build a bridge on a stranger's land the grantee tacitly acquired the right of erecting on the land

³⁰ Poor Law Amendment Act 1834 (c 76) s 40 *R v Oldham Overseers* (1847) 16 L.J.M.C. 110

³¹ *R v Greene* (1852) 17 Q.B. 793. See *Cullen v Trumble* (1872) L.R. 7 Q.B. 416

³² *Bellamy v Hoyle* (1875) L.R. 10 Ex. 220

³³ *R v Essex* (1792) 4 T.R. 591 per Lord Kenyon. See *Att Gen v Brecon* (1878) 10 Ch.D. 204. *Leith Council v Leith Harbour Commissioners* [1899] A.C. 508

Brooks Jenkins & Co v Torquay Corpn [1902] 1 K.B. 601

³⁴ *R v White* (1885) 14 Q.B.D. 358

³⁵ *Att-Gen v Andrews* (1851) 20 L.J.Ch. 467

³⁶ *Shep Touchst* 89 Roll Ab Incidents. *A R v Bristol Dock Co* (1827) 6 B & C 181. *Wright v Scott* (1855) 26 L.T.(os) 180 H.L. *Re Dudley Corporation* (1881) 8 Q.B.D. 86 per Brett L.J. *Perth Gas Co v City of Perth (Corporation)* [1911] A.C. 506

the temporary scaffolding which was essential to the execution of the work ³⁷

Where an express statutory right is given to make and maintain something requiring support the statute, in the absence of a controlling context, must be taken to mean that the right of support shall accompany the right to make and maintain ³⁸

If the Act does not provide any means of obtaining compensation for the loss occasioned to the landowner by his having to leave support, this is an argument against the legislature having intended to give such right but, if it contains provisions under which compensation can be obtained it needs a strong context to show that the right of support is not given ³⁹

If the legislature authorises the construction of a work, or the use of a particular thing for a particular purpose, the permission carries with it impliedly an exemption from responsibility for any damage arising from the use without negligence (i.e., the neglect of some care which one is bound by law to exercise towards some body ⁴⁰) as for instance when haystacks are fired by locomotive engines running on railways operated under statutory powers ⁴¹

Where however trustees and official persons are authorised to execute a work such as to raise a road to lower a hill or to make a

³⁷ *Clarence Ry v G N of England Ry* (1845) 4 Q B 46

³⁸ *Re Corporation of Dudley* (1881) 8 Q B D 86

³⁹ *L. & N W Ry v Evans* [1893] 1 Ch 1 approved in *Clippens Oil Co v Edinburgh Water Trustees* [1904] A C 64 Cf *Kuabon Co v G W Ry* [1893] 1 Ch 477 *Bell v Earl of Dudley* [1895] 1 Ch 182 As to the construction of Acts e.g. Inclosure Acts involving or relating to a severance of the surface from the subjacent minerals see *Davis v Treharne* (1881) 6 App Cas 461 at p 466 per Lord Blackburn cited in *Love v Bell* (1884) 9 App Cas 286 at p 289 per Lord Selborne L C *Dixon v White* (1883) 8 App Cas 833 *Bank of Scotland v Stewart* (1891) 28 Sc L.R. 735 *New Sharlston Collieries v Westmarland* [1904] 2 Ch 443 *Butterknowle Colliery Co v Bishop Auckland Co-operative Soc* [1906] A C 305 *Wath upon Dearne U D C v John Brown & Co* [1936] 1 Ch 172

⁴⁰ *Thomas v Quartermaine* (1887) 18 Q B D 685 at p 694 per Bowen L J considered and explained in *Amos v Duffy* (1890) 6 T L R 339 C A See also *Longhurst v Metropolitan Water Board* [1948] 2 All E R 834 H L

⁴¹ *Freemanile v London & N W Ry* (1861) 31 L J C P 12 *Blyth v Birmingham Waterworks Co* (1856) 11 Ex. 781 *Dunn v Birmingham Canal Co* (1877) L.R. 8 Q B 42 *Att Gen v Metrop Ry* [1894] 1 Q B 384 *National Telephone Co v Baker* [1893] 2 Ch 186 *Stretton v Derby Brewery Co v Derby (Mayor)* [1894] 1 Ch. 431 *Canadian Pac Ry v Roy* [1907] A C 20 and cases there cited As to compensation in such cases see the *Railway Fires Act* 1905 (c 11) and the *Railway Fires Act* (1905) Amendment Act, 1923 (c 27)

nuisance is committed the onus is on the body exercising the powers to show that it could not reasonably have been avoided ⁴⁸

Again a grant of fish in a pond does not carry with it an authority to dig a trench to let the water out to take the fish since they can be taken by nets or other devices without doing such damage ⁴⁹, and in like manner, a statute does not give by implication any powers not absolutely essential to the privilege or property granted

An authority to construct a sewer on the land of another for instance, would not carry with it the right to lateral support from the land, if it was possible to construct an adequate sewer independent of such support ⁵⁰

An Act of Parliament does not by authorising persons to repair and cleanse a navigable river impliedly authorise them to dig in the bed of the river (the soil of which is vested in the owner of a several fishery) a canal or passage to a new wharf for the convenience of their barges to the prejudice of the fishery ⁵¹

Authority given to make a railway for the passage of wagons engines and other carriages does not impliedly give power to use locomotives on it as other means of traction may be employed Therefore, if injury arises from the use of a locomotive the general rule of law implies that a person who uses a dangerous thing is liable to an action for any injury which he does by it ⁵²

Ordinary railway, gas and mining companies, on this principle have no implied power to draw accept or indorse bills or notes, for this is not essential to their business ⁵³

It has been held that a colonial legislative body has impliedly granted to it by the Act or charter which constitutes it the power of removing and keeping excluded from the chamber where it carries on its deliberations all persons who interrupt its proceedings for such a power is absolutely indispensable for the proper exercise of

⁴⁸ *Manchester Corporation v Farnworth* [1930] AC 171 per Viscount Dunedin at p 183 *Marriage v E Norfolk Catchment Board* [1950] 1 KB 284 CA *Pride of Derby Angling Assn v British Celanese Ltd* [1953] Ch 149

⁴⁹ *Finch v Disc on Law* 63 *Gearns v Baker* (1875) LR 10 Ch 355

⁵⁰ *Metrop Board v Metrop Ry* (1869) LR 4 CP 192 *Roderick v Aston Local Board* (1877) 5 Ch D 328

⁵¹ *Partheriche v Mason* (1774) 2 Chitt 658

⁵² *Jones v Festiniog Ry* (1868) LR 3 QB 733 *Armagh Union Guardians v Bell* [1900] 2 IR 371 (affirmed on appeal) *R v Bradford Navigation* (1865) 34 LJ QB 191 *Powell v Fall* (1880) 5 QBD 597 *Gas Light & Coke Co v St Mary Abbott* (1885) 15 QBD 1 See *Rylands v Fletcher* (1868) LR 3 HL 330

⁵³ *Bateman v Mid Wales Ry* (1886) LR 1 CP 499 and the cases collected there

its functions. But a power of punishing such offenders for their contempt of its authority is not necessary for this purpose, and so is not granted by implication ⁵⁴

If land is vested by Act of Parliament in persons for public purposes a power of conveying away any part of it would not be impliedly granted ⁵⁵. A parliamentary franchise of this kind is not a bit of property which the owner can dispose of just as he might a stick or a table or an acre of land, it is nothing of the kind ⁵⁶

Where a statute prohibited bathing on the shore except from bathing machines which the local authorities were empowered to license that power did not entitle a licensed person to place a bathing machine on the shore without the consent of the owner of the shore ⁵⁷

Implied Obligations

The concession of privileges or powers often carries with it implied obligations. For instance an Act which gives a power to dig up the soil of streets for a particular purpose such as making a drain impliedly casts on those thus empowered the duty of filling up the ground again and of restoring the street to its original condition ⁵⁸. If it imposed a liability on one person to keep in repair a work in the possession of another it would be understood as impliedly imposing on the latter the obligation of giving notice of the needed repair to the party liable ⁵⁹

A public body authorised to make a bridge or tow path and to take tolls for its use is impliedly bound to keep it in proper repair so long as it takes the tolls and invites the public to use the

⁵⁴ *Keisley v Carson* (1843) 4 Moo P.C. 63. *Fentan v Hampton* (1858) 11 Moo P.C. 347. *Re Brown* (1864) 33 L.J.Q.B. 193. *Doyle v Falconer* (1866) L.R. 1 P.C. 328. *Barton v Taylor* (1886) 11 App.Cas. 197. 203. See *Spilsbury v Micklethwaite* (1803) 1 Taunt. 146 and cf. *Fielding v Thomas* [1896] A.C. 600 P.C.

⁵⁵ *Wadmore v Dear* (1871) L.R. 7 C.P. 212. *Tepper v Nichols* (1864) 34 L.J.C.P. 61. *Mulliner v Midland Ry* (1879) 11 Ch.D. 611. *Ayr Harbour Trustees v Oswald* (1883) 8 App.Cas. 623. *G.W. Ry v Salford Rural Council* (1902) 86 L.J.Q.B. 852. C.A. *Stretford Union Council v Manchester etc Ry* (1903) 1 L.G.R. 683.

⁵⁶ *Eccles Corp'n v South Lancashire Tramways Co* [1910] 2 Ch. 263 at p. 271 per Cozens Hardy M.R.

⁵⁷ *Mace v Philcox* (1864) 33 L.J.C.P. 124.

⁵⁸ *Gray v Pullen* (1864) 34 L.J.Q.B. 265. *Bower v Peate* (1876) 45 L.J.Q.B. 446. *Groves v Wimborne (Ld)* [1898] 2 Q.B. 402.

⁵⁹ *London & S.W. Ry v Flower* (1876) 1 C.P.D. 77. *Makin v Watkinson* (1870) L.R. 6 Ex. 25. See *Scallock v Harstan* (1875) 1 C.P.D. 106. *Brown v G.E. Ry* (1877) 2 Q.B.D. 406.

work, or at least, to give those whom they invite to use it due warning of the defect which makes it unfit for use ⁶⁰

If statutory authority is given to persons, primarily for their own benefit and profit rather than for any advantage which the public may incidentally derive,⁶¹ such as to cut through a highway and throw a bridge over the cutting, or to substitute a new road for the old one the burden of maintaining the new work in repair would be impliedly cast on them and not on the county or parish.⁶² Another duty which would also be impliedly imposed on them by such an enactment would be that of protecting the public from any danger attending the use of the new work. If it was a swing bridge for instance, they would be bound to take due precautions to prevent persons from attempting to cross it while it was open.⁶³ If the work was a railway crossing a highway on a level they would be impliedly bound to keep the crossing in a proper state to admit of the use of the highway by carriages without damage to them.⁶⁴

And this implied obligation would not be excluded on the principle *expressum facit cessare tacitum* by the fact that certain duties are expressly imposed by statute on railway companies who make such crossings, e.g., to erect and maintain gates where the public road crosses the railway and to employ men to open and shut them and to keep them closed except when carriages have to cross.⁶⁵ Notwithstanding all such express provisions the company would be bound, by implication to prevent all passage along the portion of the highway thus intersected when it was dangerous to cross.⁶⁶

But power to pull down the wall of a house without causing

⁶⁰ *Winch v Thames Conservators* (1874) LR 9 CP 378. *Nicholl v Allen* (1862) 31 LJ QB 283. *Forbes v Lee Cons Board* (1879) 4 Ex D 116. *Cf Chung v Surrey C C* [1909] 2 KB 762 affirmed [1910] 1 KB 736. *Morris v Caernarvon C C* [1910] 1 KB 840. *Gillow v Durham C C* [1911] 1 KB 222.

⁶¹ See also p 293.

⁶² *R v Kent* (1811) 13 East 220. *R v Lindsey* (1811) 14 East 317. *R v Kerrison* (1813) 1 M & S 435. *R v Ely* (1850) 15 QB 847. *Hertfordshire C C v New River Co* [1904] 2 Ch 513. *North Staffordshire Ry v Dale* (1858) 27 LJ MC 147. *Leech v North Staffordshire Ry* (1860) 29 LJ MC 150. *Lancashire & Yorkshire Ry v Bury* (1889) 14 App Cas 417.

⁶³ *Manley v St Helens Co* (1858) 27 LJ Ex 159.

⁶⁴ *Oliver v N E Ry* (1874) LR 9 QB 409. See *Jenner v S E Ry* (1911) 105 LT 131.

⁶⁵ *Oliver v N E Ry* (1874) LR 9 QB 409. *N E Ry v Hanes* (1874) LR 7 H L 12. See also *Hjatt v G W Ry* (1865) 34 LJ QB 204 distinguished in *Gorman v Waterford etc Ry* [1900] 2 Ir R 341 348.

⁶⁶ *Lunt v London & N W Ry* (1866) LR 1 QB 277.

unnecessary inconvenience would not impliedly involve the obligation of putting up a hoarding for the protection of the rooms exposed by the demolition ⁶⁷

Extra Duties Implied

Sometimes the express imposition of one duty impliedly imposes another. Thus when it was enacted that no licence for the sale by retail of beer, cider or wine not to be consumed on the premises should be refused except on one or more of four specified grounds, the obligation was imposed by implication on the justices of stating on which of the specified grounds they based their refusal ⁶⁸

The Ballot Act 1872 (c 33) which imposed, in express terms certain specific duties on the presiding officers at polling stations cast also on those officers by implication the duty of being present at their stations during an election and of providing the voters with voting papers bearing the official mark required by the Act ⁶⁹

A duty or right imposed or given to one may also cast by implication a corresponding burden on another, as in the case of the proviso in the commission of the peace requiring the quarter sessions not to give judgment in cases of difficulty unless in the presence of one of the judges of assize. That impliedly requires the judge to give his opinion ⁷⁰

The Charitable Trusts Amendment Act, 1855 (c 124) s 29 ⁷¹ which enacted that it should not be lawful for the trustees of a charity to make any grant otherwise than (among other things) with the approval of the Charitable Commissioners was considered as requiring the commissioners to give their approval in a case where the grant was made before the Act was passed ⁷²

The grant of a privilege or of property to one may sometimes impliedly give a right to another person. Thus an Act which

⁶⁷ *Thompson v Hill* (1870) L R 5 C P 564. A statutory obligation so to do is however imposed by the London Building Act 1930 (c clviii) s 116 (2).

⁶⁸ Wine and Beerhouse Act 1869 (c 27) s 8 (repealed Licensing (Consolidation) Act 1910 (c 24) s 112 Sched VII). *R v Sykes* (1875) 1 Q B D 52. *Exp Smith* (1878) 3 Q B D 374. *R v Chertsey JJ* (1878) 47 L J M C 104.

⁶⁹ *Pickering v James* (1873) L R 8 C P 489 considered in *Akers v Howard* (1886) 16 Q B D 739.

⁷⁰ *Per cur* *R v Chantrell* (1875) L R 10 Q B 587.

⁷¹ Repealed in part Charitable Trusts Act 1860 (c 136) s 1.

⁷² *Moore v Clench* (1875) 1 Ch D 447.

empowered a hospital to take and hold lands by will, gift, or purchase, without incurring the penalties of the Mortmain Acts was held to empower persons to devise or convey lands to it, it being considered that the Act would otherwise be nugatory.⁷³

But power given to a corporation to take lands only avoided the necessity of obtaining a licence to hold in mortmain and did not affect the disability of the grantor.⁷⁴

And an Act which gave one railway company power to purchase certain lands and to construct a railway according to the deposited plans and books of reference would not give by implication to another company the correlative power to sell any of those lands to it.⁷⁵

Implied Duty to Act Judicially

In giving judicial powers to affect prejudicially the rights of person or property, a statute is understood as silently implying when it does not expressly provide the condition or qualification that the power is to be exercised in accordance with the fundamental rules of judicial procedure, such for instance, as that which requires that, before its exercise the person sought to be prejudicially affected shall have an opportunity of defending himself.⁷⁶

On this ground, under the Poor Law Amendment Act, 1834 (c 76), s 27⁷⁷ which authorised justices 'at their just and proper discretion' to order out door relief to an aged or infirm pauper who was unable to work no such order could be made without summoning those on whom the order was to be made.⁷⁸

Where an Act authorised justices where it appeared that the appointment of special constables had been occasioned by the behaviour of persons employed by railway or other companies in executing public works to make an order on the treasurer of the

⁷³ *Perring v Trail* (1874) L.R. 18 Eq. 88 cf. *Aethersole v Indigent Blind School* (1870) L.R. 11 Eq. 1

⁷⁴ *Mogg v Hodges* (1740) 2 Ves. Sen. 52 cited in *Webster v Southey* (1887) 36 Ch. D. 9

⁷⁵ *R v S. Wales Ry.* (1849) 13 Q.B. 988

⁷⁶ *Baeg's Case* (1616) 11 Rep. 99 *R v Univ. of Cambridge* (1722) Stra. 557 *Emerson v Newfoundland* (1854) 8 Moo. P.C. 157 *Ex p. Ramshay* (1855) 18 Q.B. 173 *Thorburn v Barnes* (1867) L.R. 2 C.P. 384 *Re Pollard* (1886) L.R. 2 P.C. 106 *R v Jenkins* (1863) 32 L.J. M.C. 1. Neque Scythae neque Sarmatae ita unquam judicantur judicium ab una parte ferentes absenti eo qui accusatur neque recusanti judicium. —Chrysostom Epist. Ad Innocentem

⁷⁷ Repealed S. L. R. Act 1874 (c. 35)

⁷⁸ *R v Totnes Union* (1845) 7 Q.B. 690

company to pay the special constables for their services which order, if allowed by a secretary of state should be binding on the company it was held that no such order could be validly made without giving the company notice and an opportunity of being heard against it ⁷⁹

The Musical (Summary Proceedings) Copyright Act 1902 (c 15) ⁸⁰ which gave a constable power to seize pirated copies of music and provided that, on the seizure of any such copies a court of summary jurisdiction should on proof that they were infringements of copyright, order them to be forfeited or destroyed, gave the court no power in the absence of a summons duly served on the person from whom the music was seized ⁸¹

Again where a colonial enactment authorised the governor to declare a lease forfeited if it was proved to the satisfaction of a commissioner that the lessee had failed to reside on the demised land, the commissioner could not lawfully be satisfied without summoning the lessee and holding a judicial inquiry ⁸²

The Metropolis Management Act 1855 (c 120) s 176 which required that before laying the foundations of a building seven days notice should be given to the district board and authorised that board to order the demolition of any building erected without such notice was construed as impliedly imposing on the board the condition of giving the presumed defaulter either a hearing before making the order or notice that the order had been made so that he might remonstrate, or appeal before proceeding to the demolition of his building, and a district board which had confined itself to the letter of the Act and had demolished a building respecting which it had received no notice without first calling on the owner to show cause against its order for doing so was held liable in an action as a wrong doer ⁸³

A statute which required justices to issue a distress warrant to enforce a rate or other charge even though it directed them to issue it on proof of demand and non payment would nevertheless be construed as impliedly requiring that they should not do so

⁷⁹ *R v Cheshire Lines Committee* (1873) L.R. 8 Q.B. 344

⁸⁰ Repealed Copyright Act 1956 (c 74)

⁸¹ *Ex p Francis* [1903] 1 K.B. 275

⁸² *Smith v R* (1878) 3 App.Cas. 614

⁸³ *Cooper v Wandsworth Board* (1863) 32 L.J.C.P. 185 *Clerkenwell Vestry v Feary* (1890) 24 Q.B.D. 703 *Hopkins v Smethwick Local Board* (1890) 24 Q.B.D. 714 *Att Gen v Hooper* [1893] 3 Ch. 484 See now London Building Act 1930 (c clviii) Part xiv

without first summoning the party against whom it was demanded and giving him a hearing against the step proposed to be taken against him ⁸¹

An Act which empowered a bishop, when it appeared to his satisfaction either from his own knowledge or from proof laid before him that the duties of a benefice were inadequately performed to require the incumbent to appoint and pay a curate, and if he failed to comply within three months himself to make the appointment and to fix the stipend was considered as importing the same condition of giving a hearing before exercising the power and therefore as not authorising the bishop, even when acting on his own personal knowledge to issue the requisition (which was in the nature of a judgment) without having given the holder of the benefice an opportunity of being heard ⁸²

A power to remove a person from his office or employment for lawful cause only would on the same principle, involve the condition that it was to be exercisable only after a due hearing or after the opportunity of being heard had been given to the person proposed to be removed ⁸³. But it would of course, be different if the person was removable arbitrarily and without any cause being assigned ⁸⁴

It is obvious that where an Act which creates a new jurisdiction gives any person dissatisfied with its decision an appeal to another judicial authority which is empowered to confirm or annul the decision as to it shall appear just and proper the right of being heard in support of his appeal is impliedly given to the appellant ⁸⁵

Under the provisions of the County Courts Act 1846 (c 95) ⁸⁶ which empowered the judge if satisfied on the hearing of a judgment debtor's summons that the judgment debtor had the means of

⁸¹ See *Harper v Carr* (1797) 7 T.R. 270 448. *R v Hughes* (1837) 3 A. & E. 425. *Painter v Live pool Gas Co* (1836) 3 A. & E. 433.

⁸² *Capel v Child* (1837) 1 L.J. Ex. 205 doubted in *Re Hammersmith Rent Charge* (1849) 4 Ex. 94 per Alderson B. See *Bonaker v Evans* (1850) 16 Q.B. 163. *Bailett v Arkwood* (1851) 23 L.J.Q.B. 9. Cf. *Marquis of Abergavenny v Llanduff (Bp)* (1858) 70 Q.B.D. 460.

⁸³ *R v Smith* (1844) 5 Q.B. 614.

⁸⁴ *Ex p Teather* (1850) 19 L.J.M.C. 70. *R v Darlington School* (1845) 14 L.J.Q.B. 67. *R v Baily* [1893] 2 Ir.R. 335 347. *Ex p Sanders* (1833) 4 B. & Ad. 863.

⁸⁵ *R v Canterbury (Archbp)* (1859) 11 Q.B. 493. See other instances *Re Philippi Charity* (1845) 9 Jur. 957. *Re Fremington School* (1846) 10 Jur. 517. *Davenport v R* (1877) 3 App.Cas. 115.

⁸⁶ Repealed County Courts Act 1858 (c 43) s 185.

paying his debt to order him to pay it either in one sum or by instalments and if he failed to obey to commit him to jail, it was held that an order to pay by future instalments and in default of paying any of them to be committed was invalid for it made the debtor liable to imprisonment for not making a payment at a future time without then having an opportunity of defending himself. The judge could not properly exercise any discretion until the time of commitment.⁹⁰

It would be different where the statute gave a power of immediate commitment in default of immediate payment.⁹¹ And again if the opportunity of defence was provided at another stage there would be no adequate ground for thus implying the condition in question.

For instance when a statute provided that if a rent-charge was in arrear it might be levied by distress and that, if it remained in arrear for forty days and there was no distress a judge upon an affidavit of these facts might order the sheriff to summon a jury to assess the arrears unpaid it was held that such an order might well be made *ex parte*. The party subject to prejudice had his opportunity of defence before the sheriff.⁹²

Where an Act authorised justices to inquire and adjudge the settlement of a pauper lunatic and to make an order on his parish to pay for his maintenance and empowered the parish to appeal against any such order, it was held that the order might be made without giving the parish sought to be affected notice of the intended inquiries.⁹³

And an application to the court by a trustee in bankruptcy for leave to prosecute a bankrupt for an offence under certain repealed sections of the Debtors Act, 1869 (c. 62) was properly made *ex parte* and without notice to the bankrupt.⁹⁴

An Act which empowered two or more justices, or other persons⁹⁵ to do any act of a judicial as distinguished from a ministerial nature

⁹⁰ See *Kinning's Case* (1847) 10 Q.B. 730 *Kinning v Buchanan* (1849) 8 C.B. 271 *Abley v Dale* (1850) 10 C.B. 62. See also *Hesketh v Atherton* (1873) L.R. 9 Q.B. 4 *Lovering v Dawson* (1875) L.R. 10 C.P. 711 *Cf Stonor v Fowle* (1887) 13 App.Cas. 20 *Re Watson* (1892) 62 L.J.Q.B. 85

⁹¹ *Arnold v Dimsdale* (1853) 22 L.J.M.C. 161

⁹² *Re Hammersmith Rent Charge* (1849) 4 Ex. 87

⁹³ *Ex p Monkleigh* (1848) 5 D. & L. 404

⁹⁴ *Ex p Marsden* (1876) 2 Ch.D. 786

⁹⁵ *R v Cambridge JJ* (1835) 4 A. & E. 111

impliedly required that they should all be personally present and acting together in its performance, whether to hear the evidence, or to view when they were to act on personal inspection,⁹⁶ to consult together and to form their judgment,⁹⁷ and, in the case of justices authorised to try offences summarily to abstain from exercising their jurisdiction when it appeared that a bona fide claim of right or title was set up.⁹⁷ When the act to be performed is ministerial it is not necessary on general principles that the persons authorised to do it should meet together for the purpose and the statute which gave such authority would therefore not be construed as impliedly requiring it.⁹⁸

When a new jurisdiction is given to an existing court to deal with new matter in a different mode and by a different procedure it is understood unless the contrary be expressed or plainly implied to be intended to be exercised according to the general inherent powers of the court.⁹⁹

It has been already mentioned that when a power is conferred to do some act of a judicial nature, or of public concern and interest there is implied an obligation to exercise it when the occasion for it arises.¹ This implied obligation is usually said to modify the language creating the power, when permissive by making it imperative but it seems to be a matter of implied enactment rather than of verbal interpretation.

SECTION 3 — IMPERATIVE OR DIRECTORY

When a statute requires that something shall be done or done in a particular manner or form without expressly declaring what shall be the consequence of non-compliance the question often arises What intention is to be attributed by inference to the legislature? Where indeed the whole aim and object of the legislature would be plainly defeated if the command to do the thing in a

⁹⁶ *Billings v Prinn* (1775) 2 W Bl 1017 *R v Hamstall Ridware* (1789) 3 T R 380 *R v Forrest* (1789) 3 T R 38 *R v Warwick* (1800) 8 T R 454 *Battye v Gresley* (1807) 8 East 319 *Grindley v Barker* (1798) 1 Bos & P 229 *Cook v Loveland* (1799) 2 Bos & P 31 *R v Mills* (1831) 2 B & Ad 578 *R v Toines* (1848) 11 Q B 80 *R v Aldborough* (1849) 13 Q B 190

⁹⁷ *White v Feast* (1872) L R 7 Q B 358 *per Blackburn J* *Binnie v Marshall* (1876) 35 L T 733 *Brooks v Hamlyn* (1899) 79 L T 734

⁹⁸ *Re Hopper* (1867) L R 2 Q B 367 explained in *Re Dawdy* (1885) 15 Q B D 476

⁹⁹ *Dale's Case* (1881) 6 Q B D 376

¹ *Ante* pp 231-241

particular manner did not imply a prohibition to do it in any other, no doubt can be entertained as to the intention

The enactment, for instance of section 12 of the Metropolitan Building Act 1855 (c 122) ² that the walls of buildings should be constructed of brick, stone or other incombustible material, though containing no prohibitory words, obviously prohibited by implication and made illegal their construction with any other ³

The directions in the rubrics of the Prayer Book for the performance of the rites and ceremonies of the Church are equally imperative in prohibiting all omissions and additions ⁴

The position is the same where compliance is made, in terms a condition precedent to the validity or legality of what is done as when, for example, the deed of a married woman was to take effect "when" the certificate of her acknowledgment of it was filed ⁵ or where in bankruptcy it was provided that no appeal should be entertained unless certain rules were complied with ⁶ The neglect of the statutory requisites in such cases would obviously be fatal ⁷

The reports are full of cases dealing with statutory provisions which are devoid of indication of intention regarding the effect of non-compliance with them In some of them the conditions, forms or other attendant circumstances, prescribed by the statute have been regarded as essential to the act or thing regulated by it and their omission has been held fatal to its validity In others such prescriptions have been considered as merely directory, the neglect of which did not affect its validity or involve any other consequence than a liability to a penalty if any were imposed, for breach of the enactment ⁸ The propriety, indeed of ever treating the provisions of any statute in the latter manner has been sometimes questioned ⁹ but it is justifiable in principle as well as abundantly established by numerous authorities

² See now London Building Act 1930 (c clviii) s 57

³ *Stevens v Gourley* (1859) 29 L J C P 1

⁴ *Westerton v Liddell* (1857) 1 Jur 1178 *Martin v Maconochie* (1868) L R 2 P C 365

⁵ *Fines and Recoveries Act 1833* (c 74) s 86 (repealed Conveyancing Act 1882 (c 39) s 7) *Jolly v Hancock* (1852) 7 Ex 820

⁶ *Bankruptcy Act 1869* (c 71) (repealed *Bankruptcy Act 1883* (c 52) s 169) *Re Dick Inson* (1882) 20 Ch D 315

⁷ See also *Edward Ramia Ltd v African Woods Ltd* [1960] 1 All E R 627 P C

⁸ Cf ante pp 231 et seq

⁹ *Bowman v Blyth* (1857) 7 E & B 47 per Martin B Sedgwick on Interpretation of Statutes p 375

It has been said that no rule can be laid down for determining whether the command is to be considered as a mere direction or instruction involving no invalidating consequence in its disregard, or as imperative, with an implied nullification for disobedience beyond the fundamental one that it depends on the scope and object of the enactment¹⁰ It may, perhaps be found generally correct to say that nullification is the natural and usual consequence of disobedience, but the question is in the main governed by considerations of convenience and justice¹¹ and when that result would involve general inconvenience or injustice to innocent persons or advantage to those guilty of the neglect without promoting the real aim and object of the enactment such an intention is not to be attributed to the legislature The whole scope and purpose of the statute under consideration must be regarded¹² The general rule is, that an absolute enactment must be obeyed or fulfilled exactly, but it is sufficient if a directory enactment be obeyed or fulfilled substantially¹³

A strong line of distinction may be drawn between cases where the prescriptions of the Act affect the performance of a duty and where they relate to a privilege or power¹⁴ Where powers rights or immunities are granted with a direction that certain regulations formalities or conditions shall be complied with it seems neither unjust nor inconvenient to exact a rigorous observance of them as essential to the acquisition of the right or authority conferred and it is therefore probable that such was the intention of the legislature But when a public duty is imposed and the statute requires that it shall be performed in a certain manner or within a certain time, or under other specified conditions such prescriptions may well be regarded as intended to be directory only in cases when injustice or inconvenience to others who have no control over those exercising the duty would result if such requirements were essential and imperative

Consequence of Disobedience

In illustration of the former class of cases the repealed Engraving

¹⁰ *Liverpool Borough Bank v Turner* (1861) 2 De G F & J 507 per Lord Campbell
Howard v Bodington (1877) 2 P D 211 per Lord Penzance

¹¹ *R v Ingall* (1877) 2 Q B D 208 per Lush J

¹² *Salford Guardians v Denhurst* [19 6] A C 619 *Ita Food Products Inc v Unus Shipping Co* [1939] A C 277 P C

¹³ *Woodward v Sarsons* (1875) L R 10 C P 733 746

¹⁴ *Caldow v Pixell* (1877) 2 C P D 562 per Denman J

Copyright Act 1734 (c 13) gave to the designers of prints the sole right of printing them for fourteen years after the day of publication adding ' which [day] shall be truly engraved, with the name of the proprietor on each plate and it was held that the neglect to comply with this provision was fatal to the copyright ¹⁵

The innkeeper whose common law liability for the goods of his guests is limited if he posts up a notice as required by the Innkeepers Liability Act 1863 (c 41) does not obtain the exoneration if his notice is inaccurate in any material particular ¹⁶

A nomination paper must be properly signed ¹⁷

A declaration made by a lodger under the repealed Lodgers Goods Protection Act, 1871 (c 79) ¹⁸ must rigidly comply with the provisions of that Act, which was made for the benefit of the landlord as well as the lodger. Consequently a declaration made at the time of levying one distress would not protect the lodger against a subsequent distress but he must make a fresh declaration ¹⁹

A repealed Act which, in authorising the confinement of lunatics prohibited their reception in asylums without medical certificates in a given form setting forth several particulars and among them the street and number of the house where each supposed lunatic was examined made a strict compliance with those provisions imperative so that a certificate which omitted the street and number of the house where the examination took place was held insufficient to justify the detention of the lunatic ²⁰

Where it was enacted that a person who objected to a voter's qualification might be heard in support of his objection if he had given notice to the voter and it was provided that besides the ordinary way of serving it, the notice might be sent by post addressed to his place of abode as described in the list of voters prepared by the clerk of the peace it was held that to send by post a notice not to the address so given which was incorrect but to the true

¹⁵ Repealed Copyright Act 1911 (c 46) s 36 Sched 2 *Newton v Cowie* (1827) 6 L.J. (O.S.) C.P. 159 *Brooks v Cock* (1835) 4 L.J. K.B. 144 *Ayan o v Mudie* (1854) 10 Ex. 203 See also *Low v Routledge* (1868) L.R. 3 H.L. 100

¹⁶ *Spice v Bacon* (1877) 2 Ex D. 463 See *Gregson v Potter* (1879) 4 Ex D. 142 See now Hotel Proprietors Act 1956 (c 67)

¹⁷ *Mather v Brown* (1876) 1 C.P.D. 596

¹⁸ See now Law of Distress Amendment Act 1908 (c 53) s 1

¹⁹ *Thwaites v Wilding* (1883) 12 Q.B.D. 4 *Godlington v Fulham & Hampstead Property Co* [1905] 1 K.B. 431

²⁰ 16 & 17 Vict. c. 96 *R v Pinder* (1855) 24 L.J.Q.B. 148 Cf *Re Huttless* (1846) 9 Q.B. 651

address, was not a compliance with the Act, and therefore that the objector could not be heard on mere proof of posting the notice²¹

The Merchant Shipping Act 1854 (c 104), s 55 (repealed by the Merchant Shipping Act 1894 (c 60) s 24), which enacted that ships should be transferred by an instrument in a form containing certain particulars executed with certain formalities and registered, was deemed to render an unregistered mortgage of a ship inoperative²² although there was no express declaration, as in an earlier and repealed Act *in pari materia* that transfers in any other form should be null and void²³

It was held in one case that section 97 of the Companies Clauses Consolidation Act 1845 (c 16) which prescribed the form in which contracts may be entered into on behalf of companies, was imperative²⁴ but in another it was thought that, being in the affirmative it did not take away pre existing rights and powers and that a contract not complying with its provisions but partly performed²⁵ might be enforced²⁶

When a company or public body is incorporated or established by statute for special purposes only and is altogether the creature of statute law the prescriptions for its acts and contracts are imperative and essential to their validity²⁷ If its articles of association prescribed the attestation of proxies the omission of this formality would vitiate them²⁸ Such a company, if empowered to borrow by mortgage not more than a given sum to be applied in carrying

²¹ *Noseworthy v Buckland* (1873) L R 9 C P 233 See *Gifford v St Luke's Chelsea* (1889) 24 Q B D 141 (not followed in *Gage v M Daid* [1898] W N 104) *Smith v Huggett* (1861) 31 L J C P 38 *Hinks v Safety Lighting Co* (1876) 4 Ch D 607

²² *Liverpool Borough Bank v Turner* (1861) 30 L J Ch 379 per Lord Campbell Cf *Ward v Beck* (1863) 32 L J C P 113 *Stapleton v Hoymen* (1864) 33 L J Ex 170 See *The Andalusian* (1878) 3 P D 182 *Chasteouneuf v Copeyron* (1882) 7 App Cas 127

²³ Cf *Le Feuvre v Miller* (1857) 26 L J M C 175

²⁴ *Leominster Canal Co v Shrewsbury etc Ry* (1857) 26 L J Ch 764

²⁵ See ante pp 247-8

²⁶ *Wilson v West Harlepool Co* (1865) 34 L J Ch 241 *Green v Jenkins* (1860) 29 L J Ch 505

²⁷ *Cope v Thames Haven etc Co* (1849) 3 Ex 841 *Diggle v London & Blackwall Ry* (1850) 5 Ex 442 *Frend v Dennett* (1858) 27 L J C P 314 *Cornwall Mining Co v Bennett* (1860) 29 L J Ex 157 *Irish Peat Co v Phillips* (1861) 30 L J Q B 363 *Young v Leamington (Mayor)* (1883) 8 App Cas 517 *Bottomley's Case* (1881) 16 Ch D 631 See further ante p 347

²⁸ *Ha den v Phil'ps* (1883) 23 Ch D 14 distinguished in *Bro ne v La Trinidad* (1887) 37 Ch D 1

were not delivered to the bailiff in due time though the latter should serve it in the prescribed time, the judge would have no jurisdiction to try the case ³⁴

The provision of the Public Health Act 1875 (c 55), s 180 that every appointment of an arbitrator under the Act when made on behalf of the local authority shall be under their common seal, and on behalf of any other party under his hand, has been similarly held to be mandatory ³⁵

The same imperative effect seems, in general presumed to be intended even where the observance of the formalities is not a condition exacted from the party seeking the benefit given by the statute but a duty imposed on a court or public officer in the exercise of the power conferred on him when no general inconvenience or injustice calls for a different construction

The statute 5 Eliz 1, c 23 requiring that the writ *de contumace capiendo* should be brought into the Queen's Bench and be there opened in the presence of the judges the omission of this apparently idle ceremony was deemed fatal to the validity of an arrest made in pursuance of the writ though it had been enrolled in the Crown Office ³⁶

An enactment which provided that every warrant issued by a court should be under its seal was equally imperative and not only was a commitment under an unsealed warrant invalid but the person who had obtained it without taking care that the court performed its duty of sealing it was held liable in damages to the person arrested under it ³⁷ This was hard on the former, but it was essential for the latter that the warrant should be duly authenticated

³⁴ *Barker v Palmer* (1881) 8 QBD 9 The rule was amended in 1883 so as to meet the point raised in this case See also *Brown v Shaw* (1876) 1 Ex D 425 *Tennant v Rawlings* (1879) 4 CPD 133 *Williams v Swansea Canal Co* (1868) L.R. 3 Ex 158

³⁵ *Re Gifford and Bury* (1888) 20 QBD 368 See now Public Health Act 1936 (c 49) s 303 which is incorporated in Food and Drugs Act 1955 (c 16) sec s 131 and Sched IX

³⁶ *Dale's Case* (1891) 6 QBD 376 as to repeal by necessary implication of the Act of Elizabeth see *ibid* at p 403

³⁷ *Ex p Jan Sandau* (1846) De G 303 So a rate under the Public Health Act 1848 (c 63) (repealed Public Health Act 1875 (c 55)) *R v Workshop Board* (1865) 34 L.J.M.C. 20 discussed *Smith v Southampton Corpn* [1907] 2 K.B. at p 250

Performance of Public Duty

On the other hand where the prescriptions of a statute relate to the performance of a public duty and where the invalidation of acts done in neglect of them would work serious general inconvenience or injustice to persons who have no control over those entrusted with the duty, yet not promote the essential aims of the legislature, such prescriptions seem to be generally understood as mere instructions for the guidance and government of those on whom the duty is imposed or in other words, as directory only³⁸ The neglect of them may be penal³⁹ indeed but it does not affect the validity of the act done in disregard of them It has often been held for instance when an Act ordered a thing to be done by a public body or public officers and pointed out the specific time when it was to be done, that the Act was directory only and might be complied with after the prescribed time⁴⁰

Thus, the Riot Act, 1411 (c 7), which required justices to try rioters within a month after the riot was held not to limit the authority of the justices to that space of time but only to render them liable to a penalty for neglect⁴¹

To hold that an Act which required an officer to prepare and deliver to another officer a list of voters on or before a certain day under a penalty made a list not delivered till a later day invalid would in effect, put it in the power of the person charged with the duty of preparing it to disfranchise the electors, a conclusion too unreasonable for acceptance⁴²

The Transportation Act, 1824 (c 84) having enacted that when any convict adjudged to transportation by any British court out of the United Kingdom was brought to England to be transported it should be lawful to imprison him in any place of confinement provided under the Act, it was held that if the place in which a prisoner was confined was not one of the appointed places the officers concerned might be liable to censure but that the

³⁸ *Montreal Street Ry v Normandin* [1917] A C 170 at p 174 where Maxwell is cited and discussed

³⁹ See e.g. *Clarke v Gant* (1853) 8 Fx 252

⁴⁰ *Smith v Jones* (1830) 1 B & Ad 334 per Littledale J

⁴¹ *R v Ingram* (1697) 2 Salk 593

⁴² *R v Rochester* (1851) 7 E & B 910 *Hunt v Hibbs* (1860) 29 L J Ex 222 *Morgan v Parry* (1856) 25 L J C P 141 *Brumfit v Bremner* (1860) 30 L J C P 33 *R v Lofthouse* (1866) L R 1 Q B 433 *R v Ingall* (1877) 2 Q B D 199

detention was not unlawful so as to entitle the prisoner to be discharged ⁴³

It is no impediment to this construction that there is no remedy for non compliance with the direction The Sessions Act 1414 (c 4),⁴⁴ which required justices to hold their sessions in the first week after Michaelmas Epiphany Easter and the translation of St Thomas the Martyr was always held to be merely directory ⁴⁵

So 6 Rich 2 c 5 which required the justices to hold their sessions in the principal towns of their county was held to be directory not coercive ⁴⁶ And yet it would be difficult to say that there would be any remedy against justices for appointing their sessions on other days or places than those prescribed by the statute ⁴⁷

The same construction was put on the Quarter Sessions Act 1814 (c 84) which enacted that the Michaelmas sessions should be held in the week after October 11 ⁴⁸ though such a construction would seem to have left the earlier law substantially unaltered, an intention not lightly to be imputed to the legislature

The regulations for the conduct of elections under the Ballot Act 1872 (c 33) were held to be so far only directory that an election was not invalidated by the non observance of them unless the non observance was of a character contrary to the principle of the Act, or might have affected the result of the election ⁴⁹

Under the same Act the requirement that the presiding officer shall stamp his mark on the face of each ballot paper delivered to a voter is directory, whilst a like requirement as regards the mark on the back of the ballot paper is, without doubt, imperative ⁵⁰

The usual provision in the commission of the peace that no justice named in it shall be capable of acting or authorised to act unless he shall have taken the oaths required by law would lead to intolerable inconvenience and injustice if it were imperative and struck with invalidity every act of an unqualified justice If his acts

⁴³ *Brenan's Case* (1847) 10 Q B 492

⁴⁴ Repealed as to England by S. L. R. Act 1863 (c 125) and Justices of the Peace Act 1949 (c. 101)

⁴⁵ 2 Hale P C 50

⁴⁶ *Ibid* 39

⁴⁷ *Gwynne v Burnell* (1855) 2 Bing N C 39 *per* Parke B

⁴⁸ *R v Leicester* (1847) 7 B & C 6

⁴⁹ *Woodward v Sarsons* (1875) L R 10 CP 733 *Phillips v Goff* (1886) 17 Q B D 805

⁵⁰ *Akers v Howard* (1886) 16 Q B D 739

were held void it was pointed out by the King's Bench all persons who acted in the execution of a warrant issued by him would act without authority⁵¹ Such consequences could not reasonably be supposed to have been intended and the just conclusion was that the legislature intended by the prohibition only to impose a penalty for its infringement

On the same general ground the acts of aldermen who had been in office for several years without re-election were held valid until their successors were appointed the provision that they should be elected annually being regarded as only directory⁵²

The Revenue (No 2) Act, 1861 (c 91) s 34 which enacted that no copy of a bill of sale should be filed in any court unless the original was produced to the officer duly stamped did not invalidate the registration if the bill was not duly stamped when so produced The object of the enactment was to protect the revenue, and this was thought sufficiently attained if the deed was afterwards duly stamped without going to the extreme of holding the registration void⁵³

It has been held that the neglect of mere formal requisites in keeping the register of the shareholders of a joint stock company, however fatal for some purposes is immaterial as regards others Thus the provision that the register should be sealed though essential to its being producible in evidence is immaterial as regards making a person a shareholder if there be in fact a book bona fide intended to be a register But the neglect to number and appropriate the shares would be fatal⁵⁴ And the provisions in the Companies Act 1862 (c 89) directing that a register should be kept of all mortgages and charges on the property of the company and imposing penalties on any of the company's officers who contravened

⁵¹ Justices Qualification Act 1744 (c 20) repealed Justices of the Peace Act 1906 (c 16) *q v* and see Justices of the Peace Act 1949 (c 101) Cinque Ports Act 1811 (c 36) (amended in part by the Cinque Ports Act 1855 (c 48) and repealed in part by the Justices of the Peace Act 1949 (c 101)) *Margate Pier Co v Hannam* (1819) 3 B & Ald 266 *Cf R v Ierelst* (1813) 3 Camp 432

⁵² *Foot v Truro* (1725) 1 Stra 625 See also *Sea King v Lorant* (1851) 13 QB 687 *Holgate v Slight* (1852) 21 LJQB 74 and *R v Corfe Mullen* (1830) 1 B & Ad 211

⁵³ Repealed Inland Revenue Repeal Act 1870 (c 99) *Bellamy v Saul* (1863) 32 LJQB 366

⁵⁴ *Per cur Henderson v Royal British Bmk* (1857) 26 LJQB 117 *Wolverhampton Waterworks Co v Hawksford* (1859) 31 1 JC 184 *Fallence v Falle* (1844) 13 QB D 109

of the Valuation (Metropolis) Act, 1869 (c 67)⁵⁸ that the assessment sessions should be held after February 1 but so that all appeals should be determined before March 31 while imperatively requiring that the court should do all in its power to obey its mandate would not operate so as to prevent a continuance of the sessions after March 30 where through necessity or default of the court itself, whether culpable or not the business was not then concluded. Parties who have done all that the statute requires of them are not to lose their right of appeal because the final hour was struck on March 30.⁵⁹

SECTION 4—*LEX NON COGIT AD IMPOSSIBILIA—CUILIBET LICET RENUNTIARE JURI PRO SE INTRODUCTO*

Impossibility of Compliance

Enactments which impose duties on conditions are when these are not conditions precedent to the exercise of a jurisdiction, subject to the maxim that *lex non cogit ad impossibilia aut inutilia*. They are understood as dispensing with the performance of what is prescribed when performance of it is idle or impossible.

Thus where an Act provided that an appellant should send notice to the respondent of his having entered into a recognisance in default of which the appeal should not be allowed, it was held that the death of the respondent before service was not fatal to the appeal but dispensed with the service.⁶⁰

In the same way the provision of the Summary Jurisdiction Act, 1857 (c 43) s 2 which similarly makes the transmission by the appellant of a case stated by justices to the superior courts within three days from receiving it a condition precedent to the hearing of the appeal⁶¹ was held dispensed with when the court was closed during the three days compliance being impossible.⁶²

⁵⁸ Repealed Local Government Act 1948 (c 26)

⁵⁹ *R v London JJ and London C C* [1893] 2 Q B 476

⁶⁰ *R v Leicestershire JJ* (1850) 15 Q B 88. See also *Brumfitt v Roberts* (1870) L R 5 C P 224. *Nichols v Hall* (1873) L R 8 C P 32. *Harding v Price* [1948] 1 K B 695

⁶¹ *Morgan v Edwards* (1860) 29 L J M C 108. *Woodhouse v Woods* (1860) 29 L J M C 149. *Stone v Dean* (1858) 27 L J Q B 319. *Norris v Carrington* (1864) 16 C B (N S) 10. *Ex p Harrison* (1858) 2 D C & J 229

⁶² *Mayer v Harding* (1867) L R 2 Q B 410. See *R v Allan* (1864) 33 L J M C 98. *R v Bloomsbury County Court Judge* (1885) 17 Q B D 788. See also *R v London JJ and London C C* [1893] 2 Q B 476. See now Magistrates Courts Act 1952 (c 55) s 87

In such cases, the provision or condition is dispensed with when compliance is impossible in the nature of things. It would seem to be sometimes equally so where compliance was, though not impossible in this sense, yet impracticable without any default on the part of the person on whom the duty was thrown. An Act for instance which made actual payment of the rent as well as the renting of a tenement essential to the acquisition of a settlement would probably be complied with if the rent was tendered though it was not accepted ⁶³

If the respondent in an appeal kept out of the way to avoid service of the notice of appeal or at all events could not be found after due diligence in searching for him, the service required by the statute would probably be dispensed with ⁶⁴

So if the appellant was entitled to appeal subject to the condition of giving security for costs within a certain time he would be held to have complied with the condition if he offered and was ready to complete the security within the limited time though it was, owing to the act of the court, or of the respondent, not completed till long after ⁶⁵

Indeed the courts will sometimes exercise a discretion in extending time (when not going to the jurisdiction) where the non-compliance arose from excusable mistake ⁶⁶

As to liabilities as opposed to duties Lord Cairns said

If a duty is cast upon an individual by common law the act of God will excuse him from the performance of that duty. No man is compelled to do that which is impossible. If an Act of Parliament declares that a man shall be liable for the damage occasioned by a particular state of circumstances I know of no reason why a man should not be liable for the damage occasioned by that state of circumstances whether the state of circumstances is brought about by the act of man or by the act of God ⁶⁷

⁶³ *R v Amphill* (1824) 2 B & C 847 per Bayley J

⁶⁴ *Per cur Morgan v Edwards* (1860) 29 L J M C 108 *Woodhouse v Woods* (1860) 29 L J M C 149 per Crompton and Hill JJ. See also *Syred v Carruthers* (1858) 27 L J M C 273

⁶⁵ *Waterton v Baker* (1868) L R 3 Q B 173. See also *R v Aston* (1850) 19 L J M C 236

⁶⁶ *Cusack v L & N W Ry* [1891] 1 Q B 347

⁶⁷ *River Wear Commissioners v Adamson* (1877) 2 App Cas 743 at p 750. And see *J & J Makin Ltd v L N E Ry* [1943] 1 All E R 362 (where the interpretation of act of God in a document is carefully discussed) affirmed [1943] K B 467 C A.

Where however, the act or thing required by the statute is a condition precedent to the jurisdiction of the tribunal compliance cannot be dispensed with, and if it be impossible the jurisdiction fails. It would not be competent to a court to dispense with what the legislature had made the indispensable foundation of its jurisdiction.

Thus the Act which enacted that justices, at the hearing of a bastardy summons "shall hear the evidence of the mother and such other evidence as she may adduce and which authorises them to make an affiliation order if the mother's evidence be corroborated in some material particular by other testimony, makes the evidence of the mother so essential to the jurisdiction that no order could be made without it, although the woman died before the hearing"⁶⁸ But an appeal may be heard although the mother be dead⁶⁹

Under the (repealed) County Courts Act 1875 (c 50) which empowered a party to move the appellate court or a judge at chambers for a new trial within eight days after the decision "the time could not be extended by either court or judge"⁷⁰

Under section 13 of the Admiralty Court Act, 1861 (c 10) which gave the Court of Admiralty the same powers, when a vessel or its proceeds were under arrest, as the Court of Chancery had under the Merchant Shipping Act 1854 (c 104) (now Merchant Shipping Act 1894 (c 60)) over suits for limiting the liability of shipowners, no jurisdiction could be exercised by the former court when the ship was lost. The jurisdiction of the court depended on the ship or the proceeds of its sale being under arrest and the shipowner could not give it jurisdiction by paying into court a sum equivalent to its value or proceeds⁷¹

Waiver

Another maxim which sanctions the non observance of a statutory provision is that *cuiuslibet licet renuntiare juri pro se*

⁶⁸ *R v Armitage* (1872) L R 7 Q B 773 *cf Dutton's Case* (1701) 2 Salk 490

⁶⁹ *R v Leicestershire JJ* (1850) 15 Q B 88

⁷⁰ *Brown v Shaw* (1876) 1 Ex D 425 *Tennant v Rawlings* (1879) 4 CPD 133
R v Salop (1881) 6 Q B D 669 *Ahner v Ahner* (1885) 10 PD 110 *Ashdown v Curtis* (1862) 31 L J M C 216 *Edwards v Roberts* [1891] 1 Q B 302

⁷¹ *Jam s v S W Ry* (1872) L R 7 Ex 287 *R v Belton* (1843) 11 Q B 388 *R v Shurmer* (1886) 17 Q B D 323

introducto Everyone has a right to waive and to agree to waive the advantage of a law or rule made solely for the benefit and protection of the individual in his private capacity which may be dispensed with without infringing any public right or public policy⁷² Where in an Act there is no express prohibition against contracting out of it, it is necessary to consider whether the Act is one which is intended to deal with private rights only or whether it is an Act which is intended as a matter of public policy, to have a more extensive operation⁷³

Thus, a person may agree to waive the benefit of a Statute of Limitations⁷⁴

The trustees of a turnpike road may, in demising the tolls, waive the provision of the Act which requires that the demise shall be signed by the sureties of the lessee⁷⁵

A passenger may waive the benefit of an enactment which entitles him to carry so many pounds of luggage with him and he does so, it may be added by taking a ticket with the express condition that he shall carry no luggage⁷⁶ The only person intended to be benefited by such an enactment is obviously the passenger himself and no consideration of public policy is involved in it⁷⁷

A statute authorising a trading company to levy tolls within a specified maximum does not bind them to exact uniform tolls from all persons alike but they are entitled in the absence of an express provision requiring equality to remit any part of the tolls to particular persons at their discretion⁷⁸

When a person does waive the benefit of any such law he cannot recall the concession after it has been acted on A tenant for

⁷² *McAllister v Rochester (Bp)* (1880) 5 CPD 194

⁷³ *Soho Square Syndicate v Pallard & Co* [1940] Ch 638 per Farwell J at p 644
Bowmaker v Tabor [1941] 2 KB 1 where it was held that the leave of the court rendered necessary by the Courts (Emergency Powers) Act 1939 (c 67) s 1 (now repealed) could not be dispensed with either by contract or waiver Cf *Smart Brothers v Ross* [1943] AC 84 *Edward Ramia Ltd v African Woods Ltd* [1960] 1 All ER 627 PC

⁷⁴ *East India Co v Paul* (1849) 7 Moo PC 85 *Lade v Trill* (1842) 6 Jur 272 per Knight Bruce VC

⁷⁵ *Markham v Stanford* (1863) 14 CB (ns) 376

⁷⁶ *Rumsey v N E Ry* (1863) 14 CB (ns) 641 discussed and distinguished in *Mercantile Bank v Gladstone* (1868) LR 3 Ex 233

⁷⁷ *Mercantile Bank v Gladstone* *supra* per Willes J

⁷⁸ *Hungerford Market Co v City Steamboat Co* (1860) 30 LJ QB 25 *Northampton Corp v Ellen* [1904] 1 KB 299 CA

instance, whose goods had been distrained might waive the provision of the Distress for Rent Act 1689 (c 5) which required an appraisal before the sale of the goods, and he could not after the sale, be heard to complain that no appraisal had been made⁷⁹

Where a question between two railway companies has been tried on the merits without either party raising the point that the matter ought to be referred to arbitration it is too late on the hearing of an appeal to insist that the case should be so referred⁸⁰

The regulations concerning the procedure and practice of civil courts may in the same way, when not going to the jurisdiction be waived by those for whose protection they were intended. Thus in a case under the County Courts Act, 1850 (c 61) s 14⁸¹ which gave an appeal from a county court provided the appellant within ten days gave notice of appeal and security for costs and after directing that the appeal should be in the form of a case, enacted that no judgment of a county court judge should be removed into any other court except in the manner and under the provisions above mentioned, it was held that the want of due notice and security might be waived. The provision was intended for the benefit of the respondent and was not a matter of public concern⁸²

A defendant in an action in a county court which has jurisdiction over the case subject to leave being given may waive want of leave⁸³ and a defendant even in a criminal case before justices, if the subject matter be within their jurisdiction may waive any irregularity in the summons or indeed dispense with the summons altogether, and he does so in such cases not indeed by appearing merely⁸⁴ but by appearing and entering on the case on its merits. The tribunal having jurisdiction over the matter he would not be

⁷⁹ *Bishop v Bryant* (1834) 6 C & P 484. See also *Atkins v Kirby* (1840) 11 A & E 777.

⁸⁰ *London Chatham & Dover v S E Ry* (1883) 40 Ch D 100.

⁸¹ See County Courts Act 1959 (c 22) s 108.

⁸² *Park Gate Iron Co v Coates* (1870) LR 5 C P 634. *Waterton v Baker* (1868) LR 3 Q B 173. See also *R v Long* (1841) 1 Q B 740. *Tyerman v Smith* (1856) 25 LJ QB 359. *Freeman v Read* (1860) 30 LJMC 123. *Palmer v Metrop Ry* (1862) 31 LJ QB 259. *Re Regent US Stores* (1878) 8 Ch D 75.

⁸³ *Moore v Gamgee* (1890) 25 Q B D 244. And see *Alderson v Palliser* (1901) 70 LJ K B 935.

⁸⁴ *R v Carnarvon* (1835) 5 Nev & M 364. *R v Shaw* (1865) 34 LJMC 169. *R v Hughes* (1879) 4 Q B D 614. Cf *Dixon v Wells* (1890) 25 Q B D 249.

introducto Everyone has a right to waive and to agree to waive the advantage of a law or rule made solely for the benefit and protection of the individual in his private capacity, which may be dispensed with without infringing any public right or public policy.⁷ Where in an Act there is no express prohibition against contracting out of it, it is necessary to consider whether the Act is one which is intended to deal with private rights only, or whether it is an Act which is intended, as a matter of public policy, to have a more extensive operation.⁷³

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A statute authorising a trading company to levy tolls within a specified maximum does not bind them to exact uniform tolls from all persons alike but they are entitled in the absence of an express provision requiring equality to remit any part of the tolls to particular persons at their discretion.⁷⁸

When a person does waive the benefit of any such law he cannot recall the concession after it has been acted on. A tenant, for

⁷ *McAllister v Racheater (Bp)* (1880) 5 C P D 194

⁷³ *Soho Square Syndicate v Pollard & Co* [1940] Ch 638 *per* Farwell J at p 644 *Bowmaker v Tabor* [1941] 2 K B 1 where it was held that the leave of the court rendered necessary by the Courts (Emergency Powers) Act 1939 (c 67) s 1 (now repealed) could not be dispensed with either by contract or waiver. Cf *Smart Brothers v Ross* [1943] A C 84 *Edward Ramus Ltd v African Woods Ltd* [1960] 1 All E R 627 P C

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⁷⁵ *Markham v Stanford* (1863) 14 C B (ns) 376

⁷⁶ *Rumsey v N E Ry* (1863) 14 C B (ns) 641 discussed and distinguished in *Mercantile Bank v Gladstone* (1868) L R 3 Ex 233

⁷⁷ *Mercantile Bank v Gladstone* *supra* *per* Willes J

⁷⁸ *Hungerford Market Co v City Steamboat Co* (1860) 30 L J Q B 25 *Northampton Corp v Ell* n [1904] 1 K B 299 C A

instance, whose goods had been distrained might waive the provision of the Distress for Rent Act 1689 (c 5) which required an appraisement before the sale of the goods and he could not after the sale, be heard to complain that no appraisement had been made ⁷⁹

Where a question between two railway companies has been tried on the merits without either party raising the point that the matter ought to be referred to arbitration it is too late on the hearing of an appeal to insist that the case should be so referred ⁸⁰

The regulations concerning the procedure and practice of civil courts may in the same way when not going to the jurisdiction be waived by those for whose protection they were intended Thus in a case under the County Courts Act 1850 (c 61), s 14 ⁸¹ which gave an appeal from a county court provided the appellant within ten days gave notice of appeal and security for costs and after directing that the appeal should be in the form of a case enacted that no judgment of a county court judge should be removed into any other court except in the manner and under the provisions above mentioned, it was held that the want of due notice and security might be waived The provision was intended for the benefit of the respondent and was not a matter of public concern ⁸²

A defendant in an action in a county court which has jurisdiction over the case subject to leave being given may waive want of leave ⁸³ and a defendant even in a criminal case before justices if the subject matter be within their jurisdiction may waive any irregularity in the summons or indeed dispense with the summons altogether, and he does so in such cases not indeed by appearing merely ⁸⁴ but by appearing and entering on the case on its merits The tribunal having jurisdiction over the matter he would not be

⁷⁹ *Bishop v Bryant* (1834) 6 C & P 484 See also *Atkins v Kilby* (1840) 11 A & E 777

⁸⁰ *London Chatham & Dover v S E Ry* (1883) 40 Ch D 100

⁸¹ See County Courts Act 1959 (c 22) s 108

⁸² *Park Gate Iron Co v Coates* (1870) L R 5 CP 634 *Waterton v Baker* (1868) L R 3 QB 173 See also *R v Long* (1841) 1 QB 740 *Tyerman v Smith* (1856) 25 LJ QB 359 *Freeman v Read* (1860) 30 LJ MC 123 *Palmer v Metrop Ry* (1862) 31 LJ QB 259 *Re Regent US Stores* (1878) 8 Ch D 75

⁸³ *Moore v Gamgee* (1890) 25 Q BD 244 And see *Atterson v Palliser* (1901) 70 LJ KB 935

⁸⁴ *R v Carnarvon* (1835) 5 Nev & M 364 *R v Shaw* (1865) 34 LJ MC 169 *R v Hughes* (1879) 4 Q BD 614 Cf *Dixon v Bells* (1890) 25 Q BD 249

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allowed to take his chance of prevailing on the merits and to reserve his objections to a mere preliminary irregularity⁸⁵

Where a statute required justices to make known to a party his right to appeal and the steps necessary to carry out this right such as giving notice of appeal and entering into recognisances the party might waive this provision⁸⁶

But when public policy requires the observance of the provision it cannot be waived by an individual *Privatorum conventio juri publico non derogat*⁸⁷ Private compacts are not permitted either to render that sufficient or to impair the integrity of a rule declares essentially insufficient such for instance, as the enactment necessary for the common welfare requires the attestation of wills⁸⁸

Thus the invalidity of the service of a writ on a Sunday cannot be waived for it is a matter of public policy that no such proceeding should take place on Sunday⁸⁹

It has been held that the maxim *volenti non fit injuria* is not to be applied to cases of injury occasioned by the breach of a statutory duty imposed for the benefit of others as well as the injured party⁹⁰

On the same principle a public body such as a local authority which is authorised to make by laws cannot dispense with them in particular cases the by laws not being for its benefit but for that of the public⁹¹

It is said to be a general understanding in the profession that a prisoner can consent to nothing at least in the course of his trial⁹² In criminal matters a person cannot waive what the law requires⁹³ Where upon a trial for felony the jury was discharged and at the

⁸⁵ *R v Barret* (1708) 1 Salk 383 *R v Jepson* (1720) 1 Stra 261 *R v Aiken* (1765) 3 Burr 1785 *R v Stone* (1796) 1 East 639 *R v Berry* (1859) 28 LJMC 86
⁸⁶ *R v Fletcher* (1871) LR 1 CCR 320 *R v Smith* (1868) LR 1 CCR 110
⁸⁷ *R v Widdop* (1872) LR 2 CCR 3 *Bolton v Bolton* (1876) 2 Ch D 217
⁸⁸ *R v Yorkshire* (1815) 3 M & S 493 and does so by declaring that he does not intend to appeal

⁸⁹ Dig 50 17 45
⁹⁰ *Habergham v Vincent* (1793) 2 Ves Jun 227 *per Wilson J Croker v Hertford* (1844) 4 Moore PC 339 366 See New York Civ Code Art 1968
⁹¹ *Taylor v Phillips* (1807) 3 East 155
⁹² *Baddeley v Earl Granville* (1887) 19 QBD 423 *Thomas v Quartermaine* (1887) 18 QBD 685 *Alford v National Coal Board* [1952] 1 All ER 754

⁹³ *Re McIntosh* (1892) 61 LJQB 164 See however *G E Ry v Goldsmid* (1884) 9 App Cas 927 on which see *Haynes v Ford* [1911] 2 Ch 237
⁹⁴ *Per cur R v Bertrand* (1867) LR 1 PC 520
⁹⁵ *Park Gate Iron Co v Coates* (1870) LR 5 CP 634 *per Smith J*

new trial, some of the witnesses after being sworn, had their evidence read over to them by the judge from his notes and the counsel for the Crown and the prisoner had afterwards liberty to examine and cross examine them it was held that this course of proceeding vitiated the trial and that the consent or acquiescence of the prisoner did not cure the irregularity⁹⁴ The object of a criminal trial it was observed was the administration of justice in a course as free from doubt or chance of miscarriage as human administration of it can be, not the interests of either party

Jurisdiction by Consent

Consent cannot give jurisdiction⁹⁵ and therefore any statutory objection which goes to the jurisdiction does not admit of waiver

Thus, section 33 of the Summary Jurisdiction Act 1879 (c 49) which empowers either party, after the determination of an information by justices to apply to the court to state a case requires that the application shall be made to all who heard it and the objection that the case was stated by some only of them cannot be waived because it goes to the jurisdiction⁹⁶

The provision of the Summary Jurisdiction Act 1857 (c 43) s 2 which requires the appellant from a decision of justices to transmit the case in three days to the Court of Appeal could not be waived by the respondent on the ground either that it went to the jurisdiction or that it related to a criminal case or that the justices had an interest in the observance of the rule⁹⁷

A provision that a summons shall be served within a certain time goes to the jurisdiction and must be observed⁹⁸

⁹⁴ *R v Bertrand* (1867) LR 1 PC 520 *R v Bloxham* (1844) 6 QB 528 *Graham v Ingleby* (1848) 1 Ex 651 per Pollock CB and Alderson B *Cf R v Tharnhill* (1838) 8 C & P 575 *R v Monson* (1903) 67 JP 267 *R v Lawrence* (1909) 25 TLR 374 See *Ex p Best* (1881) 18 Ch D 488

⁹⁵ *Lawrence v Wilcock* (1840) 11 A & E 941 *Lismore v Beadle* (1842) 1 Dowl (Ns) 566 *Ex p Robertson* (1875) LR 20 Eq 733 *Jackson v Beaumont* (1855) 11 Ex 300

⁹⁶ *Westmore v Paine* [1891] 1 QB 482 But see *Haskell v Marlow* [1928] 2 KB 45 See now Magistrates Courts Act 1952 (c 55) s 87

⁹⁷ *Morgan v Edwards* (1860) 29 LJMC 108 *Peacock v R* (1858) 27 LJCP 224 *Cf Peters v Sheehan* (1842) 12 LJEx 177 *Great N Committee v Inett* (1877) 2 QBD 284 *R v Hughes* (1879) 4 QBD 614 See the remarks in *Park Gate Iron Co v Caates* (1870) LR 5 CP 634 *dubio* Keating J *Bennett v Atkin* (1879) 4 CPD 80 See now Magistrates Courts Act 1952 (c 55) s 87

⁹⁸ *Dixon v Wells* (1890) 25 QBD 249

It may be added here that a person is sometimes estopped by his own conduct from availing himself of legislative provisions intended for his benefit. For instance a prisoner for debt who falsely represented a person to be an attorney to attest a warrant of attorney could not afterwards be allowed to impeach the warrant on the ground of inadequate attestation.⁹⁹

The grantee of an annuity on whom the duty is cast of enrolling the deed of grant would be estopped from taking any advantage from his neglect to enrol it.¹

SECTION 5—PUBLIC AND PRIVATE REMEDIES

When a statute creates a new obligation or makes unlawful that which was lawful before a corresponding right is thereby impliedly given either to the public or to the individual injured by the breach of the enactment unless the contrary appears in the enactment itself. Sometimes it is given to both. Again if the legislature gives to an association of individuals (*e.g.* a trade union) which is neither a corporation nor a partnership nor an individual, a capacity for owning property and acting by agents such capacity in the absence of express enactment to the contrary, involves the necessary correlatives of liability to the extent of such property for the acts and defaults of such agents.²

Where a statute creates an offence and specifies certain persons as those by whom the provisions of the Act shall be enforced no other person can prosecute for the offence.³ Where a penalty is imposed with nothing said as to who may recover it nor is it enacted for the benefit of a party aggrieved the offence not being against an individual the penalty belongs to the Crown, and the Crown alone can maintain a suit for it.⁴

If a statute prohibits a matter of public grievance⁵ or commands a matter of public convenience⁶ all acts and omissions contrary to

⁹⁹ *Jeyes v Booth* (1797) 1 B. & P. 97. *Cox v Cannon* (1838) 4 Bing N.C. 453.

¹ *Molten v Camroux* (1848) 4 Ex. 17. *Turner v Browne* (1846) 15 L.J.C.P. 243. See also *Re Connan* (1888) 20 Q.B.D. 690. *Ex p Musgrove* (1843) 3 M.D. & D. 386 and *Ex p Greener* (1880) 15 Ch.D. 457.

² *Taff Vale Ry v Amalgamated Society of Railway Servants* (1901) 70 L.J.K.B. 905 per Farwell J. (affirmed [1901] A.C. 426 H.L.).

³ *R v Cubitt* (1889) 22 Q.B.D. 623. *Anderson v Hamlyn* (1890) 25 Q.B.D. 221.

⁴ *Badlaugh v Clarke* (1883) 8 App.Cas. 354. *Cf Att. Gen v Exeter Corpn* [1911] 1 K.B. 1092.

⁵ *R v Sainsbury* (1791) 4 T.R. 456.

⁶ *R v Davis* (1751) Say 133. *R v Price* (1840) 11 A. & E. 727.

its injunctions are misdemeanours, and if it omits to provide any procedure or punishment for such act or default, the common law method of redress is impliedly given that is the procedure by indictment, and punishment by fine or imprisonment without hard labour or both. The court may also require the defendant to find sureties to keep the peace and be of good behaviour.⁷

Thus the Poor Relief Act, 1601 (c 2) in empowering justices to order the father or other relation of a pauper to pay for his maintenance impliedly provided for the enforcement of the order by indictment.⁸

Churchwardens and overseers were indictable for not making a rate to reimburse constables as directed by the Poor Relief Act 1662 (c 12), the word *may* in a statute being the same as *shall* in Acts relating to justice or the public weal.⁹

Refusal or neglect by the father of a child to furnish to the registrar of births when requested the particulars required by the Births and Deaths Registration Act 1836 (c 86) s 20 was an indictable misdemeanour.¹⁰

Where it was enacted under the repealed Quarantine Acts that all persons coming from a place infected by the plague should obey such orders as the King in Council should make, the disobedience of any such order being a disobedience of the Act would be indictable and punishable by fine and imprisonment.¹¹

But the matter must be strictly of public concern. If the statute extends only to particular persons or to matters of a private nature as those relating to distresses by lords on their tenants disobedience would not be indictable.¹

Where the burden of repairing a private road for the use of the owners and occupiers of tenements in nine parishes was thrown upon the owners and occupiers in six of those parishes the latter were held not indictable for the repair of the road because the duty

⁷ 2 Hawk c 25 s 4 and see the cases collected in Burn s J Office II

⁸ *R v Robinson* (1759) 2 Burr 799 *R v Balme* (1777) 2 Cowp 648 *R v Ferrall* (1850) 2 Den C C 51

⁹ Repealed Poor Law Act 1927 (c 14) *R v Barlow* (1693) 2 Salk 609

¹⁰ *R v Price* (1840) 11 A & E 727 See now Births and Deaths Registration Act 1953 (c 20)

¹¹ *R v Harris* (1791) 4 T R 202 *R v Haigh* (1813) 3 T R 637 *R v Walker* (1875) L R 10 Q B 355

¹ 2 Hawk c 25 s 4

did not concern the public but only the individuals who had a right to use the private road ¹³

If the statute which creates the obligation whether private or public provides in the same section or passage a specific means or procedure for enforcing it no other method than that thus provided can normally be resorted to for that purpose ¹⁴

Thus where the Land Tax Redemption Act 1802 (c 116) directed that the tax should be added to the rent in all future bishops leases and should be recoverable in the same way as the rent, it was held not recoverable by any other means ¹⁵

A breach of the Alehouses Act 1551 (c 25) ¹⁶ which enacted that no person should keep an ale house but such who should be admitted thereunto and allowed in open sessions or by two justices under the penalty of summary commitment by justices for three days was not the subject of prosecution by indictment ¹⁷

Similarly, no indictment would lie against an overseer of a parish for wilfully inserting the names of unqualified persons in the voters list or for any other of the offences specified in section 51 of the Parliamentary Voters Registration Act 1843 (c 18) as the section specified a particular penalty for the offences created and thereby excluded all others ¹⁸

Where an Act which requiring shareholders to pay calls on the shares provided that in case of default, the company might sue them in the courts in Dublin it was held that an action would not lie in England ¹⁹

If the newly created duty is simply an obligation to pay money for a public purpose the general rule would seem to be that the payment cannot be enforced in any other manner than that provided

¹³ *R v Richards* (1800) 8 TR 634 See also *R v Storr* (1765) 3 Burr 1698 and *R v Atkins* (1765) 3 Burr 1706

¹⁴ *Lamplough v Norton* (1889) 22 QBD 452 at p 457 *Wake v Sheffield (Mayor)* (1884) 12 QBD 142 at p 145 But see ante p 126 et seq

¹⁵ *Doe v Bridges* (1831) 1 B & Ad 847 Cf *Scottish Widows Fund v Craig* (1882) 20 Ch D 203 See also *Bailey v Badham* (1885) 30 Ch D 84 *Rhymney Ry v Rhymney Iron Co* (1890) 25 QBD 146

¹⁶ Repealed Alehouse Act 1828 (c 61) s 35

¹⁷ *R v Marrot* (1692) 4 Mod 144 *R v Buck* (1726) 2 Stra 679

¹⁸ Repealed Representation of the People Act 1918 (c 64) s 47 Sched 8 *R v Hall* [1891] 1 QB 747

¹⁹ *Dundalk Ry v Tapster* (1841) 1 QB 667 See also *R v County Court Judge of Essex* (1887) 18 QBD 704 *R v Judge of City of London Court* (1885) 14 QBD 905

by the Act though the provision be not contained as in the above cases in the same section as that in which the duty was created

Thus the Poor Relief Act, 1601 (c 2) which, by section 2, authorised the imposition of a poor rate and, by section 4, empowered the parochial officers to levy by distress the arrears from those who refused to pay limited the officers to this remedy and gave no right of action for a poor rate ⁰

Similarly, where highway rates were made payable under a statute which prescribed a particular procedure for their recovery it was held that that method only could be pursued and that no action lay ¹

It is, however a general rule that where an Act of Parliament creates an obligation to pay money the money may be recovered by action unless some other specific provision is contained in the Act ² that is unless an exclusive remedy be given ²³ and the question may arise whether the particular remedy given by the Act is cumulative or substantial for this right of action

Where a Harbour Act required the master of a ship to pay certain duties to the trustees of the harbour and besides empowering the latter to distrain for them, enacted that any master who eluded payment should stand liable for the payment of them and that they should be levied in the same manner as penalties were directed by the Act to be levied (that is, by action or distress) it was held that the latter remedy was cumulative and that, as the Act had made the master liable to pay the dues an action lay for them ²⁴ This decision is said to have been based on the ground that the particular remedy given by the Act did not cover the whole right ²⁵

But where a by law required a traveller without a ticket to pay the fare from the station whence the train first started to the end of

⁰ *Stevens v Evans* (1761) 2 Burr 1157 per Denison J discussed in *Danby v Watson* (1877) 46 L J M C 179 181

²¹ *Underhill v Ellicombe* (1825) 10 Cl & F 450 See also *London B & S C Ry v Watson* (1879) 4 CPD 118 and ante Chap 5 Sec 1 p 122
Shepherd v Hills (1855) 11 Ex 55 per Parke B See also e.g. *Steinson v Heath* (1694) 3 Lev 400 *Pelham v Pickersgill* (1787) 1 TR 660 *Maurice v Marsden* (1850) 19 L J C P 152 *Batt v Price* (1876) 1 Q B D 264 *Booth v Trail* (1883) 12 Q B D 8

²³ *Hutchinson v Gillespie* (1856) 11 Ex 798 per Martin B R v *Hull & Selby Ry* (1844) 6 Q B 70 See *Holland v William Sanders & Sons* [1945] 1 K B 78

²⁴ *Shepherd v Hills* (1855) 11 Ex 55 distinguished in *St Pancras Vestry v Batterbury* (1857) 2 C B (N S) 477

²⁵ *St Pancras Vestry v Batterbury* (1857) 2 C B (N S) 477 at p 487 per Williams J

his journey and by section 145 of the Railways Clauses Consolidation Act 1845 (c 20), penalties for forfeitures imposed by the by laws were recoverable before justices, it was held that the by law did not create a debt recoverable in a court of civil jurisdiction ²⁶

Where an injunction of a statute is general and is not contained in a section specifying only particular remedies for the breach of such injunction such breach may be subject to the common law procedure and punishment though there be afterwards a particular remedy given ²⁷

Thus, under the Lotteries Act 1698 (c 23) which declared in the first section that keeping a lottery was a public nuisance and by the second made the keeper of one liable to a penalty recoverable by penal action, it was held that the offender was also indictable ²⁸

The Solicitors Act 1843 (c 73) ²⁹ having enacted in one section that no person should act as an attorney or solicitor who was not duly admitted and enrolled and in another that a breach of this prohibition should be deemed a contempt of court it was held that the offence was also indictable ³⁰

Where a statute prohibited the erection or maintenance of a building within ten feet of a road, declaring such an erection a common nuisance and in another section authorised two justices to convict the proprietor and to remove the structure it was held that an indictment also lay for the nuisance ³¹

The same principle applies when the duty is a private one. Thus the Distress for Rent Act, 1737 (c 19) which (by section 1) authorises landlords to seize the goods of their tenants when fraudulently and clandestinely removed to elude a distress and (by section 4 ³²) gives them a summary remedy before justices for recovering double the value of the goods removed against a tenant or any

²⁶ *London B & S C Ry v Watson* (1879) 4 CPD 118 distinguished in *G N Ry v Winder* [1892] 2 QB 595

²⁷ *R v Buchanan* (1846) 8 QB 853 *per* Lord Deuman C J citing *R v Wright* (1758) 1 Burr 543 *R v Davis* (1751) Say 133 *R v Gould* (1704) 1 Salk 391

²⁸ *R v Crawshaw* (1860) 30 LJMC 58

²⁹ Repealed Solicitors Act 1932 (c 37)

³⁰ *R v Buchanan* (1846) 8 QB 883 The offender is a criminal *Osborne v Milman* (1887) 18 QBD 471 But a solicitor struck off the rolls for allowing an unqualified person to use his name is not *Re Eede* (1890) 25 QBD 228

³¹ *R v Gregory* (1833) 5 B & Ad 555 See Solicitors Act 1957 (c 27) s 18

³² Partially repealed by the Summary Jurisdiction Act 1884 (c 43) s 4 the S L R Act 1948 (c 62) and the Justices of the Peace Act 1949 (c 101) Sch 7 Part III

person who assisted him has been held to give them also by implication the right of suing for damages for the fraudulent or clandestine removal³³

When a statute imposes a ministerial, as distinguished from a judicial duty for the benefit of particular individuals, any of these, if directly injured by the breach of the duty has impliedly a right to recover from the person on whom the duty is cast satisfaction for the injury done to him contrary to the statute³⁴ unless, of course, a different intention is to be collected from the Act

Thus an incorporated vestry which refused to perform the statutory duty of removing dirt and ashes, was held liable in an action by the party aggrieved for the expenses incurred from the refusal³⁵

In a later case however it was decided that a statutory breach of duty by a corporation to remove street refuse from the streets within its district did not give a right of action to a person suffering special damage by reason of such breach³⁶

But, on the other hand, an unsuccessful candidate at an election is entitled to sue the returning officer for compensation if the loss of the election was owing to the officer's neglect of the prescriptions of the Ballot Act, 1872 (c 33) upon the ground that such duties were merely ministerial³⁷

An action was held maintainable by the party wronged against a deputy postmaster for not delivering a letter according to his duty under the repealed Post Office (Revenues) Act, 1710 (c 11) s 2 though he was also liable under the same Act to a penalty for detaining letters recoverable by a common informer³⁸

If indeed the breach of the new duty is made by the Act subject

³³ *Bromley v Holden* (1828) Moo & M 175 *Horsfall v Davy* (1816) 1 Stark 169 See also *Collinson v Newcastle Ry* (1844) 1 C & K 546 *Ross v Ruge Price* (1876) 1 Ex D 269 discussed in *Pulford v Devenish* [1903] 2 Ch 625 634 See also *Brain v Thomas* (1881) 50 L J C P 662 and the cases collected in the note to *Ashby v White* (1703) 1 Sm L C (13th ed.) 253

³⁴ Statute of Westminster 11 (13 Edw 1 c 50) 1 Inst 56a *Anon* (1703) 6 Mod 27 *per cur Couch v Steel* (1854) 23 L J Q B 121 approved in *Robertson v Amaon Tug & Lighterage Co* (1881) 7 Q B D 598 CA questioned *Atkinson v Newcastle & Gateshead Waterworks Co* (1877) 2 Ex D 441

³⁵ *Holborn Union v St Leonard* (1876) 2 Q B D 145

³⁶ *Saunders v Holborn District Bd of Works* [1894] 1 Q B 64

³⁷ *Pickering v James* (1873) L R 8 C P 489 See also *Fotherby v Metrop Ry* (1866) L R 2 C P 188 See now Representation of the People Act, 1949 (c. 68)

³⁸ *Rowning v Goodchild* (1773) 2 W Bl 906

to a pecuniary penalty recoverable only by the party aggrieved the inference would seem to be that this penalty was intended as a compensation for the private injury as well as a punishment for the public wrong and there would be no other remedy for either the one or the other ³⁹ At all events the only duty created, if any was one to the party injured and as the Act in expressly creating that duty also provided a special remedy for its breach, none other could be implied

But where for the protection of particular persons an Act prohibited a railway company from making a line in a certain direction the company would seem liable to an action by those persons for damages sustained from a breach of the enactment ⁴⁰

The right of action where it exists, is strictly limited to those who are directly and immediately within the scope of the enactment and is given only in respect of the injury contemplated by the statute ⁴¹

The repealed Contagious Diseases (Animals) Act 1869 (c 70) s 57, for example, in imposing a penalty on those who sent animals to market with infectious diseases, may have given a right of action to the owner of an animal in the market which caught the disease from the infected animal of the offender, the object of the Act being to protect those who exposed animals for sale there but it would not have given a right of action to the purchaser of the diseased animals which had been wrongfully exposed for the Act did not aim at the protection of buyers in the market ⁴²

An Act which requires a railway company to fence their line may give the adjoining landowner an action for a breach of the enactment if his cattle are injured by getting on the line in consequence, but a passenger injured by an accident caused by such cattle getting on the line would not be entitled to an action for the neglect to fence ⁴³

The general principle was formerly considered of wider application for it was deemed that whenever a statutory duty was

³⁹ *Per cur Couch v Steel* (1854) 23 L J Q B 121 See *Partridge v Naylor* (1596) Cro Eliz 480 *R v Hicks* (1855) 24 L J M C 94 *Anderson v Hamlin* (1890) 25 Q B D 221 *Stevens v Jeacocke* (1843) 11 Q B 731

⁴⁰ *Chamberlaine v Chester Ry* (1848) 18 L J Ex 494

⁴¹ *Aligollan v William Cooke & Co Ltd* [1956] 2 All E R 294

⁴² *Hard v Hobbs* (1878) 3 Q B D 150

⁴³ *Buxton v N E Ry* (1868) L R 3 Q B 449 Discussed and applied *Thomas v Rhymney Ry* (1870) 39 L J Q B 141

created, any person who could show that he had sustained an injury from the non performance of it ⁴⁴ had a right of action for damages against the person on whom the duty was imposed

Accordingly, where an Act required the owner of a ship to keep on board a sufficient supply of medicines, under a penalty of £20 recoverable at the suit of any person and divisible between him and the Seamen's Hospital it was held that the owner was liable also to an action by a seaman for compensation for the special damage which he had sustained from a neglect to supply the ship with medicines as required by the Act ⁴⁵. But this proposition cannot now be regarded as law. Whether any such right of action arises by implication must depend on the purview of the Act ⁴⁶ and on whether there is an ascertainable class for whose benefit the Act was passed ⁴⁷.

Where a duty was for the first time imposed by the Merchant Shipping Act 1854 (c. 104) s. 172 ⁴⁸ on the master of a ship subject to a penalty of £10, to give a seaman a certificate of discharge it was held that an action for damages for breach of this duty was not maintainable ⁴⁹.

But whether a penalty or method of procedure has been laid down in the Act or not, a special remedy by way of an injunction to restrain a breach of the Act will always lie at the suit of the Attorney General on the principle that he represents the public, who have an interest in seeing that the Acts of Parliament are obeyed ⁵⁰.

Where, however, no penalty is provided by an Act for the

⁴⁴ The onus of proof of injury is on the plaintiff notwithstanding that there may be an admitted breach of the statute. *Bonnington Castings Ltd v Wardlaw* [1956] A.C. 613 overruling on this point *Vyner v Waldenberg Bros Ltd* [1946] K.B. 50.

⁴⁵ *Couch v Steel* (1854) 23 L.J.Q.B. 121. *Holmes v Clarke* (1861) 30 L.J.Ex. 135. See Merchant Shipping Act 1894 (c. 60) s. 200.

⁴⁶ See *Atkinson v Newcastle Waterworks Co* (1877) 2 Ex.D. 441 per Lord Cairns. *Cockburn C.J.* and *Brett L.J.* *Johnston v Consumers Gas Co of Toronto* [1898] A.C. 447. *P.C.* *Cutler v Wandsworth Stadium* [1949] A.C. 398. *Newman v Francis* [1953] 1 W.L.R. 402. *Bodham v Lamb's Ltd* [1946] K.B. 45. *Grant v National Coal Board* [1956] A.C. 649 H.L. (Scot.).

⁴⁷ *Groves v Wimborne* [1898] 2 Q.B. 402 at pp. 407-408 per A.L.J. *Solomons v Gerstein Ltd* [1954] 2 Q.B. 243.

⁴⁸ See now Merchant Shipping Act 1894 (c. 60) s. 128.

⁴⁹ *Allance v Falle* (1884) 13 Q.B.D. 109. See also *London Armoury Co v Eider Ready Co* [1941] 1 K.B. 742.

⁵⁰ *Att Gen v Sharp* [1931] 1 Ch. 121. *Att Gen v Premier Line Ltd* [1932] 1 Ch. 303.

contravention of its provisions, a person injured by a breach of an absolute and unqualified duty imposed by an Act has an undoubted cause of action⁵¹ and where a penalty is imposed the cause of action remains unless it appears from the whole purview of the Act that the legislature intended that the only remedy should be by proceeding for the recovery of the penalty⁵²

The true principle is that where the duty imposed by the Act is not intended for the benefit of any particular class of persons, but for that of the public generally, no right of action accrues by implication to any person who suffers no more injury from its breach than the rest of the public. Where a specific remedy is provided by statute proceedings must be taken to enforce it and if no specific remedy is so provided the proper course is to proceed by indictment. A public injury is indictable but it is not actionable unless the sufferer from the breach has sustained some direct and substantial private and particular damage beyond and in excess of that suffered in common with the rest of the public⁵³. If A digs a trench across the highway he is indictable only but if B falls into it A is liable to an action by B for the particular injury sustained⁵⁴.

It has been held that the obstruction of a navigable river becomes a private injury as well as a public nuisance if access is thereby prevented to the inn of the plaintiff who loses customers in consequence⁵⁵ but it is now established that a person injured in respect of goodwill by a temporary obstruction created under statutory powers has no remedy by action⁵⁶.

Where, however the public duty of repairing a sea wall was

⁵¹ See e.g. *Att Gen v St Ives R D C* [1959] 3 All E.R. 371

⁵² *Groves v Wimborne* [1898] 2 Q.B. 402. *Britannic Merthyr Coal Co v David* [1910] A.C. 74. *Monk v Warbey* [1935] 1 K.B. 75 affirming the view of Atkin L.J. in *Phillips v Britannia Hygienic Laundry* [1923] 2 K.B. 832 who differed from McCauley J. in the same case [1923] 1 K.B. 539. Cf. *Square v Model Farm Dairies Bournemouth* [1939] 2 K.B. 365 at p. 375.

⁵³ *Iveson v Moore* (1699) 1 Salk 15. *R v Russell* (1805) 6 East 427. *R v Bristol Dock Co* (1810) 12 East 429 per cur. *Chamberlaine v Chester etc Ry* (1848) 1 Ex 370. *Glossop v Heston Loc Bd* (1879) 12 Ch D 102 distinguished in *Jones v Llanrwst U C* [1911] 1 Ch 393. *Pasmore v Oswaldtwistle U D C* [1898] A.C. 387. *Wills v Clegg v Earby Gas Co* [1896] 1 Q.B. 592. *Doe v Bidges* [1923] 2 K.B. 839 at p. 842 per Atkin L.J. *Clarke v Bums* [1947] K.B. 497.

⁵⁴ *Gould v Birkenhead Corp* (1910) 8 L.G.R. 395. And see *Clerk and Lindell on Torts* 12th ed. § 48 et seq.

⁵⁵ *Rose v Groves* (1843) 12 L.J.C.P. 251. *Wilkes v Hungerford Market Co* (1835) 2 Bing N.C. 281. *Lyon v Fishmongers Co* (1876) 1 App Cas 662. *Marshall v Ulleswater Co* (1863) L.R. 7 Q.B. 171 per Blackburn J. *Beckett v Midland Ry* (1867) L.R. 3 C.P. 82, 96.

⁵⁶ *Ricketts Case* (1867) L.R. 2 H.L. 175.

imposed on a municipal corporation it was held that an individual whose house was damaged by the sea in consequence of the neglect of this duty to keep the wall in repair was entitled to sue the corporation for compensation ⁵⁷

But the injury must be the proximate necessary or natural result of the infringement of the duty the infringement being the *causa causans* and not merely a *causa sine qua non* of the special damage ⁵⁸

Nor does any right of action arise where the duty has been imposed by the legislature for a purpose altogether foreign to individual interests

Thus although shipowners were required under the repealed Contagious Diseases (Animals) Act 1869 (c 70) to provide pens and footholds for cattle on board ship no action lay against them under the Act by the owners of cattle which were washed overboard owing solely to the neglect to provide those appliances, for the legislature in providing or authorising such regulations, did not contemplate the protection of proprietary rights but had in view solely the sanitary purpose of preventing the communication of infectious disease to cattle in sea transit ⁵⁹

SECTION 6 — REPEAL—REVIVAL—COMMENCEMENT

Repeal and Revival

Where an Act is repealed and the repealing enactment is repealed by another which manifests no intention that the original Act shall continue repealed the common law rule was that the repeal of the second Act revived the first *ab initio* and not merely from the passing of the reviving Act ⁶⁰ But this rule does not apply to

⁵⁷ *Lyme Regis v Henley* (1832) 1 Bing N C 222 *Ruck v Williams* (1858) 27 L J Ex 357 See *Nitrophosphate Co v St Katherine Docks Co* (1878) 9 Ch D 503 *Glossop v Heston Loc Bt* (1879) 12 Ch D 102 at p 121 per Brett J But see p 236

⁵⁸ *Benjamin v Storr* (1874) L R 9 CP 400 *Colchester v Brooke* (1846) 7 Q B 339 *Walker v Goe* (1859) 3 H & N 395 4 H & N 350 *Romney Marsh v Trinity House* (1872) L R 5 Ex 204 L R 7 Ex 247

⁵⁹ *Gorris v Scott* (1874) L R 9 Ex 125 discussed in *Groves v Wimborne* [1898] 2 Q B 402 at p 407

⁶⁰ 2 Inst 686 4 Inst 325 *Case of Bishops* (1606) 12 Rep 7 *Phillips v Hopwood* (1849) 10 B & C 39 *Tattle v Grimwood* (1826) 3 Bing 496 Best CJ *Fuller v Redman* (1859) 29 L J Ch 324 and see *Kemp v Wadlingham* (1866) L R 1 Q B 355 at p 358

repealing Acts passed since 1850. Where an Act repealing, in whole or in part a former Act is itself repealed the last repeal does not now revive the Act or provisions before repealed unless words be added reviving them⁶¹. It is doubtful whether this rule applies to a repeal by implication (see *supra* pp 156-162), but it seems not to apply where the first Act was only modified by the second by the addition of conditions and the enactment which imposed the conditions was itself afterwards repealed⁶². *Semble*, in such a case the original enactment would revive.

Where an Act expired or was repealed it was formerly regarded in the absence of provision to the contrary as having never existed, except as to matters and transactions past and closed⁶³. Where therefore a penal law was broken the offender could not be punished under it if it expired before he was convicted although the prosecution was begun while the Act was still in force⁶⁴.

10 Will 3 c 12 which made larceny above five shillings a capital offence having been repealed on July 20 1820, by the Stealing in Shops Act 1820 (c 117) an offence against the earlier Act committed on July 11 could not be punished in the following September. Nor could the offence be dealt with under the later Act, for it was not in force when the theft was committed⁶⁵.

In an action for less than forty shillings the defendant pleaded that the debt ought to have been sued for in a local court of requests. But the Act establishing that court having been repealed after the plea but before the trial the plea failed⁶⁶.

Where an Act which authorised the laying of rails on a road

⁶¹ Interpretation Act 1889 (c 63) s 11. See Appendix.

⁶² *Mount v Taylor* (1868) L.R. 3 C.P. 645. See also *Levi v Sanderson* (1869) L.R. 4 Q.B. 332. *Mirfin v Atwood* (1869) L.R. 4 Q.B. 330. See also *ante* p 180.

⁶³ For a discussion on this proposition see *Bennett v Totton* (1918) 118 L.T. 788 and as to the general rule see *Surtees v Ellison* (1829) 9 B. & C. 752 per Lord Tenterden. *Churchill v Crease* (1848) 5 Bing 177. See also *Kay v Goodwin* (1830) 6 Bing 582 per Tindal C.J. *Att Gen v Lomplough* (1878) 3 Ex.D. 214. 217. *Morgan v Thorn* (1841) 10 L.J. Ex. 175. *Stevenson v Oliver* (1841) 10 L.J. Ex. 338. *Simpson v Ready* (1844) 11 M. & W. 346 per Parke B. Cf *R v West Riding* (1876) 1 Q.B.D. 220.

⁶⁴ 1 Hale P.C. 291. 309. *Miller's Case* (1764) 1 W.Bl. 451. *R v London JJ* (1764) 3 Burr 1456. *Charrington v Weatheringham* (1837) 2 M. & W. 223. *R v Mangan* (1838) 8 A. & E. 496. *R v Denton* (1852) 21 L.J.M.C. 207. *R v Swan* (1849) 4 Cox C.C. 103. *U.S. v The Helen* (1810) 6 Cranch 203.

⁶⁵ *R v Aken ie* (1800) Russ. & R. 49. *R v Ellis Ex p Amalgamated Engineering Union* (1911) 125 L.T. 397.

⁶⁶ *Harne v Beresford* (1837) 6 L.J. Ex. 19.

was repealed it was doubted whether the rails could lawfully remain ⁶⁷

Where a plaintiff got a verdict for one shilling in June 1840, and the judge did not grant a certificate to deprive him of costs, under the Frivolous Suits Act, 1601 (c 6) until the following month, by which time that Act was repealed by the Costs Act 1840 (c 4), it was held that the power of certifying could not be exercised in such a case, after the repeal and that the certificate was void ⁶⁸

Where an action was brought and judgment was recovered in 1867 in a case where title was in question and the plaintiff would then have had his costs either by the presiding judge's certificate, under the County Courts Act, 1850 (c 61) or by a judge's order to which he would have been entitled *ex debito justitiae* under the County Courts Act, 1852 (c 54), but he obtained neither until after January 1 1868 when both of those Acts stood repealed by the County Courts Act Amendment Act 1867 (c 142) it was held that the powers under those Acts had ceased to exist and could not be exercised in the plaintiff's favour ⁶⁹

Under earlier Friendly Societies Acts claims against a society could be enforced only by suing its officers. The Industrial and Provident Societies Act, 1862 (c 87) ⁷⁰ repealing those Acts provided for the incorporation of the societies and provided also that all legal proceedings then pending against an officer on account of a society might be prosecuted by or against the society in its registered name without abatement. But the Act made no provision respecting the recovery of claims which were then pending but which had not been sued for. It was held that neither the officers ⁷¹ nor the society itself in its new corporate capacity ⁷² could be sued in respect of such claims but that the individual members of the society were liable to be sued for them ⁷³

⁶⁷ *R v Morris* (1830) 1 B & Ad 441

⁶⁸ *Morgan v Thorn* (1841) 10 L J Ex 125 *Butcher v Henderson* (1868) L R 3 Q B 335

⁶⁹ *Butcher v Henderson* (1868) L R 3 Q B 335 dissenting from *Restall v London & S W Ry* (1868) L R 3 Ex 141 where *Morgan v Thorn* *supra* was not cited *Wood v Riley* (1868) L R 3 CP 26 *Doe v Holt* (1852) 21 L J Ex 335 *Levi v Sanderson* (1869) L R 4 Q B 330 (explaining *Butcher v Henderson*) *cf Doe v Roe* (1852) 22 L J Ex 17 *Hobson v Neale* (1853) 8 Ex 131

⁷⁰ Repealed by Industrial and Provident Societies Act 1876 (c 45)

⁷¹ *Toutill v Douglas* (1863) 33 L J Q B 66

⁷² *Linton v Blakeney Co-op Soc* (1865) 34 L J Ex 211

⁷³ *Dean v Mellard* (1863) 32 L J CP 282 distinguished in *Queensland Industrial Soc v Pickles* (1865) 35 L J Ex 1

Now, under the provisions of section 38 (2) of the Interpretation Act 1889 (c 63) (see Appendix), a repeal unless the contrary intention appears,⁷⁴ does not affect the previous operation of the repealed enactment or anything duly done or suffered under it, and any investigation, legal proceeding or remedy may be instituted, continued or enforced in respect of rights,⁷⁵ liabilities and penalties under a repealed Act as if the repealing Act had not been passed.⁷⁶

An enactment that offenders should be prosecuted and punished for past offences as if the Act against which they had offended had not been repealed was held to create no fresh power to punish but only to preserve that which before existed and not to authorise punishment after the Act which created the offence had ceased to exist.⁷⁷

Section 11 of the Interpretation Act 1889 (c 63) declares that when any Act passed after 1850 repeals another in whole or part and substitutes some provision or provisions in lieu of the provision or provisions repealed, the repealed enactment remains in force until the substituted provision or provisions come into operation. This provision is only declaratory of the common law rule.⁷⁸ When the Interpretation Act 1889 (c 63) or any Act passed after its commencement repeals and re-enacts, with or without modification any provisions of a former Act, references in any other Act to the provisions so repealed are unless the contrary intention appears to be construed as references to the provisions so re enacted.⁷⁹

If a temporary Act be continued by a subsequent one or an expired Act be revived by a later one all infringements of the provisions contained in it are breaches of it rather than of the renewing or reviving statute.⁸⁰ And where a temporary Act expires, and it is laid down therein that 'the expiry of this Act shall not affect the operation thereof as respects things previously done or omitted to be done' the section containing those words does not

⁷⁴ For an example of a contrary intention see *Hosie v Kildare & Aithy* C C [1928] Ir R 47.

⁷⁵ Right acquired *Hamilton Gell v White* [1922] 2 K B 422. Right accrued *Abbott v Minister for Lands* [1895] A C 425.

⁷⁶ But see *Boddington v British* [1951] 1 K B 606 C A.

⁷⁷ *The J resistible* (1822) 7 Wheat 551. Cf *R v Smith* (1867) 31 L J M C 105.

⁷⁸ *Per cur* *Butcher v Henderson* (1868) L R 3 Q B 335.

⁷⁹ Interpretation Act 1889 (c 63) s 38 (1). See Appendix.

⁸⁰ *R v Morgan* (1736) 2 Stra. 1066. *Shipman v Henbest* (1790) 4 T R 109. *Dingley v Moor* (1600) Cro Eliz 750.

expire with the Act, but continues as part of the general law. Therefore, a prosecution for acts committed while the Act was in force can be commenced after the Act has expired ⁸¹

Where the provisions of one statute are by reference, incorporated in another and the earlier statute is afterwards repealed, the provisions so incorporated obviously continue in force so far as they form part of the second enactment ⁸²

Thus, when the Wine and Beerhouse Act 1869 (c 27) ⁸³ enacted that certain provisions as to appeals to quarter sessions comprised in the Alehouse Act 1828 (c 61) should have effect respecting the grant of certificates under the new Act and the Licensing Act, 1872 (c 94) repealed the Alehouse Act 1828, it was held that those provisions remained in full force so far as they formed part of the Wine and Beerhouse Act, 1869 (c 27) ⁸⁴

The County Lunatic Asylums Act, 1828 (c 40), s 54 empowered two justices of the county, where a prisoner who had been acquitted of felony on the ground of insanity was detained in custody to determine his settlement and to order his parish to pay such a sum as a secretary of state should direct for his maintenance and the Act contained also provisions with reference to appeals from such orders. The Insane Prisoners Act, 1840 (c 54), s 7 ⁸⁵ after reciting the above section, repealed so much of it as related to the secretary of state and enacted that the justices should order the payment of such sum as they should themselves direct. Five years later, the Act of Geo 4 was totally repealed. It was held that the justices had authority to make the order under the later Act ⁸⁶ and that perhaps even the right of appeal had been impliedly preserved ⁸⁷

When a by law is made under an Act the repeal of the Act abrogates the by law unless the by law is preserved by the repealing

⁸¹ *Wicks v D P P* [1947] A C 362 the words quoted being contained in the Emergency Powers (Defence) Act 1939 s 11 (3)

⁸² *R v Stock* (1838) 8 A & E 405 *R v Merionethshire* (1844) 6 Q B 334 *R v Smith* (1873) L R 8 Q B 146 *Jenkins v Great Central Ry* [1912] 1 K B 1 (Private Act)

⁸³ Repealed Licensing (Consolidation) Act 1910 (c 24) s 112 Sched 7

⁸⁴ *R v Smith* (1873) L R 8 Q B 146 *Cf Bird v Adcock* (1878) 47 L J M C 123

⁸⁵ Repealed Criminal Lunatics Act 1884 (c 64) s 17

⁸⁶ *R v Stepney* (1874) L R 9 Q B 383

⁸⁷ *R v Stepney* (1874) L R 9 Q B 383 at p 395 *per Blackburn J* *R v Lewes Prison* (1875) L R 10 Q B 579

Act⁸⁸ But where an Act is amended, by laws under the former Act continue in force as amended by the later Act⁸⁹ provided that their scope is not thereby widened⁹⁰

Where a section of a public Act is incorporated in a private Act the subsequent repeal of the public Act will not repeal the section incorporated in the private Act⁹¹

Where a definition section is repealed, the defined phrase does not thereby become incapable of redefinition by the courts either in the same or in different terms⁹²

Obsolete Statutes

A law is not repealed by becoming obsolete⁹³ Thus trial by battle—with its oaths denying resort to enchantment, sorcery or witchcraft by which the law of God might be depressed and the law of the devil exalted⁹⁴ though the trial by grand assize introduced in the time of Henry II had practically superseded it for centuries—was still in force in 1819⁹⁵

The writ of attain against jurors for a false verdict was not abolished until 1825⁹⁶

Until 1789 the sentence on women for treason and husband murder was burning alive, though in practice ladies of distinction were usually beheaded while those of inferior rank were strangled before the fire reached them⁹⁷

Drawing and quartering was still part of the sentence for treason until 1870

⁸⁸ *Watson v Finch* [1916] 1 K B 689

⁸⁹ See *Millers Cash Stores Ltd v West Ham Corporation* [1955] 3 All E R 282 (Friday substituted for Saturday in Act results in similar substitution in by law)

⁹⁰ See p 290 *ante*

⁹¹ *Jenkins v Great Central Ry* [1912] 1 K B 1

⁹² *Chapman v Kirke* [1948] 2 K B 450

⁹³ *White v Boor* (1788) 2 T R 274 *Tyson v Thomas* (1825) McCl & Y 126 *Leigh v Kent* (1789) 3 T R 362 *R v Wells* (1836) 4 Dowl 562 *The India* (No 2) (1864) 33 L J P M & A 193 *Hebbert v Purchas* (1871) L R 3 P C 605 The reasoning in this case is disapproved in *Read v Bishop of Lincoln* [1892] A C 644 Acts of the Scottish Parliament may become repealed by desuetude *Hoggan v Wood* (1889) 16 Rettie (Justiciary) 96

⁹⁴ 2 Hale P C 233 3 Bl Comm 337

⁹⁵ 59 Geo 3 c 46 *Ashford v Thornton* (1818) 1 B & Ald 405 discussed in *Cobbett v Grey* (1850) 4 Ex 729

⁹⁶ Juries Act, 1825 (c. 50) s 60

⁹⁷ 3 Inst 211 *Fost Cr L* 268

Until 1844 it was an indictable offence to sell corn in the sheaf before it had been thrashed out and measured ⁹⁸

An Irish Act (28 Eliz 1 c 2) against witchcraft, was still in force in 1821,⁹⁹ and, as late as 1836, insolvents in Scotland were bound to wear a coat and cap half yellow and half brown ¹

To destroy any of the King's victualling stores seems to be still a capital offence ²

It is still a temporal and indictable offence to deny the being or providence of the Almighty or if the offender was educated in or ever professed the Christian religion to deny its truth, or the divine authority of the Holy Scriptures ³

Suffragan bishops are still appointed under the Suffragan Bishops Act, 1534 (c 14)

But as usage is a good interpreter of law (see *supra* p 296) so non usage lays an antiquated Act open to any construction, weakening or even nullifying, its effect ⁴ And penal laws, if they have been sleepers of long time, or if they be grown unfit for present use, should be by wise judges, confined in the execution ⁵

Commencement

Down to the reign of Henry VII, the statutes passed in a session were sent to the sheriff of every county with a writ requiring him to proclaim them throughout his bailiwick and to see to their observance Some Acts (the Triennial Act of 1641, for example) contained a section requiring that they should be read yearly at sessions and assizes But proclamation or any other form of promulgation was never necessary to their operation ⁶ Everyone is bound to take notice of that which is done in Parliament As

⁹⁸ 3 Inst 197 7 & 8 Vict c 24

⁹⁹ 1 & 2 Geo 4 c 18 For the English Acts relating to witchcraft see p 632 Supp to Stroud's *Judicial Dictionary*

¹ Cessio (Scotland) Act 1836 (c 56) s 18

² Dockyards etc Protection Act 1772 (c 24) s 1 So far as related to Scotland this death penalty was repealed by S L R Act 1892 (c 19)

³ Blasphemy Act 1697 (c 35) amended by Doctrine of the Trinity Act 1813 (c 160) as regards the Holy Trinity See also Stephen J s Hist Crim L Vol 2 pp 459 483 493

⁴ See e g *Leigh v Kent* (1789) 3 T R 364

⁵ Sir Francis Bacon *Essay on Judicature*

⁶ In France a law took effect only from the date of its insertion in the Bulletin des Lois In ancient Rome a *Senatus Consultum* had no force till deposited in the Temple of Saturn Livy 39 4 See Suet Aug 94

soon as Parliament has concluded anything the law presumes that every person has notice of it for Parliament represents the body of the whole realm and therefore it never was requisite that any proclamation should be made. The statute took effect at once.⁷

A statute takes effect from the first moment of the day⁸ on which it is passed, unless another day be expressly named in which case it comes into operation immediately on the expiration of the previous day.⁹ By a fiction of law, the whole session was formerly supposed to be held on its first day and to last only that one day and every Act if no other day was expressly fixed for the beginning of its operation took effect by relation, from the first day of the session. It followed that if a statute passed on the last day of the session made a previously innocent act criminal or even capital,¹⁰ all who had been doing it during the session while it was still innocent and inoffensive were liable to suffer the punishment prescribed by the statute.¹¹

But to abolish a fiction so flatly absurd and unjust,¹² the Acts of Parliament (Commencement) Act, 1793 (c 13) enacted that the Clerk of Parliaments should indorse on every Act, immediately after its title, the date of its passing and receiving the Royal assent. This indorsement is part of the Act and is the date of its commencement when no other time is provided.¹³ The words after the passing of this Act refer to the date so indorsed and not the date of commencement where that date differs from the date

⁷ Thorpe C.J. (39 Ed. 3) cited in 4 Inst. 26

⁸ In a case decided early in 1882 the Supreme Court of the United States took notice of the hour when an Act was passed for the purpose of determining whether it affected the validity of bonds issued by the town of Louisville. The bonds were issued early on July 2 the Act prohibiting their issue was passed later on the same day and the bonds were held valid.

⁹ Interpretation Act 1889 (c 63) s 36 (2). See Appendix. If the Act be applicable outside the United Kingdom, it comes into force according to local dating and timing notwithstanding that it may thereby be in operation in other parts of the world before it comes into force in the United Kingdom. *R v Logan* [1957] 2 Q.B. 589.

¹⁰ See e.g. *R v Thurston* (1662) 1 Lev. 91. *R v Bailey* (1800) Russ. & R. 1.

¹¹ 4 Inst. 25. 1 Bl. Comm. 70 note by Christian. *Att. Gen. v Panter* (1772) 6 Bro. P.C. 486. *Latless v Holmes* (1792) 4 T.R. 660 and the authorities cited in 1 Plowd. 79a. See *The Brig Ann* (1812) 1 Gallison 62.

¹² 1 Bl. Comm. 70n.

¹³ *Tomlinson v Bullock* (1879) 4 Q.B.D. 230. As to the position where a date for commencement is specified see Interpretation Act 1889 (c 63) s 37 (see Appendix) and *Re Dal ell ex p. Rashleigh* (1875) 2 Ch.D. 9.

of passing¹⁴ But where a particular day is named for its commencement but the Royal assent is not given until a later day, the Act would come into operation only on the later day¹⁵ Statutory instruments come into operation not on the day on which they are signed, but on the day on which they are first made available or known to the public or to the person whom it is sought to affect by them¹⁶

When a Bill to continue an Act which is to expire in the same session does not receive the Royal assent until the Act has expired the continuing Act takes effect from the date of the expiration except that it does not affect any person with any punishment for any breach of the Act between the expiration of the earlier and the passing of the later Act¹⁷

Every statute passed since 1850 is a public Act and judicially noticed unless a contrary intention appears in the statute¹⁸

¹⁴ *Coleridge Taylor v Novello & Co Ltd* [1938] Ch 608

¹⁵ *Burn v Carvalho* (1834) 4 Nev & M 893 S 9 Newspaper Libel Act 1881 (c 60) required printers to make certain returns before July 31 1881 yet it was not passed till the following August 27 See also Statutory Instruments Act 1946 (c 36) s 3 *post* Appendix

¹⁶ *Johnson v Sargent & Sons* [1918] 1 K.B. 101

¹⁷ Acts of Parliament (Expiration) Act 1808 (c 106)

¹⁸ Interpretation Act 1889 (c 63) s 9 See Appendix.

APPENDIX

INTERPRETATION ACT 1889

(52 & 53 VICT c 63) ¹

ARRANGEMENT OF SECTIONS

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¹ Applied (except s 5) to Church Assembly measures See Interpretation Measure 1925 (No 1) s 1 *post* p 417 This Act no longer applies to Northern Ireland Interpretation Act 1954 (N 1 c 33) s 48 (2)

An Act for consolidating enactments relating to the Construction of Acts of Parliament and for further shortening the Language used in Acts of Parliament

[30th August 1889]

Re enactment of existing Rules

Rules as to gender and number

1 —(1) In this Act and in every Act passed after the year one thousand eight hundred and fifty³ whether before or after the commencement of this Act, unless the contrary intention appears —

(a) words importing the masculine gender shall include females⁴ and

(b) words in the singular shall include the plural and words in the plural shall include the singular⁵

(2) The same rules shall be observed in the construction of every enactment relating to an offence punishable on indictment or on summary conviction when the enactment is contained in an Act passed in or before the year one thousand eight hundred and fifty

Application of penal Acts to bodies corporate

2 —(1) In the construction of every enactment relating to an offence punishable on indictment or on summary conviction whether contained in an Act passed before or after the commencement of this Act the expression person shall unless the contrary intention appears include a body corporate

(2) Where under any Act whether passed before or after the commencement of this Act any forfeiture or penalty is payable to a party aggrieved it shall be payable to a body corporate in every case where that body is the party aggrieved

Meanings of month 'land' 'oath' affidavit

3 In every Act passed after the year one thousand eight hundred

³ Subs (1) governs special Articles of Association used with Table A of the Companies Acts *Fell v Derby Leather Co* [1931] 2 Ch 252 When the secretary of state in framing regulations uses the language of the Act he must be taken to have intended a construction identical with the statutory construction *Potts or Riddell v Reid* [1943] A C 1 8

³ 1850 is the date of Lord Brougham's Act (c 21) repealed by s 41 of this Act and re enacted by other sections

⁴ See *Chorlton v Lings* (1868) L R 4 C P 373 (right of married women to vote) *Nairn v St Andrews University* [1909] A C 147 (right of women to vote) *Beresford Hope v Sandhurst* (1889) 23 Q B D 79 (election of women to county council) *De Souza v Cobden* [1891] 1 Q B 687 (the like) *Bebb v Law Society* [1914] 1 Ch 286 (women solicitors) and Sex Disqualification (Removal) Act 1919 (c 71)

⁵ See *Re Clayton's Settled Estates* [1926] Ch 279 (two or more vesting deeds) *Re Price Price v Price* [1929] 2 Ch 400 (vesting in trustees) *R v Ministry of Agriculture and Fisheries ex p Graham* [1953] 2 Q B 140 *R v Industrial Disputes Tribunal ex p Queen Mary College* [1957] 2 Q B 483

and fifty⁶ whether before or after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely —

The expression month shall mean calendar month⁷

The expression land shall include messuages tenements and hereditaments houses and buildings of any tenure⁸

The expressions oath and affidavit shall in the case of persons for the time being allowed by law to affirm or declare instead of swearing include affirmation and declaration and the expression swear shall in the like case include affirm and declare

⁶ County

4 In every Act passed after the year one thousand eight hundred and fifty⁶ and before the commencement of this Act the expression county shall unless the contrary intention appears, be construed as including a county of a city and a county of a town

⁶ Parish

5 In every Act passed after the year one thousand eight hundred and sixty six⁹ whether before or after the commencement of this Act the expression parish shall unless the contrary intention appears mean as respects England and Wales a place for which a separate poor rate is or can be made or for which a separate overseer is or can be appointed¹⁰

Meaning of county court

6 In this Act and in every Act or order in council passed or made after the year one thousand eight hundred and forty six¹¹ whether before or after the commencement of this Act the expression county court shall unless the contrary intention appears mean as respects England and Wales a court under the County Courts Act 1888¹²

Meaning of sheriff clerk etc in Scotch Acts

7 In every Act relating to Scotland whether passed before or after the commencement of this Act unless the contrary intention appears—
The expression sheriff clerk shall include steward clerk

⁶ See note 3 *supra* p 399

⁷ In legal documents the primary meaning of month is lunar month *Bruner v Moore* [1904] 1 Ch 305 *per* Farwell J But in deeds contracts wills orders or other instruments executed made or coming into operation on or after January 1 1926 unless the context otherwise requires month means calendar month Law of Property Act 1925 (c 20) s 61

⁸ But for the meaning of land in the Compensation (Defence) Act 1939 see s 17 (1) of that Act

⁹ 1866 is the date of the Poor Law Amendment Act 1866 (c 113) of which part of s 18 defining parish as in this section is repealed by this Act

¹⁰ Repealed (except as to London) by Rating and Valuation Act 1925 (c 90) ss 69 70 Sched VIII and S R & O 1927 No 59 (repeal as to Scilly Isles)

¹¹ 1846 is the date of the passing of the first County Courts Act (c 95)

¹² See now County Courts Act 1959 (c 27)

The expressions shire sheriffdom and county shall include any stewardry in Scotland

Sections to be substantive enactments

8 Every section of an Act shall have effect as a substantive enactment without introductory words

Acts to be public Acts

9 Every Act passed after the year one thousand eight hundred and fifty ¹³ whether before or after the commencement of this Act shall be a public Act and shall be judicially noticed as such unless the contrary is expressly provided by the Act

Repeal of Acts in same session

10 Any Act may be altered, amended or repealed in the same session of Parliament

Repeal of repealing Acts, no revival

11 —(1) Where an Act passed after the year one thousand eight hundred and fifty whether before or after the commencement of this Act repeals a repealing enactment it shall not be construed as reviving any enactment previously repealed unless words are added reviving that enactment

(2) Where an Act passed after the year one thousand eight hundred and fifty whether before or after the commencement of this Act repeals wholly or partially any former enactment and substitutes provisions for the enactment repealed the repealed enactment shall remain in force until the substituted provisions come into operation

New General Rules of Construction

Official definitions in past and future Acts

12 In this Act and in every other Act whether passed before or after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely —

Lord Chancellor

(1) The expression the Lord Chancellor shall except when used with reference to Ireland only mean the Lord High Chancellor of Great Britain for the time being and when used with reference to Ireland only shall mean the Lord Chancellor of Ireland ¹⁴ for the time being

¹³ See note 3 *supra* p 399

¹⁴ The office of Lord Chancellor of Ireland was abolished by the Irish Free State (Consequential Provisions) Act 1922 (Session 2) (c 2) s 2 Sched II Pt 2. References in certain enactments to the Lord Chancellor of Ireland are to be construed as references to the Lord Chief Justice of Northern Ireland. S.R. & O. 1921 Nos 1802 1804

"Treasury"

(2) The expression the Treasury shall mean the Lord High Treasurer for the time being or the Commissioners for the time being of her Majesty's Treasury

"Secretary of State"

(3) The expression Secretary of State shall mean one of her Majesty's Principal Secretaries of State for the time being

"Admiralty"

(4) The expression the Admiralty shall mean the Lord High Admiral of the United Kingdom for the time being or the Commissioners for the time being for executing the office of Lord High Admiral of the United Kingdom

"Privy Council"

(5) The expression the Privy Council shall except when used with reference to Ireland only mean the Lords and others for the time being of her Majesty's Most Honourable Privy Council and when used with reference to Ireland only shall mean the Privy Council of Ireland for the time being ¹⁵

"Education Department"

(6) The expression the Education Department shall mean the Lords of the Committee for the time being of the Privy Council appointed for Education ¹⁶

"Scotch Education Department"

(7) The expression the Scotch Education Department shall mean the Lords of the Committee for the time being of the Privy Council appointed for Education in Scotland ¹⁷

"Board of Trade"

(8) The expression the Board of Trade shall mean the Lords of the Committee for the time being of the Privy Council appointed for the consideration of matters relating to trade and foreign plantations

"Lord Lieutenant"

(9) The expression Lord Lieutenant when used with reference to Ireland shall mean the Lord Lieutenant of Ireland or other Chief Governors or Governor of Ireland for the time being ¹⁸

¹⁵ The Privy Council of Northern Ireland has the powers of the former Privy Council of Ireland Irish Free State (Consequential Provisions) Act 1922 (Session 2) (c. 2) s. 1 Sched. I art. 2

¹⁶ By the Board of Education Act 1899 (c. 33) s. 2 (1) the Board of Education took the place of the previously existing Education Department. There are now a Minister and a Ministry of Education Education Act 1944 (c. 31)

¹⁷ See Education (Scotland) Act 1936 (c. 72)

¹⁸ Now the Governor of Northern Ireland Irish Free State (Consequential Provisions) Act 1922 (Session 2) (c. 2) s. 1 (1) Sched. I art. 1 (1)

Bank of Ireland

(19) The expression the Bank of Ireland shall mean as circumstances require the Governor and Company of the Bank of Ireland or the bank of the Governor and Company of the Bank of Ireland ³

Consular officer

(20) The expression consular officer shall include consul general consul vice-consul consular agent and any person for the time authorised to discharge the duties of consul general consul or vice-consul

Judicial definitions in past and future Acts

13 In this Act and in every other Act whether passed before or after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely —

Supreme Court ¹

(1) The expression Supreme Court when used with reference to England or Ireland ⁴ shall mean the Supreme Court of Judicature in England or Ireland as the case may be or either branch thereof

⁴ Court of Appeal

(2) The expression Court of Appeal when used with reference to England or Ireland ⁴ shall mean her Majesty's Court of Appeal in England or Ireland as the case may be

"High Court

(3) The expression High Court when used with reference to England or Ireland ⁴ shall mean her Majesty's High Court of Justice in England or Ireland as the case may be

Court of assize ²

(4) The expression court of assize shall as respects England Wales and Ireland mean a court of assize a court of oyer and terminer and a court of gaol delivery or any of them and shall as respects England and Wales include the Central Criminal Court ²³

Assizes

(5) The expression assizes as respects England Wales and Ireland shall mean the courts of assize usually held in every year and shall include the sessions of the Central Criminal Court but shall not include any court of assize held by virtue of any special commission or as respects Ireland any court held by virtue of the powers conferred by

²³ See Irish Free State (Consequential Provisions) Act 1922 (Session 2) (c 2) s 6 (1) (d) (2) (3) and S R & O 1923 Nos 227 228 453

²⁴ See Government of Ireland Act, 1920 (c 67) ss. 38-42 and Irish Free State (Consequential Provisions) Act 1922 (Session 2) (c 2) Sched I para. 6

²⁵ It also includes the Crown Courts of Liverpool and Manchester Criminal Justice Administration Act, 1956 (c 34) s 1 (4)

section sixty three of the Supreme Court of Judicature Act (Ireland) 1877

“Summary Jurisdiction Act 1848”

(6) The expression Summary Jurisdiction Act 1848 shall mean the Act of the session of the eleventh and twelfth years of the reign of her present majesty chapter forty three intituled An Act to facilitate the performance of the duties of justices of the peace out of sessions within England and Wales with respect to summary convictions and orders ²⁶

“Summary Jurisdiction (England) Acts” etc

(7) The expression the Summary Jurisdiction (England) Acts and the expression ‘the Summary Jurisdiction (English) Acts’ shall respectively mean the Summary Jurisdiction Act 1848 and the Summary Jurisdiction Act 1879 and any Act past or future amending those Acts or either of them ²⁷

(8) The expression the Summary Jurisdiction (Scotland) Acts shall mean the Summary Jurisdiction (Scotland) Acts 1864 and 1881 and any Act past or future amending those Acts or either of them ²⁸

(9) The expression the Summary Jurisdiction (Ireland) Acts’ shall mean as respects the Dublin Metropolitan Police District the Acts regulating the powers and duties of justices of the peace or of the police of that district and as respects any other part of Ireland the Petty Sessions (Ireland) Act 1851 and any Act past or future amending the same ⁹

(10) The expression the Summary Jurisdiction Acts when used in relation to England or Wales shall mean the Summary Jurisdiction (England) Acts and when used in relation to Scotland the Summary Jurisdiction (Scotland) Acts and when used in relation to Ireland the Summary Jurisdiction (Ireland) Acts ²⁷

“Court of summary jurisdiction

(11) The expression court of summary jurisdiction shall mean any justice or justices of the peace or other magistrate by whatever name called to whom jurisdiction is given by or who is authorised to act under the Summary Jurisdiction Acts whether in England Wales or Ireland and whether acting under the Summary Jurisdiction Acts or any of them or under any other Act or by virtue of his commission or under the common law ³⁰

²⁶ Commonly called Jervis's Act. The Act has been repealed (except s. 30) and consolidated by the Magistrates Courts Act 1952 (c. 55) s. 132 Sched. VI

²⁷ See now the Magistrates Courts Act 1952 (c. 55)

²⁸ See now Summary Jurisdiction (Scotland) Act 1908 (c. 65)

²⁹ See as to Northern Ireland S.R. & O. 1922 Nos. 77, 78

³⁰ The definition of magistrates court in the Magistrates Courts Act 1952 (c. 55) s. 124 (1) is as follows. In this Act the expression magistrates court means any justice or justices of the peace acting under any enactment or by virtue of his or their commission or under the common law

Licensing justices sitting at a licensing meeting are not a court of summary

" Petty sessional court "

(12) The expression petty sessional court shall as respects England or Wales mean a court of summary jurisdiction consisting of two or more justices when sitting in a petty sessional court house and shall include the Lord Mayor of the city of London and any alderman of that city and any metropolitan or borough police magistrate or other stipendiary magistrate when sitting in a court house or place at which he is authorised by law to do alone any act authorised to be done by more than one justice of the peace

Petty sessional court house

(13) The expression petty sessional court house shall as respects England or Wales mean a court house or other place at which justices are accustomed to assemble for holding special or petty sessions or which is for the time being appointed as a substitute for such a court house or place and where the justices are accustomed to assemble for either special or petty sessions at more than one court house or place in a petty sessional division shall mean any such court house or place. The expression shall also include any court house or place at which the Lord Mayor of the city of London or any alderman of that city or any metropolitan or borough police magistrate or other stipendiary magistrate is authorised by law to do alone any act authorised to be done by more than one justice of the peace

Court of quarter sessions '

(14) The expression court of quarter sessions shall mean the justices of any county riding parts division or liberty of a county or of any county of a city or county of a town in general or quarter sessions assembled and shall include the court of the recorder of a municipal borough having a separate court of quarter sessions

Meaning of ' rules of court '

14 In every Act passed after the commencement of this Act unless the contrary intention appears the expression rules of court when used in relation to any court shall mean rules made by the authority having for the time being power to make rules or orders regulating the practice and procedure of such court and as regards Scotland shall include acts of adjournment and acts of *sederunt*

The power of the said authority to make rules of court as above defined shall include a power to make rules of court for the purpose of any Act passed after the commencement of this Act and directing or authorising anything to be done by rules of court

Meaning of ' borough

15 In this Act and in every Act passed after the commencement

of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely

‘ Municipal borough ’

(1) The expression *municipal borough* shall mean as respects England and Wales any place for the time being subject to the Municipal Corporations Act 1882 and any reference to the mayor aldermen and burgesses of a borough shall include a reference to the mayor aldermen and citizens of a city and any reference to the powers duties liabilities or property of the council of a borough shall be construed as a reference to the powers duties liabilities or property of the mayor aldermen and burgesses of the borough acting by the council ³¹

(2) The expression *municipal borough* shall mean as respects Ireland any place for the time being subject to the Act of the session of the third and fourth years of the reign of her present majesty chapter one hundred and eight intitled An Act for the regulation of municipal corporations in Ireland

“ Parliamentary borough ”

[(3) *The expression parliamentary borough shall mean any borough place or combination of places returning a member or members to serve in Parliament and not being either a county or division of a county or a university or a combination of universities*] ³²

Borough

(4) The expression *borough* when used in relation to local government shall mean a municipal borough as above defined [and when used in relation to parliamentary elections or the registration of parliamentary electors shall mean a parliamentary borough as above defined] ³³

Meaning of guardians and union

16 In this Act and in every Act passed after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely

(1) The expression *board of guardians* shall as respects England and Wales mean a board of guardians elected under the Poor Law Amendment Act 1834 and the Acts amending the same and shall include a board of guardians or other body of persons performing under any local Act the like functions to a board of guardians under the Poor Law Amendment Act 1834 ³⁴

(2) The expression *poor law union* shall as respects England and Wales mean any parish or union of parishes for which there is a separate board of guardians ³⁴

³¹ See also Local Government Act 1933 (c 51) s 1

³² Repealed Representation of the People Act 1948 s 80 Sched XIII

³³ References to boards of guardians to be read as references to the councils of county and county boroughs Local Government Act 1929 (c. 17)

³⁴ To be read as references to counties and county boroughs *ibid* Sched X para 1

(3) The expression **board of guardians** shall as respects Ireland mean a board of guardians elected under the Act of the session of the first and second years of the reign of her present majesty chapter fifty six intituled **An Act for the more effectual relief of the destitute poor in Ireland** and the Acts amending the same and shall include any body of persons appointed by the **Local Government Board for Ireland** to carry into execution the provisions of those Acts

(4) The expression **poor law union** shall as respects Ireland mean any townland or place or union or townlands or places for which there is a separate board of guardians

Definitions relating to elections

17 In every Act passed after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely —

(1) The expression **parliamentary election** shall mean the election of a member [or members]³⁵ to serve in Parliament for a county or division of a county or parliamentary borough or division of a parliamentary borough or for a university or combination of universities

[(2) *The expression parliamentary register of electors shall mean a register of persons entitled to vote at any parliamentary election*]³⁵

[(3) *The expression local government register of electors shall mean as respects an administrative county in England or Wales other than a county borough the county register and as respects a county borough or other municipal borough the burgess roll*]³⁵

Geographical and colonial definitions in future Acts

18 In this Act and in every Act passed after the commencement of this Act the following expressions shall unless the contrary intention appears have the meanings hereby respectively assigned to them namely —

¹ British Islands

(1) The expression **British Islands** shall mean the United Kingdom³⁶ the Channel Islands and the Isle of Man

British possession¹

(2) The expression **British possession** shall mean any part of her Majesty's dominions exclusive of the United Kingdom³⁶ and where parts of such dominions are under both a central and a local legislature

³⁵ Repealed Representation of the People Act 1948 s 80 Sched XIII

³⁶ The expression **United Kingdom** means unless the context otherwise requires Great Britain and Northern Ireland Royal and Parliamentary Titles Act 1927 (c 4) s 2 (1) (repealed S. L. R Act 1950) And in any statute England means England Wales and Berwick-on-Tweed Wales and Berwick Act 1746 s 3 as amended Statute Law Revision Act 1948 See also Inland Revenue Regulation Act 1890 s. 38 (1)

all parts under the central legislature shall for the purposes of this definition be deemed to be one British possession ²⁷

Colony "

(3) The expression 'colony' shall mean any part of her Majesty's dominions exclusive of the British Islands and of British India and where parts of such dominions are under both a central and a local legislature, all parts under the central legislature shall for the purposes of this definition be deemed to be one colony ²⁸

British India

(4) The expression *British India* shall mean all territories and places within her Majesty's dominions which are for the time being governed by her Majesty through the Governor General of India or through any governor or other officer subordinate to the Governor General of India ²⁹

India "

(5) The expression *India* shall mean British India together with any territories of any native prince or chief under the suzerainty of her Majesty exercised through the Governor General of India or through any governor or other officer subordinate to the Governor General of India ³⁰

Governor "

(6) The expression governor shall as respects Canada [and India ³¹] mean the Governor General and include any person who for the time being has the powers of the Governor General as respects any other British possession [outside British India] ³² shall include the officer for the time being administering the government of that possession

Colonial legislature

(7) The expression colonial legislature and the expression legislature when used with reference to a British possession shall respectively mean the authority other than the Imperial Parliament or her Majesty the Queen in council competent to make laws for a British possession

²⁷ The Federation of Rhodesia and Nyasaland is a single British possession. Federation of Rhodesia and Nyasaland (Constitution) Order in Council 1953 (S.I. 1953 No. 1199) para 13 (1)

²⁸ In the Statute of Westminster 1931 (c. 4) the expression *Dominion* means the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, the Irish Free State (now Eire) and Newfoundland see s. 1. But the Dominion status of Newfoundland has been suspended. Newfoundland Act 1933 (c. 2). In any Act passed after December 11 1931 the expression *Colony* does not include a Dominion or any province or state forming part of a Dominion nor does it include Ceylon in the Burma Independence Act 1947 or in any Act passed after February 5 1948. Ceylon Independence Act 1947 s. 4 (2) nor Ghana in any Act passed after March 6 1957. Ghana Independence Act 1957 (c. 6) s. 4 (2)

²⁹ The definitions of *British India* and *India* are to be omitted in the definition of *Governor* the words *and India* are to be omitted after the words *any other British possession* there are to be inserted the words *outside British India*. Government of India (Adaptation of Enactments) Order 1937 (S.R. & D. 1937 No. 230). Special definitions relating to India are added see s. 18A below

Special definitions relating to India

18A—(1) In this Act and in every other Act, whether passed before or after the commencement of this Act, **किनि**

- (i) the expression **British possession** when used in relation to British territories in India shall unless the contrary intention appears mean British India as a whole and references, in what ever words to territories of the Crown abroad shall as respects India be construed accordingly
- (ii) the expression **Governor** shall when used in relation to British India as a whole or to India as a whole mean the Governor General
- (iii) the expression **Governor General** shall when used in relation to British India or to India—
 - (a) in relation to the period between the commencement of Part III of the Government of India Act 1935 and the establishment of the Federation of India mean the Governor General in council
 - (b) in relation to any period after the commencement of the said Part III be construed as including a reference to the Governor of a Province in India acting within the scope of any authority given to him under Part VI of the said Act
- (iv) the expression **Indian legislature** and when used in relation to British India or to India the expression **legislature** shall mean the authority other than the Imperial Parliament competent to make laws for British India or for the relevant part of British India

(2) This section applies for the interpretation of the Government of India (Adaptation of Acts of Parliament) Order 1937 but it does not apply for the interpretation of the Government of India Act 1935 [or the Government of Burma Act 1935] nor save as aforesaid for the interpretation of any Order in Council made under either of those Acts notwithstanding that that Order may provide generally that this Act shall apply for the interpretation thereof as it applies for the interpretation of an Act of Parliament ⁴⁰

“ Person ” includes corporation

19 In this Act and in every Act passed after the commencement of this Act the expression **person** shall unless the contrary intention appears include any body of persons corporate or unincorporate ⁴¹

⁴⁰ Added by the Government of India (Adaptation of Acts of Parliament) Order 1937 (S.R. & O. 1937 No. 230). The words in italics in subs. (2) were repealed by the Burma Independence Act 1947 (c. 3) s. 53 and Part I.

⁴¹ See e.g. *Darey v Shawcroft* [1948] 1 All E.R. 827; *others* [1953] 2 All E.R. 816 R v *Minister of Culture and* 2 Q.B. 140 C.A. (fluctuating body of persons).

Meaning of "writing" in past and future Acts

20 In this Act and in every other Act whether passed before or after the commencement of this Act expressions referring to writing shall unless the contrary intention appears be construed as including references to printing lithography photography and other modes of representing or reproducing words in a visible form

'Statutory declaration'

21 In this Act and in every other Act, whether passed before or after the commencement of this Act the expression statutory declaration shall unless the contrary intention appears mean a declaration made by virtue of the Statutory Declarations Act 1835 (c 62)

'Financial year'

22 In this Act and in every Act passed after the commencement of this Act the expression 'financial year' shall unless the contrary intention appears mean as respects any matters relating to the Consolidated Fund or moneys provided by Parliament or to the Exchequer or to Imperial taxes or finance the twelve months ending the thirty first day of March

Definition of 'Lands Clauses Acts'

23 In any Act passed after the commencement of this Act unless the contrary intention appears —

The expression Lands Clauses Acts shall mean—

- (a) as respects England and Wales the Lands Clauses Consolidation Act 1845 the Lands Clauses Consolidation Acts Amendment Act 1860 the Lands Clauses Consolidation Act 1869 and the Lands Clauses (Umpire) Act 1883 and any Acts for the time being in force amending the same and
- (b) as respects Scotland the Lands Clauses Consolidation (Scotland) Act 1845, and the Lands Clauses Consolidation Acts Amendment Act 1860 and any Acts for the time being in force amending the same and
- (c) as respects Ireland, the Lands Clauses Consolidation Act 1845 the Lands Clauses Consolidation Acts Amendment Act 1860 the Railways Act (Ireland) 1851 the Railways Act (Ireland) 1860 the Railways Act (Ireland) 1864 and the Railways Traverse Act and any Acts for the time being in force amending the same

Meaning of Irish Valuation Acts

24 In any Act passed before or after the commencement of this Act the expression Irish Valuation Acts shall mean the Acts relating to the valuation of rateable property in Ireland

'Ordnance map'

25 In this Act and in every other Act whether passed before or after the commencement of this Act the expression ordnance map shall unless the contrary intention appears mean a map made under the

powers conferred by the Survey (Great Britain) Acts 1841 to 1870 or by the Survey (Ireland) Acts 1825 to 1870 and the Acts amending the same respectively

Meaning of service by post

26 Where an Act passed after the commencement of this Act authorises or requires any document to be served by post whether the expression serve or the expression give or send or any other expression is used then unless the contrary intention appears the service shall be deemed to be effected by properly addressing prepaying and posting a letter containing the document and unless the contrary is proved to have been effected at the time at which the letter would be delivered in the ordinary course of post

Meaning of committed for trial

27 In every Act passed after the commencement of this Act the expression committed for trial used in relation to any person shall unless the contrary intention appears mean as respects England and Wales committed to prison with the view of being tried before a judge and jury whether the person is committed in pursuance of section twenty two or of section twenty five of the Indictable Offences Act 1848 or is committed by a court judge coroner or other authority having power to commit a person to any prison with a view to his trial and shall include a person who is admitted to bail upon a recognisance to appear and take his trial before a judge and jury

Meanings of sheriff felony and misdemeanour in future Scotch Acts

28 In this Act and in every Act passed after the commencement of this Act unless the contrary intention appears—

The expression sheriff shall as respects Scotland include a sheriff substitute

The expression felony shall as respects Scotland mean a high crime and offence

The expression misdemeanour shall as respects Scotland mean an offence

Meaning of county court in future Irish Acts

29 In every Act passed after the commencement of this Act unless the contrary intention appears the expression county court shall as respects Ireland mean a civil bill court within the meaning of the County Officers and Courts (Ireland) Act 1877

References to the Crown

30 In this Act and in every other Act whether passed before or after the commencement of this Act references to the sovereign reigning at the time of the passing of the Act or to the Crown shall unless the contrary intention appears be construed as references to the sovereign for the time being and this Act shall be binding on the Crown

Construction of statutory rules etc

31 Where any Act whether passed before or after the commencement of this Act confers power to make grant or issue any instrument, that is to say any order in council order warrant scheme letters patent rules, regulations or byelaws expressions used in the instrument if it is made after the commencement of this Act shall unless the contrary intention appears have the same respective meanings as in the Act conferring the power

Construction of provisions as to exercise of powers and duties

32 —(1) Where an Act passed after the commencement of this Act confers a power or imposes a duty then unless the contrary intention appears the power may be exercised and the duty shall be performed from time to time as occasion requires

(2) Where an Act passed after the commencement of this Act confers a power or imposes a duty on the holder of an office as such then unless the contrary intention appears the power may be exercised and the duty shall be performed by the holder for the time being of the office

Byelaws

(3) Where an Act passed after the commencement of this Act confers a power to make any rules regulations or byelaws the power shall unless the contrary intention appears be construed as including a power exercisable in the like manner and subject to the like consent and conditions if any to rescind revoke amend or vary the rules regulations or byelaws

Provisions as to offences under two or more laws

33 Where an act or omission constitutes an offence under two or more Acts or both under an Act and at common law whether any such Act was passed before or after the commencement of this Act the offender shall unless the contrary intention appears be liable to be prosecuted and punished under either or any of those Acts or at common law but shall not be liable to be punished twice for the same offence ⁴²

Measurement of distances

34 In the measurement of any distance for the purposes of any Act passed after the commencement of this Act that distance shall unless the contrary intention appears be measured in a straight line on a horizontal plane

Citation of Acts

35 —(1) In any Act instrument or document an Act may be cited by reference to the short title if any of the Act either with or without a reference to the chapter or by reference to the regnal year in which the

⁴ But where an accused asks for two charges to be taken together he may not contend that under this section he cannot be convicted of two offences on the same evidence *Williams v Hallam* (1943) 112 L.J.K.B. 353

contrary is necessary for bringing the Act into operation come into operation until the Act comes into operation ⁴⁴

Effect of repeal in future Acts

38 —(1) Where this Act or any Act passed after the commencement of this Act repeals and re-enacts with or without modification any provisions of a former Act, references in any other Act to the provisions so repealed shall unless the contrary intention appears be construed as references to the provisions so re enacted

(2) Where this Act or any Act passed after the commencement of this Act repeals any other enactment then unless the contrary intention appears the repeal shall not—

- (a) revive anything not in force or existing at the time at which the repeal takes effect ⁴⁵ or,
- (b) affect the previous operation of any enactment so repealed or anything duly done or suffered under any enactment so repealed or
- (c) affect any right privilege obligation or liability acquired accrued or incurred under any enactment so repealed or
- (d) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any enactment so repealed or
- (e) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid

and any such investigation legal proceeding or remedy may be instituted continued or enforced and any such penalty forfeiture or punishment may be imposed as if the repealing Act had not been passed ⁴⁶

Supplemental

Definition of 'Act'

39 In this Act the expression 'Act' shall include a local and personal Act and a private Act

Saving for past Acts

40 The provisions of this Act respecting the construction of Acts passed after the commencement of this Act shall not affect the construction of any Act passed before the commencement of this Act although it is continued or amended by an Act passed after such commencement

Repeals

41 [*Repealed S L R Act 1908 (c 49)*]

⁴⁴ See e.g. *R v Minister of Town and Country Planning Ex p Montague Burton* [1951] 1 K B 1

⁴⁵ But see *Boddington v Wison* [1951] 1 K B 606 C A

⁴⁶ *Semble* this section does not apply to Orders in Council or other delegated legislation *D P P v Lamb* [1941] 2 K B 89 per Humphreys J

Commencement of Act

42 This Act shall come into operation on the first day of January one thousand eight hundred and ninety

Short title

43 This Act may be cited as the Interpretation Act 1889

SCHEDULE [Repealed S L R Act 1908]

INTERPRETATION MEASURE 1925

(15 & 16 GEO 5 No 1)

ARRANGEMENT OF SECTIONS

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A Measure passed by The National Assembly of the Church of England to provide for the construction of the Constitution of the National Assembly of the Church of England referred to in the Church of England Assembly (Powers) Act 1919 and for the construction and proof of Measures passed under that Act [28th May 1925]

Application of Interpretation Act 1889 to Measures

1 The Interpretation Act 1889¹ except section five thereof (which relates to the meaning of parish) shall apply to this Measure and to all Measures passed by the Church Assembly after this Measure in like manner as it applies to an Act of Parliament and as if this Measure and those Measures were Acts of Parliament

Application of other enactments containing general rules of construction

2. Where by any enactment (other than the Interpretation Act 1889) a meaning is assigned (unless the contrary intention appears) to any word or expression in all cases where that word or expression is used in Acts of Parliament or in Acts of Parliament passed after a certain date that enactment shall apply to this Measure and to all Measures passed by the Church Assembly after this Measure in like manner as it applies to an Act of Parliament and as if this Measure and those Measures were Acts of Parliament

Provided that in all such Measures unless the contrary intention appears—

- The expression England shall include the town of Berwick upon Tweed but shall not include any part of England or Wales to which the Welsh Church Act 1914 applies and
- Notwithstanding anything in such last mentioned Act the expression Church of England shall not include the Church in Wales

¹ See ante p 398

Meaning of certain expressions in Measures

3 In this Measure, and in every Measure passed by the Church Assembly after this Measure unless the contrary intention appears—

The expression 'Act of Uniformity' means the Act of the fourteenth year of the reign of King Charles the Second chapter four, intituled An Act for the Uniformity of Public Prayers and Administration of Sacraments and other Rites and Ceremonies and for establishing the Form of Making Ordaining and Consecrating Bishops Priests and Deacons in the Church of England, and includes the enactments confirmed and applied by that Act to the Book of Common Prayer

The expression 'benefice' means a benefice with cure of souls and no other and shall comprehend all rectories and vicarages with cure of souls perpetual curacies and endowed public chapels parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel

The expression 'Bishop' in relation to the diocese of an Archbishop means Archbishop

The expression 'Chancellor of the diocese' means the judge of the consistory or commissary court of the Bishop of the diocese

The expression 'church' means any church or chapel which has been consecrated for the purpose of public worship according to the rites and ceremonies of the Church of England

The expression 'the Constitution' means the Constitution of the Church Assembly set forth in the Appendix to the Addresses presented to His Majesty by the Convocations of Canterbury and York on the tenth day of May, nineteen hundred and nine and laid before both Houses of Parliament subject to such alterations and additions as have been or may hereafter be made in the said Constitution by any Act of Parliament or Measure

The expression 'Church Assembly' means the National Assembly of the Church of England as provided for by the Constitution

The expression 'Rules for the Representation of the Laity' means the rules for the representation of the laity contained in the Constitution

The expression 'Regulation' when used of a Regulation made by the Church Assembly means a Regulation making provision in regard to matters concerning the Church of England where such provision does not require Parliamentary sanction

The expression 'House of Bishops' means the House of Bishops of the Church Assembly

The expression 'House of Clergy' means the House of Clergy of the Church Assembly

The expression 'House of Laity' means the House of Laity of the Church Assembly

STATUTORY INSTRUMENTS ACT, 1946

(9 & 10 Geo 6 c 36)

ARRANGEMENT OF SECTIONS

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An Act to repeal the Rules Publication Act 1893 and to make further provision as to the instruments by which statutory powers to make orders rules regulations and other subordinate legislation are exercised
[26th March 1946]

Definition of Statutory Instrument *

1—(1) Where by this Act or any Act passed after the commencement of this Act power to make confirm or approve orders rules regulations or other subordinate legislation is conferred on His Majesty in Council or on any Minister of the Crown then if the power is expressed—

(a) in the case of a power conferred on His Majesty to be exercisable by Order in Council

(b) in the case of a power conferred on a Minister of the Crown to be exercisable by statutory instrument

any document by which that power is exercised shall be known as a statutory instrument and the provisions of this Act shall apply thereto accordingly

(2) Where by any Act passed before the commencement of this Act power to make statutory rules within the meaning of the Rules Publication Act 1893 was conferred on any rule making authority within the meaning of that Act any document by which that power is exercised after the commencement of this Act shall save as is otherwise provided by regulations made under this Act be known as a statutory instrument and the provisions of this Act shall apply thereto accordingly

Lord Chancellor and to the Speaker of the House of Commons drawing attention to the fact that copies of the instrument have yet to be laid before Parliament and explaining why such copies were not so laid before the instrument came into operation

(2) Every copy of any such statutory instrument sold by the King's printer of Acts of Parliament shall bear on the face thereof—

- (a) a statement showing the date on which the statutory instrument came or will come into operation and
- (b) either a statement showing the date on which copies thereof were laid before Parliament or a statement that such copies are to be laid before Parliament

(3) Where any Act passed before the date of the commencement of this Act contains provisions requiring that any Order in Council or other document made in exercise of any power conferred by that or any other Act be laid before Parliament after being made any statutory instrument made in exercise of that power shall by virtue of this Act be laid before Parliament and the foregoing provisions of this section shall apply thereto accordingly in substitution for any such provisions as aforesaid contained in the Act passed before the said date

Statutory Instruments which are subject to annulment by resolution of either House of Parliament

5—(1) Where by this Act or any Act passed after the commencement of this Act it is provided that any statutory instrument shall be subject to annulment in pursuance of resolution of either House of Parliament the instrument shall be laid before Parliament after being made and the provisions of the last foregoing section shall apply thereto accordingly and if either House within the period of forty days beginning with the day on which a copy thereof is laid before it resolves that an Address be presented to His Majesty praying that the instrument be annulled no further proceedings shall be taken thereunder after the date of the resolution and His Majesty may by Order in Council revoke the instrument so however that any such resolution and revocation shall be without prejudice to the validity of anything previously done under the instrument or to the making of a new statutory instrument

(2) Where any Act passed before the date of the commencement of this Act contains provisions requiring that any Order in Council or other document made in exercise of any power conferred by that or any other Act shall be laid before Parliament after being made and shall cease to be in force or may be annulled as the case may be if within a specified period either House presents an address to His Majesty or passes a resolution to that effect then subject to the provisions of any Order in Council made under this Act any statutory instrument made in exercise of the said power shall by virtue of this Act be subject to annulment in pursuance of a resolution of either House of Parliament and the provisions of the last foregoing subsection shall apply thereto accordingly in substitution for any such provisions as aforesaid contained in the Act passed before the said date

Statutory Instruments of which drafts are to be laid before Parliament

6—(1) Where by this Act or any Act passed after the commencement of this Act it is provided that a draft of any statutory instrument shall be laid before Parliament but the Act does not prohibit the making of the instrument without the approval of Parliament then in the case of an Order in Council the draft shall not be submitted to His Majesty in Council and in any other case the statutory instrument shall not be made until after the expiration of a period of forty days beginning with the day on which a copy of the draft is laid before each House of Parliament or, if such copies are laid on different days with the later of the two days and if within that period either House resolves that the draft be not submitted to His Majesty or that the statutory instrument be not made as the case may be no further proceedings shall be taken thereon but without prejudice to the laying before Parliament of a new draft

(2) Where any Act passed before the date of the commencement of this Act contains provisions requiring that a draft of any Order in Council or other document to be made in exercise of any power conferred by that or any other Act shall be laid before Parliament before being submitted to His Majesty or before being made as the case may be and that it shall not be so submitted or made if within a specified period either House presents an address to His Majesty or passes a resolution to that effect then subject to the provisions of any Order in Council made under this Act a draft of any statutory instrument made in exercise of the said power shall by virtue of this Act be laid before Parliament and the provisions of the last foregoing subsection shall apply thereto accordingly in substitution for any such provisions as aforesaid contained in the Act passed before the said date

Supplementary provisions as to ss 4 5 and 6

7—(1) In reckoning for the purposes of either of the last two foregoing sections any period of forty days no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days

(2) In relation to any instrument required by any Act whether passed before or after the commencement of this Act to be laid before the House of Commons only the provisions of the last three foregoing sections shall have effect as if references to that House were therein substituted for references to Parliament and for references to either House and each House thereof

(3) The provisions of sections four and five of this Act shall not apply to any statutory instrument being an order which is subject to special Parliamentary procedure or to any other instrument which is required to be laid before Parliament or before the House of Commons for any period before it comes into operation

Regulations

8—(1) The Treasury may with the concurrence of the Lord Chancellor

and the Speaker of the House of Commons by statutory instrument make regulations for the purposes of this Act and such regulations may in particular —

- (a) provide for the different treatment of instruments which are of the nature of a public Act and of those which are of the nature of a local and personal or private Act
- (b) make provision as to the numbering printing and publication of statutory instruments including provision for postponing the numbering of any such instrument which does not take effect until it has been approved by Parliament or by the House of Commons until the instrument has been so approved
- (c) provide with respect to any classes or descriptions of statutory instrument that they shall be exempt either altogether or to such extent as may be determined by or under the regulations from the requirement of being printed and of being sold by the King's printer of Acts of Parliament or from either of those requirements
- (d) determine the classes of cases in which the exercise of a statutory power by any rule making authority constitutes or does not constitute the making of such a statutory rule as is referred to in subsection (2) of section one of this Act and provide for the exclusion from that subsection of any such classes
- (e) provide for the determination by a person or persons nominated by the Lord Chancellor and the Speaker of the House of Commons of any question—

(i) as to the numbering printing or publication of any statutory instrument or class or description of such instruments

(ii) whether or to what extent any statutory instrument or class or description of such instruments is under the regulations exempt from any such requirement as is mentioned in paragraph (c) of this subsection

(iii) whether any statutory instrument or class or description of such instruments is in the nature of a public Act or of a local and personal or private Act

(iv) whether the exercise of any power conferred by an Act passed before the commencement of this Act is or is not the exercise of a power to make a statutory rule

(2) Every statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of Parliament

Powers to extend Act to other orders etc. and to make provisions thereof

9—(1) If with respect to any power to co-ordinate rules regulations or other subordinate legislation of the Crown by any Act passed before the commencement of this Act it appears to His Majesty in Council that the exercise of that power did not constitute the making

within the meaning of the Rules Publication Act 1893 it is expedient that the provisions of this Act should apply to documents by which that power is exercised His Majesty may by Order in Council direct that any document by which that power is exercised after such date as may be specified in the Order shall be known as a statutory instrument and the provisions of this Act shall apply thereto accordingly

(2) If with respect to any Act passed before the commencement of this Act it appears to His Majesty in Council that by reason of the exceptional nature of any provisions of that Act the application of subsection (2) of section five or subsection (2) of section six of this Act to statutory instruments made under any provisions of that Act would be inexpedient His Majesty may by Order in Council direct that those subsections shall not apply to statutory instruments made under those provisions or shall apply thereto subject to such modifications as may be specified in the Order

(3) A draft of any Order in Council proposed to be made under this section shall be laid before Parliament

Commencement of Act

10—(1) This Act shall come into operation on such date as His Majesty may by Order in Council appoint

Provided that without prejudice to the provisions of section thirty seven of the Interpretation Act 1889 the last foregoing section and in relation to any Order in Council made thereunder, the provisions of sections six and seven of this Act shall come into operation on the passing of this Act

(2) The Order in Council made under this section shall be laid before Parliament after being made

Interpretation

11—(1) For the purposes of this Act any power to make confirm or approve orders rules regulations or other subordinate legislation conferred on the Treasury, the Admiralty the Board of Trade or any other government department shall be deemed to be conferred on the Minister of the Crown in charge of that department

(2) If any question arises whether any board commissioners or other body on whom any such power as aforesaid is conferred are a government department within the meaning of this section or what Minister of the Crown is in charge of them that question shall be referred to and determined by the Treasury

Repeal of 56 & 57 Vict c 66 and re-enactment of s 3 (3) thereof

12—(1) The Rules Publication Act 1893 is hereby repealed

(2) The publication in the London Edinburgh or Belfast Gazette of a notice stating that a statutory instrument has been made and specifying the place where copies thereof may be purchased shall be sufficient compliance with the provisions of any enactment whether passed before

and the Speaker of the House of Commons by statutory instrument make regulations for the purposes of this Act and such regulations may in particular —

- (a) provide for the different treatment of instruments which are of the nature of a public Act and of those which are of the nature of a local and personal or private Act
- (b) make provision as to the numbering printing and publication of statutory instruments including provision for postponing the numbering of any such instrument which does not take effect until it has been approved by Parliament or by the House of Commons until the instrument has been so approved
- (c) provide with respect to any classes or descriptions of statutory instrument that they shall be exempt either altogether or to such extent as may be determined by or under the regulations from the requirement of being printed and of being sold by the King's printer of Acts of Parliament or from either of those requirements
- (d) determine the classes of cases in which the exercise of a statutory power by any rule making authority constitutes or does not constitute the making of such a statutory rule as is referred to in subsection (2) of section one of this Act and provide for the exclusion from that subsection of any such classes
- (e) provide for the determination by a person or persons nominated by the Lord Chancellor and the Speaker of the House of Commons of any question—

(i) as to the numbering printing or publication of any statutory instrument or class or description of such instruments

(ii) whether or in what extent any statutory instrument or class or description of such instruments is under the regulations exempt from any such requirement as is mentioned in paragraph (c) of this subsection

(iii) whether any statutory instrument or class or description of such instruments is in the nature of a public Act or of a local and personal or private Act

(iv) whether the exercise of any power conferred by an Act passed before the commencement of this Act is or is not the exercise of a power to make a statutory rule

(2) Every statutory instrument made under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament

Powers to extend Act to other orders etc and to modify application of certain provisions thereof

9—(1) If with respect to any power to confirm or approve orders rules regulations or other subordinate legislation conferred on a Minister of the Crown by any Act passed before the commencement of this Act it appears to His Majesty in Council that notwithstanding that the exercise of that power did not constitute the making of a statutory rule

within the meaning of the Rules Publication Act 1893 it is expedient that the provisions of this Act should apply to documents by which that power is exercised His Majesty may by Order in Council direct that any document by which that power is exercised after such date as may be specified in the Order shall be known as a statutory instrument and the provisions of this Act shall apply thereto accordingly

(2) If with respect to any Act passed before the commencement of this Act it appears to His Majesty in Council that by reason of the exceptional nature of any provisions of that Act the application of subsection (2) of section five or subsection (2) of section six of this Act to statutory instruments made under any provisions of that Act would be inexpedient His Majesty may by Order in Council direct that those subsections shall not apply to statutory instruments made under those provisions or shall apply thereto subject to such modifications as may be specified in the Order

(3) A draft of any Order in Council proposed to be made under this section shall be laid before Parliament

Commencement of Act

10—(1) This Act shall come into operation on such date as His Majesty may by Order in Council appoint

Provided that without prejudice to the provisions of section thirty seven of the Interpretation Act 1889, the last foregoing section and in relation to any Order in Council made thereunder the provisions of sections six and seven of this Act shall come into operation on the passing of this Act

(2) The Order in Council made under this section shall be laid before Parliament after being made

Interpretation

11—(1) For the purposes of this Act, any power to make confirm or approve orders rules regulations or other subordinate legislation conferred on the Treasury the Admiralty the Board of Trade or any other government department shall be deemed to be conferred on the Minister of the Crown in charge of that department

(2) If any question arises whether any board commissioners or other body on whom any such power as aforesaid is conferred are a government department within the meaning of this section or what Minister of the Crown is in charge of them that question shall be referred to and determined by the Treasury

Repeal of 56 & 57 Vict c 66 and re-enactment of s 3 (3) thereof

12—(1) The Rules Publication Act 1893 is hereby repealed

(2) The publication in the London Edinburgh or Belfast Gazette of a notice stating that a statutory instrument has been made and specifying the place where copies thereof may be purchased shall be sufficient compliance with the provisions of any enactment whether passed before

or after the commencement of this Act, requiring that instrument to be published or notified in that Gazette

Short title and extent

13 —(1) This Act may be cited as the Statutory Instruments Act 1946

(2) This Act shall apply to any statutory instrument made by His Majesty in Council or by any Minister of the Crown (not being a rule making authority within the meaning of the Rules Publication Act (Northern Ireland) 1925³) in so far as it extends to Northern Ireland but except as aforesaid this Act shall not extend to Northern Ireland

³ Repealed Statutory Rules Act (NI) 1953 (c 13) s 8 see now that Act

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